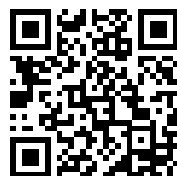

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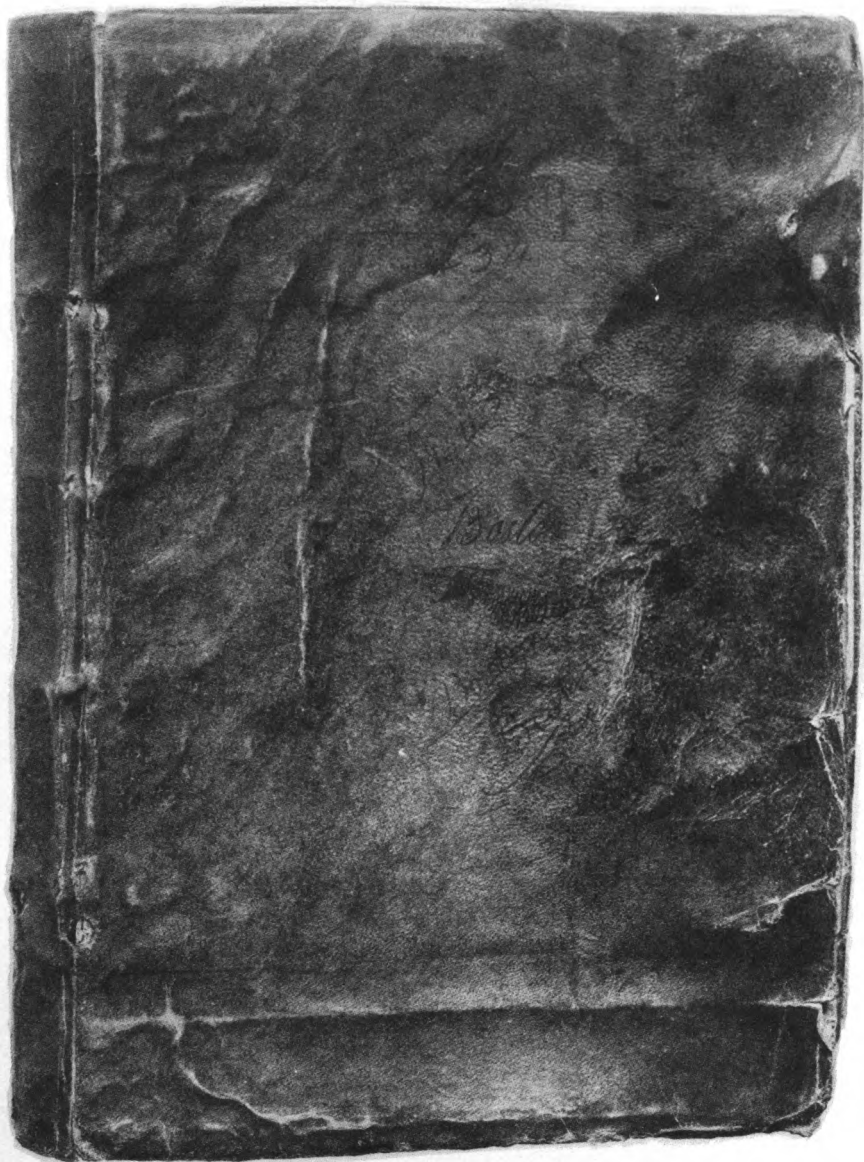
RECORDS
OF THE
COURT OF ASSISTANTS
OF THE
COLONY
OF THE
MASSACHUSETTS BAY

1630—1692

VOLUME I

AMS PRESS
NEW YORK

RECORDS



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OF THE
COURT OF ASSISTANTS
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PRINTED UNDER THE SUPERVISION OF

JOHN NOBLE

CLERK OF THE SUPREME JUDICIAL COURT

VOL. I.

BOSTON
PUBLISHED BY THE COUNTY OF SUFFOLK
1901

Library of Congress Cataloging in Publication Data

Massachusetts (Colony). Court of Assistants.

Records of the Court of Assistants of the colony of the Massachusetts Bay, 1630-1692.

1. Law reports, digests, etc.--Massachusetts.
2. Massachusetts--History--Colonial period--Sources.
- I. Title.

KFM2445.A15 1630b

929'.3744

70-172853

ISBN 0-404-07350-6

Reprinted with permission from a volume in the George Peabody Department, Enoch Pratt Free Library, Baltimore, Maryland, 1973.

Reprinted from the edition of 1901, Boston
First AMS edition published, 1973
Manufactured in the United States of America

Trim size of the original edition: 6 1/4" x 9 1/2"
Trim size of AMS edition: 5 1/2" x 8 1/2"

International Standard Book Number:
Complete Set: 0-404-07350-6
Volume I: 0-404-07351-4

AMS PRESS, INC.
New York, N. Y. 10003

AUG 7 1974

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PREFACE.

UNDER the orders of the Board of Aldermen of the City of Boston, acting as County Commissioners of the County of Suffolk, passed 22d December, 1890, and 8th June, 1896, and approved by the Mayor, the Clerk of the Supreme Judicial Court was authorized to prepare, publish, and distribute all the Records of Courts held by the Governor and Assistants for the Colony of the Massachusetts Bay from 1630 to 1692, and known as the Records of the Court of Assistants. In accordance therewith this volume is now issued, covering the period from 1673 to 1692.

Although chronologically the record of the last twenty years of the Court of Assistants, it has been entitled Volume I., inasmuch as the original manuscript book from which it is printed is the only complete volume of its records now extant, and all that has preserved the specific form of an original record of the Court; while the remainder of its records, so far as they have been recovered or reproduced and are to be printed hereafter, is made up of various material drawn from various sources.

This single, original volume of records is now in the office of the Clerk of the Supreme Judicial Court. It is bound in vellum and is in a state of almost perfect preservation, although somewhat worn and battered by the use of more than two hundred years. The greater part of it is in the handwriting of Edward Rawson, whose peculiar chirography and methods have required especial care in the work of transcribing. It

gives a complete record of the Court from 3d March, 1673, to 22d April, 1686, and from 24th December, 1689, till the early part of the year 1692. It is designated by an original entry on the parchment cover as the *Secconde Booke of Reccords Begunne the 3d of March 1673.*

The earlier original records of the Court, except as hereinafter stated, are lost. The existence of a first book of records at different times in the seventeenth century is proved by copies found upon file made before 1673 and certified by Edward Rawson, Secretary, as taken "out of the Courts book of records," and is also further shown by the title entered upon the parchment cover of the volume just described. When or how the book disappeared is unknown, but it has been missing from a time beyond living memory, and even tradition has lost sight of it. All search for any trace of it has thus far been fruitless.

The volume now issued has been printed with as exact an adherence to the original as possible, and is a reproduction of it in every particular, so far as the difference between print and manuscript will allow. In its preparation, I have been favored with the assistance of William P. Upham, Esquire, which in every stage of the work has been invaluable, and to whose patience, accuracy, research, and knowledge the fullest acknowledgment is due.

Excepting the inter-charter period, there have been but three Courts established for the trial of causes, which have had supreme jurisdiction in judicial matters, during the whole period covered by the history of the Colony of the Massachusetts Bay, by that of the Province, and by that of the Commonwealth of Massachusetts, — namely, the Court of Assistants, under the Charter of the Governor and Company of the Massachusetts Bay in New England, granted in 1629; the Superior Court of

Judicature, under the Province Charter of 1692 ; and the Supreme Judicial Court, since the adoption of the Constitution in 1780.

During the early years of the Colony of the Massachusetts Bay, the powers and duties of the Governor and the Assistants sitting as a Court of Assistants for the trial of causes, civil and criminal, were not distinguished from the powers and duties of the same magistrates acting in the executive and legislative capacities under the Charter. From 1629 to 1641 their proceedings as Magistrates acting as a Court are entered in the same book, intermixed with the records of the General Court, — the whole forming the first volume of the Massachusetts Records, now in the State Archives.

The Court, as such, was as old as the Colony itself. The first record, which is headed with the formal title, "At a Court of Assistants," is that of the 18th of May, 1629. Its records, beginning on this side of the water with its first sitting, 23 August, 1630, and from that time on for some years, show the exercise by it of all the functions of government, — executive, legislative, and judicial.

The first record of the General Court appears under the date of 19 October, 1630, and thereafter, down to May, 1634, it met only four times, while more than thirty Courts of Assistants appear to have been held, their records occupying six-sevenths of the original pages of the record. The powers and functions of the Court sitting as a judicial tribunal appear to a certain extent in the records, — in such, at least, as have been preserved. They are also indicated by the laws relating to the inferior Courts ; the act of March, 1635–6, providing for these inferior Courts in the four counties to be "kept eūy quarter" to "trie all civill causes, whereof the debt or damage shall not excedede X^l, & all Criminal Causes not concerning life, member, or banishm^t,"

with a right of "appeale to the nexte greate Quarter Court;" that of September, 1639, establishing "Speciall Courts" to be held quarterly by "such of the Magistrats as shall reside in or near to Boston, or any 5, 4, or 3, of them, the Governo^r or Deputie to bee one," with substantially the powers of the County Courts; and by other acts establishing the Strangers' Court and other small Courts. Such Courts, though the Magistrates sat in them, were wholly distinct from the regular Courts of Assistants.

All Acts referring to the Court of Assistants merely recognize its existence and jurisdiction, and fix its terms of sitting: that of March, 1635-6, provides that "There shalbe foure greate Quarter Courts kept yearely att Boston, by the Gov^r, & the rest of the Magistrates," fixing its terms; and that of October, 1649, reduces this number from four to two.

In the Laws of 1660 and those of 1672, the Chapter on Courts prescribes the terms of sitting, and states the powers of the Court of Assistants as follows:—

For the better administration of justice, & easing of the country of unnecessary charges and travaile,—It is Ordered by this Court and the Authority thereof, that there be two Courts of Assistants yearely kept at Boston by the Governour, Deputie Governour, and the rest of the Magistrates, on the first Tuesday of the first month, and on the first Tuesday of the seventh month, to heare and determine all and onely actions of appeale from inferiour Courts; all Causes of Divorce, all Capital and Criminal causes, extending to life, member or banishment. And that justice be not deferred, nor the Country needlessly charged, It shall be lawful for the Governour, or in his absence the Deputie Governour, (as they shall judge necessary), to call a Court of Assistants for the tryal of any Malefactour in Capital Causes.

This jurisdiction, thus recognized, appears to have existed in fact, uninterruptedly, from the beginning of the Colony.

The separation of the functions, — executive, legislative, and judicial, which resulted in the Court of Assistants becoming a purely judicial body, took place gradually.

The legislative function seems to have been surrendered by agreement amongst the Magistrates and Freemen at the General Court in May, 1634; while the executive function continued to be exercised by it occasionally for some years. It was not till 1650 that the Magistrates, sitting as a Council, had a separate record.

In its modes of procedure, the Court seems to have been governed by the general principles of the Common Law which the Colonists had brought with them from England; by the habits of legal practice which they had acquired as Englishmen, — some of them by special training; by the limitation in the Charter that no laws should be made repugnant to the laws of England, — as they construed that limitation; and by the guide of those only other sources of law which they recognized, — the Mosaic Code as interpreted by themselves, and the enactments of the General Court from time to time, with the advice, sometimes, of the Elders of the Churches.

From time to time, as it appears by the Colonial records, committees were appointed to make a draught of laws: 6 May, 1635, "of such Lawes as they shall judge needefull for the well ordering of this plantaçon;" 25 May, 1636, "of lawes agreeable to the word of God, w^{ch} may be the Fundamentalls of this Comonwealth;" while "in the meane tyme the Magistrates and their associates shall pcede in the Courts to heare & determine all causes according to the lawes nowe established, & where there is noe lawe, then as neere the lawe of God as they can;" — and so on at different times thereafter. Meantime the Magistrates seemed inclined to let laws "arise *pro re nata* upon occa-

sions," and thus be founded more upon accepted customs and practice than upon special enactments. In this connection the following extract from Winthrop's History of New England, (November, 1639), throws light upon the policy pursued by the founders of Massachusetts, and perhaps explains why no formal establishment of, and commission to, the Courts of Assistants was ever made :—

" The people had long desired a body of laws, and thought their condition very unsafe, while so much power rested in the discretion of magistrates. Divers attempts had been made at former courts, and the matter referred to some of the magistrates and some of the elders ; but still it came to no effect ; for, being committed to the care of many, whatsoever was done by some, was still disliked or neglected by others. At last it was referred to Mr. Cotton and Mr. Nathaniel Warde, etc., and each of them framed a model, which was presented to this general court, and by them committed to the governour and deputy and some others to consider of, and so prepare it for the court in the 3d month next. Two great reasons there were, which caused most of the magistrates and some of the elders not to be very forward in this matter. One was, want of sufficient experience of the nature and disposition of the people, considered with the condition of the country and other circumstances, which made them conceive that such laws would be fittest for us which should arise pro re nata upon occasions, etc., and so the laws of England and other states grew, and therefore the fundamental laws of England are called customs, consuetudines.

" 2. For that it would professedly transgress the limits of our charter, which provide we shall make no laws repugnant to the laws of England, and that we were assured we must do. But to raise up laws by practice and custom had been no transgression ; as in our church discipline, and in matters of marriage, to make a law that marriages should not be solemnized by ministers, is repugnant to the laws of England ; but to bring it to a custom by practice for the magistrates to perform it, is no law made repugnant, etc. At length (to satisfy the people) it proceeded, and the two models were digested with divers alterations and additions, and abbreviated and sent to every town, to be considered of first by the magistrates and elders, and then to be published by the constables to all the people, that if any man should

think fit, that anything therein ought to be altered, he might acquaint some of the deputies therewith against the next court." (i.322.)

In further illustration of this subject I quote from a letter of William Pynchon to John Winthrop, some years later. This alludes also to the dealings of the Courts with private rights and controversies. In such matters the Court of Assistants would have had original jurisdiction in certain cases, and in others appellate jurisdiction.

" Springefeild this 9 of the 1 m. 1646.

" But how soeuer, their endeouers cannot but haue an ill construction; yet I thinke the Courte both of magistrates & deputies, should not turne of[f] all the particulars wherein they desyre a reformation, without making a right vse of so much of their position as doth iustly cale for reformation: for as we had the happinesse to be bredd & borne vnder such lawes for ciuill gouernment as I conceiue no nation hath better, so it should be our care, in thankfulnessse both to God & that state, to preserue & adhere to what euer lawes or customes they haue, except those that be contrary to God, & therein we must obey God & not man, & yet we haue liberty from the pattent to make what soeuer by lawes may tend to the good of this place: & I cannot but apprehend that your spirit lies this way, for I remember at oure first comminge, as soone as euer the people were diuided into seuerall plantations, you did presently nominate a conestable for each plantation, as the most common officers of the king's peace, & gaue them their oath in true substance as the conestables take it in England: likewise all controuersies about meum & tuum were tryed by juries, after the manner of England, & after a while grand juries were appointed, for further inquiry into such matter as might tend to the king's peace; & still thes courses, I thinke, are contin[ue], & thes courses are the best courses that this Commonwealth can take, if they ha[ue] free liberty to alter: as Fortescue in commendation of the lawes of England [to] my satisfaction doth shew. He giues good reasons for the necessary vse of juries for all tryalls, shewing that it is consonant to the word of God, & prefers it far aboue the course of justice in France, which is also of high respect." (4 Massachusetts Historical Collections, vi., 381.)

Codifications of the laws appear in the Body of Liberties in 1641, and in the Colonial Laws of 1660 and 1672. There was also a code of laws established in 1649, but no copy thereof is known to be in existence.

At the time when this volume begins (1673) the Court had become a purely judicial body, the Court of highest original jurisdiction in causes civil and criminal, and with a wide appellate jurisdiction,—a tribunal invested with all the attributes of a Court, equipped with all the necessary legal machinery for the due administration and execution of its powers and duties, and as such following established and recognized modes of practice and procedure. Its Bench was the Magistrates, a body characterized not so much by profound legal learning or judicial distinction, as by plain sense, a rugged idea of justice, integrity, and a standing derived from eminent public service in various capacities.

Volume I. of the Records of the Court of Assistants, now published, covers, as already stated, the period from 1673 to 1692.

Volume II., now in preparation, and to be issued as soon as possible, will contain, in three Parts, a restoration of such portions of the earlier records of the Court as can be recovered.

Part I. will contain those portions of the first volume of the Records of Massachusetts in the State Archives which relate specially to the jurisdiction and proceedings of the Court of Assistants. This matter has already been included in Volume I. of the Records of the Governor and Company of the Massachusetts Bay in New England, 1628–1641, edited by Dr. Nathaniel B. Shurtleff. In the forthcoming volume the text will follow

the originals in the State Archives with strict adherence in every point, and be an exact reproduction in print.

Part II. will comprise a copy of a portion of the records of the Court of Assistants, extending from 28th October, 1641, to the 5th March, 1643-4, recently discovered in the Barlow Manuscript copy, or duplicate, of the records of the Colony of the Massachusetts Bay, which was bought for the Boston Public Library in 1890, and published in that year, by order of the City Council of Boston, by William H. Whitmore, Record Commissioner, in his Bibliographical Sketch of the Laws of the Massachusetts Colony. In printing these records there will be the same exact adherence to the original manuscript and the same strict conformity with it as in Part I.

These earlier records are not, however, as has been often assumed, the complete record of the doings of the Court, as such, during those periods. With scarcely an exception, such records as have thus come down to us in consecutive order contain only criminal matters or matters of public concern; there is no reference to any dealing by the Court with civil matters, like suits between individuals or questions of property, where the Court had, and often exercised, unquestioned jurisdiction. It is clear, that at the outset no record whatever of such last-mentioned proceedings was kept. Carrying out a suggestion of Lechford, made in 1639, the General Court, at its session in September of that year, enacted:—

“Whereas many iudgments have bene given in o^r Courts, whereof no records are kept of the evidence & reasons whereupon the verdict & iudgment did passe, the records whereof being duely entered & kept would bee of good vse for president to posterity, & a releife to such as shall have just cause to have their causes reheard & reveiwed, it is therefore by this Court ordered & decreed that henceforward every iudgment, wth all the evidence,

bee recorded in a booke, to bee kept to posterity." (Massachusetts Colony Records, i.275.)

At the same time, provision was made for a record of probate proceedings and of births, marriages, and deaths. That such a book of records was in existence in 1643, and at times thereafter, is evident from certified copies in the Early Court Files.

A considerable collection of material showing the exercise of this civil jurisdiction during these periods, and making a more or less complete record of what was done, has been gathered, and will be presented in the next volume, to which further consideration of the matter is deferred.

In Part III., it will be attempted, so far as accessible material allows, to fill the gap between 1643 and 1673, a period of thirty years during which no continuous or consecutive record is to be found, and to reproduce the doings of the Court, so far as may be possible, by a careful and thorough investigation which has been made in every quarter where anything bearing upon the matter was likely to be found. It is designed to give all copies of its records during this period between 1643 and 1673, which could be found either in the Suffolk Court Files, where many have been preserved, in the State Archives, among the files of courts in any of the other older counties of the Commonwealth, or in any record office within or without the Commonwealth, or that could be obtained from contemporaneous history, or any other authoritative source, — all to be brought together and arranged chronologically.

If the execution of this plan shall be successfully carried out, it is hoped that a very considerable accumulation of matter for the study of the origin, development, and methods of procedure of this Colonial Court of ultimate resort and supreme jurisdic-

tion, — the predecessor of the Superior Court of Judicature and of the Supreme Judicial Court — will be presented in one view and form which may be of value in its relation to the history of the Commonwealth and to the history of its jurisprudence.

JOHN NOBLE.

SUPREME JUDICIAL COURT,
OFFICE OF THE CLERK,
BOSTON, 1 July, 1901.

COURT OF ASSISTANTS.

RECORD 1673-1692.

FROM THE ORIGINAL BOOK OF RECORDS IN THE
CLERK'S OFFICE OF THE SUPREME
JUDICIAL COURT.

EXPLANATION OF MARKS AND CHARACTERS.

MARKS.

A mark over a letter indicates an omission of one or more letters.

A caret ^ indicates one or more words omitted in the original.

Brackets [] indicate words or letters in the original which are illegible or doubtful or apparently erroneous.

Parallels || || enclose words interlined in the original.

CHARACTERS.

ff signifies ff or F.

n “ ner, nor, or no.

p “ par or per.

q “ por or pro.

p “ Per.

u “ ver.

e “ &c. (etc.)

COURT OF ASSISTANTS

[S]ECCOND BOOKE OF RECCO[RDS]

BEGUNNE THE 3^D OF MARCH, 1673.

[The title given above is written on the parchment cover. The first six leaves of the book are blank.]

[1]

1673:

Att a Court of Assistants held at Boston in New England the 3^d of march 1673

John Bonner plaintiffe ag^t John Heyman & the rest of the Jury wth him deffend^t in an action of Appeale from the virdict of the Jury in September last on Attajnt =

Affter the Jury^s virdict the Attachm^t Reasons of Appeale & evidences in that case was Read wth y^e said Heyman & y^e Jury^s wth him Ans^r Comitted to this Jury and are on file wth the reccords of this Court the Jury brought in their virdict they found a speciall virdict i e If the Law doeth Impower a Jury of twelve men to give damage according to what they Judge Rationally might be susteyned by the party Complayning then wee finde for the deffendants: but if the Lawe doth not allow the Jury that power or liberty then wee finde for the now plaintiffe. = The magis^t declared on perversall of y^e virdict ffor the deffendants. Costs of Courts five pounds three shilling^s & sixpence. =

John Clarke plantiffe against Joseph Bartlet deffendant in an action of Appeale from the Judg-

present *
Jn^e Leueret [Esq^r]
Sam. Symonds Esq^r
Simon Bradstreet
Daniel Gookin
Daniel Dennison
Richard Russell
Thomas Danforth
W^m Hawthorne
Edward Tyng
W^m Staughton
Thomas Clarke
— — —
persons returned
[for] service of the
Gr[]
and that were
swo[rne]
Capt Jn^e Allen
Edmund Jack-
son [S]
Hugh Drury
Abel Porter
Rob^t Walker
W^m Dawes
Griffn Crafts
Robert Williams
Henry Bright
Joseph Taintor
Randall Nicholls
Richard Withington
James Mynott
Jonas Clarke
Thomas ffox
— — —

* The edge of the first leaf is much worn.

ment of the County Court at Cambridge in octobe^r last declaring his bond to be forfeited =

John Clarke plaintiff ag^t Joseph Bartlet deffendant in an action of Appeale from the Judgment of the County Court in Cambridge in octobe^r last: 6^r =

Hugh Clarke plaintiff ag^t Joseph Bartlet deffendant in an action of Appeale from the Judgment of the County Court in Cambridg in octobe^r last declaring his bond to be forfeited 6^r 1673:

Hugh Clarke plaintiff ag^t Joseph Bartlet deffendant in an action of Appeale from the Judgment of the County Court in Cambridg in octobe^r last [as] above The Attachments Courts Judgments Reasons of Appeale & Ans^r wth the evidences in the Case^s produced being read & heard in these 4 actions both plaintiffs & deffendant Agred & Consented in open Court one wth another that the merrit of the whole Case that should haue binn heard & trjed at the last Court of Assistants in Septembe^r should now be heard & as it fell so the Costs & Damages should be and so the Case was Comitted to the Jury who brought in their virdict they found for the plaintiff^s on the whole merrit of the Case reuersion of the forme^r Judgment & Costs of Courts five pounds fowerteen shillings & eight pence = = 1st Jur. =

Benjamin Gibbs plaintiffe ag^t the Judgment or sentence of the County Court in Boston in January last in refferenc to Henry Ashtons Complaint = After the Courts Sentence Complaint & reasons of Appeale were read Comitted to the Jury wth the evidences in y^t Case produced wch are on file wth the Reccords of this Court the Jury brought in their virdict they found the Confirmation of the forme^r County Courts Judgment & Costs of Courts — 2^d Jur.

Benjamin Gibbs plaintiff ag^t Henry Ashton deffend^t in an action of Appeale from the Judgment of the last County Court in Boston as to the action of Revejw: After the Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth y^e Rec- cords of this Court the Jury brought in their virdict

persons return^d to
s[er]ve on] ye Jury
for y^e trjall of []
of Attaint & sworne
Mr W^m Manning
John ffreake
John Heyward
Edward Shippen
Bartholmew Chev-
[ers]

Robert Seavor
Samuel Gary
J^{as} Whitney Se[nr]
Richard Louden
Peter Tuffts
Joseph Homes
Tim^o: ffoster
Tho Langbor[ne]

John Bomde Plaintiff vs. Mary Abbot Defendant
Appeared, with the judgment of the Court, last, in London, and
the Macdonald Court, judgment of the Court of Appeals, and the
appeals were read, and the Court of Appeals was composed of
the Court of the Court, the jury brought in their verdict, and the
the different confirmation of the Court, and the Court of
the Court, even upon the Court of the Court, and the Court of

Joseph took plain life and Thomas Skinner defendant in a suit for
Appraisement of the judgment of the Court, levelled him
in Boston - all for the Attachment (not judgment) of the Court
Evidence in the case produced was easily committed to the
on file, while the Jury of the Court the Jury brought in their
they found for the defendant (not a maker of the judgment)
Costs of Court of Law - 10/10

Binwood Bowly plaintiff in Appeal from the judgment of the Com. Court held at the Exchequer in December 1874 called the plaintiff referred himself to the Bench, left the court and had therefore heard the case upon the last business day of Appeal & in view of the fact that the court had not found

...ation of the former judgment of five hundred money due
and that he should bring it to Cambridgeport, the first
or per formid = Cur 1st M

Joseph Rock, administrator to the estate of late John Logan
his wife plaintiff against Thomas Clark, defendant in an action of assumpsit
from the judgment of the last Court held in Boston relating
ing to give possession. After the attachment last judgment
of Appeals evidence given by the defendant was taken by
a Jury. Remaynt on file with the Verdict of the Court in favor
of law also bringing in the Court to determine the quantity
the defendant. Cost of last trial on the thing above

Now Term of em. in an action of Appeal from the judgment of a
Court in Boston relating the said Clark's refusal to pay what was
owed to Logan. This action being brought on a writ of ^{to move}
the defendant's last trial the Jury finding in favor of the
Thomas Patton Attorney for the defendant's last trial
of Appeals from the judgment of the last Court held in
Massachusetts Court Judgment Verdict of Appraisement of the
the Court was awarded limited to the sum of \$400.00
the Jury found the sum of \$400.00 in favor of the
the Court's last trial the Jury found the sum of \$400.00

they found for the plaintiffe ffower pounds [&] Costs
[] eight shillings & fower
pence.

Daniel Tur[ell]
 Richard Sha[rpe]
 []

[27]

1673

[George Woo]d- ward
[Daniel Da]nison
[Jacob He]wens
[Thomas] Pearse
[Hamp]hry Warren
[] Returned to
serve [on the] Jury
for trjalls [Appeals
of] life limbe e r
[& a wor]ne were =
[John] Woodmansey
[Dan]iel Turell
[Rich]ard Sharpe
[] ge May
[Samuel] Gary
[George] Mayo
[Gregor]y Cooke
[George] Wood- ward

John Bonner plaintiffe ag^t Henry Ashton defend-
ant in an action of Appeale from the Judgment of the
County Court last in Boston = After the Attachment
Courts Judgment Reasons of Appeale and evidences
in the case produced were read Comitted to the Jury
& are remaying on file wth the Records of this Court
the Jury brought in their virdict they found for
the defendant Confirmation of the forme^r Judgment
& Costs of Courts: seventeen shillings & six pence
|| besids y^e 12^s [] in all 29.6^d = 1^s Jur.

[Daniel] Daulson
[Jacob] Hewens
[Thomas] Pearse
[John] Watson
— — —
[Persons] Returned
to serve [on the] 24
Jury for tryalls
[] Appeals for
life limbe^{er}
[&] sworne were
[John] Winsley
[John] Heyward
[Edward] Shippen
[Bartholmew] Chel-
vers
[Robert] Seavor
[John] Whitney
Senr
[Robert] Herrington
[RICH. LOUDEN
[PETER] TUFTS
[JOSEPH] HOMES
[TIMOTHY] FOSTER
[THOMAS] LANGHORNE

Joseph Lowle plaintiffe ag^t Thomas Skinner defendant in an action of Appeale from the Judgment or Sentenc of the County Court last in Boston = After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the forme^r Judgment & Costs of Courts = 1st Jur.

Benanuel Bowe's plantiff on Appeale from the Judgment or sentence of the County Court held at charls Towne in december last the Accon was Called the plantiff Referred himself to the Bench. Afte[r] the magists had therefore heard the Case & perved the Courts Sentence Reasons of Appeale & evidences therein produced declared they found Confirmation of the former Judgment five pounds mony & costs of Courts and that he stands Comitted to Cambridge prison till the sentence be performed = 1st Jury

exec. Iss^d out 12 Sep:
1674
[Rock]e ag^t Clarke

Joseph Rocke administrator to the estate of y^e
late John Coggan & [Mar]tha his wife plaintiff ag^t
Thomas Clarke deffendant in an action of Appeale

from the Judgment of the last County Court in Boston relating to his denying to give possession *et* = After the Attachment Courts Judgment Reasons of Appeale & evidences in y^e Case produced were read Comitted to the Jury & Remayne on file wth the Reccords of this Court it being a point of law & so belonging to the Bench to determine the magists declared for the deffendant Costs of Courts : thirteen shillings & six pence

Idem *Ūsus Idem* *Idem Ūsus Idem*: in an action of Appeale from
exec. Issued out the Judgment of the last County Court in Boston re-
 [12] March 74 lating to the said Clarks refusall to pay Rent accord-
 ing to his Couenant this accon being Called *et* and as the other
 The magists declared for the deffendant Costs of Courts thirteen
 shillings & six pence =

Thomas Pattyn Attorney to Jn^o Pattyn plaintiff ag^t Jn^o Winsley
 defendt in an action of Appeale from the Judgment of the last County
 Court in Boston After the Attachment Courts Judgment Reasons of
 Appeale & othe^r evidences in the case produced were
 [Pattyn] ag^t Wins- read comitted to the Jury & remajne on file wth the
 ley Reccords of this Court the Jury brought in their vir-
 dict they found for the deffendant Confirmation of the former Judg-
 ment & Costs of Courts twenty [shillings] pence =

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Pattyn ag^t. Dyer Thomas Pattyn Attorney to John Pattyn plaintiff
 ag^t Giles Dyer Deffend^t in an Accon of Appeale from
 the Judgment of the last County Court in Boston After the Attach-
 ment Courts Judgment reasons of Appeale & evidences in the case
 produced were read Comitted to the Jury & remajne on file wth the
 Reccords of this Court the Jury brought in their virdict they found for
 the Deffendant confirmation of the forme^r Judgment & Costs of Courts
 fifty one shillings & sixpence = 1st Jur.

Cheekly ag^t w^{ms} Anthony Cheekly Attorney to Theode^r Atkinson
 g Abig Atkinson seⁿ in behalf of his Daughter Abigaile Atkinson
 plaintiff against John willjams deffend^t in an action of Appeale from
 the Judgment of the last County Court in Boston after the Attachment
 Courts Judgment reasons of Appeale & evidences in the case pre-
 sented were Read Comitted to the Jury & remajne on file wth the

Reccords of this Court the Jury brought in their virdict they found a speciall virdict i e That In Case this deed of Gift from Theode' Atkinson seⁿ to his children be authentick & good in law: then wee finde for the plantiffe that he haue the houses & lands sued for but if not Authentick *er* then wee finde for y^e deffendant Costs of Courts. The magistrates finde for y^e deffendant costs of Courts thirty fiae shillings = 2^d Jur

Joseph Ludden & James stuart plantiffs on Ludden & Stuart
Appeale from the Judgment or sentence of the last appea[] from sen-
County Court in Boston relating to the thirty pounds tenc of y^e Cou[Cou]
the Jury found against them for An W^ms & Robert Pigget *er* After
the Attachm^t Courts Judgment or sentenc wth y^e Reasons of Ap-
peale & evidences in the case produced were read Comitted to the
Jury & are on file wth y^e Reccords of this Court the Jury brought in
their virdict they found for the plantiff^s reuersion of the former Judg-
ment = 1st Jur.

Joseph Dudson Richard wharton & John ffair- Dudson *er* ag^t Dar-
weather plantiffe against W^m Darvall defendant in vall
an action of Appeale from the Judgmen^t of the last County Court in
Boston = the action was Called the plantiffs made default by their non
Appearanc when Called the Case was nonsuited =

Richard Thayer plantiff ag^t Roger Rose deffend- Thayer ag^t Rose
ant in an action of Appeale from the Judgment of the
County Court in Boston in octobe^r last = After the Attachment Courts
Judgment Reasons of Appeale & evidences in the case produced were
read Comitted to the Jury and remajne on file wth the Reccords of this
Court the Jury brought in their virdict they found for the Deffendant
Costs of Courts thirty fowe^r shillings = 2^d Jur.

Georg Martyn & susannah his wife plantiff ag^t Nathaniel Winsly
& mary his wife defend^a in an action of Appeale from Martyn ag^t winsly
the Judgment of the last County Court at Hampton
this Accon was called y^e deffend^t objecting y^e plantiff had no^t signed
the Reasons of Appeale yet the Deffendant yeilded on the plantiff^s
promise to pay the deffend^t costs of this Court to this day & so Hamp-
ton Costs wch was donn & so the Case proceeded after the Attachment
Courts Judgment Reasons of Appeale & evidences in the Case pro-
duced were read Comitted to y^e Jury & are on file wth the Reccords of

this Court The Jury brought in their virdict they found for the plaintiff there being no legall prooffe of Richard North^a will that the estate the said North left be left to the disposall of the County Court there in Norfolk as the law provide & Costs of Courts five pounds one shilling & six pence

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1673

Pike ag^t Gove
2^d Jur. Major Robt Pike plantiffe against Edward Gove deffendant in an action of Appeale from the Judgment of the County Court at Hampton = After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the ~~deffendant Confirmation~~ || plantiffe Reuersion || of the former Judgment & one shilling damage & Costs of Courts sixe pounds seuen shillings = 1st Jur * =

miles Ag^t Heyden

Experience miles plantiff ag^t Ebenezar Heyden deffendant in an action of appeale from the Judgment of the Comissione's Court in Boston in december last = After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are remayning on file the Jury brought in their verdict they found for the deffendant confirmation of the forme^r Judgment & Costs of Courts = twenty three shillings & sixe pence
2^d Jur.

Winsly Ag^t Martyn

Nathaniel Winsly plantiffe ag^t George Martyn deffend^t in an accōn of Appeale from the Judgment of the last County Court at Hampton After the Attachm^t Courts Judgment reasons of appeale & evidences in the case produced were read Comitted to the Jury and are remayning on file wth the Reccords of this Court the Jury brought in their virdict they found for the plantiffe reuersion of the former Judgment & Costs of Courts = three pounds [fower] & 2d
2^d Jury

Henry Roby & Nathaniel Boulter plantiffe ag^t Robert Evins deffend^t in an accōn of Appeale from the Judgment of the County Court at Hampton After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are
Roby & Boulter
ag^t Evins

* Probably an error for "2^d Jur."

remayning on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the forme^r Judgment & Costs of Courts

2^d Jur =

Henry Roby & Jn^o stanion plaintiff ag^t Edward Colcord deffend^t in an action of Appeale from the Judgment of the County Court at Hampton = After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plantiffe^s Reuersion of the former Judgment & Costs of Courts fower pounds ten [⁂] & ten penc

Roby & Stanion
ag^t Boulter *
1st Jury

Edw. Colcord
ptending all y^e
Coples were not
sent sd he could
say nothing =

Jn^o Teudo^r Assignee of Joseph Dell Assigne of Jn^o Smith plaintiff ag^t W^m Aglin deffend^t in an action of Appeale from the Judgment of the Comissione's Court in Boston in January last After y^e Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for y^e defend^t Confirmation of the former Judgment & Costs of Courts = fowrteen shillings

Tudor ag^t Aglin
1st Jur =

John Ryde^r plantiffe ag^t John Sharp deffendant in an action of Appeale from the Judgment of the County Court in Boston January last After the Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for y^e plantiff reuersion of the forme^r Judgment & Costs of Courts

Ryder ag^t Sharpe
2^d Jur =

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1673.

John Samborne & Edward Colcord Attorney^s for & on behalfe of the Toune of Hampton plantiffs ag^t ||Daniel|| Tilton deffendant in an action of Appeale from the Judgment of the County Court at Hampton = After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are remayning on file wth the Reccords of this Court the Jury brought in their virdict

Samborn & Colcord
Ag^t Tylton.
2^d Jur. =

* Error of the Secretary for "Colcord."

they found for the plantiffe reuersion of the former Judgment || forty shillings damage || & Costs of Courts foure || (4) || pounds 4' 6^d.

Goue ag^t ffouler
2^d Jur.

Edward Goue plantiffe as Assignee to phillip Greely ag^t Samuel ffouler deffendant in an Ac^{on} of Appeale from the Judgment of the County Court at Hampton = After the Attachment Courts Judgment reasons of Appeale & euidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts = fuetty five shillings & six pence

Peck ag^t Lauton
2^d Jur.

Thomas Pecke plantiff ag^t Henry Lauton deffend^t in an action of Appeale from the Judgment of the County Court in octobe^r last in Boston — After the Attachment Courts Judgm^t Reasons of Appeale & euidences in the Case produced were read Comitted to the Jury & remajne on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Costs of Courts =

Godfry ag^t Clark
2^d Jur

John Godfrey plantiff ag^t Edward Clarke marshall Gen^l Deputy deffendt in an action of Appeale from the Judgment of the County Court at Ipswich. After the Attachment Courts Judgment Reasons of Appeale & euidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Costs of Courts = three pounds seven shillings & 4^d =

Collecot ag^t Pinchon
2^d Jur

Richard Collecot plantiffe ag^t Jn^o Pinchon Jun^d Assignee of John Pinchon Sen^r Esq^r deffend^t in an action of Appeale from the Judgment of y^e last County Court in Boston = After y^e Attachm^t Courts Judgment Reasons of Appeale & euidences in the Case produced were read Comitted to y^e Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for y^e deffendant Confirmation of y^e forme^r Judgment & Costs of Courts =

Knight ag^t Bratle

Richard Knight shopkeep^r plan^t ag^t Tho Bratle Attorney to Jn^o Cutt of Portsmouth defend^t in an action of Appeale from the Judgm^t of the last County Court in Boston

After the Attachment Courts Judgm^t Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the defend^t Confirmation of the former Judgment & Costs of Courts = three pounds sixteen shillings =

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1673

John Kejne plaintiff ag^t Nathaniel Piper defend- Keyne ag^t Piper
1st Jur
ant in an action of Appeale from the Judgment of
the County Court at Ipswich = After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff the abatement of fuety shillings of the forme^r Judgment & the Costs of this Court = wch in all came to five pounds one shillings * & six pence to be deducted out of y^e form^r Judgm^t & costs wch was eleven pounds nine shillings =

Joseph Smith plaintiff on Appeale from the Smith^r Judgm^t
reQuest
1st Jur =
Judgment of the County Court at Boston = After the
Courts Judgment Reasons of Appeale and evidences
in the Case produced were read Comitted to the Jury and are on file
the Jury brought in their virdict they found for the Appellant reuersion
of the forme^r Judgment =

Timothy Batt plantiffe ag^t Joseph Seuerans Batt ag^t Seuerans
1st Jur
execution Issued out
5 Dec 74, for 3^l 15^s
10 Costs & dd to mr
norman y^t was his
Attorney & came in
his name for it =
deffendant in an action of Appeal from the Judgment
of the County Court at Hampton After the Attach-
ment Courts Judgment Reasons of Appeale and
evidences in the Case produced were read Comitted to
the Jury and are on file wth the Reccords of this
Court the Jury brought in their virdict they found for the plaintiff
reuersion of the forme^r Judgment & Costs of Courts three pounds
fueteen shillings & ten pence =

Jonathan Shoare plantiff ag^t Tmothy Yale deffendant in an action
of Appeale from the Judgment of the County Court in Boston octobe^r
last After the Attachment was Read this Case was dismist on both
partjes Appearing in Court & owning that they were Agreed =

* Error in the record for "shilling."

Ruth Read being Comitted to prison & brought to the barr to Answer for that hauing binn aboue fowe' yeares in England absent from hir husband and bringing wth hir a child of About two yeares old Affirming that she received it at Brandford in England that Augustin Lyndon who chandging his name to John Rogers & hirselve by the name of Rebeckah Rogers as she also Affirmed betweene whom seuerall letters wickedly (as if man & wife [^] had passed between them which are on file, and that John Rogers told hir the childs name was John Rogers, and most Impudently returning to these parts Imposing the sajd child on hir husband W^m Read The Court sentenct the sajd Ruth Read that named hirselve Rebeckah Rogers if found in this Colony two month^s after this date that shee stands in the markt place on a stoole for one hower wth a paper on hir breast wth y^r Inscription THVS I STAND FOR MY ADVLTEROVS AND WHORISH CARRIAGE and that on a lecture day nex^t after the lecture and then be seuerely whipt wth thirty stripes =

11 M^{ch} 1673

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1673

Benjamin Goad being found Guilty of Bestiallity by y^r Grand Jury = was Brought to the barr and was Indicted by the name of Benjami Goad of Roxbury in New England for that he not hauing the feare of God before his eyes being instigated by the the Divill did on the seventh day of february last past in the Afternoone the sun being two howe's high Comitt the vnnatural & horrid act of Beastiallitje on a mare in the highway or field Contrary to the peace of ou^r Soueraigne Lord the King his Croune & Dignitie the lawes of God and of this Jurisdiction = to wch Indictment holding vp his hand at the barr he pleaded not Guilty sajd he would be trjed by God & the Countrije making no exception ag^t any of the Jury the case proceeded and after the evidences in the Case produced ag^t him were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict i e a speciall virdict If the prisoners confession ag^t himself vpon his first app^rhention & examination before his trjall togethe^r wth one euidence be sufficient to a legall conviction, then wee find him Guilty according to Indictment, othe^rwise no^t legally guilty of the fact but of a most horrid attempt of Beastiallity, w^{ch} wee leaue to the determination of the Honored Court — The magis^{ts} on the pervsall of this virdict they declared they found him Capitolly

Benja Goads In-
dictm^t

his Sentence

Guilty The Goũne^r proceeded to sentenc him i e That yo^w shall *
returne from y^e place (y^e barr) to the place from whence yo^w † Came &
from thence to the place of execution & there hang till yow be dead =
And that the mare yow abused before your execution in yo^r sight shall
be knockt on y^e head. =

It was also Ordered that the sajd Prisoner Con- On Courts Adjorn^t
demmed to dye should be executed on the fifth day 13 mth
next Come fortnight being the second day of April his execution
next after the lecture & y^e the Secretary Issue out his warrants
seasonably to the marshall Generall to see & order the same as in other
cases wch was donn Accordingly as by y^e m^rshalls Return on file =

In the Case of Anna Edmunds Complained on Anna Edmonds
by Samuell Bennet & his wife on suspition of witch- Accus^d dischargd =
craft After the Court had heard all the evidences produced against
her the Court declared that they saw no Ground to fix any charge
against her & so dismiss hir The Court also Ordered that Samuel
Bennet defray and pay the charges of the wittnesses in y^e case = thirty
shillings & ff^ees :

In the Case of John & Samuel Bennet bound Ju^s & Sam Bennet
ouer to this Court that the sajd John & Sarah Ben- find c^r =
net & Elljnor squire shall Appeare before this Court to Answer for the
great neglect of Alice wilson & the son of the sajd Alice wch might
occasion their deaths and for burying the child in an obscure and
clandestine manner in the Garden of the sajd Samuel Bennet The
Court having considered of the evidences in the case produced Ordered
that the sajd John Bennet & Samuell in behalf of his wife c^r shall
satisfy & pay the Constables bill of charges by him layd out for
phisick diet c^r on y^e sajd Alice the sume of forty
sixe shillings & six p^{en}c & y^e sd W^m Edmonds & Anna
Edmonds their wittnesses & charges wch comes to : Samuel Townsend
thirty two shillings & ff^ees of Court = execution Issued out
for 46 : 6 : & dd to m^r
[d]oyd -

[8]

1673

In Answer to y^e order of the Generall Court 7 mth 73
october 1673 relating to the Inhabitants of y^e East- p^{re}s^{en}t y^e
Goũnor

* "He should" changed to "yo^w shall,"† "He" changed to "yo^w."

Dep^t Go^o ward Kenebecke *er* The Go^ono^r & magis^{ts} present
 m^r Treasurer Ordered That Thomas Humphrys be constable at
 m^r Danforth Kennebeck for this yeare Robert Gamon Constable of
 m^r Tyng Capenawagen & Damerills Coue John Dillon con-
 m^r Clarke stable of monhegin and Edward Arrowsmith constable for Pemaquid
 also for y^e yeare =

An^s to Aluin In Ans^r to the peticoⁿ of Aluin child in behalf
 Childs peticoⁿ of his Correspondents m^rchants in Lexbon * concerned
 in y^e ship Antonio & Goods *er* The Court ordered that the secretary
 Issue out warrant for majo^r Nicholas Shapleigh to Come & appeare
 before this Court now sitting y^e 11th Instant at nine of y^e clocke.

Georg Cole & other At this Court the Constable of Boston made his
 Quake's Admonish^t retorne of his warant that he on the Lords day last
er in time of publick excercise found in the house of
 Nicholas moulder certeine Quake's as Georg Cole speaking to them
 y^t were present as Nicho moulder & christian his wife steven Hussey
 David ffogg John Somes Joshua Buffam Ann Gillam martha Amy
 Elipl[am] stratten & Hester Dew contrary to our law The Court sent
 for them they Appeared It being declard to them y^t their meeting
 was contrary to our Lawe *er* the Court ordered them as the law directs
 to be all admonish^t the Go^ono^r Admonish^t them Accordingly & they
 were told the law would be too hard for them & [^] must if they fell into
 y^e like transgression expect y^e execution thereof

Charge ag^t m^r Isac Addington was Appointed to Implead
 Nicholas Shapleigh maj^r shapleigh & draw vp a charg ag^t him majo^r
 Nicholas Shapleigh being sumoned to Appeare at this Court this 11th
 Instant at nine of y^e clocke in the morning to Ans^r what should be layd
 aganst him as relating to the Criminall part of his bond Given into
 this court at the tyme he was Called three times but Appeared not his
 sue^ty^e Appearing Alleadged the badnes of the weather affirming they
 had sent the warrant & expected him howery: in the afternoone he
 made his Appearance and desired the liberty of his triall by a Jury
 & entred his Action m^r Isack Addington also Appeared & presented a
 charge against him which was publickly read after wch the sajd
 Nicholas Shapleigh Owned and confessed that the mentioned seaman
 wⁱⁿ ff Forrest Alexand^r wilson *er* ~~the mentioned seamen~~ were in his
 warehouse and that out of foollish pitty to them he suffered them to

* Error in the record for "Lisbon."

be there that he was su'prised *et*: After y^e Declaration & evidences & pleas in the Case produced were read Comitted to the Jury and are on file wth the Recceords of this Court the Jury brought in their virdict they found the sajd Nicholas shapleigh convicted of the three first articles exhibbited against him & vehemently suspitious of being Guilty of the fowerth = Nicholas Shapleigh being Convicted by the virdict of the Jury y^t vnder the pretence of buying 1stly Did receive & Conceale Goods pirattically & ffelloniously obtained by w^m fforrest & his Complices in the ship Antonio of Lizborne amounting to one hundred pounds or vpwards yeilding no valluable Consideration for the same =

2^{ly} And that he did clandestinely entertheyne Conceale & hide away in his ware house w^m fforrest Allexander wilson & John Smith Capitall offenders hauing

[9] 1673

their hands in ffelloniously & pirattically seizing & possessing themselves of the ship Antonjo and Goods on the high sea.^t dispossessing the right master merchant & othe's exposing them to the hazard of their liues (and that after to his knowledge) the sajd persons were detected for the same & pu'sued by Authority in order to their App'hension =

3^{ly} And that he the sajd shapleigh did harbour majnteyne & order provisions for the sustenance of the sajd persons, during their concealment = all wch the Jury found him Guilty of

And further by the virdict of y^e Jury rendred vnder vehement suspicion of being Guilty of Prouiding ordering working an escape for, and in the night privately conveying away the aboue sajd three offend's by all wch endeavoring to obstruct the free course of Justice against such Capitoll offend'o's and thereby making himself an Abetter of them all wch hath occasioned great expense & charge to the Country to prosecute & bring such high offenders to their due tryall The Court to beare their due testimony against such high offences doe sentenc yow the sajd Nicholas shapleigh to pay as a fine to the Country fue hundred pounds in mony standing Comitted till the sentenc be p^rformed =

In Ans^r to y^e peticon of m^r w^m Darvall & m^r. Isack melines It being put to the Question whither y^e case should come to a tryall here in a Court of Admiralty. It was resolved on y^e negative =

Nicho Shapleigh's censure = find 500 ^{li} *et*

at y^e Adjourn^t [1]^{3th}
m^{ch} 1673.
Ans^r to m^r Darvalls
peticon
no hearing

In Answer to the petition of Nicholas Shapleigh humbly desiring
 this Court to favo^r him wth y^e Abatement of a considerable part of his fine & Alteration of the specia^e:
 Nich Shapleighs
 petition & fine
 abated
 his estate not being able to beare it The Court declares that on the petitioners payment of three hundred pounds to the Tresp^{er} of the Country he shall be dischargd =

In Ans^r to y^e petition of Benja Goad y^e Court
 Grants his request libe^{ty} to Goe to meeting on y^e lds
 Benja Goad libe^{ty}
 to goe to Roxbury
 es =
 day at Roxbury y^e m^shall Gen^{ll} or his deputy taking effectuall cours for his return to prison y^e same day.

This Court was Adjourned to the 14th Instant at eight of the clock in y^e morning

14 of march 1673

The Court being mett The Go^uno^r declared that It was Agreed that the prisone^r Condemned Benjamin Goad should be executed on the nex^t fifth day fortnight being the second day of Aprill next presently after the lecture and that the secretary Issue out his warrant seasonably to the marshall Gen^{er}all to see & order the same as in othe^r cases =
 wch was donn Accordingly =

The Court adjourned themselves to the 23^d of march 1673.

At we^h time the Court mett and In Ans^r to the
 Ans^r to m^r Darvalls
 petition & yeir Case
 to be heard 10 Apr
 74.
 petition of m^r w^m Darvall and m^r Isaac Melines ordered theire Case to be heard on fryday fortnight being the 10th of Aprill at nine of the clocke and that the Secretary Give notice to all the magis^{ts} and partjes Concerned to Attend at y^e time =

Letters to the seuerall magis^{ts} to give them notice as to y^e Courts adjournm^t was sent accordingly & notice Giuen to the partjes Concerned.

from 34 March 1673

Amy wellen the Indictment being found ag^t hir
 by the Grand jury was brought to y^e barr Refusing to object || ag^t || any of y^e jury of trialls holding vp hir hand at y^e barr was Indicted by y^e name of Amy Wellen wife to Richard wellen for not hauing the feare of God before hir eyes did sometime[s] the last spring being w^hin a twelve moneth being instigated by y^e diuill comitt

Adultery wth Jn^o Glandfeild of black point in the house of willjam Buttyn * of black point Contrary to y^e peace of our Soueraigne Lord his Croune & dignity the lawes of God & of this jurisdiction to wch Indictment she pleaded not guilty & put himself on trjall by God & the Country After y^e Indictment & evidences in the Case produced ag^t the prisoner at the barr were read Comitted to the Jury & are on file wth the Reccords of this Cour^t The Jury found hir not Guilty = & so she was dismist =

The Grand Jury finding the like bill ag^t Jn^o Glandfeild of black point he was alike tried for Comitting adultery wth Amy Wellen mutatis mutan[dis] & on hearing of all y^e evidences the Jury found him not Guilty as above & he was [also] dismist †

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1674

Att the Adjournm^t of the Court of Assistants from the 23^d march 1673 to the 10th of Aprill 1674.

The Court mett at the time The Court enjoyed John Lowell on his bonds to Appeare before y^e next County Court of Boston in Aprill to Ans^r to what shall there be layd to his charge in relation to his holding a Correspondency wth the Dutch & y^e like m^r messmake^r if he be sent for.

present
Jn^o LeUet Esq^r Go^{vt}
Sam Symonds Esq^r
Dep^t Go^{vt}.
Daniel Gookin
Tho Danforth
Edw. Tyng
W^m Staughton
Tho: Clarke
Esq^{rs}

Att this Court m^r melynes & m^r Darvall y^t were attending on this Court for their tryall hauing deliuered in their Complaints ag^t m^r Dudson m^r wharton m^r Paige and m^r faireweather both partjes were Called after much debate This Court Referr^d the hearing of this case to the twenty eighth of may next at nine of the clock in the morning & y^t the ship be not sent away hence till the case be heard = to wch time they Adjourned themselues =

Att y^e Adjournment of the Court of Assistants held at Boston 28th may 1674. this Court Adjourned themselues from day to day to y^e 6th June 1674. when mett declar'd e^r

The Court hauing heard & Considered the request of Joseph Dudson & Company pleading the

present
Jn^o LeUet Esq^r Go^{vt}
Sam^l Symonds Esq^r
dep^t Go^{vt}.
Symon Bradstreet
Dani Gookin.
Dani Dennison
Symon Willard
Rich. Russell

* Or Battyn.

† These last two paragraphs appear to have been written by the Secretary at a later date and in a blank space left at the foot of the page.

29 3mo 74
 Tho. Danforth
 W^m Hathorn
 Jn^s Pinchon
 Edw. Tyng
 Wm Staughton
 6 June 74
 Thomas Clarke

benefit of the law of this Comonweale for the Judication of the ship expectation whereof Isaack Melynes was Comānde^r by them lately seized at Nantucket & brought into this Jurisdiction It appearing on the hearing of the plea^r & evidences presented in the case that the ship was by them first carrjed into plimouth Jurisdiction where on their request to the

Gouernment there for Judication the sajd Dudson & Company gaue bond in a thousand pounds sterling that after the ship was fitted in Boston then to give notice to the sajd meljnes & Company of the Port to which he Intended to carry the sajd ship for trjall &c and when there Arrived before the Goūno^r of the place or court of Admiralty there Constituted, to render a Just account of the Goods and that so those Concerned may haue oppertunity to recouer their respective rights & Interests. = This Court Considering the premisses doe not Judg meet to give the sajd Dudson & Company Judication of the sajd vessell; but doe refferr them to the obse^rvance of their bonds given to the Goūment of Pljmouth Colony =

[11]

1674

In Ans^r to the petition of Nicholas Shapleigh The Court ordered that on the petiōn's giving such sufficient || & satisfactory || security his engagement of his house & land so farr as it respects The Country as to the criminall part shall be dischargd =

present
 Jn^s Leffet Esq^r Goū
 Sam Symonds Esq^r
 Dep^t Goū
 Symon Bradstreet
 Daniel Gookin
 Daniel Denison
 Symon willard
 Richard Russell
 Thomas Danforth
 W^m Hawthorne
 Jn^s Pinchon
 Edward Tyng
 W^m Staughton

 person^s returned to
 serve on y^e Grand
 Jury & sworne were

Esq^r

Att A Court of Assistants held at Boston
 y^e 1st of September 1674 =

2^d Jur Edward Goue plantiffe against majo^r
 Robe^t Pike deffendant in an accon of
 Appeale from the Judgment of the last County
 Court at Salisbury = After the Attachment Courts
 Judgment Reasons of Appeale & evidences in the
 case produced were read Comitted to the Jury &
 are remayning on file wth the Reccords of this
 Court the Jury Brought in their virdict they
 found for the deffendant Confirmation of the for-
 me^r Judgment & costs of Courts = || forty two
 shillings & two pence costs granted 14^p y^e Court

march 80/1 maj^r [affirming] y^e 1st execution was granted another dated the 23 octobe^r 82 ||

John Sands plaintiff ag^t Cap^t Edward Hutchinson deffendant in an action of Appeale from the Judgment of the last County Court sitting in Boston = After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are remaying on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff Reuersion of the former Judgment and forty-two shillings damage & costs of courts fowe^r pounds fowe^{te}n shillings & sixpenc

James chase plaintiff ag^t m^r John Wheelwright as ffefee in trust to the wife and children of the late Robert Nanny deffendant in an action of Appeale from the Judgment of the last County Court at Salisbury The Accon was Called The plantiffe by his Attorney Appearing Ready to prosecute It being Affirmed the Accon was Agreed The Court Allowed y^e plaintiff to wthdraw his Accon =

Joseph Roocke Adminstrator to the estate of y^e late m^r Jⁿ & m^{rs} martha Coggan plaintiff against Anthony stoddard Guardian to Thomas Robinson = Deffendt in an action of Appeale from the Judgment of the last County Court in Boston = After the Attachment Courts Judgment reasons of Appeale & evidences in the case produced were read Comitted to the Jury & are remaying on file with the Reccords of this Court the Jury brought in their virdict they found for the plaintiff reuersion of the former Judgment & Costs of Courts. =

Benjamin Gibbs plaintiff against John Bonner & James Euerell Deffendants in an action of Appeale from the Judgment of the last County Court in Boston = After the Attachment Courts Judgment Reasons of Appeale & evidences in the case produced were read Comitted to the Jury & are remaying on file wth the Reccords of this Court the Jury brought in their virdict they found for the Deffendant costs of Courts thirty fower shillings & eight pence

Left Joshua Scot-
tow

John Blake
Symon Lynde
w^m Taylor
Jⁿ Conney
Jⁿ Coolidge
Ellis Baron
Rob^t Williams
Thomas Weld
Jⁿ Pelton sen^d.
Timothy Mather
Elijas Rowe
Rich Sprague
Justinian Holding
Jⁿ Fuller
— — —
persons returned to
serve on y^e 1st Jury
for trjalls of Ap-
peales life e^r &
sworne were {
— — — — }
m^r Anthony Cheeck-
ley

Joseph Tounsend
Benjamin Batten
Jⁿ Noyce
Isaack Newell
Nathaniell Brewer
Tho Tollman Jun^d
Israell How
Jⁿ Phillips
w^m Goddard
James Bernard
Pyam Blower
Jⁿ Goue.
— — — —

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1674

persons Returnd to
serve on y^e 2^d Jury
for trjalls of Ap-
pealls life & sworne
were

— — — —
Mr Richard Knight
Joseph Swett
Ephraim Turner
Tho. Dewer
Jn^o Watson
Rob^t Pepper
Obadiah Hawes
Zekary Long
W^m Bond.
Joseph Taintor
Tho Broune
W^m Barrat
— — — —

2^d Jur Zackariah Crispe plantiffe ag^t Jn^o
Joanes deffendant in an action of Appeale from the
Judgment of the last County Court in Boston =
After the Attachment Courts Judgment Reasons of
Appeale & evidences in the case produced were read
Comitted to the Jury and are remajning on file wth the
Reccords of this Court the Jury brought in their
virdict i e. a speciall virdict :

[blank]

The magis^{tr} on pervsall of this virdict they de-
clard for the deffendant & costs of courts

1st Jur

Benjamin Gibbs plaintiff ag^t Jn^o Bonner & James
Euerell deffend^t in an accon of Appeale from the Judgment of the
last County Court in Boston & was on Reveyw. After the Attach-
ment Courts Judgment Reasons of Appeale and evidences in the
case produced were read Comitted to the Jury and are remajning
on file wth the Reccords of this Court the Jury brought in their
virdict they found for the deffendant costs of Courts = thirty fowr
shillings & six pence

2^d Jur
Sevy ag^t Deering

Thomas Sevy plaintiff against Henry Deering
deffend^t in an action of Appeale from the Judgment
of the last County Court in Portsmouth = After the Attachm^t Courts
Judgment Reasons of Appeale & evidences in the Case produced were
read Comitted to the Jury and are on file wth the Reccords of this Court
the Jury brought in their virdict they found for the plantiff Reuersion
of the former Judgment & costs of Courts = fforty six shillings & six
pence

Colcord ag^t Redman
2^d Jur.

Edward Colcord plantiffe against Jn^o Redman
deffendan^t in a action of Appeale from the Judgment
of the last County Court at Salisbury : the Case was called plaintiff
& deffendant Appearing This Case properly belonging to the Court to
determine The magis^{tr} after hearing the parties & evidences wth the

Reasons & Courts Judgment determined for the plaintiff liberty to Reveyw & Costs of Courts

Edward Colcord plaintiff ag^t X'ophe^r Palmer deffendant in an Action of Appeale from the Judgment of the last County Court at Salisbury. After the Attachment Courts Judgment Reasons of Appeale & euidences in the Case produced were read Comitted to the Jury & are remayning on file wth the Reccords of y^e Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Courts

2^d Jur
Colcord ag^t Palmer
exec Issued out 11
M^rch 74 dd to m^r
Norton of piscata[gr]
for 52^s = mony

Jn^o Redman Attorney to w^m Bacon & Thomas Cannida plaintiff against the Towne of Hampton or their Attorney Deffend^t in an Action of Appeale from the Judgment of the County Court at Salisbury — After the Attachment Courts Judgment Reasons of Appeale and euidences in the Case produced were read Comitted to the Jury and are Remayning on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the former Judgment & Costs of Courts three pounds nine shillings & eight pence. =

Redman ag^t Hamp-
ton
2^d Jur

Exec. Issued out for
3⁹ : 8 : 5th 7 : mō 1674 :
E R S.

Rob^t Sandford plaintiff ag^t Nathaniel Putman deffend^t in an action of Appeale from the Judgment of the last County Court in Salem After the Attachment Courts Judgment Reasons of Appeale & Euidences in the case produced were Read Comitted to the Jury and are remayning on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff reuersion of the former Judgment & costs of Courts

2^d Jur
Sandford ag^t Put-
man

Isaac Griffyn Apprentice to Roge^r Rose making Complaint to y^e Court that his sajd master had not p^rformd his couenants wth him to his great damage the Court vejwed the Indenture & vpon hearing both partjes It was consent^d to by the sajd Rose that vpon the payment of three pounds mony to him by the sajd Griffyn he would release to him the remayning time of his Indenture Prouided that he be acquitted & secured from any further demand from the sajd Griffyn w^{ch} y^e Gou^rno^r & magists^a approved of & ordered that they Give discharg[e] each to y^e other past by y^e [Court] E R S. Rog^r Rose [ed] in Court he had Rec^d 3li mony of s^d Griffyn

Ord^r ab^t Isaac
Griffin

[13]

1674

Batt ag^t Harris
1st Jur.

Paul Batt plaintiff ag^t Jn^o Harris deffend^t in an Action of Appeale from the Comissione's Court in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the case produced were read Comitted to the Jury and are remayning on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff reuersion of the former Judgment & Costs of Courts twenty six shillings =

Bartlet ag^t James:
Legg [c^r]
1st Jur.

Robert Bartlet plaintiff ag^t Erasmus James John Legg James Dennis and Nathaniel walton deffendts or either of them in behalfe of the Comons at marblehead in an Action of Appeale from the Judgment of the County Court last at Ipswich,— After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read comitted to the Jury and are remayning on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff Reuersion of the former Judgment & Costs of Courts = execution of charges was suspended in both Cases till y^e Adjourn^t & Genll Court.

Lattimore Ouse
Idem
1st Jury

Xtophe^r Lattimore plaintiff against Erasmus James Jn^o Legg c^r as before in Bartlets case = After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found for the plaintiff reuersion of the former Judgment & Costs of Courts. This Case & the othe^r was by Consent || & desire || of parties refferred to the hearing & determination of the selectmen of Salem wth m^r Thomas Laughton of Lynn and for that end major Hathorne is to Appoint time and place of meeting and all partjes concerned are to Attend the meetings & Giue in their plea^s Accordingly and that their determination be returned under at least the major pte of their hands into the next Generall Court for their settlement thereof

Bishop ag^t white

Samuell Bishop plantiffe ag^t George White Deffend^t in an action of Appeale from the Judgment of the County Court at Ipswich Tho Bishop Appearing in Court & hauing Appealed in behalfe of his brother Samuel Bishop Vnde'took in Court

to satisfy all damages that shall be recovered &c
 After the attachmt Courts Judgm^t Reasons of Appeale
 & evidences in the case produced were read Comitted
 to the Jury and are remayning on file wth the Reccords
 of this Court the Jury brought in their virdict they found for y^e plantiffe
 reuision of the former Judgment as it is chanceried and three pounds
 fueteen shillings Additionall damages & Costs of Courts = Three
 pounds & eleven shillings The deffend^t desiring a chancery the plantiff
 Gonn & not to be found The Court ordered a respit of y^e execution till
 the 9 of october next to wch time this Court Adjourned
 themselues = [* & chanceried the damage Additionall
 to 40^s only]

exec Issued out 5th
 novembr 74 for 40^s
 dam & (3^{li} 11^s costs
 in mony :) E R S

9 octobr 1674

Jn^o Gold plantiff ag^t Thomas Bishop deffend-
 ant in an Action of Appeale from the Judgment of
 the County Court at Ipswich = After the Attachmt
 Courts Judg^t Reasons of Appeale & evidences in the
 Case produced were read Comitted to the Jury & are
 remayning on file wth the Reccords of this Court the
 Jury brought in their virdict they found for the deffendant confirma-
 tion of the fformer Judg^t & costs of Courts.

Gold ag^t Bishop
 Judg^t 25. 13^s. 4
 Costs 2 13 8

 28. 7 0

exec. Issued out 10
 Sep^r

In Ans^r to a motion of w^m Leathe^rland in prison
 vpon execution libe^rty is Granted him wth his keeper
 to goe to the Ordinances of christ in Boston as also to
 vissit his sick wife wth his keeper he not lying out of
 of y^e prison at any time one night = The like libe^rty is Granted to
 Henry Lauton as to willjam Leathe^rland as to the 1st parte =

Ans^r to w^m Leath^r.
 lands motion
 his & Henry Lau-
 tons Liberty =

[14]

1674

Tho Atkins plaintiff ag^t Ann Joy widdow de-
 fendant in an action of Appeale from the Judgment
 of [blank] Court in Boston the _A

Atkins ag^t Joy

This Accon was wthdrawne by Consent of partjes & allowance
 of the Court.

Tom Indian being presented by the Grand In-
 quest & left to tryall was brought to the barr & there
 holding vp his hand was Indicted by the name of

Jury men sworn as
 to To[†] tryall of
 Tom Indian || & his ||
 Indictmt

* This with the marginal date added later by the Secretary.

† The Secretary evidently neglected to cancel the "To."

mr. Rich Knight
 Joseph Taintor
 Ephraim Turner
 Tho [blank]
 Jn^e watson
 Zackary Long
 wot biompanow
 natow
 Sho Shannough
 Ahanton
 James Asanemeset

his Sentence

Tom Indian for that yow not hauing the feare of God before yo^r eyes & being Instigated by the Divill did on or about the 15th of June last Comitt a rape on the body of Sarah the wife of John Jempson an Indian forcing hir to vnlawfull Copulation wth you Contrary to the peace of ou^r Soueraigne Lord the King his Crowne and dignity the lawes of God & of this Jurisdiction To wch he pleaded not Guilty sajd he would be tryed by God & y^e Country: a Jury of twelve men six English & six Indians against none of which he Objected who being Impannell & sworne After the euidences produced against him were read Comitted to the Jury & remajne on file wth the Reccords of this Court the Jury brought in their virdict they found Tom Indian Guilty according to Indictment It being voated by the magis^{ts} that the sajd Tom the Indian being found Guilty according to Indictment that he should dy for his offence And accordingly after the Gouverno^r had Askt him why he being found Guilty sentenc of Death should not be pronouncet ag^t him The Go^uno^r proceeded & declared that he should Goe from the barr to the prison from whence he came & from thence to the place of execution & there hang till he be dead =

Warr^t Issued out
 Accordgly 10: Sep^r
 74 =

Joseph Blanchard
 Georg Grimes
 bonds to Appear at
 County Court at
 Cambridge =

Joseph Blandchard sonn to George Blandchard & George Grimes being bound ouer to this Court to Ans^r what should be layd to their charge in relation to Coyning of base mony or putting it Away = After the Court had heard what they Could say for themselves The Court ordered them to be bound in twenty pounds apeece to y^e Tresurer of y^e Country on Condicon that they Appeare before the next County Court at Cambridg to Ans^r what should be lajd ag^t them in such respect and Accordingly the sajd Joseph Blandchard & George Grimes each for himself acknowledged himsef respectively bound in twenty pounds apeece to Richard Russell Esq^r Tresurer of the Country on this Con- dicon that they shall & will Appeare at the next County Court in Cam- bridg to Ans^r what should be layd ag^t them or either of them in such respect as above sajd =

Majo^r || Gen^l || Daniel Dennison took his oath as majo^r Generall in open Court =

Att A meeting of the Go^ono^r & Council Assembled in Boston 4 Sep^r 1674 A Day of publick Thanksgiving was Appointed wch was sent to the presse & printed =

[15]

1674

This Court was Adjourned to the 9th of octobe^r next at eight of the clocke in the morning =

The Court of Assistants on their Adjournment mett at the time 9th october 74: = This Court Adjourned themselves from day to day the Generall Court being sitting to the 21th Instant octobe^r 1674 then sitting as a Court of Admiralty. Att this Court Jonas Clarke Jun^r of the Catch Hopewell entred his libell against Richard Starr & Joseph Tounesend requiring sattisfaction for his sajd Catch to this day according to charter party — After all the evidences & pleas made in the Case by both plantiffe & deffendant & the Charte-party & all Read & Considered of The Court found for the plantiff and ordered the Deffendant to pay vnto the plantiffe ninety pounds mony damage & costs of this Court forty shillings wth the officers fees five shillings and that the ouno^r of the sajd Catch to haue the freight home. =

present Jⁿ Leueret Esq^r Go^o
 Sam Symonds
 Esq^r dept Go[u]
 Symon Bradstreet
 Daniel Gookin
 Daniel Dennison
 Symon Willard
 Rich^d Russell
 Thomas Danforth
 W^m Hathorne
 John Pyncheon
 Edward Tyng
 W^m Staughton
 Thomas Clarke

Esq^r[]

Courts Judgm^t in
 Jonas Clarke Case
 ag^t [Jos^s] Starr

Courts Judgment
 ag^t Jⁿ Weaver.

John Weaver marriner & master of the ship Richard & mary of swansey being in prison was sent for and on hearing of all the evidences & pleas in the case produced he being Convicted of notorious lying falsswearing and profanes together with his wilfull neglecting his duty that the sajd ship was lost and sunck in merrimack Riuer on the 5th of September last his endeavoring by his false oath to haue procured the Seale of the Colony giving in false Information to the publick Notary to draw vp his protest to saue himself pretending his great losses of an estate therein which appeared not The Court on the whole, proceeded to censure the sajd John Weauer for his sajd lying & false swearing to be whipt with twenty stripes severely layd on or pay the sume of ten pounds in mony

* Error in the record for "Richard."

together with the charges of the Court the sume of five pounds mony together with the charges of the witnesses and prosecution wth the officers ffees y^e eight wittnesses were allowed twelve shilling apeece mony they discharging what they haue expended on y^e Country^e account here & there =

Courts Judgm^t ag^t
Edw Thomas one of
y^e marriners belong-
ing to ship Rich^d &
Mary of Swansey =
the office's ffees standing Comitted till y^e sentence be performed —

The Court also proceeded to censure Edward Thomas one of the marriners now in prison for his false oath to be whipt wth ten stripes seuerely layd one or pay the sume of forty shillings discharging the office's ffees standing Comitted till y^e sentence be performed —

Ans^r to Edw Col-
cord pet'n

In Ans^r to the petition of Edward Colcord The Court ordered that the Tresurer sattisfy & pay vnto the sajd Colcord the some of forty shillings more out of majo^r shapleighs fine when he Receives it =

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1674

present
Jn^o Leueret Esq^r
Go^o
Sam Symonds Esq^r
dep^t Go^o
Symon Bradstreet
Daniel Gookin
Daniel Dennison
Rich^d Russell
Thomas Danforth
W^m Hawthorn
Edward Tyng
W^m Staughton
Thomas Clarke
persons Returnd to
serve on the Grand
Jury & sworne :
were
— — —
m^r christopher Clarke
Joshua Tyd
Joseph Lynde
Rich^d Bennet
Thomas Smith
Abell porter
Silvester Evely
John Wells
Edward Morrice
Amiel Weekes
Enock Wisewall
Jonas Clarke
Samuel Andrews

Att a Court of Assistants held at Boston 2^d of
march 1674

1st Jur m^r Joseph Belknap & Richard wharton
Attorney^e to & in behalfe of Nicholas Rice plain-
tiffe in an Acc^{on} of Appeale from the virdict of
the Jury & Courts Judgment in the County Court
at Boston in January last ag^t m^r Jn^o Oxenbridge
James Allen Anthony stoddard & Humphry
Davy trustee^e & executo^s to the last will & Testa-
ment of Richard Bellingham Esq^r deceased = After
the Courts Judgment reasons of Appeale and evi-
dences in the Case produced were read Comitted to
the Jury & remajne on file wth the Reccords of this
Court the Jury brought in their verdict they found
for the plantiffs A reuersion of the former Judgment
& Costs of Courts three pounds twelve shillings &
ten pence : =

2^d Jur Joseph Tounsand plantiff ag^t Elias parkeman
deffendant in an action of Appeale from the virdict of

the Jury & County Courts Judgment at Boston in october last After the Courts Judgment Attachment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & remajne on file wth the reccords of this Court the Jury brought in their virdict they found for the deffendant the Confirmation of the former virdict of the County Court at Boston & Costs of Courts.

W^m Broune seⁿ. of Salem merchant plaintiff ag^t willjam Lethe^land deffendant in an Ac^on of Appeale from the virdict of the Jury & County Courts Judgment at Boston in octobe^r last = After the Attachment virdict of the Jury Reasons of Appeale & evidences in the case produced were read Comitted to the Jury & remajne on file with the Reccords of this Court the Jury brought in their virdict they found for the plaintiff the reuersion of the former Judgment & Costs of Courts forty eight shillings =

Thomas Newman plaintiff in an ac^on of Appeale from the virdict of the Jury & County Courts Judgment in octobe^r last against Jn^o Smith merchant Attorney to George Smith merchant = After the virdict of the Jury Attachment Reasons of Appeale & evidences in the case produced were read Comitted to the Jury & the plaintiff & deffendant Appearing in Court (by Consent the plaintiff wthdrew the ac^on): putting their differences relating to the sajd ac^on to Arbitration i e to the fynall Award of Capt Samuel Scarlet m^r Peter lydget and m^r John Richards or the majo^r pte of them giving it in writting vnde^r their hands by the first of Aprill || next || bearing the charges of law already expended each for himself & Acknowledged themselues bound in eight † hundred pounds each to other to stand to Abide by & performe the sajd Award so Given. * * & this was thus donn in open Court 5 march 1674 m^r Richards to Appoint time & place of meeting || & each pty Concerned accordingly to Attend their

exec. for
12. 9. 6
Issued out
9 June 75
wth 5^s ER S.
addi: costs

Rich^d Beers
Henry Bright
— — —
they brought in their
p^rsentm^{ts} & Indictm^{ts}
ag^t Rob^t Driver &
Anna Negro: =
— — —
Jurymen Returnd
to serve on the 1st
Jury of tryalls for
Appeales & for life
limb & banishment
= sworne
— — —

m^r W^m Hilton
Tho. Lord
W^m Davis
Samuel Gore
Thomas Edwards
Thomas Walker
Habbacuck Glouer
Jn^o Minot *
Roger Wellington
Nathaniel Couldig
Jn^o Barnard
Joseph Beamis
— — —
persons Returnd
to serve on y^e 24 Jury
of Trjalls e^r at y^e
Court
sworne
— — —

m^r w^m maning
Daniel Daulson
Edw wilson
Jabez Tatman †
Barnard Trot
Jn^o Scarlet
Henry Kemble
David Copp
Jn^o Pason
James Bird
W^m Boardman seⁿ
James White =

* Or Mynor.

† Or Tolman.

‡ This word changed from six to eight.

Concernes || * * = as Attests Edw. Rawson secre^t. all y^e papers in y^e case to be delivered vp to the || partjes for the || Arbitrators =

W^m Rawson plaintiff || ag^t Habbacuk Glouer || in an Ac^con of Appeale from the virdict of the Jury & Judgmt of the County Court in Boston in octobe^r last After the Ac^con was Called both partjes Appeared & they both declaring they were Agreed the plantiffe wth the Courts Consent withdrew his Ac^con =

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1674

Bozoone Allen ag^t Bozoone Allen plaintiff ag^t m^s Jennet whiple
Jennet Whiple defendant in an Ac^con of Appeale from the Judgment of the last County Court at Ipswich. After the Attachment County Court of Ipswich Judgment reasons of Appeale & evidences in the case produced were read Comitted to the Jury and are remayning on file wth the Reccords of this Court the Jury brought in their virdict they found for the plantiffe — reuersion of the former Judgment & Costs of Courts seven pounds & ten pence. =

Rich^d & Return Richard wayte & return wayte plaintiffs ag^t Jennet
Wayte ag^t Jennet whiple excecatrix to Thomas Dickinson^s last will
Whiple = deffend^t in an action of Appeale from the virdict of the Jury & County Courts Judgm^t at Ipswich = After the Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are remayning on file wth the Reccords of this Court the Jury brought in their virdict reuersion of the former Judgm^t & Costs of Courts = fowe^r pounds eleven shillings =

Rawson ag^t Billing W^m Rawson plantiffe ag^t Roger Billing deffend^t in
an Ac^con of Appeale from the virdict of the Jury & County Courts Judgm^t in Boston in January last After the Attachm^t Courts Judgm^t Reasons of Appeale & evidences in the case produced were read Comitted to the Jury & are remayning on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgm^t wth Costs of Courts nineteen shillings & one penny =

Taintor & ag^t Joseph Taintor & Jn^o whittacre Attorney^s to m^s
chenree * martha Ayres widdow plant ag^t John Chenery

* Intended for "Chenery."

deffend^t in an action of Appeale from the virdict of the Jury & County Court^t Judgm^t at Cambridge After the Attachment Courts Judgm^t reasons of Appeale & evidences in the Case were produced & Read Comitted to the Jury & are remayning on file wth the Reccords of this Court the Jury brought in theire virdict they found for the deffendant Confirmation of the former Judgment & Costs of Courts = fifty sixe shillings one penny.

Samuel Legg plaintiff ag^t Thomas DAVIS deffend^t Legg Ag^t Davis
in an action of Appeale from the virdict of y^e Jury & County Courts Judgm^t in Boston october 1674 After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are remayning on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Courts forty fowe^r shillings & eight pence =

Samuell Rouland plaintiff ag^t Jn^o Hobbs defend^t Rouland ag^t Hobbs
5th to be p^d in S^cry
in an action of Appeale from the Judgment of the last County Court at Salem After the Attachm^t Courts Judgment Reasons of Appeale & evidences in a case produced were read Comitted to the Jury and are remayning on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment wth Costs of Courts fuetty fue shillings & fowe^r pence =

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1674

Ensigne John Gold & Tho Baker plaintiffs ag^t Gold & Baker ag^t
Putman
Nathaniel Putman deffend^t || in behalfe of the owno^r
of the Iron workes || $\mathcal{C}$ in an Ac^on of Appeale from the virdict of the Jury & County Courts Judgment at Ipswich in septembe^r last After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found That where trespas is sued for and prooved and no sune of da^mages prooved yet if Costs of Court may be Given to the plaintiffe then they found for the deffendant || a || Confirmation of the former Judgment and Costs of Courts if not wee finde for the plaintiffe Costs of Courts = The Court on Consideration of this virdict reuers the former Judgm^t & find for the present plaintiff^e Costs of Courts fue pounds seven shillings

& two pence to be p^d not in mony but in other pay as the Custome of that Court allowes =

Gifford ag^t Hathorne

John Gifford plantiffe ag^t John Hathorne deffend^t
in an action of Appeale from the virdict of the Jury
& County Courts Judgment at Ipswich in Septembe^r last = After the
Attachment Courts Judgmen^t Reasons of Appeale & evidences in the
Case produced were read Comitted to the Jury and are remayning on
file wth the Reccords of this Court the Jury brought in their virdict
they found for the plantiffe || a || reuersion of fforme^r Judgment and
Costs of Courts = fifty one shilling & fowe^r pence =

Eliakim Hutchinson plantiff ag^t John Payne deffendant in an
action of Appeale from the virdict of the Jury & County Courts
Judgm^t in Boston in January last After the Attachment Courts Judg-
ment Reasons of Appeale and evidences in the Case produced were
read Comitted to the Jury and are remayning on file

Hutchinson ag^t
Payne

wth the Reccords of this Court the Jury brought in
their virdict i e they found a speciall virdict i e.
If the Collateral contract or Agreement betwixt m^r Eljakim Hutchinson
m^r olliuer purchis & m^r John Payne bearing date the thirtjeth of
Janua^y 1667: not proved broaken doth according to law cut of or
make voyd m^r John Paynes obligation to sajd m^r Hutchinson bearing
date the 28th of Decembe^r 1664 then wee finde for the now deffendant
the Confirmation of the Judgment of the County Court at Boston &
Costs of Courts But if m^r John Paynes first obligation standeth in
force according to Law then wee finde for the now Plantiffe the reu-
ersion of the former Judgment of the Court Appealled from wth one
hundred sixty nine pounds twelve shillings money according to obliga-
tion by bill & Costs of Courts The Court or Bench on Consideration
of this virdict declared they found for the deffend^t.

Paul Batt plantiff ag^t John Harris deffend^t in an Action of
Appeale from the virdict of the Jury & County Courts Judgment at
Boston in January last After the Attachm^t Courts Judgment Reasons
of Appeale & evidences in the Case produced were read Comitted to
the Jury & are remayning on file wth the Reccords of this Court the
Jury brought in their virdict they found for the deffendant a Confirma-
tion of the form^r Judgment i e fueteene shillings mony & Costs of
Courts: twenty fowe^r shillings & fowe^r pence =

[19]

1674

Robert Orchard as sue'ty & Attorney to John Shakeley & Peter Jacobson plaintiff ag't Richard midlecot & John Williams Attorneys to Samuel winslow deffend' in an action of Appeale from the virdict of the Jury & County Courts Judgment in octobe' last the Accon was Called both partjes Appearing & the Case Agreed betweene them: The Court allowed the plaintiff liberty to wthdraw his accon wch he did =

Samuel mighill || & Elisabeth his wife || plaintiff ag't Jacob Toppan deffendant in an action of Appeale from the virdict of the Jury & County Courts Judgm't in Septembe' last the Case was called the deffend' Appeared not the Case proceeded & After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in there virdict they found for the plaintiff a Reuersion of the former Judgment & five pounds eight shillings damage wth Costs of Courts =

Bozoone Allen was called before the Court to Ans' for his reflections declared in his Reasons of Appeale ag't one of the magistrates & County Court at Ipswich from whenc he Appealed for which the Court fined him tenn pounds =

In Ans' to the peticon of Bozoone Allen having Given in his Acknowledgm't of his offenc the Court sees cause to remitt the fine to forty shillings =

Anna Negro servant to m^r Rebeckah Lynde widdow of charlsToune being Comitted to Prison for hauing a Bastard & being vnder sore suspition of making it away in orde' to furthe' tryall The Grand Jury found a bill of indictment ag't hir: she was brought to the Barr & there holding vp hir hand pleaded not Guilty put himself on God & the Country for hir tryall thô she had liberty yet objected not ag't any of the Jewry: was Indicted by the name of Anna Negro as aboue for not hauing the feare of God before hir eyes & being Instigated by the Diuil did about the 14th of December last maliciously & wilfully murder an Infant child then borne of hir owne body Contrary to the peace of our Soueraigne

Lord the King his Croune & dignity and the lawes of this Jurisdiction the Jury went out & brought in their virdict they found the sajd Anna Negro Guilty of hauing a Bastard child & privately conveyed it away. The Court Considering of this virdict sentenct the sajd Anna Negro to stand on the Gallowes wth a Roape fastened about hir necke to the Gallowes for one hower and thence to be tyed to & whipt at the Carts Tayle to the prison wth thirty stripes & so comitted to the prison there to lye for one moneth and then to be Conveyed by the marshall Generall to charlsTowne & there on the lecture day to be alike tyed to & whipt wth thirty stripes & then on hir m^{rs} paying the charges of the tryall & prison she is discharged =

Robt Driver scotch man being Comitted to prison (hauing fled for murdering his m^r: Robt willjams of Piscataqua fisherman) in order to his tryall was brought to the Barr the Grand jury hauing presented him & Indicted him he holding vp his hand at the barr pleaded not Guilty put himself on his triall by God and the Country hauing his liberty to object against any of the Jury Impannelled he objecting not was Indicted by the name of Robert Driver late Apprentice & servant to the late Robert Willjams for not having the ffeare of God before his eyes & being

[20]

1674

Driver Indictm^t & sentence of Death = Instigated by the Divil in or about the 10th of february last together wth Nicholas favo^r * then yo^r fellow servant did maliciously and wth wicked hands murder your † then master Robt willjams or did abett Consent vnto, & Conceale the sajd murderers & villanous Act Contrary to the peace of our Soueraigne Lord the King his Croune & Dignity the lawes of God & this Jurisdiction = he hauing pleaded not Guilty: Afte^r the Jury had pervsed their euidenc they brought in their virdict they found him Guilty The Court vnanimously Agreed that sentenc of Death should be pronouncet ag^t him accordingly. The Go^uno^r proceed. yow Robert Driuer hauing binn found Guilty as aboue are to Goe from henc to y^e place from whenc yow Came & from thence to the place of execution & there to hang by y^e neck till yow be dead. God haue mercy on thy Soule =

mary Sanders at
liberty to marry &c
=

In Ans^r to the petiçon of mary Sande's humbly
desiring a legall divorcement from hir husband w^m

* Or favo^r.

† "Their" changed to "your."

Sande's who is married to another woman in London The Court on pervsall of the evidences Daniel webb stephen Swasy & phillip English Judged it meet to declare the peticone' to be at liberty from hir former husband w^m Sande's =

In Ans' to the petition of mary Haukins humbly Imploring the Courts favou' to remitt to hir hir seccond punishment This Court Judgeth it meet wth the Consent of the County Court to Grant hir request & remitts her seccond punishment ordering the keeper of the prison to dismiss hir from the prison & set hir at libe'ty =

Ans' to mary Haukins petiçon

majo' Thomas Clarke is Appointed wth the secretary to allow of the bills of Costs this Court.

The Grand Jury was Called againe and they pervsing seuerall evidences sent doune from the County Court at North Hampton relating to mary Parsons the wife of Joseph Parson, they presenting an Indictment against hir on suspicion of witchcraft leaving hir to further trjall The Court Ordered hir Comittment to the prison in Boston there to remaine & be kept in orde' to hir furthe' tryall

mary Parsons presented & Indicted for witchcraft =

Paul Batt was Called for to Ans' for his reflections declared in his reasons of Appeale. the said Paul Bat presenting his petiçon declaring his hopes for the future to be better Advised The Court past his offenc by ordering him to be Admonisht weh was donn :

Paul Batts admoni- con =

In Ans' to the peticon of Ezekiel fogg in relation to some libe'ty c^r The Court declares that when the petiçoner hath honestly payd his debts he may be at his libe'ty altogether =

Ans' to Eze: fogg's petiçon

This Court is Adjourned to the 13th of may next at 10 of the clock in the morning It is ordered that the Secretary Issue out his warrants for such & so many of the wittnesses as once wthin a moneth m' Danforth m' Tinge & majo' Clark shall wth the Secret. on their pervsall determine to be necessary and that a letter be writt to majo' Pynchon to Accomodate y^r Affaire Relating to mary Parsons

Courts Adjourn' & order to send for y^e wittnesses ag^t mary Parsons =

In Ans^r to Cap^t Hutchinsons petiçon Jn^o Sands his execucion ag^t him is respitted till the 15th of May next =

[21]

1674

present
Jn^o Leueret Esq^r Go^o.
Symon Brade^rreet
Daniel Gookin
Richard Russell
Tho Danforth
Edw. Tyng
W^m Staughton
Tho: Clarke

Esq^{rs}

persons Returnd to
serve on the Grand
Jury & sworne =

— — — —
Left Richard Beers
Henry Allen
Peter Bracket
John Phillips
Robert Sanders
Jacob Elljot
Jonas clarke
Samuel Andrews
Henry Bright
John Boules
Robert Williams
Samuel Clap
Enock Wisewall
Jn^o Penticost
w^m Johnson

persons Returnd to
serve on the Jury of
tryalls for life &
death were sworne —

— — — —
mr w^m Bartholmew
Humphry Hodges
Richd wooddey
W^m Ingram
Rich^d medlecott
Jn^o Greene
Zack Hicks
Jn^o Barnard
Nath: Coolidge
Abra: How
Phillip Curtes
Amel weeks
— — — —

Att A special Court of Assistants Called by
the Gouⁿr & magistrates in Boston in order to the
tryall of Nicholas ffaevo^r 11th March 1674.

The Grand Jury on perversall of Nicholas faevo's
examination presented & Indicted him for murder
leaving him to further tryall =

He was brought to the barr & was Indicted by
the name of Nicholas faevo^r for not hauing the
feare of God before his eyes and being Instigated
by the Divil in or about the 10th of february last he
the sajd Nicholas ffaevo^r together wth his then
fellow servant Robe^t Driver did maliciously & wth
wicked hands murder their then master Robe^t
willjams, or did Abett Consent unto & conceale the
sajd murdere's & villainous act, contrary to the
peace of our Soueraigne Lord the king his Croune
& dignity & the lawes of God, & of this Jurisdic-
tion—he holding vp his hand all y^e while pleaded
not Guilty put himself on his trjall by God & the
Country— The Jury on consideration of the eu-
dence brought in their virdict they found him
Guilty = And accordingly the Gouverno^r pronounc^t
sentenc agt him yow Nicholas ffaevo^r hauing binn
found Guilty of murde^r according to yo^r Indictment
are to Goe from hence to the place from whence
yow Came || & from thenc || to the place of execu-
tion & there to hang by the neck till yow be dead:
God haue Mercy on thy soule: =

Edward Naylor being Complayned on for In-
truding into his late wiues Katherin Nanny^r Com-
pany &c. The Court on hearing what was lajd to
the sajd Naylor's charge doe Judge & declare his
bond to be forfeited and doe order the Secretary to put the sajd Bond
in suite = And that he stands Comitted till he dischargd his
bond. =

This Court ordered the executions of the said Robt Drive & Nicholas ffaeo^r to be on the 5th day next after the lecture & that the Secretary Issue out his warrants Accordingly and that Anna Negro haue hir sentenc then executed on hir as to y^e 1st p^e

Att A Court of Assistants on Adjournment held at Boston 13th of may 1675

Att this Court Mary Parsons the wife of Joseph Parsons of Northampton in the County of Hampshire in the Colony of the Massachusetts being presented & Indicted by the Grand Jury was also Indicted by the name of Mary Parsons the wife of Joseph Parsons for not hauing the feare of God before hir eyes and being Instigated by the diuill hath at one or other of the times mentioned in the evidences now before y^e Court entred into familiarity wth the diuill and Comitted seuerall acts of witchcraft on the person or persons of one or more as in the said evidences relating thereto reference being thereto had Amply doeth and may appeare and all this Contrary to the peace of our Soueraigne Lord the king his Croune and dignity the lawes of God and of this Jurisdiction = After the Indictment

present	
J ⁿ Lebert Esq ^r Go ^d	
Sam. Symonds Esq ^r dep ^t	
Gou	
Simon Bradstreet	} Esq ^{rs}
Daniel Gookin	
Daniel Dennison	
Simon Willard	
Rich ^d Russell	
Tho Danforth	
W ^m Hathorn	
J ⁿ Pinehon	
Edwd Tyng	
W ^m Stoughton	
Tho Clarke	

[22]

1675

and Euidences in the Case were Read the prisone^r at the barr holding vp hir hand & pleading not Guilty putting himself on hir triall, the Jury brought in their virdict they found hir not Guilty = & so she was dischargd =

By virtue of a warrant wee whose names are herevnder written being warned by y^e Constable of Boston to serve as a Jury of Inquest to make diligent Search & Inquiry after the Cause of the death of a youth named Christopher Bickford we find the said youth in his face to be much bruised & two of his fingers on his right hand hurt and that the said youth by Information of the master & seamen which belonged to the said ship he Came ouer in was missing euer since tuesday last betweene † six &

The names of y^e
Jury of tryalls for
life & death sworne
were

— — — —
M^r Joseph Cooke
Hugh Drury
Tho Dure^{*}
Theode^r Atkinson
sen^r
Sam: Mayrs
Benj Gamlin
W^m Symes
Jⁿ Heyman
Nath fiske sen^r
Henry Spring
Rich^d Hall
Samuel Paul
— — — —
Beckfords death
May 14 (75)

* Or Durd.

† Repeated in the record.

eight of the clocke at night & Judge or Conceive a fall from the ship or som blow or blowes on his face wth falling from the ship into the waters to be y^e Cause of his death = Subscribed Seth Perry Rich^d way Jn^o W^m Rich^d wooddje Ephraim Turner Tho. Bingly Jn^o marrion Jn^o morse W^m || [Seūdick] || W. Wright Jn^o Lake Edward Ellis Jn^o Buttolph Benja Thirston. The Jurors subscribed attested to the trueth of this virdict vpon their oaths before me Dani Dennison

present
Jn^o Leueret Esq^r Go^d
Sam Symonds Esq^r dept
Go^d

Symon Bradstreet
Daniel Gookin
Daniel Dennison
Rich^d Russell
Tho Danforth
W^m Hathorn
John Pinchon
Edw. Tyng
W^m Stoughton
Tho Clarke
— — — —

} Esq^{rs}

Att A Court of Admiralty or Court of Assistants Called by the Gou^rno^r & Assembled in Boston 17th of May 1675

m^r Humphry Warren of Boston merchant in behalfe of m^s Elisabeth ffreake relict of the late m^r John ffreake merchant || & m^r Sam Shrimpton m^{ch}t || preffering their libell Against Peter Rodrjgo as also ag^t Cornelius Andreson John Roads & Company. The Court on a full and due pervsall of the aboue mentioned libell & hearing of all partjes Concerned

wth the evidences produced doe Judge it meete to declare & Graunt adjudication of the vessells & Goods taken & brought in by Cap^t Samuel Mosely to Humphry Warren in behalfe of the late m^r John ffreake & Elisabeth his relict & m^r Samuel Shrimpton for their Reparation for their vessell & Goods taken from them by the sajd Rodriego Roads & Company and the sajd warren and shrimpton are to pay the chardges of the Court & prosecution of the Case for y^e hearing of the Case seven pounds mony besides the office's ffees & charges. =

The Court declar'd that the sajd Peter Rodriego Cornellius Andreson Jn^o Roads Peter Grant Randall Judson Rich^d ffowler & to be lawfull prisoners Remanding them to prison Againe and Referred them to further Tryall. =

The Council Act of 15th febr 1674 comissionating y^e Aboue mentioned Cap^t Sam Mosely to fetch in the aboue mention^d Rodriegoe & Company in Ans^r to m^r Jn^o ffreaks peticon & mosely A Instruction are on y^e Courts file. =

[23]

1675

present
Jn^o Leueret Esq^r Go^d.
Sam Symond Esq^r
dept Go.

Att A Court of Assistants held at Boston y^e 24th of may 1675 & called by y^e Court for trjall of the prisone's =

Peeter Rodrjgo Dutchman being presented & Indicted by the Grand Jury was Indicted by the name of Peeter Rodrjgo for that he not hauing the feare of God before his eyes he wth othe^r his Complices sometimes in the moneth^s of Novembe^r Decembe^r & January last by force of Armes did vpon the sea^s pyrratically & ffelloniously seize & take seuerall smale English vessells (and theire Companyes) belonging to his Majtys subjects of this Colony & made prize of theire Goods & in particular the barque Phillip & her goods belonging to the late m^r John ffreake of Boston Georg maning being master then of hir wound- ing the sajd maning & his mate Contrary to the peace of our Soueraigne Lord the King his Croune & dignity the lawes of God & of this Jurisdiction. — to wch Indictm^t y^e prisone^r at the barr pleaded not Guilty put himself on triall by God & the Country — saying he had no excep- tion ag^t any of y^e Jury : the Case proceeded and after the Indictment & euidences in the Case were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in thr virdict they found him Guilty according to the aboue written Indictment and Accordingly had sentenc of death pronnounc^t ag^t him by y^e Go^u. to be Carrjed from hence to the place from whence he came & thence to the place of execu- tion & there to hang till he be dead

Symon Bradstreet	} Esq ^r
Symon willard	
Rich ^d Russell	
Tho Danforth	
W ^m Hathorn	
Edw. Tyng	
w ^m Stoughton	
— — — —	
Grand Jurymen	
Returned to serve	
At y ^e Court & Sworne	
were =	
m ^r J ⁿ o sherman —	
Rich ^d wellington	
Rich ^d Baker	
Tho. Russell	
J ⁿ o Long	
Symon Lynd	
J ⁿ o woodmansey	
J ⁿ athan Bolston	
Habbacuck Glouer	
J ⁿ o Bateman	
Jonas clarke	
ffrancis Moore	
Tho: Hastings	
J ⁿ o Bowles	
Tho weld	
— — — —	
Jury men Returned	
to Serv[e] on the	
Jury of tryalls	
m ^r John Checkly	
J ⁿ o Bird	
Benj: Bale	
Benj: Moore	
Benj: Gillam	
Samuel Goffe	
Tho Longhorne	
Tho ff[er]ning	
Tho Hastings	
J ⁿ o Stone	
Edw. B[r]idge	
Daniel Brewer	
— — — —	

And on his petiçon the Court Gaue him opp^tunity to petiçon the Gen^l Court for his life — In like manner

Cornelius Andreson Dutchman was brought out of Prison to the barr & Indicted by the name of Cornelius Andreson for not hauing the feare of God before his eyes he together wth other his Complices some- times in the moneth^s of November Decembe^r & January last past did vpon the seas by force of Armes Pyrratically & ffelloniously seize and take seuerall smale English vessells (wth theire Companyes) belonging to his maj^{ty} subjects of this Colony making prize of their Goods and

in particullar the vessell & Goods that belonged to Edward Hylliard & w^m waldron Contrary to the peace of our Soueraigne Lord the King his Croune & dignity the lawes of God & of this Jurisdiction = in like manner he put himself on God & the Country for his tryall: and After the Indictment & evidences in the Case produced against him were Read Comitted to the Jury & are on file wth the Reccords of this

Andresons Case Court the Jury brought in their virdict they found him not Guilty *c^r* on sending out Againe they brought in they found him Guilty of Theft or Robbery by taking from willjam waldron & Edward Hylliard fowerteen moose skins two packs of Beaver & seuen martin skins

And In Answer to his humble peticon & Acknowledgment of his Evills. weh he owned in open Court was pardoned =

order for Tr: to pay It is ordered y^e y^e Tresurer pay m^r Kent forty five
w^m Kent 45: 6: shillings sixe pence & is for a dinner for y^e magists at
a Court of Admiralty Aprill 9 (74) — —

[24]

1675

Jn^o Roads Peter Grant *c^r* the Rest of the prisone's were Called into the open Court & had the Grand Jury^e presentment & Indictments ag^t them Read as Pyrates but the evidences not being viva voce they were by the Court Remanded to prison y^e Court adjourning till the 3^d 5th day of June being ye 17th day at nine of y^e clock y^e witnesses to be sent for

present
Jn^o Leueret Esq^r Go^d
Sam Symonds Esq^r
dep^t Go:
Symon Bradstreet
Daniel Gookin
Daniel Dennison
Symon Willard
Rich^d Russell
Tho Danforth
Edw^d Tyng
W^m Stoughton
Thomas Clarke
— — — —
Jurymen Impanelled
& aworne were for
y^e Trial of these 6
— — — —
Capt Benja Gillam
Jn^o Bird
Benj: Bale

Att A Court of Assistants on Adjournment held at Boston 17th June 1675 Jn^o Roads was brought to the barr & holding vp his hand was Indicted by the name of John Roads late of Boston for that he not having the feare of God before his eyes & ~~being~~ ~~Instigated by the Divill~~ he wth othe's his Complices sometimes in the months of November December & January last past did by force of Armes vpon the seas Pyrattically & ffelloniously seize & take seuerall Smale English vessells & theire Companjes belonging to his Maj^{ty} subjects of this Colony and made prize of their Goods & in particullar the barcque Phillip & her Goods belonging to the late m^r John ffreake of Boston George maning being

then master of hir wounding the sajd maning & his mate Contrary to the peace of our Soueraigne Lord the King his Croune & dignity the lawes of God & of this Jurisdicōon to wch he pleaded not Guilty put himself on God & the Country for his trjall after y^e Indictment & evidences produced ag^t him were read Comitted to the Jury & are on file wth the Reccords of y^e Court the Jury brought in their virdict they found him Guilty according to Indictment and accordingly y^e next day had sentenc of Death pronounc ag^t him: y^t he should Goe from the barr to y^e place from whence he Came & thenc to the place of execution & there hang till he be dead. =

W^m Whitwell
Richd Knight
Sam Goffe
Tho Longborne
Edw^d Bridge
Daniel Brewer
John Holbrook
Jn^o Swett
Jn^o Davenport
— — — —

Sentenc

Richd ffoule^r was brought to the barr & holding his hand there vp [^] was indicted by the name of Richard ffowler Englishman for that he not hauing the feare of God before his eyes he wth others his Complices sometimes in the moneth^s of Novembe^r decembe^r & January last past did by force of Armes vpon the seas pyratcally & feloniously seize & take seuerall smale vessells & their Companyes belonging to his maj^{ty}^s subjects of this Colony making prize of their Goods and in particullar the barcque Phillip & her Goods belonging to the late m^r John ffreake of Boston George maning being then master of her wounding the sajd maning & his mate Contrary to the peace of our Soueraigne Lord the King his Croune & dignity the lawes of God & of this Jurisdiction: = This case as Jn^o Roads being Comitted to the Jury ^{or} the Jury brought in their virdict they found him Guilty according to Indictmen^t = y^e sentenc of death in like manner was pronounc ag^t him :

ffoulers Indictmt &
sentenc

Peeter Grant was also brought to the barr where holding vp his hand was Indicted by the name of Peeter Grant scotch man for not hauing the feare of God before his eyes he wth others his Complices sometimes in the months of Novembe^r decembe^r & January last past

[25]

1675

did vpon the seas by force of Armes pirattically & ffel-
loniously seize & take seuerall smale English vessells
(wth their Companyes [^] belonging to his maj^{ty}^s subjects of this Colony
making prize of their Goods and in particullar the barcque Phillip &
her Goods belonging to the late m^r John ffreake of Boston George

Grants Indictm^t

maning being then master of hir wounding the sajd master & his mate
 Contrary to the peace of our Soueraigne Lord the King his Croune &
 dignity & the law^r of this Jurisdiçon to wch Indictment he pleaded
 not Guilty & put himself on God & the Country for his tryall = &
 being Comitted to the Jury they brought in their
 virdict they found him Guilty & accordingly sentenc
 of death was pronounc ag^t him as ag^t Jn^o Roads

Randolph Judson was brought to the barr & Indicted by the name
 of Randolph Judson Englishman for not hauing the feare of God be-
 fore his eyes & ~~being Instigated by the Devil~~ wth others his Com-
 plices, sometimes in the months of Novembe^r Decemb^r
 & January last past did by force of Armes vpon the
 seas pirattically & feloniously seize & take seuerall English vessells
 (and theire Companjes) belonging to his maj^{ty} subjects of this Colony
 and made prize of theire Goods and in particular the bareque Phillip
 & her Goods belonging to the late m^r John ffreake of Boston George
 maning being then master of her wounding the sajd maning & his mate
 Contrary to the peace of our Soueraigne Lord the King his Croune
 & dignity & the laws of this Jurisdiction: to wch Indictment he also
 pleaded not Guilty put himself on God & the Country for his trjall &
 being comitted to the Jury they brought in their vir-
 dict they found him Guilty according to Indictment *et*
 and accordingly he had y^e sentenc of death pronounc ag^t him: = as
 Jn^o Roads had

Jn^o willjams was brought to the barr and was Indicted by the
 name of John willjams Englishman for that he not hauing the feare of
 God before his eyes wth others his Complices some times in the months
 of Nouember December & January last past did vpon the seas by force
 of Armes pirattically & ffeloniously seize & take seuerall smale Eng-
 lish vessells wth their Compāyes belonging to his Maj^{ty} subjects of this
 Colony making prize of their Goods and in particular the bareque
 Phillip & her Goods belonging to the late m^r John ffreake of Boston
 George maning being then master of her wounding
 the sajd maning & his mate Contrary to the peace of
 our Soueraigne Lord the King his Croune & dignity &
 the lawes of this Jurisdiction. to wch Indictment y^e prisone^r pleaded
 not Guilty & put himself on God & the Country for his trjall w^{ch} In-
 dictm^t & evidences comitted to the Jury the Jury brought in their virdict
 they found him not Guilty

[26]

1675

John Thomas was brought to the barr and was Indicted by the name of John Thomas for not having the feare of God before his Eyes he together wth other his Complices sometimes in the months of Nouembe^r Decembe^r & January last past did vpon the seas by force of Armes piratticcally & ffelloniously seize and take seuerall smale English vessells (wth their Companyes) belonging to his Maj^{ty}s subjects of this Colony making prize of their Goods and in particular the barcque phillip & hir Goods belonging to the late m^r John ffreake of Boston Georg maning being then master of hir wounding the sajd maning & his mate Contrary to the peace of our Soueraigne Lord the King his Croune & dignity & y^e laws of this Jurisdiction = to which Indictment y^e prisoner pleaded not Guilt[y] & put himself on God & the Country for his triall (wch Indictm^t & evidences was Comitted to the Jury that brought in their virdict they found him not guilty

John Thomas
Indictm^t

ffreed

It is ordered that John Roads Randall Judson Peter Grant & Richard ffouler being Condemned to suffer Death the time Appointed for their execution shall be on y^e 5th day next Come seven night being the first day of July presently after the lecture and warrants Issued out accordingly =

At A Court of Assistants or Admiralty held at Boston the 17th of June 1675

Vpon the Complaint of willjam measure of lyme in New England merchant exhibbited vnto this Court by his libell against Robe^t Haughton of Boston marriner & master of the Catch Hopewell This Court having heard & considered the pleas & evidences in the Case doe order & decree that Robert Haughton shall deliuer unto W^m Measure all his Apparrell and other Goods in his possession and pay & duely sattisfy unto the sajd measure or his Assignes the some of two hundred & ten pounds in lawfull money of New England And It is further ordered & decreed that the sajd W^m Measure shall pay all the seamens wages & Catch hire and victualls untill hir Arrivall in New England and the sajd master is to receive what freight is due for any Goods brought in the sajd Catch from Berbadoes to Boston & pay the Costs of the action in money the summe of sixe pounds thirteen shillings and officers fees and this to be a fynall Issue of the case =
E R S.

[27]

1675

Whereas John Bacon willjam Parsons Rob^t Brounsford Abraham Sanford Andrew Couzens & Nicholas Smith marriners exhibited to this Court theire libell & Complaint against John Bull master of the ship

Bacon : Parsons c^r
ag^t Jⁿ Bull.

y^e Courts Decree
therevpon

Providence of l^jme declaring that they were shipped by Walter Tucker (one of the Owno's of the said shipp) for a voyage from Lyme to virginea and from thence to l^jme againe the Port of their discharge, and accordingly coming to virginia they could not obteyne Tobacco sufficient to load the vessell to Content of the master and Jⁿ Smith merchant of the said ship wherevpon they the said master & merchant resolved for new England the Complaynants Complying therein being desirous to further the Concernes of the owno's and are now come to Boston || where they Ap^hend their wages to be due it being || the second deliuering Port but the master denying the payment thereof, they doe Craue the Justice of this Court, that their wages may be payd them or that the master be ordered to Giue them security for the payment thereof in England on demand; and also that they may be freed from the sd ship; or haue security for their wages for the time to come till they come to the Port of their right discharge =

The aboue named partjes appearing before this Court and hauing had liberty to present their full plea & euidence in the Case wch haue binn duely considered It is heereby Ordered & decreed that John Bull master of the said ship Providence shall Giue to the aboue named John Bacon w^m Parsons Robe^t Brounesford Abraham Sanford, Andrew Cuzens and Nicholas Smith a Cirtifficat vnder his hand legally Attested declaring the time they haue served in the said ship in pursuance of their Contract wth their ouno's & Implojers and that their wages is due vnto this time wch being Accordingly performed by the said master then the said seamen are Ordered to proceed on their voyage on the same Conditions that they were first shipped vpon the Costs of this Court || to || be payd by the said John Bull i e forty six shillings: Cirtifficate was Giuen & signed by y^e sd Jⁿ B[ou]ll & owned in Court & is on file =

Whereas Isaak Rand mate of the ship John & mary of London, Robe^t Kemp Carpenter, Henry Butte^field Gunner John Smart Quartermaster W^m Lock chirurgeon moses Patrick Robert Daus & James King all marriners of the said ship Exhibited a libell & Complaint

against John Smith me'chant and part Owno' of the ship John & Mary late of London Josiah Hare late Comand' This Court having heard & Considered the pleas & evidences in the Case doe order & decree that John Smith shall forthwith sattisfy unto the sajd persons before named in mony the sume of seventy nine pounds sixe shillings & six pence that is to say sixty one pounds sixe shillings & sixpenc for wages each man his proportion and for saluage of Goods eighteen pounds i e to Isack Rand sixteen pounds five shilling to Rob' Kemp fueteene pounds two shillings & six pence to Henry Butterfield nine pounds sixteen shillings to John Smart nine pounds two shillings & six pence To w^m Lock chirurgeon eleven pounds seven shillings & six pence To Rob' Daus six pounds sixteen shillings to moses Patrick six pounds seventeen shillings & to James King fower pounds in all seventy nine pounds six shilling & six pence and the sajd John Smith is to pay y^e Costs of Court & office's fees five pound fowe' shillings. =

[28]

1675

Att a Court of Admiralty or Court of Assistants held at Boston 6th August 1675 =

In the Case of Thomas Moore mast' in behalfe of himself & the rest of the Owno^r of the Pink Supply plaintiff by his libell & complant exhibited to this Court ag^t w^m may now master of the sajd Pinke defend' the Court having duely heard & Considered the plea^s & evidences in the Case doe find for y^e defendt and order & decree y^t the plantiff pay the Costs of Court in all fifty nine shillings =

present y^e Go^vno^r

Mr Bradstreet

Cap^t Gookin

Major Dennison

Rich. Russell

Tho. Danforth

Edw Ting

W^m Stoughton

Tho. Clarke

} Esq^s

— — —
 Courts order &
 decree in Moore &
 May^s Case
 Execution Issued
 out for y^e Costs =

The Court having Considered the Complaint or libell of Phillip owen charls ffrost John Bell Arthur Richards & w^m maxfeild mariners of the ship George of London Derry ag^t Charls Newton part owno' & James Gordon Agent & facto^r for Jarvice Ba[r]ty the other owno' of the sajd ship doeth order and decree that the sajd Newton & James Gordon shall before the eleventh of this Instant August Giue security to the secretary or Clarke of this Court to the value of one hundred pounds that they shall sayle wth the sajd ship George from this port directly to London Derry in Ireland or otherwise to pay unto the sajd Phillip Owen & Company as above their wages to this day the some of

Courts order &
 decree in phillip
 owen Charls frost
 & Newton & Gor-
 dons Case

fuety pounds three shillings sixe pence mony being fowe' month and a halfe ending August the 7th inst to be divided amongst them according to their severall pro * proportions and In Case the defendants shall pay the plaintiffs their wages then the said Plaintiffs are ordered to Continue in their service in the said ship Provided their voyages be only to lawfull Ports and that they be not kept out above one yeare from their first setting forth from London Derry and that the defend^{ts} pay the Costs of this Court & officers fees which came to forty eight shillings besids y^e seamens Costs =

Thomas Mitchell & Edward Vring being bound over to this Court to Ans^r for their severall misdemeano's in their being & seeming concurrence wth John Roads & the rest of the Pyrates were Called and Appearing The Court having heard & considered their pleas & evidences presented doe sentence the said Thomas michell to make & pay treble satisfaction to m^r George munjoy for the fowe' sheepe stolne i e nine pounds twelve shillings & that both the said mitchell & vrin be whipt wth twenty stripes a peece & discharging their fees standing Comitted till this sentence be performed

Courts sentence of
vring & mitchell

[29]

1675

Vppon a Complaint of Robe^t Haughton of Boston marriner master of the late Catch called the Hopewell exhibbited to this Court by his libell against willjam measure merchant in an Action of the Case for breach of charter party. This Court having heard & considered the pleas & evidences in the Case doe order & decree that the plaintiff pay the defendant his Costs of Court & the office's fees:

Vpon a Complaint of Robert Haughton of Boston marriner master of the Catch Hopewell plaintiffe by his libell exhibbited to this Court against w^m measure merchant defendant in an Action of Revejw of the Judgment & decree of this Court in June last The Court having heard & Considered the pleas & evidences & Refferred it to Audito's who haue made their returne wch this Court Approoves of and doe order and decree that the defendant pay unto the plaintiffe one hundred fuety fowe' pounds fowe'teen shillings & one penny and his Costs of this Court & office's fees : =

Execution Issued out
y^e 18th Inst

this Court is dissolved

* The Secretary evidently neglected to cancel the "pro."

Att A Court of Admiralty or Court of Assistants held at Boston the 30th of August 1675

In the Action brought before this Court between Jn^o Toton of Rochell chirurgeon by his libell Complayning against Thomas Patten of Boston merchant as to his wages as Pylot for fowe^r months certeine after fwe pounds p^r moneth and for fower barrells of Brandy and for one eighth part of the Cargoe. = After the Court had heard & Considered the evidences produced doe Judge order and decree that the said Thomas Patten satisfy & pay vnto John Toton for his Pilotage fweeten pounds money [he having received five pounds in france] † and for what is vnpayd him for his Brandy thirteen pounds fowe^rteen shillings in money and for his owne eighth part of the Cargoe one hundred and ten pounds in all one hundred thirty eight pounds, a twelve shillings & fowe^r pence Costs of this Court and office's fwee six pounds twelve shillings & fowe^r pence and for m^r Bayly's concernes ‡ the Court sees no Cause to medle wth that =

This Court is dissolved

present
the Go^{vr}
dep^t Go^{vr}
Symon Bradstreet,
Daniel Gookin
Daniel Denison
w^m Hawthorn *
Rich. Russell
Th^o. Danforth
Edw Tyng
w^m Stoughton
Th^o Clarke
Esq^{rs}.

Courts decree in
Toton's Case

Execution Issued out
the 9th Septemb
1675 : & returned

[30]

1675

Att a Court of Assistants held at Boston 7th September 1675

The Grand Jury brought in their Indictments & presentments

1st Ju. Henry Dow plant Attorney & in behalfe of the Toune of Hampton agt Nathaniel Boulter || Attorney to Jn^o Huggens || defendant After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their Virdict Confirmation of the Judgm^t of Salisbury Court the land in Controuersie & Costs of Courts. =

present
Jn^o LeDet Esq Go^{vr}
Sam Symonds Esq^r Dep^t
Go^{vr}
Symon Bradstreet
Daniel Gookin
Daniel Dennison
Richd Russell
Th^o. Danforth
W^m Hathorn
Edward Tyng
w^m Stoughton
Thomas Clarke
Esq^{rs}

persons Returned to
serve on y^e Grand
Jury & Sworne

m^r w^m Parkes
w^m Needom
Samuel Sendall
John Conney

* The two carets are in the original and probably indicate that Hawthorn's name should come after Danforth's. † In brackets in the original. ‡ Written over the word "demands."

Francis Douse
Giles Pason
Jn^o Smith
Timothy mather
Joseph Lynd
Jn^o Heyman
Jonas Clarke
Tho ffox
Jn^o Coolidge
Ell[z] Baron
— — — —
persons to serve on
y^e Jury of trials for
life & death Ap-
peales & Returnd
& sworn 1st Jur were

— — — —
Left: Elisha Hutch-
inson

Samuel walker
Thomas moore
Zeckaryah Long
Jn^o Knight
Nicholas Clap
Timothy Tyleston
Jno Hennoway
Richd Norcross
Robert Herrington
w^m Dixon
Noah wisewall
— — — —
Jno Thaxter in som
Cases instead of Ric:
Norcross

— — — —

2^d Jur Elisabeth Smith widdow relict of francis
Smith plant agt w^m Hudson defend^t in an Accon of
Appeale from the Judgment of the County Court in
Boston in Aprill last After the Attachment Courts
Judgment Reasons of Appeale & evidences in the Case
produced were read Comitted to the Jury &
are on file wth the Reccords of this Court
the Jury brought in their virdict the
Jury finds for y^e plaintiff Reuersion of
the forme^r Judgm^t & Costs of Courts twenty sixe
shillings

Edward Richards plaintiff ag^t Left Thomas Put-
man deffendant in an Accon of Appeale from the
Judgment of the County Court at Salem after y^e
Attachm^t Courts Judgment Reasons of Appeale and
evidences in the Case produced were read Comitted to
the Jury and are on file wth the Reccords of this
Court the Jury brought in their virdict they found for
the plaintiff Reuersion of the former Judgm^t & Costs
of Courts

Richd Dumer plaintiff ag^t Capt w^m Gerrish Jo-
seph Hills Jn^o Knight & Sam P[lum]er deffendants in an Accon of
Appeale from the Judgment of the County Court at Salem After the
Attachm^t Courts Judgm^t Reasons of Appeale & evidences in the Case
produced were read Comitted to the Jury & are on file the Jury brought
in their virdict they found for the plaintiff reuersion of the former
Judgment & Costs of Courts three pounds.

Joshua Atwater plaintiff in an action of Appeale from the Judgm^t
of the County Court at Boston ag^t Jn^othan Balston deffendant after the
Attachment Courts Judgment Reasons of Appeale & evidences in the
Case produced were read Comitted to y^e Jury the plaintiff wthdrew his
Accon wth y^e Courts Consent & y^e deffend^t

Robert Sandford plaintiff against Nathaniel Putman deffendan^t in
an action of Appeale from the Judgment of the County Court at Salem
After the Attachment Courts Judgment Reasons of Appeale & eui-

dences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Cour[t] the Jury finds for the plaintiff reuersion of the former Judgment and finde the brooke the bounds of Sandfords land as farr as that || wch || was Skeltons land lyes ag^t it & the land in Controuersy to be Sandfords = wth Costs of Courts fue pounds two shillings & fowe^r pence

Execution
Issued out
4th Octo^r 75

[31]

1675

Sampson Sheaffe plaintiff on Appeale from the Judgment of the County Court at Boston in Aprill last ag^t Rich Collecot Assignee of Left Richard Cooke in behalf of Rebeckah Hunkin defendant After the Attachment Courts Judgment Reasons of Appeale & evidences in the case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff reuersion of the forme^r Judgment & Costs of Courts =

The name of those
returned to serve on
y^e 2^d Jury for trials
of Appeales & for
life limbe & banishm^t
& sworne were

— — — —
m^r Jⁿ Frost
w^m Harris
James Blake
Peter Lyon
Sam Stone
Jⁿ Spring
Gregory Cooke
Georg Woodward
Jⁿ Holbrooke
Nathani Homes
Rich. Martyn
Giles sfeld =
— — — —
Jacob Jesson in
Stones Rooome in
Ben Gibbes Case c^r
— — — —

Jⁿ Gold plaintiffe ag^t Nathaniel Putman in an Action of Revejw on Appeale from the Judgment of the County Court at Salem after the Judgment Reasons of Appeale & evidences produced were read Comitted to the Jury & are on file the Jury brought in their virdict (the Attachm^t of Ipswich Court last not being produced & found) they found for y^e deffend^t Costs of Courts

Jⁿ woodmannsey plantiff ag^t Tho Joy deffend^t in an action of Apeale from the Judgment of the County Court at Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts = m^r woodmansey in open Court || declared that he Attainted the Jury & declared he doubted not but he would || ~~in Reff[erence] to Errors he said he~~ ~~would~~ prove = || error ag^t the Jurors || and the said Jⁿ woodmansey acknowledged himself bound in fue hundred pounds to the Treasurer of the Country & to his successors c^r and w^m Rawson and Timothy Batt his sue^tyes alike acknowledged themselues heires executo^rs c^r

Woodmansey ag^t
Joy

bound in two hundred & fiftety pounds a peece to the sajd Trespere of the Country Rich^d Russell Esq^r & to his successors on Condition that the sajd John woodmansey shall prosecute his Attaindure at the next Court of Assistants to effect according to law. = as Attests Edw. Rawson Secrety.

Garlands judgm^t
reuerst

Jn^o Garland & Elisabeth his wife plantiffe on Appeale from the Judgment of the County Court last at Salisbury After the Courts Judgment Reasons of Appeale & euidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plantiff reuersion of the former Judgment =

waynwright ag^t Pick-
ering

Francis waynwright plantiff against Jn^o Pickering defendant in an action of Appeale from the Judgment of the County Court held at Douer Francis waynwright being three times called both he & y^e defendt made their default (It being s^d they were Agreed):

Smith ag^t Rand
exec. Issued out

Jn^o Smith merchant plantiff ag^t Isaack Rand & Company defendts in an Accon of Appeale from the Judgment of the County Court at Boston. After the Attachm^t Courts Judgment Reasons of Appeale & euidences in the Case produced were read Comitted to the Jury & are on file they brought in their virdict they found for the defendant Confirmation of the former Judgment & Costs of Courts fower pound & two pence

Patridg ag^t wayn-
wright

Nehemiah Patridge plantiff ag^t Francis waynwright defendt in an Accon of Appeale from the Judgment of the county Court at Douer After the Attachment Courts Judgment Reasons of Appeale & euidences in the Case produced were ~~read comitted to the Jury & are on file wth the~~ the plaintiff & defendant being three times Called made their default

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1675

1st Jur:
Harris ag^t chick e^r

Thomas Harris plantiffe ag^t Rich^d Chick defendant as Attorney to George Greeneoway in an action of Appeale from the Judgment of the Comissione^rs Court In Boston After the Attachment Courts Judgment Reasons of Appeale and euidences in the Case produced were read Comitted to the Jury & are on file wth

the Reccords of this Court the Jury brought in their virdict they found for the plaintiff Reuersion of the form^r Judgment & Costs of Courts

Andrew Clark plaintiffe against John Nicholls deffendt in an action of Appeale from the Judgment of the County Court in Boston in Aprill last After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment and Costs of Courts forty one shillings & six pence

1st Jur
Clark ag^t Nicholls
Execution Issued
out

Anthony Cheeckley plaintiff ag^t Jabez Salter deffendt in an action of Appeale from the Judgment of the County Court in Aprill last after the Courts Judgm^t Attachm^t Reasons of Appeale & evidences in the case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Court

1st J:
Cheeckly ag^t Salter
Execution Issued
out 4th of october
1675

Tho. Bishop plaintiffe against John Gold deffnd^t In an action of Appeale from the Judgment of the County Court at Salem After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the form^r Judgment & Costs of Courts three pounds thirteen shilling & five pence.

2^d Jur
Bishop ag^t Gold
Execution Issued
out for y^e bill of sale
& 3 13 5 Costs
14 December 1683

Samuel Bishop plaintiffe ag^t Jn^o Gold deffendant in an action of Appeale from the Judgments of the County Court at Salem After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiffe reuersion of the former Judgment & Costs of Courts three pounds fower shilling & six pence

Samuell Bishop ag^t
Gold
Tho Bishop his
Attorney engag^d
for y^e [charges?]

Wells ag^t Batt Tho wells plaintiff against Timothy Batt defendant in an action of Appeale from the Judgment of the County Court at Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the defendant Confirmation of the former Judgm^t & Costs of Courts twenty six shillings & sixe pence

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1675

Hudson ag^t Leitt Capt w^m Hudson plaintiff ag^t Hudson Leueret
Judg^t 102. 7. 2^d vide defendt in an action of Appeale from the Judgment
County Courts Judg^t of the last County Court in Boston after the Attachm^t
 Courts Judgment Reasons of Appeale & evidences in the Case produced were read comitted to the Jury & are on file the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgement & Costs of Court forty-three shillings & 10^d

Wharton ag^t Joy Richard wharton plaintiffe ag^t Joseph Joy Assignee of Tho Joy defend^t in an Accon of Appeale from the Judgment of the County Court at Boston after the Attachment Courts Judgment Reasons of Appeale & evidences in the case produced were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found for the plaintiff reuersion of the form^t Judgm^t & Costs of Court fuety-two shillings & a penny :

Grenleafe ag^t Gilbert Enock Greenleafe plaintiffe ag^t John Gilbert
Execution Issued out deffend^t in an action of Appeale from the Judgment
abt 30th Sept 1675 of the County Cour^t in Boston in Aprill last After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiffe reuersion of the form^t Judgment & Costs of Court twenty eight shillings & sixe pence =

Gifford ag^t Hathorne Jn^o Gifford plaintiff ag^t Jn^o Hathorne deffendant in an action of Appeale from the Judgment of the County Court at Ipswich. After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this

Court the Jury brought in their virdict they found for y^e deffendant
Confirmation of the former Judgmen^t & costs of Courts

John Gifford plaintiff ag^t John Hathorne deffendant
in an action of Appeale from the Judgment of the
County Court at Ipswich After the Attachment Courts
Judgment Reasons of Appeale & evidences in the Case produced were
read Comitted to the Jury & are on file wth the Reccords of this Court
the Jury brought in their virdict they found for the plaintiff Reuersion
of the former Judgment & Costs of Courts = forty two shillings and
eight pence

Gifford ag^t Hathorne
executi: Issued out
12 July 76: =

John Gifford plaintiffe against John Hathorne
deffendant in an action of Appeale from the Judg-
ment of the County Court at Ipswich After the At-
tachment Courts Judgment Reasons of Appeale &
evidences in the Case produced were read Comitted to
the Jury & are on file wth the Reccords of this Court
the Jury brought in their virdict they found for the plaintiff Reuersion
of the forme^r Judgment & Costs of Courts = three pounds fowe^{te}n
shillings & six pence

|| in behalf of his
wife ||
Gifford ag^t Hathorne
|| in 3^d action of Bat-
tery = ||
Executi Issued out
12 July 76

Jn^o Gifford plaintiff ag^t Jn^o Hathorne deffendant
in an action of Appeale from the Judgment of the
County Court at Ipswich After the Attachment Courts
Judgment Reasons of Appeale & evidences in the Case
produced were read Comitted to the Jury & are on file
wth the Reccords of this Court the Jury brought in their
virdict they found for the plaintiff reuersion of the forme^r Judgment &
Costs of Courts three pounds eight shillings

|| in behalf of his
wife ||
Gifford ag^t Hathorn
|| in y^e Action of
slander || Exec. Is-
sued out 12 July 76
for 3^d: 8s:

Benjamin Gibbs plaintiff ag^t Rouland Gideon &:
*Baruch deffend^t in an action of Appeale from
the Judgment of the County Court in Boston After the
Attachment Courts Judgment Reasons of Appeale & evidences in the
Case produced were Read Comitted to the Jury and are on file wth
the Reccords of this Court the Jury brought in their virdict they
found for the deffendant confirmati^t of the ff^orme^r Judgment & Costs
of Courts

Gibbs ag^t Gideon
execution Issued out
but satisfied without

* This space left blank in the original.

† Intended for "confirmation."

[34]

1675

LeDet ag^t Briggs Hudson Leueret plantiffe against Abraham Briggs || Assignee of Jn^o Gifford || deffend^r in an Action of Appeale from the Judgment of the County Court at Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plantiff forty seuen shillings abated of the former Judgm^t & Costs of Courts =

Gibbs ag^t whetcombe Benja: Gibbs plaintiff ag^t Josiah whetcombe Assignee of Joseph watters defend^r in an action of Appeale from the Judgment of the County Court at Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to y^e Jury who were seu'll times sent out =_A

Samuel Guile of Hauerill being Comitted to Prison in order to his tryall for Comitting a Rape was presented & Indicted by the Grand Jury _A was brought from the prison to the barr where holding vp his hand was Indicted by the name of Samuel Guile for not hauing the feare of God before his eyes & being Instigated by the diuill did on or about the 25th day of December last in the woods violently & forcibly seize on & Comitt a rape on the body of Mary Ash the wife of John Ash of Amesbury Contrary to the peace of our Soueraigne Lord the King his Croune & dignity the lawes of God & of this Jurisdiction = to which he pleaded not Guilty and put himself on God & the Country = After the Indictment & evidences were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in y^rir virdict they found the prisone^r at the barr Guilty & he accordingly had sentenc pronounc^t ag^t him yow Sam Guile are to Goe from hence to y^e place from whence yo^w came & thence to y^e place of execution & there || be || hang^d till yow be dead *er* wch was accordingly donn 16 october 1675. =

Costs to y^e wittnesses 6. 18 Sixe pounds eighteen shillings allowed for y^e Tresurer to pay newbery men as witnesses out of the estate of sajd Guile in his power as also out of y^e same estate to pay unto Mary Ash **Recompence to Mary Ash 5^l** fiue pounds =

Dorothy Jones being Comitted to prison in order to hir tryall was brought [^] the barr & being presented and Indicted by the Grand Jury holding vp hir hand at the barr was Indicted by the name of Dorothy Jo[a]nes for not having the feare of God before hir eyes & being instigated by the diuill did murder the late Edward Lewis a lodger in hir house some times in January or february last Contrary to the peace of ou^r Soueraigne Lord the King his Croune & dignity the lawe^s of God & of this Jurisdiction the Jury after perusall of y^e Indictment & evidences in the Case produced brought in their virdict they found hir no^t Guilty

Dorothy Jones
Indictm^t

Maurice Bret being in like manner Comitted to Prison was brought to the barr & holding vp his hand was Indicted by the name of maurice Brett of Boston for not hauing the feare of God before his eyes & being instigated by the Divill did in the house of morgan Jones or elsewhere murder the late Edward Lewis a lodger in the house in or about January or february last Contrary to the peace of our Soueraigne Lord the King his Croune & dignity the lawes of God & this Jurisdiction = after y^e Indictment & evidences were Comitted to y^e Jury [^] the Jury brought in their virdict they found y^e prisoner at the barr not Guilty

Maurice Brete In-
dictm^t

At this Court obadiah Walk^r was bound o^u & Acknowledgd himself bound in five hundred pound & m^r Hezekiah Vsher & Arthur mason acknowledged themselues bound in two hundred & fuety [^]

[35]

1675

Zeckariah Crispe being Also Comitted to the prison as Jones & Bret was brought to the barr was Indicted by the name of Zekariah Crispe of Groaten for not hauing the feare of God before his eyes & being Insticated by the Divil did in the house of the late morgan Jones or elsewhere in Boston murder the late Edward Lewis a lodger in the house in or about January or february last contrary to the peace of our Soueraign Lord the King his Croune & dignity the lawes of God & of this Jurisdiction. the Indictm^t & evidence alike Comitted to y^e Jury who brought in their virdict they found the prisoner not Guilty. =

Zeckariah Crispe
Indictment =

This Court was Adjourned to 21 Instant =

present
 Jn^e Leueret Esq^r
 Go^o
 Sam Symonds Esq^r
 dep^t Go^o
 Symon Bradstreet
 Rich^d Russell
 maj^r w^m Hathorne
 Edward Tyng
 w^m Stoughton
 Thomas Clarke
 — — —

Att A Court of Admiralty or Court of Asistants
 held at Boston 13th of septemb^r 1675

In the Case betweene mathew Johnson & Henry Tickner plaintiff in behalfe of the own^rs of the ship Doue ag^t Robert Cannon deffendant brought to this Court by their petiçon & libell against the said Cannon The Court having heard & considered the case & euidences produced doe order and decree that the said Robert Cannon shall forthwith deliuer the said ship Doue with all hir tackle Apparrell & Appurtenances together wth all the Cargoe belonging to the said Ouno's vnto the said Mathew Johnson & Henry Tickner and also pay them in mony two hundred & eight pounds vpon receipt whereof they shall Giue unto the said Robert Cannon a receipt and discharge for the same And that the said mathew Johnson & Henry Tickner shall pay & sattisfy the said Cannon his wages after the Rate of sixe pounds mony p^r moneth to this day and also secure him the said Cannon from the seamens wages that is due to be paid them = the Said Cannon paying the charges of this Court fife pounds & officers ff^ees wth costs of Court in all seuen pounds fueteen shillings & sixe pence

The Court ordered the dep^t Go^ono^r & majo^r Hauthorne should pay as a fine fife shillings apeece for their departing the Court wthout leaue

Also m^r Ting was fined twelue pence for his Absenc from y^e Court after dinner

The Court was Adjourned to the 21th Instant Septembe^r 1675 at w^{ch} time A Grand Jury was to be sumoned in order to the trjall of seuerall Indians sent doune from marlborough & Lancaster by Cap^t mosely being vehemently suspected to haue a hand in y^e murder of those at Nashaway

present
 Jn^e Le^uet Esq^r Go^o
 Sam Symonds Esq^r
 dept Go^o
 Symon Bradstreet
 Dani Gookin
 Dani Dennison
 Rich^d Russell
 Tho Danforth
 w^m Hathorne

Att An Adjournement of y^e Court of Assistants
 held at Boston || & 18 Sept 75 thenc adjourned [to ?] ||
 21 : September 1675

Att this Court Capt mosely^r lette^r and Account was Read wth the euidences produced ag^t *
 Indians he tooke at marlborrow & were trjed according
 a their se^ull Indictments

* This space left blank in the original.

John Indian was Indicted by the name of Jn° Indian belonging to marlborrow for that he not having the feare of God before his eyes & being instigated by the divil did wth seuerall Indians at Lancaster at or about the 23 of August last murde^r or was Confœderat wth seuerall Indians as an Ab-bettor or Concealer of the murther of the Inhabitants of the [^]Lancaster wth one of this Colonjes souldjers named w^m fflagg * contrary to the peace of our Soueraigne Lord the King his Crowne & dignity the lawes of God & of this Jurisdiction the prisonr was brought to y^e barr pleaded not Guilty put himself on tryall by God & the Coun-try the pleas & evidences were Comitted to y^e Jury who brought in their virdict they found y^e prisoner at the barr not Guilty according to Indictment

Edw^d Tyng
W^m Stoughton
Tho clarke
— — —

persons Returnd to
serve on y^e ||Grand||
Jury were sworne
oñ leafe

[36]

— Joseph Spoonhaut Indian was alike Indicted = put himself on like tryall pleas & evidences in the case pduced Comitted to y^e Jury who brought in their virdict they found him Guilty of Confœderacy And if Samuel Scripture^s testimony of the prison^s owning of y^e fact be one legal evidenc they found him Guilty of murder = The Court ordered him to be sent away =

Grand Jury
Mr John Saffyn
Jn° Tappin
W^m Ingram
Jn° Trumble
Tho Jenner
Jonas Clarke
Pyam Blowers
Richard Hall
Tho Lake
Symon Stone
Samuel Starnes
Issack Johnson
John Weld
— — —

Litle Jn° Indian y^t Came as a messeng^r from
† being proved to be a murde^rer of the English
in y^e warr was Condemnd to be hangd & was executed
accordingly =

y^e Jury for Trialls
were as in Sep^r
Court
Mr Jn° ffoost
W^m Harris c^r
— — —

— Revp Indian of s^d marlborrow was Alike In-dicted put himself one like tryall c^r = the Jury brought in their vir-dict they found him not Guilty

— mampaus nackosut Indian was alike Indicted put himself on like tryall c^r the Jury brought in their virdict they found him not Guilty

— James Aliass Acompanu^t Indian was alike Indicted put him-self on like tryall c^r the Jury brought in their virdict they found him not Guilty

* Flag? See Bodge's "Hist. of King Phillip's War," p. 352.

† Blank in the original.

— John Alias Anusquenu' Indian was alike Indicted put himself on like tryall & the Jury brought in their virdict they found him not Guilty =

— Peter aljas Paguskmēut Indian was alike Indicted put himself on like tryall & the Jury brought in their virdict they found him not Guilty

— muckscumpey Indian was alike Indicted put himself on like tryall & the Jury brought in their virdict they they found him not Guilty

— Jn° Alia' Mucksumquenut Indian was Alike indicted put himself on like tryall & the Jury brought in their virdict they found him not Guilty.

— Thomas Alia' mumucksuncasusucquate' Indian was alike Indicted put himself on like tryall & the Jury found him not Guilty =

— James nanapatu was alike Indicted pleaded alike not Guilty put himself on tryall on the bench: who perusing the evidences produced ag^t him (by Cap^t ffishe' & Left way Appointed Attorney' by y^e Court on behalf of the Country to Implead him & the Rest) saw Cause to acquitt & dischargd him

Dauid Indian & Phillip' man was ordered to be sent away by the Treasurer of the Country =

The Court ordered old Jethro Indian for his abusive speeches to be whipt And that he & the rest of the Indians aboue named Acquitted by y^e Jury shall be dischargd & sent for y^e end by Jn° Watson to Cambridg Prison & warrant Issued out to Jn° Watson to Conduct the said Indians to the keep^r of the prison at Cambridge and from him to take & Conduct them to natick to waban the Rule' of natick by him to be releast only whipping or Causing Jethro to be whipt wth thirty stripes for his wicked speeches vttered by him in m^r willurds yard at Groaton for wch he is Convicted

In the Case of Jn° ffoster accidentally dischargd gun[s] at foules on y^e neck thereby wounding Samuel ffacks son so as he djd the Court sentenct him to pay the fathe^r of the boy tenn pounds and to pay tenn more as a like fine to the Country. wch was declar'd

and on his humble peticon the Court saw Cause to Remit five pounds of the Country' fine =

[37]

1675

The Court Judged it meet to ffine Jacob Jesson the sume of tenn pounds mony for his Contemptuous Carriage in the Court in obstructing the eleven of the Jury dissenting from them from tyme to tyme & not Giving the Court a sattisfactory Reason =

Mr Jacob Jesson
find ten pounds for
obstructing y^e Jury
e^r

Att A Court of Admiralty or Court of Asistants held at Boston 1st of october 1675

The Court on pervsall of the libell of m^r Thomas Russell & m^r Jn^o Phillips plaintifffs against m^r John Patten as he is Agent factor or Assignee of Jn^o Bayly merchant finding the plain-
tiff's haue missed it as to their missing * it as to

theire returne nothing Appeared to be secured the Court Ordered the plaintifffs to pay y^e chardg of the Court & office's ffees. y^e deffend^{nt} making default by not appearing when called The Court on y^e Requests of the plaintifffs doe Judge meet to grant them another Court of Admiralty to be held in Boston on the second day next fowe'th Instant. =

present
Jn^o Leueret Esq^r Go^o
Symon Bradstreet
Daniel Gookin
Rich. Russell
Edward Ting
w^m Stoughton
Thomas clarke
} Esq^{rs}
— — —

Att A Court of Admiralty or Court of Assistants held at Boston 4th octobe^r 1675

The Court after the due pervsall of the libell & Complant of Thomas Russell & Jn^o Phillips of charls-Toune merchants Complayning of & Aganst Jn^o Patten merchant as he is Agent factor partner or Assignee of Jn^o Bayly of Rochell in

ffrance merchant together wth the evidences in the Case produced doe find for the deffend' and doe order & decree that the plaintifffs pay the sajd Costs chardg of this Court & office's ffees =

present
Jn^o Leueret Esq^r Go^o
Symon Bradstreet
Dant: Gookin
Richd Russell
Tho Danforth
Edw Tyng
Thomas Clarke
} Esq^{rs}
— — —

Att A Court of Assistants or Court of Admiralty Called by the Go^uno^r & Council & held at Boston the nineteenth of November 1675 =

In the Case brought to this Court by John Grafton exhibbiting his libell & Complaint against Lawrenc Zackariah s[hi]jce a dutchman master of

present
Jn^o Leueret Esq^r Go^o
Symon Bradstreet
Daniel Gookin
Rich^d Russell
Tho. Danforth
Edw^d Tyng
Tho: Clarke
} Esq^{rs}
— — —

* "It as to their missing" appears to be superfluous.

a Catch now called the Hopewell formerly the nightingall the said s[hi]ce Appeared & denyd that he was master of the said Catch and that he would stand to the Tryall of the Case Affirming that he Could & would produce Judication for hir and in open Court owned the said Catch forme'ly to belong to the said John Grafton and was then Called the Nightingale so the Case proceeded And after the evidences produced the said * w^m Demeire declaring that his originall Judication was in his Fathers Custody at New Yorke and desired that he might haue time allowed him to produce it on Consideration whereof The Court declared that no ffinall decree should passe about it till the next Court of Assistants being the 1st tuesday in march next to be held at Boston that he had his request Granted him any time betweene this & that to produce his Judication to the said Court Giving sufficient bond wth sue'tjes to the Treasurer of the Country to the double value the said Catch shall be vallued at Jointly & seuerally that he shall then appeare and

[38]

1675

persons Returnd to
serve on y^e Grand
Jury & sworne were
m^r Tho Brattle
Joseph Cooke

Jonah Clarke
Richd wooddy
Abell Porter
Theophilus ffrary
Sam: Shrimpton
Jn^o Peirpoint
Hugh Clarke
Jn^o Edy
Tho Hastings
Richd Leeds
w^m Pond
Edw Carrington
w^m Johnson
— — —

persons Returnd &
servd on the Jury of
tryalls
Left Richard way
John Greene
Tho Parke
Nath Dauenport
James Brayden
Tho Berry
John Stebbins
John Newell

abide by, & Respond the Judgment & decree of that Court of Admiralty relateing to the said Catch and the Case to Continue to that time. =

maurice Brett was Indicted by the name of Maurice Brett now of Boston for not hauing the feare of God before his eyes being instigated by the diuill did on the † day of † last Comitt Adultery wth mary Gibbs contrary to the peace of ou^r Soueraigne Lord the king his Crowne & dignitie the lawes of God & of this Jurisdicōn To wch Indictment he pleaded not guilty put himself on trjall on God & the Country After the Indictment & evidences in the Case produced were read Comitted to the Jury the Jury brought In their virdict they found him not legally Guilty but Guilty of very filthy carriage c^r The Court Considering the Case sentenet him to goe from hence to y^e prison & thence to be Carried to the Gallows & there wth a Roape about his necke to stand half an hower & thenc tjed to the Carts tajle & whipt

* W^m Demeire not mentioned before in the record.

† Blank in the original.

seuerely wth thirty || nine || stripes and that he be banished this Jurisdiction & kept in prison till he be sent away paying the prison chardges _^ he is discharged

Nath Coolidge
Jn^o B[ruscō]
Richd Leadbetter
obadiah Hawes
John Smith

Mary Gibbs the wife of * Gibbs of Boston for y^e same fact was alike Indicted _^ and found _^ had the like sentenc banishment excepted =

John weave^r was Called & none Appearing to prosecute him for wounding Cole paying the keepe's due^r was discharged

Georg Robbins & Jn^o Largin being both Indicted & not found Guilty of killing y^e Indians were bound ouer to the next County Court at Cambridg in Aprill next to Ans^r for their wounding of the Indians vnder the Courts protection Giving their oune bonds so to doe All the euidences in yr Case Returned to that Court =

In the Case of maurice Brett for his Contemptuous Carriage Confronting the sentenc of this Court was sentenet to stand in the pillory on y^e morrow at one of y^e clock his eare nayld to ye pillory & after an howrs standing there to be cut of & to pay twenty shilling for his swearing or be whipt wth ten stripes

Jnthan Crispe & John Barrat in fforty pounds apeece wth their sue^rtjes in 20^{li} apeece Cap^t Sam Addams solomon Keys to the Tresurer of y^e Country that they shall appeare Attend the Court & Abide their Judgment at y^e Courts Adjo^rnm^t

Jn^o Parke^r was alike bound in forty pounds wth James Conūds & Tho Parker his surtyes to the Tresurer of the Country on Condiçion that he also abide the order & sentence of the Court _^ =

In Ans^r to the Humble petition of maurice Brett Humbly beseeching y^e Courts favo^r _^ the Court Remitted y^t pt of y^e sentenc of nayling & Cutting of his eare

This Court is Adjourned till the 30th Instant at nine of y^e clocke & thence to the 4th december 1675

* This space left blank in the original.

The Court mett at 7^o
time = 4 Dec, 75

Jn^o Parker Jonathan Crispe & Jn^o Barrat The
Court orde's yo^w to Repaire home & to Appeare at the
Randeuous at dedham wednesday next at eleven of
the clocke euery way fitted & Compleatly Armed and furnished with
clothes and to march forth wth the forces. —

[39]

1675

present
The Go^ono^r
m^r Bradstreet
Cap^t Gookin
m^r Russell
m^r Danforth
m^r Ting
m^r Tho Clarke
— — —

Att A Court of Admiralty or Court of Assistants
Called & held at Boston 16 Dec^r 1675

In the Case brought to this Court by the libell &
Complaint of Nicholas Skinner master of the ship
Doue in behalfe of himself & Company against the
sajd ship Doue nicholas mould^r p^r ouno^r of the sajd
ship & James Loyd his Assignee deffend^t for wages
for himself sajd Skinner & Company & expences layd out on sajd ship
= This Court finds for the plaintifffe and orde's & decrees that the
deffendant pay unto the plaintifff the sume of two hundred sixteene
pounds nine shillings & fowe' pence damage in mony & costs of this
Court three pounds sixteen shillings =

In the Case of James Elson master of the ship Blessing in behalfe
of himself & his ouno's of sajd ship plaintifffe against m^r Richard
wharton deffend^t brought to this Court by his libell & Complaint The
Court duely Considering the pleas & evidences in the Case produced
doe orde' & decree the plaintifff to pay the deffendant the Costs of this
Court = fowe'teen shillings

This Court is dissolved

present
Jn^o Leueret Esq^r Go^o
Sam Symonds Esq^r
deput Go^o
Symon Bradstreet
Daniel Gookin
Daniel Dennison
Symon Willard
Rich. Russell
Tho Danforth
Edw^d Tyng
w^m stoughton
Tho Clarke
— — —

persons Returnd to
serve on ye Grand
Jury =
— — —

Att A Court of Assistants held at Boston the
7th of march 1675/6.

at this Court w^m Demeire appeared by his
ffather Nicholas Demeire as did John Grafton by
his Attorney Anthony checkly according to the
Court of Admiralty in Nouembe' last Adjourn' and
after the evidences in the Case produced were
Read & pervsed the Court declared they found for
the Deffend^t m^r Demeir originally Costs of Court
fowe' pounds seventeen shillings & sixpence

In the Case of Attaynt depending betwixt m^r John

Woodmansey plaintiffe and m^r John ffrost foreman in behalfe of y^e Jury of Appeales deffendant after the Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to y^e Jury & are on file the Jury brought in their virdict they found for the plaintiff allowing full damage or Costs of Court to the originall suite as the law for Attaints prouides and Gaue in their Reason because we find one hundred forty seuen pounds seven shillings and eight penc of Tho Joys charge given him for which ther^e no prooffe but his oune oath 2 ly because the Jury Attainted haue Given the sajd Joy three hundred forty fower pounds seventeen shillings & eight penc which is not only more debt then is legally prooved but obleidged to be pajd in prouissions a species not sued for & for the two hundred thirty seuen pounds fueteen shillings which is plainly due by m^r woodmansey^s acknowledgment it concerns not this Jury it being a distinct Case from that Comitted to us wee being only obleidged to Attend that Case that m^r woodmansey is bound to prosecute which is the Jury^s Atteint not the debt to Tho Joy = Thomas Broughton foreman of y^e Jury

w^m Parks
Tho weld
w^m Johnson
w^m Dady
Rich. Robbins
John Greene
Henry Bright
Elliz Barron
Jer. ffitch
Joseph How
Tho watkins
Edw^d Grant
Theoder Atkinson
Rich^d Leeds
W^m Sumner
— — —
no work Appearing
they were dismist

[40]

1675

James Elson master of the ship blessing plaintiff ag^t m^r Rich^d wharton & m^r Thomas Bendish deffend^t in an Ac^{on} of Appeale from the Jury^s ~~& Courts Judgment~~ || virdict || in the last County Court in January last ~~er~~ after the Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts

W^m Cogswell plaintiff against John Cogswell in an Ac^{on} of Appeale from the virdict of y^e Jury & County Courts Judgment at Ipswich After the Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation

persons Returnd to
serve on the Jury for
trjalls of Appeales
er sworne
were =
— — —
1st
m^r Thomas Brough-
ton
Phillip Searle
Joseph Wise
Nath: Seavor
Sam Douse
Walter Hastings
Tho Langhorne
Tho fflagg
W^m Gibson
Nath Blage
Anthony Heywood
Nath Byfeld
James ffoster
— — —
person Returnd to
serve on y^e seccond
Jury & sworne were
— — —
m^r John Phillips

Phillip Searle
Jno Chandler
Tho Chadwell
Rich^d Eccles
Andrew Boardman
Jno Sawin
Nath Thayer
phesant Eastwick
Steven Burton
Nath Clap
James Taylor
— — — —

of the former Judgment & Costs of Courts and also the said plantiffe Giue a Just & legall accompt to the deffendant as sued for at or before the sixteenth of June next ensuing vpon the poenalty of the sume of three hundred pounds = costs fuety fowe^r shillings & two pence

Samuel & margaret Bishop execcuto^r & execcutrix to the late Thomas Bishop plaintiff against Francis wainewright deffend^t in an action of Appeale from the Judgment at y^e last County Court at Ipswich = After the Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts thirty seuen shillings one penny

exec Issued out &
Returnd on file in
y^e Case

Richard wooddy plaintiff in an action of Appeale Ag^t John Harrison sen^d deffend^t from the Courts Judgment in January last in Boston. After the Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury and are Remayning on file with the Reccords of this Cour^t the Jury brought in their virdict they found for the plaintiff A reuersall of the forme^r Judgment wth two shillings damage and Costs of Courts five pounds & three pence and the Highway sued for to be as formerly

James floord being bound ouer to this Court to Ans^r for his driving ~~ouer~~ a Cart ouer Abigaile King that the child died After the Court had duely Considered the Case sentenct him to pay the fine of five pounds to the Country & five pounds mony to Its fathe^r Samuel King :

[41]

1675

Richard Scott was Called the evidenc ag^t him wth his letter wch he denyed refferd himself for trjall to the Bench was Comitted to prison there to lye till the Court took further order =

Richard Scott was called being at the barr the wittnessed his* letter to majo^r Savage was also produced & Read wherein many vntruths & seuerall reproachfull were written & on enquiry m^r scott declared that Ezekiel flogg wrote it e^r

* This word appears to be superfluous.

Rich^d Scott in two hundred pounds Anthony cheeckly & James whetcombe in one hundred pounds a peece as his sue'tjes acknowledged themselues bound respectively to the Trespere of the Country on this Condition that he the said Richard Scott shall attend the Court from tyme to tyme & Abide the Sentence of the Court this
done in open Court 14 m^{ch} 75/6

The Court on a full hearing what Richard Scott Could say Considering his offence sentenct him the sume of one hundred pounds to major Gookin whom he had so vilely reproacht & vnworthily and that he pay a fine to the Country fuyety pounds and to be bound to his Good behaiour himself in twenty pounds and two sue'tjes in tenn pounds apeece standing Comitted till this sentence be pformed

Ezekiel fogg being Called who not only abused Richard scott in indicting and writing such a scurrillows letter putting a superscription vpon it whereby Authority was abuse[d] The Court sentenct [^] to pay as a fine to the Country fuyety pounds mony standing Comitted till the sentence be performed —

Att A Court of Assistants or Admiralty held at Boston 29 m^{ch} 1676.

Jonathan Woodman plaintiff against m^r Bartholmew stratten Elisha Hutchinson for himself & for Elisha Sandford John Poole & mary the administratrix of Henry Kembles estate deffendants ouno's of the ship Salamande^r, built by the plaintiffe for wthholding his payment for the said ship: The Court hauing heard and Considered the plea^r and evidences in the case produced doe find for the plaintiffe damages one hundred eighty five pounds in the specie & manne^r following viz^t from Bartholmew stratten for one eighth part twenty three pounds two shillings & sixepence Elisha Hutchinson one quarter pte forty sixe pounds fuyety shillings payable in Goods at merchants price and for Elisha sandford for one quarter part which he vndertooke for forty sixe pounds fuyety shillings halfe in mony and halfe in Goods; John Poole for one quarter pte forty sixe pounds fuyety shillings halfe in mony and halfe in goods at merchants price Mary Administratrix of the said Henry Kemble for one eighth part twenty-three pounds two shillings & sixe pence halfe mony halfe Goods at the merchants

present	
J ⁿ LeUet Esq ^r Go ^d	
Symon Bra[d]street	} Esq ^r
Daniel Gookin	
Symon willard	
Rich ^d Russell	
Tho. Danforth	
Edw ^d Ting	
w ^m Staughton	
Tho Clarke	
— — —	

price this whole sune of one hundred eighty five pounds to be pajd to the plaintiffe in full of the Hull of the sajd ship Sallamander

[42]

1676

wth Costs of Court seuen pounds tenn shillings & two pence — And the worke of the builde^r left vnfinished is abated by the Court and not recconed in the some aboue sajd. =

Jonathan woodman Appearing in Court The Court demanded of him whether he had had his ship surveyed as the law directs wch was Read he sajd he had no^t pretending to Ignorance of the law & hauing some shipwrights vejwing it thought it was sufficient The Court declared that they Imposed the fine of tenn pounds on him for * his wages according to law to be pajd to the treasurer

Courts order as to
officers fees at Court
of Admiralty The Court ordered the marshall to be allowed
halfe a croune which [^] pajd in Court & fowe^r shillings
for serving fowe^r warrants =

As also the Secretary^s fees for receiving entring the libell action and recording it five shillings and for warrants as the marshall = one shilling

21th July 1676 In Ans^r to the petiçon of & motion of Thomas Lynde
& Capt Hamond^r motion a Court of Admiralty is
Granted by the Go^uno^r & magistrate[^] to be held at Boston 26 Instant
at two of the clock in y^e Afternoone as Attests Edward Rawson secret^r

present
y^e Go^uno^r
dep^t Go^u
m^r Danforth
m^r Ting
m^r Stoughton
m^r Clarke
m^r Dudley Att A Court of Admiralty held at Boston 26 of
July 1676
Attachment & seuerall sumons for witnesses
Issued out *er*

Thomas Lynde master of the Catch Pellican by his libell complayning in behalfe of him self & owno's plaintiff against Daniel Dauisson of charlsToune merchant deffendant for that he the sajd Daniel Dauison hath neglected to pay vnto the sajd plantiffe the sune of forty one pounds money for y^e hire of the sajd Catch for sixe month^s twenty five dayes as p charter pty he was bound to pay as also

* Evidently an error in the record for "from."

for not paying the some of sixty six pounds three shillings & two pence money for the seamens wages in all one hundred & six pounds two shillings * After the libell wth the sumons & Attachment & euidences in the Case produced || were Read || & duely Considered || of || the Court orde's & decrees that the sajd Daniell Dauison deffendant pay unto the sajd Tho Linde plantiffe the some of one hundred & sixe pounds three shillings two pence * mony wth Costs of Court in mony three pounds nine shillings =

[43]

1676

on the motion of m^r Richard Lord & m^r Jn^e Blackleach a Court of Admiralty was Granted to be held in Boston the 31 of y^e Instant July 1676

Attachment [& se^ull] sumons Issued out after they had entred their libell

Att A Court of Admiralty called & held at Boston the 31th July 1676

the Go^unor
dep^t Go^unor
m^r Danforth
m^r Tyng
m^r Stoughton
m^r Clarke
m^r Dudley

Richard Lord & John Blackleach merchants plaintiff^s by their libell exhibbited to this Cour[t] Against Richard wharton & Company defendants for breach of charter party After the libell & euidences in the Case produced were read & duely Considered of the Court declares that they ordered & decreed that the plaintiff^s pay unto the deffendant Costs of Court

on the motion of charls Hodsdal pylot of Ship nevis facto^r & Bartholmew Hoope^r wth Georg Keith an ~~Admirall~~ || Admiralty || Court was Granted to be held at Boston the 28 of August Instant

22th August
By y^e Go^unr &
magists

|| Attachments & sumons Issued out after their libells were entred ||

Att a Court of Admiralty held at Boston 28th August 1676.

preent
y^e Go^unor
dep^t Go^u
m^r Danforth
m^r Tyng
m^r Stoughton
m^r Clarke
m^r Dudley

In the Case of charls Hodsall Pylot by his libell Complayning against Sam: Daus master of ship nevis facto^r & sajd ship for refusing to pay him his wages for his se^rvice donn in the said ship as Pylot fue pounds p moneth from the 22th february last to the 30th of July last After the libell & euidences in the Case produced were read & duely Considered The Court ordered & decreed that the sajd Sam.

* There is evidently an error in the record here.

Davis master & sajd ship make good y^e payment of twenty six pounds five shillings to the sajd Charls Hodsdale pylot in mony as his damage & Costs of Court forty one shilling =

In y^e Case of Bartholmew Hooper Carpenter of ship nevis factor by his s^d libell Complayning ag^t Samuel Davis master of sajd ship for refusing to pay him his wages for worke donne in sajd ship as Carpenter || after [^] 54^e p month from 25 octob^r to 30th July || after the libell & evidences in the Case produced were read & duely Considered the Court found ffor the plaintiff twenty fowe^r pounds fiuteen shillings mony & orde's & decrees that the sajd Davis & sd ship pay the sajd Bartholmew Hooper y^e plaintiff y^e sd sume wth Costs of Court forty one shillings. =

George Keith by his libell exhibited to this Court Plaintiffe against Samuel Davis master of the ship nevis factor deffendant Complayning against the sajd Davis as maste^r for Refusing to deliuer him his log-wood put aboard him after the libell & evidences in the Case produced were duely read & Considered the Court found for the plaintiffe his log-wood being five hundred thirty six sticks marked as by the boatswaynes Receipt once wthin three dayes or els pay the plaintiffe two hundred pounds in mony & Costs of Court three pounds five shillings =

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In the Case of m^s Elisabeth Lydget executrix to the last will & testament of m^r Peter Lydget deceased in the behalfe of hirself & the rest of the ouno^r of the Catch Content by hir libell exhibbited to this Court plaintiffe against John Poole merchant & w^m Trott marriner deffendants for not paying freight for the sajd Catch nor deliuering the sajd Catch as p Charter pty they were bound after the libell Attachment & evidences in the Case produced were read & duely Considered The Court doth Giue Judgment for the plaintiffe the forfeiture of the bond of five hundred pounds Given for performanc of Charte^r pty respitting execution to the nex^t Court of Admiralty after two month^e in which time the deffendant may present his plea for chancery of his bond & Costs of Cour^t = vide fol 65 =

present
The Gou^{no}r
Dep^y Gou^{no}r

Att a Court of Assistants held at Boston the
5th of Septembe^r 1676 Jn^o Ruggles plantiff against

James Hudson deffendant in an action of Appeale from the Judgment of the Commissione's Court After the Attachment Courts Judgment Reasons of Appeale and evidences in the Case produced were read Comitted to the Jury & are Remayning on file the Jury brought in their virdict they found for the plaintiffe reuersion of the former Judgment & Costs of Courts twenty six shillings & Eight pence

Exec
Issud out
12 8 76
mo

Symon Bradstreet Daniel Dennison Tho Danforth W ^m Hathorne Jn ^o Pyncheon Edwd Tyng W ^m Stoughton Thomas Clarke Joseph Dudley	}	Esq ^r
---	---	------------------

persons to serve on
y^e Grand Jury &
sworn were —
— — — —
m^r Richard Collecott
Richard way
Jn^o ryall sen^d
Benja Negus
Jn^o Blake
Tho Dewer sen^d
Giles Pason
Robert willjams
Tho Hastings
Joseph Beamis
Laurenc Douse
w^m ffoster
Richd Hall
Ralph Haughton
Jn^o Stone
Walter Hastings
— — — —

1st Andrew NewComb plaintiff on Appeale from the Judgment of the County Court in Boston in Aprill last After the Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & Remajne on file wth the Reccords of this Court the Jury brought in their virdict they found the Confirmation of the former Judgm^t & costs of Courts :

2nd Ju: W^m Rauson plaintiffe against Habbacuck Glouer John Glouer & Pelatiah Glouer deffendant in an Accon of Appeale from the Judgm^t of the || last || County Court in Boston After the Courts Judgment Attachm^t Reasons of Appeale and evidences in the Case produced were read Comitted to the Jury & Remajne on file wth the Reccords of this Court the Jury Brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Courts

2nd W^m Rauson plaintiffe against Abraham Briggs defendant in an Accon of Appeale from the Judgment of the last County Court in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are remayning on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment and costs of Courts =

persons Returnd to
serve on the Jury of
trjals & sworne =
— — — —
[1st]
m^r John Hubbard
Richd Bulkley
Sam Rugles :

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Jn^o Gifford plaintiff ag^t Abraham Briggs deffendant in an action of A from the Judgment of the County

Tobias Dauls
Thom : flegg
Jn^o Morse

Sam Peirce
 Zackary Johnson
 Tho Welch
 Roger Billing
 James Bird
 Nicholas Bolton
 — — — —
 persons Returnd to
 serve on the second
 Jury & sworne = *

Court in Boston After the Attachm^t Courts Judgment
 Reasons of Appeale & evidences of the Case produced
 were read Comitted to the Jury & Remajne on file
 wth the Reccords of this Court they brought in their
 virdict they found for the deffendant Confirmation of
 the former Judgm^t & Costs of Courts =

Jn^o Conney & Samuel Sendall plaintifffs ag^t the
 Judgment or sentence of m^r Anthony Stoddard, Comissioner in Boston
 the sentence & Reasons of Appeale being Read and Comitted to the
 Jury & Remajne on file the Jury brought in their virdict they found
 for the Appellant Reuersion of the former Judgm^t ~~& Costs of Courts~~

Jn^o Alden plaintifffe || ag^t majo^r Thomas Clark deffend^t || in an
 Action of Appeale from the Judgment of the County Court in July last
 in Boston After the Courts Judgm^t Attachm^t Reasons of Appeale &
 evidences in the Case produced were read Comitted to y^r Jury & are
 Remayning on file wth the Reccords of this Court the Jury brought in
 their virdict they found for the defendant Confirmation of the forme^r
 Judgm^t & Costs of Courts :

W^m Cogswell plaintifffe in an action of Appeale against John Cogs-
 well deffend^t ffrom the Judgment of the County Court at Salem last
 After the Attachment Courts Judgment Reasons of Appeale & eui-
 dences in the Case produced were Read Comitted to the Jury & Remajne
 on file wth the Reccords of this Court the Jury brought in a speciall
 virdict i e If the Judgment of the Court of Assistants was a legall
 foundation for a process for the present deffendant wee find for the
 deffendant Confirmation of the forme^r Judgment & Costs of Courts if
 not wee finde for the plaintifffe & reuerse the forme^r Judgment & Costs
 of Courts The Court finds for the plaintifffe & Reuerse the former
 Judgment & grants Costs of Courts

Jonathan Heynes plaintifffe against Peter Toppan deffendant in an
 action of Appeale from the Judgment of the County Court at Ipswich.
 After the Attachment Courts Judgment Reasons of Appeale & eui-
 dences in the Case produced were read Comitted to the Jury and are on
 file wth the Reccords of this Court the Jury brought in their virdict

*The names of the second jury are not given.

they found for the plaintiffe Reuersion of the forme' Judgment & Costs of Courts =

Walter Barefoote plaintiffe against w^m shackford deffendant in an action of Appeale from the Judgment of the County Court at portsmouth After the Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme' Judgm^t & Costs of Courts —

m^r Jn^o Joyliffe majo^r Tho Sauage m^r Humphry Davy m^r Anthony Stoddard Cap^t Tho Bratle Cap^t Tho Clarke Cap^t John Richards chosen by the freemen of Boston for this yeare were Allowed & Approoved of by the Court =

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Edward Tyng Esq^r plaintiffe against Joseph DAVIS deffendant in an action of Appeale from the Judgment of the Comissione's Court in Boston After the Attachment Courts Judgment Reasons of Appeale & othe^r evidences in the Case produced were read Comitted to the Jury & Remyne on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiffe Reuersion of the forme' Judgment & three pounds in siluer according to bill & Costs of Courts 18^l. 6^d

Thomas Woodbridge plaintiffe ag^t w^m Gerrish sen^d deffendant in an action of Appeale from the Judgment of the County Court at Salem last as to deffamation = After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury on motion made of Compromising this & two othe^r Accons of Appeale of the sajd woodbridge ag^t the sajd Gerrish on Revejw on Account & on Revejw from the sajd Court the partjes Consenting thereunto & nominating their arbitrato^rs in p^t making it knowne y^t both parties pitched on the Honor^d Go^dno^r to be y^r vmpire hauing entred bond each to othe^r to stand to the Award they wthdrew their Accons & y^e Court

3 actions of Tho woodbridge ag^t w^m Gerrish wth-draune by Consent & Referred to Arbitration =

ordered all their pape's dd in Reasons of Appeale *er* to be deliuered vp to them in orde^r therevnto wch was donn accordingly.

2^d Jur
woodbridge ag^t
winalow Thomas Woodbridge Attorney to Thomas Sexton
plaintiff against Nath^a winslow deffendant in an Ac^on
of Appeale from the Judgment of the County Court at
Hampton. After the Attachment Courts Judgment Reasons of Appeale
& evidences in the Case produced were read Comitted to the Jury and
are Remayning on file wth the Reccords of this Court the Jury brought
in their virdict they found for the deffendant Confirmation of the former
Judgment & Costs of Courts

2^d Jury
Shoare ag^t Gibbs Sampson shoare plaintiff against Benjamin Gibbs deffendant in an
action of Appeale from the Judgment of the County
Court in Boston in Aprill last After the Courts Judg-
ment Reasons of Appeale & evidences in the Case pro-
duced were Read Comitted to the Jury & are on file wth the Reccords
of this Court the Jury brought in their virdict they found for the
deffendant Confirmation of the forme^r Judgment & Costs of Courts =

Gilman ag^t foulesham Moses Gilman plaintiffe against John foulsham seⁿ
deffendt in an action of Appeale from the Judgment
of the County Court at Hampton = After the Attachment Courts Judg-
ment Reasons of Appeale & evidences in the case produced were read
Comitted to the Jury and are Remayning on file wth the Reccords of this
Court the Jury brought in their virdict they found for the deffendant
Costs of Courts.

Cox *er* g^t ffog ag^t Thomas Cox & Phillip read sue^tjes for Ezekiell
ffog plaintiff ag^t John willjams deffend^t in an Action
of Appeale from the Judgment of the County Court
in Boston in Aprill last After the Courts Judgment Reasons of Appeale
& evidences in the Case produced were Read Comitted to the Jury &
are Remayning on file wth the Reccords of this Court the Jury brought
in their virdict they found for the deffendant Confirmation of the former
Judgment & Costs of Courts

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Sheaffe ag^t Hawkins Charles oughtred Attorney to Sampson Sheaffe
plantiffe ag^t Thomas Hawkins deffendant = After the
Courts Judgment Reasons of Appeale and evidences in the Case pro-

duced were read Comitted to the Jury and are on file wth the Records of this Court the Jury brought in their virdict they found for the plaintiff Reuersion of the former Judgment & Costs of Courts =

|| 27^s [& y^s] Courts Costs ||

Jn^o Pickering plaintiff ag^t charles ffrost in an action of Appeale from the Judgment of the County Court held at Portsmouth after the Courts Judgment Reasons of Appeale & other evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgm^t & Costs of Courts. pickering ag^t ffrost

Edward Cowell plaintiff against Nathaniel Elkin defend^t in an action of Appeale from the Judgment of the County Court in Boston. this Ac^on was wth draune by Consent of partjes. = Cowell ag^t Elkin

Jn^o Bennet plaintiffe against Samuel Addams deffendant in an action of Appeale from the Judgment of the County Court in Boston After the Courts Judgment Reasons of Appeale and evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff Reuersion of the former Judgment & Costs of Courts twenty eight shillings & ten pence = Bennet ag^t Addams

Jn^o Bennet plaintiff ag^t widdow *Gridley || deffend^t || after the Courts Judgm^t Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are Remajning on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Courts = twenty ~~eight~~ || one || shilling & ten pence Bennet ag^t Gridley

Rich^d wharton sue^{ty} to Richard Smith plaintiff ag^t Obadiah Swift Tho Bird & Jn^o Clarke deffend^t in an action of Appeale from the Judgm^t of the County Court in Boston e^r this Ac^on by Consent of partjes was wth draune. = wharton ag^t Swift

* This space left blank in the original.

The Jurys were dismiss

The Court is Adjourned to the 13th Instant

present the Goſnor

Dep^t Goſnor

mr Bradstreet

mr Dani Dennison

mr Danforth

mr Hawthorne

mr Pinchon

mr Tyng

mr Stoughton

mr Clarke

mr Dudley

— — — —

God & of this Jurisdiction * to w^{ch} Indictment the prison^r at the barr pleaded not Guilty put himself on hir † tryall by God & the Country After the Indictment & euidence in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found him not Guilty legally according to Indictment but found him Guilty of very suspitious acts leading to Adultery =

The names of the
Jury men Returnd
to serve on tryalls of
life limbe &c
sworne [were]

The Court mett at y^e time 13th septembe^r 1676

Thomas Daus late Resident in Boston was Indicted by the name of Thomas Daus for not hauing the feare of God before his eyes & being Instigated by the diuil about the begining of June last did Comitt Adultery wth Elisabeth Browne Contrary to the peace of ou^r Soueraigne Lord the king his Croune & dignity the lawes of God and of this Jurisdiction the laues of

The Court on Con[s]ideration of this virdict proceeded to sentence him to Goe from henc to the place of execution and thenc by the marshall Generall &c to be Carried to the Gallows on the next Fiuth day after the lecture & there to stand on the Gallows wth a Roape

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1st Jury
mr Jn^o than Balston
Richard Bulkley
Jn^othan Bridgham
John Harris
Richard Whitney
Symon Coolidge
Joseph child
Jn^o Morse
Tho Welch
w^m wright (Sam
Peirse)
Tho flegg
Zackariah Johnson
— — — —
2^d Jury mens names
y^t were Returnd to
serve on trjalls of
life & sworne
were =
— — — —

about you^r necke one hower & tjed to the Gallows and thenc at the Carts tajle to to be seuerely whipt not exceeding thirty nine stripes to the prison & there to lye till the nex^t lecture day at Charls Tounne & carried then thith^r & be there alike seuerely whip^t not exceeding thirty stripes & discharging y^{or} prison ffrees to be discharged =

Elisabeth Broune the wife of W^m Broune of Charls Tounne was alike Indicted by the name of Elisabeth Broune for not hauing the feare of God before hir eyes & being instigated by the Diuil about the begining of June last did Comitt adultery wth Thomas Daus Contrary to the peace of our Soueraigne Lord the King his Croune & dignitje the lawes of God

* Repetition of eight words in the record.

† Evidently an error in the record for "his."

& of this Jurisdiction the prisoner at the barr pleaded not Guilty put himself on God & the Country for his triall after the libell & evidences in the Case produced were read Comitted to y^e Jury and on file Remajning wth the Reccords of this Court the Jury brought in their virdict they find hir not legally Guilty according to Indictment but doe find hir Guilty of Prostituting hir body to him to Comitt Adultery The Court p^{er}vrsing this sentence do order yow to Goe from hence to the place from whenc yow Came & thenc on the next lecture day by the marsha^l Gen^l to be Conducted to the Gallows & by the executioner to haue a Rope tied about your neck to y^e Gallow^s & so there to stand one howe^r & thenc to be tyed to the Carts tayle & seuerely whipped not exceeding thirty nine stripes to the prison & thr left till the next lecture day at CharlsToune & then Carrjed ouer & be there alike seuerely whipt wth thirty stripes & discharging yo^r prison ff^{ee}s yow are discharged =

mr Roger Billing
Left Hugh Drury [in
forem^{as}]
Nath. f^rotheringham
James Bird
Nicholas Bolton
Time Tileston
Tho Toleman
Roger Su[mn]er
Humphry Bradshaw
Tho f^roster
Jnthan Remington
Rich Ell[e]s
noah wisewall
in R[emin]gton steed
objected ag^t by
Dan Hoa[re] &
Wilder
— — —

Stephen Goble of Concord thow art Indicted by the name of Steeven Gobl for not having the feare of God before thy eyes & being Instigated by the divill wth other thy Complices at or on the seuenth of August last at or neere Hurtleberry Hill in the woods in the precincts of Concord or neere thereabouts did murde^r & kill three Indian weomen & three Indian children Contrary to the peace of ou^r Soueraigne Lord the king his Croune & dignity the lawes of God and of this Jurisdiction. After the libell & evidences in the Case produced were Read Comitted to the Jury are Remayning on file wth the Reccords of this Court the Jury brought in their virdict i e they found him Guilty. = And Accordingly sentenc of Death was pronounc ag^t him that he should Goe from henc to y^e place from whence he came & thenc to the Gallow^s and thr be hangd till thou beest dead.

Daniel Goble of Concord thou art Indicted by the name of Daniel Goble In the County of Midlesex in New England for that thow not hauing the feare of God before thy Eyes & being Instigated by the divil wth othe^r thy Accomplices at or on the seventh of August last at or nere Hurtlebury Hill in the woods in the precincts of Concord or neere thereabouts did murder and kill three Indian weomen and three Indian children Contrary to the peace

Daniel Gobles In-
dictm^t

of our Soueraigne Lord the king his Croune & dignity the law of God and of this Jurisdiction = to which Indictmen[t] the prisone^r at the barr pleaded not Guilty & put himself on his triall by God and the Country: After the Indictment & evidences in the Case produced were Read Comitted to the Jury and are Remayning on file wth the reccords of y^e Court the Jury brought in their virdict the[y] found him Guilty = And accordingly had sentenc of Death pronounc^t ag^t him by the Go^uno^r yow shall Goe from hence to the place ~~of exee~~ from whence yow Came & from thence to y^e place of execution & there be hang^d till yow be dead: & y^e Lord be mercifull to thy soule.

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Nath wilde^s
Indict^m

Nathaniel wilde^r of Concord in the County of midlesex in New England thou art Indicted by the name of Nathaniel wilder for not hauing the feare of God before thy eyes being Instigated by the Diuill wth othe^r thy accomplices at or on the sevent[h] of August last at or neere to Hurtlebury Hill in the woods in the precincts of Concord or neere thereunto did murde^r & kill three Indian woemen and three Indian children Contrary to the peace of ou^r Soueraigne Lord the king his Croune & dignitje the lawes of God and of this Jurisdiction = to wch Indictment the prisoner at the barr pleaded not Guilty and put himself on his tryall of God & the Country after the Indictment & evidences in the case produced were Reade and are Remayning on file wth the Reccords of this Court the Jury brought in their virdict they found him Guilty: And accordingly had sentenc of death pronounced Against him as the other = to be Returnd from hence to the place from whence he Came & thence to the place of execution there to be hang^d till thou beest dead =

Daniel Hoares
Indictment

Daniel Hoare of Concord in the County of midlesex in New England thou art Indicted by the name of Daniel Hoare for not hauing the feare of God before thy eyes and being Instigated by the Diuill with othe^r thy Accomplices at or vpon the seventh day of August last at or nere Hurtleberry Hill in the woods in the pecincts of Concord or neere thereunto did murde^r & kill three Indian woemen and three Indian children contrary to the peace of ou^r Soueraigne Lord the king his Croune and dignity the lawes of God and of this Jurisdic^on to which Indictment the prisone^r at the barr pleaded not Guilty and put himself on his tryall of * God & the Country After

* Written over the word "by."

the Indictment & evidences produced in the Case were read Comitted to the Jury and are Remayning on file wth the Reccords of this Court the Jury brought in their virdict they found him Guilty = And Accordingly || he || had sentenc of Death pronounc aganst him to be Returned from hence to y^e place from whence he Came and from thence to the place of execution there to be hangd till thow beest dead =

Benjamin Symons of wooborne in the County of midlesex in New England being brought to the barr was Indicted by the name of Benjamin Symonds for that he not having [^] feare of God before his eyes & being Instigated by the divil on the fifth of July last in the woods in the precincts of said wooborne did Comitt a Rape on the body of Elizabeth Peirce & that forcibly Contrary to the peace of ou^r Soueraigne Lord the King his Croune & dignity the lawes of God & of this Jurisdiction to wth Indictment the prisone^r at the barr pleaded not Guilty & put himself on his tryall by God & the Country After the Indictment & evidences in the Case produced were read Comitted to the Jury [^] brought in their virdict they found him not guilty according to Indictment but || Guilty || of Attempting of a Rape on the body of Elizabeth Peir[c]e = The Court bound ouer the s^d Symons to y^r Ans^r for this at the nex^t County Court at charlsToune & the s^d Benja Symonds in 20^{li} & Jn^o Howard of Concord & Joseph Symons in ten pounds apeece as his suertjes acknowledged themselves respectively bound in s^d somes to y^e Tresurer of y^e County of midlesex on Condicton y^t said Benja Symons shall appeare Accordingly before the next County Court in midlesex to Ans^r w^t shall be layd to his charg for his fornication

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or his forcibly abusing Elizabeth Peirce. = e^r

Peter Cole of charlsToune was Indicted by the name of Peter Cole for || y^t he || not hauing the feare of God before his eyes & being Instigated by the Divil did on or about the first of July last Comitt Adultery on the body of Sarah Bucknam wife to John Bucknam of Boston contrary to the peace of our Soueraigne Lord the king his Croune and dignity the lawes of God & of this Jurisdiction = to wch Indictment y^e prisone^r at the barr pleaded not Guilty & declared he would be tryed by God & y^e Country : After the Indictment & evidences in the case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their

Coles Indictm^t &
censure

verdickt they found him not Guilty according to Indictment but Guilty of vnlawfull & vncivil Accompanying wth the said Sarah Bucknam wife to Jn^o Bucknam being in bed togethe^r The Court sentenc^t him to goe from henc to y^e place whenc he Came & thence on the nex^t fifth day after lecture by the marshall Generall & his orde^r to be Carried to the Gallow^s & there stand wth a halte^r throune ouer y^e Gallow^s to stand on howe^r & then tooke doune & tyed to the Cart^s tajle & be seuerely whipt wth thirty nine stripes & paying his prison ffes was discharged

Sarah Bu(ck)name Sarah Bucknam was alike Indicted as said Cole
 Indict^t & sensur as mutatis mutandis & being found by the Jury as aboue
 aboue not Guilty according to Indictment but Guilty of like
 vncivill Accompanying wth Peeter Cole being in bed together had the
 like sentenc p^ronounc^t ag^t hir =

Basto Negro slaue to Robe^t Cox of Boston was Indicted by the
 name of Basto negro for that he not hauing the feare
 of God before his eyes & being Instigated by the
 Basto negro Indict- of God before his eyes & being Instigated by the
 ment Divill vpon the 14th of Aprill last or thereabouts did
 Comitt a Rape vpon the body of martha Cox daughter to his said
 master being a child about three yeares old contrary to the peace of
 ou^r Soueraigne Lord the King his Croune & dignity the law^s of God &
 of this Jurisdiction To wch Indictment he pleaded not Guilty: After
 y^e euident^e ag^t him were read Comitted to the Jury & are on file wth the
 Reccords of this Court the Jury brought in their verdickt they found
 him Guilty according to Indictment = & Accordingly had the sentenc
 of Death pronounced ag^t him i e That he should Goe from the barr to
 y^e place from whenc he Came & thenc to the place of execution & there
 hang till he be dead =

Jack negro se^rvant to m^r Jn^o faireweather of
 Jack negro Indictm^t Boston was Indicted by the name of Jack negro for
 that he not hauing the feare of God before his eyes & being Instigated
 by the Divill did on the beginning of Aprill last Comitt Beastiality
 wth a Cow contrary to the peace of our Soueraigne Lord the King his
 Croune & dignity the law^s of God & of this Jurisdiction To wch In-
 dictment he pleaded not Guilty after the Jury had p^rvsed the Evidences
 w^{ch} are on file wth the Reccords of this Court they brought in y^re Vir-
 dict they found him not Guilty.

[One leaf missing.]

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Capt Thomas Daniel & Left W^m Vaughan plaintiffe by their libell & complaint exhibitted to this Court against m^r walter ThornHull deffendant wch is manifested in two Attachments now given into this Court against the said ThornHull who in open Court Consented to give Answer thereunto and abide the decree of this Court therein The plaintiffs declaring they had & did lett fall their Attachments as to the Courts of Portsmouth & Douer in June next and so the action at this Court proceeded And after their libell was read wth the evidences in the Case produced & the Court had heard & Considered the pleas & Answe's The Court doe orde^r determine & decree that the deffendant pay vnto the plaintiff the sume of twenty pounds damage in mony for his breach of promise and no^t standing to his Agreement & Costs of Court seven pounds seven shillings

Att this Court m^r David Ande'son entred his libell & complaint against Robe't orchard searche^r deffendant for his Illegall & undue seazing of certein Raccoone skinns *or* aboard his ship after the libell and evidences in y^e Case produced were read *or* The Court declared and ordered that the plaintiff pay the defendant Costs of Court =

In Ans^r to y^e petiçon of Henry Lauton the keeper securing the peticone^r the keeper * is permitted *^* Goe to the meeting as is desired =
E R S

At y^e Adjournment of y^e Court of Assistants or Admiralty in Boston 9th octobe^r 1676 ;

In the Case of Benjamin Gibbs plaintiffe by his libell exhibitted to this Court against Henry Wheeler master of the ship Recouery for Refusing to deliuer him the sajd shipp according to charter party & for his damage susteyned thereby After the libell wth the evidences in the Case produced were read & duely Considered of The Court doth order & decree that the deffend^t proceed in the Intended voyage according to charter party mutually Agreed vpon and pay damages to the plaintiff twelue pounds in mony to be defaulcated out of his payment that shall Arise due by charter pty & Costs of Court three pounds & ten pence =

The Court Adjourned to the 12th of octobe^r 1676 :

* Probably an error of the record for "petitioner."

The Court mett and hauing heard what Caleb Indian & Calumbine Indian^s could say for themselves hauing binn open & murderous enne-myes why sentenc of death should not passe ag^t them The Court proceeded and sentenct them forthwith to be Carried by the marshall Generall to the place of execution & see that they hang till they be dead =

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1676

present
The Go^{vr}
Dept Go^d
Symon Bradstreet
Tho. Danforth
W^m Hathorn
John Pyncheon
Edw Tyng
W^m Stoughton
Tho Clarke
Joseph Dudley
— — — —

Esq^{rs}

Att A Court of Assistants or Admiralty held
at Boston 23 october 1676

Tho moore master of the Ship Phoenix plain-tiffe in behalfe of himself & owno's by his libell exhibbited to this Court against m^r Abraham Bartholmew & m^r Jacob Jesson his Agent deffendant after the Court had heard the libell & both plain-tiff & deffendants pleas & euidences in the Case produced the Court declares they Giue Judgment

for the plaintiff & orde^r & decree that the Deffendant pay unto the plaintiffe thirty one pounds damage in mony & Costs of Court five pounds fowe^r shillings the deffendant hauing prooved payment of twenty pounds at Bilbou & by m^r Rucke seventy sixe pounds seventeen shillings =

Samuel Daus master of the ship neuis factor plaintiffe ag^t the sajd shipp for his owne & seamens wages & his expences on hir as by his libell & Complaint exhibbited to this Court After the Court had heard the plantiffs plea^s & euidences in the Case produced the Court declares they found for the plaintiff and orde's and decrees that the sajd shipp & hir Appurtenances belonging to Richard Hall & hir earnings dischardge the sajd plantiffs Account Given in & allowed two hundred & forty pounds eighteen shillings & ten pence in mony for his & his seamen^s wages & his expences & Costs of Court three pound eleven shilling & sixepenc. = y^e wages of Edw: willjams Edw Benjamin and James Haukins marrin's wages excepted & Abated for two month^s left behind amounting to eight pounds thirteen shillings

Att A Court of Admiralty or Court of Asistants held at Boston 26 octo^{br} 76 Henry wheeler master of the ship recouery plaintiffe in behalfe of himself & owno's by his libell & Complaint exhibbited to this Court against Cap^t Benjamin Gibbs deffendant for breach of his

promise in refusing to give security to value of seven hundred pounds £ for performance of charter pty as by the lybell may appeare After the Court had heard the plaintiff & deffendants pleas wth the evidences in the Case the Court declared that they found for y^e plaintiffe that the deffend^t deliuer vp his Counte^pt of the charter party wth the first date of it & give seven hundred pounds security that the plaintiffe may proceed vpon the voyage Giving the plaintiff his Costs fowe^r pounds seven shillings =

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Att A Court of Assistants or Admiralty held at Boston 5th march 1676

Jn^o Dauenport marrine^r master of the barcque Endeavo^r by his libell & Complaint exhibbited to this Court plaintiff against Nicholas Paige merchant deffendant for his dispossessing him as master of sajd vessell & Refusing to pay him his monethly wages to value of thirteen pounds seven shillings or thereabouts as p Attachm^t & libell £ The Court after perversall of the libell Attachment sumons & evidences in the case produced they declared they Gaue Judgment for the deffendant Costs of Court —

present the Go ^d	
Dept Governor	
Symon Bradstreet	} Esq ^s
Daniel Dennison	
W ^m Hawthorn	
Edw. Ting	
Tho Clarke	
Joseph Dudley	
— — — —	

Att A Court of Assistants held at Boston the 6th of march 1676.

The Grand Jury was Impanneld made their presentments & was dismiss.

Isaack waldron plaintiff on Appeal from the Judgment or sentence of the last County Court in Boston in Jan^y. — After the Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury the Jury brought in their virdict they found for the defend^t Confirmation of the former Judgment & Costs of Courts: nine pounds & tenn penc = & to Jn^o ffloyd Constable sixe shillings. —

present the Go ^d	
Dept Go ^d	
Symon Bradstreet	} Esq ^s
Daniell Dennison	
Tho Danforth	
W ^m Hathorne	
Edw ^d Tyng	
Thomas Clarke	
Joseph Dudley	
— — — —	

Benjamin Gibbs plaintiff^s * against John Sweete || £ deffendan^t in an A^con of Appeale from the Judgment of the County Court in Boston in octobe^r last: After the Attachment Courts Judgment Reasons of

persons to serve on
the Grand Jury Im-
paneld & sworne
were
— — — —

* Error of the record for " plaintiff."

mr W^m Barthol-
 mew
 Moses Pajne
 John Blake
 Francis Johnson
 John Tappin
 w^m Lakin
 Jⁿ Biscoe
 Robert Seavor
 W^m Gary
 James Russell
 Jⁿ Heyman
 W^m Manning
 Rich^d Robbins
 W^m Pond
 Samuel Weekes
 — — — —

Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the evidences * of this Court the Jury brought in their virdict they found for the plaintiffe Reuersion of the forme^r Judgm^t & Costs of Court :

Joell Jenkins plaintiff against Isaack Waldron deffend^t in an Accon of Appeale from the Judgment of the last County Court in Boston in Janu^y After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts

Cap^t Thomas marshall plaintiff ag^t Isaack waldron deffend^t in an action of Appeale ffrom the Judgment of the last County Court in January in Boston After the Attachment Courts Judgments Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts thirty sixe shillings and eight pence

an. 8

persons Returnd on
 y^e service of 1st Jury
 of trjals for Ap-
 peales & for life
 ljmbe & banishmt &
 were sworne were
 — — — —

Barnard Capen tooke the oath of a freeman in open Court

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1676

mr Symon Lynde
 John Balston
 Sam Hoffe
 Rob^t Herrington
 James Barnard
 Jⁿ watson
 Suball seavor
 Peter frathingham
 Tho white
 Jⁿ fuller
 Jⁿ spring
 [Cleomen] maxfeld
 Barnard Capen
 filing 1 : 2
 — — — —

W^m Basset plaintiff ag^t Isaack waldron deffend^t in an action of Appeale from the Judgm^t of the County Court last in January in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgm^t & Costs of Courts twenty seuen shillings & 4^d. =

* The Secretary evidently wrote this word by mistake instead of the word "records."

Benjamin Muzey plaintiff ag^t Isaack waldron deffend^t in an Accō of Appeale from the Judgment of the last County Court in Jan^y in Boston After the Attachment Courts Judgm^t Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff^r reuersion of the former Judgment & Costs of Courts forty two shillings & tenn penc.

W^m Edmonds plaintiff against Isack waldron deffend^t in an Accō of Appeale from the Judgment of the County Court last in January in Boston. = After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are remaying on file wth the Reccords of this Court the Jury brought in their virdict they found for the defend^t Confirmation of the forme^r Judgment & Costs of Courts twenty seven shillings.

Jn^o Endecot & Tho Scottow Execcuto^s in trust to the estate of the late Andrew shepheard plaintiffe ag^t Benjamin Alford Attorney to John sweeting deffend^t in an Action of Appeale from the Judgm^t of the County Court in Boston in octobe^r last = After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are Remaying on this Courts file of Reccords the Jury brought in there virdict they found for the plaintiff^r Reuersion of the former Judgm^t & Costs of Courts twenty eight shillings =

W^m Obbinson plaintiffe against John Gilbert deffendant in an action of Appeale from the Judgment of the County Court in Boston in octobe^r last After the Court^s Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they finds for the deffendant that the plaintiffe wthin eight dayes shall deliuer unto him his leather which was properly his and fower pounds for damage thereof wth ten shillings more for damage for his Goods & prouissions & Costs of Courts And in default thereof

24 Jury
Persons Returned to
serve on y^e Jury of
Tryalls for Appeales
life limbe & banish-
ment sworne
— — — —
Cap^t Joshua Scottow
Jn^o Lowell
James Greene
Tho: Walker
Jnthan Broune
Isack Newell
Jn^o Crafts
Tim^o Symms
Tho olliuer
Tho Langhorne
Samuel Robinson
John Toleman
fil: 2:
— — — —

fil: 2

Endicot ag^t Alford

obbinson ag^t Gilbert

Exec Issued out
15th m^{ch} 167⁴

that the plaintiffe pay vnto the deffendant twenty pounds in mony: wth Costs of Courts Reuersing of the former Judgm^t fuety seven shillings & 6^d: —

m^r Jn^o Parmiter Leiu^t Edw^d willis m^r John Saffyn m^r Anthony Stoward * m^r Anthony Howard m^r Samuel Jacklin & m^r Ephrajme [^] † were chosen Constables for y^e Toune of Boston for y^e yeere ensuing = & tooke their oath in open Court

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1676

Seth Perry plaintiff ag^t Thomas Deane deffendant in an action of Appeale from the Judgment of the last County Court in Boston. — The plaintiff & deffend^t Appearing in Court & declaring they had agreed & the plaintiffe desiring libe^rty to wthdraw his Action the Court Approoved thereof & it was accordingly wthdraune =

Herbert ag^t Clarke Jn^o Herbe^t plaintiffe ag^t Mathew Clarke & Company deffend^t in an action of Appeale from the Judgment of the last County Court in Boston — this action as aboue was wthdraune =

Thompson ag^t Emery Benjamin Thompson plaintiff ag^t Jn^o Emmery deffendant in an action of Appeale from the Judgment of the County Court at Ipswich = After the Attachment Courts Judgment Reasons of Appeale & evidences in the case produced were Read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff Reuersion of y^e former Judgment & Costs of Courts 28^s =

Ben: Thomson Acknowledged y^t he tooke not Administration to Jn^o Godfrys estate & Renounceth y^e Administration

Pease ag^t way Jn^o Pease plaintiffe against Richard Way Atturney to m^s ffreake deffend^t in An action of Appeale from the Judgm^t of the County Court in Boston the parties Appearing in Court & declaring it that they were Agreed the plaintiff wthdrew his Accon as Aboue =

* This name (Anthony Stoward) was entered by mistake of the Secretary. He probably intended to cancel it. The other six names agree with the Boston record. See 7th Report, Record Com^r, p. 107.

† "Savage" on the Boston Record.

Jn^o Poole plaintiff against Charles oughtred deffend^t in an Accon of Appeale from the Judgment of the County Court in Boston = the parties Appearing in Court & being Agreed the plaintiff wth drew his action as aboue =

Poole ag^t oughtred

Phillip Greely plaintiffe against Jn^o young deffendant in an Action of Appeale from the Judgment of the County Court at Sallisbury After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury and are on file wth the Records of this Court the Jury brought in their virdiet they found a speciall verdict i e In Case the law title Appeales sect: 1: doe not barr nor Impede the Plaintiffe for whom the Action was found in the Court he Appeales from then wee finde for the plaintiffe the Confirmation of the former Judgment of Court i e tenn pounds more wth Costs of Court: But In Case the aforesajd law Barrs his Appeale then wee finde for the deffendant Costs of Courts The Court Affirmes to the 1st pt that the plaintiff might Appeale & so finds for the plaintiff as aboue = Costs seven pounds fowe^r shillings & nine pence || at 35^s p [m] boards ||

Greely ag^t Younge
executi Issued out
9 m^{ch} 7th

Isaack wooddey plaintiffe ag^t George Speere deffendant in an action of Appeale from the Judgment of the Comissione's Court in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdiet they found for the deffend^t Confirmation of the forme^r Judgment & Costs of Courts thirty three shillings & 4^d — —

wooddey ag^t speere

Edw^d Colcord plaintiffe ag^t Abraham Drake deffend^t in An action of Appeale from the Judgm^t of the County Court After y^e Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to y^e Jury & Are on file wth the Reccords of this Court the Jury brought in their virdiet on the question whither a marshall levying execution on person & estate & afterwards letting y^e person Goe free deteyning only y^e estat^e, the Resolution was on the Affirmative being in the fiery* thereof & found for y^e deffendant Costs of Courts three pounds eighteen shillings & sixe pence :=

Colcord ag^t Drake
1 Ac
execution Issued out
12 of march 76.
3: 18: 6d

* fieri?

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Colcord ag^t Drake Edward Colcord plaintiff ag^t Abraham Drake
deffend^t in an Action of Appeale from the Judgment
of the Salisbury Court After the Attachment Courts Judgment Reasons
of Appeale & evidences in the Case produced were read Comitted to
the Jury and are Remayning on file the Jury brought in their virdict
they found for the deffendant Confirmation of the former Judgment &
Costs of Courts fowe^r pounds fowe^r shillings & fowe^r pence =

Ring ag^t Worcester Robe^t Ring plaintiffe against Samuel worcester
deffend^t in an action of Appeale from the Judgment
of the County Court at Salisbury After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the
Jury brought in their virdict they found for the de-
Exec Issued out 9th fendant Confirmation of the former Judgment & Costs
m^{ch} 76 of Courts fuety nine shillings & two pence

Ring ag^t Buswell Robe^t Ring plaintiff ag^t w^m Buswell deffendant in
an action of Appeale from the Judgment of the County
Court at Salisbury = After the Attachm^t Courts Judgment Reasons of
Appeale & evidences in the Case produced were read Comitted to the
Jury and are remayning on file wth the Reccords of this Court the Jury
brought in their virdict they found for the deffend^t Confirmation of the
forme^r Judgment & Costs of Courts fowe^r pounds fowe^rteen shillings &
six penc =

Bennet ag^t Gridley Jn^o Bennet plaintiff ag^t widdow Elisabeth Gridley
deffendant in an action of Appeale from the Judgment
of the Comissione's Court after the Attachment Courts Judgment Reasons
of Appeale & Evidences in the Case produced were read comitted to the
Jury & are on file wth the Reccords of this Court the Jury brought in
their virdict they found for the deffend^t Confirmation of the forme^r
Judgment & Costs of Courts on Jn^o Bennets motion by his wife the
bond was chancerjed to six pounds in all 8^{li} 14^s. =

Lowle ag^t Gerrish Benjamin Lowle plaintiff ag^t Cap^t W^m Gerrish
deffend^t in an action of Appeale from the Judgment
of the County Court at Ipswich = this ac^on was called & by default
it fell =

Thomas woodbridge plaintiff against Nathaniel willjams deffendant in an action of Appeale from the Judgment of the County Court in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to y^e Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found a speciall virdict i e In Case that Goods estate & person be vnde^r Attachment & remajne so by Attest of the officer who se^ved the same wch Consequently must haue Issued eithe^r by Judgment of the Court to wch y^e pty was Attached or else cease in itself if thus circumstanced it Cann Come vnde^r the law title Conveyances sect 3^d & be Acompted Imprisonment or dures as also y^t in Case a pe^rsecuting * another vpon bond for performance of Award wherein he makes the first breach himself doe Impede his prosecution then wee finde for the plaintiffe the Reuersion of the former Judgment of Court & Costs of Courts = But if othe^r wise wee find for the defendant

Woodbridge ag^t W^m

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1677

Confirmation of the former Judgment & Costs of Courts. The Court on due Consideration finds for the deffend^t as aboue = The Court declared also by y^e Gouverno^r that they lookt not at it as a speciall virdict on Request of y^e plaintiff [h]is bond is chanceried to two hundred & forty pounds seven shillings & three pence mony = & Costs of Courts = ff^yorty one shillings & tenn pence

Henry Bennet plaintiff ag^t Herlakinden Symonds deffendant in an Acton of Appeale from the Judgment of the County Court at Salem = After the Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t tenn pounds mony & Costs of Courts = three pounds sixteen shillings & 4ⁿ: †

Bennet ag^t Symonds

execution Issued out
for 13. 16. 4. march
13. 74

Ephraim Turne^r plaintiff ag^t w^m Harris deffendant in an action of Appeale from the Judgment of the County Court in Boston After the Attachm^t Courts Judgment Reasons of Appeale & evidences in y^e Case produced were read Comitted to the Jury & are on file wth the reccords of this Cour^t the Jury brought

execution Issued out
& Ret^d. for 17: 6: 3

* Probably an error for "prosecuting."

† Error for "44."

in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts = thirty shillings.

Daniel Epp^s Attorney to Capt Tho: Daniel plaintiff ag^t Benj^t: marshall deffend^t in an Accon of Appeale from the Judgment of: .^A

The partjes Appearing in Court & declaring they were Agred the plaintiff wth drew his Accon as the other

Idem ^{us} Idem = || Edmnd marshall || was alike wth draune =

Idem ^{us} Edmund marshall from sajd Court this also was wth draune

Hudson ag^t messen- W^m Hudson plaintiff ag^t John messenger deffend-
ger ant in an Accon of Appeale from the Judgment of
the Comissione's Court After y^e Attachment Courts Judgment Reasons
of Apeale & evidences in the Case produced were Read Comitted to
the Jury & Remajne on file wth the Reccords of this
Court the Jury brought in their virdict they found for
the deffendant Confirmation of the forme^r Judgment
& Costs of Courts = twenty five shillings $\frac{6. \ 8 \ 11}{1 \ 5 \ 7. \ 13. \ 11.}$

Exec Issued out 13.
march 76. for 7: 13
11
- - - -

ma[lor]^s * sentenc Robe^t ma[lor] plaintiff on Appeale from the sen-
tence of the Comissione's i e m^r stoddard & m^r Clarke
After the sentenc & Reasons of Appeale wth Evidence in the Case pro-
duced were Read Comitted to the ~~Jury~~ || Bench || & are on file wth the
Reccords of this Court the ~~Jury~~ Court Confirmed the Judgment of the
Comissioners & Costs of Court =

Phillips sentenc Zachary Phillips plaintiff on Appeale from the
Sentence of the Comissione's i e m^r Stoddard & m^r.
Clarke = After the sentenc & evidences in the Case produced wre Read
& are on file the Court Confirmd the Judgm^t of the Comission^r &
Granted Costs of Courts

nowells sentenc michael Nowell plaintiff on Appeale from the
sentence of the Comissione's i e m^r stoddard & m^r
Clarke After the sentence & evidences in the Case produced were Read
Comitted to the Jury & are on file the Court Confirmd the Judgment
of the Comissione's & Granted Costs.

* Or Malres ?

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1677

Whereas at the County Court held at Boston in octobe^r last Charles oughtred Attorney to m^r Sampson Sheaffe obteyned Judgment against John Blackleach as principall debto^r and Against John Poole as his sue'tje for one hundred fivety fowe^r pounds five shillings & two pence in mony from which Judgment the said John Poole appealed but since is satisfied that the said debt is due therefore the said Poole Confesse^s Judgment against himself &c for the foresajd su^me together with all charges at the County Court and occasioned by the Appeale and In Regard the lawes frees sue'tjes if execution be not extended in a moneth yet he Assents that execution be Granted and may be levyed vpon himselfe and estate at any time after the expiration of three monthes if in the Interim the execution vpon the forme^r Judgment be not levyed upon the said Blackleach or his Estate This Judgment was Acknowl- edged in open Court as aboue written by John Poole merchant Against himself & his estate *℄* 12 m^{ch} 1676/7

pooles Judgm^t ag^t
himself:

Execution Issued
out for y^e [Su]me 29
June 77 & dd to
cha: oughtred
E R S

as attests Edw Rawson Secrety

Jn^e flynt of Salem being presented by the Grand Jury was Indicted by the name of John flynt for not hauing the feare of God before your eyes & being Instigated by the diuill did on or about the month of octob^r last kill Eljaze^r Coates Con- trary to the peace of ou^r Soueraigne Lord the King his Crowne & dig- nity the lawes of God & of this Jurisdiction.

Jn^e flinte Indictm^t

To wth Indictment he holding vp his hand at the barr pleaded not Guilty putt himself on his tryall by God & the Country the Jury was Impaneld & sworne and after all the euidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their vir- dict: they found him not Guilty of wilfull murde^r but Guilty of man- slaughter =

found Guilty of
manslaughter

Jn^e flynt the Court Considering of yo^r offence doe sentence yow to pay a fine to the Country of twenty pounds as also twenty pounds more to the father of the said Coates all in mony || wth y^e witnesses costs || & that yow stand Comitted till the sentence be pformed =

fined 20^{li} to y^e
Country & 20^{li} : to
Robert Coates

In Ans^r to the peticon of Edmund flynt in be- half of his son John flynt The Court doth Grant sixe

Ans^r to his peti^{ti}on

months time for payment of the fine^s Imposed for w^{ch} sufficient bond being Given to the Tresurer & partjes Concerned paying prison fees & chardges he is Released =

Peeter Bent Jun^d of Sudbury in New England being by the Grand Jury presented was alike Indicted for not hauing the feare of God before his eyes and being Instigated by the diuill did about 29 July last kill Joseph Bent late of the same Towne Contrary to the peace of our Soueraigne Lord the king his Crowne & dignity = to which he pleaded not Guilty put himself on God & y^e Country for his tryall: After y^e euidences in the Case produced were Read Comitted to the Jury and are on file the Jury brought in their virdict they found him not Guilty of wilfull murde^r but find him Guilty of killing him by Chanc medley ~~by~~ or || Casualty = Peter Bent the Court Considering of your offence doe sentence yow to pay as a fine to y^e Country tenn pounds & as a fine to yo^r Aunt the widdow of Peeter Bent the sume of twenty pounds both in mony & pay the charges of Court for y^e witnesses standing Comitted till y^e sentenc be pformed In Answe^r to the peticon of Peter Bent the Court []ed him also sixe months time for y^e payment of y^e fines as aboue & on like termes is dischardged =

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1677

W^m Waldron In-
dictm^t

W^m Waldron now Residant in Boston being presented by the Grand Jury was Indicted by the name of w^m waldron of Boston in the County of Suffolke ffor not Hauing the feare of God before his eyes & being Instigated by the diuill in Nouembe^r [^] by himselfe & his partne^r Henry Lauton as his orde^r wth whom he left his Comission did vnlawfully su^rprize & steale away seventeen Indian^s men weomen & children & in y^r vessell called the endeavour of Boston Carrjed & sent them to fflyall & there made sale of them Contrary to the peace of our Soueraigne Lord the king his Croune & dignity the lawes of God & of this Jurisdiction: entituled man stealing To which Indictment he pleaded not Guilty putt himselfe on God & the Country for his tryall = Afte^r y^e euidences & pleas in the Case were Read & heard the Jury brought in their virdict they found him not Guilty =

Jn^s Haughtons In-
dictment

Jn^s Haughton of Boston marriner being presented was Indicted by the name of John Haughton for that

yow not hauing the feare of God before you' eyes being Instigated by the Divill did take into you' vessell the endeavo' seventeen Indians men weomen & children & Carrjed them away to fflyall & there were sold Contrary to the peace of ou' Soueraigne Lord the King his Croune & dignity the lawes of God & of this Jurisdiction title man stealling to wch Indictment he pleaded not Guilty put himselfe on God & the Country for his tryall After the evidences & pleas in the Case were Read & heard the Jury brought in their virdict they found him not Guilty according to the Indictment of man stealling But Guilty he being Shipmaster of the Catch Endevo' wherein 17 Indians were re- ceaved on board & carrjed away to fflyall that he did not beare due testimony against the Imploye's act therein : — Jn^o Houghton the Court hath Considered yo' offenc & doe sentenc yow to pay a fine of twenty pounds in mony pay the ffes of Court & stand Comitted till the sentenc be performed =

In Ans^r to the petition of John Houghton the Court abates him tenn pounds of his fine he Giving security to y^e Trespas^r for the payment of the other tenn pounds in mony to the Trespas^r of y^e County * in six months wch is don & on file

Daniel Deane w^m keene Tho: wilde^r Jn^o wilder steven mattock & Tho Gobles Ju^d had their bill of Costs Granted them for their Attendance at the Court on the examination & Triall of y^e Gobles & Nath wilder wch came to fower^r pounds tenn shillings in mony to y^e Treasurer —

6 witnesses Costs in
y^e Gobles Case =

In Ans^r to the petition & Request of the Toune of Dedham Cap^t Daniel ffisher shall be & hereby is Impowred to Joyne such persons together in marriage as eithe^r of them be legally be † published in dedham and the other alike published in any other Toune or both there =

Cap^t ffishers power
to marry e^r

Jn^o Lawrence ju^d of Sudbury in the County of midlesex being presented by y^e Grand Jury was Indicted by the name of John Lawrence for that he not having the feare of God before his eyes & being instigated by the divill did Comitt Bestiality wth a mare in Cambridge bounds vpon the 5th day of September last Contrary to the peace of our Soueraigne Lord the King his Croune & dignity the lawe of God and of this Jurisdiction entituled Bestiality = to wch Indictment he pleaded not Guilty put

Jn^o Laurenc
Indictm^t

* Error in the record for "Country."

† This word is evidently superfluous.

himself on Tryall by God & the Country After the Indictm^t & all the evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found him not Guilty.

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Jn^o Earthy being brought before the Court was ordered to be secured till the Court Called him & his[^] & Left Gardiner acknowledged themselves bound in forty pounds apeece to John Hull Tresurer of the Country that the sajd John Earthy shall appeare before the Court & Answer w^t shall be layd ag^t him at or before the next Court of Assistants

M^r John Glouer was Called being bound ouer to this Court he was Called proclamation made three times in Court none Appearing Against him his bond was dischardged =

10 Sept 1676 whereas vpon the examination & Tryall of W^m waldron & othe's for seizing Indians at the Eastward & making sale of them at ffyall as it Appeared to the Court that part of the produce of that voyage was sold to m^r John Hubbard by m^r John Glouer who was Concerned in that voyage and the mony yet in the sajd Hubbards hand It was Concluded that the sajd mony should remajne in the sajd Hubbards hands Responsible to the charge of Recouery of sajd Indians or othe'wise vpon hearing might Appeare to be Just to* declared in Court to sajd Glouer being not entred as
17 Apr = 77 on Adj^t. Concluded the Court doeth now orde^r the entry of the same Accordingly

m^r Isaack Waldron hauing a chardge draune vp ag^t him by orde^r of the Court wch being read desired the libe^ty of the law for to haue a Jury wch was Granted he paying for y^e entry & was donn y^e charge was against m^r Isaack waldron of Boston Apothecary
(1st) for his Injurious and reflective speeches & bold Affirmations in his charging the wo^{pth} Symon Bradstreet Esq^r one of the Assistants of his maj^{ties} Court of Assistants in the open County Court in January last Contrary to trueth saying that the sajd m^r Bradstreet had not or did not present the originall bond he tooke Against him the sajd waldron binding him ouer to that Court to Answe^r

* Error of the record for "& so." See note on page 91.

for his mischarging seuerall pe'sons as Cap' Thomas Marshall Joell Jenkins *et* Againe & Againe saying that he presumed & denjed that to be the originall bond *et* In his (21y) bold Affirmation at the sajd County Court the same tyme of his tryall that what he had donn was by the Advice & orde' of sayd m' Bradstreet or else he had not don it & this Reitterated Contrary to truth =

for his bold reitterated abusive Reflection^s Againe & (31y) Againe in like words in his Reasons of Appeale from the Judgment of the sajd County Court to this Court of Assistants ag^t the s^d wo^p^r m' Bradstreet before the Country thereby endeavoring to bespatter & Asperse him of whom this Country hath had so long experience of his sincere able & faithfull Administration of Justice = which being Read wth the evidences in the Case produced Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found him Guilty of the whole charge in the 3 Articles = w^m*waldron the Court hath Considered of you^r offence & doe sentenc yow to pay fve pounds fine to the Country in money & to make Confession of yo^r Reflection vpon & Abuse of m' Bra[d]street in the three articles chardged against you

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1677

on Munday next to the satisfaction of the Court or pay twenty pounds mony as a fine to the Country standing Comitted till the sentence be pformed he had libe^{ty} to goe home on his parrol till 2^d day. when he Came & in open Court presented his Acknowledgment unde^r his hand & was =

To the Right Hono^{ble} Jn^o Leueret Go^u & the Rest of y^o honord magistrates now Assembled, at the Court of Assistants in Boston. =

The Humble peti^{ti}on of Isaac Waldron. =

Humbly sheweth unto yo^r Hono^s that he is troubled & much greived that he hath any way occasioned yo^r Hono^s Displeasure against him especially by his bold, & passionate speeches wch seemed to your Hono^s as though he endeavored to Impaire yo^r Hono^s Dignity, & Authority But it was neuer in his thoughts so to doe; as by his Actions any time this five or sixe yeares last past may appeare; in wch

* Error in the record for "Isaac."

Isack waldrons Acknowledgm^t time he hath alwayes obeyed you^r Comands and not only so but willingly, and Contentedly in all things whatsoeuer; and he supposeth hath troubled the Courts as litle as most haue donne; except these two last Courts, which he was Rather Compelled to it, then desired it wherefore he beseecheth you^r Hono^rs, that yow would be pleased, to excuse and pardon him & take of the fine from of him being it is the first time he was convicted of any Crime he Comitted against your Hono^rs, and also by reason his crime was only words spoke in his passion and was no such abominable action, but may be pardoned, if you^r Hono^rs please according to the Holy word of God as in math the 12th 32 wherein it is thus written whosoever speaketh against the son of man || which is to be vnderstood the son of God or God man || it shall be forgiven him, so consequently if what is spoken against Jesus Christ Shall be forgiven Then certainly yo^r poenitent petitione^rs words against you^r Hono^rs may be forgiven him. Againe in Luke 17. 3. If thy Brother trespass against thee Rebuke him and if he repent forgive him; if he trespass against thee seuen times in a day and seuen times a day turne againe saying I Repent Thou shalt forgive him which if you^r Hono^rs please to forgive you^r Humble petitione^r it shall oblige him neuer to offend yow more and for euer to pray for you^r Hoⁿo^rs that God would endue yo^r wth his holy spirit enrich yow wth his heavenly Grace prosper yow wth all Happiness and bring yow all to his euerlasting Kingdome through Jesus Christ ou^r Lord ou^r Saviou^r & Redeeme^r =

Isaac Waldron

his fine Remitted The Court Accept^s of this Acknowledgm^t & there-
to five pounds (5^{li}) vpon orde^s him to pay only the five pounds mentioned
in his sentenc to the Country =

Dep^t Go^o & [m^r w^m] Itt is Ordered that the Deputy Go^ono^r samuel
W^m Hathorne fined Symonds Esq^r. and majo^r willjam Hawthorne depart-
40^s apeece ing hence before the Court was Adjourned are fined
forty shillings apeece to be estreated to the Trespase^r to be charged on
their Accounts =

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Walter Gendall
bound ouer =

Walter Gendall was Called & seuerall euidences
Read y^t were produced ag^t him othe^s not being present
he was by mittimus sent to the keepe^r of the prison in Boston in
orde^r to his trjall nex^t Court of Assistants =

In the Case of Hugh Drury & mary his wife The
 Court after a due hearing of the Case & evidences
 therein produced Doe declare that they Doe enjoyne them both to liue
 togethe^r according to the ordinance of God as man & wife

Hugh drury & mary
 his wifes order

This Court was dissolved 13th march 1676. =

Att A Court of Admiralty or Court of Assistants
 held at Boston y^e 17th of Aprill 1677

In the Case of John Parreck master of the Catch
 Brothe's adventure by his Libell & Complaint exhib-
 ited to this Court plaintiffe against Henry Sandiford
 deffendant for his Injurious and Illegall entring on
 his sajd ketch on the 4th Instant Aprill wth three men
 & by force of Armes tooke & keepes possession of the
 sajd Catch C^r according to Attachm^t Dated in Boston
 9th of Aprill 1677 reference thereto being had: After the Court had
 heard & Considered the evidences in the Case produced they Declared
 Ordered & decreed that the marshall Generall once wthin twenty fowe^r
 howers goe on board the Catch Brothe's Adventure and deliuer the sajd
 Catch to John Parricke m^r. of Sajd Catch wth all hir sajles Anco's and
 appurtenances that belongs to hir & was in hir when he the sajd
 Sandford tooke hir into his possession And that the sajd Henry Sand-
 ford pay vnto the sajd John Parrick for his dammage the summe of
 eight pounds in money wth the Costs of this Court five pounds thirteen
 shillings =

present
 Jⁿ LeDet Esq^r Go^d
 Sam Symonds Esq^r
 dep^t Go^d
 Symon Bradstreet[t]
 Tho Danforth
 W^m Hathorne
 Edw Tyng
 Tho Clarke
 Jose: Dudley
 — — — —
 Jⁿ Parrick Gens }
 Henry Sandford }

whereas in the last Court of Assistants vpon the
 examination & tryall of W^m waldron & others, seizing
 Indians at the eastward & making sale of them at Fyall it Appeared to
 the Court that part of the produce of that voyage was sold to m^r John
 Hubbard by m^r John Glouer who was Concerned in that voyage & the
 mony yet in the sajd hubbards hands It was then Concluded that the
 sajd mony should remajne in s^d Hubbards hands Responsible to
 the chardge of Recouery of sajd Indians or othe^rwise vpon hearing
 might appeare Just & so declared in Court to sajd Glouer which being
 not entred as Concluded the Court doth now order the entry of the
 same Accordingly y^s 17th Aprill 1677: = *

from 10: march 76

* This entered twice on the record. See p. 88.

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present
 Jn^o Leueret Esq^r
 Go^o
 Sam Symonds Esq^r
 dep^t Go^o
 Symon Bradstreet
 W^m Hathorn
 Jn^o Pinchon
 Edw^d Tyng
 Tho^s Clarke
 Joseph Dudley — —
 — — —
 Wilkins & Loyds
 libells & Actions wth
 draune

Att A Court of Admiralty held at Boston 22th of
 may 1677.

Jn^o Wilkins master of the bareque flower in
 behalfe of himselfe & ouno's by his libell & Complaint
 plaintiffe against Nicholas Page deffendant for his
 Refusing to pay him for the Hire of the sajd vessell &
 his & his mates wages amounting in the whole to
 eighty-one pounds eighteen shillings as in & by the
 sajd libell doeth & may Appeare Dated 17 may
 1677.

The partjes being Called Appeared in Court &
 declared that they were agreed desiring they might haue their entry
 mony The Court ordered the secretary to deliuer them halfe their
 entry mony y^e plaintifff paying the office's ffees for seruing entry &
 = w^{ch} was don

Jame^s Loyd sole owno^r of the pinck Hopewell by his libell & Com-
 plaint plaintifff against Nicholas skinner late master of the sajd pinck
 deffendant for his selling & disposing of a parcell of Rigging belonging
 to the sajd Pinck & refusing to discouer & Giue an account on oath &
 as in and by the sajd libell & Attachment referenc thereto being had
 doeth & may Appeare = In this Case as aboue the partjes declaring
 they were agreed like orde^r past =

In the Case of m's Lydgett & Company plaintifff
 ag^t Jn^o Poole & deffendt the execution is Respitted
 till the nex^t Court of Assistants & then to be Issued
 out vnles the deffendant Reuerse the Judgment or
 any part of it before that time =

Att a Court of Admiralty held at Boston on Adjournment the 4th
 of August 1677.

Gideon Baston & Erasmus Bobbat plaintifff by their libell & Com-
 plaint exhibbited to this Court in behalfe of themselves & charles Bennet
 Jn^o Addams. w^m kirby & James pettee seamen & marrine's belonging to
 ship Lixborn * merchant whereof Barthol'mew Hopkins is master de-
 ffendant for his Refusing to pay them their wages for fwe moneth^s &

* Probably an error of the record for "Lisbon."

one halfe each man at twenty eight shillings p moneth, After the Court had heard the evidences in the Case produced which are on file The Court declares that they leaving one month^s wages for each man due in the sajd maste's hands belonging to each of of * the sajd Seamen from what he brought in & chardged on them particuarly both for brandy Clothes &c according to his Account given in & that he pay them in money i e to Erasmus Bobbat fuety nine shillings & two pence to w^m kirby three pounds eight shillings & two pence to Gideon Baston fowe^r

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pounds seven shillings & nine pence to John Addams three pounds twelue shillings & three pence to James Pettee forty two shillings & tenn pence halfe penny to Charls Bennet five shillings & tenn pence in the whole being seventeen pounds three shillings & eight pence halfe penny † all to be payd in money or in Case the sajd master refuse to give to each of the sajd seamen a sufficient dischardge from the particular sumes by his Account chardged on them for himself & those of whom they had the same then that he pay vnto each of the sajd seamen sixe pounds sixe shillings in money being fowe^r months & a half wages due to them & is in the whole thirty seven pounds sixteen shillings and is besides the || month^s || wages of each of them left in the sajd maste's hands and that he the sajd master pay the Costs & charges of this Court being seven pounds ten shillings

Courts Judgment in
Baston Bobbats &c
case ag^t Hopkins

execution Issued out
6 August 77 parties
Agreed & so not
served
[2] R. way =

W^m Kirby being Complayned on for mutinous Carriage against Bartholmew Hopkins master of the ship Lixbo'n merchant here on shoare After the Court had heard the evidences ordered that the sajd kirby make an humble acknowledgment of his miscarriage to his maste's satisfaction or that the master defaulke one halfe months pay out of his wages =

Att A Court of Admiralty held at Boston 5th
of Septembe^r 1677.

Jabez Hunt marrine^r & mate of ship Anne
by his libell & Complaint exhibbited to the Court

present Jⁿ Leueret
Esq^r Go^v.
Sam Symonds Esq^r
dep^t Go^v

* "of" repeated in the record.

† The sum does not agree with the items.

Symon Bradstreet
Daniel Gookin
Daniel Dennison
Tho Danforth
W^m Hawthorne
Jn^s Pynchon
Edw^d Tyng
Tho. Clarke
Joseph Dudley
— — —

} Esq^s

of Admiralty plaintiffe against John Ely master of the sajd ship deffendant for his deteyning his wages & expence & for deteyning eight hundred fforty & five pounds of neuis muscavado^m Sugar &c as in the sajd libell & Attachment Appearas : After the Court had heard & pervsed the evidences in the Case produced they declared they

found for the plaintiff and doe orde^r and decree that as an Issue of this Case the deffendant shall pay unto the plaintiffe twenty pounds five shillings in money on all Accounts to this Court exhibbited & y^t y^e master y^e deffend^t deliuer the plaintiff his staues wth payment for for * freight & Costs & chardges for this Cour^t :

In Ans^r to the peticon & motion of m^r Jn^o Poole A court of Admiralty was Granted him ag^t m^s Elisabeth Lydget & Company to be held at Boston on the 7th Instant at one of y^e clocke =

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present
Jn^o Leueret Esq^r Go^d
Sam Symonds Esq^r D^r Go.

Att A Court of Assistants held at Boston 4th of Septembe^r 1677 =

Symon Bradstreet
Daniel Gookin
Daniel Dennison
Tho: Danforth
W^m Hawthorne
Edw^d Tyng
Tho. Clarke
Joseph Dudley
— — —

} Esq^s

Richard Harris plaintiff against Paul Batt deffend^t in an Action of appeale from the Judgment of the Commissione's Court in Boston after the Attachment Courts Judgment Reasons of Ap-

persons Returnd to
Serve on y^e Grand
Jury & sworne are

m^r W^m Parkes
Ric^d wooddey
Benja Negus
moses Payne
Jn^o Anderson
Edw^d Grant
Antho Pearse
michael Ives
Rob^t williams
Jn^o Phillips
Tho Jenner
Timothy mather
Richd. Leeds
noah wisewall
— — —

peale & evidences in the case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdiet they found ff^r the plaintiff an Abatement of the forme^r Judgm^t to fiue pounds eleven shillings seuen penc & costs of Court thirty fowe^r shillings & eleven penc

|| m^r || Tho Deane || assignee of Jn^o Glouer || plaintiff against m^r John Hubbard deffend^t in an action of Appeale from the Judgment of the County Court In Boston in Aprill last After the Attachment Courts Judgment Reasons of Appeale and evidences in the Case

1st Jur

* " for " repeated in the record.

produced were Read Comitted to the Jury and remayne on file wth the Reccords of this Court the ~~Jury brought in their vi~~ The plaintiff wth drew his Accon & was ordered to haue his entry mony wch he had =

Jonathan Cane execcuto^r to the last will of Ruth Johnson administratrix to the estate of marmaduke Johnson deceased plaintiff ag^t Jn^o Heyward Attorney in behalfe of the Comissione's of the vnited Colonyes deffend^t in an action of Appeale from the Judgment of the County Court at charlsTowne in June last After the Attachment & evidences in the case Courts Judg^t Reasons of Appeale e^r were read Comitted to the Jury & are Remayning on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the forme^r Judgm^t & Costs of Courts thirty seven shillings & eight pence. =

person[s] Returned
to serve on the 1st
Jury for tryalls of
Appeales life lymb
& banishm^t

— — — —
m^r Nath^l: Graues.
Thomas Edwards
Asaph Elljot
Peter Lyon
Tho. Larkin
Samuel Rugles
Nathaniel Brewer
Symon Stone
Samuel Sterne[s]
Humphry Bradshaw
Job Hide
W^m Barret
— — — —

Jn^o Scarlet executo^r to the estate of Cap^t Samuel Scarlet deceased plaintiff against W^m Prout deffendant in an action of Appeale from the Judgm^t of the the * County Court in Boston in Aprill last afte^r y^e Attachment Courts Judgm^t Reasons of Appeale & evidences in the Case produced were Read Comitteed to the Jury and Remajne on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgm^t & Costs of Courts fforty three† shillings & eight pence =

Nathaniel Willjams plaintiff against Hanna Calley deffendant in an Accon of Appeale from the Judgm^t of the County Court in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and Remajne on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff reversion of the former Judgment & Costs of Courts twenty nine shillings =

* "the" repeated in the record.

† "three" written over "four."

Boston 7 Comissioners
sworne

Cap^t Tho Brattle major Tho. Sauage Cap^t Jn^o Richards m^r John Joylyffe m^r Humphry davy m^r Anthony stoddard Cap^t Tho clarke were p^resented to this Court as the seven comission^{rs} chosen by ye ffreemen for the yeare ensuing wch the Court allowed & Approoved of & tooke their oath all saue maj^r sauage y^t was absent [6 Sept 77]

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y^e names of y^e 24
Jury for tryalls of
life lymbe & Banish-
m^t and sworn were

— — —
m^r Elljs: Barron
Thomas Sauage Jun^r
Ephraim Sale
samuel Lynde
Thomas Bingley
Tobias Dauls
Jacob Hewen
Robt Searle diamist

6 Inst
Nath Coolidge
Nath Wilson
Timothy ffoster
w^m Dauls
Benj Thirston in
Roome of Robt
Searle 6 Inst.
— — —

Jn^o Endecott & Jn^o scottow plaintiffs ag^t Rich^d midlecot Atorney to Joseph Calley hir * husband deffendant in an Action of Appeale from the Judgment of the County Court in Boston July last After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to y^e Jury and are remayning on file wth the Reccords of this Court the Jury brought in their virdict they found for the defendant confirmation of the forme^r Judgm^t & Costs of Courts. —

Willjam waldron plaintiffe against James skinner deffend^t in an action of Appeale from the Judgment of the County Court in Boston in Aprill last after the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted

to the Jury and are on file with the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the forme^r Judgm^t & Costs of Courts thirty five shilling & two pence

Rauson vers Billings

Willjam Rawson plaintiff against Roge^r Billings deffend^t in an action of Appeale from the Judgment of the County Court in Boston in July last = After the Attachment Courts Judgment Reasons of Apeale & evidences in the Case produced were read Comitted to the Jury and are Remayning on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff reuersion of the forme^r Judgment & costs of Courts two pounds eleven shillings & eig[h]t pence =

Joy Ag^t Church

Thomas Joy plaintiffe ag^t Joseph Church deffendant in an action of Appeale from the Judgment of the

* Hanna Calley's? See page 95.

County Court in Boston in July last After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the forme^r Judgm^t & Costs of Courts fuetly three shillings =

Jn^o. Soames plaintiff ag^t Darby Bryant deffend^t
in an action of Appeale from the Judgm^t of the last
Comissione's Court After the Attachm^t the Courts Judgm^t Reasons of
Appeale & evidences in the Case produced were read
Comitted to the Jury & are on file wth the Reccords of
this Court the Jury brought in their virdict they found for the plain-
tiff reuersion of the former Judgm^t & Costs of Courts thirty six shil-
lings & ten penc.

Soames ag^t Bryant

36s. 10d. Costs

Jn^o Trumble plaintiffe ag^t Arthur Mason deffend^t
in an accon of Appeale from the Judgm^t of the County
Court at charlsTowne = After y^e Attachment Courts
Judgm^t Reasons of Appeale & evidences in the case
produced were read Comitted to the Jury & are on
file wth the Reccords of this Court the Jury brought in
their virdict they found for the deffend^t Confirmation of the former
Judgm^t & Costs of Courts nineteen shillings & ten pence =

Trumble ag^t mason

Jn^o Trumble ouned
in Court he neur Ac-
counted y^e debt now
sued for to this
ounor as payd or
any pt y^erof
— — — —

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Benjamin Tompson plaintiff against Jn^o Emery
sen^d deffendant in an Action of Appeale from the
Judgm^t of the last County Court at Ipswich — After
the Attachm^t Courts Judgment reasons of Appeale & evidences in the
Case produced were read Comitted to the Jury and are on file wth the
Reccords of this Court the Jury brought in their virdict they found for
the plaintiffe reuersion of the former Judgm^t & Costs of Court^r fferty
fowe^r shillings =

Tompson ag^t
Emery

44s:

Peter Egge^ton sue^ty for w^m maze plaintiff against
Daniel mackee deffend^t in An Action of Appeale from
the Judgment of the Comissione's Court in Boston in
July last After y^e Attachment Courts Judgment
Reasons of Appeale & evidences in the Case produced were read
Comitted to the Jury and are Remaying on file wth the Reccords of

makee ag^t maze or
Egge^ton =

57s: 4d mony

this Court the Jury brought in their virdict they found for the deffendant Confirmation of the form^r Judgment & Costs of Courts seventeen shillings & ffou^r pence. * =

Sheaffe ag^t. Palmer = Sampson Sheaffe plaintiff ag^t Tho. Palmer deffend^t in an Action of Appeale from the Judgment of the last County Court in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendt Costs of Courts : nine shillings & fowe^r pence. =

2^d Jur Cap^t walte^r Barefoot plaintiff against Xtophe^r
Barefoot ag^t Palmer Palme^r deffendant in an action of Appeale from the Judgment of the last County Court at salisbury = After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff an Abatement of the former Judgment to sixty pounds seven shillings & Costs of Courts sixe pounds fueteen shillings & sixe pence =

Execution Issued out 9: Sept. 77 for 19^l: 15: 6.

1st Pete^r Golding plaintiff ag^t James Russell excecutor
Golding ag^t Russell to y^e Last will & testament of the late Rich^d Russell Esq^r deffend^t in an Accon of Appeale from the Judgm^t of the County Court in Boston in Aprill last after the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for the deffend^t Confirmation of the form^r Judgment & Costs of Courts = thirteen shillings & 2^d

Bryan ag^t Soames Darby Bryan plaintiff ag^t Jn^o Soames deffend^t in
 = non suited = an Accon of Appeale from the Judgment of the last Comissione^rs Court in Boston the Action & y^e plaintiff was called three times y^e plaintiff made default by non Appearance & was non suited =

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Jn^o Griffyn plaintiff against Edw^d Goue deffend^t
 as to the saddle as in an Accon of Appeale from the Judgment of the last

* written over " sixteen shillings & ten pence."

* These words with the caret-marks are in the margin of the original record.

County Court at Salisbury After the Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted[^] the Jury and are on file wth the Records of this Court The Jury brought in their virdict i e a speciall virdict: i e if Left fiske had powe^r to Impresse a horse & man as a convoy when he was Returning from the country^s se^rvice then wee confirme the former Judgm^t of sallisbury Court & costs of Court if not wee find for the plaintiff the confirmation of m^r nathaniel Saltonstalls Judgm^t & Costs of Court The magis^{ts} on pe^rvsall of this Judgment finde for the deffend^t Costs of Courts: i e three pounds seventeen shilling & sixe pence =

Griffin ag^t Gove

memento y^e Council ordered Edw^d Gove to deliv^r to Jⁿ Griffin y^e bridle saddle & in his hands instead of his owne =

= Idem vsus Idem on Appeale from s^d salisbury Court as to Riding his horse After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file they brought in their virdict i e a speciall virdict i e if Leiuettenn^t fiske had powe^r to Impress a horse & man as a Convoy when he was Returning home from the Country^s se^rvice, then wee Confirme the forme^r Judgm^t of Sallisbury Court and Costs of Court if not wee ffinde for the plaintiffe the Confirmation of m^r Nathaniel Saltonstalls Judgm^t & Costs of Court [The Magists]* on pysall of this Virdict finde for the deffendant Costs of Courts three pounds sixteen shillings & fowe^r pence =

Griffin ag^t Gove

3 16 4

m^s Elisabeth || Dauenport aljas Dauis || relict & Administratrix to the estate of y^e late Cap^t Nathaniel Dauenport deceased plaintiff ag^t Edward Shippen deffendant in an Action of Appeale from the Judgment of the last County Court in Boston. After the Attachment Courts Judgm^t Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are remayning file the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgm^t & Costs of Courts thirty sixe shillings & tenne pence

m^s Dauenport || Aljas Dauis || ag^t Shippen

Judg^t D Dauenport 65: 17 10

John Saffyn Attorney to Return wayte plaintiff ag^t Jⁿ walley defen^t in an action of Appeale from the Judgment of the last County Court in Boston After the Attachment

Saffin ag^t Walley.

* This is written over the words "Three po[unds]."

[in fine] Judg^t for
walley 32. 5. 10

Saffins Abatement
20th & costs of y^e
Court
pap: 13:

Courts Judgment reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the ~~deffendant~~ || plaintiffe || an Abatement of the former Judgment to thirty pounds in mony & Costs of Court

matson ag^t dispaw

Thomas Matson plaintiff ag^t Henry Dispaw deffend^t in an action of Appeale from the Judgment of the last County Court at Salem After the Attachment Courts Judgment Reasons of Appeale and evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff reuersion of the f^ormer Judgm^t & Costs of Courts thirty 2 shillings & 2 pene

[71]

1677

Johnson ag^t Gardi-
ner =

Mathew Johnson plaintiff as Attorney to Richard Neua's plaintiff ag^t Richard Gardiner deffend^t in an action of Appeale from the Judgm^t of the last County Court in Cambridge in aprill last after the Attachments Courts Judgment reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury and are Remayning on file the Jury brought in their virdict they found for the plaintiff a reu^esion of the forme^r Judgm^t at Cambridg Court & Costs of Courts =

Ballard ag^t watts

Jervice Ballard plaintiff ag^t michael watts or his Attorney Benja DAVIS Deffendant in an action of Appeale from the Judgment of the County Court in Boston in July last after the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the form^e Judgm^t & Costs of Courts =

Bratle ag^t Knight &
purchis =

Cap^t Thomas Brattle plaintiff ag^t Richard Knight || admstrator c^r || & olliuer purchis deffend^t in an Act^on of Appeale from the Judgm^t of the County Court in || Boston || April last Afte^r the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read

Comitted to the Jury & are on file wth the Reccords of this Court: y^e Court ordering its procedure the Jury brought in their virdict they found for y^e plaintiff: the forfeiture of the bond of two hundred & twenty pounds sterling according to bond & Costs of Courts. =

It is ordered by the Court that no Judgment shall passe no^r execution granted in the abouesajd case ag^t Richard Knight as Admstrat^r to the estate of m^r Jn^o Payne vntill there be an orderly divission of the sajd estate among the credito^rs thereto as the law hath provided refferring to non solvent estates. = By y^e Court Edw^d Rawson Secrety

order phibbiting *
execution *et* 9 Sept^r
77 E R S

Cap^t w^m Hudson plaintifffe ag^t Jn^o Ruming deffend^t in an ac^on of Appeale from the Judgment of y^e Comission's Court in Boston in July last

Hudson ag^t Rum-
ings =

After y^e Attachm^t Courts Judgment Reasons of Appeale & euidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff and † abatement of the forme^r Judgment || to three pounds in money || & Costs of Courts twenty sixe shillings.

Robt Sedgwick plaintiff ag^t Rebeckah willis deffend^t in an Accon of Appeale from the Judgm^t of the Comission's Court in Boston in may last after the Attachment Courts Judgmen^t Reasons of Appeale & euidences in the Case produced were Read Comitted to y^e Jury & are on file the Jury brought in their virdict they found for y^e plaintiff reuersion of the forme^r Judgment & Costs of Courts twenty eight shillings & 4^d

Sedgwick ag^t Willis

[72]

1677

Mary Drury plaintifffe on Appeale from the sentenc of the County Court last in Boston After the Judgment Reasons of Appeale & || euidences || were Read & pervsed by the Bench to whom she refferd himself the magis^{tr} found Confirmation of the forme^r Courts sentence i e. fue pounds fine[:] and enjoyned hir & sajd Hugh drury to Appeare before the Court on the Adjornmt the 9 of octob^r ~~next~~ next.

Mary Drury's Ap-
peale

* The Secretary used the character p here by mistake for g.

† Probably an error in the record for "an."

w^m phipps plaintiffe against * Dudson
 deffendant in an action of Appeale from the Judgm^t
 of the County Court in Boston in Aprill last The
 plaintiff appeared in Court & Affir[min]g that they
 had Agreed betweene themselues had liberty to
 wthdraw his action wch he did =

M^r Freake † ag^t Nathaniel Robinson
 deffend^t who alike as Aboue wthdrew hir Action =

Walter Gendall his
 Indictm^t presented & Indicted by the Grand Jury & left to
 tryall = was brought to the Barr & was Indicted by
 the name of walter Gendall for no^t hauing the feare of God before his
 eyes & being Instigated by the Divill in the tyme of the warr wth the
 Indians in a perfidious & treacherous way against the Inhabitants of
 this Collonyes peace and safety sought to betray them into the ennemyes
 hands by his Indeavo^r & Counsell Contrary to the peace of our Souer-
 aigne Lord the King his Croune & dignity || & || the law of this Comon-
 wealth to w^{ch} Indictmen[t] he pleaded not Guilty Refferd himself for his
 tryall to the Bench. The magistrates hauing duely
 weighed the Indictment & evidences in the Case pro-
 duced against him found him Guilty of the Indictmen^t & doe therefore
 sentence yow to Runn the Gantelop thrô the millitary Companies
 in Boston on the 10th Instant wth a Roape about his
 necke that he forfeit all his lands to the Country and
 be banished out of this Jurisdiction to be gonn by
 y^e 6th of october nex^t on poenalty of perpetuall Imp^risonmen^t if he Re-
 turne Againe & discharging the Costs & charges of the prosecution :

Jn^o watts being presented & Indicted by the Grand
 Jury was brought to the Barr & was Indicted by the
 name of John watts marriner for not hauing the feare
 of God before you^r eyes being Instigated by the Divill in the tyme of
 the warr wth the Indians did in a perfydious & treacherous way against
 the Inhabitants of this Colony^s peace & safety, to betray them into the
 ennemyes hands & hath in or about June last traded powde^r & shott
 whereby the ennemy hath binn supplied Contrary to the peace of ou^r

* This space left blank in the original.

† Or Treake.

Soueraigne Lord the King his Croune & dignity & y^e Act of the Council of this Commonwealth.

[73]

1677

~~To which Indictment~~

To wch Indictment he pleaded no^t Guilty put himselfe on his Tryall by God & the bench The Court on consideration of all the evidences in the case produced doe sentence yow to Runn the Gantelop thrô the Company^s that trayne in Boston on second day nex^t being the 10th Instant & Give in his bond of one hundred pounds for his Good behaiour & pay the Costs || & charge || of the prosecution standing comitted till the sentence be performed =

Watts censure

Jn^o Buttery of marble head was presented & Indicted for Comitting Beastiallity & left to his tryall

Buttery praented

Whereas Captaine Thomas Bratle contrary to lawe in his reasons of Appeale presented & by him owned in this Court in prosecution of his Appeale against the Administrato^r to the estate of John Payne doth highly reflect vpon the Hono^r of the County Court of Suffolke that barred his plea & granted non suite as donn wholly vpon self Interes^t & for the obtinement of their owne claymes and contrary to law and this after this Courts sence given thereabouts and time Allowed him for a Just resentment thereof which yet by his petition he rather deffends then otherwise The Court doth therefore sentence him to be discharged from his Comission as Comissione^r in the Towne of Boston & pay one hundred pounds mony & stand comitted vntill his sentenc be p^eformed

Cap^t Bratles sentencon his peticon his fine Abated to 20^{li} & y^e sent as to y^e Comissioners place Remitted

Vpon the motion of Abiell Lambe in behalf of his wife late widdow of Joseph Buckminster referring to hir thirds of sajd Joseph^s estate m^r Thomas weld & Thomas Gardiner sen^d are Appointed a Committee to Repaire to s^d Lands & set out hir thirds according to lawe

Order abo^t Lambs thirds

W^m Bowdish fined
10^{li}
abated to 5^{li}

W^m Bowdish of Salem fined tenn pounds for his neglect [or] non Appeareance on his peticon & payment of 5^{li} to y^e marshall y^t was [carrjed]: his fine Abated 5^{li}

present
Jn^s Leffet Esq^r Go^d
symon Bradstreet
Daniel Gookin
Thomas Clark

At A meeting of the Council held at Boston: 1st
of Novembe^r 1677

At y^s Council a cirtifficat was presented to the Council unde^r Charles Gott clarke by orde^r of the militia of wenham y^t John Bilson & Benja. Kimball were Imprest & marched on the Country^s se^rvise vnde^r the Comānd of Cap^t Hathorn on 25 octobe^r & Returnd out of the s^d se^rvise on the 24th of Decembe^r & Returnd their Armes also = vnde^rwritt These persons aboue named were left in Garri-son at Newitchawannick in Yorkshire & had a ticket from myself wch they alleadge they haue lost: Ri: waldron sar[j^t] majo^r

It is ordered that the Comittee of the Army pass this bill to the Tresurer for payment they taking notice that the bill is s^d to be los^t e^r that it come not Againe.

[74]

1677

In Answe^r to the petiçon of Elisabeth Bowe's Affir[m]ing therein that hir husband heard not of the Generall Courts Referring his petiçon to the nex^t Court in middlesex till it was past It is therefore ordered that the Secretary estreat the petiçon & evidences in Benanuel Bowe's case to the nex^t County Court at Cambridge to whom It is Referrd =

1st novembre 1677

Vpon the complaint || & peticon || of m^r Isack foster that there is due to him from kittery the sume of seventy pounds e^r The Council Judgeth it meet to Reffer the peticone^r to the County Court at Yorke for taking such effectual course & making such orde^r therein as may Ans^r the peticoners Just expectation therein :

p E R S

m^r w^m Pope being Complained on for his abusive Carriage in Cursing of the Authority here making an orde^r to prevent the spreading of y^e smale pox: as also defaming all the weomen in Boston e^r. After the evidences p^rduced ag^t him were Read & himself no^t willing to be trjed by a Jury but reffering himself to the Gouverno^r & magistrates The Court declared they had Considered of his offences & sentenct him to be whip^d wth twenty stripes or to pay twenty ma^kes

or
13th. 13. 4th fine

fine in money to y^e Country Treasurer standing Comitted till the sentanc be performd

[Blank space.]

[75]

1677

Att A Court of Admiralty or Court of Assistants held at Boston the 7th 7mbe^r 1677

present all y^e mag-
ists =

John Poole merchant plaintiff against Elisabeth Lydgett excec-
trix to Peter Lydget late of Boston merchant owno^r of the catch Con-
tent & Company the sajd Poole hauing by his petiçon & libell com-
plained of breach of charter party in that the Catch
Content lett to him & w^m Trott in a voyage to fflyall
for three month certeine and nine months vncerteine
It Appearing by the euidence that the sajd vessell
being disabled by great tempests vpon the sea & the
owno's hauing not prouided materialls for the repaire
of the sajd vessell to make hir sufficient for to bring home the mer-
chants Goods she was sould at fflyall for one hundred mill Rees vpon
the Consideration of the whole Case The Court finds for the plaintiffe
and doe decree that the deffendant pay to the plaintiffe fowe^r hundred
pounds damage in money & costs of Courts seven pounds fowe^r shil-
lings =

Poole ag^t Lided
/ent: here should
haue binn ent: be-
fore =

vide p 45

Att A Court of Admiralty or Court of As-
sistants held at Boston 27th Septembre^r 1677

Jn^o Keetch * now Resident in Boston by his
libell & Complaint plaintiff against Henry Allin of
sajd Boston merchant deffendant for his Refusing
to give him an Account of the dispose of a parcell
of Ke'sy^a belonging to m^r w^m Habe'feild of Bristoll & consigned by him
the sajd plaintiff to the sajd Allin deffendant as in and by the sajd
libell appeareth. After the Court had heard all the pleas and eu-
idences in the Case produced The Court found for the deffendant and
did orde^r and decree y^t the said plaintiff shall dischargd the charge
of the Court & pay the deffendant his costs sixe shillings =

Jn^o Leueret Esq^r Go^d
Symon Bradstreet
Daniel Gookin
Tho. Danforth
Edw^d Tyng
Thomas Clarke
Joseph Dudley } Esq^r

Jn^o Keech Acknowledged in Court that he had received an eleven
hogsheads of fish from Henry Alljn as part of the produce of fueteen

* Or Reetch.

peeces of Kersy of m^r Habbe^rfeilds sent by the sajd Keech to value of about fforty fowe^r pounds = E. R. S.

At a Court of Admiralty held at Boston 9th of october 1677

present
Jn^e Leueret Esq^r Go^d
Symon Bradstreet
Daniel Gookin
Tho. Danforth
Edw^d Tyng
Tho. Clarke
Joseph Dudley
— — — —

Esq^{rs}

Nathaniel Cary master of the Catch Elisabeth & margaret plaintiff in behalfe of himself & Company against the sajd ketch for his & their wages for eleven months at twelve pounds five shillings mony In y^t Lancelot Talbot his Im-
ployer sent him home from Jamajca wthout any effects & wth a bare noate or bill chardged by him on m^r w^m Harris of Boston who for want of effects Refused to answer his bill and they being yet wthout their wages for which they Craue the decree of this Court against sajd Catch as in the sajd Libell appears After the Court had heard & pervsed the evidences in the Case produced, doth decree for the plaintiff one hundred pounds two shillings & tenn penc in mony wth the costs & chardges of this Court three pounds ten shillings & fowe^r penc =

[76]

1677

Att A Court of Assistants or Admiralty held at Boston 15th octobe^r 1677

present
Jn^e Leueret Esq^r
Go^d : *

In the Case of Ephraim Angier plaintiff ag^t Edward winslow master of Catch John^s Adventure The Court vpon all plea^s & evidences vpon file Read & Considered finde & decree for the plaintiff the Goods sued for in particullar as mentioned in the libell & owned by the mate or pay five hundred pounds money & Costs of Court three pounds twelue shillings =

In the Case of John Noyse plaintiffe against Edward winslow master of Catch Johns Adventure = The Court finds for the plaintiff the Goods sued for in the seuerall particullars mentioned in the libell as owned by the mate vpon pœnalty of three hundred & fiuety pounds money & Costs of Court three pounds fueteen shillings

present
Jn^e Leueret Esq^r Go^d

Att a Court of Admiralty held at Boston 20th decembe^r 1677

* No others named as present.

The ship Speedwell being by warrant & orde^r from the Hon^{ble} Go^ono^r directed to the marshall of Suffolk seized & secured wth hir furniture & Ralfe Shelly master & Luke Raster merchant summoned to appeare at this Court to Answer for their breach of the Law for their bringing and Landing of Brandy & breach of the law in that case the warrant & Returne of the marshall therevpon was Read the partjes Allegations & pleas wth the evidences in the Case produced The Court hauing Considered wha^t hath binn prooved & Alleadged in the Case of sajd ship speedwell doe Adjudge the sajd ship speedwell Ralph Shelly master & Luke Raster merchant free from the present seizure hauing entred in England & producing Cocket for their Cargoe But

Symon Bradstreet
Thomas Danforth
W^m Hathorn
Edw. Tyng
Tho. Clarke
Joseph Dudley } Esq^{rs}

whereas It Appea^rth to this Court that Ralph shelly master & Luke Raster merchant of ship speedwell haue broken bulke, landed in this Harbo^r of Boston Brandy wthout making entry thereof according to law: This Court Doe Adjudge them to pay twenty shillings p tunne, according to sajd law being sixty pounds money =

In Ans^r to the petition of Ralph shelly || m^r || & luke Raster merchant of ship speedwell the Court Judgeth it meete on the peticone's payment of thirty pounds money to the Tresurer the othe^r part of their fine is Remitted them. = And It is ordered the Tresurer pay the Costs & charges of the Court =

[77]

1677

Att A Court of Assistants held at Boston on y^e 5th of march 1677

Edward Goue Plaintiffe against Henry Ben-net defendant in an action of Appeal from the Judgment of the las^t County Court at Salem After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought

present
Jⁿ Leueret Esq^r Go^o
Samuel Symons Esq^r
D^r Go^o
Symon Bradstreet
Daniel Gookin
Daniel Dennison
Tho Danforth
w^m Hawthorne
Edward Tyng
Thomas Clarke
Joseph Dudley } Esq^{rs}

in their virdict they found for the
1st plaintiffe reuersion of the forme^r
Ju: Judgmen^t & Costs of Courts fuety

one shillings and two pence =

The names of y^e
Grand Jury sworne
were =
m^r Thomas Hastings
Jⁿ Harrison sen^d

Joseph How
 Thomas Gardiner
 John Vyall
 W^m Hearey
 Joshua Tydd
 W^m Dady
 Roger Sumner*
 Enoch Wiswall
 Thomas Weld
 Samuel Williams
 John Stone
 W^m Bond
 — — —
 The names of the
 first Jury for Ap-
 peales life limbe or
 Banishment sworne
 were =

— — —
 m^r John walley
 w^m Griggs
 w^m Coleman
 Rich^d Lowden
 Hen: Balcom
 John wales
 Gamaliel Beamon
 [señ]
 Giles Pason
 Nathaniel Holmes
 Thomas Prentice
 [señ]

Richard Eccles
 w^m Godard —
 — — —
 The names of the
 second Jury of
 tryalls as above
 sworn
 — — —
 m^r samuel seawall
 Isaack walker
 Jabez Salter
 Daniel Smith
 James Smith
 Tmothy Tyleston
 Sam: Paul
 stephen willjams
 Jⁿ Henneway
 Jⁿ ward
 Tho Langhorne
 John Bisc[o]
 — — —

Capt Dudley Bradstreet Left Jⁿ Osgood c^r
 Selectmen of Andiver plaintiff^s against Thomas ffuller
 deffendant in An action of Appeale from the Judg-
 ment of the County Court at Ipswich After the
 Attachment Courts Judgment Reasons of Appeale
 & evidences in the Case produced were Read Comit-
 ted to to† the Jury & are Remayn-
 ing on file wth the Reccords of this Court the Jury brought in their
 virdict they found for the deffendant Costs of
 Courts [1^u] 8^s 6^d 1^u
 Ju

Jⁿ knight & Tristram Coffin Attorney^s for y^e
 Towne of Newbe^y plaintiffs ag^t m^r Richard Dumme^r
 señ deffend^t the Case was Called the Attourney^s lette^r
 of Attorney no^t being Jointly & seuerally Jⁿ knight
 being dead the Court declared Actio moritur persona &
 so it fell. = y^e deffend^t had his costs thirteen shil-
 lings =

Jⁿ Dix[e] plaintiff against Jerremiah morse
 deffend^t in an action of Appeale from the Judgment
 of the last County Court at Charles Towne After the
 Attachmen^t Cour^s Judgmen^t Reasons of Appeale &
 evidences in the Case produced were read Comitted to
 the Jury & are on file wth the Reccords of this Court
 the deffend^t pleading it was matter of law & therefore
 it belonged to the Bench & not to the Jury The
 magis^t hauing heard the case pleas & evidences
 therein declar^d they found for the deffend^t Confirmation
 of the forme^r Judgmen^t at charls Towne Court
 || & || Costs of Courts fowe^r pounds twelue shillings
 & ten pence =

Jⁿ Dix plaintiffe against John Hamond de-
 ffendant After the Attachment Courts Judgment Reasons of Appeale
 & evidences in y^e Case produced were Read Comitted
 to the Jury and are on file wth the Reccords of this
 first
 Ju:

* Probably an error in the record for "Sumner."

† "to" repeated in the record.

Court The Jury brought in their virdict they ffound for the deffendant
Costs of Courts twenty shillings & eight pence

Robe't orchard plaintiff against Samuel Pollard deffendant in an
action of Appeale from the Judgmen' of the Comissione's Court in
Boston After the Attachment Courts Judgmen' Reasons of Appeale &
evidences in the Case produced were read Comitted to the Jury and
are Remayning on file wth the Reccords of this Court
the Jury brought in their virdict they found for the deffendan' fuety fue shillings & tenn pence =

2^d
Ju

W^m Greene plaintiff ag' John David & Solomon
Rainsford deffend' in an Action of Appeale from the
Judgment of the County Court in Boston = After the Attachment
Courts Judgment Reasons of Appeale & evidences in the Case produced
were Read Comitted to the Jury & are on file wth the Reccords of this
Court the Jury brought in their virdict they found
for the deffendant Costs of Courts forty three shillings
& tenn pence =

exec Issued out

||exec Grted 8 Apr. ||

Edmond Bridges Attorney to phillip English plaintiff ag' James
Browne Attorney to Benjamin mazure deffend' in an action of Appeale
from the Judgm' of the County Court at Salem After the Attachmen'
Courts Judgment Reasons of Appeal & evidences in the Case produced
were Read Comitted to the Jury & are on file wth the Reccords of this
Court the Jury brought in their virdict & found for the Deffendan'
Costs of Courts fuety nine shillings & sixepenc =

[78]

1677

Philip English plaintiff ag' Benjamin Mazure deffend' in an action
of appeale from the Judgment of the County Court at
Salem. After the Attachment Courts Judgment
Reasons of Appeale & evidences in the Case produced were read
Comitted to the Jury & are on file wth the Reccords of this Court the
Jury brought in their virdict they found, Costs of Courts & tenn shil-
lings damage = the partjes Agreed their Costs in both Cases & damage
& Remajned due to James Browne Attorney to mazure thirty six shil-
lings & sixpenc

English ag' Mazure

W^m Pitman plaintiff on Appeale from the sentenc
of the last County Court at Boston & being Called
three times but not Appearing to prosecute his Ap-

Pitmans Bond for
psecution of Ap-
peale forfeited

peale his bond was declared forfeited & Rob^t Rose had his Costs tenn shillings & sixe pence

Robe^t smith plaintiffe in an Action of Appeale ag^t Nathaniel Batchiler deffend^t After the Attachment Courts Judgment Reason of Appeale & evidences in the Case produced were Read Comitted to y^e Jury & are on file wth the Reccords of this Cour^t the Jury brought in their virdict they found for the plaintiff Reuersion of the former Judgment the land in Controuersy & Costs of Courts six pounds twelve shillings & eleven pence =

Gardiner ag^t Pudney costs 21:4 wch was paid & 20^s Repd to Gardin^r in pt of Rent c^r. = Samuell Gardiner plaintiff ag^t Jn^o Pudney Deffendant in an ac^on of Appeale from the Judgm^t of the County Court at Salem After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to y^e Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the Deffendant Confirmation of the forme^r Judgment & Costs of Courts twenty one shillings & fowe^r pence

Jn^o Giffords plaintiff ag^t Jn^o Lee deffend^t in an Action of Appeale from the Judgment of the County Court At Ipswich = After y^e Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to y^e Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff Reuersion of the former Judgment & Costs of Courts fowe^r pounds one shillings * & eight pence

flood ag^t Legg exec Issued out for 16th 9. 5. 1st Ap^{il} 77 James flood plaintiff ag^t Samuel Legg deffend^t in an action of Appeale from the Judgm^t of the County Court at Boston in octobe^r last After the Attachment Courts Judgm^t Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury and are on file the Jury brought in their virdict they found for the plaintiff Confirmation of the forme^r Judgm^t & an Addition of seuen pounds eleven shillings damage & Costs of Courts two pounds fve shillings & two pence in all sixteen pounds nine shillings & fve pence

* Error in the record for "shilling."

Jn^o Blainy plaintiffe ag^t Elisabeth King exexutrix
 e^r Daniel King Ralph King e^r Guardians to y^e
 children of the said Blainy deffendts in an action of
 Appeale from the Judgm^t of the County Court at
 Salem After the Attachment Courts Judgment Reasons of Appeale &
 evidences in the Case produced were Read Comitted to y^e Jury & are
 on file the Jury brought in their virdict they found for the plaintiff
 Reuersion of the former Judg^t & Costs of Courts three pounds two
 shillings & 4^d

Blainy ag^t y^e Kings
 3. 2. 4
 of wch
 [fil.]⁵

[79]

1677

Samuel Daus plaintiffe against John Winsley
 deffendant in an Action of Appeale from the Judg-
 ment of the County Court at Boston in octobe^r last
 After the Attachment Courts Judgmen^t Reasons of Appeale & eui-
 dences in the Case produced were read Comitted to the Jury and are
 on file wth the Reccords of this Court the Jury brought in their virdict
 they found for the deffend^{nt} Confirmation of the former Judgment &
 Costs of Courts = The execution is Respitted till the end of the first
 sessions of the Generall Court and the sue^tj^es to Continue a moneth
 after =

2 Jur
 Daus ag^t winsley

Hezekiah Vsher plaintiffe against John Vsher
 deffendant in an ac^on of Appeale from the Judg-
 ment of the last County Court in Boston After the Attachment Courts
 Judgment Reasons of Appeale & evidences in the
 Case produced were read Comitted to the Jury and
 are on file wth the Reccords of this Court the Jury
 brought in their virdict they found for the plaintiffe reuersion of the
 forme^r Judgment & costs of Courts thirty two shillings

2 Jur

Vsher ag^t Vsher
 2 Ju

Cap^t James Olliuer & Thomas Dexter Ju^d pl^t
 ag^t the Toun^e of lynn[e &] the selectmen of lynn
 Tho. Laughton e^r deffend^{ts} in an Ac^on of Appeale
 from the Judgment of the County Court at Ipswich
 as to a nonsuit = the Accon was called & the Court After hearing the
 Court of Ipswich Judgment Reasons of Appeale & Ans^r thereto in
 the Case Doe Judge meete to conti[nue] this Action to the determina-
 tion of the Generall Court vpon the Question whither a clarke of the

Olliuer e^r ag^t Tho
 Laughton e^r Select
 men of Lynne

writts in one Toune hath powe' to graunt Sumons or Attachmen^{ts} in another Toune =

Joseph Dell & W^m Longfellow plaintiffs against
 Child ag^t Longfello^r & Dell
 37th * 00 10^d
 Allwin Child deffend^t in an action of Appeale from the Judgment of the County Court in Boston in octobe^r last After the Attachmen^t Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury and are on file the Jury brought in their virdiet they found for the deffend^t Confirmation of the forme^r Judgmt & Costs of Courts on y^e plaintiff^s Request the Bond was chanceried to thirty six pounds mony & costs of Courts forty shillings & tenn pence =

W^m Longfellow & Joseph Dell plaintiffs ag^t
 Oxe ag^t Longfello^r & Dell
 † 137th : 3^d. 4^d
 Robert Oxe deffendant in an action of Appeale from the Judgement of the County Court in octob^r last After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury found for the deffendant Confirmation of the form^r Judgmt & on the plaintiff^s Request the Court chanceried the bond to one hundred thirty fue pounds mony & Costs of Courts : forty three shillings & fowe^r penc :

charles Lydget sue^{ty} for Anthony Roope plt
 Lydget Ag^t Huson
 against Thomas Hughson deffend^t in an action of Appeale from the Judgment of the County Court at Salem After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury and are re-mayning on file wth the Reccords of this Court the Jury brought in their virdiet they found for the deffendant Confirmation of the former Judgment & Costs of Courts

mem^o: Bridg 3^d 10
 filing beside y^e othe
 8 : 08^d e^r 12 6

[79^s]

1677

Hudson Leueret Attorney to Jarvis Ballard
 Leuet o Ballard ag^t watts p Ben Davis
 plaintiff ag^t mi[ch]aell watts & his Attorney Benjamin davis deffendant in an action of Appeale from the Judgmt of the County Court in Boston in octobe^r last After the Attach-

* Error for "38th."

† Changed from 127th.

ment Courts Judgment Reasons of Appeale & othe' evidences in the Case produced were Read Comitted to the Jury & are on file the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgmen' & Costs of Courts = fiue teen shillings & sixepenc.

Richard Knight plaintiff ag' Thomas Heath de-
ffend' in an Action of Appeale from the Judgment of
the Comissione's Court After the Attachm' Courts Judgm' Reasons of
Appeale & evidences in the Case produced were Read Comitted to the
Jury & are on file the Jury brought in their virdict they found for the
deffendan' Confirmation of the former Judgmen' & Costs of Courts
thirty one shillings & fowe' pence. =

Knight ag' Heath

m' John Smith plaintiff against m's Elizabeth
Lydget deffend' in an Action of Appeale from the
Judgment of the last County Court in Boston after the Attachment
Courts Judgment Reasons of Appeale & evidences in y^e case produced
were read Comitted to the Jury & are on file wth the Reccords of this
Court the Jury brought in their virdict they found for the plaintiff
Reuersion of the forme' Judgment & costs of Courts thirty five shil-
lings & eight penc.

Smith ag' Lidgett.

Leonard Douden plaintiff on Appeale from the
sentenc of the last County Court in Boston After the
Reasons of Appeale & evidences in the Case produced
were read Comitted to the Jury and are on file the Jury found for y^e
plantiffe y^t he was no' guilty of y^e matter chardged ag' him & Reu'st
the forme' sentenc

Douden's sentenc
Reu'st

Phillip Bullis plaintiff ag' Hudson Leueret Ad-
ministrator to y^e estate of the late Bazaleell Payton
deffendant In an action of Appeale from y^e Judgment of the last
County Court at Boston After the Attachm' Courts Judgment Reasons
of Appeale & evidences in the Case produced were Read Comitted to
the Jury and are on file the Jury brought in their virdict they found
for the plaintiff Reuersion of the forme' Judgmen' & Costs of Courts
thirty fowe' shillings & ten pence =

Bullis ag' Leueret

W^m Phipps plaintiff ag' Elisabeth Hamond in an
Action of Appeale from the Judgment of the County
Court in octobe' last in Boston After the Attachment

phipps ag' Ham-
ond =

Courts Judgmen^t Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file the Jury found for the deffend^t Confirmation of the former Judgement three pounds in mony or money^s worth & Costs of Courts thirty fve shillings & tenn pence

Ans^r to Robert Earles peticon & Courts order to Repaire y^e prison
 In Answer to Rober^t Earle keeper of the prison in boston his peticon It is ordered that the Tresure^r of the Country & the Tresurer of the County of Suffolke shall & are hereby ordered & Impowred to orde^r mee^t Instruments fforthwith effectually & substantially to repaire the prison that escapes of malefacto^rs may be prevented

[80¹]

1677

Samuel Hunting of charls Toune was presented by y^e Grand Jury and Indicted by the name of Samuel Hunting who at or upon the foweth day of Decembe^r last in the woods by shooting of his gunn in the night did kill the person of John Dexter Contrary to the peace of ou^r Soueraigne Lord the king his Croune & Dignitje the lawes of God & of this Jurisdiction being brought to the barr and y^e Question proposed whithe^r Guilty or no^t Guilty he declared he owned the Indictment & Refferd himself to the Bench as to his triall =

Samuel Hunting Guilty of manslaughter
he is fined 20^{li} to the widow of sajd Jⁿs Dexter

After the Bench had Considered the evidences & pleas declared they found it to be manslaughter And Judged it meet to fine him the sume of twenty pounds to the widdow of the sajd John Dexter towards hir losse & damage and as a fine to the Country five pounds w^{ch} is Respitted till the Court take further orde^r

& 5^{li} to ye Country wch is Respitted

Darby Bryan Resident in Boston being presented by the Grand Jury & was Indicted by the name of Darby Bryan for his not hauing the feare of God before his eyes & being Instigated by the diuil did in or vpon the one & thirtieth day of January last in the night being found in Bed with Abigaile Johnson Comitt the Act of Adultery Contrary to the peace of ou^r Soueraigne Lord the King his Croune & Dignity the lawes of God and of this Jurisdiction being at the Barr & pleading not Guilty on the question whom he would be trjed by sajd by the Bench The Bench hauing heard the evidence & the pleas in the Case did

Darby Bryans sentence

Adjudge & sentence him to be by the marshall Gen^l or his order from the prison to the Gallowes presently after the lecture in Boston & there Cause him to stand wth a Roape about his necke & fastned thereto one howe^r & then taken doune & tyed to a Carts Tayle and at Left ff^rary^s doore stripped from the Girdle vpwards on his naked body to be whipped thence to the prison wth thirty nine stripe^s well layd on & there left till he dischargd the charge of prosecution || to marshall web 6 6 || & ff^ree^s of Court =

Abigaile Johnson now resident in Boston being presented by the Grand Jury & was Indicted by the name of Abigaile Johnson for that she not having the feare of God before hir eyes & being Instigated by the Divill did in or vpon the one & thirtieth day of January last in the night being found in bed wth Abigall Johnsons
Indictm^t Darby Bryan comitt the act of Adultery wth him Contrary to the peace of our Soueraigne Lord the King his Crowne & dignity the lawes of God & of this Jurisdiction to wch Indictmen^t she pleaded not Guilty & put himself on the triall on the bench who hauing heard the euidences & pleas in y^e Case did Adjudge & senten[ce] hir the sajd Abigaile Johnson to be carryed by the marshall Generall or his orde^r to y^e Gallowes e^r in like manner as aboue in Darby Bryan^s sentence to suffer in all respects = no charges but six shillings & 6^d for y^e marshall Gen^d as to y^e ex[ec]ution of y^e sentence & fees of Court =

[80²]

1677

Marea a Spanish Indian servant to stephen ffrench being presented was Indicted by the name of Marea Marea Indictm^t Indian of weymouth for not hauing the feare of God before hir eyes & being Instigated by the diuill did in octobe^r or nouembe^r last murder hir child contrary to the peace of ou^r Soueraigne Lord the king his Croune & dignity the lawes of God & of this Jurisdiction = After the Jury had perused the euidences in that Case produced they brought in their virdict they found hir not Guilty. =

Robe^t Dendy bound ouer to Ans^r for his Conveying a Gimblett to Cooly e^r prisone^s that Brake the Dendy^s sentenc prison & are escaped After the Court had heard the Case they sentenct him to be seuerely whipt wth twenty stripes or pay the fine of twenty

pounds money to the Country. In Answer to the peticon of Robe^t Dendy *c^r* the Court Saw Cause to Remitt the fine to forty shillings & fees of Court = y^e 40^s was paid in Court & by Return wayt sent to y^e Tresu^r.

In Answer to the petition of Rebeckah Cooly
 An^s to Rebeckah wife to Richard Cooly that was Comitted to prison in
 Cooly^s petition = orde^r to his triall *c^r* y^t brake y^e prison & is fled *c^r*
 The Court Respitts y^e Answer to hir peticon till the nex^t Court of As-
 sistants =

Ephraim Beamis of water Towne being Complained on & bound ouer to this Court for his trapp[ani]ng & Pandoring of mary Willard by his lying & false Information in orde^r to hir being abused by one Jn^o oynes vnde^r y^e name of one m^r woodman was brought to the barr & charged therewth desiring his libe^rty to be tryed by a Jury wch was granted him After the pleas & euidences in the case produced were read Comitted to the Jury and are on file the Jury brought in their virdict they found him y^e said Ephraim Beamis by lying & false Information Guilty of witting & willing trapaning & pandoring of mary willard to the end that John oynes might Comitt Adultery with hir = The Court hath Considered of yo^r offence whereof yow the said Ephraim Beamis stands Convicted and doe sentence yow by the order of the marshall Gennerall or his order to be Carrjed to the Gallowes & there Caused to stand wth a Roape about your neck fastned thereto for one howe^r and then taken doune and tyed to y^e Carts tayle & at Leiftenn^t Frary^s to be stripped from the Girdle vpwards: & then Cause the executione^r to whip yow thence to the prison wth thirty nine stripes on yo^r naked body & there leaue yo^w in prison till yow dischargd the || charge of yo^r || prosecution & pay ffes of Court — which_A

Thomas Bell & Henry willis of stonington brought & presented their bill of charges for bringing downe John Dickeson & Benja: Barker that had broake Prison wch came to sixe pounds twelue shillings It is ordered that the Tresurer of the Country Discharge the said bill of charges sixe pounds twelue shillings in mony & chardge it_A the keeper of the prisons Account as to his salley. Robe^t Earle.*

Bill of charge for
 bringing doune Bar-
 ker & Dickeson =

* The keeper of the prison.

[81]

1677

John winsland being bound ouer to Answe^r for his killing of [^] murdering of william Taylor = The grand Jury* on prvsall of the evidences in y^t case brought in their virdict they found him not Guilty of witting or wilfull murder =

[Large blank space.]

[82]

1677 †

Att A Court of Assistants or Court of Admiralty held at Boston 24 May 78 & thenc Ad-journed to 28th Instant may =

Thomas Bromhall mate Richard peete's Laurence Boales & John Ragland marrine's of Catch John and Benjamin plaintiffs by their libell & Complaint exhibbited to this Court 24th may 1678 & Adjourned to 28 Instant at one of the clocke against w^m Long m^r of the sajd Catch Jn^o & Benjamin deffendant = according to Attachment dated 17th may: 1678. who wth the sajd vessell was Attached and bound ouer in one hundred twenty & sixe pounds to respond the decree & Judgment of this Court for that the sajd Deffendant Refused to pay vnto the sajd mate & Company their seuerall wages i e to y^e s^d Bromhall mate twenty fue pounds ten shillings or thereabout and to the sajd Peeter a thirteene pounds to sajd Boules a tenn pounds ten shillings & to the sajd Ragland a fuety shillings for their sevice donn in sajd Catch as in sajd Attachment & by evidence & sajd maste's Acknowledgement appears After the libell Attachment & evidences in the Case produced were read & are on file the Court found for the plaintiff^s and orde^r & decree that the Deffendant m^r & Catch pay vnto Thomas Bromhall twenty fue pounds fue shillings to Richard Peete's twelue pounds fueteene shillings to Lawrence Bowles tenn pounds[^] to Jn^o Ragland fuety shillings wth Costs & charges of Court three pounds seven shillings & two pence in all fuety three pounds seventeen shillings & two pence mony. =

present
Jn^o Leueret Esqr Goff:
Symon Bradstreet }
Daniel Gookin } Esqrs
Tho Danforth }
Edw Tyng }
Joseph Dudley }
— — — —
On 28: y^e same & W^m
Hathorn Esqr

execut: Issued out
28^o: 78.

Olliuer Berry Mate Georg Bucknell w^m Lydston John Potts, Philip Blansheard Jn^o Kelsey, Tho Cox; Jacob Halgen charles Broune

* Error of the record for Jury of Trials?

† Error in the original for 1678.

& Edward Blancheard marrine's of the Pincke Endeavo' plaintiff^s ag^t James Lang master of the sajd Pincke endeavo' deffend^t according to libell & Complaint exhibitted to this Court & Attachment dated 27th may 1678. The sajd master & pincke being bound ouer to this Court to Respond the plaintiffs for their seuerall wages for se'vice donn in sajd Pincke to value of one hundred twenty & fowe' pounds eight shillings & six pence or thereabouts expressed in the ~~Attachment~~ ¶ ffoote of the ¶ sajd libell appeares After the libell pleas & evidences in the Case were read & duely Considered of the Court declared they found for the plaintiffs and did orde' and decree that the deffendant pay vnto olliuier Berry nineteen pounds fowe'teene shillings to Georg Bucknell eleven pounds seventeen shillings & six pence to Phillip Blansheard tenn pounds eleven shillings to w^m Lydston eleven pounds six shillings to Jn^o Potts seventeen pounds eight shillings & six pence to John Kelsey nine pounds eight shillings to Thomas Cox tenn pounds twelve shillings to Jacob Halgen tenn pounds eight shillings to charles Broune nine pounds two shillings & to Edward Blansheard seven pounds two shillings in all one hundred & seventeen pounds eight * shillings mony wth Costs & charges of Court three pounds nine shillings & eight pence in all one hundred & twenty pounds seventeen shillings & eight pence each man defalking six shillings & eight pence apeece for their proportion of drink mentioned in y^e masters Account.

[The two following paragraphs are on the margin of the page]:

James Bell marine' of Catch Betty by his libell plaintiff^s ag^t Edw^d North master of sajd Catch deffend^t for Remainder of his wages as in s^d libell on file is exprest After the libell & evidences in the Case produced were Read *CR* the plaintiff wthdrew his Accon paying y^e deffend^t his Costs thirteen shillings =

memento. novembe' 78 y^e marshall left wth me nine pounds seuen shillings & fowe' pence to be Reponded † to y^e owne's of James Lang.

[83]

1677 ‡

Att A Court of Assistants or Cour^t of Admiralty called & sitting in Boston 1st day of July 1678 and Adjourned to y^e 9th July 1678.

Jn^o Culpepper master of the barcq Called the Recouery by his libell & Complaint plaintiff^s against John woodmansey deffendant as p

* Error in the record for "nine" ?

† Error in the record for "Responded" ?

‡ Error in the record for "1678."

his sajd libel: exhibited to this Court Appeareth for his the sajd woodmansey arresting the Barcq Recouery & Cargoe on pretence of a debt due to him from Zechariah Gillam to whom the sajd Barcq & Cargoe as he pretends doth belong thereby prejudicing the sajd Culpepper & his owno's making a stop of the sajd Barcq & Cargoe to his great Damage to value of one hundred pounds as in s^d libell 24 June || 78 || may appeare After the Court had heard the s^d libell & evidences in the Case produced & Considered the same they found for the plaintiff the deliury of the sajd ship & Goods in such condition as it was seized & five pounds damage & Costs of Court three pounds one shilling all in mony. = ~~fourty three~~

Jn^o Joanes marriner belonging to the ship treble Croune by his libell & Complaint plaintiff ag^t w^m Sterry master of the sajd ship deffend^t for that he the sajd sterry m^r & Comande^r of sajd ship hath refused to pay vnto the sajd Joanes eight pounds tenn shillings mony due to him for his wages for his se'vice donn in sajd ship for five months twenty six dayes as in sajd libell is expressed as also for deteyning from him the sajd Joanes his chest cloaths & what is in his chest as Instruments *c^r* being also worth tenn pounds more in money in all the sume of eightene pounds in mony: After the Attachment libell & evidences in the Case produced were read & duely Considered the Court declared they found for y^e deffendant Costs of Court

[Blank space.]

[84]

1678

Att A Court of Assistants held at Boston 3^d of Septembe^r 1678. = & Adjourned to the 5th of Septembe^r Inst.

The Grand Jury brought in their bills of present^t & Indictm^t and were discharged = 6 (7)78.

present	
Jn ^o Leueret Esq ^r Go ^d	
Sam. Symon[s] Esq ^r	
deft Go ^d 5 th	
Symon Bradstreet 3	
Daniel Gookin 3	} Esq ^r
Daniel Dennison 5	
W ^m Hawthorn 3	
Jn ^o Pynchon 3	
Edw ^d Tyng 3	

Isaack waldron plaintiff against W^m Hende'son deffend^t in an accon of Appeale from the Judgment of the County Court in Boston in Aprill last After the Attachment Courts Judgmen^t Reasons of Appeale & evidences in the Case produced

execut Issued out
31 m^{ch} 78
[dd to M^r Nor^m]

person^s Returnd to
serue on the Grand
Jury sworne

m^r W^m Parkes
W^m English
W^m Bartholmew
Elisha Hutchinson
Dani. Turill

Ralph Haughton
 Jⁿe Pelton
 Eljas Row
 James Cary
 Jonas Clarke
 W^m maning
 Henry Bright
 Jⁿe warren
 phillip Torrey
 — — —
 persons Returnd to
 serve on y^e 1st Jury
 for trials of Ap-
 peale & for life &
 Sworne
 — — —
 Left Samuel Rugles
 Stephen Burton
 Jⁿe V[ya]]*
 Thomas Bill
 Dauld Jones
 Jⁿe Swett
 mathew Solly
 James Prentice
 w^m Parry
 Nathaniel Coolidge
 Toby daults
 Tho. moore insted
 of Jⁿe Swett in y^e
 Capitol Case only:
 — — —

were Read Comitted to the Jury & are on file wth the
 Reccords of this Court the Jury brought in their vir-
 dict they found for the deffendant
 mem to 4th fil: Confirmation of the forme' Judgment
 & Costs of Courts fuetly three shilling & eight pence

Isaack Waldron plaintiff ag^t Thomas Tare deffend^t
 in an action of Appeale from the Judgment of the
 County Court at Portsmouth after the Attachment
 Courts Judgment Reason^s of Appeale & evidences in
 the Case produced were read Comitted to the Jury &
 are on file wth the Reccords of this Cour^t the Jury
 brought in their virdict i e: In Case the Honoured
 Court doe Judge y^e word day† in the top of the Ac-
 count to be all one wth the word daw in the bottome
 of the Account then wee finde for the deffendant
 the Confirmation of the former virdict wth y^e Costs of
 Courts otherwise wee finde for the Apellant Costs
 of Courts The magis^{ts} doe finde for the plaintiff Costs
 of Courts fowe' pounds sixteen shillings

Francis Nurse plaintiff against Zerrubbabell Endeco^t defend^t in
 an action of Appeale from the Judgment of the County Court at
 Salem After the Attachment Courts Judgment Reasons of Appeale &
 evidences in the Case produced were read Comitted to the Jury and
 are on file wth the Reccords of this Cour^t the Jury brought in their
 virdict they found for the deffendant Confirmation of the forme'
 Judgmt & Costs of Courts three pounds nineteen shillings & sixe pence.
 It is ordered by the Go^uno^r & magistrates that execution in this Case
 be suspended till the plaintiffe make his Aplication to the nex^t Gen-
 erall Cour^t in octobe^r next. =

[85]

1678

Barnes ag^t Kembell
 & W^{ms} & executi
 Issued out 22(7): 78
 The names of y^e
 persons Returnd to
 serve on the 2^d Jury

James Barnes plaintiffe ag^t Thomas kemble &
 Richard Willjams deffend^t in An action of Appeale
 from the Judgment of the Comissione's Court last in
 Boston. After the Attachm^t Courts Judgment Reasons
 of Appeale & evidences in the Case produced were

* Written over "White."

† Day, Ship's Captain. As to the words, see the original papers, Suff. Files, Nos. 1734 and 1773.

read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found for y^e plaintiff Reuersion of the former Judgm^t & damage fowe^r pounds seventeen shillings & three pence & Costs of Courts fuety one shillings & tenn penc: in all. 7 : 9. 01 :

|| exec Issued out 22 Sep^r 78 E R S. ||

Daniel ffairefeild plaintiff ag^t Elizabeth fairefeild deffend^t in an action of Appeale from the Judgment of the Comissione's Court in Boston. After the Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment wth seuen shillings more & Costs of Courts twenty & seuen shillings & tenn penc.

Jn^o Clary plaintiffe against Benja willington deffend^t in an action of Appeale from the Judgment of the las^t County Court at Cambridge. After the Attachment Courts Judgment Reasons of Appeale & evidences in the case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for [the] deffendant Confirmation of the forme^r Judgment & Costs of Courts = twenty seuen shillings & fowe^r penc

of tryalls for Ap-
peals & sworne
—
m^r Joseph Beaumais
Sampson waters
Tho: Stanbury
James Halsey
Jn^o white Joy[n^e]
Jn^o Betts
Jn^o Smith
Tho Greenwood
Jn^o Jackson
Richard Sattle
Caleb Lambe
Tho: Bird
— — —

Clary Ag^t Willing-
ton 14 p 1^r: 4^d due
executi Issued out
Apr 29, 1679 E R.

Sarah Alcock: widdow relict of the late Sam Alcock plaintiff against Rich^d meade deffend^t in an Accon of Appeale from the Judgment of the County Court in Aprill last in Boston = y^e partjes being Agreed the plaintiffe had libe^{ty} & did wthdraw hir Accon. =

Alcock ag^t mead.

Roge^r Rose plaintiff ag^t Samuel Stowell deffend^t in an action of Appeale from the Judgment of the last County Court in Boston after the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffnd^t Confirmation of the former Judgment & Costs of Courts forty eight shilling^s & three pence =

Rose ag^t stowell
48. 3^d: fil 12

Richard way & Jn^o Endeco^t plaintiffs as trustees
 Rich. way & Jn^o Endeco^t ag^t Benj Alford
 c^r to Martha Emery c^r ag^t Benjamin Alford Attur-
 ney to Jn^o Sweeting of London Adm[inis]trato^r to y^e
 estate of his son Jn^o Sweeting deffend^t in an Accon of
 Appeale from the Judgment of the County[^] in July last at Boston
 After the Attachm^t Courts Judgment Reasons of Appeale & evidences
 in the Case produced were Read Comitted to the Jury & are on file wth
 the Reccords of this Court the Jury brought in their
 execution Issu[^] virdict they found for the deffend^t Confirmation of the
 forme^r Judgmen^t & Costs of Courts thirty nine shillings & fowe^r
 pence =

[86]

16[78]

Cap^t Jn^o Hull plaintiff ag^t Elisha Cooke Attorney to Cap^t Jn^o win-
 coll deffendant in an Action of Appeale from the Judgment of the
 County Court in Boston in Aprill las^t After the Attachmen^t Courts
 Judgm^t Reasons of Appeale & evidences in the case
 Hull ag^t Cooke produced were Read Comitted to the Jury and are on
 file wth the Reccords of this Court the Jury brought in their virdict i e
 If according to law a man may sue as an Attorney Irrevocable in an-
 other mans name but for his oune vse & behooffe (of him the sajd At-
 turney) and yet his Attournship in any respect not Invalld nor
 thereby made an Assignee then = wee finde for the deffendant a Con-
 firmation of the forme^r Judgment & Costs of Courts: If othe^rwise wee
 finde for the plaintiff & Costs of Courts In this Case the magists
 finde for the plaintiff Costs of Courts = fuetty nine shillings =

Richard way & Jn^o Endeco^t trustees c^r to martha
 way c^r ag^t Kent Emery plaintiffs against w^m Kent & Richard Knight
 Attorney^s to Samuel Hauford deffend^{ts} in an action of Appeale from
 the Judgment of the last County Court in Boston After the Attachment
 Courts Judg^t Reasons of Appeale & evidences in the Case produced
 were Read Comitted to the Jury & are on file wth the Reccords of this
 Cour^t the Jury brought in their virdict they found for the deffend^t Con-
 firmation of the forme^r Judgment & Costs of Courts three pounds fue-
 teen shillings and tenn pence =

Jn^o Turno^r plaintiff ag^t Seth perry deffend^t in an Accon of Appeale
 from the Judgm^t of the Comission's Court in Boston
 Turner ag^t Perry the action Called the partjes being Agreed had libe^{ty}
 to & did wthdraw his Action.

George Purkis substitute to charles oughtred Attorney to Samuell Sheaffe of London plaintiff in an action of Appeale ag^t Jn^o Palmer y^t married wth Sarah Relict & Admns-
tratrix of the estate of John windor as also against the
estate of y^e late Robe^t Gibbs in the hands of Jonathan Corwin that
married wth Elisabeth the relict e^r of s^d Gibbs deffendant from the
Judgm^t of the County Court last in Boston the Accon was called Courts
Judgment Reasons of Appeale & Ans^r thereto Read on all^a was heard
the Court ordered y^t each ^a partjes have their oune pape's Againe =

Purkis ag^t Palmer
& Corwin

In the second Accon of Georg Purkis plt ag^t
the same persons in all Respects like order was de-
clard =

Purkis ag^t Palm^r
& Corwin

[87]

1678

Theode^r Atkinson plaintiffe against Abraham Perkins deffend^t in
an Acton of Appeale from the Judgment of the County
Court last at Salem: After the Attachment Courts
Judgment Reasons of Appeale & evidences in the
Case produced were Read Comitted to the Jury and are on file the Jury
brought in their virdict they found for the plaintiff Reuersion of the
forme^r Judgment & Costs of Courts fowe^r pounds & fowe^r pence

Atkinson ag^t
Perkins

Jn^o Putman Nathaniel Putman John Dodge e^r plaintiff on Ap-
peale from the sentence of the County Court last at
Salem. The plaintiff & major Hawthorn declaring
they were agreed had libe^{ty} to wthdraw their Accon —

Putmans on
Appeale e^r

Samuel Apleton Jun^d plaintiff in an action of Appeale ag^t major
Thomas Sauage deffendant from the Judgment of the
last County Court at Salem After the Attachment
Courts Judgment Reasons of Appeale & evidences in the Case pro-
duced were read Comitted to the Jury & are Remayning on file wth the
Reccords of this Court the Jury brought in their virdi[c]t they found
for the deffendant Confirmation of the former Judgment & Costs of
Courts fowe^r pounds three shillings & seuen pence =
Samuel Apleton Jun^d in open Court he attainted the
Jury: = & Samuel Apleton Jun^d in two thousan[d] pounds & Samuel
Apleton & W^m Dounes his sue^tjes in a thousand pounds apeece
acknowledged themselves respectively bound to the Tresurer of the

Apleton ag^t Sauage

Beamms forman

Country on Condition that Samuel Apleton Jun^d prosecute his attaint of the said Jury at the nex^t Court of Assistants to effect E R S.

Gifford ag^t Lee Jn^o Gifford plaintiff in an action of Appeale from the Judgment of the last County Court at Ipswich =
 || ag^t Jn^o Lee deffend^t || After the Attachm^t Courts Judgment Reasons of Appeale & evidences in the case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgmen^t & Costs of Courts five pounds eight shillings & tenn^o & though the bond was desired to be chancerjed the partjes were heard
 A Court declared they saw no Cause to Chancerje the bond. =

Thomas Lacy plaintiff in behalf of Robe^t ox^e ag^t Jn^o Keene
 Lacy ag^t Keene deffend^t in an Action of Appeale from the Judgm^t of the County Court in Aprill last after the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff Reuersion of the forme^r Judgment & Costs of Courts fiuet^y six shillings & tenn pence.

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1678

Lacy ag^t ~~oxe~~ Tho Lacy & Robt ox^e plaintiff ag^t Augustin melott
 || milott || deffend^t in An action of Appeale from the Judgment of the County Court at Cambridge Tho Lacy owned himself to his master m^r ox^e Attorney & said so Appeared in Cambridge Court & doth so at y^s Court m^r James whetcombe one of y^e said ox^e suertjes for s^d ox^e psecution of the Appeale owned also y^t he was m^r ox^e Attorney & stands by him as such to psecute y^e Appeale as he is bound And so it pceeded After the Attachmen^t Courts Judgment Reasons of Appeale and evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Cour^t the Jury brought in their virdict they found for the deffendant Confir^mg the former Judgmen^t & Costs of Courts

Lacy ag^t melot as to Tho. Lacy plaintiff ag^t Augustin melot deffendant
 Sallery 2 Acti in an action of Appeale from the Judgm^t of the County Cour^t at Cambridge After the Courts Judgmen^t Reasons of Appeale & evidences in the Case produced were Read

Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff Reuersing the forme^r Judgm^t & Costs of Courts three pounds eleven shillings & tenn pence =

Joshua Boynton pl^t ag^t Stephen Cross deffend^t in an action of Appeale from the Judgm^t of the County Court at Ipswich partie^s being Agree^d y^e plaintiff had libe^rty to & he did wthdraw his Accon

Boynton ag^t Crosse

Nathaniel ffox plaintiff ag^t Jn^o Leueret Esq^r Go^u defend^t in an action of Appeale from the Judgment of the last County Court in Boston the Partjes being Agreed the plantiff had his libe^rty to & he did wthdraw his action =

ffox ag^t Jn^o Leueret
Esq^r Go^u

Cardin Drabston of wate^rTowne spinster being presented by the Grand Jury was brought to the barr & Indicted by the name of Cardin Drabston se^rvant to Christophe^r Grant seⁿ for not hauing the feare of God before hir eyes hauing Comitted fornication & brought forth a child on the thirtjeth day of June last pretending the same to be dead borne not Calling any help at hir trauaile being Instigated by the diuill murdered it Concealing it fise days & then buried it in sajd Grants yard Contrary to y^e peac of ou^r Soueraigne Lord the king his Crowne & dignity the lawes of God & this Jurisdiction, to wch Indictment the prisone^r at the barr pleaded not Guilty put herself on triall on God & the Country after the euidences ag^t hir were Read & Comitted wth the Indictmen^t to y^e Jury & are on file the Jury brought in their virdict they found hir not Guilty of murder according to Indictment

Cardin Drabston^r
Indictm^t

ordered [she] dis-
charge the wittness
& keep^s ffees c^r :

[89]

1678

Christophe^r Grant Juⁿ of WaterTowne being presented by the Grand Jury was Indicted by the name of christophe^r Grant Juⁿ for not hauing the feare of God before his eyes being insti-
gated by the diuill hauing Comitted fornication wth Cardin Drabston of sajd water Tounne spinster whereby she brought forth a child into the world on 30th of June last which was murdered & kept fise dayes & then buried it Concealled the murde^r & made no discouery of it Contrary to the peace of our Soueraigne

xtophe^r Grants J^D
tryall c^r

Lord the King his Crowne & dignity the lawes of God and of this Jurisdiction to which Indictment the prisoner at the barr pleaded not Guilty & put himself on his trjall by God & the Country afte' the euidences ag' him were read & wth y^e Indictment Comitted to the Jury the Jury brought in their virdict they found him not Guilty according to Indictment

Mary Hare being presented by the Grand Jury was brought to the barr & was Indicted by the name of mary hare wife of Dauid Hare for not hauing the ffear of God before you' eyes & being
mary Hares Indict^t
for Adultery Instigated by the Diuill did Comitt Adultery in the Absenc of you' husband who went hence to virginea about the midle of July 1677 & was absent till the midle of may last Contrary to the peace of our Soueraigne Lord the King his Crowne & dignity the lawes of God & of this Jurisdiction to wch Indictment she pleaded not Guilty put himself on triall on God & the Country = After the euidences produced ag' hir were Read Comitted to the Jury & are on file wth the Reccords of this Cour' the Jury brought in their virdict they found hir not Guilty according to Indictment

Also Mary Hare the wife of Dauid Hare was Indicted by the name of mary Hare for not hauing the feare of God before hir eyes being
Mary Hares Indictm^t
for murder Instigated by the diuill Comitted Adultery in the Absence of you' Husband on 13th August last brought a child into the world & for want of timely help murdered it contrary to the peace of ou' Soueraigne Lord the King his Crowne & dignity the lawes of God & of this Jurisdiction = to which Indictment she pleaded no' Guilty & put himself on triall on God & the Country. After the Indictment & euidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found hir not guilty

It is ordered y^t y^e prisone's discharge all the charges of witnesses & fees of Court

[90]

1678

Tho Kenny negro to francis wyman being bound ouer to this Court from Cambridge made default & his sue'tjes being thrice called ff Francis wyman his sue'ty Came afterwards while the Cour' was sitting wth the negro wch was Accepted = & sajd ff Francis wyman Acknowl-

edged himself to stand bound in the same bond he was bound in to the Tresurer of midlesex for the Appearance of his negro Thomas Kenny at the Court of Assistants Sep^r 1678 that he shall appeare before the nex^t Court of Assistants in march next
as Attests Edw. Rawson secrety

9th of Sep^r 1678.

Itt is ordered that the Tresurer of the Country m^r Jn^o Hull deliuer & pay vnto major Hawthorne (who is Appointed by the Gennerall Court to keepe hampton & salisbury Courts this yeare, the sume of fueti shillings mony to enable him thereto: = E R S.

Alexande^r Colman * being Complayned on for his endeavoring to make disturbance of the people in time of publick worship on the last Lords day in the 3^d meeting house in Boston by Going in wth only a dirty ffrack of Canvice all bloody & no othe^r cloaths y^e Constable hauing Carried him to prison he was sent for & being demanded whenc he came he Came from neuis the last place being Askt why he endeavored to make disturbance to the people of God on y^e Lords day while they were in the publick worship of God e^r The Court Considering yo^r offence sentenc^t yow † to be whipt wth 15 stripes on y^e naked bod[y] well lajd on & by y^e constable to be sent out of Toune putting on his frock

In answe^r to the petition of m^s Hope Ambrose Informing that hir husband m^r Samuel Ambrose hath absented himself from hir vpwards of fowe^r yeares & left hir not only wthout due prouission for the maintenance of herself & children but as Appeares by the testimony of w^m Timbe^rleg & John Hunt in Jamajca hath broake his marriage Couenant & keepees another woman at Jamajca as his whore & hath || had || carnall fellowship wth hir seuerall times || & wth others || as he hath boasted The Court Judgeth it meete to declare that he hath broake his marriage Couenant wth hir and so she is at libe^ty to marry wth another man = past E R S

Hope Ambrose
divorce

Vpon the difference betweene Hugh march & Dorcas his wife It was put to the Question whither Hugh march and the sajd Dorcas might still lawfully live as man & wife The Court Resolued it on the negative =

Courts Resolue as
to Hugh march &
Dorcas his wife ||

* Or Calman.

† Written over the word "him."

[91]

1678

Att A Court of Assistants or Court of Admiralty held at Boston
14th of octobe^r 1678

present
Jn^e Leueret Esq^r
Go^o
Symon Bradstreet
Daniell Dennison
Tho Danforth
Jn^e Pinchon
Edw^d Tyng
Joseph Dudley
— — — —

m^r Dominick Bodkin plaintiffe by his libell & Complaint exhibbited to this Court bearing date 10 Instant ag^t m^r Robe^t Brimsden deffend^t for that he the said Brimsden hath broken the Charter party by Coming away from virginea wth the vessell called the Beginning & one necke master of y^e said barc^q leauing him in a strajng place & forcing him to his great damage to leaue his Concernes & follow him hither where he hath wayted on him for fiae months if possible to receive sattisfaction c^r as in the said Attachment Refferenc thereto being had appeares After the plea^s & euidences in the Case produced by the parties the Court declared they found for the deffendant Costs of Court twenty eight shillings & fowe^r pence =

Att A Court of Assistants || or || Admiralty held at Boston the 8th
of nouembe^r and Adjourned to the 13th Jnstant 1678

present
Jn^e Leueret Esq^r
Go^o
Symon Bradstreet
Esq^r D G.
Daniel Dennison
Tho Danforth
w^m Hawthorne Esq^rs
Edw^d Tyng. —
Nathanl: Saltonstall
— — — —

In the Case of Paul Creane Boat swajne of the ship James ffrygott in behalfe of himselfe & Jn^e ffreeman Gunner Othra Christo^pher Carpenter Jn^e Coale Jn^e wheatly Jn^e Smalebones Anthony viner & Joseph Good[uin] marriners of s^d ship plaintiff^s against said ship James ffrygot & Robe^t Daniel the now master thereof deffendant according to the libell & Complaint wth the Attachment of said Creane bearing date c^r for that the said Robe^t Daniel successor of Solomon Blackleach now master hath refused and doth to pay them their wages as Justly Appeares by their Account Giuen in amounting to seventy one pounds twelue shilling^s & fiae pence after the Court had heard the Case pleas & euidences therein produced they declar^d they found for the plaintiffs that the deffendant ship c^r pay the plaintiffs their wages in mony seventy one pounds twelue shillings & fiae pence damage & Costs & Charges of Court ffowe^r pounds seven shillings =

Dominicke Bodkin merchant plaintiffe against John Necke of Boston marriner late master of the barc^q called the beginning deffend-

ant according to libell Complaint & Attachment bearing date the 6th Instant as therein & thereby refference thereto being had more Amply Appeareth After the Court had heard all the pleas & evidences produced by the plaintiffe and deffendant The Court doth orde^r & decree that the deffendant pay the plaintiffe the ballance of the Account three pounds sixteen shillings penny halfe penny wth twenty pounds damage in money and Costs of Court three pounds eleven shillings and sixe pence in all twenty seven pounds seven shillings & seven pence halfe penny =

[92]

1678

In the Case betweene m^r w^m Taylor m^r Richard wharton & Cap^t Peeter Hawto * Attorney^s to Cap^taine Barnard Lemoigne plaintiff & Cap^t Tho. white m^r Samuel Rauenscro[f]t † & their Complices deffend^{ts} for disposing & sharing the Goods of a dutch prize or prizes named the Griffin and Nassaw stranded on the Island nantuckett and taken in the bay of metansis in Cuba by virtue of a Commission granted to the sajd Barnard Lamoigne by m[onsee^r] Le [Se^w] Ponsaw Go^wno^r for the french king at the Turtudoes and the Coasts of Domingo by wch Comission the sajd Cap^t Le-moigne was obleidged to returne with his pri[z]es by him taken to Petit Guauare † his Commission Port This Court hauing heard the pleas & Allegations of both partjes doe find for the plaintiff and doe Adjudge that the sajd dutch prize Called the Griffyn wth all hir Goods and othe^r money^s or estate taken in the sajd shippes ought to haue binn Carrjed to the said Comission Port, and therefore doe decree that the sajd ships & Goods & money produced by the sale of any of the sajd goods and all othe^r moneys & estate taken in the sajd ships be deliuered to the sajd Cap^t La-moigne or his Attorney^s; he or they giuing bond with sufficient sue^ttjes to value of fowe^r thousand pounds that the sajd ship & goods shall wth all convenient speed (the dainger of the seas excepted) be sajled and brought to the sajd Port for the behooffe of the sajd le-moigne & Company taking wth him eithe^r all if they be willing or so many of them as shall be sufficient to make their pleas for their shares & Interest as also Henry Jacob the Gunner of the sajd ship who hath petitioned this Court on behalfe of his owno's that he may there make his pleas And In Case the sajd Le-moigne or his Attorney^s shall refuse or neglect to give in bond as aforesajd at or before the 15th of the nex^t moneth then the sajd ship & goods shall be seized & remajne in such office's, as shall

* "Otto" in the County Court Record.

† Or Guanare.

be appointed by the Goũnor & Council till furthe' orde' be taken and the deffend' to pay Costs of Court twenty five pounds twelue shillings & sixe pence = y^s Court is dissolved

Att a Court of Admiralty or Cour' of Assistants held at Boston 2^d January 1678

Henry Wheeler late master of the ship Recouery in behalfe of himself & owno's by his libell & complaint exhibbited to this Court bearing date 28th of Decembe' 1678, plaintiffe against m' Anthony Cheeckly and Ijdia his wife formerly the wife of the late Benjamin Gibbs & Adminstratrix to his estate deffendant In an Accon of the Case largely exprest in the aboue mentioned libell and is for not sattisfying him for the hire of sajd ship Recouery for eight months & one third of a moneth at thirty five pounds p moneth wch amounts to two hundred ninety one pounds thirteene shillings & fower pence as also for chardges & disbursments and what one Recoured for his wages as in the sajd libell is exprest as by sajd wheelers oath on file e^r = After the Attachment and

[93]

1678

euidences in the Case produced were read & duely Considered of the Court declared they Adjudget and did order and decree for the plaintiffe after the deduction of the late Benjamin Gibbs Credit the summe of three hundred sixty two pounds fueteen shillings and five pence in money out of the estate of the late Benjamin Gibbs y^c Costs of Court [five ?] pounds [12^s] shillings || 6^d || being included in y^t sume aboue =

This Court was dissolved = E R S.

present
Symon Bradstreet || Esq^r ||
Goũ
Sam Danforth Esq^r Dep^t Goũ
Daniel Gookin
Daniel Dennison
W^m Hawthorne
John Pinchon
Edw^d Tyng
Joseph Dudley
Nathan^[H] Saltonstall
Humphry Davy
— — — —

Esq^{rs}

Att A Court of Admiralty or Court of Assistants held at Boston 15th may 1679 and Adjourned to 29th may 1679 *

John ffancis Boatswayne John Middleton Carpenter John Todd Peter ffletcher & Richard Derry marriners of & lately belonging to the ship Endeavo' plaintiff^s Against Samuel Smith Comande' of sajd ship endeavo' deffend' for Refusing to pay them their seuerall wages in mony to the said ffancis

* This and the three following records of admiralty courts were evidently entered by the Secretary out of their chronological order. They should have been entered after the record of the March term, 1678-9, which ends on page 98 of the original.

after the Rate of forty five shillings p month till y^e s^d ship arrived at Barbadoes & from that time forty eight shillings p moneth, to John Todd after the Rate of thirty three shillings p moneth & to Peter Fletcher & Richard Derry their wages after the Rate of thirty two shillings p moneth & John midleton his wages after the Rate of three pounds tenn shillings p moneth as by the Portlidge bill may Appaere & m's Acknowledgment in Court After the libell Attachment & evidences in the Case produced were Read & duely Considered The Court orde's & determine for the said Boatswaine & seamen fuety fowe' pounds ten shillings money as their full wages to be diuided in proportion amongst them at the Rates vpon which they were shipped as in s^d libell & Complaint defaulting what they haue Received of the said m^r & Costs of Court fower pounds nineteen shillings & two pence. =

Att A Court of Assistants or Admiralty held at
Boston 31 may 1679

Phillip welch Thomas Smith & Peeter michael
marriners of the Catch olliue branch by their libell &
Complaint exhibbited to this Court plaintiff ag^t Edward
Barnes master of said Catch & said Catch deffendant for that the
said Edward Barnes Refuseth to pay unto Peeter welch his wages
for eleven months & a halfe se'vice at forty shillings p mo twenty
three pounds money and to Thomas Smith for his wages for tenn
month one half at twenty seuen shillings p month fueteene * pounds
three shillings & sixe penc and to Peete^r mitchell for
his wages fowe'teen pounds fowe'teen shilling^s in all
fuety one pounds seventeen shillings & sixpenc mony
After the libell & Complaint & evidences were Read & duly considered
The Court Judged it meet to declare and decree that the said Edward
Barnes y^e master & said Catch pay vnto the aboue said Plaintiffs the
said some of ffuety two pounds seven shillings † & sixe pence mony &
Costs of Court three pounds eight shilling^s deducting what they haue
Received = ‡ In Ans^r to the peticon of Elizabeth Lisley The Court on
pervsall & consideration of the evidences in the Case
doe grant the peticone's request and doe declare hir to
be freed from hir Couenant of marrjage made wth y^e
aboue named Robert Lisley § : — :

present as aboue =
Go^o
Dep^t Go^onor e^r
as_A

welch e^r ag^t
Catch olliue Branch

Elizabeth Lysley^s
diuorce

* Fourteen ?

† Fifty-one pounds seventeen shillings ?

‡ What follows here was probably inserted at a later date.

§ His name does not appear before in the record.

[94]

1679

present
Symon Bradstreet Esq^r
Go^o
Thom: Danforth Esq^r
dep^t Go^o

Daniel Gookin
W^m Hawthorn
Jn^o Pyncheon
Edw^d Tyng
Joseph Dudley
Humphry Dany
— — — — —

Att A Court of Assistants or Court of Admiralty sitting in Boston the 14th of June 1679

Samuel Smith Comander of the ship endeavour plaintiff in behalfe of himself & owne's ag^t John ffrauncis Jn^o midleton John Todd c^r according to his libell, Attachm^t bearing date 12 June 79 After the Courts pervsall of the sajd libell & evidences in the Case produced The Court Adjudget for the plaintiff & doe Orde^r & decree that the deffendant pay the plaintiff's fowe^r pounds damage in mony & three pounds fiueteen shilling & fowe^r pence as Costs =

The Deposition of Thomas Sexton now master of the ship Elizabeth being in London in the month of february last past did receive A ve^rball direction or orde^r from old m^r Elkin to keepe a bayle of Goods or deliuer it vnto m^r John wayte In Case his son Nathaniel Elkin were dead the which Bajle of Goods doth belong vnto m^r Edward Bass merchant in London & the Cause of old m^r Elkin his giving such orde^r vnto me was because he himself as he told me stood bound vnto m^r Basse that his sonn Nathaniel Elkin should make him the sajd Bass Returnes for the goods the Bayle is marked NE no 7

deposed in Court 14 June 1679. p Edw. Rawson secre^t[ty]

Att A Court of Assistants or Admiralty held at Boston 25th october 1679

willjam marston mate John Anay Boatswajne nicholas Ginnop Gunner Edward North Hugh may Jacob ketore Henry Gabricke George wood michael Caswell Thomas mande^r & John Perrin marriners belonging to the ship Apollow * * * & Henry Hollaway m^r of s^d ship defend^t for that he sajd Hollaway m^r Refuseth to pay the aboue mentioned w^m marston mate Jn^o Anay Boat swayne nicholas Gunnop Gunner wth y^e s^d marri- ne's their seueral wages for their se^rvce performed in s^d ship for seven months & eight dayes from Jamajea to the Lagoone of Tr[o^a] † in y^e bay of Campeacha & thenc to Boston as p portlidg Bill c^r as p Attachm^t

Henry Holloway ap-
peard in Court &
owned y^e s^d libell
sums mentioned * *
in the libell was &
In Justly due to y^e
s^d libell seamen to be
p^t y^em in mony here
only had no^t effects
in his hands to dis-
chardg them * *

* Those marks are in the original.

† Terminos ?

dated in Boston 21th october 1679 may Appeare * * after the Court had heard the pleas of plaintiff & deffend^t they did determine order & decree that the sajd ship Apollow & sajd master || thereof || Henry Holloway should pay vnto the plaintiffs. i: e. to w^m marston mate for his wages twenty one pounds sixteen shillings being 3^{li} p mon'h to John Annay twenty one pounds sixteen shillings to Nicholas Gunnop Gunner after 40^p mo. fowe'teen pounds twelue shilling to Hugh may after 39^p mo. fowe'teene pounds fowe' shillings to Jacob Katore fowertene pounds fowe' shillings to Henry Gabrick after thirty fue shilling p mo. twelue pounds fueteene shillings & six pence to Georg wood y^r like twelue pounds fueteen shilling & sixe pence to michael Caswell the like twelue pounds fueteen shillings & six pence To Thomas mander at 29^p mo. tenn pounds eleven shillings and six pence & to Georg Perrin after 30^p mo. tenn pounds nineteen shillings each mans time being 7 mo & 8 dayes in all, one hundred sixty one pounds on[e] shilling * all in money wth costs of Court fowe' pounds fowe' shillings & sixe pence mony.

[95]

1678

Att A Court of Assistants held at Boston 4th march 1678.

Samuel Apleton Ju^d plaintiff in an Ac^{ti}on of Attaint from the last Court of Assistants ag^t the Jury there whereof m^r Joseph Beamis was foreman deffendts the plaintiffe and deffendant Appeared pleaded to the Case both lette's of Attorney was produced & owned in Court after all the pleas and evidences in the Case produced were heard Read & Comitted to the Jury the Jury brought in their virdict they found for the plaintiffe Reuer-sion of the forme' Judgment & Costs of Courts sixe pounds sixteen shillings =

Mary figg plaintiffe against Thomas Bake^r de-ffend^t In an action of Appeale from the Judgment of the last County Court in Boston After the Attachment Courts Judg-ment Reasons of Appeale & eui-

20^{li}
mony

present
Jⁿ Leueret Esq^r Go^v
Symon Bradstreet Esq^r
dep Go.

Daniel Gookin
Daniel Dennison
Tho: Danforth
Edw Tyng
Joseph Dudley
Nath^l Saltonstall

} Esq^rs

— — —
Grand Jurymen
Returnd & Sworn
were

— — —
m^r w^m Parkes
Edw^d Drincker
Jⁿ Harrison es^t
ffrancis Hudson
moses Payne
Tho Tollman
Thomas Trott
w^m Gary
Randall Nicholls
Aron Ludkin
Samuel Andrewes
Rich^d Dana
Tho flegg

* This amount indicates that Edward North's share (fourteen pounds twelve shillings?) was omitted by the Secretary in making up his record.

w^m Goddard
 — — —
 Jury men Returned
 for Appeales life
 limbe & sworn
 were ~~by~~ Jury

|| for ye Attaint ||

— — —
 m^r Jⁿ Long.
 w^m whitwell
 w^m Hobby
 Jervas Ballard
 Jacob Hewins
 Henry Leadbetter
 James white
 Obadia Hawes
 Tho. Edwards
 Tho walker
 Tho Bligh seⁿ
 Jⁿ waite
 Jⁿ may
 Joseph Griggs
 Jⁿ Ruggles
 Samuel Craft
 Nath Rand
 Jⁿ Trumball
 w^m Agur
 stephen ffancis
 ffancis Boman
 Jⁿ Benjamin
 Jⁿ Trajne
 Jⁿ Neunisson
 — — —

dences in the Case produced were read Comitted to the Jury and remayne on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & costs of Courts. [32'.]

Jⁿ Pickard & Ezekiel Northend plaintiff^s in an action of Appeale ag^t W^m * Longfellow deffend^t from the Judgment of the last County Court in Salem † = After the Attachment Courts Judgment Reasons of Appeale and evidences in the Case produced were Read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict i: e a speciall virdict origine & † the Court finds for the deffendant Confirmation of the Judgment of the bench at Salem Court & Costs of Courts fuety nine shillings & eight pence

Tho Leauer seⁿ plaintiff in an action of Appeale ag^t Phillip Nelson deffend^t from the Judgment of the last County Court at Ipswich Attorneys in y^e Accon Appearing & shewing their powe^r the plaintiff declar- ing that the Accon was Agreed wth consent of y^e Court wth drew his Accon =

James Smith plaintiff agt michael Bouden deffendant in an action of Appeale from the Judgment of the County Court at Salem After the Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were read comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant the Confirmation of the forme^r Judgment at Salem Court i e thirty nine pounds two shillings & Costs of Courts forty fowe^r shillings & fower pence =

James Smith plaintiffe against michael Bouden deffendant in an action of Appeale from the Judgment of the County Court last in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are

* Written over "Jⁿ."

† Written over "Boston."

‡ For details of this case see Court Files Suffolk No. 1792, where is the original special verdict at the County Court, and also a copy of the record of the Court of Assistants, attested by the Secretary, more full and differing somewhat from this.

on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the forme^r Judgmen^t [&] Costs of Courts thirty two shillings & fowe^r pence =

Cap^t James Olliuer & Tho: Dexter plaintiffs against the Towne of lynn deffend^t in an action of Appeale from the Judgment of the last County Court at Salem. After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the defendant Confirmation of the former Judgm^t & Costs of Courts five pounds fowe^rteen shillings & two pence =

[96]

1678

Richard Acco^rman plaintiffe against Thomas valentine deffendant in an Ac^on of Appeale from the Judgment of the last County Court at Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict & found for the deffendant Confirmation of the forme^r Judgment, Costs of Courts thirty two shillings

Exec Issued
out

persons Returnd to
serve on the 1st Jury
of trialls for Appeales for life limbe
e^r sworne were =

— — —
m^r John Neulson
James white
Henry Leadbetter
Tho Langhorne
J^{no} wayte
J^{no} Rugles
Samuel Craft
Joseph Ryall
Nathaniel Rand
w^m Agur
f^rancis Boman
J^{no} Trajne

persons Returnd to
serve on the 2^d Jury
of tryall for Appeale
life limbe e^r
sworne =

— — —
m^r J^{no} Long
W^m Hobby
Jarulis Ballard
Jacob Hewin
Tho Bligh
J^{no} man
Daniell Turell Junr
obadias Hawes
Joseph Griggs
stephen f^rancis
J^{no} Benjamin
Symon Coolidge
— — —

Thomas Clarke plaintiffe against John Allin deffendant in an action of Appeale from the Judgment of the last County Court at Hampton. After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgm^t & Costs of Courts = three pounds twelue shillings =

exec Issued
out 8 1 78

Joseph knight plaintiff ag^t Sam: Peacocke deffend^t in an action of Appeale from the Judgm^t of the Commissione^rs Court in Boston After the Attachment Courts Judgment Reasons of Appeale and evidences in the Case

exec Issued out 7
may 79 for 3: 12: 6

produced were read Comitted to the Jury and are re-
mayning on file wth the Reccords of this Court the
Jury brought in their virdict they found for the de-
ffendant Confirmation of the former Judgment & Costs of Courts
twenty sixe shilling^s & sixe pence

Theode^r Atkinson plaintiffe against Abraham Pe^rkins deffendant
in an action of Appeale from the Judgment of the County Court at
Ipswich = After the Attachment Courts Judgment
y^e bill
12th
Reasons of Appeale & evidences in the Case pro-
duced were read Comitted to the Jury & are Remayn-
ing on file wth the Reccords of this Court the Jury
brought in their virdict they found for the deffend-
ant Confirmation of the former Judgm^t & Costs of Courts =

Theode^r Atkinson plaintiff against Abraham Pe^rkins deffend^t in
an acton of Appeale from the Judgment of the
Atkinson ag^t
Pe^rkins
County Court at Salem last after the Attachment
Courts Judgment Reasons of Appeale & evidences in
the Case presented were Read Comitted to the Jury & are on file
wth the Reccords of this Court the Jury brought in
exec Issued out
their virdict they found for the deffend^t Confirmation
of the forme^r Judgment & Costs of Courts three pounds seven shil-
lings & fowe^r pence =

Henry Roby & Nathaniel Boulter plaintiff ag^t
Robe^t Evans || deft || in an Action of Appeale from
the Judgment of the County Court last at Hampton after the Attach-
ment Courts Judgment Reasons of Appeale & eui-
dences in the Case produced were Read Comitted to
executi : Issued out
11 ¹/_{mo} 78.
the Jury & are on file wth the reccords of this Court
the Jury brought in their virdict they found for the
plaintiff Reuersion of the forme^r Judgm^t & Costs of Courts

[97]

1678

Nathaniel ~~Moore~~ || Boulter || & w^m moore plaintiff ag^t Humphry
wilson defend^t in an Action of Appeale from the Judgment of the last
County Court at Hampton After the Attachment
Courts Judgm^t & Reasons of Appeale wth y^e evidences
Boulter ag^t wilson
in the Case produced were read Comitted to the Jury and are on file

wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgm^t & Costs of Courts ffuety nine shillings & tenn pence =

m^r Jonathan Tyng plaintiff ag^t nicholas chadwell deffendant in an action of Appeale from the Judgment of the County Court at Salem After the Attachm^t Courts Judgment Tyng ag^t Chadwell
Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff reuision of the forme^r Judgment & Costs of Court thirty * five shillings exec Issued out

Nathaniel Jacob plaintiff ag^t Ephrajm & Isack ffellowes c^r deffend^t in an action of Appeale from the Judgment of the County Court at Salem After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts = three pounds fueteen shillings & 4^d = Jacob ag^t ffellowes

m^r Hezekiah Vshe^r plaintiff against John Vshe^r deffend^t in an Accon of Appeale from the Judgmen^t of the County Court in Boston in octobe^r last After the Courts Judgmen^t Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the defend^t Confirmation of the forme^r Judgm^t & Costs of Courts the plaintiff desired his bond might be chanceried the Court on Consideration of the pleas on both sides chanceried the bond sued to fuety pounds mony & Costs ffuety two shillings & 6^d. Vsher ag^t Vsher

Jn^o man Plaintiffe ag^t majo^r Thomas Savage deffend^t in an action of Appeale ffrom the Judgmen^t of the Comissione^rs Court in Boston The Accon was Called the Reasons man Ag^t Sauage
not being Given in season i e Daylight The Court declared the Accon ought no^t to proceed & y^e Court Granted the deffendt his Costs

Abell Porter plaintiff ag^t Edw^d Cater deffend^t in an Accon of

* Written over the word "twenty."

Porter ag^t Cater Appeale ffrom the Judgment of the Court of Associates at Portsmouth: this Accon was also Called no Reasons Returned so the Accon fell & Costs granted to the deffend^t & the bond declar'd to be forfeited =

Gatchells Indictmt
e^r Bethyah Gatchel was presented & Indicted by the name of Bethiah Gatchell for no^t hauing the feare of God before hir eyes & being instigated by the diuill Comitted Adultery Contrary[^] the peace of our Soueraigne Lord the King his Croune & dignity the lawes of God & of this Jurisdiction to wch she pleaded no^t Guilty put herself on tryall by God & the Country~~they~~ the Jury finds hir not Guilty according to Indictment the Court enjoyned hir to Appeare before the nex^t County Court at Ipswich to Ans^r for hir notorious lying e^r dischargding fees of Court & Costs of prosecution to be dischargd [Skerry] * Costs 21^s allowed

[98]

1678

Ellino^r may being Indicted & by the virdict of the Jury of tryalls legally Convicted of whoredome & of hauing a Bastard child in hir husbands absence is sentenced to be tyed to a Carts Tayle & whipt vpon hir naked body from the Prisson to the place of hir aboad not exceeding thirty nine stripes well & seuerely layd on, and also to depart out of the Toune of Boston wth in tenn dayes nex^t Comeing after hir Correction and no^t to returne againe w^{thout} licence from the Goūno^r or two magistrates vnde^r his or their hands in writting and in Case after that time the sajd Elljnor may shall be found in Boston or any of the precincts thereof Contrary to this Order she shall be App^hended by the Constable on notice given by any of the Inhabitants of the sajd Toune & Comitted to Bridewell there to remajne vntill the Councill or Court of Assistants shall Give furthe^r orde^r Concerning her: she dischargding ffees of Court & Costs of wittnesses to be dischargd =

In Ans^r to the petiōn of Rebeckah Cooly^s as to a divorce The Court Judgeth it meet to declare that on pervsall of the evidences ag^t Richard Cooly that the sajd Rebeckah is free and set at libe^ty frō hir marriage Couenant wth hir sajd Husband Richard Cooly =

— — — — —
Boston 19 m^orch 1678²

vnde^r a true Copie of the Judgment of this Court in the Case betweene m^r Hezekiah vs^{er} plaintiff ag^t

* Henry Skerry of Salem, marshal ?

m^r Jn^r vshe^r as on y^e othe^r side of this page is word for word stands vnder writt & endors^t as followeth Received the sume of fiuety one pounds nineteen shillings & eight pence of m^r Hezekiah Vsher Junio^r in mony by virtue of the wthin written or aboue Judgment of a Court of Assistants as aboue expressed — 50: 19 8* wittnes maudit Engis (endors^t p^r John Vsher = march 20 7⁸

Maudet Engis of Boston Aged about seventy yeares being deposed before vs doth say that he sawe m^r Hezekiah vshe^r on the 19th day of this Instant pay his brother m^r John Vsher of Boston the sume mentioned in the Receipt on the back side vnder the Copy of the Judgment of the Court of Assistants and that he saw m^r John Vsher to signe and deliuer the sajd Receipt and did put his hand as a witnes thereof sworne by maudet Engis the day & yeare aboue written before vs

Daniel Gookin
Edward Tyng

Entred & Recorded in perpetuum
Rei memoriam At Request of the
sajd m^r Hezekiah Vsher the 3^d day
of July 1679

p Edw^d Rawson secre^t

[99]

1678

Att A Court of Assistants held at Boston
the 2^d of Septembe^r 1679

Trystram Coffin Attorney to Richard
Lowle & Cap^t w^m Gerrish plaintiff^s ag^t Benja-
min Lowle deffendant in an Ac^{tion} of Appeale
from the Judgm^t of the County Court at
Ipswich After the Attachmen^t Courts Judgment Rea-
sons of Appeale & evidences in the Case produced
were read Comitted to the Jury & are on file wth the
Reccords of this Court the Jury brought in their vir-
dict they found for the plaintiff^s reuersion of the
forme^r Judgment & Costs of Courts sixe pounds nine-
ten shillings & eight pence
1st Jry

present	
Symon Bradstreet Esq Go ^o	
Tho Danforth Esq dep ^t Go.	
Daniel Gookin	
Daniel Dennison	
W ^m Hathorn	
Edward Tyng	
Joseph Dudley	
Nathaniel Saltonstall	
Humphry Davy	
— — —	
persons Returnd to serve on y ^e Grand Jury sworne were	
— — —	
Cap ^t Daniel Hench- man	
John Blake	
Rich ^d wooddy	
J ⁿ Conney	
John Scarlett	

* The amounts given here in the record do not agree with each other or with the amount stated in the record of the judgment. See above p. 137 for the judgment referred to.

Tho Tyleston
 Tho Dauenport
 W= Clough
 J^m Pentecost
 Jonas clarke
 W= maning
 W= Bond.
 — — —
 persons Returnd
 to serve on y^e
 1st Jury of tryalls
 for Appeales life
 lymbe & sworne
 were
 — — —
 m^r Anthony check-
 ley
 Thomas Edwards
 Bozoone Allen
 Thomas Jenner
 Jacob Green Jun^r
 Ezra Clap:
 Timothy Tyleston
 Samuel Andrewes
 noah wisewalle
 John Bisco
 John Morse
 Daniel Brewer
 — — —

Stephen Butler plaintiffe against willjam Hol-
 lowell Jun^r Benja Hollowell & Edward Ashley de-
 fend^t in an action of Appeale from the Judgment
 of the last County Court at Boston After the Attach-
 ment Court^s Judgmen^t Reasons of Appeale & eu-
 idences in the Case produced were read Comitted to
 the Jury & are on file wth the Reccords of this Court
 the Jury brought in their virdict they found for the
 deffendants a Confirmation of the forme^r Judgment
~~In part that~~ * In part that is to say the moyety of the
 houses & lands which belonged to the estate of Ben-
 jamin Ward according to Inventory or fowe^r hundred
 pounds in money & Costs of Courts
 2^d Ju. ffuety sixe shillings & tenn pence =

Abraham Broune of [Salis]bury plaintiff against
 Samuel ffellowes deffendan^t in an Action of Appeale
 from the Judgment of the last County Court at
 Salisbry After the Attachment Courts Judgment
 reasons of Appeale and evidences in the Case pro-
 duced were read Comitted to the Jury and are on file wth the Reccords
 of this Cour^t the Jury brought in their virdict they found for the
 plaintiff Reuersion of the former Judgment & Costs of
 Courts three pounds fowe^r shillings & fower pence =
 2^d Ju.

1st Ju willjam Griggs plaintiff ag^t peeter chocke de-
 fend^t in an Accon of Appeale from the Judgment of
 the ~~Comissione^rs~~ County Court in Boston: After the Attachment
 Courts Judgment Reasons of Appeale & evidences in the Case pro-
 duced were Read Comitted to the Jury and are on file wth the Reccords
 of this Court the Jury brought in their virdict they found for the
 deffendant Confirmation of the forme^r Judgment & Costs of Courts =
 twenty shilling^s & sixe pence

Stephen Bussell plaintiff Against samuel Ballat deffendan^t in an
 action of Appeale from the Judgment of the County Court at charls-
 Toune After the Attachment Courts Judgment Reasons of Appeale &
 evidences in the Case produced were Comitted to the Jury & are on
 file wth the Reccords of this Court the Jury brought in
 their virdict they found for the plaintiff reue'sion of
 2^d Jur

* Written over the words " & Costs of Courts " and then both cancelled.

the forme^r Judgment & Costs of Courts forty three shillings & two pence :

Peeter chocke plaintiff ag^t Nathaniel Peirce deffendant in an action of Appeale from the Judgment of the Comissione's Court in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgm^t & Costs of Courts sixteen shillings & tenn pence

[100]

1679

George Purkis Attorney to Laurence Baske^{vill} plaintiff against the Goods or estate lately belonging unto John windor merchant in the hands of John Palmer who marrjed the relict & Admnstratrix of y^e estate & the Goods or estate belonging to the late Robe^t Gibbs as also the Goods of James whetcomb deffend^t in an Ac^{on} of Appeale from the Judgment of the County Court in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for the deffendants Costs of Courts
thirty fve shillings & tenn pence.

1st Ju

persons Returnd to
serve on y^e 24th Jury
for trials of Ap-
peales life ljmbe
c^{er} sworn

— — — —
m^r Edward Willis
Robert Howard
Thomas moore
Eljas Row
Elljce Wood
Rich^d Norcross
Thomas streight
w^m Gary
John Gore
Thomas Longhorne
w^m Coleman
James Hubbard
— — — —

Henry Allin & Company plaintiff ag^t w^m Tomljn deffend^t in an Ac^{on} of Appeale from the Judgment of the County Court in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file wth the reccords of this Court the Jury brought in their virdict they found for the deffendant Costs of Courts eighteen shillings & fowe^r pence /

1st Jury

John Veren plaintiffe against John ffros^t de-
ffendant in an action of Appeale from the Judgment
of the Comissione's Cour^t in Boston After the Attachment Courts
Judgment reasons of Appeale & evidences in the Case produced were
read Comited to the Jury & are on file wth the Reccords of this Court
the Jury brought in their virdict they found for the deffend^t thirty

veren ag^t frost

two yds of noyl'es Canvas at 18^d p yrd or forty eight shilling and
 2 Jur. sixe pence money & Costs of Courts twenty two shillings & 4^d.

Thomas Woodbridge Attorney & sue'ty to Cap' Paul white plain-
 tiff ag' Jotham* Hendrick deffend' in an Accon of Appeale
 woodbridge ag' from the Judgment of the County Court at Salisbury.
 Hendrick
 exec Issued out After the Attachment Courts Judgm' Reasons of
 26 Apr 83 Appeale & evidences in the Case produced were read
 Comitted to the Jury and are on file wth the Reccords of this Court the
 Jury brought in their virdict they found for the deffend' Confirmation
 of the former Judgment & Costs of Courts thirty shillings =

Thomas woodbridge Attorney & suerty to Capt
 2 Jury Paul white plaintiff against Josiah Heath deffendant
 Idem ag' Heath in an Accon of Appeale from the Judgment of the
 County Cour' at Salisbury After the Attachment
 Courts Judgment Reasons of Appeale & Evidences in the Case pro-
 duced were Read Comitted to the Jury & are on file wth the Reccords
 of this Court the Jury brought in their virdict they
 heath App^d not e^r found for the deffendant Confirmation of the former
 Judgment & Costs of Courts =

Samuel Legg plaintiff against James flood de-
 1st Jur fendant' in an action of Appeale from the Judgment
 Legg ag' flood of the last County Court at Boston After the Attach-
 ment Courts Judgment Reasons of Appeale & eui-
 dences in the Case produced were read Comitted to the Jury and are on
 file wth the Reccords of this Cour' the Jury brought in their virdict
 they found for the plaintiff three pounds nine shillings & nine pence
 damage in mony & Costs of Courts.

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1679

Joseph Rock plaintiff ag' Sarah frank's widdow
 Rock ag' frank's deffend' in an Accon of Appeale from the Judgment
 of the County Court in Boston After the Attachment Courts Judgmt
 Reasons of Appeale & evidences in the Case produced were Read Com-
 itted to the Jury and are Remayning on file wth the Reccords of this
 Court the Jury brought in their virdict [†] to whome it only belonged

* Written over "Abraham."

† There is evidently an omission here in the record of the word "magistrates."

having on s^d Rocks Request chanceried his bond declared they Confirmed the Judgment of the County Court wth Costs of Courts = thirty seven shillings & eight pence

Jn^o Pickard & Ezekiel northen as they are Lott layers c^r plaintiff ag^t willjam Longfellow deffendant in an Ac^on of Appeale from the Judgment of the County Court at Salem After the Attachment Courts Judgmen^t Reason^s of Appeale & Euidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they ffound for the plaintiff Reu^sion of the former Judgment & Costs of Courts five pounds twelue shillings & six pence

Pickard c^r ag^t long-fell^w 1 Action as to division of lands

2 Jur

Jn^o Pickard & ezekiell northend plaintiff ag^t willjam Longfellow deffend^t in an Action of Appeale from the Judgment of the County Court at Salem: After the Attachment Courts Judgment Reasons of Appeale & euidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts three pounds fourteen shillings & two pence=

Pickard ag^t Long-fellow
— — —
2d Jur

Samuel Pepen plaintiff in an action of Appeale ag^t Benjamin marshall deffend^t from the Judgment of the County Court at Salem = After the Attachmt Courts Judgment Reasons of Appeale & euidences in the Case produced were Read Comitted to the Jury and are Remayning on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiffe reuersion of the forme^r Judgm^t & Costs of Courts three pounds sixteen shillings and sixe pence =

1st Ju :
Pepen ag^t marshall

M^s Elisabeth Dunster & Jonathan Dunster plaintiff ag^t Ebenezar Prout deffendant in an Action of Appeale from the Judgment of the County Court at Charles Towne: After the Attachment Courts Judgment Reasons of Appeale & euidences in the Case produced were Read Comitted to y^e 11 of y^e Jury by consent of both partjes & are on file the Jury brought in their virdict they found for y^e deffendant Confirmation of y^e forme^r Judgm^t & Costs of Courts thirty two shillings & two pence =

2 Jury
Dunster ag^t Prout

exec Issued out

Jn^o wisewall plaintiff ag^t Jn^o Keene deffend^t in an Accon of Appeale ffrom the Judgment of the County Court at Boston After the Attachment Courts Judgment & Reasons of Appeale wisewall ag^t keene & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff reuersion of the former Judgment & Costs of Court the magist^s sen^t y^e Jury out once & Againe on this virdict but they_Λ no^t Altering = they Refferd y^e Reception till 20th octobe^r

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1679

Jn^o warner plaintiff ag^t Benja: ffranckljn deffend^t in an Accon of Appeale from the Judgment of the County Court at Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff twenty pounds nineteene shilling damage in mony & Costs of Court:

Jn^o. Warner ag^t
Benja: francklin

Execution of y^e
Judgm^t was sus-
pended 20 8ber 1679
vide other side

In Ans^r to the petition of mary Bishop for a divorce from hir husband Job Bishop he hauing absented himself from hir seventeen yeares and since marrjed to another woman in the Barbadoes & liues wth hir as his wife as Appeares by testimony the Court Grants hir request a divorce from Job Bishop hir late husband =

mary Bishop^s
diuors

Morris Conway being Comitted to prison for Inticeing others to steale a boate & turn pyrate c^r After his examination wth the evidenc was Read to him being at the Barr the Court = sentenc^t him to be whip^t wth fueteen stripes paying chardges of prosecution & ffees standing Comitted till the sentenc be performed =

Conway^s sentenc

George shepardson being alike Comitted for Inticing & perswad- ing morrice Conway to steale a boate & Run away wth it after the Court had Considered his Case & evidences Alike sentenc^t him to be whip^t wth fueteen stripes paying charg of prosecution & ffees standing Comitted till the sentenc be performed

Shepardsons
sentenc

Richard chamberlayne bein[g] in like manner Accused & Comitted the Court Considering his Case presented he was Admonisht & on his paying ffes was dischardged =

Chamberlain Admō
nis & ffes =

Sara Bradbrooke being Comitted for stealling a peec of silke ffarrendine Coulord found wth hir seuerall yrds of blacke fowe^r penny Ribboning fowe^r skeynes of silke from m^r Hezekiah vsher as also a smale brass kette & two porringers the Court sentenc^t hir to pay vnto m^r Hezekiah vsher seven pounds as full payment for treble damag^{es} as also to pay unto m^r Samuell Shrimpton twenty shillings in full for treble Damages & y^t yow be whipt wth ~~twenty~~ ^{tenn} stripes paying ffes of Court standing Comitted till this sentenc be performed =

Sarah Bradbrooks
sentence

Sarah Bradbrook in Court Accused Thomas Compton then In Court m^r Hezekiah vshe's se'vant for bring[ing] the said ffarrendene silke & Ribboning to hir about 3 or 4 nights after the late fier in Boston & deposed the same on hir solemn oath on weh sd Compton was Comitted. he denjed the fact tho some of y^e same Ribboning was on hir shirt necke & hands & Joseph Pears Coming in to y^e Cour^t & declaring he had seene this quantity of silk & Coulor y^e same in sd Compton^s hand some short time after the fier. Compton was sent for & said Pears deposed to y^e trueth of his Affirmation The Court declar^d that he was Con- victed of stealing y^e sd Farrendene & silke & sentenc^t him to pay half the aboue mentioned treble damages to m^r vsher and to be seuerely whipt wth twenty stripes seuerely layd on paying ffes of Cour^t & standing Comitted till this sentence be performed =

Tho Comptons sen-
tenc

[103]

1679

Joshua Atwater on suspicion of hauing a hand in the late dreadfull fire in Boston his examination & euidence were Comitted to y^e Grand Jury who brought in they found him not guilty & so he was dischardged =

Josh Atwaters^a

Peeter Lorphelin ffrenchman on the 8th of August last being Accused for Rash Insulting speeches in the time of the late Con- flagration = thereby Rendring himself Justly suspitious of hauing a hand therein was seized on & Comitted to the Goale in Boston and

being examined = Authority Judged it meet to orde^r his chest & writtings to be searcht into by the Constables in presence of some other Gent^l Appointed to see it don, in whose chest was found two or three crucibles a melting pan a strong paire of shee's to clip mony & seuerall clippings of the massachusetts mony & some other Instruments & on his examination where he had them & what money^e he had clipped, & how long he had vsed that trade to wch after Counsell Given that he would speake the trueth; It was vajne to hide it those being found in his Custody; he solemnly Called God to wittnes that he had not clipt any money^e, that the Instruments *of* found wth him he had tooke them out of a privatee's chest in ou^r Harbou^r vnde^r Lamoignes power being sent by Authority to search their chests & persisted in that bold & Impudent lye so was Comitted to prison Againe but in a day or two he sent a letter to the secretary in which he declared that what he had so Affirmed before Authority was false & that he had received the said Instrum^{ts} & Clippings of mony from a privateere about fowe^r or fve yeares since as sent to him from said Privatee^r by a woman where said Privateere lodged thô he knew not the womans name All which Considered The Court Considring you^r offense so proved Against yo^u sentenceth yo^u to stand vpon the pillory two howers & then to haue both you^r eares cut off by the executioner and to give bond in fve hundred pounds wth two suertjes to the sattisfaction of the Go^uno^r & Council for you^r good Abearance for y^e future & pay chardges of prosecution & ffes of Court standing Comitted till the sentenc be performed = wch sentenc was executed Accordingly — — — —

y^e Court was Ad-
journed to 20 october
79 E R S

wiswall & warners
executions
suspended

At the Courts Adjournment held at Boston 20th of octobe^r 1679 It is ordered that the executions in both wisewalls & francklins or warners cases be suspended til the Court take further order =

On the peticon of John Warner the Court Judgeth it meet to orde^r that the said John Warner now In prison be releast & set at libe^{ty} paying his prison chardges =

Warners liberty

In Ans^r to the petiçon of John Sparrey relating to John Kelly a prisoner & his debtor. The Court Judgeth it meete to take of the forme^r ljmitation of selling the prisoner

Jn^o Sparrey's liberty
to sell Jn^o Kelly =

onely to those of this Colony & leaue him to the libe'ty of the law for the disposing of him = E R S

In A Answer to the peticon of mary white for a divorce from hir husband Joseph white _A

[104]

1679

major Hawthons
fine of 40^s remitted
E R S *

m^r Ezekel Knight y^t married m^r valentine Hills
widdow presenting an orde^r of y^e Court of Assis^t 2^d
Sep^r 62 Impowring Elde^r HateEvill nutter Leift Hall & Ensigne
Jn^o Daus of oyste^r Riuer as Comissioⁿs to vejw y^e se^wll lands
mills woods lately in possession of sajd valentine Hill *or* and
either to lay out y^e Iust due & thirds of such mills land^s houses
to y^e sajd mary *or* make Iust full & due Composition wth all
& euery y^e persons for hir Interest therein Appearing & sajd Elde^r
nutter being dead & m^r Joseph Hill vncapable & lef^t Hall remote y^t
nothing as yet hath binn donn on his the sajd Knights request It is
ordered y^t ensigne Jn^o Daus Cap^t wincoll & Cap^t ffrost shall & hereby
are desired and Impowred forthwith to see the s^d former order be
duely executed & hir the sajd mary^s thirds layd out as by that orde^r
was Appointed & y^eir returne made thereof to y^e Court of Assistants
vnder their hands in march nex^t = by y^e Cour^t E R S †

Att A Court of Assistants or Court of Admiralty held at Boston
24th Septembe 1679

Nicholas Shapleigh & Richard Naggs marrine's
of ship Jn^o Adventure plt ag^t Andrew Craty master
or deffend^t & ship for || y^eir || wages *or* as p^r libell. The pltffs &
deffendants appearing in Court declared they were
Agreed & the plaintiff wthdrew his Ac^{ti}on =

Shapleigh & Nag
ag^t Craty =

y^e charges of Court
3rd declared

Nicholas shapleigh & Richard nags being sworne saith that to the
Information of the french Counte^bband goods & brandy brought in
the ship Jn^o Adventure on their oathe^s Affirmed
that they knew no^t of any that w^t they mentioned
in their libell it was the slip of the pen. = The
Court fined the sajd Naggs & shapleigh tenn shil-
lings apeece for their pernicious lye to y^e Country. =
attests E R S

shapleigh & naggs
find 10^s apeece for
y^eir lye w^{ch} m^r sh
webb tooke as he
told me
=

* See p. 90.

† The above record and the memorandum as to Hawthons fine appear to have been inserted at a later date in the small blank space at the top of the page.

Att A Court of Assistants or Court of Admiralty sitting in Boston
26 January & from thence Adjourned to y^e 2^d of february 1679

present
Symon Bradstreet
Esq^r Go^d
Tho Danforth Esq^r
dep^t Go^d Esq^r
Daniel Gookin
Edw^d Tyng
w^m Staughton
Joseph dudley
Peter Bulkley
Humphry Dauy
& also App^rd
Daniell Dennison
Nathaniel Salton-
stall
4th febr. 79
— — — —

In the Case of John Goose late master of Barcq
Hope by his libell & Comp^t dated 20 January last
plaintiff ag^t Hugh Campbell merchant & ownor of the
sajd barcq deffendant for his the sajd Campbells de-
nying to pay the sajd Goose his wages as mentioned
in the sajd libell with other his charges expended and
denying to give the plaintiffe security for the seamens

Court charge 3:6. 8.

Execution Issued
out

20 febr 1679 for 15th

16: = E R S =

wages = After the Court had perved
and Considered of the pleas and eui-
dences in the Case produced they
ordered and decreed that the deffend-
ant pay vnto the plaintiffe tenn

pounds damage in mony & is in full of all his wages *℥* & Costs of
Court fue pounds sixteen shillings

[*Blank space.*]

[105]

1679

In the Case of Robert Pelton late mate of the barcq Hope by his
libell & Complaint exhibbited to this Court dated
Pelton ag^t Campbell 20th of January 1679 last Against Hugh Campbell
merchant & ownor of the sajd barcq deffendant for his the sajd Camp-
bells denying to pay him his wages as he was mate and a short time
master of the sajd vessell as also his disbursments in sajd vessell as in
the sajd Lybell is exprest refference thereto being had After the Court
had heard the Case Considered the plea & evidences in the Case pro-
duced the Court ordered and decreed that the deffend^t pay vnto the
plaintiffe seven pounds mony in full of all his wages *℥* & Cost of
Court fowe^r pounds seventeene shillings and sixe
pence: Campbell had pelton^s bill of exchaing in
open Court returnd to him againe a[nd] not medled
wth =

execution Issued
out 13 febr 1679 for
11th: 17^s. 6.

In the Case of Hugh Campbell merchant & ownor of the barq
Hope by his libell & Complaint exhibbited to this Court
Hugh Campbell vs dated 28th of January last plaintiff against John
Jn^s Goose Goose late master of the sajd Barcq deffend^t for his
breach of charte^r party and damages exprest at large in the sajd libell

reference thereto being had After the Court had heard the plea^s & evidences in that Case produced The Court adjudged for the plaintiffe fusteeen pounds in mony & damage & Costs of Court sixe pounds sixteene shillings —

Att A Court of Assistants on Adjourn^t or Court of Admiralty held at Boston first day of June 1680

Edward Randolph Esq^r In behalfe of our Soueraigne Lord the king &c by his libell or declaration Plaintiffe agains^t the Pyncke expectation m^r Tho Gretian master hir tackle & Appurtenances as forfeited & seized to and for his majestyes vse &c as in his declaration on file more fully doth and may Appear: The Case was Called the sajd m^r Randolph Appeared Thomas Gretian Appeared by m^r Anthony Cheeckly his Attorney who produced his power wch was Read the warrant & declaration was || also || Read m^r cheeckly Attorney aforesajd pleaded much for a non siute seuerall pape^s produced wch are on file were read as the Act^s of Parljam^{nt} in Book of Rates p 158 e^r

m^r Edward Randolph in open Court declared that he did heere desire to p^{ro}secute his Information Given into this Court as Informer on his majty^s behalfe e^r m^r cheeckly still pressing for a non suite It was put to the Question to the Court by

[106]

1679

the Depty Go^uno^r whither the deffendant on what was pleaded should haue a non suite Granted him or not It was resolved on the Affirmative a non suite is Granted by the Court The Dep^t Go^u declar^d the non suit & dismiss the Jury:

At this Court m^r Samuel Shrimpton Appeared and declaring that m^r Randolph had seized seventene butts of his brandy distilled he being ready to proove by his servant that he distilled it wch m^r Randolph declared was satisfactory to him & also to the Court the Court declared the sajd Brandy to be free.

execution Issued
on^t 19th febr 79 for
21st 16^s

— — — —

present
Symon Bradstreet
Esq^r Go^u
Tho Danforth Esq^r
dep^t Go.

Daniel Gookin
Daniel Dennison
Jn^o Pyncheon
Edw^d Tyng
W^m Stoughton
Joseph Dudley
Peeter Bulkley
Nath Saltonstall
Humphry Dauby
w^m Broune Seⁿ
Jn^o Hull
Jn^o Richards
James Russell
Peter Tilton

— — — —

persons Returnd to
serve on y^e Jury &
sworn were

— — — —
m^r Tymothy Prout
seⁿ
John Walley
James whetcombe
Benjn walker

Tho Edwards
Natha Byssfeld
Tho sauge Juⁿ
w^m Foster
Richard sprague
Andrew Belchar
Phillip Knell
John Blayny

— — — —

The Court Adjourned themselues to the 8th Instant at one of the clocke in orde^r in orde^r * to a hearing of m^r Randolph^s Case

present
 Tho Danforth Esq^r dep^t Go^v
 Daniel Gookin
 John Pyncheon
 Nathaniell Saltonstall
 Humphry Davy
 Thomas Sauage
 Jⁿ^o Hull
 James Russell
 Peter Tylton
 John Richards
 — — —
 person^s Returnd to
 seve on this Jury
 were & sworne
 — — —
 m^r John Saffyn
 m^r christopher
 clarke
 Dauid Edwards
 stephen Burton
 Anthony Hayward
 Tho moore
 Edw^d willis
 W^m clarke
 Nathan : Cary
 Nathan : Heyman
 Henry Sandiford
 Thomas Lynes
 — — —

Att an Adjourmen^t of the Court of As-
 sistants ~~or Admiralty~~ held at Boston 8 June
 1680

Edward Randolph Esq^r Collecto^r sur-
 veyor & searcher of his majty^s Customs in
 New England as well for & in behalfe of ou^r
 Soueraigne Lord ~~the~~ king Charles the second
 c^r and the Honnored Symon Bradstreet Esq^r
 as for himselfe c^r as in his libell or declaration bear-
 ing date the third of June 1680 Amply Appeares plain-
 tiffe against Thomas Gretian m^r of ~~chip~~ Pinck ex-
 pectation & Against the sajd Pinck hir tackle and
 Appurtenances defend^t as forfeited to and for his
 Majties vse c^r as in his declaration Reference thereto

being had may Appaere c^r The Case
 was Called m^r Randolph Appeared
 so did Thomas Gretian hauing binn sumoned (togethe^r
 wth his Attorney m^r Anthony checkly) the libell &
 declaration wth other his euidences by him produced
 in Cour^t were Reade together wth the pleas and eui-
 dences produced by the deffendant which being duely Con[s]idered of
 was Comitted to the Jury who brought in their virdict: i e they found
 for the deffendant Costs of Court y^e deffendant brought in his bill of
 Costs w^{ch} afterward he desired to wthdraw by orde^r of the Go^vno^r it
 was deliuered out to him =

Att A Court of Assistants or Court of Admiralty
 held or sitting in Boston 7 August 1680 ‡

Tucker c^r ag^t Loyd
 present Symō Brad-
 street Esq^r Go^v §
 Tho Danforth Esq^r
 dep^t Go^v
 Daniel Gookin
 Edw^d Tyng
 w^m staughton
 Joseph Dudley
 Peter Bulkley

Edw^d Tucker Jⁿ^o Tucker Richard Hicks & francis
 Hicks marrine's & seamen belonging to ship michael
 of Bristol plaintiffe Against Abraham Loyd master &
 Comander of sajd ship & sajd ship deffendant in an
 action of the Case for that the sajd master not only

* Two words repeated in the record.

‡ The record of this and the two preceeding Courts was evidently entered out of its chrono-
 logical order.

§ The names of the magistrates were apparently written in at a later date.

refuseth to pay them their wages having altered his
 designe & voyage, doth also refuse to sett them at
 liberty as in their libell & Complaint exhibbited to this
 Court dated the 6th of August Inst reference thereto
 being had may Appeare the partjes plaintiff & deffendants appeared
 And after the Court had heard their plea & maste's Ans' & Considered
 the Case = determined & ordered that the sajd master Abraham loyd
 pay the sajd seamen all their wages i e to Edward Tucker seven
 pounds fowe' shillings to John Tucker his wages seven pounds fowe'
 shillings to Richard Hicks his wages seven pounds fowe' shillings and
 to Francis Hicks his wages seven pounds fower shillings and also pay
 them their Costs of Court fowe' pounds tenn shillings = And that the
 seamen goe their voyage to London wth sajd master =

Humphry Davy
 Tho Savage
 J^{ns} Hull
 [J^{ns} Richard[s]
 [James] Russell

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1679

Att A Court of Assistants held at Bos-
 ton 2^d day of march 1679.

Thomas Hill plaintiff against W^m Obbin-
 son deffendant in an action of Appeale from
 the Judgment of the County Court in Boston
 Afte' the Attachment Courts Judgment
 reason' of Appeale & evidences in the Case
 produced were read Comitted to the Jury & are on
 file the Jury brought in their virdict they found a
 speciall virdict: If the lessor not performing his part
 of the Couenant doth disobleige the lessee from his
 part of the Couenant then wee finde for the deffendant
 Confirmation of the forme' Judgement of the forme'
 Court & Costs of Courts If not wee finde for the
 plaintiffe tenn pounds in money & Costs of Courts
 the Court Resolves this question on the negative that
 the lessor's non-p'formance of the Couenant doth not
 disobleige the lesse* & determins for the ~~deffendant~~
~~confirmation of the former judgment~~ plaintiff that
 the deffendant pay the plaintiff || tenn pounds money
 & Costs of Courts three pounds fower shillings & eight
 pence. —

present
 Symon Bradstreet Esqr Go^d
 Tho Danforth Esqr dep^t Go^d
 Daniel Gookin
 Daniel Dennison
 w^m Stoughton
 Joseph dudley
 Peeter Bulkley
 Nathaniel Saltonstall
 Humphry Davy
 — — — —

Esq^{rs}

persons Returnd to
 serve on the Grand
 Jury & sworne
 were =

— — — —
 m^r John Long.
 Francis douse
 Jerremiah Fitch
 Joseph Dauls
 Bartholmew cheeuers
 John Bateman
 Samuel Willjams
 John May
 Henry Bright
 Gregory Cooke
 Isack Jones
 Tho Jenner
 John Stone
 Samuel Andrewes
 — — — —

persons Returnd
 to serve on y^e || 1st ||
 Jury of trjalls for
 Appeales life limbe
 & Banishm^t
 — — — —

Hannah Negro plaintiff in an Accon of Appeale

* lessee ?

m^r John Hubbard
 Thomas Newman
 John watson
 Suball Seaver
 John whitney
 Benja: Garfeild
 Roger Sumner
 James Foster
 Thomas Tucke
 John Cutler Jun^r
 Isack williams
 Peeter Towne
 — — — —

from the sentence of the last County Court in Boston
 as to y^e mulk = After the Courts sentenc was read
 e^r the Jury brought in their virdict they found the
 said Hannah Negro Guilty of matter of fact then
 charged vpon hir & Costs of Courts

Thomas Holmes plaintiff ag^t majo^r Thomas Clarke
 deffend^t in an action of Appeale from the Judgment
 of the last County Court in Boston = After the At-
 tachment Courts Judgment Reasons of Appeale & evidences in the Case
 produced were read Comitted to the Jury & are on file. the Jury brought
 in their virdict they found for the deffendant Confirmation of the forme^r
 Judgment & Costs of Courts the bench hauing heard the plaintiffs At-
 turney & the deffendant pleas did chancerje the bond to the principall
 sume according to bond one hundred & Twenty pounds money to be paid
 yearly twenty fowe^r pounds the first payment was to beginne the first
 of July 1675 and so on the first of July yearly successiue as men-
 tioned in the bond wth sixe p^p Cent for Interest wth Comes in all to the
 9th Inst to one hundred thirty nine pounds three shillings [with ff^{ty} *]
 fve shiling^r & two pence costs = 45^s 2^d || execution Issued out 10
 mrch 79 ||

Joshua Scottow plaintiff ag^t Samuel wheelewright deffend^t in an
 Accon of Appeal from the Judgment of the County Court in Boston
 After the Attachment Courts Judgement reasons of Appeale & ei-
 dences in the Case produced were read Comitted to the Jury & are on
 file wth the reccords of this Court the Jury brought in their virdict they
 found for the deffendant Confirmation of the form^r Judgment & Costs
 of Courts fve pounds fueteen shilling^s & ten pence

Richard martjn plaintiffe ag^t Jn^o Briggs & Benjamin martyn de-
 ffendants in an Action of Appeale from the Judgment of the County
 Court at charlsTowne After the Attachment Courts
 Judgment reasons of Appeale & evidences in the Case
 produced were read Comitted to the Jury & are on
 file wth the Reccords of this Court the Jury brought in their virdict
 that if the s^d Richard martyn Coming to New-England Contrary to his
 Contract wth his men though not prooved a deliuering port doe release
 them from that voyage as in law pag 95 sect 9 then wee find for the

martyn ag^t Briggs
 e^r

* Written over the cancelled words "and two pence Costs."

deffendants Confirmation of the former Judgment & Costs of Courts if not wee find for the plaintiff Reuersion of the forme Judgment & Costs of Courts The bench declares & determines for y^e deffendants three pounds fowe shillings & six pence

Ann Dauenport Attorney to francis dauenport he now being p'sent plaintiff in an Accon of Appeale from the Judgment or settlement of y^e estate of w^m snelling deceased by y^e County Court in Boston. This Case was Called & non suited becaus the reasons of Appeale were no^t signed wth hir name.

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1679

Cap^t Daniel Henchman in behalf of himself & Left Richard woody Guardians to the 5 children of Anne Hitt plaintiff ag^t the sentence or settlement of the County Court last in Novembe^r of y^t estate after y^e County Courts Judgment *er* was Read wth the evidences in the Case produced This Court Confirms the settlement of the County Court

Isack waldron plaintiff ag^t George walton deffendant in an action of Appeale from the Judgment of the Court of Associats at portsmouth 30th Sep^r 79 after the Courts Judgment & Reason^s of Appeale was Read y^e partjes i e. ye plaintiff & deffend^t by his Attorney Hen Roby Appeared || *er* || y^e Attorney pleaded It was not now in o^r Jurisdiction & not to be tried here wch y^e plaintiff accepted of & so it fell =

persons Returned to
serve on y^e 2^d Jury
for trialls of
Appeale & for life
limb & banish-
ment =

sworne

— — — —
m^r Jeremiah Dum-
mer

Pen Townsend
John Endecott
Isack Newell
Robert Herrington
Samuel Sternes
Samuel Paul
Joseph Leeds
Richard Loudon
Samuel Ballard
Jonathan Hydes
Thomas Langhorne
— — — —

Nathaniel Byfeild execcuto^r of the last will of the late Cap^t Thomas Clarke plaintiffe against John Taylor & Symeon messenger deffend^t in an Action of Appeale from the Comissione^s Court in Boston = After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for the plaintiffe reuersion of the former Judgment & three pounds fueteene shillings damage || in money || & Costs of Courts thirty seven shillings & tenn pence =

Byfeild ag^t Taylor
& messenger

Cap^t Nicholas Manning plaintiff ag^t Resolued whight & Abigaile

Manning agt white his wife relict of the late w^m Lord defendant in An action of Appeale from the Judgm^t of the County Court at Salem After the Attachment Courts Judgmen^t Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts twenty eight shillings & six pence =

m^r w^m Hooke plaintiffe ag^t majo^r Robe^t Pike deffend^t In an Action of Appeale from the Judgment of the County Court at Sallisbury
Hooke ag^t Pike After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case || produced || were read Comitted to y^e Jury before virdict || came in || by Consent of partjes the Case was reffered to the hearing of Cap^t John Apleton Cap^t John whiple & maximillian Jewet who are to Goe on the place heare both partjes & determine & conclud the Case the partjes Acknowledging themselues bound in one hundred pounds apeece each to other to stand to & abide the determination of the whole Case & Costs of Courts Cap^t Apleton to Appoint time & place of meeting between this & Aprill & that it be ended before 1st of may next the whole Case by orde^r of y^e Court was dd to Plaintiff & deffendant in open Court =

Jn^o Apleton Juⁿ plaintiffe ag^t Abell porter deffendant in an action of Appeale from the Judgment of the County Court at Boston after the Attachment Courts Judgment reasons of Appeale and evidences in the Case produced were read Comitted to the Jury & are on file wth the reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Courts || After y^e Court had heard y^e partjes pleas [for ?] a chancery of y^e bond they Judged it meet iⁿ e || ~~on hearing of partjes~~ the bench || to || chancery * the bond to forty five pounds mony & Costs of Courts the plaintiff taking the debts & Goods in virginea to himself y^e Costs allowed being fowe^r pound sixteene shillings and two pence =

Apleton ag^t Porter

exec Issued out 19
m^{ch} 79 for 49. 16.
24 E R S

* First written "chanceried."

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1679

m^r Nicholas Paige & m^r Jno Poole plaintiff^s in an action of Appeale ag^t m^r Paul Dudley & Cap^t Edward Tyng deffend^t from the Judgment of the County Court at Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant^s Confirmation of the forme^r Judgment & Costs of Courts forty three shillings e^r =

Paige e^r ag^t dud-
ley e^r

John Willjams plaintiff^s in an Accon of Appeale ag^t James Townsend deffend^t from the Judgment of the County Court at Boston this Accon was Called no Reasons Appeard signed by a legall Attorney nor vnder y^e plaintiff^s hand the plaintiff^s was declar^d to be non suited & the deffendant to haue his Costs seven shillings =

Wm^s ag^t Tounsend

Jn^o Endecot plaintiffe on Appeale from the sentence of the County Court at Boston in Novembe^r last this Accon was Refferd by y^r plaintiff^s to y^e eleven of the Jury After y^e Courts sentenc was read wth y^e evidences produced the Jury brought in their virdict they found y^e plt no^t guilty of matter of fact =

Jn^o Endecot disch^g

John Gifford plaintiffe against Robe^t Lord marshall of Ipswich deffend^t in an action of Appeale from the Judgment of the County Court at Salem after the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Cour^t the Jury brought in their virdict they found for the deffend^t Confirmation of the forme^r Judgment & Costs of Courts forty shillings and two pence

Gifford ag^t Lord

Execution Issued
out 27 m^{ch} 80

Thomas Wells plaintiff^s ag^t Edward Allin deffend^t in an Action of Appeale from the Judgment of the Comissioners Court in Boston After the Attachm^t Courts Judgment Reason^s of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the reccords of this Court the Jury brought in their virdict they found for y^e deffendant confirmation of the forme^r Judgment & costs of Courts

Wells ag^t Allin

Robert Swann plaintiff ag^t Left George Browne & Daniel Ela
Attorneys for the Towne of Hauerill deffend^t in an Action of Appeale
from the Judgment of the County Court at Sallisbury
Swann Ag^t Browne & Ela = after the Attachment Courts Judgment Reasons of
Appeal & evidences in the Case produced were read
Comitted to the Jury and are on file wth the reccords of this Court the
Jury brought in their virdict they found for the defendant Confirmation
of the forme^r Judgment & Costs of Courts five pounds sixe shillings
& eight pence =

Francis Quilter plaintiffe against Joseph Quilter deffendant in an
Action of Appeale from the Judgment of the County
Quilter ag^t Quilter — — — — Court at Ipsuich this Accon was Called & being
testified & owned that the partjes were Agreed y^e
plaintiff wth drew hir Action

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1679

John Dafforne plain^t ag^t Jn^o Keene deffendant in an action of
Appeale from the Judgment of the County Court in
Boston After the Attachment Courts Judgmen[t] Rea-
Dafforne ag^t ~~Dafforne~~ || Keene || sons of Appeale & evidences in the Case were read
1st Jur comitted to the Jury and are on file wth the Reccords
of this Court the Jury brought in their virdict they found for the de-
ffendant Confirmation of the former Judgment & Costs of Courts
thirty ~~thre~~ || nine || shilling & eight* pence =

Henry Elliot plaintiff Contra Georg Dauson deffendant In an
action of Appeale from the Judgment of the County
Elliot ag^t Dauson Court in January last After the Courts Judgment
1st Jury — Reasons of Appeale & evidences in the Case produced
were read Comitted to the Jury & are on file wth the Reccords of this
Court the Jury brought in their virdict they found for the Appellant
reuersion of the forme^r Judgment & costs of Courts = forty six † shil-
lings & two pence — Henry Elljot in open Court engaged that he would
deliuer the Indian to George Dauson or his orde^r dead or aliuie =

James Broune plaintiff against John Trumble deffendant in an
action of Appeale from the Judgment of the County
Broune ag^t Trumble Court at charlsTowne after the Attachment Courts
1st Jur. Judgment reasons of Appeale & evidences in the Case

* Written over "six."

† Written over "fifty one."

produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for y^e deffend^t that the plaintiff deliuer the goods sued for or in defect thereof seven pounds fiueteene shilling^s & eleven pence in merchantable pay wthin two moneths time & costs of the forme^r Court =

exec issued out 17
may 80 for 8 : 18 : 9
E R S.

Samuel Bellingham Esq^r plaintiffe against Cap^t Lawrence Hamond & margaret his wife execcutrix to y^e last will of the late Francis willowby Esq^r deffendant in an action of Appeale from the Judgment of the County Court at Cambridge in octobe^r last After the Attachment Courts Judgment Reasons of Appeale & euidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for y^e deffend^t the forfeiture of the bond one hundred pounds starling money of England & Costs of this * || & || forme^r Court[s]: 15^s 10^d This Judgm^t is to stand entred according to law from y^e nex^t Court of Assistants in Septembe^r nex^t

Bellingham ag^t
Hamond
1st Jur.

w^m west || plt || ag^t Nicholas Paige Attorney to Benjamin Barter deffend^t in an Action of Appeale from the Judgment of the County Court in Novembe^r last at Boston After the Attachment Courts Judgment Reasons of Appeale & euidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict i e If stopping of mony due by bill of exchainge by Attaching of it in the hands of him by whom the bill of exchainge is draune be a sufficient barr for the non payment of the money sued for then wee find for the plaintiff reuersion of the former Judgment & Costs of Courts if no^t wee find for the deffendant Confirmation of the forme^r Judgement & Costs of Courts = The Bench resolves this Question on the negative & so determines this Case for the deffendant Confirmation of the former Judgment & Costs of Courts three pounds eight shillings

West con^t Nicco.
Paige

[111]

1679

Peter chocke plaintiffe ag^t w^m morgan deffendant in an Action of Appeale from the Judgm^t of the Comisso's Court in Boston After the Attachment Courts Judgmen[t] Reasons of Appeale & euidences in the Case produced

Chocke Contr:
Morgan
2^d Jur :=

* Written over " the."

were read Comitted to the Jury and are on file wth the Reccords of
 this Court the Jury brought in their virdit they
 exec Issued out 8: found for reuersion of the former Judgment & twenty
 Aug^r 80 for 3: 14^s: eight shillings damage & Costs of Courts forty six
 c^r shillings =

Thomas wate's being Comitted to prison for comitting a Rape on
 the body of Bethya Johnson The Grand Jury presenting of him & by
 their bill left to further Tryall was brought to the barr and was
 Indicted by the name of Thomas wate's late Resident of wooborne
 for not hauing the feare of God before his eyes &
 being Instigated by the Diuill did sometime in January
 last Comitt a rape on the body of Bethya Johnson
 daughter of John Johnson of s^d wooborne Contrary to the peace of
 ou^r Soueraigne Lord the king his Croune & dignity the lawes of God
 & of this Jurisdiction to which Indictment he pleaded no^t guilty put
 himself on God & the Country for his trjall After the euidences in the
 Case produced were read Comitted to the Jury & are on file wth the
 Reccords of this Court the Jury brought in their virdict they found
 him not Guilty according to Indictment The Court Considering the
 Case orde'd him to pay the charge of his tryall & all the wittnesses
 y^t were Against him & that once wthin tenn dayes he depart this Juris-
 diction & no^t returne into it Againe wthout licence first
 obteyned from the Court on penalty of being Comitted
 to prison there to lye till he be dischargd thenc by
 orde^r of Authority paying ff^ee^e of Court & then be
 dischargd the prison =

Courts act as to
 Hugh Clarke &
 Abiel Lambe

In the Case of Hugh Clarke & Abjel Lambe the
 Court sees no cause to abate of the last Court of Assist-
 ants Judgment =

m^r || Jn^o || Alden producing his bill of Costs in the Accon be-
 tweene him & majo^r Thomas Clarke Amounting to
 five pounds fowe^r shilling & sixe penc being testified
 by maj^r sauage then Speake^r y^t Costs of Courts was
 allowed thô the clarke wrote only Court weh y^e clark
 likewise ouning the Court of Assistants now on Adjourn^t Allowed the
 costs to be fiue pounds mony =

Jn^o Alden's Costs
 vide Geⁿ Court
 may 1677

whereas in the Case betweene m^r Porter & m^r Apleton depending in the Court of Assistants about the Chancering of a bond of Arbitration It appears (through Inadvertency) that Judgment is entred Contrary to the Intention & order of the Court for a respitt vntill a further hearing It is hereby ordered & declared that the said Judgment be null & voyd in lawe and all acts since donne by either partje in prosecution of the said Judgment be in like manner null & voyd vntil the said Apleton haue opportunity of further plea whereunto he shall be Admitted before the end of the next Court of Assistants in September or the Court take further order therein :

pass
at Courts Adjourn^t
4 June 1680

[The following is written in the small blank space left at the foot of the page, as if inserted by the Secretary at a later date.]

The Grand Jury presenting Elisabeth morse y^e wife of w^m morse
e^r || she || was Indicted by the name of Elisabeth morse for that she not
hauing the feare of God before hir eyes being Instigated by the diuil
& hauing had familiarity wth the diuil contrary to the peace of our
So^{ve}aigne Lord the King his croune & dignity y^e lawes of God & of
this Jurisdiction: After the prison^r had pleaded not Guilty & put
himself on God & y^e Country for triall y^e evidences product were read
Comitted to the Jury y^e Jury brought in their virdict they found hir
Guilty according to Indictment & had sentenc^a

[112]

1680

Att a Court of Assistants or Court of Admiralty
sitting in Boston 7th of August 1680 =

present
Symon Bradstreet
Esq^r Go^{vt}
Tho Danforth Esq^r
dep^t Go^{vt}
Daniel Gookin
Edw^d Tyng
Joseph Dudley
Peeter Bulkley
Humphry Davy
Tho Sauage
John Hull
James Russell
— — — —

Jn^o macklish Carpenter^s mate James mullen
Cooper Jn^o sauage Jn^o Thomas & michael Johnson
marrine's of ship Herron plaintiff^s ag^t Cap^t Jn^o Ely
master of the said ship deffendants in an action of
the Case according to their libell exhibbited to said
Court bearing date the 4th of August 1680 the partjes
plaintiffe & deffend^t Appeared And after the Court
had heard their pleas & Ans^{rs} & Considered their
evidences in the Case produced This Court determind & order'd that
Cap^t Jn^o Ely the master pay the said seamen their seuerall wages to
this day viz^t to Jn^o macklish for his tenn month^s & 5 odd day^s service

at forty five shillings p m° is twenty two pounds ten shillings to James mullin for his like time at twenty 8^s p mo. fowe'teene pounds. To Jn° Thomas for his time at twenty five shilling^s p m°: twelve pounds tenn shillings To Jn° Sauage for his time at twenty fowe' shilling^s p mo twelve pounds & to michael Johnson for seuen month & odd days at twenty shillings p m°. seven pounds fower shillings deducting what they already haue had and two month wages p man to be reserved in the maste's hands for security of their service in the Remaying Voyage & the said plaintiffs to pay Costs c^r 15^s:

present
Simon Bradstreet Esq^r
Go^o
Tho. Danforth Esq^r dep^t
Go^o

Edward Tyng
Joseph Dudley
Peter Bulkley
Humphry Daury
Tho. Sauage
Wm Browne sen^d
John Hull

— — —
persons Returned to
serve on the Jury &
sworne were

— — —
m^r James Whet-
combe
Nathaniel Greene
Thomas Thatcher
Edward Bromefeld
Richard Harris
James Loyd
Samuel Chickley
Arthur Tanner
John Balston Jun^r
John Cutler
Solomon Phipps
Enoch moore

Att A Court of Assistants held at Boston on
Adjournmt 20th of August 1680

Edward Randolph Esq^r by his Information
exhibbited to this Court prosecuting in his
Majestyes name * as in said Information reffer-
ence thereto being had may Appeare plaintifffe c^r
Against Jonathan Jackson and Nathaniel Ballard
maste's of two sloopes loaden wth tobacco^m and other
Goods deffendants going downe as Informed to ship
S't John of Dublin lying out of Comand of the Castle,
After the Information and evidences in the Case pro-
duced were read Comitted to the Jury and are on file
wth the Reccords of this Court the Jury brought in
their virdict viz^t In the Case depending betweene
Edward Randolph Esq^r plaintifffe & Jonathan Jackson
& Nathaniel Ballard Deffendants The Jury finds for
the deffendants Costs of Court which was Granted
them three shillings =

[Page 113 is blank with the exception of the date 1680
at the top of the page.]

[114]

1680

present
Symon Bradstreet
Esq^r Go^o

Att A Court of Assistants held at Boston 7th 7ber
1680 =

* Written over "behalfc."

John Bateman plaintiffe against Robe't Taft deffendant in an action of Appeale from the Judgment of the County Court in Boston in Aprill last. After the Attachment Courts Judgment Reasons of appeale and evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the forme^r Judgment & Costs of Courts the plantiffe desired his bond might be chancerjed the Court hauing heard the plainff^s pleas & the deffendants Ans^r chanceried the bond to fiuteene pounds damage in mony y^e Costs Included all but filings : 2. 6

Thomas Hill plaintiff ag^t w^m obbinson deffend^t in an action of Appeale from the Judgment of the County Court in Aprill last After the Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & Remajne on file wth the Reccords of this Court the Jury brought in their virdict i e a speciall virdict That if the deffendant giving the plaintiff the key & saying It was the key of his doore if that give^s the plaintiff a Reentry then wee find for the deffendants Costs of Courts & if so Giving & Receiving the key gives no reentry then wee finde for the plaintiff tenn pounds damages in mony & Costs of Courts = The Court on the Consideration of this virdict Resolue^s it for the deffendant Costs of Courts nineteene shillings & tenn pence :

Thomas Hill plaintiff ag^t w^m Obbinson deffend^t in an action of Appeale from the Judgment of the County Court in Boston in Aprill last After the Attachment Courts Judgment Reasons of Apeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the reccords of this Court The Jury brought in their virdict they found for the deffendant fiuteene pounds in money damage & Costs

Daniel Gookin
Daniel Dennison
Edward Tyng
W^m Stoughton
Joseph Dudley
Peter Bulkley
2 Humphry Davy
1 Nath. Salton-
stall *
Thomas Sauage
John Hull
John Richards
James Russell

Grand Jury were
sumond Appeard
& were Called but
no occasion preent-
ing were dis-
chardged vide day
book

person^s Returned to
serve on the 1st Jury
of trials & sworne
were =

mr Samuel Legg
Jn^s clarke marriner
w^m Harris
James Taylor
Nathaniel Thayer
Tho Bacon
w^m Dauls
Richard Stowers
nich^s meade
obadiah Swift
Jn^s Barnard
Sam Leuermore =

person^s Returned to
serve on the 2^d Jury
for trials of Appeale
e^r sworne were =

mr Elizur Holliock
Jonathan Bridgham
Isack walker
Jabez Tatman
James Loudon
Isack Howle
Desire Clap
Thomas Strajte
Jn^s Jackson
nicholas fessingden
Andrew Boardman
John Fuller

* The numbers against these two names are in the original record and were intended to correct an error of arrangement.

of Court reuſing the former Judgment as to the othe^r part Costs two pounds fowe^r ſhilling^s & two pence —

Resolved white plaintiffe against Nicholas mañing deffendant in An Action of Appeale from the Judgment of the laſt County Court at Ipswich After the Attachment Courts Judgment Reasons of Apeale & evidences in the Caſe produced were read Comitted
 executi
 Iſſued
 to the Jury & are on file the Jury brought in their virdict they found for the plaintiffe y^e Reuersion of the former Judgment & Costs of Courts ſixe pounds two ſhillings & ſix pence =

Willjam Rauſon Attorney to Jame^{*} Greene plantiff ag^t John Bake^r deffed^t, an action of Appeale from the Judgment of the Comiſſion's Court After the Attachment Courts Judgment Reasons of Appeale & evidences in the Caſe produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought
 Rauſon ag^t Bake^r
 in their virdict they found for the deffendant Costs of Courts. the magiſts Comended the Caſe to the Jury once & Againe & ſent the Jury forth to conſ^der of it but they perſiſted & declard they † they Could not alter their virdict y^e Costs Agreed on was twelue ſhillings

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1680

Samuel Pelton plantiff ag^t Sam. Tompſon & John Tompſon Attorney^s to w^m Tompſon in an Action of Appeale from the Judgment of the County Court at Boſton Afte^r the Attachment Courts Judgment & Reaſon^s of Appeale and evidences in the caſe produced were Read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found a ſpeciall
 Pelton ag^t
 Thompſon =
 virdict If according to law A ‡ ſue^ty may ſue^ty may § ſue the principle for the foretime † of that bond wherein they are Jointly and ſeuerally bound Then the Jury finde for deffendant the Confirmation of the former Judgment & Costs of Courts, But if the law be otherwiſe the Jury finds for the plaintiffe the reuertjon of the former Judgment & Costs of Courts The Court on

* Error in the record for "James." See the letter of Attorney in No. 1889, Court Files, Suffolk.

† Error of the record for "that."

‡ Written over "of."

§ Two words repeated in the record.

† Error in the record for "forfeiture," as appears by the original verdict on file.

Consideration of this virdict Resolves the Question for the deffendant & grants Costs of Courts =

Phillip knight plaintiff ag^t Thomas Caue deffendant in an action of Appeale from the Judgment of the County Court at Salem After the Attachment the Courts Judgment Knight ag^t Caue Reasons of Appeale and evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court : The Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Court

Richard Hall & Elizabeth his wife plaintiffe against & Elizabeth his wife plaintiffe Against * Tho weld deffendant ¶ after y^e Attachm^t Courts Judgm^t Reasons of Appeale Richd Hall p^t ag^t
Tho weld : — e^r Read & Comitted to y^e Jury y^e Jury brought in y^rir virdict ¶ Confirmation of the former Judgment & Cost of Court^s twenty seven shilling^s & sixpence. =

Thomas walter plaintiff against John Gifford deffend^t = After the Attachm^t Courts Judgment & Reasons of Appeale & evidences in the Case produced were read Comitted walter ag^t Gifford to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff Reuision of the fforme^r Judgment & Costs of Courts

Thomas walter plaintiff ag^t John Gifford deffendant deffend^t † After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury walter ag^t Gifford and are on file wth the reccords of this Court the Jury brought in their virdict they found ffor the deffendant Confirmation of the former Judgment wth an Addition of twenty pounds more money damage & Costs of Courts three pounds three shillings

Samuel Dutch plaintiff Against Roger Darby deffendant in An action, Appeale from the Judgment of the County Court at Ipswich After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Dutch ag^t Darby Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they ffound for the plaintiff reuersion of the forme^r Judgment & Costs of Courts sixe pounds fowe^rteen shillings & sixe pence

* Six words repeated in the record.

† Written over "plaintiff."

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1680

John Hoare Assignee of marshall Richard wayte plaintiff against
 m's Elisabeth Cooke & m^r Elisha Cooke executo^rix &
 Hoare ag^t Cooke executo^r of y^e late Lef^t Richard Cook deffend^t in an
 action of Appeale from the Judgment of the County Court at Cam-
 bridge in Aprill last After the Attachm^t Courts Judgment Reason^s
 of Appeale & evidences in the Case produced were read with the
 Generall * Courts Judgment 11th octobe^r 1665 The Court declared they
 Allowed of the County Courts Judgment for a non suit. =

walter euerden plaintiff against Richard Smith deffend^t in an
 Action of Appeale from the Judgment of the Comis-
 sione's Court in Boston in August last both partjes
 Everden ag^t smith Appearing in Court declaring they were Agreed The plaintiff had
 libe^rty & did w^hdraw his Action =

Samuel Bellingham Esq^r plaintiff against James Russell Esq^r de-
 ffendant After Attachment Courts Judgment Reasons
 of Appeale & evidences in the Case produced were
 Sam Bellingham read Comitted to the Jury & are on file the Jury
 Esq^r Deus James brought in their virdict they found for the deffendant
 Russell Esq^r = Confirmation of the former Courts Judgment twenty one pounds ten
 shillings & Costs of Courts —

Stephen Butler plaintiff ag^t w^m Holowell Benjamin Holowell &
 Edw^d Ashely deffend^t in an action of Appeale from
 Butler ag^t Hollowell the Judgment of the County Court in Boston After
 the Courts Judgm^t Attachment Reasons of Appeale
 & evidences in the Case produced were read Comitted to the Jury &
 are on file wth the Reccords of this Court the Jury
 brought in their virdict they found for the deffendant
 Execution Issued Confirmation of the forme^r Judgment & costs of
 out 9 novemb. 80 Courts || sixe pounds sixe shillings ||
 dd m^r checkly =

Nicholas maning plaintiff against John Broune sen^r & Henry Bar-
 tholmew in an action of Appeale from the Judgment
 maning ag^t Broune of the County Court at Salem After the Attachment
 & Bartholmew Courts Judgment Reasons of Appeale & evidences in
 the Case produced were Read Comitted to the Jury & are on file wth

* These last three words written over the words "Comitted to the Jury."

the Records of this Court the Jury brought in their virdict they found for the ~~plaintiff~~ || deffendant || Confirmation of the former Judgment & Costs of Courts fuety six shillings & fowe' pence =

Abiell Lambe plaintiff ag' John Clarke deffendant in An action of Appeale from the Judgment of the County Court in Boston After the Attachment Courts Judgment & Reasons of Appeale & other evidences in the Case produced were Lambe ag' Clark
Read comitted to the Jury and are on file wth the Reccords of this Cour' the Jury brought in their virdict they found for the plaintiff thirteen pounds six shilling & eight pence. Reu'sing the former Judgment three pounds seventeen shilling^s & two pence

Phillip Greely plaintiff ag' Thomas woodbridge deffend' in an Action of Appeale from the Judgment of the County Court at Ipswich After the Attachment Courts Judgment Reason^s of Appeale & evidences in the Case Greely ag' wood-
bridge
produced were read Comitted to the Jury and are on file wth the Records of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme' Judgment and Costs of Courts

[The following is entered on the lower edge of the page.]

Barnard Trott plaintiff || on Appeale from the Judgm^t of the County Court in Boston || ag' Abra Gourdon plaintiff & deffend' App^d & declard they were Agreed the Trott ag' Gourdon
plaintiff as in othe' case^s had libe^rty granted & did wthdraw his Accon

[117]

1680

Returne wayte plaintiff ag' Samuel Lewis deffend' in an action of Appeale from the Judgment of the County Court at Charles Towne after the Attachment Courts Judgment' wayte ag' Lewis
Reasons of Appeale & evidences in the Case produced were read comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff Reuersion of the former Judgment & Costs of Courts fuety fue shilling^s & six pence

m's Elisabeth Cooke excecatrix & m' Elisha Cooke execcutor to the last will of || y^e late Lef^t || Richd Cooke pl^tff. ag' James olliuer deffendant in an action of p Elisha Cook

Appeale from the Judgment of the County Court in Boston After
 Cooke ag^t Olliver the Attachm^t Courts Judgm^t Reasons of Appeale &
 evidences in the Case produced were read comitted to
 the Jury and are on file wth the Reccords of this Court the Jury
 Brought in their virdict they found for the Deffendant^s Confirmation of
 the forme^r Judgment & Costs of Courts = The plaintiff declared he
 Attainted the Jury || for erro's or mistakes || & in open Court Elisha
 Cooke in behalfe of his mother & for himself wth Isaack Addington his
 suerty Acknowledged Jointly & seuerally || themselues c^r || bound in
 tenn pounds to the Trespere^r of the Country on Condition that the said
 Elisha Cooke should prosecute his Attaint of the Jury as to matter of
 Erro^r at the next Court of Assistants to effect = E R S

John Hoare plaintiffe against Elisabeth Cooke excecatrix & Elisha
 Cooke deffend^t in an Action of Appeale from the
 Hoare ag^t Cooke Judgmen^t of the County Cour^t at Cambridg after the
 Attachment Courts Judgment Reasons of Appeale & evidences in
 the Case produced were read with * the Copie of the Gennerall Courts
 Judgment in Barr of prosecution the Court declared the plaintiff was
 non suited =

Peter Ege^ton plaintiff ag^t m^s smith widdow deffendant in an
 Eggerton ag^t Smith Action of Appeale from the Judgment of the County
 Court at Boston the plaintiff being three times Called
 & making default by his non Appearance he was non suited & his bond
 declared to be forfeited: & Katherin Smith had hir Costs Granted
 6^s 10^d =

W^m Pitts plaintiff Against Enock Badcock deffend^t in an action of
 Pitts ag^t Badcock Appeale from the Judgment of the County Court at
 Boston After the Attachment Courts Judgment Rea-
 sons of Appeale & evidences in the Case produced were read Comitted
 to the Jury & are on file wth the Reccords of this Court the Jury
 brought in their virdict they found for the deffend^t Confirmation of
 the forme^r Judgm^t 9^{li} 18^s mony damage & costs of Court

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1680

Francis Davenport hauing entred bond to prosecut
 Francis Davenport his Appeale from the sentanc or Judgm^t of the County
 Court in Boston & no Action entred & the Deffend^t † Patch

* Written over "Comitt."

† This space left blank in the original.

Appearing for his Costs the Court declared he had forfeited his bond =

Daniel Mathew on Appeale from the Judgm^t of the County Court in Boston The Case was Called but no reasons Rendred but that he was vnsatisfied The Court declare^d the Case was non suited & bond forfeited

Mathews bond
forfeited

Ralph Powel plaintiff against m^r John Cotton deffend^t In an action of Appeale from the Judgment of the County Court in Boston in July last After the Attachment Courts Judgment Reasons of Appeale and evidences in the Case produced were read Comitted to the Jury and are on file wth the Records of this Court the Jury brought in their virdict they found for the Deffendant Confirmation of the forme^r Judgment 4^{li} mony damage & costs of Courts forty seven shillings & sixe pence

Powell ag^t Cotton

Henry Ellit plaintiff ag^t Geoge Dauson deffend^t in an Action of Appeale from the Judgment of the County Court in Boston After the Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff reuersion of the forme^r Judgment & Costs of Courts fuetu seuen shillings & sixe pence

Execution Issued
out for 57^s. 6.

[The following paragraph with the marginal note appears to have been entered by the secretary at a later date.]

The Court on Consideration of their late Act in June last Reasuming the Chanceryng of m^r Apleton^s bond declare they haue chancerjed the s^d bond to thirty fue pounds mony & m^r Apleton to haue the tobacco^s himselfe

m^r Apleton bond
chancerjed =

Nehemiah Pearse plaintiff on Appeale from the Judgm^t of the County Court in Boston = After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict i e they find him^a of the fact charged

Neh^e Pearse
2 10

on his peticon the Court Remitted the one halfe of his fine.

Nicholas Paige plaintiff ag^t Rob^t Brimsden defendant In an
 Action of Appaele from the Judgment of the County
 Court in Boston the partjes being Agreed the plain-
 tiff had libe^ty & did wthdraw his Accon

Paige ag^t
 Br[in]sden

[119]

1680 9 Aug^t 1680

Edward Randolph Esq^r e^r by his libell & Information plaintiffe
 ag^t fuety hogsheds || & 4 baggs || of tobacco & other Plantation
 Comoditjes defendants as in said || Information || Reference thereto
 being had amply Appeareth The Action was Called the Information
 was Read m^r George Hutchinson Appeared in Court & Affirmed &
 owned the Tobacco^s was his And after all the pleas
 & evidences produced in Court by the plaintiff as
 also by said Hutchinsons Attorney Thomas Norman
 were Comitted to the Jury wch are on file The Jury
 Brought in their virdiet they found for the defendant Costs of Court
 The Court sent out the Jury once & Againe wth the Case further to
 Consider of it at their Coming in Againe || they declared by their for-
 man || they saw no cause to Alter their virdiet as above ~~declared by~~
~~their foreman for the defendant~~ || but found || for the defendant
 Costs of Court

Randolph ag^t
 Hutchinson as to to-
 baco^s e^r

In the Case of Susannah Goodwin the wife of Edward Goodwin
 humbly desiring that hir husband hauing wilfully de-
 serted hir for seuen or eight yeares and left hir desti-
 tute of all meanes of support for himself & children
 as in hir peticoⁿ The Court Judgeth it meet to de-
 clare she is set at libe^ty & from him to marry wth another man

Ans to Susanah
 Goodwin peticon &
 hir diuorce there-
 upon

~~this court~~ m^r Jn^o Joyliffe Cap^t Tho Bratle m^r Anthony stod-
 dard Cap^t Elisha Hutchinson m^r Jn^o Saffyn Capt Jn^o
 walley & Cap^t Jn^o ffaiweather returned as chosen by
 y^e Tounne were Aprooued on by y^e Court & tooke their
 oathes as Comissione^s for Boston for y^e yeare ensuing

7 Comissione^s
 chosen

In Ans^r to y^e peticoⁿ of Sarah Coope^r for a diuors Respitted till she
 send to hir husband to informe him e^r & his estate
 secured for a convenient time ==

Ans^r to Sarah
 Coopers peti^t:

This Court is adjourned to the 16 Instant at 3 of the clocke

The Court mett at the time *er* and Adjourned to the 23 of Instant at 3 of y^e clock

vpon the Complaint of Thomas walters the Go^uno^r & magis^t doe declare that the sajd walters rendering estate ffor the sattisfaction of the execution the officer ought to levy the execution vpon the same as the law directs and the sajd walters performing the same he shall be released from Prison the officer causing it to be apprized as mony according to lawe = y^s was thus past 16 october following by all y^e magis^t except m^r saltonstall m^r Russell & is here entred being a vacant place as Attests E R S

Courts declaration
or order as To Tho
walter execution
Go:
16th october 1680 DG
DD
ET
WS
JD
PB
HD
WB
TS
JR
PT
*JH

The Court is Adjourned to the 23 Instant at 3 of the clock in y^e afternoone

The Court met at the time The Court Considering that no owno^r Appeared for to lay clajme to the 50 hogsheads of tobacco *er* and nine barrells till the last day of the Court The Court Judged it meete to order (seuerall difficulties appearing in the Case) that m^r George Hutchinson who Claymes the sajd tobacco *er* entring into bond of two hundred pounds wth sufficient sue^ttjes to respond the Judgment of any of his majtjes Courts in this Jurisdiction in Case of further Complaint & prosecution wthin one yeare of this date for & Concerning the sajd tobacco^s *er* the sajd tobacco^s *er* on such bond given to be deliuered to the sajd Huchinson he discharging the warehouse for the same = =

Courts order about
y^e 50 hogds of A
to be dd to m^r
Hutchinson in
Case *er*

Whereas the Honno^rable George Russell Esq^r is Convicted by his owne Confession before the Gouverno^r & seuerall of the magistrates of Comitting fornication with mary Pemberton is fined tenn pounds mony as a fine to y^e County of Suffolke to be presently payd & that he Give || in || security to value of ~~one hundred pounds~~ of † fuety pounds mony to secure this Toune of Boston & county from damage as to main-

Courts order as
to Georg Russell
Esq^r his Crime:

* These initials stand for Daniel Gookin, Daniel Dennison, Edward Tyng, William Stoughton, Joseph Dudley, Peter Bulkley, Humphrey Davy, William Browne, Thomas Savage, John Richards, Peter Tilton, and John Hull, as appears from the lists of magistrates in other places in the record.

† "of" repeated in the record.

tenance of the child * or that he Giue security to value of one hundred pounds that he Appeare before the nex^t County Court to Ans^r for his sajd Crime & Abide y^e sentenc of the Court —

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1680

16 & 18 Sep^r 1680Cap^t Laurenc
Comitt^d

Capt Laurence Complain^d on for Affronting the Go^dno's war^ant & shooting at the boate & men in it the kings Jack being thereon $\mathcal{C}$ = The Court sen-
tencet him to be Comitted to prison there to remajue
sufficiently secured till he Giue his oune bond in a thousand pounds &
two sufficient sue^ttjes in 500^{li} a peece starling mony on Condition
y^t sajd Laurenc personally Appeare & Answer what shall be lajd to
his Charge & Abide the sentence of the Court wthn two moneths =

Nehemiah pearse †
his fine Remitted
him =

The Court Remitted to him † the halfe of his
fine

It is ordered that the ship Edward & Ann belonging to m^r Nicholas
Paige now Ready to saje be Imbargued till munday next to accompany
the Honno^rble the Lord Culpepper in his ship now
also bound to sayle for England =

At An Adjourn^t
16 Sep^r 1680

|| In Ans^r to y^e peti^con of stephen Butler The Court Court ‡ ordered
a Respitt of y^e execution ag^t him till the end of the nex^t Generall
Court in october nex^t as is desired Attest E R S. ||

present.
Symon Bradstreet Esq^r Go^d
Tho Danforth Esq^r dep^t

At the Court of Assistants on Adjournment
1st of octobe^r 1680

Richd Saltonstall
Daniel Gookin
Edw^d Tyng
w^m Staughton
~~Joseph Dudley~~ ||
Peter Bulkley
Humphry Davy
Thomas Sauag
John Hull
— — —

|| The Jury Insisting on Caution for their
charges the Court ordered the plaintiff^f to put in
tenn pound. ||

Jurymen Returnd
to serve on this
Jury & Sworne
were
— — —

Esq^{rs}
Edward Randolph Esq^r Collector $\mathcal{C}$ by his
Information bearing date 30th of September 1680
plaintiff^f as in his || s^d || Information referrenc
thereto being had may § Amply Appeareth plaintiff^f
against steven Clay m^r & Comande^r of the Good ship
Called the Batchello's Delight of london seized on by

* The rest of this paragraph appears to have been written later, when the marginal entry was made.

† Nehemiah Pearse, as appears by the margin.

‡ "Court" repeated in the record.

§ Error in the record for "more."

the sajd m^r Randolph as forfeited to his majty *et*
the Case was Called the plaintiff & deffendant both
Appeared the Information & other evidences in the
Case produced were read Comitted to the Jury & are
on file the Jury brought in their virdict they found
for the defendant Costs of Court:

m^r Richard Midlecot
Thomas Bligh *sen*
Richard Bulkley
John olliuer
|| Rich^d Criepe ||
Anthony Hayward
John Parmiter
John winslow
Samuel Ballard
Thomas Addams
Timo. Cutler
Stephen Cadman
— — —

The Court Allowed the Jury forty eight shillings
for their charge & expenc & the Remainde^r seven
pounds twelue shilling^s to be deliuv^d to m^r Randolph
Againe wch was donⁿ =

The Secretary is ordered that henceforth where any person shall
obteyne an order from the Go^vno^r for the sumoning of the magis^{ts} to
meete in Court of assistants & of a Jury for the tryall of any Case the
secretary before he grant warrant for the sumoning a Jury shall re-
quire of the plaintiffe tenn pounds in money as Caution to respond the
charges of sajd Court and when the Court is ended and the charges of
the Court is paid the remainder shall be returned if any be to the sajd
Plaintiffe Provided alwayes It shall be lawfull for any plaintiff in any
maritime case or any other that shall prosecute the
same in any stated Court of Assistants or County
Court that shall prosecute the same paying only
tenn shillings for the tryall thereof as hath binn
customary =

order for y^e secret. to
take 10^{li} Caution be.
for he sumon^r a
Jury —
— — —

Josiah Cobbham Acknowledged himself his heires execcuto^s &
Adm^{str}ato^s bound in sixty pounds starling mony to James Russell
Esq^r Tresp^r of y^e Country on this Condition that he shall & will Ap-
peare before such Court or Courts as shall take Cognizance of the Case
and Answer what shall be layd to his * charge by m^r Edward Randolph
in & about the Sloope^s Carrying of Goods aboard Cap^t Laurence his
ship Contra^y to the Act or Acts of Parljam^{nt} & abide their Judgment
this thus donn by orde^r of y^e dep^t Go^vno^r in Boston 21 octob^r 80

as Attests

Edw^d Rawson Sec.

A warrt was signed to m^r Randolph or Dani Mathews *et*

* Written over "this."

[121]

1680

[The following paragraph is inserted at the upper edge of the page.]

2^d octobe^r 1680 In Ans^r to Peter Laurenc peticon It is ordered y^t his fine be remitted to 20^{li} & paying 10^{li} in mony & giving security his oun bond for y^e other tenn pounds to y^e Tresurer at his returne in like siluer E R S

present
Symon Bradetret
Esq^r Go^o
Daniel Gookin
Edw^d Tyng
W^m Stoughton
Joseph Dudley
Humphry Davy
Tho Sauage
Jn^e Richards
John Hull
— — —

Att a Court of Assistants or Admiralty held at
Boston in New England 18th of novemb^r

(19) = 1680 =

John Bouland mate of * the good ship called the
Ann & Hester of London by his libell & complaint
exhibbited to this Court bearing date the 16th of No-
vembe^r plaintiffe against ffrancis Branson master &
Comander of sajd ship together with sajd ship hir
tackle & Apparrell deffendant for that the sajd ffrancis Branson master
of sajd ship aforesajd refused & still doth refuse to pay vnto the sajd
Bowland his just wages to the full some of thirty eight pounds in mony
after the rate of three pounds five shillings p^r moneth for service by
him donne & performed in sajd ship e^r as in the sajd libell || & || At-
tachment ~~pleas & evidences~~ reference thereto being had may Ap-
peare After the libell Attachment pleas & evidences made & produced
before the Court were heard & read The Court de-
clared & Adjudged that It Appeared this was not the
second deliuary Port & so wages not due & decreed
that the plaintiffe pay the deffendant Costs of Court nineteen shillings
and sixe pence

Bowland vsus Bran-
son.

Henry Basset Boatswayne Zackeriah Lauter Carpenter Richard
Butcher Gunner Jasper Eve Richard Odling George fisher Samuel
Rochford Benjamin Whittenhall & symon Thomas marrine's of the
ship Ann & Hesther of London by their libell & Com-
plaint exhibbited to this Court bearing date 16th of
Instant November plaintiffs against ffrancis Branson
master & comāder of sajd ship together therewith the
sajd ship deffend^t ffror that he the sajd ffrancis Branson master &

Henry Basset &
mariners plts. ag^t
ffrancis Branson
deffend^t

* "mate of" written over "by his libell."

Comander of said ship ~~together wth the said ship~~ || Refuseth and still doth || refuse to pay vnto them their seuerall wages according as is exprest in their libell on Complaint amounting to the summe of one hundred & sixty sixe pounds or thereabouts for their seuerall wages donn & performed by them in said ship as in their said libell or Complaint is declared refference thereto being had Amply may Appeare = After the libell with Attachment pleas & evidences made in the Case were heard read and pervsed The Court declared & Adjudged that this was not the second Port of deliury and so their wages was not due and therefore decreed that the plaintiffe pay the deffendant his costs twenty sixe shillings money =

Thomas Tompkins Boat swajne xtian Bowles John Ansley & John Tompkins seamen belonging to the ship called the Resolution of London by their libell & complaint bearing date the 17 of novembe^r 1680 plaintiff^s ag^t Cap^t Richard Cobb || m^r || of the said ship together wth said ship deffend^t for that he the said Richard Cobb master & Comander as afores^d hath refused to pay them their seuerall wages for their services peformed in said ship

[122]

1680

as in their said libell refference thereto being had more Amply may appeare = After the libell Attachment evidences & pleas made read & heard before the Court the Court declared they Adjudged for the deffendant & decreed the plaintiff should pay the deffendant his Costs of Courts —

Att a Court of Assistants or Admiralty held at
Boston in New England 2^d decem 1680

Thomas Stevens Boateswayne Richard milson Gunne^r and Thomas Longworth marrine's belonging to the Good ship Called the George of Bristoll by their libell & Complaint exhibbited to this Court plaintiffe against Samuel Isaac master & comander of said ship together with said ship deffend^t for that he the said Samuell Isaac master *et* refused & still doeth refuse to pay them their seuerall^a amounting in the whole to forty nine pounds fowerteene shillings or thereabouts not wthstanding his promise

present
Symon Bradstreet
Esq^r Go^{vt}
Tho. Danforth Esq^r
dep^t Go^{vt}
Daniel Gookin
Edw^d Tyng
w^m staughton
Joseph Dudley
Humphry Davy
John Richards
John Hull
James Russell
— — — —

steuens & marrins
plt agt Samuel Isaack
deff^r m^r of ship reso-
lution*
to cleare them in New England their seuerall wages
as in sajd libell refference thereto being had more
Ampl^y doth & may Appeare After the libell Attach-
ment pleas & euidences made & produced were heard
e the Court declared they Adjudged that the plaintiffe^s pay the
deffendant his Costs i: e seventeene shillings & sixpence

Cap^t steeven Clay master & Comander of a ship in the Harbor
by his libell & Complaint bearing date 29th of november 1680 plaintiff
against m^r Daniel Turell seⁿ deffend^t in an Action of
the Case for that the sajd Turell buying a ship of him
as she lay at charls Toune at Gree[n]es wharfe for
forty pound mony refused and still doth refuse to pay
him the sajd clay for the same as in the sajd libell refference thereto
being had more at large doeth & may Appeare After the libell Attach-
ments & deffendants Answer pleading for a non suite was read & duely
Considered of by the Court the Court Adjudged that the plaintiffe
was non suited =

Att A Court of Assistants or Admiralty held at Boston || in N
Engld || 9th of Decembe^r 1680

~~w^m kelso chirurgeon~~

[123]

1680

9th decembe^r 1680

w^m Kelso chirurgeon of ship Ann & Hesther of London by his
libell & Complaint exhibbited to this Court bearing
Kelso ag^t Branson date the 4th of Decembe^r 1680 plaintiff against francis
Branson master & Comander of sajd ship together wth sajd ship
deffendant for that he the sajd master hath Gonne beyond his powe^r &
authority in tirannically & most cruelly beating and abusing him aboard
sajd ship for no other reason but because he would not doe the office of
a cooke not being bound thereto & shipt only for his chirurgeon Calling
a Council of warr vpon him and dischardging him of his place tho he
offered to hire one to p^rforme the Cooks office pretending his Cruell
vsage of him was his Jealousy that he should report of his bull bayting
& fishing on the Lords Day and refusing to pay him his wages & cleare
him he being Justly afrajd of his life as in his libell refference thereto

* Error of the Secretary for "The George of Bristol."

being had more Amply doth & may Appeare After the libell Attachment and evidences in the Case produced were read & duely Considered of The Court declared they Adjudged for the plaintiffe & decreed that he be freed from the ship and that the deffendant pay the plaintiffe all his wages abating only for sixe weekes wch Comes to in all nineteene pounds fueteen shillings & sixe pence || starling money of England || as also paying the Costs of the Court fowe' pounds fueteene shillings & sixe pence this Country money

John Bowland mate of the Good ship called the Ann & Hester of London by his libell & Complaint exhibbited to this Court bearing date the 1st of December 1680 plaintiffe against ffancis Branson master & Comāder of the sajd shipp together with the sajd ship deffendant for that he the sajd francis Branson master = refused and still doeth refuse to pay him his Wages not withstanding his performance of his sajd service in sajd ship and his particular promise besides past in the Isle of may in June last * at his the sajd Boulands arrivall in New England and being Agrieved he would pay him his wages and cleare him of his service from the sajd ship as in sajd libell refference thereto being had Amply doth and may Appeare After the libell Attachment and evidences in the Case produced were read and duely Considered of the Court declared that they Adjudged the plantiffe to pay the deffendant his Costs
 Boulard ag^t ffancis Branson
 30 october 1680

[The following paragraph is written on the lower edge of the page.]

The Goūno' & magists met in a Court of Assistants & ordered in Ans' to the peticon of Georg Hutchinson that any orde' formerly notwthstanding if the sajd Georg Hutchinson shall wth his sue'tjes enter into bond of one hundred, to respond the Judgment of any of his majtes Courts in this Colony once within a yeare of this date in Relation to y^e sd Tobacco then the sd Bond to be voyd =
 Ans' to m^r Georg Hutchinson

[124]

1680

At A Court of Assistants or Admiralty held at Boston || in N Eng || 24th of December 1680

Edward Randolph esq^r Collecto^r of his Majestjes †

present
 Tho. Danforth Esq^r
 Dep^t Go^v
 Richd Saltonstall
 Daniel Gookin

* The word "that" apparently was omitted here by the Secretary.

† Written over "or by his."

W^m Staughton
Joseph Dudley
Peter Bulkley
Humphry Davy
Tho Sauage
Jⁿs Richards
John Hull
James Russell
— — —

persons Returnd
to serve on the
Jury & Sworne
were =
— — —

m^r Thomas Jenner
W^m Gilbert
John ffoy
stephen Burton
Thomas Moore
James Loyd
Thomas Berry
Thomas Jolls
Sam Ballard
Joseph Newell
stephen Cadman
John Knight
— — —

Customes in New England e^r by his Information or
lybell plaintiffe against Timothy Armitage master of
the Good ship Called the two siste's of Boston deffend-
ant as in the said Information or libell reference
thereto being had more Amply doth & may Appeare
After the evidences in the Case produced were read
Comitted to the Jury w^{ch} are on file wth the reccords
of this Court the Jury brought in their virdict they
found for the deffendant costs of Court =

Edward Randolph Esq^r Collecto^r e^r by his Com-
plaint exhibbited to this Court plaintifff prosecuting
T[i]mothy Armitage master of ship two siste's vpon
breach of the act of the fowe'teenth of the king for
Affronting & disturbing him the sajd Edward Ran-
dolph in prosecution of his trust & office After the
evidences in the Case produced were read e^r the
Court Judged it meete to sentence the sajd Timothy
Armitage to pay as a fine forty pounds money* &
stands Comitted till this sentence be performed

Edward Randolph Esq^r Collecto^r e^r by his libell & complain'
plaintiffe ag^t John Huling master of the ship Called the maydenhead
together with the sajd ship defendant as in sajd libell & Complaint
reference thereto being had Amply doth & may Appeare After the eu-
dences in the Case produced were read & Comitted
to the Jury the Jury brought in their virdict they
found for the deffendant Costs of Court all wch is on
file wth the Reccords of this Court =

m^r Randolphe 6 †
Cases on y^e & the
other side =
— — —

Edward Randolph Esq^r Collecto^r of his maj'ties Customes in New
England by his libell and Complaint plaintifff against the Barque
Called the Gift of God and the master thereof as in sajd libell refer-
ence thereto being had doth and may Appeare John Brock master of
sajd barque or ship being in Court by Consent this Ac^{on} proceeded
the evidences in the Case produced were read = The Court declared
|| y^t || their sence is that in and from all distinct places & Governments
entrjes must be made by all strainge's but It Appearing that the sajd
vessell had entred at the Prouince of majne & cleered as the acts of

* Written over the word "fine."

† Written over "4."

trade require & that shee brought hither neither European nor * Plan-
tation Goods doe order hir now to make entry heere as the law pro-
vides & pay the plaintiffe five pounds Costs & office's fees =

[125]

1680

1681

Edward Randolph Esq^r Collecto^r e^r by his libell & Complaint
plaintiff ag^t two hogsheads of Irish yarne e^r in the hands of Joseph
Harding deffendant as in sajd Libell reference thereto being had more
Amplly doth & may Appeare The Evidences in the Case were read &
Comitted to the Jury who brought in their virdict they found for the
deffendant Costs of Court = eight shillings

Edward Randolph Esq^r Collecto^r e^r by his libell & Complaint
plaintiffe against ship expedition & samuel Lugg master thereof
deffendant as in sajd Lybell reference thereto being had more Amplly
doth and may Appeare After the evidences in the Case produced were
read Comitted to the Jury and are on file The Jury brought in their
virdict they found for the deffendant Costs of Court =

Francis Branson Comander of ship Ann & Hes-
ther by his libell and Complaint plaintiffe against
w^m kelso Chirurgeon by way of Revejw of an Action
trjed at the Court of Assistants or Admiralty on the
ninth Instant as in sajd libell & Courts Judgment
reference thereto being had Amplly doth & may Appeare After the
libell & evidences in the Case produced were read ~~Comitted to the Jury~~
& are on file with the Reccords of this Court The Court declared that
they Judged It meete to order the plaintiff to pay the deffendant his
Costs three pounds sixteene shilling^s & sixe pence =

at y^e same Court
w^{thout} a Jury was
tried & Issued y^e
Case betweene
Francis Branson &
w^m kelso on Revejw

[The two following records of Admiralty Courts were evidently
entered out of their chronological order.]

Att a Court of Assistant Called & sum-
oned to sitt in Boston 17th of June 1681

Tho Gretian master of the Pincke Expec-
tation by his libell & Complaint exhibbited to
this Court [and] by his Attachment Bearing

or Admiralty
present
symon Bradstreet Esq^r Go
Tho Danforth Esq^r dep^t Go^d
Daniell Gookin mj^r Geⁿ }
w^m Stoughton
Joseph Dudley

* Written over the word "Goods."

Humphry Davy
Tho Sauage
Jn^e Richards
Jn^e Hull
Samuel Nowell
James Russell
— — —

} Esq^r date the 10th Instant plaintiff against Josiah Torrey deffendant for that the said Torrey refuseth to pay vnto the said Gretian the sume of twenty seven pounds fiuteene shillings & seuen pence money due for disbursements and

wages vpon his eighth part of the said Pincke for seuerall voyages as p an Account given the said Torrey march 21 (1680) & by the libell dated as aboue & othe^r evidences may Appeare c After the said libell & Attachment dated as aboue wth the other evidences produced were Read ~~Comitted to the Jury~~ and duely Considered of by the the * Court the Court declared they Adjudged for the deffend^t & Granted him Costs of Court eight shilling^s & six pence =

[126]

1681

Thomas Gretion master of the Pinck expectation by his libell & Complaint exhibbited to this Court as also by his Attachment dated the 10th Instant June Refferenc thereto being had plaintiff ag^t Barnard Shinchinke merchant & particularly ag^t his y^e said Shinchinks $\frac{3}{4}$ parts of said Pinck expectation and all hir Appurtenances Attached to value of two hundred pounds to Respond his said Compt^t for that the said Shinchink hath no^t payd the said Gretion one hundred & seuen pounds nine shillings & nine pence in mony due for wages and disbursments vpon the said ship or Pincke for seuerall voyages as p the said libell bearing date date[†] as aboue & by the Account of the same date & othe^r evidences may appeare c || y^e defend^t was Called but not Appeared sumon^s left at his last aboad m^r Joseph Rock as Returnd || After the libell Attachment^t Account & othe^r evidences produced were Read & duly Consid[er]ed of by y^e Court The Court Adjudged for the plaintiffe the balance in the Account sworne to being one hundred & seue^r pounds nine shilling^s & nine pence mony & the chardg & Costs of Court weh Came to three pounds sixteene shillings & fowe^r pence =

y^e deffend^t called
but not Appearing
sumons being left
at his last place of
Aboad m^r Rocks as
Returnd =

And It is ordered by this Court that Thomas Gretian giving sufficient security wth two sue^ty^s by bond to the Tresurer of the Country in two hundred & fowerteen pounds nineteen shilling & sixepence || to || respond the Revejw or Reuersion of the action aboue by y^e said Barnard Schinkink his heires Attur[n]ey or Agent recouering any Judgment in any Court of his majestjes in this Jurisdiction w^{hin} on yeare & a day from this time relating to what this day past : =

* "the" repeated in the record.

† "date" repeated in the record.

Att a Court of Assistants or Admiralty held at Boston in New England the 4th of August 1681. and then Adjourned to the 11th Instant at three of the clock : when they Sat

Paul sharrot or Starast Leifteñn^t & Cloice Pieterston mate of ship Salamande^r a Prize belonging to the Great Prince the Duke of Brandenburg by their libell & Complaint exhibitted to This Court Dated the 2^d of August 1681 plaintiff^s agains^t marcellus Cocke Captaine of said ship & said ship deffendant^s for their wages i e Paul sharrot or starrast for a sixty fiae pounds sterling for sixteen month^s and a halfe service and the said Cloice Pieterston for the sume of a sixty pounds for like service as in the said libell- reference thereto being had more Amply doeth & may Appeare — After the libell the Attachment & other evidences in the Case produced by the plaintiffs & deffendant (who both Appeared in Court) were read and duely Considered of by the Court they Adjudget for the deffendant Ordering the plaintiffs to pay the office's their ffees out of their Caution & the officer to Returne them the rest =

Paul sharrot or
starast e^r ag^t
marcellus Cock
Cap't of salamander

[127]

1680

Att A Court of Assistants held at Boston the 1st of march 1680

m's Elizabeth Cooke executrix & m' Elisha Cooke execcuto^r plaintiffe^s in an Action of Appeale on Attaint of the Jury whereof m' Holliok was foreman = Aagainst * Cap^t James olliuer deffendant: from the virdict of the Jury at the last Court of Assistants After the Attachment the Courts Judgment & evidences in the Case produced were read Comitted to the Jury & are remayñg on file The Jury

ent. p Ellis.
Cooke

brought in their virdict i e in the said Case depending between the s^d m's Eliza: Cook & m' Elisha Cooke plaintiff and the Attorney^s of Cap^t James olliuer deffendants the Jury finds for the plaintiff seventy two pounds fueteene shillings and nine pence money & Costs of Courts

present
Symon Bradstreet Esq^r Go^d
Tho: Danforth Esq^r dep^t Go^d
Richard Saltonstall
Daniel Gookin
Daniel Dennison
w^m staughton
Joseph Dudley
Nathaniel Saltonstall
Humphry Davy
Tho Sauage
w^m Broune
John Richards
Jⁿ Hull
Samuel Nowell
James Russell
Bartholmew Gidney

Esq^{rs}

persons Returned to
serve on y^e Grand
Jury & sworne were

— — —
m^r John Blake
Thomas Berry
James Pemberton
Tho Gardiner
James strawbridge

* So written in the record.

Nathaniel sparhauke	seuen pounds fowe'teen shillings & 4 ^d Reuersing the
Tobias Dauis	former Judgment =
Phillip Torrey	
Robert Herrington	
Tho Tyleston sen	w ^m wate's plaintiffe on Appeale from the Judg-
Tho Trott	ment or sentence of the County Court at Boston =
w ^m Dady	This Accōn was w th draune by the plaintiff by leaue &
Jn ^e Heyman	licenc of the Cour ^t =
— — — —	

Thomas Hill plaintiffe against w^m obbinson deffendant in an Accōn of Appeale from the Judgment of the County Court in Boston = After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are remaying on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendan^t Confirmation of the former Judgment & Costs of Courts

1st Ju

Benjamin Balch plaintiff in an Action of Appeale from the Judgment of the last County Court at Ipswich against w^m Dodge Jun^r deffendant After Calling of y^e Accōn y^e Case by Consent of partjes was refferd to y^e Bench who hearing the Attachmt Courts Judgment reasons of Appeale & evidences in the Case produced the Bench reuerst the former Judgment & Judged for the plaintiff granting him his Costs forty eight shillings —

Josiah Torrey plaintiff in an Action of Appeale from the Judgment of the County Court at Boston ag^t Tho Gretian deffendant after the Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict i e In this

persons returnd &
sworne to serve on y^e
Jury for Attaints
were =

Cap^t Rich^d Sprague
Richard Harris
Adam Winthrop
Tim^e Armitage
Jn^e Scate
Samuel Bridge
Tim^e Thornton
Ambrose Dawes
Dauid Copp
Sam^uel Gookin

Case the Jury finds for the plaintiff that the deffendant in thirty dayes shall give a Just & true Account of all disbursments vpon & earnings of the Pinck expectation according to Attachm^t or pay two hundred pounds money to the plaintiff and Costs of Courts reuersing the former Judgment costs 3^{li} = 02^s & 4^d.

Exec Issued

Mr Joseph Rocke plaintiff against m^s Sarah ffranck deffendant in an action of Appeale from the Judgment of the County Court in Boston After the

Attachment Courts Judgment Reasons of Appeale &

31	4	6
2	11	10
33	16	4

Evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the former Judgment & Costs of Courts 2^{li} 11. 10

Isaac Hill
Abra: Jackson
Daniel Brewer
Abrah How
Benj. Gamblin
Joseph Rise
Jnⁿthan Broune
Samuel stearnes
Joseph sherman

[128]

1680

George Carr Seⁿ plaintiff in an action of Appeale ag^t Cap^t Nicholas Paige deffend^t from the Judgment of the County Court at Salem After the Attachment Courts Judgment Reasons of Appeale e^r were read the deffendant pleading for a non suite It was Granted

Walter fairefeild plaintiff against Thomas Knowlton deffendant in an Action of Appeale from the Judgment of the last County Court at Salem after the Attachment Courts Judgment Reasons of Appeale and evidences in the Case produced 2^o Jur were read Comitted to the Jury and are on file the Jury brought in their virdict they found for the plaintiff reuersion of the former Judgment & Costs of Courts. =

Joseph Holmes Attorney & substitute of James mathews of new Yorke plaintiff against John Keene deffendant in an Action of Appeale from the Judgm^t of the County Court in January last at Boston =

After the Attachment the Courts 1st Jur Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict In the Case depending betweene Joseph Homes substitute of Jn^o dafforne Attorney to James mathews plt & John Keene deffend^t the Jury finds for y^e deffendant Confirmation of the forme^r Judgment the deffend^t paying

Timothy Tyleston
Henry Leadbetter
John Toleman
Daniel Preston
Tho. Jenner
— — — —
persons Returnd & sworn to serve on the 1st Jury of Tryalls for Appeales lyfe lymb e^r
— — — —

1st Jur
Cap^t Richard Sprague
Jn^o Conney
Solomon Phipps
Jn^o Parmiter
Samuel Gookin
Samuel Bridge
Abraham Jackson
Joseph Rise
Samuel Stearnes
John Scates
Abraham How
Ambrose Daues *
— — — —

persons Returnd & sworn for to serve y^e 2^d Jury of trialls for Appeales life Limbe e^r
Cap^t Richard Wooddy
John Toleman
Daniel Copp
Isack Hill
Daniel Brewer
Benja Gamblinn
Jonathan Browne
Henry Leadbetter
Daniel Preston
Joseph sherman

* Or Dawes.

Timothy Tyleston the plaintiff thirty five shillings money & Costs of
 Timothy Thorn- Courts * =
 ton =

— — — — — George Speere plaintiff against Peeter Bracket
 deffend^t in an action of Appeale from the Judgment
 of the County Court at Boston : the plaintiff wthdrew his Accon having
 leaue from the Court so to doe =

Tho Gretian plaintiff against Stephen Sweathy deffendant in an
 Accon of Appeale from the Judgment of the County Court at Boston
 in January last after the Attachment Courts Judgment Reasons of
 Appeale & evidences in the Case produced were read Comitted to the
 Jury and are on file wth the Records of this Court the Jury brought in
 their virdict = the Jury found for y^e deffendant Confirmation of the
 former Judgment & Costs of Courts = The plaintiff
 Greitian ag^t sweathy in open Court sajd he did Attaint the Jury || whereof
 1st Jury Cap^t Rich^d sprague was foreman || for erro's & mis-
 Cloathes takes and accordingly Tho. Gretian principle & An-
 thony Checkly & Nathaniel willjams his sue'tjes acknowledged them-
 selues Bound in tenn pounds a peece to the Tresp^{er} of the Country on
 Condition that sajd Thomas Gretian shall prosecute this his Attaint at
 the nex^t Court of Assistants to effect as y^e law Requires from y^e virdict
 of the Jury whereof Cap^t sprague was foreman

Steveⁿ Sweatie † plaintiff ag^t Thom^s Greetian ‡
 stephⁿ sweathy plif deffend^t in an Action of Appeale from the Judgment
 of the County Court at Boston in Jan^ury last After the Attachment
 Courts Judgment Reasons of Appeale & evidences in
 1st Jury the Case produced were read Comitted to the Jury
 for wages and are on file the Jury brought in their virdict
 Idem uersus Idem i e they found for the plaintiff Reuersion of the
 former Judgment and seuentaene pounds sixteene shillings sixe pence
 mony & Costs of Courts the ~~plaintif~~ || deffend^t || Attainted the Jury
 || whereof Cap^t Rich^d sprague was forman || for errors & mistake^s &
 Accordingly Tho Gretian principle & Anthony checkly & nathaniel

* This verdict is on file and agrees with the record.

The appeal is from the judgment (or verdict) of the County Court in an action of Review
 Jan. 25, 1680-1, when a verdict was rendered for Keen for "26^{li} 5^s 9^d in money and costs of Court."

The apparent anomaly in the verdict at the Court of Assistants may perhaps be explained as
 the result of an adjustment, there being several actions pending between the same parties. See
 Court Files, Suffolk Nos. 1827 and 2052.

† Written over "Tho Gretian."

‡ Written over "Stephen Sweathy."

willjams his sue'tjes aknowledged themselves jointly & seuerally bound in tenn pounds apeece to y^e Trespere of the Country as aboue on this Condition that said Gretian shall psecute this his Attaint at y^e next Court of Assistants to effect ag^t said Jury whereof Cap^t sprage was foreman =

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1680

Thomas Gretian plaintiff ag^t Roger stayno^r 1st Jur
 deffend^t in an action of Appeale from the Judgment
 of the County Court in January las^t After the Attachment Courts
 Judgment Reasons of Appeale & evidences in the Case produced were
 read Comitted to the Jury & are on file The Jury
 declar'd they found for the deffendant Confirmation of Gretian ag^t staintor
 the former Judgment & twenty two shillings more money & costs of
 Courts The plaintiff Tho Gretian In open court Attainted the Jury for
 erro's & palpable mistakes & Accordingly said Tho Gretian principle
 & Anthony cheeckly & Nathaniel willjams his sue'tjes acknowledged
 themselves Jointly & seuerally bound in tenn pounds a peece to the
 Trespere of the Country on y^s Condition that sd Tho. Gretian prosecut
 this his Attain^t of the Jury to effect

Idem vsus Idem on Appeale from the Judgment of the County
 Court at Boston in January last After the Attachment Courts Judg-
 ment reasons of Appeale & evidences in the Case produced were read
 Comitted to y^e Jury & are on file wth the Reccords of
 this Cour^t the Jury brought in their virdict they found Gretian ag^t staintor
 for the Deffendant Confirmation of the former Judgment & Costs of
 Courts the plaintiff Attainted the Jury and said Thomas Gretian
 principle & Anthony cheeckley & Nathaniel willjams his sue'tjes ac-
 knowledged themselves joyntly & seuerally bound in tenn pounds
 a peece to the Treasurer of the Country on this Condicion that said
 Gretian shall prosecute this his Attaint of s^d Jury at the nex^t Court of
 Assistants to effect =

Richard Collecot & nathaniel Greenwood plaintiff^s ag^t John How
 deffendant in an Action of Appeale from the Judgm^t
 of Ipswich County Court After the Attachment
 Courts Judgment Reasons of Appeale & evidences
 in the Case produced, comitted to the Jury & are on
 file the Jury brought in their virdict they found
 Collecot & ag^t
 How
 exec Issued out
 4 June 1681
 - - - -

for the plaintiffs Reuersion of the former Judgment & Costs of Courts 3^{li} 3^s

Robert knight plaintiff in an action of Appeale from y^e Judgment of Ipswich Court ag^t Sam: Leach & onesephirus Allen deffend^r After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of y^s Court the Jury brought in their virdict they found for the plaintiff reuersion of the forme^r Judgment and the land in controuersy & Costs of Courts eight pounds fueteen shillings & tenn pence =

Knight ag^t Leach
c^r

Jn^o Playsted plaintiff against George Norton Playsted ag^t Norton. deffend^r in an action of Appeale from the Judgment of the County Court at Boston After y^e Attachment Courts Judgment Reasons of Appeale and evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiffe reuersion of the former Judgment & Costs of Courts eight pounds fueteene shillings & tenn pence — —

execution Issued
out

Sam & Jn^o Bennet || Sam || & Jn^o Bennet plaintiff^s against Leonard Douden * deffendant in An action of Appeale from from † the Judgment of the County Court at Boston, January last After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiffs reuersion of the former Judgment & Costs of Courts

Sam & Jn^o Bennet
pl^t ag^t Leonard
Douden & Tho
Paddy —

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1680

Timothy Yeales plaintiff ag^t Roge^r Rose deffend^r yeales vs. Rose in an Action of Appeale from the Judgment of the County Court at Boston After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury

* By the papers on file it appears that the defendants in this action of appeal were "Leonard Dowden and Thomas Paddy, Administ^{rs} to the estate of William Paddy, dec^d., as Assignees of Hudson Leverett."

† "from" repeated in the record.

brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Courts

Jn^o Gifford plaintiff ag^t Phillip Read deffend^t in an action of Appeale frō the Judgment of the County Court at Boston = After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the reccords of this Court the Jury brought in their virdict they found for the deffend^t D^r phillip Read Confirmation of the forme^r Judgment & Costs of Courts the plaintiff in open Court Attainted the Jury ffor erro's & mistakes & accordingly John Gifford principle & John Joyliffe his sue'ty Acknowledged themselves Jointly & seuerally bound in tenn pounds apeece to the Tresure^r of the Country on this Condition that sajd John Gifford shall prosecute this his Attaint of y^e Jury at the nex^t Cour^t of Assistants according to Law :

Gifford ag^t Reade
2^d Jur

Attaint

Daniel Heinshaw * plaintiff ag^t Thomas voss deffendant in an action of Appeale from the Judgment of the County Court in Boston After the Attachmⁿ^t Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found a speciall virdict i e That if willjam Pond his originall deed wth his Assignment & Conveyance & fowe'teen yeares possession be more valid in Law then Joseph Homes his latter deed to Thomas vosse now in Court then wee find for the plaintiffe the land now in Controuersy & Costs of Courts but if othe'wise wee finde for the deffendant Confirmation of the former Judgment & Costs of Courts || the Bench found for y^e pltff Reucon of the form^r Judgm^t & Costs of Courts three pounds thirteen shilling & eight pence (3: 13. 8. ||

Heinshaw ag^t vosse

Joseph Joy || & Nath^l Beale || plaintiff ag^t Hudson Leueret deffendant in an Action of Appeale from the Judgment of the County Court at Boston in Jan^uy last after y^e Attachment courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict They

Joy et ag^t Leueret

* "Daniell Henshaw" in the original verdict on file.

found for the deffendant Confirmation of the forme' Judgment & Costs of Courts the plaintiff in open Court Attainted the Jury || for erro's & mistakes || & accordingly Joseph Joy & nathaniel Beale principles & Joshua Hubbard Jun^d their sue'ty did acknowledg themselves Joyntly & seuerally bound in ten pounds apeece to the Tresurer of the Country on Condition that sajd Joy & Beale shall prosecut their Attaint at the nex^t Court of Assistant[s] according as the law requires

Anthony cheeckley Attorney to Capt Joshua scottow plaintiff ||
 Against Eliakim Hutchinson deffendt || in an action
 cheeckly ag^t of Appeale from the Judgment of the County Court
 Hutchinson in Boston After the Attachment Courts Judgment
 reasons of Appeale & evidences in the Case produced were read Comitted to y^e Jury & are on file, the Jury brought in their virdict they found in y^t Case betweene m^r Anthony cheeckley plaintiff & m^r Eliakim Hutchinson deffendant the Jury finds for the deffendant fue pounds three shillings nine pence mony || Reu'sing y^e form^r Judgmen^t || & costs of Courts

Richd Thayer plaintiff against majo^r Thomas
 1st Jury Sauage deffendt in an Action of Appeale from the
 Thayer ag^t Judgment of the County Court at Boston After y^e
 m^r Savage Attachment Courts Judgment Reasons of Appeale &
 Attaint evidences in the Case produced were read Comitted to
 — — — y^e Jury & are on file. In the Case depending be-
 tween Richard Thayer plaintiff & majo^r Thomas sauage deffendant
 The Jury finds for the deffend^t Confirmation of the forme' Judgm^t &
 Costs of Courts Rich^d Thayer in open Court Attainted the Jury for
 erro's & mistakes & accordingly Rich^d Thayer principle & Nath. Thayer
 & Jn^o Pittom his sur^etjes acknowledged themselves Jointly & seuerally
 bound in tenn pounds a peece to y^e Tresurer of y^e Country on condition
 y^t sajd Richd Thaje^r shall prosecute this his Attaint at y^e next Court
 of Assistants as y^e law requires

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1680

Richard Thayer plaintiff against Cap^t Roger Clap
 1st Jur deffendant in an action of Appeale from the Judg-
 Thayer ag^t Clap ment of the County Court in Boston after the Attach-
 ment courts Judgment Reasons of Appeale & evidences in the Case
 produced were read Comitted to the Jury & are on file wth the Reco-

cords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Courts

John Richards plaintiffe against Josiah witter deffendant in an action of Appeale from the Judgment of the County Court at Ipswich after the Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff reuersion of the former Judgment & Costs of Courts three pounds tenn shillings

Richards ag^t
witter =

execut: Issued out
19 . Apr . 82 . for
3^u 10^s

m^r Jn^o Saffyn plaintiff against m^r Robe^t Holt deffendt in an Acccon of Appeale from the Judgment of the County Court at Boston After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff reuersion of the former Judgment & Costs of Courts fuety fower shilling & two pence =

SaffJn ag^t Holt
2 Jur

The voss: plaintiff ag^t Daniel Heinshaw deffend^t ~~after the Atta~~ || In an action || of Appeale from the Judgment of the County Court at Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the reccords of this Court the Jury brought in their virdict they found for the plaintiffe reuersion of the forme^r Judgment & Costs of Courts fue pounds one shilling =

voss ag^t Heinshaw

Abiel Lamb plt agt Tho Hill deffend^t in an Action of Appeale from the Judgm^t of the County Court at Boston y^e plaintiff wthdrew his Acccon by leaue from the Court

Lambe ag^t Hill

Jn^o Turne^r Attorney to Ephrajm Turner pltff ag^t Thaddews micarter deffend^t in an Action of Appeale from the Judgment of the County Court at Boston the plaintiff wthdrew this his Accon by leaue from the Court

Turne^r ag^t micarter

George ffoule had fve shillings || & 6^d || Granted
 Georg foules Costs || him for || his costs ag^t Hudson Leueret for his non
 ag^t Hudson Leueret psecution * of his Appeale from charls Towne Court
 21 ¹⁰/_{mo} 80. at this Court

Nathan Heyman had fve shillings Granted him
 Nath Heymans for his Costs ag^t John moore for his non prosecution
 Costs ag^t Jn^o moore of his Appeale at y^e Court from charls Town^e County
 Court.

Jn^o Dyars Indictm^t Jn^o Dyar of Braintry was Indicted by the name
 of John dyar of Braintry in the County of suffolke
 in New England for not hauing the feare of God before your eyes and
 being Instigated by the diuill on the 31th of January last did wickedly
 murder and kill Jn^o Ahattawants Indian by shooting him wth swan
 shott con^rary to the peace of our Soueraigne Lord the king his crowne
 & dignity the lawe of God & of this Jurisdiction being brought to the
 barr to this Indictment pleaded no^t guilty put himself on God & the
 Country for tryall After y^e Indictment & euidences in y^e Case produced
 were read Comitted to the Jury and are on file the Jury brought in
 their virdict they found the prisone^r at the barr no^t guilty according
 to Indictment but Guilty of manslaughter = In the Case of John
 Dyar found Guilty of manslaughter It is ordered that the sajd^Λ

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1680

pay vnto the widdow of the sajd Indian slajne sixe pounds i e twenty
 shilling doune in or as mony and twenty shillings more for fve yeares
 successively from this day and also dischardg & pay
 bond dd to y^e Tres- the charg of the wittnesses & his Imprisonment &
 urer & 20 prosecution of this Case giving good security for per-
 formance of this order standing Comitted till it be don. bond was
 taken & giuen to y^e Trespure [] wth 20^Λ wch he p^d to s^d Ahattawants
 widdow =

1st march 168⁰ ¹/₁ || or ||
 15th m^{ch}

Mary Hale of Boston widdow was Indicted by
 the name of mary Hale for that yow no^t hauing the feare of God before
 yo^r eyes and being Instigated by the diuill hauing had familiarity
 wth him by the abhorred sin & art of witchcraft did kill & bewitch

* Error of the record for psecution.

mary Hales In-
dictm^t

Dauls & Egginton's Censure ൧൪

Davis & Eggertons
Sentence =

[Blank space.]

present
Symon Bradstreete
Esqr G^o
Tho Danforth Esqr
dep^t Go^u
Dani: Gookin Esqr
maj^r Geⁿ

* Blank space in the record. From the papers on file it appears the name of the person said to be bewitched was "Michael Smith."

Dani Dennison Esq^r
 Jⁿe Pynchon
 Joseph Dudley
 Nath Saltonstall
 Tho Sauge
 Jⁿe Hull
 James Russell
 Peter Tilton
 — — — —

moove from the place Appointed hir by the minister & selectmen to sitt in whilst there

past.

E R S

[Blank space.]

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1681

Att A Court of Assistants held at Boston
 6th September 1681

present
 Symon Bradstreet Esq^r Go^o
 Richard Saltonstall
 Daniel Gookin
 Daniel Dennison
 W^m Stoughton
 Joseph Dudley
 Peter Bulkley
 Nathaniell Saltonstall
 Humphry Davy
 Thomas Sauge
 John Richards
 John Hull
 James Russell
 Samuel Nowel
 Peter Tilton
 Bartholmew Gjdney
 Samuel Apleton
 — — — —

persons Returnd to
 serve on the Grand
 Jury & Sworne
 were

— — — —
 m^r Jonas Clarke
 Rich^d way
 Theoder Atkinson
 Thomas Duers
 Joseph Dauis
 w^m Dady
 Rich^d Louden
 Tho Tyleston
 Tho Tolman
 w^m Goddard
 Tho: flegg
 Tho weld
 Jⁿe Stebbins
 w^m Maning
 — — — —

Thomas Gretian plaintiff in an Accon of
 Appeale on Attaint against stephen sweathy
 Deffendant from the virdict of the Jury
 whereof Cap^t Richard Sprague was foreman
 After the said virdict Courts Judgm^t Attach-
 ment Reasons of Appeale & evidences in the
 Case produced were read Comitted to
 the Jury and are on file wth the Rec-
 cords of this Court the Jury brought
 in their virdict they found for the deffendant the
 Confirmation of the forme^r Judgment & costs of
 Courts.

Thomas Gretian plaintiff in an action of Appeale
 on Attaint against stephen Sweathy deffend^t from the
 virdict of the Jury whereof Cap^t Rich^d sprague was
 foreman After the said virdict Attachment Reasons
 of Appeale & evidences in the Case produced were
 read Comitted to the Jury & are on file wth
 the Reccords of this Court the Jury brought
 in their virdict they found for the deffendant Con-
 firmation of the former Judgment & Costs of Courts

Thomas Gretian plaintiff in an Action of Appeale on Attajnt ag^t ~~Stephen sweathy~~ || Roger stainer || deffend^t from the virdict of the Jury whereof Cap^t Richard sprague was foreman After the virdict Attachment Reasons of Appeale and Evidences in the case produced were read Comitted to the Jury and are remajning on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts.

for
wages

Thomas Gretian plaintiff in an action of Appeale on Attaint against Roger Stayno^r deffendant from the virdict of the Jury whereof Cap^t Richard Sprague was foreman. After the virdict Attachment Reasons of Appeale & evidences in the case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Courts

Joseph Joy & Nathaniel Beales plaintiff in an action of Appeale on Attaint ag^t Hudson Leueret Attorney to Nathaniel Addams deffend^t from the virdict of the Jury whereof Cap^t Richard Sprague was foreman After the virdict Attachment Reasons of Appeale and evidences in the case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & costs of Courts ~ the Court chancerjed this bond to tenn pounds mony in full of sd Addams damage^s = & costs of Courts in all foure pounds & two pence

Richard Thajer sen^r plaintiff in An action of Attaint ag^t majo^r Thom: Sauage Esq^r deffendt. from the virdict of the Jury whereof Cap^t Richard sprague was foreman. After the virdict of the Jury Attachment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Courts

Thajer
ag^t Sauage

persons Returnd to
serve on the Jury for
tryalls of the actions
of Attaint & sworn
were =

— — — —
Cap^s Jn^o walley
Robert Brimsden
Samuel Jacklin
John Dauls
Jn^o Newell
Samuel Ballart
Samuel Kettle
Jacob Hurd

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1681

John Cutler Jun^r
 John Brecke
 Tymothy Foster
 Isaack Ryall
 Elleha Foster
 Jⁿ withrington
 Jⁿ Benjamin
 Rich^d whitney
 Thomas wilson
 Samuel Rugles
 Timothy steevens
 Thom: Cheny
 Samuel Scarborow
 Sam: Goffe
 Jⁿth. R[ⁱ]mington
 Jⁿ fuller

— — — —
 persons Returnd to
 serve on the Jury of
 Tryalls for Ap-
 peales life limb &
 banishm^t & 1st
 sworne were

— — — —
 Cap^t Jⁿ walley
 John fuller
 Samuel Ballart
 Jⁿ Newell
 Jacob Hurd
 Sam Scarborow
 Isaac Ryall
 Robert Brimden
 Tho. wilson
 Tim^s Steevens
 John Scarlet
 w^m Roby
 || instead of Sam
 Jacklin & Tho
 Cheny distmist ||

— — — —
 persons Returnd to
 serv[] on the 2^d
 Jury for Appeal[]
 & sworn were

— — — —
 m^r Jonathan Rim-
 ington
 John Davis
 Jⁿ Cutler Jun^r
 Samuel Kettle
 Jⁿ Brecke
 Samuel Goffe
 Tim^s Foster
 Jⁿ withrington

m^r John Gifford plaintiffe in an action of Attaint
 on appeale agains^t D^r Philljp Read deffendant from the
 virdict of the Jury whereof Cap^t Richard Woode * was
 foreman After the virdict Attachment [Courts Judgm^t]
 Reasons of Appeale & evidences in the Case pro-
 duced were read Comitted to the Jury and are Re-
 mayning on file the Jury brought in their virdict
 they found for the deffendant confirmation of the
 former Judgmen^t only abating seven pounds & Costs
 of Courts ~ here ended y^e Attaints =

m^r James Alljn plaintiff in an Action of Appeale
 Contr^a Nathani Putnam deffend^t from the Judgment
 of the last County Court at Salem = After the At-
 tachment Courts Judgment & Reasons of Appeale wth
 the evidences in the Case produced were read Comitted
 to the Jury & are on file wth the Reccords of this Court
 the Jury brought in their virdict they found for the
 plaintiff reuersion of the forme^r Judgment the land in
 Controuersy & Costs of Courts fowe^r pounds eighteen
 shillings & eight pence :

m^r Richard wharton plaintiffe in an Action of
 Appeale Contra Nathaniell Reynold deffend^t from the
 Judgment of the last County Court in Boston = After
 the Attachment Courts Judgment reasons of Appeale
 & evidences in the Case produced were read Comitted
 to the Jury & are on file wth the Reccords of this
 Court the Jury brought in their virdict they found
 A † ~~the deffendant confirmation of the former judg-~~
~~ment & Costs of Courts~~ || speciall virdict || that is If
 sajd Reynolds were a legall officer at the time of
 seizing the hides then wee find for the deffendant
 Confirmation of the former judgm^t & costs of Courts
 1^{li} 11^s ten penc but if no legall officer then wee finde
 for the plaintiffe reuersion of the forme^r Judgment &
 Costs of Courts The Court determins & Judgeth that

* Written over Sprague.

† Written over "for."

Left Reynolds was a legall officer & so finds for y^e deffend^t confirmation of y^e forme^r Judgm^t & Costs of Courts: m^r Richard wharton Attainted the Jury for erro's or mistakes and & Accordingly sajd || m^r ||

Richard whitney
Samuel Ruggles
Thomas Cheny
John Benjamin
— — — —

Richard wharton as principall & m^r Sampson Sheaff his sue ty acknowledged themselves Jointly & seuerally bound & their heires in tenn pounds apeece to the Tresure^r of the Country & party concerned that sajd wharton shall prosecute his Attaint at the nex^t Court of Assistants to effect

Thomas Harris butcher plt agt Hannah Long Attorney to w^m Long in an Ac^{on} of Appeale from the Judgm^t of the County Court in Boston in Aprill last After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Courts

Josiah Torrey plaintiff against Thomas Gretian defend^t in an action of Appeale from the Judgment of the last County Court in Boston After y^e Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read comitted to the Jury and are on file wth the Reccord of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgm^t & Costs of Courts =

Michael ffarley plaintiff against Edward Lum[m]as deffendant in an action of appeale from the Judgment of the last County Court at Salem After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff reuersion of the former Judgm^t & Costs of Courts = thirty two shillings six pence w^{ch} wth Costs allowed him at Salem Court 25^s 4 make in all fifty seven shillings * =

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1681

Peeter Golding & Sarah his wife plaintiff ag^t Joseph smith deffend^t in an action of Appeale from the Judgment of the last County Court in Boston After the Attach-
Golding ag^t smith

* This sum does not agree with the items, but the items agree with the original bill of costs on file. See Court Files Suffolk No. 2008.

ment Courts Judgment Reasons of Appeale & othe' evidences in the case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff as an Addition to the former Judgment* five pounds mony or else an Acknowledgment to the sattisfaction of the Court & Costs of Courts finety three shillings & tenn penc. = Joseph Smith made his Acknowledgment wch was Read in open Court & is in his Case on file wch the Court Accepted of.

Joseph Lee plaintiff ag^t Robe't Heynes deffend'
 Lee ag^t Heynes
 Lee ag^t Heynes
 in an action of Appeale from the Judgment of the County Court at Ipswich: after the Court had heard the Attachment Courts Judgment Reasons of Appeale & Ans^r they Granted the plaintiff a nonsuit the Accon not being trjable at Ipswich & granted him his Costs thirty eight shillings & sixe pence =

Robe't knight plaintiff ag^t Samuel Leach & Onesephirus Allen defendants in an Action of Appeale from the Judgment of the County Court at Salem After the Attachment Courts Judgment reasons of Appeale and evidences in the Case were Read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff Reuersion of the forme' Judgment & the land in Controuersy & costs of Courts

Sam Leach Attainted y^e Jury whereof Cap^t Jnⁿ walley was foreman for erro's and mistakes & himself principall and Richard norman & philip ffoule^r his suertjes Acknowledged themselues to be Joyntly & Seuerally bound in forty pounds a peece their heires execu^{ts} & Admist^{rs} to the Trespure^r of y^e Country and party Concerned that sajd Leach shall prosecute his Attaint to y^e next Court of Assistants to effect =

Daniel Ela plaintiff ag^t Thomas Chandle^r defendant
 Ela
 Ag^t
 Chandler
 in an action of Appeale from the Judgment of the County Court at Ipswich after the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for the deffendant Confirmation of the forme' Judgment & Costs of Courts forty one shillings & two penc

* The verdict at the County Court was for the plaintiff (Golding) for twenty shillings and costs. See Court Files Suffolk No. 2003.

James Daus plaintiff against mary Daus widdow
& Tho Johnson deffend's in an Accon of [^] from the
Judgment of the County Court at Ipswich. After the
Attachment Courts Judgment Reasons of Appeale
and evidences in the Case produced were read Comitted to the Jury
and are on file the Jury brought in their virdict they found for the
plaintiff reuersion of the forme' Judgment & Costs of Courts — fforty
sixe shillings

Daus
vs.
Daus

m^r Thomas Laughton señ Andrew mansfeild &
Tho Newhall plaintiff ag^t Tho Broune señ deffend^t in
an Action of Appeale from the Judgment of the
County Court at Salem After the Attachment Courts
Judgment Reasons of Appeale & evidences in the Case produced were
read Comitted to the Jury & are on file wth the reccords of this Court
the Jury brought in their virdict th[e]y found for the plaintiff^s reuer-
sion of the former Judgment & Costs of Courts seven pounds one shilling
and fower pence

Laughton
ag^t
Broune

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1681

Thomas migeley plaintiff ag^t Joseph Smith deffend^t
in an action of Appeale from the Judgment of the
Comissione's Court last in Boston Tho migely Came into the Court
and declared he wthdrw his action

The migely Case

w^m Lytherland plaintiffe ag^t Abell Porter señ
deffend^t in an action of Appeale from the Judgm^t of
the County Court in Aprill last in Boston = After
the Attachment Courts Judgm^t Reasons of Appeale & evidences in the
case produced were Read Comitted to the Jury and are on file wth the
Reccords of y^s Court the Jury brought in their virdict they found for
the deffendant Confirmation of the former Judgment & costs of Courts

w^m Lytherland
Cont^a abell Porter

Edward Barton plt ag^t Daniel Mathews ~~plaintiff~~
|| deffend^t || in an action of Appeale from the Judgment
of the Comissione's in Boston after the Attachment Courts Judgment
Reason^s of Appeale & evidences in the Case produced were read Com-
itted to the Jury and are on file wth the reccords of this
Court the Jury brought in their virdict they found for

Barton ag^t mathews

execution 2^d Rec^d

the plaintiff Reuision of the former Judgment & Costs of Courts =
fforty shillings & 4^d

Robert Sandford plaintiff ag^t Robe^t orchard
Sandford ag^t orchard. deffendt in an action of Appeale from the Judgment
of the County Court in Aprill last in Boston. After the Attachment
Courts Judgment Reasons of appeale and euidences in the Case pro-
duced were read Comitted to the Jury and are on file wth the Reccords
of this Court the Jury brought in their virdict they
found for the deffendant Confirmation of the former ^{exe:}

Exec. Issued 17th *
Sept:

Judgm^t wch was 8 : 9. & 10^d abating three pounds &
Costs of Courts wf y^s Court fowrteen & six penc wch
Joseph Holmes engaged for = thirty seven shillings.

Joseph porter plaintiff against James fflood
Porter Con^{ts} fflood deffendt in an Action of Appeale from the Judgment
of the County Court in Boston the plt wth drew this Accon =

John Parmiter plaintiff on Appeale from the Judgment of the
last County Court in Boston after the Judgment of Cour^t & Reasons
of Appeale were read Comitted to the Jury & Read wch are on file the
Jury brought in their virdict they found Confirmation of the former
Judgment =

Adam winthrop Attorney to w^m Harris plaintiff in an action of
Appeale from the Judgment of the County Court ag^t michael Stoakes
deffendt After the Attachment Courts Judgment
reasons of Appeale & euidences in the Case produced
were read Comitted to the Jury & are on file wth the
reccords of this Court the Jury brought in their vir-
dict they found for the deffendant Confirmation of the former Judg-
ment & Costs of Courts thirty seven shilling

winthrop [g] Harris
ag^t Stoakes exec
Issd out 15 Sep^r:

Symeon stoddard plaintiff ag^t Tho. Johnson deffendt in an action
of Appeale from the Judgment of the County Court in Boston after
the Attachment Courts Judgment reasons of Appeale & euidences in
the Case produced were read Comitted to the Jury and are on file
wth the Reccords of this Court the Jury brought in their virdict they
found for the deffendt confirmation of the forme^r Judgment & Costs of
Courts

* 17 written over 15.

[138]

1681

Samuel Lord plaintiffe ag^t Timothy Addams
deffend^t in an action of Appeale from the Judgment
of the County Court at Cambridge after the Attachment Courts Judgment & Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file the Jury brought in their virdict they found for y^e plaintiff reuision of the former Judgm^t & three pounds eight shilling 4^d mony damage & costs of Courts =

Lord ag^t Addams

The Comissioners & Selectmen for the Towne of Boston presenting to this Court m^r Henry Sherlot a frenchman y^t is newly come into this Towne as he sajth a Dancing master & a person very Insolent & of ill fame that Raues & scoffes at Religion of a Turbulent spirit no way fitt to be tollerated to live in this place and therefor humbly desir[ing] this Court according to their wisdomes to take such orde^r that the said sherlott may be remooved & sent away not only out of this Towne but Colony as a person not wth safety to be Admitted to live amongst vs: The Court on pervsall of what was presented voted that m^r sherlot the frenchman dancer & fencer be remooved out of the Country and that he depart accordingly once wthin two months on poenalty of Contempt of Authority =

Comissioners & select
mens Complaint ag^t
m^r Henry Sherlott

The Courts sentence

Ann Perry the Court hauing Considered of yo^r scandalous offence doe sentence yow to be whipt wth fiueteen stripes or pay five pounds mony as a fine to the Country discharging fees of Court standing Comitted till this sentence be performed

An Perry fined. 5^{li}
& p^d y^e Treas.

In Ans^r to the petiçon of Samuel Holton of North Hampton humbly desiring to be divorced from mary his now wife Gon from him & sinc her departure hath had a child & as in y^e evidences in the Case produced || appeares || The Court hauing pervsed & duely Considered of the evidences in the Case Judge it meet to Grant his request & doe sett him free & at libe^{ty} from hir. =

at Courts Adjourn^t
Samuel Holton^s
divorce =

Cheffaleer negro servant to Tho Walker brick maker now in Goale on suspition of Joyning wth marja negro in Burning of Dr Swans' & * Lambs

Cheffaleer negro^s
sentence. =

* This space left blank in the record.

houses in Roxbury in July last The Court on Consideration of the Case Judged it meet to orde^r that he be kep^t in prison till his master send him out of the Country & then dischargd y^e charges of Imp^risonment w^{ch} if he refuse to doe aboue one moneth the Country Tresurer is to see it donn & when y^e chardges be defrajd to returne the ouerplus to y^e s^d walker.

James Pemberton's
negro sentence

The like Judgment & sentenc was declar'd against
Jame^s pembe^tons negro in all respects as a^gt cheffaleer
negro &c

[139]

1681

Marja Negro servant to Joshua Lambe of Roxbury in the County of Suffolke in New England being presented by the Grand Jury was Indicted by the name of marja Negro for not hauing the feare of God before hir eyes & being Instigated by the diuill at or vpon the eleventh day of July last in the night did wittingly willingly & feloniously set on fier the dwelling house of Thomas swann of sd Roxbury by taking a Coale from vnde^r a still & carrjed it into another Roome and lajd it on a floore neere the doore & presently went & crep^t into a hole at a back doore of thy master Lambs house & set it on fier also taking a liue Coale betweene two chips & Carried it into the chambe^r by which also it was Consumed as by yo^r* Confession will appeare contrary to the peace of our Soueraigne Lord the king his Croune & dignity the lawes of this Jurisdiction in that Case made & prouided title firing of houses = The prisoner at the barr pleaded & acknowledged hirselle to be Guilty of y^e fact. And accordingly the nex^t day being Again brought to the Barr had sentenc of death pronounc^t a^gt hir by the Honn^o^{ble} Go^uno^r y^t she should Goe from the barr to the prison whenc she Came & thence to the place of Execution & there be burn^t. = y^e lord be mercifull to thy soule s^d y^e Go^u

Marja negro's
Indictment

& sentence

~~Cheffaleer~~ || Jack || negro servant to m^r Samuel woolcot of weath-
e^rsfeild thow art Indicted by the name of Jack negro for not hauing
the feare of God before thy eyes being Instigated by the diuill did at
or vpon the fowe^tteenth day of July last 1681 wittingly & feloniously
sett on fier Leifteⁿant w^m Clarks house in north Hamp-
ton by taking a brand of fier from the hearth and
swinging it vp & doune for to find victualls as by his

Jack negro's Indict-
ment & sentence

* Written over "hir."

Confession may Appeare Contrary to the peace of ou^r Soueraigne Lord the King his Croune & dignity the lawes of God & of this Jurisdiction in that Case made & prouided title firing of houses page (52) to wch Indictment at the barr he pleaded not Guilty & Affirmd he would be trjed by God & the Country and after his Confessions e^r were read to him & his owning thereof were Comitted to the Jury who brought him in Guilty and the next day had his sentence pronounc agt him by the Gouvernor that he should goe from the barr to the place whence he Came & there be hangd by the neck till he be dead & then taken downe & burnt to Ashes in the fier wth Maria negro = The Lord be mercifull to thy soule sajd the Gouverno^r =

m^r Anthony stoddard Cap^t Thomas Bratle m^r John Joyliffe Cap^t Elisha Hutchinson m^r John Saffyn Cap^t John walley & m^r John faire-weather being presented as chosen by the ffreemen of Boston to be Comissione's for the yeare ensuing were Approved of by the Court & tooke their Oathes as Comissioners for Boston in open Court

7 Comissioners
sworne 13 Sep^r 1681

[139²]

1681

w^m Cheny of Dorchester in the County of Suffolke in New England planter thou art Indicted by the name of w^m Cheny for not hauing the feare of God before thy eyes & being Instigated by the diuill did at or vpon the second day of August last 1681 ffelloniously Comitt a Rape on the body of experience Holdbrooke thy servant and had Carnall Copulation wth hir by force against hir will shee crying out & was heard the last time as in hir Confession and by euidence will appeare contrary to the peace of our Soueraigne Lord the king his Croune & dignity the lawes of God & of this Jurisdiction title Rape page 15 = to which Indictment he pleaded not Guilty an[d] put himself for tryall on God & y^e Country hauing oppertunity to object ag^t any of y^e Jury if he see cause = wch he saw no cause so to doe. And after the Indictment & othe^r euidences in the Case were read & Comitted to the Jury the Jury brought in their virdict they found the prisone^r at the barr Guilty: = And the nex^t day had his sentenc pronounc ag^t him by the Goveⁿo^r That yow Goe hence to the place from whence yow Came & thence to the place of execution & there be hangd by the necke till yow be dead =

w^m Cheny's sentenc

The Court ordered that the Secretary Issue out his warrants to the

(14 Sep^r 81) marshall Gennerall for the three Condemned prisone's
 execution on the next lecture day presently after the
 lecture according to their sentenc^s

George fairfax being Comitted to prison for
 Georg fairfax : cen- Burglary twice once on the Lords day & stole from his
 sure = master * Raymond and now from Timothy
 Dwight of Boston in Rings siluer claspes buttons & money wch sajd
 Dwight Affirmes to be a twenty fve pounds eleven shill[ing] Running
 to be Brided whipt Away from his master more then once being thus Con-
 uicted the Court sentenceth yow to be branded in the
 forehead wth the letter B and be seuerely whipt wth thirty stripes
 paying trble damāges to the partjes from whome yow stole discharging
 fees of Court & y^e prison standing Comitted till sentence be performed : =

In Ans^r to the peticon of Timothy Dwight It is
 & to make Ordered that the peticōne^r hath libe^rty any time wthin
 Restitution this two months to sell the said George fairfax that
 he Give an account of his sale to his former master † Raymond
 who wth himself || is || proportionably to haue his share or else the
 Tresurer of the Country may send the sajd George fairfax away & sell
 him discharging the charges of Court & Imprisonment & Responding
 the Remajnder to the partjes Concerned =

In Ans^r to the petition of Dorcas Smith humbly
 Dorcas Smith^s Crauing the favo^r of this Court to sett hir at libe^rty
 liberty to marry to marry wth another man hir husband xtophe^r smith
 hauing absented himself aboue seven yeares [since] she heard of him
 & not at all in y^t time sending to hir for hir or hir childs reliefe the
 Cour^t on pervsall of the sajd Dorcas hir oath & othe^r testimony Judg
 meet to sett yow at libe^rty =

[140]

1681

In Answer to the petition of m^r Henry Jenkins humbly desiring
 the favo^r of this Court that his Appeale from y^e Comissione's Court
 for wch he hath entred into security for the next Court of Assistants
 being a strainger & ready to Goe out of y^e Country may be heard at
 this Court This peticon was Granted & fryday nex^t
 M^r Jenkins Case Appointed for the hearing of the Case he presently

* This space left blank in the record.

† This space left blank in the record.

giving in his reasons of Appeale to y^e Comissionr^s or their clarke :
 y^e sajd m^r Henry Jenkins desired a Jury & entring his Appeale after
 his peticon the Comissione's Judgment Reason of Appeale & othe^r
 evidences in the Case were read Comitted to the Jury & are on file the
 Jury brought in a speciall virdict viz^t In y^e Case of m^r Henry Jen-
 kins wee find him Guilty of saying that he was as
 Good a man as m^r stoddard & saying to the Constable
 A pox take your tricks = And if the Constables
 affirmation on the oath of a Constable be a legall evidenc to convict a
 man in such a Case then wee find the sajd m^r Jenkins Guilty of saying
 that the Barber was wayting vpon a better man then the Comissione's
 & saying to the Constable A pox take yow othe^rwise not guilty =
 The Court on Consideration of this virdict Judg meet to Confirme the
 Judgment of the Comissione's

Comissioners Judg^t
 Confirmd =

W^m King being brought to the barr was told that he was presented
 by the Grand Jury & now was Indicted for Blasphemy & bid hold vp
 his hand he refused & sajd he would be trjed by God & the King *℞*
 Refusing to be trjed by God & the Country saying he owned not the
 Country no^r their lawes using many revyling & threatning speeches *℞*
 was sent to the Goale from whence he Came.

And at thi^s Court^s Adjournment 21th of october^r
 1681:

at 8 in y^e morning

W^m King was this day brought to the barr from prison for Blas-
 phemous words testified against him & wch he Again in a presumptuous
 manner before Authority vttered & declared i: e that he was the
 [Ae]ternall son of God & y^t he was holy & pure as God himself; was
 at the last Court of Assistants by the Grand Jury presented & left to
 tryall and sajd King being brought to the barr & Indicted accordingly
 for sajd Blasphemy but he behaued himself like a mad man and abso-
 lutely refused to hold vp his hand & plead to the sajd Indictment and
 being now at the barr he owned the words spoken & behaued himsele
 outrageously as a madman; the evidences against him were read the
 Court on perversall of the evidences *℞* Judg meet to order him to be
 severely whipt with Twenty stripes, and then Return'd to prison there
 to lye till y^e Council see meet to dischargdge him. This sentence was
 declar'd to him in open Court *℞*

21th 8: 81

This Court of Assistants is dissolued

22

[141]

present
 Symon Bradstreet
 Esq^r Go^d
 Tho: Danforth Esq^r
 dep^t Go^d
 Richard Saltonstall
 Dani: Gookin sen^d
 Dani. Dennison

Att A Court of Assistan's held at Boston 7th of
 march 1681 —

The Grand Jury was Impanneld & sworne Gaue
 In their p^resentment & Indictment as to Jn^e knight &
 were dischargd

w^m stoughton
 Joseph dudley
 Peter Bulkley
 Humphry Davy
 Nath Saltonstall
 Jn^e Richards
 Jn^e Hull
 Sam Nowell
 James Russell

Sam. Apleton
 — — —

persons Returnd to
 serve on Grand Jury
 & sworne are

— — —
 m^r w^m Parkes
 Rich^d way
 francis Johnson
 w^m Greenow
 Jn^e white
 James Bill
 John Smith
 Dani. Preston
 Tl[me] Mather
 Joseph Tayntor
 Jn^e Bisco
 Jn^e Peirpoint
 Sam. Andrews
 Randall Niccolls
 Eljas Row.
 — — —

m^r Richard Wharton plaintiffe against || Lef^t ||
 Nathaniel Reynolds deffend^t in An action of Attaint
 on Appeale from the virdict of the Jury the last Court
 of asistants in September last after the Attachment
 Courts Judgment Reasons of Appeale & evidences in
 the Case produced were read Comitted to the Jury and
 are on file. The || Jury || brought in their virdict i: e
 a speciall virdict: If finding the [hydes on] board the
 ship whereof Willjam Marshall was then Comander
 though there be no sufficient legall evidence to proove
 how they came there doe forfeite those Hydes being
 legally seized, and no testimony to proove the ship^s
 going away, nor to proove any Intention to transport
 those hides; then wee find for the deffendant a Con-
 firmation of the former Judgment & Costs of Courts,
 If not we find a reuersion of forme^r Judgments &
 Costs of Courts The Bench on pervsall of this virdict
 doe finde for y^e defendant Confirmation of the former
 Judgment & Costs of Courts forty seven shillings =

Afterwards the magists voted it that they forgaue
 m^r wharton the Country^s part of the forfeiture of the hides :

Sam Leach & Onnesephirus Allen plaintiffs against Robe^t knight
 defend^t in an Action of Attaint on Appeale from the virdict of the Jury
 at the Court of Assistants in September last The plaintiff & deffendant
 Appeard in Court & declared they were Agreed & humbly desired the
 Courts favor to grant them Libe^rty to wthdraw w^{ch} y^e sajd leach did and
 Accordingly It was wthdraune =

owen Parris of Barbadoes plaintiff against Georg fletcher or his
 Attorney Hugh Babell deffendant in an Accon of Appeale from the

Judgment of the County Court at Boston in octobe^r last After the Attachment Courts Judgment reasons of Appeale and evidences in the case produced were read Comitted to the Jury and are on file the Jury brought in their virdict they found for the Deffendant Confirmation of the former Judgment & Costs of Courts

Parris ag^t Babbell
g fletcher

le 8th 12th: y^e Jury
[ownd n^o mo.] * =

[142]

1681

Joseph Webb plaintiff Against Stephen Burton defend^t in an action of Appeale from the Judgment of the County Court at Boston in octobe^r last After the Attachm^t Courts Judgm^t Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for the plaintiffe Reuer-tion of the former Judgm^t and that the signe † be Returnd in to the Custody of the sajd plaintiff on forfeiture of paying tenn pounds mony & costs of Courts forty shillings & eight pence

1st
Ju

y^e names of the 1st
Jury for trjalls of
Appeales Attaints
e^r & sworne

— — — —
m^r w^m Bond
Edward Smith
James Loyd
w^m Hoare
Jⁿo moore
Joseph Leeds
Joseph Griggs
Tho Longhorne
Edward Jackson
w^m Hagar
Daniel Smith
Jⁿo ffowle
— — — —

Jⁿo vsher plaintiff ag^t Hezekiah vsher & m^r Samuel Nowell executors to y^e last will of y^e Late Hezekiah Vshe^r defend^t In an action of Appeale from the Judgment of the County Court in Boston in octobe^r last After the Attachm^t Courts Reasons || of Appeale || & Judgment of Court || & evidences in the Case produced || were Read Comitted to the Jury and are on file || with the Reccords of this Court || the Jury brought in their virdict they found for the plaintiff Reuersion of the forme^r Judgment and that the legacjes given to Hezekiah Browne by y^e will of Hezekiah Vsher deceased being fowe^r hundred pounds the wch the plaintiff obteyned a Judgment for in a County Court held in Boston octobe^r 1678 shall be pajd sajd Plaintiff in Goods at mony prize or in deffects thereof mony & Costs of Courts forty sixe shillings & eight pence. =

exec Issud out 30
7 mo 82 E R

person[s] sumoned to
serve on the second
Jury of tryalls for
Appeales Attain^{ts}
e^r sworne were
— — — —
m^r Joseph Lynd
James meares
w^m Gilbert
w^m Broune
Thomas moore:
Room [Cas]
Clement maxfeld
James Bird
Jⁿo Ruggles
Tho Parkes
Nath Coolidg
Hen: spring
Isayah Toy
Jⁿo ffoster in R^o
w^m case

* The verdict at the County Court was for 8th 12th, interest not being allowed.

† The action at the County Court was for "taking down" &c. a "signe which was John Keen's."

samuel Holmes plaintiff against francis dudson defendt in an action of Appeale from the Judgment of the Comissⁿ Court in Boston After the Attachment Courts Judgment Reasons of appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court The Jury brought in their virdict they found for the plaintiff Reuercon of the forme^r Judgm^t & Costs of Courts thirty shillings & two pence

w^m wright sen^d Attorney to w^m wright Jun^d plaintiff ag^t Joseph weeden defendt in an Action of Appeale from the Judgment of the Comissioneⁿ Court in Boston after the Attachment Courts Judgment Reasons of Appeale & other evidences in the Case produced Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff Reuertion of the former Judgment & Costs of Courts thirty fowe^r shillings & two pence

The voss Attorney to Robe^t voss plaintiff ag^t m^r Anthony checkly Attorney to m^r Pelatiah Glouer defendt in an Action of Appeale from the Judgment of the County Court in Boston After the Attachment Courts Judgment Reason^s of Appeale and evidences in the Case produced were Read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the defendt Confirmation of the former Judgment and Costs of Courts forty fowe^r shillings & fowe^r pence

[143]

1681

Peter Goulding plaintiff ag^t Thomas midgley defendt in an Action of Appeale from the Judgment of the Comissione^s in Boston After the attachment Courts Judgment Reasons of Appeale and other evidences in the Case produced were read Comitted to Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the defendt Confirmation of the forme^r Judgment and Costs of Courts fueteen shillings & fowe^r pence =

Goulding ag^t
Smith *

Cap^t Penn Townsend plaintiff against Thomas Johnson defendt in an action of Appeale from the Judgm^t of the County Court in Boston

* It appears by the papers on file that Joseph Smith acted as attorney for Thomas Midgley; Court Files, Suffolk, No. 2065.

after the Attachment Courts Judgm^t Reasons of Appeale & evidences in the Case produced were Read Committed to the Jury are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Courts thirty nine shillings & sixpence.

Townsend ag^t John-
son

execution Issued out

Sam Chapman pltff ag^t Jn^o Barry defend^t in an Action of Appeale from y^e Judgment of Ipswich Court Afte^r y^e Attachment Courts Judgment Reasons of Appeale & evidences in y^e Case produced were read Comitted to y^e Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found A speciall virdict i: e If a man Gives his daughter a legacy when in the will he Calls hir his daughter y^e wife of such a man & she dye wthout Issue before time of payment if it be hir husbands after hir death by Law Then wee find for y^e deffendant Confirmation of the Judgment of Ipswich Court & Costs of Courts if othe^rwise wee find for the plaintiff a reuersion of the forme^r Judgment & Costs of Courts forty seuen shillings & fowe^r pence The Court finds for y^e plaintiff Reuersion of Ipswich Court Judgm^t & Costs of Courts

Chapman ag^t Barry

Richard shatswell plaintiff ag^t nehemiah Jewet deffendant in an action of Appeale from the Judgment of the County Court at Ipswich in September last After the Courts Judgment Attachment & Reasons of Appeale wth othe^r evidences in the Case produced were Read Comitted to the Jury & are on file the Jury brought in their virdict they found for the defendant Confirmation of the forme^r Judgment & Costs of Courts three pounds & two pence: y^e plaintiff Attainted the Jury & sajd Richard shatswel principall in ten pounds & Sam Chapman & Joshua windsor his surtjes in five pounds A peece Respectiue bound themselues to the Treasure^r of the Country & partjes Concerned on Condition that sajd Richard shatswell should prosecute this his Attaint at the nex^t Court of Assistan^u to effect =

shatswell ag^t Jewet

mr Bond forman

Attaint =

Steven Butler plaintiff Against Anthony Checkley deffendant in an Action of Appeale from the Judgment of the County Court in Boston. = The plaintiff & deffendant Appeared The Attachment Courts Judgment e^r were Read and the plaintiff objecting that this Case hath binn heard & determined by two

Butler ag^t Checkly

if not three Generall Courts & therefore not trjable by an Inferio^r Court vnless by Revejw wth new Euidence or new plea w^{ch} was not made ou^t & the defendan^t no^t making it out so to be The Bench declard this Case ought not to proceed: on further Consideration the Court ordered the procedure of the Case. the evidences were Comitted to the Jury & are on file the Jury brought in their virdict they found for the deffendant the Confirmation of the forme^r Judgment & Costs of Courts

Joseph Holmes Attorney to Roger Stayno^r plain-
 stayno^r ag^t Gretian tiffe ag^t Anthony checkley Attorney to Thomas
 [or] Holmes ag^t Gretian defendant in an action of Appeale from the
 checkley = Judgment of the County Court in Boston after the
 Attachment Courts Judgment Reasons of Appeale & evidences in
 the Case produced were read Comitted to the Jury & are on file wth the
 Reccords of this Court the Jury brought in their virdict Reve'sion of
 the former Judgmen^t & Costs of Courts three pounds

Timothy Thornton Tho stanbury Jn^o dyar samuell Linds chosen
 Constable wth others in Boston for y^e yeare ensuing tooke their oathes
 as Constables in open Court As Attests E R S

[144]

1681

Jn^o wing plaintiff against James Halsey deffendant in an action
 of Appeale from the Judgment of the County Court in octobe^r last
 After the Attachment Courts Judgment Reasons of
 wing ag^t Appeale & evidences in the Case produced were read
 Halsey = Comitted to the Jury & are on file wth the Reccords of
 this Court the Case being Called the Reason^s for the Appeale no^t being
 seasonably brought in the plaintiff was nonsuited & defend^t had his
 Costs granted eleven shillings & six pene

Thomas Tare plaintiff ag^t w^m Hinderson deffend^t in an Action of
 Appeale from the Judgm^t of the County Court in Boston January last
 After the Attachment Courts Judgment Reasons of
 Tare ag^t Hinderson Appeale & evidences in the Case produced were read
 Comitted to the Jury & are on file the Jury brought in their virdict
 they found for the plaintiff reuersion of the forme Judgment & Costs
 of Courts thirty eight shillings

Robe^t Taft plaintiff on Appeale from the sentence of the County

Court in Boston after the Courts Judgment or sentenc wth the evidences in the Case produced were read Comitted to the Jury and are on file the Jury brought in their virdict they found Confirmation of Jury^s virdict & Costs of Courts Ɔr 31^s 6 besides fees =

Rob^t Taft Appeale

Richard Dole & Henry Jacquis plaintiff ag^t Rich^d Kent defend^t in an action of Appeale from the Judgment of the County Court at Ipswich: After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they find for the defend^t Confirmation of the forme^r Judgment & Costs of Courts fowe^r pounds twelve shilling^s & two pence.

Dole ag^t Kent

Anthony checkley sue^y to Thomas Gretian plaintiff against Joseph webb marshall || defend^t * || in an Action of Appeale from the Judgment of the County Court in January last at Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the defend^t marshall webb Confirmation of the forme^r Judgment the forfeiture of the bond sixty pounds in money & Costs of Courts The plaintiff desird the bond to be chancerjed wch was Granted & the Court having heard the plaintiff & defendt did chancery the bond to thirty pounds money the Costs of Courts Included =

Checkly g. Gretian
plt ag^t Joseph
webb marshall ex-
ecuti Issued out

Returne wayt marshall plaintiff against Joseph Holmes Attorney to stephen Sweathy defendt in an Action of Appeale from the Judgment of the County Court in Boston in octobe^r (81) for wages After the Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for y^e defend^t Confirmation of the forme^r Judgment & Costs of Courts = forty two shillings & tenn pence =

1st Jur

wajte ag^t Hom[es]
for wages

Return way^t marshall plaintiff in an Action of Appeale Against †

* Written over "pltf."

† Written over "from the."

Joseph Homes Attorney to steven sweathy || defend^t || (for cloaths)
 After the Attachment Courts Judgment Reasons of
 wayt ag^t Homes ex- Appeale & evidences in the Case produced were read
 ecution issued ag^t Committed to the Jury and are on file wth the Reccords
 e^r for 8 : 14. 10. of this Court the Jury brought in their virdict they
 found for the deffendt Confirmation of the forme^r Judgm^t & Costs of
 Courts forty shillings & 2^d — — —

[144²]

1681

march 18, 1681 :
 then present in court
 Symon Bradstreet Esq^r
 Go^o
 Tho. Danforth Esq^r dep^t
 Go^o
 Daniel Gookin
 Daniel Dennison
 w^m Stoughton
 Joseph Dudley
 John Richards
 Sam Nowell
 Jame[s] Russell
 Jⁿ Hull
 Benj. Gedney
 Sam Apleton
 & Secret^r

Esq^{rs}

Charles chickatabut son of the late Josiah
 chickatabut sachem of the massachusetts, personally
 Appearing before the Governo^r & Court of Assist-
 ants desiring and made choyce of willjam stoughton
 & Joseph dudley Esq^s for his Guardians during
 his minority, referring himself wholly to their
 mannage and Government praying this Courts
 allowance and acceptance thereof, Willjam Ahanton
 being present and Interpreting, which was accord-
 ingly granted & Ordered to be Recorded the day
 Abouesajd and accordingly stands here in their
 booke of Records thus Recorded: p Edw. Rawson
 Secret =

Clenton^s divorce
 In Ans^r to the petition of Rachel Clenton the wife
 of Lawrence clenton on pe[rus]all of the evidences in
 Court, The Court Judgeth it meet to Grant the peticone's Request &
 doe Judge it meet to divorce hir & free hir from hir sajd husband =

may 24, 1682
 In the Gennerall Court = In Ans^r to the peticon
 of w^m Kent tave'ner^r The Go^o no^r & magists Judg
 meet to grant the peticone^r licence & libe^{ty} to make sale of his wine
 beere & prouissions exprest in his peticon till the last tuesday in octobe^r
 next Attests Edw Rawson Secret

Edward Rawson and w^m Rawson his son plaintiff^s in an action of
 Appeale from * the Judgment of the bench & virdict of the Jury
 in Case e^r of the County Court last in Boston || ag^t w^m stoughton &
 Joseph dudley Esq^{rs} Commissione^s for y^e vnited collonyes for y^e mas-

* "from " repeated in the record.

sachusetts defendts || as to a nonsuit *et* After the Attachment & Courts Judgment were Read the plaintiffs Insisted on & desired as at y^e former Court a non suit =

Edw^d Rawson
Contra

m^r Isaack Addington is ordered by the Court to officiat as clarke of this Court in the Case betweene the Comissione's of the Colonjes & m^r Edward Rawson & his son m^r W^m Rauson 14. 1 168½ signed Thomas Danforth p order

The Appellants Reasons & pleas for a non suite being read & pleaded and the Question put to voate whither the Appellants ought at the County Court to haue had a non suite granted them It was voted by the whole bench in the negative nemine Contradicente and the Cause proceeded to tryall and both the Attachment Reasons of Appeale & all other evidences in the Case produced were Read Comitted to the Jury and are on file in m^r Addington's hands the Jury brought in their virdict they found for the defendants Confirmation of the forme^r Judgment & Costs of Courts m^r w^m Rauson desired to Attaint y^e Jury but his father m^r Edward Rauson who was present refused to Joyne in y^e Attaint where vpon it was put to y^e question whith^r m^r w^m Rausions Attaint should be allowed p^remisses considered & voted in y^e negative nemine contradicente

The Bench Chanceried the bond & forfeiture thereof to three hundred and thirty pounds in money & Costs of Courts :

21 m^{ch} 168½

[145]

[Blank space]

At a Court of Assistants or Admiralty held at Boston 1st June 1682

Edward Randolph Esq^r Collecto^r &c.* of his maj^{ties} Customes *et* pl^{tf}fe by his libell & Complaint ag^t seven pakes or fardles two hundred paire of stockins more or less two hundred paire of shooes more or less seūrall Caskes hogshds. trunks bayles chests boxe filled opened or not opened *et* as in sajd libell is exprest referrence thereto being had may Apeare *et* on y^e behalfe of ou^r Soueraigne Lord y^e King the Goūno^r & himself *et* Contra George Hutchinson defendt^r in whose hands they are or were after y^e Case was Called the plaintiff & defendt^r appear-

present
symon Bradstreet
Esq Go
Tho: Danforth Esq^r
Dep^r Gō
Dani: Gookin
Dani: Denison
John Pinchon
w^m stoughton
Peter Bulkley
Nath Saltonstall
Humphry Davy
Nath: Saltonstall †
Sam: Nowell
James Russell
Peter Tilton
Rob^t Pike
— — —

* Written over "of."

† Entered twice in the original.

Jury men Returnd
to serv[e] at y^e
Court & were
swor[n]

ing & evidences in y^e Case produced were read : Com-
itted to y^e Jury the Jury brought in their virdict they
found for the deffendant Costs of Court. =

Cap^t Pen Townsend
Joseph Pearse [Bo*]
Joseph Homes
Robert Seaver se[n]
w^m Gary
Jn^s Bird
Nehemiah Clapp
Sam Jennison
Joseph pears [wat†]
Jn^s Blany
Francis Boman
John Goues
— — — —

Edward Randolph Esq^r Collecto^r of his maj^{ties}
customs in New England e^r plaintiff on behalf of
his maj^y the Go^vno^r Symon Bradstreet Esq^r & him-
self by his libell or Information ag^t Jn^s Place master
of the ship Hope of Boston deffend^t for his vndeliu-
ery of his wine before entry made e^r as in sajd libell
doth & may appeare referreⁿc thereto being had after
the plaintiffe & defend^t Appearing & evidences in
y^e case were Considered being Comitted to y^e Jury

they brought in their virdict they found for the deffendant Costs of
Court — —

Edw^d Randolph Esq^r Collecto^r of his maj^{ty}^s Custom^s in New Eng^d
by his Information on behalfe of our Soueraigne Lord the king &
Symon Bradstreet Esq^r Go^vno^r & himself plaintiff ag^t Jn^s Boury m^r of
the ship w^m of Bristoll & also ag^t y^e s^d ship for his vndeliuery of one
pipe of sherry wine at marblehead before entry wth the Go^vno^r e^r as
in sajd Information referreⁿc thereto being had may Appeare & after
the Court & Jury e^r had heard the pleas e^r y^e Case Comitted to the
Jury the Jury brought in their virdict they found for the deffend^t costs
of Court

[146]

1682

Robe^t Butche^r as Attorney to Timothy Armitage plaintiff
ag^t Edward Randolph Esq^r || defend^t || in an Action of Revejw of a
Case tried at a Court of Admiralty or Court of Assist-
ants held at Boston the 25 december 1680 wherein
the sajd Randolph was then plaintiff & prosecuted
sajd Armitage vpon breach of y^e Act of the 14th of y^e king & obteyned
Judgm^t ag^t sajd Armitage then deffendant the sume of forty pounds
mony as by s^d Judgm^t may Appeare e^r After the plea^s & evidences in
the Case produced were read: Comitted to the Jury e^r the Jury
brought in their virdict they found for the defendant Costs of Court

Butche^r ag^t
Randolph e^r

Samuel shrimpton principle & nicholas paige || his suerty || both of

* Boston?

† Watertown?

Boston me'chants Joyntly & seuerally Acknowledged themselues bound in two hundred pounds to ou' Soueraigne Lord King charles the second *es* on Condition that sajd samuel shrimpton shall respond the Judgment and Apprisall of the ship Hope in reference to an Accon of Revejw of the Case trjed at the Court of Assistants 3^d Instant June betweene between * Edward Randolph Esq^r Collecto^r *es* & John Place master of ship Hope as shall at sajd Court of Revejw sometimes before the 10th of Septembe^r nex^t be determined & recouered by sajd Edw^d Randolph

Attests Edw Rawson secret

Att a Court of Assistants or Court of Admiralty
held at Boston 15th June 1682

Theophilus Poole one of the Adventure's in the ship Resolution plaintiff^r ag^t w^m Phipps Comande^r of the sajd ship & Erasmus steevens and Nicholas Hayward Quartermaste's in an Action of the Case for that they the sajd w^m Phipps Comande^r Erasmus steevens & nicholas Hayward Quartermaste's not wthstanding the sajd Pole was at æquall Charge & did prouide & pay for his oune Armes & Amunition & prouition after their laying out full shares æqually at martjn^s vinyard hath tooke halfe his share & deteynes the same in their the sajd steeven^s & Hawards hands & Refuseth the deliuary thereof to the sajd poole to his great da^mage as in the s^d Attachm^t bearing date 12th June Instant 1682 more at large refferenc thereto being had amply doth & may Appeare After y^e Attachm^t & evidences therein produced || were read & || the Court had considered thereof the Court did decree & dtermine that the sajd Erasmus steevens and nicholas Haward Quartermaste's of sajd ship resolution in behalfe of the Company shall pay vnto the sajd plaintiff^r Theophilus Pole the sume of twenty seuen pounds mony of New England for his halfe share that was taken by them the sajd Quarter masters after the divi^on at martyns vineyard & three pounds nine penc like mony Costs in all 30^{li}

present
y^e Go^urn^r
dep^t Go^u
w^m stoughton
Peter Bulkley
Humphry Davy
sam. Nowell
Jn^o Hull
James Russell
— — — —

[147]

1682

Jn^o Aires one of the Adventure's in the ship Resolution plantiff^r against w^m Phipps Comander of sajd ship & Erasmus steevens & Nich-

* Repeated in the record.

olas Haward Quart'm's in an action of the Case for that they the said w^m Phipps Comande' & Erasmus steevens & nicholas Hayward Quar-te'm's notwithstanding the s^d Aires was at æquall charge & did provide & pay for his oune Armes Amunition & prouition after their laying out full shares æqually at martyn^s vineyard hath took halfe his share & deteynes the same in their the said steevens & Haywards hands & refuseth the deliuary thereof to the said Aires to his great damage: as in the s^d Attachm^t bearing date 12 June Instant 1682 more at larg refference thereto being had Amply doth & may appeare After the Attachment & evidences in the Case produced were read & the Court had Considered thereof The Court did decree & determine that the said Erasmus steevens & Nicholas Hayward Quarterm's of s^d ship Resolution in behalfe of the Company shall pay vnto the plaintiff John Aires the sume of twenty seven pounds mony of New England for his halfe share that was taken by them the said Quarterm's after the divicon at martjn's vineyard and three pounds nine penc like mony Costs in all thirty pounds =

Thomas Johnson one of the Adventure's in the ship resolution plaintiff agt w^m Phipps Comande' of s^d ship & Erasmus steevens & Nicholas Hayward Quarterm^s || defend^{ts} || in an action of the Case for that they the said W^m Phipps Comande' & Erasmus steeven^s & Nicholas Hayward Quarterm's notwithstanding the said Johnson was at æquall charge & did provide & pay for his oune Armes Amunition & prouision after their laying out full shares æqually at martjns vineyard hath tooke halfe his share & deteynes the same in their the said steevens & Haywards hands & refuseth the deliuary thereof to the said Johnson to his great damage as in the said Attachment bearing date the 12th of June Instant 1682 more at large refference thereto being had amply doth & may Appeare after the Attachment & evidences in the Case produced were read and the Court had Considered thereof The Court did decree & determine that the said Erasmus steevens and Nicholas Hayward Quarterm's of said ship Resolution in behalfe of the Company shall pay vnto the plaintiff Thomas Johnson the sume of twenty seven pounds mony of New England for his halfe share that was taken by them the said Quarterm's after the divition at martjns vinyard & three pounds nine pence like mony Costs in all thirty pounds =

Thomas knap^s one of the Adventure's in the ship Resolution plaintiff agt w^m Phipps Comande' of s^d ship & Erasmus steephens & Nicholas

Haywards Qu'te'm's deffendants in an Acōn of the Case for that they the said w^m Phipps Comande' & Erasmus steevens & Nicholas Hayward Quarte'm's no^t wthstanding the said knapps was at æquall charge & did provide and pay for his owne Armes Ammunition & prouission After there lajing out ffull shares æqually at martjns vineyard hath tooke halfe his share & deteynes the same in their the said steevens & Haywards hands & refuseth the deliury thereof to the said knapps to his great damage as in the said Attachm^t bearing date the 12th of June Instant 1682 more at large refference thereto being had amply doth & may Appeare After the Attachment & evidences in the Case produced were read & the Court had Considered thereof The Court did decree & determine that the s^d Erasmus steeven^s & nicholas Hayword Quartermasters of said ship Resolution in behalfe of the Company shall pay vnto the plaintiff Thomas knapps the sume of twenty seven pounds mony of New England for his halfe share that was taken by them the said Quaterm's after the diuission at martjns Vineyard and three pounds nine pence like mony Costs in all thirty pounds

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At A Court of Assitants or Admiralty Called
by the Gover^r & held at Boston 17 Augst 1682

In the Case of Jn^o Daniel Carpenter & Cornelius Anderson Cooke in behalfe of themselues & Robe^t Tucker Carpenters mate nicholas Austin qu'tm^r Robe^t Read Jn^o Curtis Jn^o day John Goodwin Nathaniel Legg Robe^t Browne & Richard strout marriners belonging to ship merchants adventure of London plaintiffs agst Cap^t w^m stone Comande' of the said ship on behale of his owno's deffendt. In an Action of the case according to Attachment bearing date the fowe'teenth Instant refferenc thereto being had amply doth & may Appeare After the Cour^t had heard the libell or Complaint Attachment & evidences in the Case produced were read *es* The Court Judged & declared that wages is due to the said marriners but not payable at this Port And therefore order the deffend^t Costs and doe orde^r & require the said Seamen to repajre to the said ship and Attend their duty

present
Symon Bradstreet Esq^r
Go^u
Tho. Danforth Esq^r
dep^t Go^u
Daniel Gookin
w^m stoughton
Humphry Dany
Sam Nowell
Jn^o Hull
James Russell } Esq^{rs}

Att A Court of Assistant[s] held at Boston 5th
Septemb^r 1682

present
Symon Bradstreet Esq^r
Go^d

Tho Danforth Esq^r dep^t
Go^d

Daniel Gookin
Daniel Dennison
W^m stoughton
Peter Bulkley
Nath Saltonstall
Humphry Davy
Sam. Nowell
Jn^o Hull
James Russell
Bartho: Gidney
sam Apleton
Robt Pike

Esq^{rs}.

[g]rand

[J]ury ~~for tryall~~

~~of y^e attaint~~ were
sworne. —

{m^r} Jonas Clarke

Robert walker

Arthur mason

Gamaliel way^t

James Penuberton

Laurenc Douse

Rich^d Louden

Edw^d [Ca]rrington

Jn^o Peirpoint

Phillip Torrey

Tho Toleman seⁿ

Tho Trott seⁿ

Jacob Hiewens seⁿ

w^m manning

[N]ath^s Sparhanke

Joseph Beamis

Jn^o whitney

Joseph child: =

The Grand Jury brought in their presen^tment
leaving Jn^o Neponet Indian to his further Tryall
e^r

'm^r Jn^o Saffyn 'm^r John Joyliff ^ 'Cap^t Elisha
Hutchinson 'm^r John faireweath^r 'Cap^t Tho Bratle
being presented to y^s Court wth (m^r Antho. Stoddard³
& Cap^t Jn^o walley Absent) tooke their oath^s in open
Cour^t as Commissione^rs for the Toune of Boston for
one yeare & till new be chosen as Attests E R S

Richard shatswell plaintiff in an Accon of Appeale
on Attaint Cont^a Nehe[mi] Jewet deffendt after the
virdict of y^e Jury & evidences in the Case produced
were Read Comitted to the Jury and are on file wth the
Reccords of this Court the Jury brought in their virdict
they found for the deffendant Confirmation
of the form^r Judgment^s & Costs of Courts N^o 17 1.

Thomas Baker plaintiff e^r in an Accon of Appeale
ag^t Left Jn^o Putnam deffend^t in an Action of Appeale
from the Judgment of the County Court at Salem
After the Attachm^t Courts Judgment Reasons of Ap-
peale & evidences in the Case produced were read
Comitted to the Jury & are on file wth the Reccords of
this Court the Jury brought in their virdict they found
for the deffendant Confirmation of the forme^r Judgment
& Costs of Courts fowe^r pounds one shilling & sixepence.

Joseph fletcher in behalfe of Jn^o march & Jemima his wife plaint
aga[inst] Hugh march seⁿ deffendant in an Action of Appeale from
the Judgment of the County Court at Ipswich after the Attachment
Courts Judgment Reasons of Appeale & evidences in the Case produced
were read Comitted to the Jury and are on file wth the Reccords of this
Court the Jury brought in their virdict they found Confirmation of the
forme^r Juryes spetiall virdict viz^t If the Acquittance in the deed doth
Acquitt Hugh march from his promise vpon marriage to Joseph fletcher
on the behalf of Jn^o march & Jemima his wife then wee finde for the

deffendant Costs of Courts otherwise wee finde for the plaintiffe one hundred thirty & two pounds in or as money & Costs of Courts The magists on pervsall of this virdict finds for the plaintiff & his Costs Granted was sixe pounds eleven shillings =

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Joseph webb plaintiff in an action of Appeale ag^t m^r sam shrimpton & Cap^t Pen Tounesend deffend^ts from the Judgm^t of the Comissione's Court in Boston After the Courts Judgm^t Reason of Appeale Attachm^t & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff reuersion of the forme^r Judgm^t & Costs of Courts twenty nine shillings & nine pence =

Jn^o wilkins plaintiff ag^t Ingerman Helge^rson deffend^t in an Action of Appeale from the Judgment of the Comission's Court in Boston after the Attachm^t Courts Judgm^t Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts — twenty three shillings & 3^d

[1. 6]
[9]
exec

Sarah Hawthorn widdow & Nathaniel Haw^thorn hir son plaintiff^s against Josiah Roades deffendant in an Accon of Appeale from the Judgment of the County Court at Salem After the Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this court the Jury brought in their virdict they found Confirmation of the former Judgm^t the horse sued for & Costs of Courts three pounds nineteen shillings & tenn penc. —

Seth perry plaintiff against John Hurd deffend^t in an Action of Appeale from the Judgment of the County Court in Boston After the

The Jury for Tryall
of the Accon of
Attaint sworn
both together
— — — —

m^r Tho Sand-
ford 1 Jur
Samuel cheeckley
Sam Gary
Jn^o withrington
Jn^o Davis
w^m marshall
Samuel Douse
Pyam Blower
Tho Prentice
Jn^o Benja^[min]
Isack mixer
Nath Holland
~~Rich^d Cripe~~

2 Jur

Caleb Sever
James Clarke
Daniel Preston
Dauid Jones
Zackry Long
mthew Solle
Zakery Johnson
Daniel champney
Tho: olliuer
Tho: ffaning
Tho: fflegg
Capt w^m G^[er]* in
m^r Crisp's Room
and m^r Benja
walker in room of
ffaning
— — — —

* Gerri sh ?

Attachm^t Courts Judgment Reasons of Appeale & evidences in the
 Case produced were read Comitted to the Jury & are
 Perry ag^t Hurd on file wth the Reccords of this Court the Jury brought
 in their virdict they found for the deffend^t Confirmation of the former
 Judgm^t & Costs of Courts —

Isaak waldron plaintiff ag^t Theophilus ffrary
 waldron Con^{ts} Jn^o wing c^r deffend^{ts} in an Ac^{on} of Appeale from
 ffrary wing c^r the Judgmt of the County Court last in Boston After
 the Attachm^t Courts Judgm^t reasons of Appeale & evidences in the
 Case produced were read Comitted to the Jury & are on file wth the
 Reccords of this Court the Jury brought in their virdict they found
 for the deffendants Confirmation of the former Judgmen^t & Costs of
 Courts forty six shillings =

Isaack waldron plaintiff ag^t John wisewall Ju^o deffend^t in an
 Ac^{on} of Appeale from the Judgm^t of the las^t County Court in Boston
 waldron ag^t wisewall After the Attachm^t Courts Judgment Reasons of
 Appeale & evidences in the Case produced were read
 Comitted to the Jury & are on file wth the Reccords of this Court the
 Jury found for the deffend^t Confirmation of the former Judgmen^t &
 Costs of Courts 28^s 8^d

mannasseth Becke plaintiff ag^t Symon Gale * deffend^t in an
 Ac^{on} of Appeale from the Judgment of the las^t County Court in Boston
 Beck ag^t Gates After the Attachment Courts Judgmen^t Reasons of
 Appeale & othe^r evidences in the Case produced were
 read Comitted to the Jury & are on file wth the Reccords of this Court
 the Jury brought in their virdict they found for the deffendant Con-
 firmation of the former Judgmen^t & Costs of Court^s thirty shillings &
 tenn penc & w^{ch} was p^d him wth y^e 4^s damage [by E R S]

[150]

m^r HerLakenden Symonds plaintiff against Hud-
 Symo[nds] Con^{ts} son Leueret deffendant in an Action of Appeale from
 Leueret the Judgmen^t of the County Court in Boston After
 the Attachment Courts Judgment reasons of Appeale & evidences in
 the Case were read Comitted to the Jury & are on file wth the Reccords
 of this Court the Jury brought in their virdict they found for the

* The name was probably "Gates" as given in the margin.

deffendant Confirmation of the forme^r Judgment & Costs of Court y^e plaintiff desired his bond might be chancerjed both partjes Appearing The Court chanceried the Bond to one hundred & thirteen pounds thirteen shillings mony & Costs of Courts: and ordered that before execution Issue out m^r Leueret deliver vp to the sajd Herlakenden Symonds all deeds bonds & writtings that he hath had and now hath in his hands of the sajd symonds = The sajd Hudson Leueret Came & in the open Court & deliued vp as he sajd all his deeds bonds & writtings to the sajd m^r Symonds wch sajd m^r Symonds received and acknowledged in Court y^t they were all memord y^s day m^r Epps once And againe sajd he tendered m^r Symonds person and desired to know whither he was freed m^r Leueret in Court declar'd m^r Epps was free and that he was satisfied & had nothing to say as to him =

m^r Richard martyn plaint against Thomas Rost
deffendant in an action of Appeale from the Judgment martyn ag^t Rost
of the County Court at Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts sixteen shillings & sixe pence

Jn^o williams plaintiff against Jn^o Brookings
defendant In an Action of Appeale from the Judgment of the County Court at Boston after the Attachment Courts Judgment Reason^s of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for the plaintiff Confirmation of the forme^r Judgment & find Costs of this Court for the deffendant = Was ag^t Brookin
exec Issued out for
y^e costs

m^r Thomas Thatcher plaintiff ag^t Humphry Davy
Esq^r After the attachm^t Courts Judgment Reason of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the forme^r Judgment & Costs of Courts twenty three shillings & sixe pence Thatcher ag^t m^r
Davy
execution Issued out
5 dec 82 for 30.
2s —
Judgm^t 28th. 19th. mo.

Exec. Issud [out
paid?] Jn^e ffisher plaintiff ag^t Returne wayte defendant
ffisher ag^t wayte in an Action of Appeale from the Judgment of the
County Court in Boston After the Attachment Courts
Judgment Reasons of Appeale & evidences in the Case
produced were read Comitted to the Jury & are on file wth the Reccords
of this Court the Jury brought in their virdict they found for the
deffendt Confirmation of the forme^r Judgment & Costs of Courts thirty
two shillings & fowe^r pence

Holman ag^t Deering tiff^s ag^t Henry Deering Attorney to * michel-
[paid] — son deffendant in an Action of Appeale from the
Judgment of the County Court In Cambridge the Reasons not being
signed by y^e plaintiff he was nonsuited but on y^e deffend^t declaring
he was not willing to take any Advantag y^e Accon proceeded & After the
Attachments Courts Judgment Reasons of Appeale & evidences in
the Case produced were read Comitted to the Jury & are on file wth the
Reccords of this Court the Jury brought in their virdict they found
for the deffendant Confirmation of the former Judgment & Costs of
Courts forty two shillings & fowe^r pence

[151]

Jn^e Gifford plaintiff ag^t Thomas walte^r & Rich^d midlecot deffend^t
in an action of Appeale from the Judgment of the County Court in
Boston After the Attachm^t was Read e^r y^e deffendts pleading for a
non suit the Court declared a non suite = It hauing
m^r Jn^e Giffords binn tried at y^e Gennerall Court || Granting him his
appeale Costs 14^s. but || on m^r Giffords deliuering a paper In-
formation or petiçon In Ans^r thereto The Court declare^s that m^r
Gifford shall be heard in Case he Cann prove that this is a new Action
& different from that which the Genn^l Court hath heard & determined
that m^r walte^r & m^r midlecot haue notice to Attend after dinner
m^r Gifford was brought m^r walte^r Appeared but on hearing what
the Court was about turnd away & went out of Court though Called to
Attend. After the Court had heard m^r Gifford & vejwed seuerall of
his pape's wch are on file It was put to the voat those that are of the
minde that m^r walte^rs had no powe^r by his letter of Attorney let them
hold vp their hands, not one held vp & so y^e Case Issued =

* This space left blank in the record.

m^r Jn^o Hoare Attorney & Assignee of Daniel Hoare plaintiffe *et* ag^t wth Kilcup defend^t in an Accoon of Appeale from the Judgment of the County Court at Boston the * Case was Called plaintiff & defend^t Appeared the Attachment & Courts Judgment was Read the defend^t pleading for a non suite & the plaintiff for his reasons of Appeale Given in to be read the plaintiff giving in the Genn^l Courts order debarring him *et* his reasons signed by him was read the Court Considering the Gen^l Courts order declared the Case Could not proceed :

m^r Hoar. nonsuted

Richard Collicot & Nathaniel Greenwood plaintiffs ag^t Jn^o Sea's defend^t in an Action of Appeale from the Judgment of the County Court at Charles-Towne Afte^r the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiffs Reuersion of the forme^r Judgm^t & Costs of Courts fiuety two shillings & six pence =

Collicot *et* Contra Sear

execu: Issued out 9, octob: 82

Jn^o Trumble plaintiff ag^t Thomas Peck defend^t in an ac^on of Appeale from the Judgment of the Comissione's Court in Boston After the Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for the defend^t Confirmation of the former Judgment & Costs of Courts

exec Issued out for 11: 16. 10 13^{mo} 82 [Eng^t]

Edward Randolph Esq^r Collector *et* by his libell^s complaint^s & Attachmen^t bearing date 7 Septembe^r 82 plaintiff ag^t Robert wallis master of the pinck good hope as in the sajd libell Comp^t *et* in all respects more at larg Appeareth Refferenc thereto being had defendt After the libell Infformation *et* was Read & evidences produced in the Case Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the defend^t Costs of Court

8th Septemb 1682 Randolph ag^t wallice

Edw^d Randolph Esq^r Collector *et* plaint In an Action of Appeale ag^t ag^t † Jn^o Pitche^r and Andrew willet & sloop swallow defend^t. from the Judgment

Raldolph ag^t willet *et*

* Written over "after."

† Repeated in the original.

of the last County Court in Boston after the Information & othe^r eu-
idences in the Case were read Comitted to the Jury & are on file y^e
Jury brought in their virdict they found for the defend^t Confirmation
of the forme^r Judgment & Costs of Courts.

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Edward Randolph esq^r Collecto^r e^r plaintiff by
m^r Randolph ag^t his Complaint or Informa^on ag^t y^e ketch Newbery
Catch Newbery e^r Isaac Eveleigh ma^r or Nathaniel Clarke & Dani
Dauison own^os of said Catch deff^{ndt} vpon breach of the Act of the
15th of the King as is more particularly expressed in s^d Information
on Appeale from the Judgment of the last County Cour^t in Boston.
After the Information Reasons of Appeale & euidences in the Case
produced were read Comitted to the Jury & are on file the Jury
brought in their virdict they found for the deffendants Confirmation of
the forme^r Judgment & Costs of Courts.

Edward Randolph Esq^r plaint ag^t Andrew willet
m^r Randolph ag^t own^or of the sloop swallows defend^t In an Action of
And^r willet Appeale from the Judgment of the last County Court
& sloop Swallow in Boston After the Attachment Courts Judgment
Reasons of Appeale and euidences in the Case produced were read
Comitted to the Jury & are on file the Jury brought in their virdict
they found for the deffendant Confirmation of the forme^r Judgment &
Costs of Courts.

The Go^u & magists || voted || that the bills of
in Boston Costs e^r ag^t m^r Randolph should be suspended till
14: of Sept 82 the Council take further orde^r

Jn^o Atkinson plaintiff against Jn^o woolcot de-
Atkinson ag^t ff^{ndt} in an Action of Appeale from the Judgment of
woolcot the County Court at Ipswich After the Attachment
Courts Judgment Reasons of Appeale & euidences in the Case pro-
duced were Read Comitted to the Jury and are on file wth the Reccords
of this Court the Jury brought in their virdict they found for the
deffendant Confirmation of the forme^r Judgm^t & Costs of Courts
fowe^r pounds tenn shillings & tenn penc

John Atkinson plaintiff against Jn^o woolcot de-
Atkinson ag^t ff^{ndt} in an Action of Appeale from the Judgm^t of
woolcot Ipswich Court After the Attachm^t Courts Judgment

Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found Reuersion of the forme^r Judgm^t and that the deffendant pay the plaintiff tenn shillings mony damage & Costs of Courts fue pounds fue shillings & eight penc.

John Atkinson plaintiff ag^t samuel Buckman deffend^t in an action of Appeale from the Judgmt of Ipswich Court After the Attachment Courts Judgmen^t Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for the plaintiff reuersion of the forme^r Judgment & costs of Courts fowe^r pounds eighteen shillings =

Atkinson ag^t
Buckman

Jn^o Cleoments plaintiff ag^t nathaniel merrill deffend^t in an action of Appeale from the Judgmt of Ipswich Court After the Attachment Courts Judgmen^t Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plantif Reuersion of the former Judgment & that Jn^o merrill son of Nathaniel merrill shall serve Jn^o Cleoment in the trade of a Carpenter the space of five month[s] or pay to y^e sajd John Cleoments tenn pounds in Indian Corn barly or Barly mault & Costs of Courts fue pounds thirteen shillings & six pence.

Cleoments ag^t
merrill

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Thomas Mekins plaintiff ag^t Enos kinsley defend^t in an Action of Appeale from the Judgment of the County Court at northampton after the Attachment Courts Judg^{mt} reasons of Appeale & evidences in the Case produced were read Comitted to y^e Jury & are on file the Jury brought in their virdict they found for y^e deffendant Confirmation of the former Judgment & Costs of Courts fowe^r pounds thirteen shillings & tenn penc =

14th
mekins Con^{ts}
Kinsley

Joseph peasley plaintiff Con^{ts} Josiah clark deffend^t in an Ac^{on} of Appeale from the Judgment of the County Court at Ipswich the Case was called Attachment & Read no Reasons Appearing signed vnde^r the Appellants hand & he was non suited =

Peasley ag^t Clarke

|| Edward || Barton plaintiff ag^t Daniel mathew deffend^t in an
 Barton ag^t mathews Action of Appeale from the Judgment of the County
 Court at Boston After the Attachment Courts Judgment Reason^s of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the forme^r Judgm^t & Costs of Courts || in all || 3^{li} 13

Edward Barton plaintiff Con^a Daniel mathew^s deffend^t
 Barton ag^t mathews in an Action of Appeale from the Judgment of the
 County Court in Boston after the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for y^e defend^t Confirmation of the forme^r Judgment & Costs of Courts in all three pounds fowe^r shillings six pence =

marke Graues pl^t Con^a mathew ffarrington de-
 20th dam : ffendant in an Accon of Appeale from the Judgment
 Graues ag^t of the County Court at Salem After the Attachm^t
 ffarrington Courts Judgm^t Reasons of Appeale & evidences in the
 Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the former Judgment & Costs of Courts

Cap^t Tho Barret Attorney to ffancis Goffreigh plaint by Edw^d
 Barret ag^t Sprague shippen his Attorney ag^t Cap^t Richard Sprague de-
 ffend^t in an Accon of Appeale from the Judgment of
 the last County Court in Boston after y^e Attachm^t Courts Judgment Reason^s of Appeale & evidences in y^e Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for the deffend^t Confirmation of the former Judgm^t & Costs of Courts thirty nine shillings & two pence

Jn^o Ajres plaintiff ag^t Jn^o ffurnell defend^t in an action of Appeale
 Ayres ag^t ffurnell * from the Judgment of the Comission's Court after
 exec. Issued out the Attachment Courts Judgment Reasons of Appeale
 12 dec. 1683 & evidences in the Case produced were read Comitted
 to the Jury & are on file the Jury brought in their virdict they found for the plaintiff Reue'sion of the former Judgment & Costs of Courts forty two shigs 9^d —

* Or Farwell ?

Jn^o Jacob plaint Con^{ra} John Gale deffend' in an Action of Appeale from the Judgm^t of the Comission's Court After the Attachm^t Courts Judgm^t reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff seven pounds eleven shillings & fue penc & Costs of Courts

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Hudson Leueret plaint ag^t Edw^d Randolph Esq^r Collecto^r c^r in an action of Appeale from the Judg-
ment of the Commission's Court After the Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for the deffend' Confirmation of the former Judgm^t & Costs of Courts —

Leut^t ag^t Randolph

In Ans^r to the petiçon of Ellino^r Redding the Go^u & magists Comend the peticone^r to the selectmen^s Care & due releife & that they put it on the Tresp^{er}'s Account as in other Case for y^e Eastern people =

[Large blank]

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1682

Att A Court of Assistants held at Boston the 6th of march 1682

Jn^o Atkinson plaintiff against James mirrick defend' in an action of Appeale from the Judgment of the County Court at Salem the actions was Called Plaintiff made default by his non Appearenc was non suited & his bond fforfeited

present
Symon Bradstreet
Esq^r Go^u
Tho Danforth Esq^r
dep^t Go^u

Daniel Gookin
John Pyncheon
w^m stoughton
Peter Bulkley
Humphry davy
Samuel Nowell
John Hull
James Russell
Bartholmew Gidney
Sam Apleton
— — — —

no Cause Appearing
for y^e Grand Jury
they were dismist
— — — —

person^s Returned to
Serve on the Jury
of trjalls for Ap-
peales c^r 1 Jury
— — — —

Hannah Haugh widdow plaintiffe Against Edward willis defend' in an Acçon of Appeale from the Judg-
ment of the County Court at Boston in october last
after the Attachment Courts Judgment Reasons of
Appeale & evidences in the Case produced were read
Comitted to the Jury & are on file the Jury brought
in their virdict they found for the Defendan^t Con-
firmation of the former Judgment & Costs of
Courts

m^r Joseph Cooke
 Samuel Turill
 daniel Quinsey
 Peter Towne
 w^m Clough
 Jacob Hurd
 Henry Bowen
 Jonathan Peake
 Rich^d child
 Nath : Basham
 Timothy Mather
 Tho : Trott.

— — — —
 2 Jury for tryalls
 for Appeales &c

m^r Tho Jenner
 Sam. Bridg :
 Tim^s Clarke
 James Townsend
 Samuel Ballard
 Samuel Gore
 Tho Bacon
 Joseph Beamis
 Jnoth Browne
 obadiah Hawes
 Tho Toleman
 Jnoth Jackson
 XJnoth ffowle

m^r w^m Parks
 in case of
 Solomth Phipps &c

Nathaniel Byfeild Attorney to Daniel Raymond
 plaintiff Contra Robe^t orchard deffendant in an
 Action of Appeale from the Judgment of of * the
 County Court held in Boston as to a non suite After
 the Attachm^t was Read & evidence on the plaintiffs
 plea^s for a non suit & deffend^s Ans^r The Court
 declared they Approved of y^e County Courts
 Judgment & that there should be no stop of the exe-
 cution from the County Court g[r]aⁿtⁱng y^e defend^t his
 costs at this Court execut.

Solomon Phips & Josiah wood plain-
 tiff^s ag^t Benanuel Bowe's deffendant in an
 Action of Appeale from the Judgment of

the County Court at Cambridg las^t in octobe^r After y^e
 Attachm^t Courts Judgment Reasons of Appeale and
 evidences in the Case produced were read Comitted to
 the Jury & are on file the Jury brought in their vir-
 dict i : e a speciall virdict If according to law the
 selectmen of Charls Towne haue powe^r to stint &

ljmitt what number of Catle the occupie's of m^r † Lidgets farme shall
 keepe on the Account of such land as lye vnfenced to charls Towne
 Comon then wee finde for the plaintiff a Reuersion of the forme^r Judg-
 ment & Costs of Courts if not for the deffend^t a Confirmation of
 the former Judgment & Costs of Courts = The magists finds for the
 plaintiff

m^r saffyn & m^r Vsher Came into y^e Court & declared they At-
 tainted the Jury for error & sajd Jn^o Vsher acknowledged himself
 bound in twenty pounds & m^r Richard wharton his sue^ty in tenn
 pounds to the Tresure^r of the Country on this Condicō that sajd Jn^o
 vsher shall prosecute this his Attaint at the next Court of Assistants
 to effect = as Attests E R S

Josiah wood & Tho white plaintiff ag^t Benanuel Bowe's deffend^t in
 an Acōn of Appeale from the Judgm^t of the County Court at Cambridg
 in october || last || After the Courts Judgm^t Reasons of Appeale & eu-
 idences in the Case produced were read comitted to y^e Jury & are on
 file the Jury brought in their virdict a speciall virdict i e If accord-
 ing to law the selectmen of charls Towne haue powe^r to stint & ljmitt

* "Of" repeated in the record.

† Error in the record for "M^r" ?

what number of Cattel y^e occupie's of m's Lydgetts farme shall keepe on the Account of such lands as lye vnfenced to Charls Towne Comon then wee find for the plaintiff a reuersion of the former Judgm^t & costs of Courts if no^t for the deffendant a Confirmation of the former Judgm^t & Costs of Courts The magists in this Case finds for the plaintiff^s m' Jn^o Vshe^r Attainted y^e Jury for erro^r & sajd Jn^o vshe^r principall || in 20^{li} || & Richd wharton his suerty in tenn pounds acknowledged themselues alike bound to y^e Tresurer of the Country on Condition that sajd vshe^r p^{ro}secut this his Attaint to effect at y^e nex^t Court of Assistants.

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1682

Daniel Gookin Esq^r plaintiff Contra Cap^t Jn^othan wade deffend^t in an Accon of Appeale from the Judgment of the County Court at charls Towne After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to y^e Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Costs of Courts thirty one shillings & fowe^r pence

Dani Gookin esq^r
contr^a Jn^o.^a wade

m' Thomas Layton Andrew mansfeild & John Burrell plaintiff ag^t Tho. Browne deffend^t in An Action of Appeale from the Judgment of the County Court at Salem After the Attachm^t Courts Judgment Reasons of Appeale and evidences in the Case produced were read Comitted to the Jury and are on file with the Records of this Court the Jury brought in their virdict they found for the plaintiff^s reuersion of the former Judgment & the land in Controversy wth Costs of Courts nine pounds five shillings

Laughton mansfeild
[&] Burrell Attur-
ney^s for Towne of
Iynn Cont. Tho
Browne

Moses Peirse plaintiff Cont^a Benjamin mumford deffend^t in an Action of Appeale from the Judgm^t of the last County Court in Boston After the Attachm^t Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Courts fuyty nine shillings & eigh[t] pence y^e Jury declar^d y^e medled no^t wth the title of land =

Peirse Cont^a
Mumford exec
Issued out

* Jn^othan?

Joseph Crosby plaintiff Conta Joseph Addams deffend' in an
 Action of Appeale from the Judgment of the last
 County Court in Boston After the Attachment Courts
 Judgment Reasons of Appeale & evidences in the Case
 produced were read Comitted to the Jury & are on file wth the Reccords
 of this Court the Jury brought in their virdict they found for the
 deffendt Confirmation of the former Judgm^t & Costs of Courts two
 pounds fueteen shilling & two pence.

Josiah Torrey plaintiff Cont^a Tho: Gretian deffendant in an
 Action of Appeale from the Judgment of the last
 County Court in Boston After the Attachm^t ¶ was
 Read ¶ Courts Judgment Reasons of Appeale & eu-
 idences in the Case produced were read Comitted to the
 Jury and are on file wth the Reccords of this Court the
 Jury brought in their virdict they found for the plaint
 a Confirmation of the former Judgment and thirty pounds five shil-
 lings and seven penc more in mony & costs of Courts
 y^e deffend^t Tho Gretian sajd he Attained the Jury for
 erro's & Instanc^t pticularly because the Jury had given thirty pounds
 five shillings & seven penc more then the proceeds of
 that voyage wth what othe^r he shall make Appeare:
 And sajd Thomas Gretian principle & m^r Anthony
 checkley & Left Edward willis suretyes acknowledged
 themselves & heires bound Tho Gretian in 20^{li} & y^e suretjes in tenn
 pounds apeece to the Tresure^r of the Country & partjes Concerned that
 sajd Gretian shall prosecute his Atteyn^t at the nex^t Court of Assist-
 ants to effect

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1682

Returne wayt plaintiff ag^t Joseph Homes Attur-
 ney to Stephen Sweathy deffend^t in an Acton of Appeal
 from the Judgm^t of the County Court in Boston After
 the Attachm^t Courts Judgment Reasons of Appeale & evidences in
 the Case produced were read Comitted to the Jury & are on file the
 Jury brought in their virdict they found for the plaintiff reuersion of
 the former judgment & Costs of Court^s forty shillings & six pence =

Newby cont^a Hinch-
 man
 exec Issud

Georg Newby plaintiff ag^t Jn^o Hinchman deffend^t
 in an Action of Appeale from the Judgm^t of the Com-
 mission's Court after the Attachm^t Courts Judgment

Reasons of Appeale & evidences in the Case produced were read Comitted to y^e Jury & are on file the Jury brought in their virdict they found for y^e deffend^t Confirmation of the former Judgm^t & Costs of Courts 6. 6^d

Return wayte plaintiff against Jn^o Plumbe deffend^t wayte cont^a pluff
in an Action of Appeale from the Judgm^t of the County Court in Boston after the Attachm^t Courts Judgm^t Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Records of y^e Court the Jury brought in their virdict they found for the defend^t Confirmation of the former Judgm^t & Adds twenty shillings more therevnto wth costs of Court : Jn^o Plumbe in open court declar'd he was Agred wth Return wayt

In Ans^r to the petition of Elizabeth street wife to Eliza: strets diuorce
Robe^t street Humbly desiring she may be diuorc^t from hir s^d Husband she producing se^u witnesses of his breach of Coueñt & y^t he hath anothe^r wife in Jamajca. The Court on pvsall of the euidences declares the peticone^r is at libe^rty to marry wth another man and that she is divorc^t.

Roge^r Gilbe^t plaintiff Cont^a: Isa^c waldron deffend^t in an accon of Appeale from the Judgm^t of the Gilbert ag^t waldro
County Court at Boston After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to y^e Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the forme^r Judgm^t & Costs of Courts

The newman Cont^a Lesly Palmer wthdrawne p Newman Cont^a
Palmer
Agreement

Antho checkly plaintiff cont^a Rich^d Patteshall deffend^t in an Action of Appeale from the Judgm^t of y^e Cheeckly Cont^a
Patteshall
County Court at Boston wthdraune p Agree^m^t

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1683

Att the Court of Assistants Adjourn^t 17th of
April 1683

present
Symon Bradstreet
Esq^r Go^u

The Danforth Esqr
dep^t Goß

Daniel Gookin

w^m stoughton

Humphry Davy

Sam : Nowell

John Hull

James Russell

— — —

persons Returnd to
serve on the Jury for
trjalls & sworne be-
fore the prisoner
who mad no objec-
tions e^r were

— — —

m^r Samuel shrimp =
ton

Robert Hayward

Tim^e Tyleston

Samuel Hix

w^m meade

Tobjah Davis

John knights

Joseph Kittle

Joseph Tainter

Benja Garfield

Zackh. Hicks

Natha : Hancock

— — —

Elisabeth Payne spinster being presented by the Grand Jury, in march last* for murdering of hir child was now brought to the Barr & Indicted by the name of Elisabeth Payne spinster for no^t hauing the feare of God before hir eyes & being led by the Instigation † of the diuill did on or about the 6th

day of march last wilfully murde^r hir child Contrary to the Peace of ou^r Soueraigne Lord the king his Crowne & dignity the lawes of God and of this Jurisdiction holding vp hir hand at the Barr pleaded no^t Guilty & put himself on tryall by God & the Country = Accordingly after the Indictment & evidences produced were read Comitted to the Jury and are on file the Jury brought in their virdict no^t Guilty according to Indictmen^t but greatly negligent in not Calling for help for the preservation of the childs life =

The Court on Consideration of the Case for hir fornication sentenct hir to be whip^t wth twenty stripes paying & dischargding the charge of hir trjall & fees of Court stands Comitted till the sentence be performed. =

James ffulle^r of springfeild being presented by the Grand Jury in ma[rch] last & left to further Tryall at this Court was brought to the Barr & held vp his hand & || there || was Indicted accordingly by the name of James ffuller of Springfeild for that he not hauing the feare of God before his eyes & being lead by the Instigation of the diuill did on or about the latter end of octobe^r last most wickedly Call vpon or pray to the Diuill for helpe and hath at seuerall times since had familiariety wth him Contrary to the peace of ou^r Soueraigne Lord the king his Croune & dignity & the lawes of || God & of || this Jurisdiction = After the Indictment & euidenc produced agains^t him was Read he owning the charge as sajd by him but denied the trueth of it saying he had belyed him- self || his examination & [confession being] || comitted to the Jury and are on file wth the Records of this Court the Jury brought in their virdict they found the prisoner at the barr not Guilty according to Indictment : The Court Consi[der]ing of his wicked & pernicious willfull lying & Continuanc in it till now putting the Country to so great a charge

* Quere. See marginal entry at opening of this Court (p. 223) as to Grand Jury not having any cause before it.

† Written over the word "diuill."

sentenct the sajd James ffuller to be seuerely whipt wth thirty stripes
seuerely lajd on & that he pay fise pounds mony to the Trespure^r of the
Country to dischardg the chardges of his triall paying fees of Court^x
stands Comitted till the sentence be pformd. & that in Case y^e
s^d fise pounds be not p^d by y^e s^d ffuller wthin a month
Its left wth y^e Trespure^r of y^e Country to ship him of
& dispose of him as he Cann not || exceeding || fower
yeares to Ans^r the charges past E R S

24 may
(83)

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1683

In Ans^r to the peticon of m's mary Sauage: The Court doth Ap-
point m^r willjam Parkes m^r Joseph Lynde & Cap^t Penn Townsend a
Committee to set out vnto m's mary Sauage relict of the Late Thomas
Sauage Esq^r hir thirds According to law. and to doe it wth what speed
they Cann: And deacon w^m Parkes is to Appoint time & place of
meeting =

In Ans^r to the petition of Ann Perry for a divorce from hir hus-
band e^r The Court hauing Considered of the Case see^s no Cause to
grant hir request =

Att a Court of Assistants Called to sitt & sate in Boston 22th of
may 1683

at this Court mary Webster wife to w^m webster
of Hadly being sent downe vpon suspition of witch-
craft & Comitted to prison in order to hir tryall was
brought to y^e Barr the Grand Jury being Impanneld
~~she not excepting against any of them~~ the * Grand
Jury on pervsall e^r of the euidences Returnd that as
y^e Grand Jury for ou^r soueraigne Lord the king they
did Indict mary webster wife to w^m webster of Hadly
for that she not hauing the feare of God before her
eyes & being instigated by the diuill hath entred into
Coudenat & had familiariety wth him in the shape of a
warraneage † & had hir Imp^s sucking hir & teats or
marks found in hir secret parts as in & by seuerall
testimonyes may Appeare Contrary to the peace of our
Soueraigne Lord the king his Crowne & dignity the

present
Symon Bradstreet
Esq^r Go^d
Tho Danforth Esq^r
dep^t Go^d
Daniel Gookin
Jn^e Pynchon
W^m stoughton
Humphry Dauy
Sam: Nowell
Jn^e Hull
James Russell
Peter Tylton
Daniel ffisher —
— — —
persons Returnd
to serve on the
Grand Jury &
sworne were
m^r James
Whetcombe

* Written over "held."

† An Indian name for a black cat. — Judd. See Drake's "Annals," p. 170.

Thomas moore
 Eljakim Hutchinson
 Jer ffitch
 Joseph How
 Eljas Row
 Richard Louden
 Phillip Torrey
 Jno watson
 Isack Jones
 w^m Pond
 Richd Eccles
 W^m Bond
 Jno Brett
 — — — —

lawes of God & of this Jurisdiction [^] on their serious
 Consideration of the testimonjes did leaue hir to fur-
 ther Tryalle

Christopher Portingall being Accused for Com-
 itting a Rape on the body of Abigaile Crane as by
 hir Confession & examination appeares The Court
 ordered them to stand Comitted till they Give bond for
 their Appearance at the next County Court at charls
 Towne to Answe^r what shall be lajd to their charge —

Peter Addams of milton being Comitted to Goale for his stealing
 a horse or horses [^] =

This Court Adjourned themselues to the 24 Instant at two of the
 clocke =

then mett & Adjourned Againe to 31th Instant at y^e same time

[Blank]

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present
 Tho. Danforth Esq^r
 dep^t Go
 Daniel Gookin
 w^m stoughton
 Humphry Davy
 Sam Nowell
 Jno Hull
 James Russell
 Dani ffisher
 — — — —
 persons Returnd to
 serve on the Jury &
 sworn were
 — — — —
 m^r Edward willis
~~francis foxcroft~~
 Adam winthrop
 Sam Legg
 w^m Gard
 Roger willington

At A Court of Assistants or Admiralty Called
 to sitt in Boston & satt in Boston 8th June 1683

m^r Barnard Randolph deputy Collecto^r searcher
 & surveyo^r of his majiyes Customes in New England
 by his Information *er* dated the first of June 1683.
 then exhibbited (reference thereto being had amply
 doth & may Appeare) plaintiff against m^r Edward Le-
 Brunn master and merchant of the Good ship called
 the martha of Jersey wth hir Cargoe and Appurte-
 nances to hir belonging deffendant After the Infor-
 mation plea^s and evidences in the Case Given into the
 Court were read Comitted to the Jury and are remayn-
 ing on file with the Records of this Court The Jury

brought in their virdict they found for the defendant
Costs of Court [five] pounds six shillings =

Henry Spring
w^m ffoster
Sam. Andrews
Joseph Cooke
Jn^o Gore
Joshua [La *]
Jn^o Brick[e] [vide]
day booke

This Court was adjourned to y^e 14 June next & thence to the 21th
& so from weeke to weeke to y^e 5 July 1683. E. R. S

[Blank]

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1683

Att A Court of Assistants held at Boston on their
Adjournm^t 5th July 1683.

present
Symon Bradstreet
Esqr Go^d
Daniel Gookin
w^m stoughton
Humphry Davy
Samuel Nowell
^ James Russell
^ John Hull †

In Answe^r to the peticoⁿ & Complaint of m^r John
Gyfford exhibbited to this Court in refferenc to a
Judgment obteyned by him the sajd Gyfford against
m^r Thomas walte's, at the Court of Assistants in Sep-
tember 1680 to the value of sixty three pounds odd money, yet vn-
sattisfied as he Informes and Complaines This Court vpon pervsall and
examination of the whole proceeding therein doe finde that through the
misinformation of the sajd walter & mistake of the officer *er* the sajd
Judgment is not yet satisfied according to law, either in money or other
reall and propper estate of the sajd walters and therefore doe Judge
& declare the office's returne vpon the execution to be
nul & voyd to all Intents & purposes whatsoever, And
doe heereby orde^r and Appoint the Secretary to renue
the sajd Execution according to the law Ann^o 1674
title Judgments frustrated *er* & the marshall Gennerall forthwith to
execute or serve it accordingly. so past E R S

execution Issued out
& dd y^e marshall
Gen^t

[Blank]

present
Symon Bradstreet
Go^dno^r

Att A Court of Assistants held at Boston 4th of
Septembe^r 1683

* Lamb?

† The two carets probably indicate that the name of Hull should come before that of Russell.

Daniel Gookin
 w^m stoughton
 Peter Bulkley
 Humphry davy
 Samuel Nowell
 John Hull 2^d
 James Russell
 Peter Ty[ton]
 Bart[holmew] [Gl]dney
 Sam[^l] Apleton
 John woodbridge
 — — — —

} Esq^m

persons Returnd to
 serve on y^e Grand
 Jury & sworne
 were =
 m^r w^m Parkes
 Tho: Bligh.
 James Hill
 Abell porter
 Tho. Toleman
 w^m ffoster
 Eljas Rowe
 Giles Pason
 w^m Bond
 Gregory Cooke
 Jn^o stedman
 Richd Dana
 — — — —

Anthony Cheeckley on behalfe of Thomas Gretian plaintiff against Josiah Torrey deffend^t || on Attaint || the said Anthony cheeckly in open Court acknowledged himself to stand bound & to be l^jable to execution in Case Torrey reco^ued at this Court in steed of m^r Gretian. After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict i: e They found a speciall virdict that is If the twenty seven pounds fueteene shillings seven pence in the accompt given in by. said Gretian be legall according to the mariti[m]e law page 93 sect. second then wee finde for the plaintiff reve^tion of the last Judgment & Costs of Courts If not legall then wee find || for the defendt || Confirmation of the forme^r Judgment & Costs || of Courts. || The magis^{ts} on pervsall of this virdict find for the defendant Confirmation of the former Judgment & Costs of Courts =

m^r Jn^o Vsher & m^r Jn^o Saffyn on behalfe of Benanuel Bowe's plaintiff^s on Attaint Cont^a solomon Phipps & Josiah wood c^r drive's of charls-Towne Com^{on} defendants on Attaint after the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdic^t i e they found for the plaintiff^s reuerision of the former Judgment & Costs of Courts = .

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1683

persons Returnd to
 serve on the Jury
 for Attaints sworn
 were =

— — — —
 m^r James Taylor
 Jn^o Cotter
 w^m sumner
 Jn^o Parmiter
 in y^e ch. Cases *
 James Bird
 Ebenezar withrington

m^r John Saffyn & m^r Jn^o vsher on behalfe of Benanuel Bowe's plaintiff^s Cont^a Josiah wood & Tho: white drive's of charls-Towne Com^{on} c^r defendant after the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury finds for the plaintiff^s reuerision of the former Judgment & Costs of Courts =

* Charlestown cases?

Jn^o Atkinson plaintiffe Contra John woolecot seⁿd
 defend^t in an Aecon of Appeale from the Judgment of
 the County Court at Ipswich After the Attachment
 Courts Judgment Reasons of Appeale & evidences in
 the Case produced were read Comitted to the Jury and
 are on file wth the Records of this Court
 the Jury brought in their virdict: they
 found for the plaintiff Re^usion of the for-
 me^r Judgm^t & Costs of Courts in y^e Action of y^e bill
 fue pounds one shilling & two penc.

1st Jury
 hith^{to}

John Atkinson plaintiff Con^{tra} Jn^o woolecot deffend^t
 in an action of Appeale from the Judgment of the
 County Court at Salem last After the Attachment
 Courts Judgment reasons of Appeale & evidences in
 the Case produced, and are on file the Jury brought
 in their virdict they found for the deffend^t Confirmation
 of the former Judgment & Costs of Courts forty nine
 shillings =

mary Webster wife to w^m webster of Hley † hauing
 binn presented for suspition of witchcraft e^r by a
 Grand Jury in Boston 22th of may last & left to furthe^r
 Tryall was now Called & brought to the barr and was
 Indicted by the name of mary webster wife to w^m
 webster e^r for that shee not hauing the

1 Ju: feare of God before hir eyes & being Insti-
 gated by the diuil had entred into couenant & had
 familiarity wth him in the shape of a warraneage &
 had hir Imp^s sucking hir & teats or marks found in
 hir secret parts as in & by seuerall testimonjes may
 Appeare Contrary to the peace of ou^r Soueraigne Lord
 the king his Crowne & dignity the lawes of God & this
 Jurisdiction to welch Indictment making no exception
 against any of the Jury leauing himself to be trjed by
 God & the Country After y^e Indictment & evidences in
 the Case were read Comitted to the Jury and are on
 file the Jury brought in hir virdict they found hir not
 guilty =

James Barbar
 Ezra Clap
 John Betts
 Jn^o swett in Gre-
 tians *

Rich^d Chicke
 Edward Dor
 Jn^o weld
 Jn^o Lyon
 sam stone
 noah wisewall
 Xtophe^r Read
 Tho. Langhorne
 Jn^o Goue:
 Caleb church
 Josiah Jones
 Jn^o Hamond
 Symon Coolidge
 Dani Herrington
 Samuell Ruggles
 Jn^o Livermore

— — —
 person^s Returnd to
 serve on y^e Jury for
 Appeales e^r sworn

— — —
 Mr James Taylor
 W^m sumner

Jn^o Betts
 Jn^o weld
 Xtophe^r Read
 Jn^o Goue
 Tho Longhorne
 Dani. Herrington
 Ebene^r withrington
 Josiah Jones
 W^m Gennerson
 Richd chicke

— — —
 persons Returnd to
 serve on y^e Jury for
 life & death & after-
 wds for Appeales
 e^r sworne

— — —
 m^r samuel stone
 Jn^o Parmiter
 Jn^o Cotter
 Ezra Clapp
 James Bird
 Sam: Douse
 Jn^o Swett
 Edward Dor
 noah wisewall
 Symon Coolidge
 Jn^o Hamond
 Jn^o Livermore

* Gretian's case?

† Hadley. See above, p. 229.

Joshua Rice being Comitted to prison on suspition of Adultery
 y^e Grand Jury on pvsall of the evidences presented & Indicted him
 & left him to furthe^r Trjall he was brought to the barr & Indicted
 by y^e name of Joshua Rice of Boston in the County of
 2^d Jur Suffolke in new England Cordwayner for that he not
 hauing the feare of God before his eyes & being Instigated by the diuill
 did on the 24th of August last repaire to the house of Edward Crockett
 laborer & didst Comitt the foule sinn of Adultery with Elisabeth
 Crocket his wife Contrary to the peace of our Soueraigne Lord the king
 his Croune & dignity the law of God & of this Jurisdiction to wch In-
 dictment he pleaded not Guilty & put himself on trjall on God & y^e
 Country after his Indictmen^t & evidences in the Case produced ag^t the
 prisoner at the barr were Read Comitted to y^e Jury & are on file the
 Jury brought in their virdict they found him not Guilty according to
 Indictment but found him guilty of lasiuous Gross & foule actions
 tending to Adultery. =

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1683

Elisabeth Crocket wife to Edward Crocket of
 Crockets Indictm^t Boston in the County of Suffolk Labourer being alike
 presented & Indicted by the Grand Jury was brought to the Barr &
 was alike Indicted for the like foule Crime wth Joshua
 2^d Jur Rice att y^e same time & place & putting himself on
 triall by God & y^e Country pleading not Guilty after the Jury had
 perused the evidences in y^e Case brought in their virdict as ag^t Rice =

= Arthur mason plaintiff ag^t Henry Tight defend^t in an action of
 Appeale from the Judgment of the County Court at
 mason Contra Tight Boston in Aprill last After the Attachment Courts Judg-
 ment Reasons of Appeale & evidences in the Case produced were read
 Comitted to the Jury & are on file the Jury brought in their virdict
 they found for the deffend^t confirmation of the former Judgmt & Costs
 of Courts [thirty] shillings

Gamaljel Roge's plaintiff ag^t Henry Tite defend^t in an action of
 Appeale from the Judgment of the County Court in Boston in Aprill
 last After the Attachment Courts Judgment Reasons
 Roge's Cont^a Tite of Appeale & evidences in the Case produced were Read
 Comitted to the Jury & are on file wth the records of this Court the
 Jury brought in their virdict they found for the defend^t Confirmation

of the former Judgment and Costs of Courts thirty seven shillings & tenn pence || besides x^s damage || — —

Joseph Bris[c]o: Attorney to Henry wright & Tim^o Dwight Attorney to Sam Snow plaintiff Con^a Jn^o sparrey defendant in an Action of Appeale from the Judgment of the Comissione's Court in June last after the Attachment Courts Judgm^t & Reasons of Appeale were Read y^e defend^t pleaded for a non suit because the Reasons of Appeale were not signed by y^e principle or Attorney w^{ch} was grted

Brisco e^r Contra Sparrey

Joseph Brisco Attorney to Henry wright plaintiff Conta John sparrey defend^t in an Action of Appeale from y^e Judgment of the Comissione's Court the Attachm^t Courts Judgm^t & Reasons of Appeale were Read [^] was non suited because y^e time of y^e Court was mist in y^e Reasons =

Idem Deus Idem.

Joseph webb marshall of Suffolke plaintiff ag^t w^m manly deffend^t in an Action of Appeale from the Judgment of the Comissione's Court in Aprill last After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file with the Reccords of this Court the Jury brought in their virdict they found for the defendant Confirmation of the forme^r Judgm^t & costs of Courts. =

webb ag^t manly an Attajnt m^r stone foremān

Joseph webb marshall said he Attainted the Jury for erro's & himself as principall in twelve pounds & Returne wayte & Abraham Bliss his sue^tj^s Acknowledged themselves respectively bound to the Tresure^r of the Country & party Concerned on Condition y^t s^d webb shall prosecute this his Attaint at the nex^t Court of Assistants to effect =

Jn^o child plaintiff on Appeale from the sentenc of the Court [^] After the Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found the Appellant Guilty of playing at Cards for thirty six shillings mony =

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1683

ffrancis Nurse plaintiff^x in an action of Appeale from the Judgment of the County Court at Salem last^x against m^r Zerubbable Endicot deffendant After the Attachment

Nurse ag^t Endecot

Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts || In Ans^r to m^r Allens peticon * || || execution suspended to y^e end of y^e nex^t Genn^l Court ||

Execution Issued
out for 7.18.3 dd to
m^r Homes Attorney
11 Sep^r 1683 =

Clark Con^{ra} Smith

Timothy Clarke plaintiff Cont^a katherin Smith in behalf of hir sonn John Smith deffendant in an Action of Appeale from the Judgment of the Comission's Court last in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts forty two shillings

Dewer ag^t Browne

Tho Dewer plaintiff against willjam Browne Esq^r defend^t in an Accōn of Appeale from the Judgment of the County Court in July last at Boston after the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file with the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts.

Samuell Apelton sen^d Esq^r & Sam^uel Apleton Jun^d plaintiff^s Cont^a John Hawkessen^d & moses Haukes defend^t in An Action of Appeale from the Judgment of the County Court at Salem last After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff thirty pounds mony damages and that the deffendants shall make vp the great damm as Good as before in tweluemonths time next ensuing or pay two hundred & fiuety pounds money & Costs of Courts.

The deffendant Attainted the Jury for erro^rs & himself sajd Jn^o Hawkes principall in the sune of two hundrd pounds & Thomas skinner & Edward Richards his sue^tj^s in 100^{li} a peece acknowledged themselues bound to the Treasurer of the Country in sajd somes

* This part is inserted in the margin, but was evidently intended to be read with the words "execution suspended," etc.

Respectively & to the parties concerned on Condition that said Hawkes shall prosecute this his Attaint at the next Court of Assistants to effect =

Samuel Nowel Esq' & m' Hezekiah Vsher Executors to the last will of the late m' Hezekiah vsher plaintiff^s Cont^a Nathaniel Harwood as Assignee & Attorney to m' John Harwood in an Action of Appeale from the Judgment of the last County Court at Charlestowne on a non suite * after the Court had pvsed the Attachment Courts Judgment Reasons of Appeale and evidences in the Case they declared that there ought to be no non suit & Grants the deffendant his Costs nineteen shillings

Hezekiah Vsher agt
Nathani Harwood

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1683

m' Hezekiah vsher plaintiff^s Contra Peter Bulkley Esq' as Assignee || 27 || of m' John Harwood defend^t in an action of Appeale from the Judgment of the County Court at Cambridge in Aprill last After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for the deffendant Confirmation of the forme' Judgment & Costs of Courts || The plaintiff^s Attainted the Jury for erro' & Gaue bond ||

m' vsher agt m'
Bulkley 27

An Attaint m'
James Taylor foreff

W^m Harrison plaintiff^s Cont^a Thomas Platts deffendt in an Action of Appeale from the Judgment of the last County Court in Boston After the Attachm^t Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file The Jury brought in their virdict they found for the plaintiff^s reuersion of the former Judgment & that the said Platts take his chimneys of the said Harrison's Ground wth in sixe moneth^s

Harrison Cont^a
Platts

Execution Issued
out

* "On a non suite" here evidently means "on a plea for a non-suit," as appears by the record of the County Court at Charlestown, June 19, 1683, from whose judgment the appeal was taken. At that Court Nathaniel Harwood, as assignee and attorney of John Harwood, was plaintiff, and Samuel Nowell, who married the relict and executrix of Hezekiah Usher, deceased, and Hezekiah, the other executor, were defendants, the action being for the payment of a legacy of fifty pounds. The defendants, Nowell, etc., "pleaded for a non suite because the plaintiff sued as both attorney & assignee, the law saying or & not and, i.e. the one & not both." "The Magistrates ordered the plaintiff to proceed in his plea," that is, the Court refused to order a non suit. The defendants, Nowell, etc., appealed from this decision. The trial, at the County Court, then proceeded, and Harwood obtained a judgment there in his favor. The Court of Assistants confirmed the decision of the County Court, refusing to order a non suit, and accordingly grants Harwood his costs. See County Court Records, Middlesex, 1681-1686, p. 64.

or pay the said Harrison forty pounds in money & Costs of Courts five pounds & two pence =

**Harrison Con^{ts}
Platts** W^m Harrison plaintiff Con^{ts} Thomas Platts defend^t
In an action of Appeale from the Judgment of the
County Court last in Boston after the Attachm^t Courts
Judgm^t Reasons of Appeale & evidences in the Case produced were
read Comitted to the Jury & are on file wth the reccords
Execution Issued: of this Court the Jury brought in their virdict they
found for the plaintiff reuersion of the forme^r Judgment & Costs of
Courts forty shillings & fowe^r pence =

Homes ag^t chickley Joseph Homes pl^t Con^{ts} Anthony Cheeckley ||
Attorney to stephen Sweathy || deffend^t in an Ac^{on} of
Appeale from the Judgment of the County Court in Boston After the
Attachment Courts Judgment reasons of Appeale &
**An Attaint m^r stone
foreman** evidences in the Case produced were read Comitted to
the Jury & are on file wth the reccords of this Court
the Jury brought in their virdict they found for the deffend^t Confirmation
of the forme^r Judgment & Costs of Courts forty six shillings &
sixe pence; the pl^t. Joseph Home^s Attainted the Jury || for erro^r e^r || &
Joseph Homes principall in twenty pounds & Joseph webb & Xtophe^r
webb his sue^tjtes in tenn pounds apeece acknowledged themselues bound
to the Tresp^{er} of the Country & party Concerned on Condition that
Joseph Homes shall prosecute this his Attaint at the nex^t Court of As-
sistants to effect —

= Joseph Cowell plaintiff Con^{ts} Timothy Thornton
**Cowell Con^{ts}
Thornton** deffend^t in an Action of Appeale from the Judgm^t of
the Comissione's Court in Boston After the Attachment
Courts Judgment Reasons of Appeale & evidences in the Case produced
were read Comitted to the Jury & are on file the Jury brought in their
virdict they found for y^e plaintiff reuersion of the forme^r Judgment &
Costs of Courts 27^s 2^d.

Samuel Bishop plaintiff ag^t Robe^t Lord marshall deffend^t In an
action of Appeale from the Judgment of the County Court at Ipswich
After the Attachment Courts Judgment Reasons of Appeale &
evidences in the Case produced were read Comitted to
**Bishop Con^{ts}
Lumas *** the Jury & are on file wth the Records of this Court
the Jury brought in their virdict they found for the

* Evidently an error for "Lord."

plaintiff Reue[rsi]on of the forme^r Judgm^t || & || tenn pounds & six pence damage according to Execution & Costs of Courts & execution Respitted till y^e nex^t Gen^l Courts ends

Samuell Lummas * plan^t Cont^a w^m Quarles deffend^t in an Action of Appeale from the Judgment of the County Court at Ipswich After the Attachment Courts Judgm^t Reasons of Appeale & evidences in the Case produced were Read Co^mitted to the Jury and are on file the Jury brought in their virdict they found for y^e deffend^t ffowe^r pounds fowe^rteene shillings & fowe^r pence

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1683

Robert DAVIS plaintiff Cont^a Joseph Gridley deffend^t In An action of Appeale from the Judgment of the last Comissions's Court in Boston after the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced, & are on file the Jury brought in their virdict they found for the deffendan^t Confirmation of the forme^r Judgment & Costs of Courts thirty one shillings & eight pence

Davis ag^t Gridley

Edmond Pe^rkin[s] plt Cont^a Arthur Smith deffend^t in an Action of Appeale from the Judgment of the last County Court in Boston wth drew his action by the Courts leaue Affirming he had Agred wth y^e defend^t = who did not appear

Perkins ag^t Smith

Samuel worden plt Con^a Nathaniel Addams deffendan^t in an action of Appeale from the Judgment of the County Cour^t in Boston made his non Appearanc y^e defend^t had his Costs =

Worden Cont^a Addams

John Lee plt Conta : Hudson Leueret deffendant in an Action of Appeale from the Judgment of the Comissione's Court in Boston after the Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were read Co^mitted to the Jury & are on file the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts thirty six shillings & three pence

Lee ag^t LeueretExecution Issued
out 15 Sep^r 83

* Written over " w^m Quarles."

**Mrs Elisabeth man-
ings divorce from
Nicholas maning**
at [Ipswich*] court

In Answe^r to the peticon of Elisabeth maning for a divo^ce from hir husband, Nicholas Maning = It Appearing to this Court on p^{er}v^{er}sall of the paper's presented that the sajd Nicholas maning was guilty of Incestuous practises with his siste's of which they were Convicted and punished but himself escaped out of this Jurisdiction thereby Avoyding the punishmen^t, and also that he hath not for seuerall yeares past affoorded the sajd Elisabeth any releife for maintenance and hath lately declared In writting vnder his hand & seale that he doth vtterly renounce the sajd Elisabeth and that he will not owne her for his wife or haue any thing to doe with her = All which being Considered by this Court It is by them declared that the sajd Elisabeth is henceforth freed & released from hir marriage ingagement vnto the sajd Nicholas maning — By y^e Court Edw: Rawson sece^t

**Courts sentence ag^t
Joshua Rice & Elisa
Crocket for their
Adulterous Car-
riages e^r**

In the Case of Joshua Rice the Court hath Con- sidered you^r offence, and doe sentence yow on the nex^t fifth day of y^e weeke presently after the lecture to be by y^e marshall Gennerall to be taken out of y^e prison & || wth a Roape ab^t your necke || Conveyed thro the Towne to the Gallowes & there to be sett on a ladder & stand on full howe^r wth yo^r Roap turnd ouer the Gallowes & then to be taken doune & Conveyed to the begining of the street entring the Towne to be strip^t & tjed to the Carts Tayle & be seuerely whip^t wth thirty stripes thro the streets to the Goale & be there left till yow discharge the charg of yo^r trjall prison & Court ffees. wch when donn to be releast from prison the like sentenc was passed & published in Court in all respects against & to Elisabeth Crocket wife to † Crocke^t partne^r wth him in their odious vile & lustfull carriages = past ER S =

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1683

Launcellot Smith Complayning to the Go^uno^r & magis^{ts} then mett against Nicholas Lynch as By attachment produced bearing date the of 1683 both partjes Ap-
**at one of y^e clock
present the Go^uno^r
dep^t Go^u
major Gookin
m^r stoughton
m^r Bulkeley
m^r Browne**
 peared plaintiff & defendant & desired their Cases might be heard by a Court of Assistants or Admiralty their occasons not permitting to stay till y^e County Court The Court ~~ordered the hearing of their Cases at~~

* The word "Ipswich" appears to be written here over the word "Salem."

† Left blank in the record.

¶ Appointed the twelfth Instant at one of y^e clock ¶
[at] the Court of Assistants to sitt in Boston 12
october 1683 ¶ at y^e time ¶ The Court mett at the
time 12th octobe^r 1683 y^e plaintiff Launcelot Smith Ap-
peared & presented his libell y^e deffendant Nicholas
Lynch Appeared ¶ & put in his Ans^r ¶ and after their * ¶
libell & Ans^r wth y^e ¶ Euidences produced & pleas made by both partjes
The Court on a full hearing of the partjes declared they found for the
plaintiffe eighty pounds mony of this Country & Costs of Courts two
pounds sixteene shillings —

m^r Nowell
m^r Russell
m^r Tilton
m^r Apleton
m^r Gldney
m^r Pyke
— — — —

Nicholas Steeresman also then Appeared as Smith aboue in all
respects had the like libe^{ty} wth like Consent of s^d [Li]nch

The Court ordered the hearing of this Case also on 12 octobe^r 1683

The Court mett at the time the plaintiff & deffendant Appeared the
defendant † then put In his libell And after the libell Ans^r therevnto
euidences in the Case produced & pleas made by both partjes The Cour^t
on a full hearing of the partjes declar^d they found for the deffendant
eighty pounds this Country mony damage & Costs of Court [fue †]
pounds seventeen shillings —

[Blank]

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Boston 1683

[The remainder of the page is blank.]

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Boston 1683

At A Court of Assistants Called by order of
y^e Go^ono^r e^r and satt in Boston 12 novembe^r
1683 =

W^m Johnson being presented by the Grand
Jury was brought to the barr holding vp his
hand at the barr was Indicted by the name of
willjam Johnston for that he no^t hauing the feare
of God before his eyes but Instigated by the diuill
Confoederating himselfe wth one John Graham &
other Sea Roue's his Accomplices did together

	present	
Symon Bradstreet	Esq ^r	Gov ^r
Tho. Danforth	Esq ^r	
	dep ^t Go ^o	
Daniel Gookin	}	Esq ^r
w ^m Stoughton		
Joseph dudley		
Peter Bulkley		
Natha Saltonstall		
Humphry Davy		
John Richards		
Sam Nowell		
James Russell		
Barthol : Gldney		
Robert Pike		
Jn ^o woodbridge		
— — — —		

* Written over "the."

† So in the original.

‡ "Fue" written over "two."

person^s Returnd to
serve on y^e Grand
Jury & Sworn were

— — — —
Cap^t Jⁿ Capen
Jonathan Bridgham
Theod^r Atkinson
Joseph Homes
Jⁿ Coney
W^m Gary
Tho Cheny
Rich^d Hall
Rich^d Robbins
Jⁿathan Rimington
John Stone
Jⁿ strettens
Randall Nicholls
S[am:] Heman

persons Returnd to
serve on y^e Jury of
tryalls sworn

— — — —
m^r Joseph Townsend
ffrancis ffoxcraft
Edw^d Broomfeld
Jⁿ Endecott
Benja walker
Giles Dyer
Tim^o ffoster
sam Gookin
Abraham Holman
Henry Spring
Joseph Child Jun^r
stephen waters

with them sometimes in the month of June in this present yeare 1683 on the high sea & neere the Coast of [Can]ady wth force of Armes pirattically assault, seize & take seuerall vessels & the Companyes belonging to them i e a certeine Catch belonging to the Port of Salem John Lambe^t master and one other barcq, belonging to the Port of Boston James Taylor master & another barcq Called the James & Hannah John Earthy master all three belonging to his Majtjes subjects of this Colony of the Massachusetts And also one barcq Called the S^t Charles, Arsneaw master belonging to the Subjects of the ffrench king now in Amity wth his Majty making the men belonging to the sajd vessells prisone^rs plundering & sharing among themselues the Goods in the sajd vessells found to the value of seuerall hundred pounds sterling Contrary to the peace of ou^r soueraigne Lord the king his Crowne & dignity & the lawes of this Jurisdiction to wch Indictment the prisone^r at y^e barr pleaded no^t Guilty & put himself on tryall on God & y^e Country After the evidences produced ag^t him were read Comitted to the Jury the Jury brought in their virdict they found the prisone^r w^m Johnson at the barr not guilty according to Indictment — The Court ordered y^t he be released from his Imprisonment he putting in security of fwe hundred pounds to Ans^r any further Complaint of this nature to be made ag^t him wthin sixe month^s by the ffrench or othe^rs & ordered y^t he discharg Constable Jⁿ Lambe^ts Charge^s wch was 35^s for himself wittness: *es* — he was after his Conti[nu]ing in prison till * || 5th || January || 83 || nothing Appearing ag^t him more & not able to finde any s[e]curity was † by orde^r of the Go^un^r & magist^r releast his Imprisonmt 5 January 1683 — /

Leonard Pomery being presented by y^e Grand Jury & left to tryall was Indicted by the name of Leonard Pomery for that he not hauing the feare of God before his eyes but Instigated by the diuill on the foweth day of Septembe^r last in the house of Ruth Harding did maliciously wickedly & ffelloniously quarrelling so with Thomas

* The Secretary apparently began to write " Wednesday " here, but cancelled it.

† " Was " repeated in the record.

Pinnock murther him by throwing him downe on the floore from a chajre where he satt giving him a cruell blow on the vpper part of his breast neere his throate & kicking him with his ffoote of which wound & blow he presently sickned vojded much blood in clodds & so continued till he djed of sajd blowes as by seuerall evidences may & will appeare Contrary to the peace of ou^r soueraigne Lord the king his Crowne & dignity [^] the lawes of this

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1683

Jurisdiction to wch Indictment the prisone^r at the barr pleaded not guilty and put himself on trjall on God & the Country After the evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found the Prisone^r at the Barr Guilty of man Slaughter the Prisone^r was againe brought to the barr and had this sentenc i e: to be burnt in the hand & forfeit his Good^s & chattels none to be found y^e executioner executed the sentenc in y^e face of the Court =

20 Novemb^r 1683

It was ordered that Edward Crocket be henceforth the executioner and that he haue the salle^y that Joseph Gridley had =

Att A Court of Assistants held at Boston 4th march 1683 —

John Hawkes *es* plaintiff Cont^a Samuel Apleton sen^d esq^r & samuel Apleton Jun^d defendant in an Action of Attaint on Apeale from the virdict & Judgm^t of y^e Jury *es* the last Court of Assistants After the Attachment Courts Judgm^t Reasons for Attaint *es* were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found for the plaintiff Reuersion of the forme^r Judgment & costs of Courts nine pounds

m^r Hezekiah vs^{er} plaint Cont^a Peter Bulkley Esq^r defend^t in an action of Attaint on Appeale After the attachment Courts Judgment Reasons of Attaint *es* were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their

present
Symon Bradstreet
Esq^r Go^d
Tho Danforth Esq^r
dep^t Go^d

Daniel Gookin
w^m stoughton
Joseph dudley
Pet[er] Bulkley
Nathaniel Saltonstall
Humphry davy
John Richards
Samuell Nowell
James Russell
Bartholmew Gidney
Samuel Apleton
Robert Pyke

persons Returnd to
serve on y^e Grand
Jury & Sworne

Cap^t Tho Jenner
Richd way
Tho Bligh
Theod^r Atkinson
Jn^s Harrison

moses Payne
 Giles Pason
 Robert willjams
 Sam: Williams
 Enock wiswall
 w^m Trescott
 Jacob Huings
 Rich Lowden
 Laurenc Douse
 Jame[s] Trow-
 bridge
 Tho olliver
 francis moor
 [Tho ffleg or]
 John Whitney

virdict they found for the deffend^t Confirmation of the former Judgment & costs of Courts

Joseph Webb plaintiff Con^a w^m manly deffendant
 In An action of Attaynt on Appeale from the Judgment of the last Court of Assistants After the || [Attachmt] || Courts Judgment Reasons of Attaint e^r were read Comitted to the Jury & are on file wth the Reccords of this Cour^t the Jury brought in their virdict they found for the plaintiff^r reuersion of the forme^r Judgment & Costs of Courts

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person^s Returnd to
 serve on y^e Jury of
 Attaints & sworne

— — — —
 m^r Jonathan Rilm-
 ington
 Jⁿ white
 w^m Downes
 w^m Griggs
 Isayah Toy
 Tho walker
 Isaack Goose
 Sam: Peirse
 Rouland story
 Benjamin Gamblin
 Samuel Lyon
 Benja. Tucker
 Samuel Perry
 Samuel Paul
 Ebenezar Billing
 John Breck
 w^m Ryall
 w^m Clutterbuck
 Nathaniel Nicholls
 Tho white
 Peter Towne
 Andrew Boardman
 Jⁿ Bright
 Nath Basham

— — — —
 m^r Downes in m^r
 Apletons Case stood
 by
 y^e Case referd to 23
 — — — —
 persons Returnd to
 serve on y^e Jury
 for tryalls of Ap-
 peales e^r sworne

Joseph webb plt Contra w^m Manly deffend^t in an Action of Attaint on Appeale from the Judgment & virdict of the Jury at the Court || of || Assis^t* in sept^r † last after the Attachment Courts Judgm^t and reasons of Attaint being Read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff^r Reuersion of the forme^r Judgment & Costs of Courts three pounds thirteen shillings & two pence

Joseph Homes pl^t Con^a Anthony cheeckley Attorney to stephen sweathy deffend^t in an Action of Attaint on Appeale from the Judgment & virdict of the Jury in september last. After the Attachment Courts Judgment Reasons of Attaint were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff^r reue^rsion of the forme^r Judgment & Costs of Courts fowe^r pounds fowe^r- || teene || shillings & sixe pence

Edmond Perkins plt Cont[r]a Abraham Merrill dfendant in aⁿ accon of Appeale from the Comission's Court in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in

*First written "County Court."

† First written "october."

their virdict they found for the plaintiff reue'sion of the former Judgt & three * pounds money damage & Costs of Courts wch they Agred amongst themselues =

w^m Rauson pl^t Con^a w^m Gilbert deffend^t in an action of Appeale from the Judgment of the County Court in Boston [^] octobe^r last After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case pduced were read Comitted to y^e Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the forme^r Judgment & Costs of Courts twenty shilling & sixe pence || y^e plaintiff Attainted y^e Jury & himself in 10^{li} & Jn^o woodmansy & m^r Harrison his suertjes in 5^{li} apece Gaue [bond gaue] bond to prosecute e^r ||

W^m Harrison pl^t Con^a Thomas Platts defend^t in an action of Appeale from the Judgm^t of the County Court in Boston in octobe^r last After the Attachment Courts Judgment Reasons of Appeale & evidences in y^e Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & costs of Courts || y^e plaintiff Attainted y^e Jury & himself in 14^{li} & Josep Home & Jos [Cowell] in 7^{li} e^r gaue bond to prosecute ||

w^m Harrison pl^t con^a Thomas Platts defend^t in an action of Appeale from the Judgment of the County Court in Boston in January last After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the defend^t Confirmation of the form^r Judgment & costs of Courts = || y^e pl^t Attainted y^e Jury & himself in 10^{li} & his sue^tjes in 5^{li} gaue security to psecut y^e Attaint to effect = ||

m^r Jonathan Rimington
Nath^l: Basham
Isayah Toy
Isack Goose
Rouland story
Benj. Tucker
w^m Clutterbuck
Samuel Paul
Peter Towne
Tho white
Ebenezar Billing
Sam Peirse
— — —
person Returnd &
sworne for y^e 2^d
Jury of Appeales
— — —
m^r Jn^o Brecke
w^m Dounes
Jn^o white
w^m Griggs
Tho walker
Andrew Boardman
Benja Gambllin
w^m Ryall
Nathan^l Nicholls
Sam: Lyon
Sam: [Perry]
[†]

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W^m Cond^y Admnstrato^r to John wilky^s estate pl^t Contra John clarke marriner defend^t in an Action of Appeale from the Judgment of the County Court in Boston in
Cond^y con^a clarke

* Written over "costs."

† One name worn off (Jn^o Bright?).

January last after the Attachment Courts Judgment
 exec Reasons of Appeale and evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Courts nineteen shillings & eight pence

Thomas Moore plaintiff Con^{ta} Abell porter Juⁿ defend^t in an action of Appeale from the Judgment of the County Court
 Moore Cont^a Porter After the Attachment Courts Judgment reasons of
 exe: Appeale and evidences in the Case produced were read Comitted to the Jury and are wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff reuertion of the former Judgment wth fower pounds nine shillings & two pence damage in money & Costs of Courts three pounds nine shilling & 8^d.

Moses Peirse plaint Cont^a Benjamin mumford
 Peirse Cont^a mumford deffend^t in an Accon of Appeale from the Judgment of the County Court in Boston || octobe^r last || After the Attachment Courts Judgment Reasons of Appeale & evidences in the case produced were read Comitted to the Jury & are on file wth the reccords || of || this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the former Judgment & Costs of courts thirty eight shillings & eight pence

Josiah Torrey plaintiff Con^{ta} Thomas Gretian
 Torrey Cont^a Gretian deffend^t in an Action of Appeale from the Judgment of the County Court In Boston After the Attachment Courts Judgment Reasons of Appeale And evidences in the Case produced were read Comitted to the Jury and are on file wth the Records of this Court the Jury brought in their virdict they found for the plaintiff reue'sion of the former Judgment & Costs of Courts three pounds sixteen shilling and six pence

Thomas welch pl^t con^{ta}: Richard stowe's defend^t in
 Welsh Cont^a stowers An Accon of Appeale from the Judgment of the County Court at charlsTowne After the Attachment Courts Judgment Reasons of Appeale and evidences in the
 exe Case produced were read Comitted to the Jury and are on file wth the

reccords of this Court the Jury brought in their virdict they found for the plaintiff Reuersion of the former Judgment & Costs [wth the two] acres of land in Controṽsy & Costs of Courts

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Ezekiel needham plaintiff Contra Benjamin ffarr deffend^t in an Action of Appeale from the Judgment of the County Court last at Ipswich After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Records of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the forme^r Judgment & Costs of Courts fiuety nine shillings & eight pence

needham Con^{ra} farr
exec.

John Arnold plaintiff Con^{ra} Zackery Thayer defend^t in an action of Appeale from the Judgment of the County Court in Boston in octobe^r last After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffend^t Confirmation of the forme^r Judgment & Costs of Courts sixe pounds one shilling and fowe^r pence mony damage & y^e costs forty eight shillings & eleven pence

Arnold Con^{ra}
Thay^{re}

Samuel Legg Plaintiff Con^{ra} Samuel lilly deffend^t in an Action of Appeale from the Judgment of the last County Court in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts thirty fowe^r shillings & two pence.

Legg Con^{ra} Lilly
exec.

John Gifford plaintiff Con^{ra} Thomas walter deffend^t in an action of Appeale from the Judgment of the County Court in Boston in october last After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Record^s of this Court the Jury finds for the deffend^t Confirmation of the former Judgment & Costs of Courts [Ren^d 13. 6]

Gifford Con^{ra} walter

Samuel Bishop plaintiff in ^{an} action of Appeale
 as to a non Suite Cont^a Robe^t Lord In an Action of Appeale from
 Bishop Cont^a Lord the Judgment of Ipswich || Salem || Court Cont^a
 Robe^t Lord || marshall || defendan^t e^r The Court doe Judge for the
 plaintiff that he haue the Costs of this Court || 32: || & doe orde^r the
 plaintiff^s liberty to proceed on the Attachment at the nex^t County Court
 of that County on his former entry mony =

Samuel Bishop plaintiff Cont^a John Andrews &
 2 Jury Daniel Hovey Admst^r to the estate of the late m^r
 Bishop Cont^a An- Thomas Andrews defend^t After the Courts Judgm^t
 drews & Hovey. — Reasons of Appeale & evidences were read Comitted
 to the Jury & are on file The Jury brought in their
 virdict i e they found that m^r Thomas Andrews died in the house of
 Samuel Bishop and also that the keys of the said Andrews were at
 that time in possession of said Bishop = m^r Bishop not appearing when
 Called for to be examined his Costs not Allowed p^r Curiā 11 m^ch 83

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Edward Thwing & samuel Phillip plt Cont^a Elizur
 Thwing Cont^a Holliock defend^t in an Acon of Appeale from the
 Holliock Judgment of the County Court in Boston ^{an}y^e entry of
 y^e action the plaintiff^s were Called but no^t Appearing the Action fell

Robe^t Bromsdon Attorney to John Baker plt Cont^a m^r Richard
 wharton deffend^t e^r In An action of Appeale from
 Brinsdon Cont^a the Judgment of the County Court in octobe^r || Jan-
 wharton uary || last After the Attachment Courts Judgment
 Reasons of Appeale & evidences in the Case produced were read
 Comitted to the Jury and are on file wth the Reccords of this Court the
 Jury brought in their virdict they found for the plaintiffe Reuersion * of
 the former Judgment & Costs of Courts || 3^{li} 6^d || the deffend^t † said
 he Attainted the Jury || for errors & mistakes || and
 the said Richard wharton principall in tenn pounds
 and m^r Hez. vsher and w^m Rawson his suertjes in fieve
 pounds apeece acknowledged themselues bound to the
 Treasure[r] of the Country & partje Concerned that the said m^r wharton

* Written over "deffendant Confirmation."

† Written over "plaintiff."

‡ Written over "m^r Remington."

should prosecute his Attaint at the nex^t Cour^t of Assistants to effect —
E R S

Richard Wharton in behalf of himself & Company plant Con^{ta}
John John * Baker marriner deffend^t in an action of
Appeale from the Judgment of the last County Court M^r Wharton Con^{ta}
John Baker
in October † || last || After the Attachment Courts
Judgment Reasons of Appeale & evidences in the Case produced were
read Comitted to the Jury & are on file wth the Records of this Court
the Jury brought in their virdict they found for the ~~plaintiff~~
|| deffend^t || confirmation ‡ of the forme^r Judgment & costs of Courts
three pounds — 6^d

Thomas Saffin Con^{ta}: County Courts Judgment or sentence — After
the Courts Judgment Reasons of Appeale and
evidences in the Case produced were Read Comitted to Tho Saffyn^e sent.
the Jury & are on file wth the Reccords of this Court
the Jury brought in their virdict they found Confirmation of the County
Courts Judgment wch was i e that he should pay vnto Hannah Hounsell
two shillings and sixe pence p^p weeke in mony towards the main-
tenance of the child from the time of its birth till the Cour^t take
further order as in s^d Judgment may Appeare & Costs of Courts & sd
Tho Saffyn on 1st Aprill 84 Gaue bond in 40^{li} & his sue^tj^s Isack
walker & § Elliston his sue^tj^s in 20^{li} apeece to pforme y^r
County Courts Judgm^t relating to Hannah Hounsell.

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John wisewall Ju^d plant. cont^a m^r Nicolas ¶ &
m^rs Anna Paige deffend^ts in an Action of Appeale from wisewall Con^{ta}
Paige
the Judgment of the last County Court in Boston
After the Attachment Courts Judgment Reasons of Appeale & evidences
in the Case produced were read Comitted to the Jury and are on file
with the Records of this Court the Jury brought in their virdict they
ffound for the plaintiff reuersion of the former Judgment & Costs of
Courts i. e. seven pounds sixteen shilling & ~~three pence~~

The defend^t in open Court sajd he Attainted the Jury || for error ||
and the sajd Nicolas Paige Acknowledged himselfe bound In 20^{li} sterling

* "John" repeated in the record.

† Written over "reuersion."

¶ Nicholas Paige?

‡ Written over "January."

§ Left blank in the record.

Attaint of y^e Jury
m^r Rimington for-
man

to effect =

to the Treasure^r of the Country & party Concerned his
heires execcuto's $\mathcal{C}$ on this Condition that he will
prosecute this Attaint at the nex^t Court of Assistants

monks Cont^a Courts
Judgm^t

George moncke plaint Contra y^e Comissn's Courts
Judgment After the Courts Judgment & evidences in
the Case produced were Read Comitted to the Jury &
are on file wth the Records of this Court the Jury brought in their
virdict ~~Reversion~~ they doe not find by any evidenc or Acknowl-
edgment of sajd monks vpon Record that he hath broken that law
title Inkeepe's —

Parris Cont^a Harris

Samuel Parris plt Contra Richard Harris deffend^t:
the plt wth drew his Action. —

man Cont^a Bratle

Jn^o man plaint Cont^a Thomas Bratle deffend^t $\mathcal{C}$
the plaintiff wth drew his Accon. —

Robe^t Earl presenting his bill or Account relating to James
morrison & Thomas Turrill 2 privatees * y^e one djed in Prison the other
brak prison amounting to fifty one shilling one penny wch y^e Court
ordered the Tresure^r to pay him in mony 7 ffibr 83 E R S

It is ordered that the refference from Salem Court referring to the
late m^r Wades estate be heard & considered of on 7 Inst at y^e chambe^r
after dinner all the brother^s clayming at y^e time Appeared & produced
seuerall writtings = [y^e 1†] 5th march it was declard in Court y^t y^e secre-
tary might Giue Coppie of any of m^r wades papers in his hand &
Accordingly gaue Cap^t wade Coppy of the hoⁿ Go^d oath & on other and
now It was ordered y^e secretary giue to each their pape's wch he did
11th march 1683 E R S

^ Hezekiah king of weymouth doe hereby bind myself in five
pounds mony to the Tresurer of the Country to sattisfy & pay him or
his successo's what shall be allowed to the wittnesses & charges of
Court in the Case of samuel Bayly as wittnes my hand 4th m^{ch}. 83.
Hezekiah: King
wch was twenty three shillings = E R S

* Privateers ?

† This rendering is very doubtful. The writing looks also as if it might be shorthand. If so,
the rendering should be "but on the," which would make the date 5th instead of 15th, agreeing better
with the rest of the record.

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1683

Samuel Bayley of weymouth being brought vp & Comitted to prison in orde^r to his trjall being Accused of Buggery wth a mare was brought to the Barr & being presented by y^e Grand Jury & left to triall was Indicted by the name of John Bayly for that he not having the feare of God before his eyes being instigated by the divill did on the 21th of Novembe^r in the woods malitiously wickedly & feloniously Comitt that abominable sinn of Buggery wth a mare as by y^e seuerall evidences may Appeare Contrary to the peace of ou^r Sovereign Lord the king his crowne and dignity the lawes of God & of this Jurisdiction = After the Indictment & evidences produced against the prisone^r at the barr the || Grand || Jury brought in their virdict they || did not || find * the ~~prisoner~~ || bill || =

Constable Torrey presenting a bill of charges of shipping Edward Goue The Court ordered the Tresure^r of the Country to pay him twenty shillings in full of the s^d bill

Att a speciall Court of Assistants Called by y^e Go^uno^r dep^t Go^u & magists & held at Boston 22 July 1684

Vines Ellacot being vnder bonds wth sue^tyes for his Appearance on y^e Grand Jury^s pervsall of the evidences in his case presented him & Indicted him & left him to further Tryall was Called & Appeared & brought to the barr & holding vp his hand there was Indicted by the name of vines Ellacot of Barbadoes now Resident in Boston in New England merchant for that he not having the feare of God before his eyes & being Instigated by the divill on the 10th of June last Riding violently on a horse did wickedly maliciously & feloniously murther Henry Pease by throwing him downe wth s^d horse so as he received his mortall wound in his head whereof he djed Contrary to the peace of ou^r Soueraigne Lord the king his crowne & dignity the law of God & of

present
Symon Bradstreet
Esq^r Go^u
The Danforth Esq^r
dep^t Go^u

Daniel Gookin
Humphry Davy
John Richards
Samuel Nowell
James Russell
Elisha Cooke
W^m Johnson
Jⁿs Hawthorne } Esq^s

persons Returnd to
serve on the Grand
Jury & sworne
— — —
m^r Richard Collicot
Gamalljel Wayte
Henry Phillips
Arthur mason
Xtopher Clarke
Jⁿs Capin
Tmo Mather
Giles Pason
Randolph Nicholls

* First written "found."

Richard Austen
Henry Bright
Stephen [Cooke]
Samuel Andrews

this Jurisdiction to w^{ch} Indictment he pleaded not Guilty & put himself on tryall by God & y^e Country the Jury hauing all y^e euidences in the case brought in their virdict they found him not Guilty of the Indictment The Court Considering of this virdict *er* did Judge that m^r vines Ellacot dischargd y^e chardg of his tryall & that he pay vnto Gurtrude pease the widdow whose husband was sl[a]yne tenn pounds mony = wch was donn & so his

5 11

bonds dischargd

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persons Returnd to
serve on the Jury of
trjalls for life &
sworne were

— — — — —
m^r sampson sheaffe
Georg Pordidge
James meeres
Thomas Smith
James Blake
Tobjas Dauls
John knight
John Jackson
Zeck Hicks
willm Barret
W^m Bond J^r
willm shaddock
— — — — —

Phillip Darland of Beverly in the County of Essex miller being presented by the Grand Jury for Ou^r Soueraigne Lord the king & left to further Tryall was brought to the barr where holding vp his hand was Indicted by the name of Phillip Darland of Be^wly aforesajd for that he not hauing the feare of God before his eyes being Instigated by the Divill did on the 16th day of this Instant July in the orchard of Dauid Perkins of saj^d Beuerly Comitt Adultery with mary knights the wife of John knights of Jeoffery^s Creeke as by both euidences & Coniession of saj^d mary will Appaere Contrary to the peace of our Soueraigne Lord the king his Crowne & dignity the lawes of God

& of this Jurisdiction to wch Indictment he pleaded not Guilty & put himself for tryall on God & the Country after the euidences in y^e Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found the Prisone^r at the barr not guilty according to Indictment but found him Guilty of vile filthy and abominably libidinous Actions wth mary knights wife of John knights of Jeffery Creeke = The Court Considering his offence sentenct him to be returned to prison & from thenc on y^e morrow p^sently after the lecture to be taken thence by the marshall General wth a Guard & Conveyed to y^e place of execution & ther caused to stand on howe^r wth a Rope about his neck Cast ouer the Gallowes & thenc to be taken downe & fastned to the Carts tayle & whipt seuerely on his naked ba[c]ke to the prison againe not exceeding forty stripes & there left till the chardge of his Tryall & wittnesses wth fees of Court be dischargd.

mary knights wife to John knights of Jeoffery^s Creeke in the County off Essex for the same offence being alike presented was brought

to the barr & alike holding vp hir hand was Indicted by the name of mary knights the wife of s^d John knights as aboue s^d for that she not hauing the feare of God before hir eyes & being Instigated by the diuill did on the 16th of y^s Instant July in the orchard of Dauid Perkins Comitt Adultery wth Phillip Darland of Beuerly in the sajd County miller Contrary to the peace of our Soueraigne Lord the king his Crowne & dignity the law^s of God & of y^s Jurisdiction to which Indictment she pleaded not Guilty & alike put himself on tryall as aboue After the euedences in the Case produced were Read Comitted to the Jury & are on file the Jury brought in their virdict as aboue in all Respects adding the word whorish to y^e Actions The Court sentenc^t hir in all respect as they had Phillip Darland as aboue & [^]

wch sentenc was executed & they Returnd to Prison

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1684

seuerall of the magis^{ts} being not well in the County of Essex and so not likely [^] at that County Courts Adjourn^t on wednesday next the Council Judged it meet to desire & Appoint Thomas Danforth Esq^r dep^t Go^u & James Russell Esq^r to goe & keepe the sajd County Court on adjournmt wth y^e magis^{ts} of y^t County =
ER.S.

Boston
24 July 1684

Joseph Gatchell being presented & Indicted by the Grand Jury for our Lord the king for blaspemy [^] and by them put on Tryall, the sajd Joseph Gatchell was sent for out of Prison & being at the barr at the last after many Refusalls to hold vp his hand at the barr or to plead to his Indictment did hold vp his hand & pleaded not Guilty to the Indictment which was Read & was that he y^e sajd Joseph Gatchell being so presented was Indicted by the name of Joseph Gatchell of Marblehead for that he not hauing the feare of God before his eyes being Instigated by the diuill at the house of Jerremiah Gatchell in discourse about Gennerall Salvation, (wch he sajd was his beleife) and that all men should be sauēd, being Answered that ou^r Saviou^r christ sent forth his disciples & Gaue them Comission to preach the Gospell [i.e] that whosoēuer Repents & beleives shall be sauēd; to which Joseph Gatchell Answered if it be so, he was an Imperfect Saviou^r & a foole, And this was a yeare agoe & somewhat more, as ^p the euidences of Elisabeth Gatchell and since in the moneth of march last past & at other times & places hath vttered seuerall hor-

22 July 84

rid blasphemous speeches saying ther was no God, divill or hell, as in and by their evidences may Appeare Contrary to the peace of our Soueraigne Lord the king his Croune & dignity the law of God & of this Jurisdiction to wch as before he pleaded not Guilty & put himself on his tryall by God & the Country = After the Indictmt and evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict: wee find the prisoner at the Barr Joseph Gatchell Guilty as followeth that being aboue a yeare Agoe & somewhat more at the house of Jerremiah Gatchell in discourse about Gennerrall Salvation which he saj^d was his beleife & that all men should be sau'd being answered that our Sauour christ did send forth his disciples & Gaue them Comission to preach the Gospell that whosoever repents & beleives the Gospell shall be sau'd that ~~then~~ he did then & there vtter these words that if it were so he was an Impe'fect Sauour & a foole =

The Court Adjourn'd to y^e 7th August at 2 of y^e clock & then mett And in Ans^r to the petition of mary knights prisoner It is ordered that the keeper discharge hir the prison at present ~~taking~~ on condicon that shee pay forty shillings mony to the Treasurer of y^e Country towrds the charge of hir trjall [once] wthin three months or else y^t she be sent for & comitted to prison till y^e mony be pajd.

This Court Adjourn'd itself to y^e 14 August at 2 of y^e clock & mett & Adjourn'd to the 21 of same at 2 of y^e clocke & then mett
& proceeded

The Court sent for y^e prisoner Joseph Gatchell & on Consideration of the Crime whereof he stands Convicted by the Jury did sentenc him y^e s^d Gatchel to be return'd from this place to the pillory to haue his head & hand put in & haue his tounge drawne forth out of his mouth & peirct through wth a hott Iron & then to be return'd to the prison there to Remajne vntill he sattisfy & pay all y^e charges of his tryall & ffees of Court wch Came [^] seu'en pounds shillings The marshall Genrll taking necessary help wth him is to see y^e execution of y^s sentenc pformed

2[8] Aug 1684

y^s Court was dissolved

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present
Symon Bradstreet
Esqr Go^u
Tho Danforth Esqr
dep^t Go^u

Att a Court of Assistants held at Boston 2^d Sep-tembe^r 1684

Willjam Harrison plaintiff Conta Thomas Platts

defend^t in an action of Appeale on Attaint After the Attachment Courts Judgment Reasons for Attaint & other evidences in the Case produced were Read Comitted to the Jury and are on file wth the Records of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts [two] pounds sixe shillings = exec Issued out

Willjam Harrison plaintiff Contra Thomas Platts defend^t in an Action of Appeale on Attaint after the Attachment Courts Judgment Reasons for Attaint & other evidences in the Case produced were read Comitted to the Jury & are on file with y^e Reccords of this Cour^t the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judgment & Costs of Courts two pounds ten shillings & fowe^r pence Execu^t Issued out for 4th c^r

Cap^t Nicholas Paige & Ann his wife plain^t Contr^a John Wisewall Jun^d defend^t in an Action of Appeale on Attaint After the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to y^e Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme^r Judg^t & Costs of Courts.

Willjam Rauson plain^t Cont^r W^m Gilbert defend^t in an action of Appeale on Attaint After the Attachment Courts Judgment reason^s of Attaint and evidences in the case produced were read Comitted to the Jury and are on file wth the Reccords of this Cour^t the Jury brough^t in their virdict they found for the defendant Confirmation of the forme^r Judgment & Costs of Courts —.

Henry Tyte plain^t Con^a Arthur mason defend^t in an Action of Appeale from the Judgmen^t of the

Daniel Gookin
Nath Saltonstall
Humphry dauy
Jn^e Richards
Robert Pyke Esq^r
Jn^e Woodbridge
Elisha Cooke
W^m Johnson
Jn^e Hathorne
Elisha Hutchinson
Samuel Seawall

— — — —
persons Returnd to
serve on y^e Grand
Jury

— — — —
m^r Symon Lynde
Eljakim Hutchinson
Jarvis Ballard
Richard wharton
Samuel Shrimpton
John Pynchon
Lawrenc Douse
Samuel Kettle
Robert willjams
Samuel willjams
Henry Leadbetter
Thomas Tyleston
Tho ffox
Richard Settle
Jn^e stedman
W^m maning

— — — —
persons Returnd to
serve on y^e Jury of
Attaints & Appeales
c^r for Attaints &
sworne

— — — —
m^r Sam Parris
Jn^e marrion
Joseph Parsons
Richard Crispe
Bozoone Allen
Sam Phipps
Peter ffole
Dani: Smith
Zecharyah Long
James Louden
James mellowes
Tho cheney [señ]
stephen willjams
Samuel Pason
Richard Hall
Increase Sumer *
Charles Davenport
Jn^e minot
Samuel Hix

* Sumner?

Jn^o mosse
Jn^o Coolidge
Isa Ryall
Jn^o Hamond
Jn^o spring
— — — —

County Court in April last in Boston After the Attachment Courts Judgment^t reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury and are on file wth the Records of this Cour^t the Jury brought in their virdict they found for the deffend^t confirmation of the forme^r Judgment & Costs of Courts thirty nine shillings & six penc & 7^s da^m =

Jn^o Putnam plaint Con^{ta} Thomas Baker deffend^t in an acti[on] of Appeale ffrom the Judgment of the County Court at Ipswich: After the Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Records of this Cour^t the Jury brought in their virdict they found for the plaintiff reuersion of the former Judgt & Costs of Courts three pounds eleven shillings & sixepenc =

In the Case of Sarah Cooper || late || wife to Thomas Cooper The Court on pe^vsall of the evidences in the Case produced she suing for a divorce the Court grants hir Request =

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24 * Jury for Appeale
wer Returned &
sworne

m^r [Edward willy †]
Richard Crispe
Peter foule
James Louden
James mellowes
stephen willjams
Richard Hall
Charles Dauenport
Jn^o mosse
John Hamond
Jonathan Bridgam
John Scarlet in
behalf of Incr.
Su[mn]e^r went
sick hom :

— — — —
1st † Jur.
persons Returned
to serve on
Appeale & sworn
m^r Sam Parris
Joseph Parsons
Bozoone Allen
Dani. Smith

m^r Nicholas Paige & Ann^a his wife plaint Con^{ta} m^r John wisewall seⁿ & m^s Elisabeth || Cooke || Executrix to y^e late Left Richard Cooke defend^t in an Action of Appeale from the Judgment of the last County Court in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file with the Reccords of this Court the Jury brought in their virdict, they found for the deffend^{ts} Confirmation of the former virdict & Costs of Courts.

m Jn^o wisewall seⁿ & m^s Elisabeth Cooke executrix to y^e late Left Rich Cooke plaintiff^s Conta Cap^t Nicholas Paige e^r defend^t In An Action of Appeale from the Judgm^t of the last County Cour^t in Boston as to a non Suite = on a full hearing of both plaintiff^s & deffend^t The Bench doe Give Judgment^t for the plantiffs and doe declare that the pape's in ques-

* Written over "1st."

† Or Willis.

‡ Written over "2d."

tion ought to have been deliuered to the former Jury :
& Grants y^e plaintiffs Costs of Courts

Zeckaryah Long
Thomas Cheny
Samuel Pason
Isack Ryall
John Mynot
Samuel Hix
John Coolidge
John Spring
— — — —

Jeremiah Toy plaintiff Con^{ra} James Loyd defend^t
in an Action of Appeale from the last County Court in
Boston After the Attachment Courts Judgm^t Reasons
of Appeale & evidences in the Case produced were
read Comitted to the Jury and are on file wth the Reccords of this Court
the Jury brought in their virdict they found for the deffendant Con-
firmation of the forme^r Judgm^t & costs of Courts : two pounds fueteen^a
& fowe^r pence Exec. Issued out

Thomas Harwood plaint Con^{ra} Jerremiah Toy defend^t In an action
of Appeale from the Judgment of the last County Court in Boston
after the Attachmen^t Courts Judgmen^t Reasons of Appeale & evidences
in the Case produced were read Comitted to the Jury & are on file wth
the Reccords of this Court the Jury brought in their virdict they found
for the deffendant Confirmation of the forme^r Judgment & Costs of
Courts three pounds one shilling & sixe pence =

John Harwood || [señ] || plan^t Contr^a Stephen Bur- Harwood Con^{ra}
ton deffend^t in an Action of Appeal from the Judg- Burton
ment of the last County Court in Boston After y^e Attachment Courts
Judgmen^t Reasons of Appeale & evidences in the Case produced were
read Comitted to the Jury and are on file wth the Reccords of this
Court the Jury brought in their virdict they found for the deffendant^a
Costs of Courts.

Edmond Perkins plt Cont^a John ffenn^o defend^t in Perkins Con^{ra} ffenn^o
An Action of Appeale from the Judgment of the last
County Court in Boston after the Attachm^t Courts
Judgm^t Reasons of Appeale & evidences in the Case
produced were read Comitted to the Jury & are on file
wth the Records of this Cour^t the Jury brought in their virdict they
found for y^e deffend^t Confirmation of the former Judgm^t & Costs of
Courts three pounds eight shillings & six penc The plaintiff Attainted
the Jury for errors || & mistakes || and himselfe in twenty pounds &
willjam Payne & Joseph Homes sue^ttjes in tenn pounds Apeece
acknowledged theselues heirs c^r in sajd sumes respectively bound to

Attaint
m^r Tho Parris *
foreman

* Error of the Secretary for "Sam Parris" ? See the list of Jurymen.

the Treasurer of the Country & party Concerned that the sajd Edmond Perkins shall prosecute his Attaint ag^t the Jury at the nex^t Court of Assistants to effect

Sarah Cooper's
Ans^r

In the Case of Sarah Cooper late wife to Thomas Cooper The Court on pe^rvsall of y^e evidences in y^e Case produced she suing for a divorce y^e Court Grants hir Request *et**

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Jn^o mills plaintiff Conta John Johnson seⁿ deffend^t in an Acc^on of Appeale from the Judgment of the County Court
Jn^oson Cont^a mills † at Charles Toune After y^e Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for the defendant Confirmation of the forme^r Judgment damag nine pounds Costs of Courts thirty nine shillings & eight pence =

Samuel Basse plaint Cont^a Joseph Crosby defend^t
Basse Cont^a Crosby in an action of Appeale from the Judgment of the
Attaint County Court in Boston After y^e Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Recor^rds of this Cour^t the Jury brought in their virdict they found for y^e deffend^t Confirmation of the former Judgm^t & Costs of Courts.—
~~Joseph~~ † xtopher † Webb Attorney to s^d Basse *et* Attainted y^e Jury for error and himself as & on behalf of y^e p^rincipall in fiuteene pounds & Joseph webb his sue^rty in 15th acknowledged themselves respectively bound & their heires *et* in s^d somes to the Tresurer of the Country & party Concerned that sajd Webb shall p^rsecute his Attaint at y^e nex^t Court of Assis^ts to effect —

Richard Douning plaintiff ag^t Joseph Boober † &
Douning Cont^a Joane his wif † deffend^t In an Action of Appeale f^rom
Boober the Judgm^t of the County Court in Salem. After the Attachment Courts Judgm^t Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Records of this Cour^t the Jury brought in their virdict they found for the deffend^t Confirmation of the former Judgment & Costs of Courts = three pounds nineteen shilling^s & sixe pence

* This is a repetition of the record on the preceding page of the original.

† So in the original.

Tho: Bake^r plaint Con^{ta} James Pemberton defend^t
 in an action of Appeale from the Judgment of the
 County Court in Boston After the Attachment Courts
 Judgment Reasons of Appeale & evidences in the Case produced were
 read Comitted to the Jury & are on file wth the Reccords of this Court
 the Jury brought in their virdict they found for the deffend^t Confir-
 mation of the forme^r Judgm^t & Costs of Courts two pounds tenn shil-
 ling exec^a

Baker Con^{ta} Pem-
 berton

Symon Bradstreet Esq^r Go^u plt Con^{ta} Peter Coffyn
 deffend^t in an action of Appeale from the Judgment
 of the County Court In Boston the plaintiff wth drew^e
 his Action =

Go^u Bradstreet
 Con^{ta} Coffyn

Cap^t daniel Epps pl^t Conta m^r Henry Bennet
 deffend^t in An action of Appeale from the Judgment
 of the County Court at Salem. After y^e Attachmt Courts Judgment
 Reasons of Appeale & evidences in the Case produced were read
 Comitted to the Jury and are on file wth the Reccords of this Court the
 Jury brought in their virdict the Jury found for the Appellant Reuer-
 sion of the former Judgment & the Indian Boy in Controuersy to be
 deliuered the Appellant wth in tenn days time or twenty pounds money^a
 & Costs of Courts five pounds sixe shillings & three pence

Epps Con^{ta} Bennet

Samuell Bagly * plt Contra James webster deffend^t
 in an Action of Appeale from the Judgment of the
 County Court in Boston in Aprill last After the
 Attachment Courts Judgment Reasons of Appeale & evidences in
 the Case produced were Read Comitted to the Jury and are on file
 wth the Records of this Court the Jury brought in their virdict they
 found for the deffend^t Confirmation of the former Judgmen^t 7th mo
 damage & Costs of Courts forty shillings & 8^d

Bagly * Con^{ta} web-
 ster

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James Tounsensd pl^t Con^{ta} Tho Edwards defend^t In an action of
 Appeale from the Judgment of the County Court In Boston after the
 Attachment Courts Judgment Reasons of Appeale & evidences in
 the Case produced were read Comitted to y^e Jury & are on file wth

* Or Bayly.

the Records of this Court the Jury brought in their virdict they found for y^e plaintiff ~~confirmation~~ || Reuersion || of the former Judgment & that the defendant Give to the plaintiff a true & Just accomp^t of the par^t of the ship sued for & earnings wthin one years time or two hundred pounds money And the house & land Attached to Abide for security & Costs of Courts three pounds one shilling & fowe^r pence =

Townsend Conta
Tho Edwds —

Roge^r Adams plain^t Conta Jn^o Bake^r of Roxb[ury] deffend^t in an action of Appeale from the Judgm^t of the County Court held at Boston in Aprill last After the Attachmen^t Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file with the records of this Court the Jury brought in their virdict they found for y^e Appellant reuersion of the former virdict & that the deffendant deli^w in to the Appellant the estate sued for according to Inventory or forty two pounds seuen shillings & nine penc & Costs of Courts [42^s] & 10^d

Addams Conta
Baker [An A]ttant

Jn^o Bake^r Attainted the Jury for erro^r & himself principle in twenty pounds & Joseph Homes & Joseph Cowell sue^tjes in tenn pounds a peec acknowledgd themselves Respectively bound in s^d somes to the Treasure^r of the Country & party Concernd that sajd Bake^r shall psecut his Attaint to effect at y^e nex^t Court of Assistants

Nathaniel Heman Con^{ta} John Chapen deffend^t in an Action of Appeale from the Judgm^t of the Commis- sion's Court in Boston the plantiff wthdrw his Accōn

Heman Conta Chapen

Elizabeth wardell plt Conta Jn^o Pittam in an Action of Appeal from the Judgm^t of y^e Commision's Cour^t the plant wthdrw y^e Accōn:

wardell Con^{ta} Pittam

Edward Allen plan^t Con^{ta} Asaph Elljot defend^t in an Action of Appeale from the Judgm^t of the Comissione's Court held in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in y^e Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found a speciall virdict i e if the law be that the Appellants appearing & Joyning Issue as Adm[in]istrato^r to Abraham Spencer deceased & no other testimony to vs Appearing to proove him so be sufficient to make him liable to y^e former Judgment as Adm[in]istrator then wee find for

Allin Conta: Elliot

the deffend^t Confirmation of the form^r Judgment wth costs of Courts If the law be otherwise wee find for y^e Appellant Re^uding the former Judgm^t wth Costs of Courts = the Benc[h] finds for y^e defend^t Confirmation of the forme^r Judgmen^t wth Costs of Courts damage sixe pounds eighteen shillings & eight pence mony & Costs 29^s 10^d. =

Joseph Homes plan^t Conta Ann sheffield als Homes Cont^a Sheffield
 Perry defend^t in an Action of Appeale from the Judgmen^t of the County Court in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file || wth the Records of y^e Court || the Jury brought in their virdict 2^d Jur
 they found for the defendant Confirmation of the Edw. willy * forem^a
 form^r Judgm^t wth Costs of Courts y^e plaintiff Attainted the Jury for error

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and the sajd Joseph Homes principle [in] twenty pounds & Joseph Webb and John Bake^r in tenn pounds apeece acknowledged themselves respectively bound in those sums to the Treasurer of the Country & party Concerned that Joseph homes shall prosecute his Attaint to effect at the nex^t Court of Assistants to effect =

Samuel Apleton Juⁿ plan^t Con^a Thomas Marshall Apleton Con^a
Marshall
 defend^t in an action of Appeale from the Judgmen^t of the County Court at Salem: After the Attachmen^t Courts Judgmen^t Reasons of Appeale & evidences in the Case produced were read & Comitted to the Jury they brought in their virdict they found for the defend^t Confirmation of the forme^r Judgm^t & Costs of Court forty sixe shillings & two pence =

W^m Dyre Esq^r || pln^t || Con^a Elisha Hutchinson Esq^r deffend^t in an Action of Appeale from the Judgment of the County Court last in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case W^m Dyre Esq^r
Conta Elisha
Hutchinson Esq^r
 produced were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found for the defendant Confirmation of the forme^r Judgment & Costs of Courts the plaintiff desired his bond might be chancieried The Court hauing heard the plaintiff & defend^s pleas as to the Chancering of the

* Or WILLIS.

bond did chancery it to sixty-eight pounds five shilling^a & tenn pence mony & Costs of Courts two pounds sixteen shillings & sixe pence.

Samuel Ingolls plain^t Conta Thomas Bishop deffend^t in an action of Appeale || from the Judgment of the County Court at Salem || After the Attachment Courts Judgment Reasons of Appeale & evidences in the

Samuel I[n]golls
Conta Tho: Bishop

Case produced were Read Comitted to y^e Jury & are on file two of y^e Jury being Ill plaintiff & deffend^t Consented to stand to y^e tens Award y^e plaintiff provided it might be no prejudice to his Case as to after proceedings & so the Jury brought in their virdict i: e If the law be y^t the Affirmation of the ~~defendant~~ Appellant and the testimony of samuel Bishop to proove the payment of the Appellants rent for seven yeares payable to John Bishop and Thomas Bishop their heires and Assignes vnto them or either of them the sume of twenty one pounds tenn shilling for the first yeare and so Annually vnto the end of seven yeares payable at the house of Samuel Bishop and by the affirmation of Appellant and the testimony of the sajd Samuel Bishop wherein he saith that sixe pounds tenn shillings paid in mault which was the Remainder of Rent remayning of all the rents & payments that Concerned Samuell Ingolls lease which was Given him by John & Thomas Bishop for seue[n] years discharge the Appellant = or if the law be that the sajd Samuel Ingolls be l^jable to the Suite of Thomas Bishop for the sajd seven yeares Rent wthout John Bishops Joyning with him if not, wee finde for the Appellant Reu^sing the former Judgment wth Costs of Courts If the law be otherwise wee finde for the defend^t coufirmation of the former Judgment wth Costs of Courts * The magis^{ts} on pervsall of this virdict doe Judge & declare for the Appellant Reu^sion of the forme^r Judgment & Costs of Courts — After the Case was heard & Judgment declared on the

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the† behalfe of the Appellant Samuel Ingolls reuersing the forme^r Judgment & Granting Costs to s^d Ingolls, the sajd Ingolls & Thomas Bishop both in open Court to prevent execution Issuing out, and for prevention of future trouble in law did Agree as followeth: The sajd Ingolls for peace sake doth engage to beare his oune Charges which he

* The language of this verdict is not clear, but the record agrees with the original verdict on file. (See Court Files, Suffolk, No. 2243.)

† "the" repeated in the record.

is out in prosecution of the Case from the beginning the said Thomas Bishop is also to beare whatever Costs he hath binn at about said Case = further the said Ingolls is to giue || bill || to said Thomas Bishop of tenn pounds in Currant neat Catle Corne or porke to be deliuered at the house where said Bishop^s Brother djed jn Ipswich: vpon the giving of his bill the said Thomas Bishop doeth hereby give the said Ingolls a Receipt & full discharge of the whole seven yeares Rent sued for, acquitting not only from himself but from the successo^rs of his Brother John Bishop who is in the originall lease mentioned as one of the lesso^rs of the said farme which ljes in Ipswich And It is mutually Agreed that the bill of tenn pounds as aboue being given by Ingolls to Thomas Bishop then the said Ingalls may wth leaue of the County Court for Essex take vp the originall lease as is there lodged whereby a future tryall or trouble about y^e seven yeare^s Rent sued for may be prevented;

Ingolls & Bishop^s
Agreement =

Tho: Bishop
Samuel Ingolls

Boston 11 Sept 1684 This agreement was signed and the bill was ouned to be giuen accordingly in Court the day & yeare aboue said as Attests

Edward Rawson Secre^{ty}

Samuel Bishop plaintiff Contr^a. Josiah Clarke deffendant in an action of Appeale from the Judgment of the County Court at Salem After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were Read Comitted to the Jury and are on file wth the Records of this Court the Jury brought in their virdict they found for y^e deffendant Confirmation of the forme^r Judgment & Costs of Court

Bishop Contr^a Clarke

This Court was Adjourned to the tenth Instant at 8 of y^e clock & from thenc diem p djem till y^e 19th & then to the 20 & thenc to the 25th of Septembre 1684 =

W^m Dyre Esq^r exhibbited to the Honno^{ble} Go^uno^r A large libell or Articles on 4th Instant ag^t Cap^t michaell Andreason [Comma]nde^r of the ship Triumphe[z] & his Com[pan]y e^r wch the Gouverno^r Com[mun]licated After some Consideration to the magists & Court who Considering thereof as the Courts Occasions would pmit the Court being Adjourned from time to tjme as Aboue at y^e Adjourn^t on 19th Instant

Judged it meete to grant y^e Request of said Capt michael Andreson, orde^d y^e secretary to Grant him a Coppy of said large libell to give their Answe^r thereto in the morning at 8 or 9 of y^e clock to wch time the Court was Adjourned wch was don & 20 Instant said Michael Andreson Came & gaue In his Ans^r & se^ull depositions e^r

& on 25 Instant to
wch time y^e Court
was Adjourned
day by day
The examinations &
Courts observations
therevpon is on file =

The Cour^t hauing examined the spanish witnesses
who much Contradicting their oune oaths the Courts
Judgment was e^r

The Court hauing perused the
spanish evidences || e^r || finding the persons
thervnto Attesting to be [s]paniards now

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the enemys of the french king and his subjects & Captaine michael Andresons prisone's, and that what is contejned therein is almost in euery Artickle very false, as Appeares by Comparing this with what was taken from their oune mouths in their oune language in open Court by m^r John Champlyn & D^r Hughes their Interprete's no[w] on file doe Judge that either their former Interpreter (if they had any) was not ~~faith~~ || skill || full in their language or that the spanyards did sweare very falsly, and that therefore their oathes ought not to haue binn affixed to this paper nor any Credit to be given therevnto as such and doe further orde^r that this be endorsed vpon the originall taken by m^r faireweather — wch is donne = The Judgment of the Court Whereas W^m Dyre Esq^r presented to this Cour^t a large Accusation or lybell against Cap^t michael Andreson & Company who is now in this Port with his ship Called the Trampeuz being Admitted by this Gouvernmen^t to Come In heere to fitt his ship he declaring he was a man of warr in the french kings Service whom the said Dyre Accused of Pyracý and presented testimonjes now on File which this Court hath examined and Considered as also the Answe's testimony's and Co^mis- sion presented by said Andreson; And upon the whole the Court sees no ground to put said Andreson upon trjall for Piracy and doe Allow him libe^ty to proceed on his buisniess; requiring him with all Con- venient speed to depart out of this Port according to his Majesties Proclamation; And not to Carry with him any Amunition out of this Colony nor take on board more prouissions then shall be necessary for his transportation to his Commission port = past 25: 7: 84 p Curiã Edwd: Rawson secret

In Answer to a Complaint exhibited by Cap^t Jonathan wade to this Court wth Reference || y^e actings of y^e County Court of Essex in order || to the last will of his ffather m^r Jnⁿthan wade deceased & the settlement of his estate, It is ordered by this Court that s^d Cap^t wade || giving || vnder his hand in writing the prticulars wherein

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he Judges that the County Court of Essex hath donn him wrong his Appeale made to this Court shall be fully heard and Considered. By y^e Court Edw^d Rawson secret

In Answer to the petition of m^r Jonathan wade It is Ordered that the Secretary write to the clarke of Salem County Court forthwith to remitt and send to him all the originall petiçions orde's wills and othe^r pape's in his hands forme'ly deliuered into that Court from any of the sonns of the late m^r Jonathan wade of Ipswich. This Court hauing heereby ordered a hearing of the Case on Appeale At the Adjournmt of this Court to be held in Boston on the 17th day of octobe^r next at one of the clocke at wch time & place the Aboue sajd m^r Jonathan wade & his brethe'n are ordered to be sent vnto to be present & Attend their Concernes therein. =

past Edw. Rawson Secre^t

Cap^t Jonathan wade hauing at a former session of this Court p'sented his Complaint against the Acts of the Court of Essex relating to the estate of his father m^r Jonathan wade deceased and in that desired that an hearing might be allowed him in that matter at this Court the Court for that end was Adjourned to this day to heare him & ordered that the sajd Jonathan & his other Brothe's m^r Nathaniel & m^r Thomas wade^s appearance & the originall pape's || to be || remitted ~~hither and~~ to this Court || By the Clerks of the County courts of Essex w^{ch} wⁿ it was done and the papers remitted hither & * || Cap^t wade ordered to proceed ; He refused to make any plea and sajd he desired not an Appeale in the Case, But that the first will of his father (which was denied by the Court to be accepted as his fathe's will) might without any alteration be deliuered to him ; which this Court see^s no Cause to grant without an hearing, and therefore all partjes Concerned are dismissed,

At y^e Court by Ad-
journ^t 17 octobe^r
1684

* These twenty words, between the upright parallels, are in the margin of the record and in a different hand, apparently that of Isaac Addington, the successor of Secretary Rawson.

And the Secretary is hereby ordered to returne to the seuerall Clarkes of the County Courts of Essex all the Individuall orde's, pape's & originalls or Coppies that were by the said Clarkes transmitted to him

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present
Symon Bradstreet
Esqr Go
Tho Danforth Esqr
dep^t Go
Daniel Gookin
Humphry Davy
John Richards
Sam. Nowell
James Russell Esqrⁿ
sam Apleton
Robert Pike
Eliaha Cooke
W^m Johnson
Eliaha Hutchinson
samuel || Sewall ||

persons Returnd to
serve on y^e Grand
Jury & sworne
Left sam: Ruggles
Joseph How
Jn^e scarlet
James Hill
James Pecker
Richard Hall
Isack Jones
Timothy Steevens
Richard Loudon
Jn^e Call
david fl[s]ke
Robert Herrington
Tho fllegg —
— — —

person^s Returnd to
serve on the Jury for
Attaints & sworne
— — —

Cap^t Ephraim Sau-
age
Symon Daniel
Isack marrian
Josiah Torrey
Samuel Bignell
Samuel Greene
Sam^l symson
James ffoster
sam. Capen
Joseph Leeds
Robert Peirpoint

Att A Court of Assistan's held at Boston 3^d march
1684

Edmond Perkins plaintiff on Attaynt Con^a John
fflenno defendant in ^a Action of Appeale from the Judg-
ment of the last court of Assistants from the virdict
of the Jury whereof * was foreman After
the Courts Judgment Reasons for y^e Attaint & eu-
dences of the Case produced were Read Comitted to the
Jury and are on file wth the Reccords of this Court the
Jury brought in their virdict they found for y^e deffend-
ant Confirmation of the former Judgment & Costs of
Courts, 3, 13^s & Costs of Courts fowe^r pounds 3
shillings & sixepence † fil. p^d

Joseph Homes pttiff in an action of Attaint from
the virdict of the Jury whereof * was foreman
Con^a Ann Sheffeild alj^s: Perry de After the Courts
Judgmen^t Reasons for Attaint & other evidences in
the Case produced were read Comitted to the Jury &
are on file wth the Reccords of this Court the Jury
brought in their virdict they found for the deffendant
Confirmation of the forme^r Judgment & Costs of Courts

Jn^e Bake^r plaintiff in an Action of Attaint from
the virdict of the Jury whereof * was fore-
man || con^a Roger Addams deffend^t ||. After the
Courts Judgment Reason^s for Attaint & ~~other eu-~~
~~dences in the Case produced were read~~ the plaintiff was
3 times Called but not Appea[r]ing was non suited &
his bond declared to be forfeited =

Tho Baker plaintiff Conta W^m Condy defendant
in an action of Appeale from the Judgment of the

* Left blank in the record.

† So in the original.

County Court in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court y^e plaintiff wth drew his Action by his not Answering to his Call =

samuel Crafts
Benja Sabjn
Ralph Broadhurst
Jn^e Grauesner
Tho Jenner
Tho Lord
Sam Gookin
Ebenez^r wisewall
Nicholas Englesbe
Jn^e Parkhurst
Tho. wilson
John knight
samuel scarborough
— — —

John Griffyn plaintiff Con^a Joseph knight deffend^t in an action of Appeale from the Judgment of the County Court in Boston After the Attachmen^t Courts Judgment Reasons of Appeale & other evidences in the Case produced were read Comitted to the Jury and ar on file the Jury brought in their virdict they found for the plaintiff Reuersion of the former Judgment & Costs of of Court wch by Consent of Xtophe^r webb Attorney to s^d Griffyn was brought on chancery of y^e bond in all to six pounds & filing 2^s

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1684

Jn^e Norman plaint Cont^a Benja: Orne deffend^t in an action of Appeale from the Judgment of y^e County Court at Salem after the attachm^t Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant ~~reversion~~ || confirmation || of the former Judgment & Costs of Courts ~~three~~ || two || pounds nineteen shillings & 8^d

Norman Con^a Orne

ffrancis Wyman || plt || Conta Henry sumers deffend^t in an Action of Appeale from the Judgment of the County Court at Cambridg after the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the plaintiff Reuersion of the former Judgm^t & Costs of Courts e^r five pounds two shillings & ten pence

wyman Against
sumers

Thomas Baker plaint Conta Thomas & Joseph Pembe^rton deffend^s in an action of Appeale from the Judgment of the County Court in Boston After the Attachment Courts Judgment Reasons of Appeale & other evidences in the case produced were read comitted to the Jury &

Baker conta Tho &
Jose pamberton
executi: Issued
out

are on file wth the Reccords of this Court the Jury brought in their virdict they found for y^e plaintiff Confirmation of y^e former Judgment on shilling * Addition & costs of Courts; damage & costs in all eight pounds fowe^r shillings & Sixe pence

Samuel Jackljn plt Conta Thomas Pemberton
 Jackljn Conta
 Pemberton
 deffend^t in an Action of Appeale from the Judgm^t of
 the County Court in Boston After the Attachm^t Courts
 Judgment Reasons of Appeale & evidences in the Case produced were
 read Comitted to y^e Jury & are on file wth the Reccords of this Court
 the Jury brought in their virdict they found for the plaintiff Reuersion
 of the former Judgment || & || ten pounds fueteen shilling || mony || dam-
 age & costs of Courts fower pounds eighteen shilling^s & fowe^r penc †

Jnⁿthan dawes plt Con^{ta} Henry Petit deffend^t in
 Dawes ag^t Petit
 an action of Appeale from the Judgm^t of the Commis-
 sion's Court the plaintiff wthdrew his Accon

m^r Edward will[is] plt Conta Cap^t Ephraim Sauage deffend^t in an
 action of Appeale from the Judgment of the County
 m^r Edw^d will[is] †
 Con^t Cap^t Sauage. = Court in Boston after the Attachment Courts Judg-
 ment reasons of Appeale & evidences in the Case
 produced were read Comitted to the Jury & are on file the Jury
 brought in their virdict they found for the deffend^t Confirmation of
 the former judgment & costs of Courts thirty nine shilling^s & 4^d in all

Tymothy Brookes plt Conta Benjamin Muzzey
 Brookes Conta
 Muzzey-
 deffend^t in an action of Appeale from the Judgment
 of the County Court at Charlestown after the Attachm^t
 courts Judgm^t Reasons of Appeale & evidences in the Case produced
 were read Comitted to the Jury & are on file with the Reccords of this
 Court the Jury brought in their virdict they found for the defend^t
 Confirmation of the forme^r Judgm^t wth [tenn] pounds Abatement &
 Costs of Courts

* At the County Court the verdict was for Baker for 5£. Baker appealed from that verdict.

† At the County Court the verdict was for the defendant, Pemberton, costs of court, the suit being for £10 15s damage.

‡ Or Willy. It is Wyllys in the County Court Record.

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1684

Jn° Endecott Attorney to John Roberts * plt
 Con^{ta} Jn° Heyward Attorney to John Coleman [plain-
 tiff Con^{ta} John Heyward & †] defend^t in an action of
 Appeale from the Judgmen^t of the County Court in Boston after the
 Attachmen^t Courts Judgmen^t Reasons of Appeale & evidences in the
 Case produced were read Comitted to the Jury and are on file the Jury
 brought in their virdict they found for y^e defendant Confirmation of
 the forme^r Judgment & Costs of Courts thirty nine shillings = damag.
 32. 16. ‡ 6: in all 34 16. 6.

Endecot conta
 Heyward.

Robe^t Bronsdon pl^t Con^{ta} Jn° Conney || sen || defend^t in an Action
 of Appeale from the Judgmen^t of the County Court^t in Boston after
 the Attachm^t Courts Judgment Reasons of Appeale &
 evidences in the Case produced were read Comitted
 to the Jury & are on file wth the Reccords of this
 Court the Jury brought in their virdict they found for y^e defendant
 Confirmation of the former Judgment & Costs of Courts fiueteen
 shillings & sixe pence =

Bronsdon Con^{ta}
 Coney

Jn° Marrian Administrato^r to y^e estate of y^e late Tho Batt plan
 conta m's mary Lake widow executrix e^r in an Action
 of Appeale from the Judgm^t of the Comission's Court
 after the Attachment Courts Judgment Reasons of
 Appeale & evidences in the Case produced were read Comitted to the
 Jury & are on file the Jury brought in their virdict they found a spe-
 ciall virdict If a dead man^s bookes well kept be legall we find for y^e
 deffend^t Confirmation of the forme^r Judgment & Costs of Courts if not
 then wee find for the plaintiff^f Costs of Courts the magists voted for y^e
 plaintiff^f.

Marian Con^{ta}
 Lake

Benja ffarr pl^t Con^{ta} Josiah witter deffend^t in an
 Accon of Appeale from the Judgmen^t of the County
 Court at Ipswich the pl^t desiring & pleading for a non suite because
 the letter of Attorney was not prooved the Court on hearing of the
 parties granted the plaintiff^f a non Suite wth Reu^sion of the forme^r

ffarr Con^{ta} witter

* Joseph Roberts in the County Court Record.

† These five words are superfluous, as appears by the description of the parties in the County Court Record.

‡ 17 in the County Court Record.

Judgment in the Case wth Costs of Courts fuety one shilling & sixe pence

Tristram Coffyn Attorney to Peter Coffyn plant
 Peter Coffin Cont^a Conta Symon Bradstret Esq^r Go^ono^r deffend^t ^ After
 Symon Bradstreet the Attachmen^t Courts Judgment Reasons of Appeale
 Esq^r & othe^r evidences in the Case produced were read
 Comitted to the Jury & are on file wth the Records of this Court the
 Jury brought in their virdict they found for the deffendant Confirmation
 of the forme^r Judgment & Costs of Courts

Symon Bradstreet Esq^r plt Conta Peter Coffyn defendan^t in an
 action of Appeale from the Judgmen^t of the County Court in Boston
 after the Attachmen^t Courts Judgmen^t Reason^s of Appeale & evidences
 in the Case produced were Read Comitted to the Jury & are on file wth
 the Reccords of this Court the Jury brought in their virdict they
 found for the defendant Confirmation of the former Judgment & Costs
 of Courts

Richard Dawes plaint Conta Georg newby In an action of Appeale
 from the Judgment of the County Court in Boston the plantf wthdrew
 his Accon being Agreed

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1684

John Atkinson plt Conta mathew mille^r defendan^t in an Accon of
 Appeale from the Judgmen^t of the County Court at
 Atkinson Conta Salem after the Attachment Courts Judgment Rea-
 miller ~ sons of Appeale & evidences in the Case produced
 were read Comitted to the Jury & are on file wth the Records of this
 Court the Jury brought in their virdict they found for the plaintiff re-
 version of the former Judgm^t & Costs of Courts three pounds five shil-
 lings & sixe pence

Joseph Homes plant Contra James Russell esq^r
 deffend^t In an Action of Appeale from the Judgment
 Joseph Holmes of the County Court in Boston After the Attaclun^t
 Cont^a James Courts Judgmen^t Reasons of Appeale & evidences in
 Russell esq^r the Case produced were read Comitted to the Jury
 ten pounds [18^s] and are on file wth the Records of this Court the Jury
 country pay & 28^{ll}
 7^s. 6^d mony brought in their virdict they found for the defend^t Confirmation of

the forme' Judgm^t & Costs of Courts forty [9^s] 4^d in all forty one pounds 14^s 6^d =

Samuel Gibson plt Conta Christophe' Read deffend' In an action of Appeale from the Judgm^t of the County Court at Cambridg: After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found for the plaintiff reuersion of the former Judgment & Costs of Courts fuetty shillings 6^d

Gibson Conta Read

Georg Norton plaintiff Con^{ta} John Plaisted in an Action of Appeale from the Judgment of the County Court at Boston afte' the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the forme' Judgment & Costs of Courts thirty one shillings & nine pence

Norton Conta Plaisted

m^r Richd wharton m^r Hezekiah vshe' Daniel Turel Jun^d & Jn^o white pl^t Conta Joseph Smith defend' in An Action of Appeale from the Judgment of the County Cour^t in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file they brought in their virdict they found for y^e deffend' Confirmation of the form^r Judgm^t & Costs of Courts this Judgm^t Respited till y^e Adjournm^t of y^s Court i e 19th instant 6^d

Wharton 6^d Conta Smith

Hannah Armetage Came into this Court ^ made choyce of John ffloyd of Rumley marsh to be hir Guardian The Court orde's & Alloues of hir choyce of of Jn^o ffloyd to be hir Guardian as Attest Edw Rawson Secr

Hannah Armitage Guardian

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1684

Wee the Grand Jury for our Soueraigne Lord the king doe p'sent and Indict John Dounton son of w^m Dounton of Salem in the County of Essex for that he the sajd John Dounton no' hauing the feare of God before his eyes & being Instigated by the diuill on the 29th octobe^r

last did wickedly maliciously & feloniously murther Rebeckah Booth by discharging a Gunn in the house of Jn^o Hende'son of said Salem Contrary to the peace of our Soueraigne Lord the king his Crowne & dignity the lawe of God & of this Jurisdiction title murder. = the Grand Jury found not this bill but ~~found~~ || Indict & prsent || him the said John Dounty * of Salem for chance medly by Careless discharging of a Gunn was the death of Rebecka Booth. = The Court considering of this virdict did sentenc the said John Dounton to pay vnto the Parents of the said Rebecka Booth the sume of fve pounds in mony & that he pay tenn pounds mony as a fine to the Country or be whip^t wth fueteen stripes publickly at Salem on the nex^t lecture day paying also all charges of prosecution & ffes of Court standing Comitted till this sentence be pe'formed = wch his father w^m dounton vnde'took & obliged in open Court = This Court was Adjourned to y^e 19 Instant & y^en mett.

In Answer to the petition of m^r Richard wharton m^r Hezekiah Vsher John white and ~~John~~ Daniel Turell Juⁿ humbly desiring in their Complaint that the bond betweene them and Joseph Smith might be chancerved The Court doe chancery thir bond of eighty pounds to sixty pounds money and in Answer || to their || crauing further remedy against the wrong and Injustice to them susteyned by said Smith & Complices with Refferenc to the Dowboy of Gold This Court do order that the said || Ri^d || wharton and partne's giving one hundred and twenty pounds bond to prosecute their Complaint against the said Smith & Complices at the nex^t County Court at Boston & so from Court to Court vntill a legall end be put therevnto, In the meane tyme execution vpon the aboue said Judgment shall be respitted

per Curiam Edw. Rawson secret

This aboue written orde^r was published in open Court as Attests
E. R. S.

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And the said m^r Richard Wharton Hezekiah Vsher Daniel Turell Juⁿ & John white Acknowledged themselues theire heires e^r Jointly and seuerally bound in one hundred & twenty pounds to Jame^s Russell Esq^r Treasure^r e^r and to the partjes Concerned that they shall & will performe the aboue written orde^r in all respects = this donn 19th march 1684 attests

Edward Rawson secret

* Error of the record for "Dounton."

Att A Court of Assistan's held at Boston
by the Go^{wno}r & Compn^r of the Massachusetts
Bay in New England the first day of Septemb^r
1685

The Grand Jury brought in their Indict-
ments & presentments y^t of Jnⁿthan Gardiner
they found him not Guilty & the other two of
Vrjah Cloemen's y^t forme^rly named himsell Ball
they left to trjall &

present
Symon Bradstreet Esq^r Go^o
Tho Danforth Esq^r dep^t Go^o
Daniel Gookin sen^r Esq^r
w^m Stoughton
Nathaniel Saltonstall
Humphry Davy
John Richards
Samuel Nowell
James Russell
Samuel Apleton
Elisha Cooke
w^m Johnson
Jn^o Hathorne
Elisha Hutchinson
Samuel Seawall

} Esq^{rs}

mary Peacocke wife & Attorney to sam:
Peacock now p^resent plaint contra w^m Pen || def. || in an
action of Appeale from the Judgment of the County
Court in Boston. After the Attachment

1 Ju

Courts Judgment Reasons of Appeale &
evidences in the Case produced were read Comitted to
y^e Jury & are on file wth the Record^s of this Court the
Jury brought in their virdict they found for the de-
ffendant Confirmation of the forme^r Judgmen^t i e pos-
session of the House & land sued for & Costs of
Courts forty seven shillings & eight pence

persons Returned to
serve on the Grand
Jury & were sworne
were

— — — —
Capt Jn^o Holdbrooke
Nathaniel Greene
Abell porter
James whetcombe
Richd Daury
Tho Leighton
Caleb Hubbard
Daniel Preston
Jn^o mayho.
w^m Goddard
w^m Bond
Randall Nicholls
Eljah Row
Joshua Beale
— — — —

John Norman plt Con^{ta} Benja: Orne deffend^t in
an Act^{on} of Appeale from y^e Judgment of the County
Court at Ipswich After the Attachment

1 Ju.

Courts Judgment reasons of Appeale &
evidences in the Case produced were read Comitted to the Jury and
are on file wth the Reccords of this Court the Jury brought in their
virdict they found for the deffendan^t Confirmation of the forme^r Judg-
men^t & Costs of Courts forty eight shillings & three penc:

Benjā Rice pl^t Con^{ta} m^r W^m Avery deffendant in an Act^{on} of Ap-
peale from the Judgment of the Comissione's Court in Boston after
the Judgment Attachment Reasons of Appeale & eui-
dences in the Case produced were read Comitted to
the Jury & are on file || wth the Records of this Court || the Jury
brought in their virdict a speciall virdict y^t if the [y^e] plts not
denying his hand in the Comissione's Court be in law æqui[u]olent
|| to || an owning of ~~his hand~~ || it || then wee find for y^e defend^t Con-
firmation of the forme^r Judgmen^t & Costs of Courts if not then for

2 Ju

y^e plaintiff reue'sion of the forme^r Judgment & Costs of Courts the Bench determins for the deffend^t & Granted him his Costs of Courts

W^m Gilbert plaint Con^a Bartholmew Gidney Esq^r Attur[ney]
deffend^t In || an || Accon of Appeale from the Judg-
2^d Jur ment of the County Court in Salem After y^e Attachm^t
Courts Judg^t Reason^s of Appeale & evidences in the Case produced were
read Comitted to the Jury and are on file the Jury brought in their
virdict they found for the plaintiff reuercon of the forme^r Judgment
& costs of Courts two pounds thirteen shillings & sixe pence

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1685

person^s Returnd
to serve on y^e 1st
Jury for Appeales
life limbe c^r &
sworne were

— — — —
m^r stephen french
Henry Bartholmew
Jn^o fuller Lynn
Peter Lyon
Jn^o Dauis
Isack Brookes
Jn^o Sawin
Phineas sprague
steeven payne
Jn^othan Preston
Richd stowers
Nathaniel Thajre

— — — —
persons Returnd
to serve on y^e 2^d
Jury for tryalls
of Appeales for
life limbe c^r
Sworne

— — — —
m^r w^m Clarke
Nathaniel williams
2^d for † m^r Edw^d
Broomfield
Benja Walker
Jno fuller Cam. §
Antho Sprague
Jn^o Baxter
James Bird
Isack Newell
Tho fuller woo †
w^m Rauson

Joseph Lee plt Con^a Jn^o waingright * deffend^t in
an Accon of Appeale from the Judgment of the County
Court at Ipswich after the Attachment Courts Judgm^t
reasons of Appeale & evidences in the Case produced
were read Comitted to the Jury & are on file wth the
Records of this Court the Jury brought in
their virdict they found for the plaintiff 2^d Ju:
an abatement of the former Judgment
fowe^r pounds three shillings & sixe pence & costs of
this Court wch was thirty fowe^r shillings: & on his
peticon the Judgm^t & execution therevpō was Respitted
for 3 months from y^s day 8 † of Sep^r 85

Benjāin marshall plt Con^a Jn^o Cogswell deffend^t
in an action of Appeale from the Judg- 1 Ju
ment of the County Court at Salem After
the Attachmen^t Courts Judgmen^t Reasons of Appeale
& evidences in the Case produced were read Comitted
to the Jury & are on file wth the Reccords of this
Court the Jury brought in their virdict they found for
the deffend^t Confirmation of the form^r Judgmen^t &
Costs of Courts two pounds five shillings. —

Samuel Jackljn plt Conta Thomas Parris defend-
ant in an action of Appeal from the Judgment of
the County Court in Boston After y^e Attachment
Courts Judgment reasons of Appeale & evidences

* Waluwright?

† Changed from 3.

‡ Foreman.

§ Cambridge.

¶ Woburn.

in the Case produced were read Comitted
^{2d} Ju: to y^e Jury & are on file wth the Records
 of y^e Court the Jury brought in their vir-
 dict they found for y^e plaintiff reuersion of the forme^r
 Judgm^t & Costs of Courts forty nine shillings — exec Issud out 7 7b^r
 for 2: 9^s.

Jn^othan Phillips
 Jn^othan Bridgham
 instd of m^r Clark
 when [list]
 — — — —

Samuel Gibson plaintiff in an Action of Appeale from Cambridge
 Courts sentence After the Courts sentenc & evidences
 in the Case produced were read Comitted to the Jury
 & are on file wth the Records of this Court the Jury brought in their
 virdict they found for the plaintiff Reuersion of the Courts sentenc

Amo^s Marret p^t Con^{ta} Ephraim Cutter defend^t in an Action of
 Appeale from the Judgm^t of the County Court at Cambridge After the
 Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case
 produced were read Comitted to the Jury & are on file wth the Records
 of this Court the Jury brought in their virdict i e If a person^s oune
 evidence & wounds wth other evidences that thinke they
 heard y^e pson y^t is wounded Cry out be euident in law
 then y^e Jury finds A Confirmation of the forme^r Judgm^t
 or sentenc If not euident in law then the Jury finds a reuersion: of y^e
 former sentence. The magis^{ts} determines for y^e Courts sentence =

1st
 Ju

Jn^o Trayne plt Conta Samuel Barnard deffend^t
 in an action of Appeale from the Judgm^t of the County
 Court at charlsToune After the Attachm^t Courts Judg-
 ment Reasons of Appeale & evidences in the Case
 produced were read Comitted to the Jury & are on file wth the Reccords
 of this Court the Jury brought in their virdict they found for the plain-
 tiff Reuision of the forme^r Judgm^t & Costs of Courts || in all || fowe^r
 pounds fowe'teen shillings & fowe^r penc

Trayne ag^t Barnard
 25 at Camb. & costs
 vide 198 p.

Bethy Arche^r wife & Attorney to hir husband Jn^o Arche^r p^t
 Conta Benja Picknand defend^t in an accon of Appeale from the County
 Court at Salem afte^r the Attachment Courts Judgmen^t Reasons of
 Appeale & evidences in the Case produced were read, objections made
 ag^t the pcesse the Court declared that there was no legall process &
 Granted y^e plaintiff hir Costs two pounds tenn shillings and fowe^r
 pence =

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1685

2^d Ju
Boober Cont^a Down-
ing

Joseph Boober Conta Richard Douning deffendant^t
in an Accon of Appeale from the Judgment of y^e
County Cour^t at Salem after the Attachm^t Courts
Judgment Reasons of Appeale & evidences in the Case
produced were read Comitted to the Jury & are on file wth the reccords
of this Court the Jury brought in their virdict they found for the
deffendant Confirmation of the forme^r Judgmen^t & Costs of Courts one
pound nine shillings & tenn pence

2^d Jur
Hitchins ag^t Broune

Daniel Hitchins plt Conta Tho: Browne deffend^t
in an action of Appeale frō the Judgment^t of the County
Court at Ipswich After the Attachment Courts Judg-
ment Reasons of Appeale & evidences in the Case produced were read
Comitted to the Jury & are on file wth the Records of this Court the
Jury brought in their virdict they found for y^e pltff
Reūision of the former Judgm^t & Costs of Courts three
pounds five shillings & six pence The Court ordered
tha^t execution Gon forth in y^e Case being suruptitiously obteyned shall
be respitted & Returnd to y^e secre^tary on 2^d day nex^t & deteyned till
y^e Courts further ord^r (y^e origina^l Bond sen^t for & Returnd =

Courts order to de-
teyne c^r

2^d Jur
Sarjan^t Cont^a
Shrimpton.

m^r Peter Sarjan^t & Elisabeth his wife pltff Conta m^r Henry
Shrimpton || one of y^e executo^rs c^r || deffend^t In an Action of Appeale
from the Judgment of the County Court in Boston
After the Attachm^t Courts Judgment Reasons of
Appeale & evidences in y^e Case produced were read
Comitted to the Jury & are Remayning on file with
the Reccords of this Court the Jury brought in their virdict they
found for the defdant Confirmation of the forme^r Judgments & Costs
of Courts

1st Jur
Apleton Cont^a
Roads
1 Acti:

m^r Samuel Apleton Jun^d pltf Conta Henry Roads
defend^t in an Action of Appeale from the Judgment
of the County Court at Salem After the Attachm^t
Courts Judgmen^t Reasons of Appeale & evidences in
the Case produced were read Comitted to the Jury & are on file wth the
Records of this Court the Jury brought in their virdict i.e If y^e law
Gives powe^r to a single magistrate to trye title of land & Giue damage

¶ in ¶ an action of trespasse when both parties clajme title then wee find for the deffendant Confirmation of the forme^r Judgment & Costs of Courts If the law gives no such powe^r then wee find for the plaintiff reuertion of the forme^r Judgm^t & Costs of Courts = the Bench determined for the plaintiff seven pounds nineteen shillings & eight pence costs

m^r Samuel Apleton plt^t Conta Henry Roads deffend^t in an Action of Appeale frō the Judgment of the County Court at Salem after y^e Attachm^t Courts Judgm^t Reasons of Appeale & euidences in the Case produced were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict a speciall virdict in y^e same words as aboue the bench as aboue determined for the plaintiff & gted him his Cost seuen pounds eighteen shillings & tenn pence

1st Ju:
Apleton Con^{ts}
Roads

Samuel Apleton Con^{ts} Samuel wakefeild deffend^t at a County Court held at Boston from the Comissioⁿs in An action of Appeale after the Attachment Courts Judgmen^t Reasons of Appeale & euidences in the Case produced were read Comitted to the Jury & are on file the Jury brought in their virdict they found for the Deffend^t Confirmation of the form^r Judgm^t & Costs of Courts

1st Jury

Apleton Con^{ts}
wakefeild

Benjamin Chambe^rlajn plain^t Conta Nathaniell Billings deffend^t in an action of Appeale from the Judgment from the County Court at Cambridg after the Attachment Courts Judgmen^t Reason of Appeale & euidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendan^t Confirmation of the form^r Judgment & Costs of Courts three pounds nine shillings & eight pence

Chamberlajn Con^{ts}
wakefeild *

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1685

Samuel Walke^r plan^t Conta Roger vicke's defend^t ¶ in an Action of Appeale from the Judgment of the comissioners court ¶ After y^e Attachm^t Courts Judgment reasons of Appeale & euidences in the case produced were read Comitted to y^e

1 Jur. & 1. Acc^{ts}

* Evidently an error of the Secretary for "Billings."

vickers ag^t walke^r
as to Indent 8th D &
31 : 6th Costs

Jury & are on file wth the Records of this court the Jury brought in their virdiet they found for the deffendant Confirmation of the former Judgment & Costs of Courts one pound eleven shillings & six pence

Joseph vicke's plaint Con^a Samuel Walke^r defend^t in an Accon of Appeale from the Judgment of the Comissioners Court After the Attachm^t Courts Judgment reasons of Appeale & euidences in the Case produced were read Comitted to the Jury & are on file wth the Records of this Court the Jury found for the deffend^t Confirmation of the forme^r Judgment & Costs of Courts one pound 9^s & dam 30^s

vickers Conta walke^r
for worke —

Joseph vicke's plan^t Con^a Samuel walke^r defend^t in an action of Appeale from the Judgment of the Comission's Court after the Attachm^t Courts Judgment Reasons of Appeale & euidences in the Case produced were read Comitted to the Jury & are on file wth ye Records of y^e Court the Jury brought in their virdiet they found for the plaintiff Reuersion* of the former Judgment & Costs of Courts thirty two shillings & fowe^r pence :

Vickers Conta
Walker

2 Jury
Hendrick ag^t Daus

Jonathan^t Hendrick plaint Conta James davis in an Acccon of Appeale from the Judgment of the County Court of Salem† After the Attachm^t Cour's Judgment Reasons of Appeale & euidences in the Case produced were read Comitted to the Jury & are on file wth the Records of this Court y^e Jury finds for the plaintiff Reuersion of the forme^r Judgment & Costs of Courts 52 : 10

filings pd.
3 : 4. 6

Bake^r ag^t Hundlocke

in all
99, 04. 8. execut:
Issued out 9. Sep^r
(.85)

Thomas Bake^r plaint Conta Edward Hunlocke deffend^t in an Accon of Appeale from the Judgment of the County Court in Boston After the Attachment Courts Judgment Reasons of Appeale & euidences in the Case produced were read Comitted to y^e Jury & are on file wth the Records of this Court the Jury found for the deffendant Confirmation of the forme^r Judgment & Costs

* Written over "deffendant confirmation."

† Written over "Commissioners Court." By the papers on file it appears that the appeal was by Jotham Hendrick from the County Court at Ipswich. See Court Files No. 2333.

of Courts, two pounds fowerteen shillings & two pence the Court chan-
ceried y^e bond to ninety six pounds tenn shillings —

Robt Pike esq^r plt Conta Nathaniel winsley deffend^t in an Accōn
of Appeale from the Judgment of the County Court at Salem After y^e
Attachm^t Courts Judgm^t Reasons of Appeale & evidences in the Case
produced were read Comitted to the Jury & are on file the Jury
brought in their virdict they found for the plaintiff Reuision of y^e
former Judgment & Costs of Courts

Edward Richards Robt Potter seū samuel Johnson Attu'n'ys for
y^e Towne of lynn plt conta sam: Apleton Juū deffend^t in an Accōn of
Appeale from the Judgm^t of the County Court at Salem After the At-
tachm^t Courts Judgment Reasons of Appeale from the Judgm^t of the
County Court at Salem After the Attachment Courts Judgmen^t Reasons
of Appeale* & evidences in y^e Case produced were read Comitted to
the Jury & are on file the Jury brought in their virdict they found for
the defend^t Confirmation of the forme^r Judgment & Costs of Courts

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1685

Samuel Pearce pl^t Contra Jn^o Haward defend in
an Accōn of Appeale from the Judgment of the Com-
missione's Court In Boston After y^e Attachm^t Courts
Judgment Reasons of Appeale & evidences in the Case produced were
read Comitted to the Jury & are on file wth the Records of this Court
the Jury brought in their virdict they found_A

Pearce Con^{tra} Hay-
ward

Gilbe^t Cole plain^t Con^{tra} Joseph Homes defend^t
in an Accon of Appeale from the Judgment of the
County Court in Boston. After the Attachment
Courts Judgmen^t Reasons of Appeale & evidences in
the Case produced were read Comitted to the Jury & are on file wth the
Records of this Cour^t the Jury brought in their virdict they found for
the defendant Confirmation of the forme^r Judgment & Costs of Courts
thirty seven shillings

Gilbert Cole Con^{tra}
Jo. Homes damg.
10^{li} mony Cost 37^s

Robt Blood Juū plt Conta samuel knight defend^t in an Accōn of
Appeale from the Judgmen^t of the County Court at charlsToune After

* Seventeen words repeated in the record.

**Blood ag^t Knight 9th.
2^d. 10
Execution Issued
out 17th Sep^r 85** y^e Attachment Courts Judgmen^t Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found for the defend^t Confirmation of y^e forme^r Judgm^t & Costs of Courts seventeen shillings & six pence in all damage 9th. 02 10

**Mulligans sentence
to Return to Ireland
e^r und^r pœnalty of
20th** Hugh mulligen plain^t on Appeale from the Judgmen^t or sentenc of the Countty Court in Boston After the Courts sentenc & evidences in the Case pduced were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found a Confirmation of the County Courts sentenc & costs of Courts i e defray y^e charg of Tryall:

Lilly Cont^a payne Edward Lilly plain^t Conta W^m Payne Blacksmith
In An action of Appeale from the Judgmen^t of the County Court in Boston After y^e Attachm^t Courts Judgm^t Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found for the defendant Confirmation of the former Judgmen^t & Costs of Courts nineteen shillings & 10^d w^{ch} added to y^e damage [mō *] & othe^r Costs in all is twenty seven pounds fueteen shilling^s 10^d money.

**widdow wardell
nonsuited** widdow wardell plaintifff Contra m^r Symon Lynde deffend^t in An Acōn of Appeale from the Judgmen^t of the County Court in Boston the plaintiff not Appearing being three times Called was non suited & the bond declared forfeited & defend^t had his Costs sixe shillings

**Stoddard ag^t
m^r Davy** m^r Anthony Stoddard plt Conta Humphry Davy esq^r deffend^t in an action of Appeale from the Judgment of the County Court in Boston After the Attachment Courts Judgmen^t reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendant costs of Courts †

* Money? The verdict at the County Court was for 26th in money and Costs of Court, 16^s.

† The original verdict on file is "for the deffendant confirmation of y^e former Judgmen^t & Cost of Courts." See Suffolk Court Files No. 2333.

Joseph Hiller plaintiff Contra Francis Burrowes deffend^t in an action of Appeale from the Judgment of the County Court in Boston after the Attachment Courts Judgment Reasons of Appeale and evidences in the case produced were read Comitted to the Jury and are on file with the Reccords of this Court the Jury brought in their virdict they found for the defendant Confirmation of the former Judgment & Costs of Courts

Hiller ag^t Burrowes

p: 201 [Adj]

ordered y^e secretary Issue out warrant for y^e discharge of Jnⁿthan Gardiner out of prison he paying the prison fees, y^e Grand Jury not finding y^e bill

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1685

John Saffyn plaintiff Cont^a Stephen Burton deffend^t in an Action of Appeale from the Judgment of the County Court in Boston after the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file with the Records of this Court the Jury brought in their virdict they found for the defendant Confirmation of the former Judgment & Costs of Courts two pounds two shillings =

Saffyn ag^t Burton
Costs 2^l 2^s 0
mem^o filing vn^d
2^s 6.

Henry Roads plaintiff Con^a Samuel Apleton deffend^t in an Action of Appeale from the Judgment of the County Court in Ipswich after y^e Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found for the plaintiff redⁿsion of the form^t Judgm^t twelue shillings damage & Costs of Courts = forty one shillings 6^s

Roads ag^t Apleton

D^r Phillip Read Con^a michael Bacon deffend^t in an Action of Appeale from the Judgment of the County Court at Cambridge after the Attachment Courts Judgment reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found for the deffendant Confirmation of the former Judgment & Costs of Courts in all thirty one shillings & fowe^r pence =

Read ag^t Bacon

Costs 31 . 4
fil. 3 . 8 vn^d

wharton Cont^a m^r Rich^d wharton m^r Hezekiah Vsher Daniel
 Smith Turel Jun^d & John white plt Cont^a Joseph Smith
 deffend^t in an Ac^on of Appeale from the Judgment
 of the County Court in Boston After the Attachment Courts Judgment
 Reasons of Appeale & evidences in the Case p^rduced were read Com-
 itted to the Jury & are on file wth the Reccords of
 on his peticon both this Court the Jury brought in their virdict they
 executions respitted : found for y^e plaintiff^r reuersion of the forme^r Judg-
 10 Sep^r 85 = ment & sixty pounds money damage & Costs of
 Courts seuen pounds seuen shillings & sixe pence =

Saffyn ag^t Baxter Tho Saffyn Cont^a John Baxter In An Action of
 Appeale from the Judgm^t of the County Cour^t In
 Boston After the Attachm^t Courts Judgm^t Reasons
 Execution Issued of Appeale & evidences in the Case produced were
 out ag^t Saffyn for read Comitted to the Jury & are on file wth the Rec-
 7. 5: 4 ords of this Court the Jury brought in their vir-
 11 Sept 85 = dict they found for y^e plaintiff^r fowe^r pounds abatement of y^e forme^r
 Judgment & Costs of || ys || Court thirty fowe^r shillings & tenn pence —

Joseph Homes plt Conta Anthony cheeckley In An Action of
 Appeale from the Judgment of the County Court at Boston || c^r ||
 Home^r ag^t chickley After the Attachment Courts Judgment Reasons of
 Appeale & evidences in the Case produced were read
 Comitted to the Jury & are on file with the Records of this Court the
 Jury brought in their virdict they found for the plaintiff^r reuersion of
 the former Judgm^t & Costs of Courts || y^e defendt Attainted y^e Jury 17
 Sep^t 85 for erro^rs & mistakes, gaue In his reasons || Antho checkly as
 principall in sixty pounds & m^r Richard Harris of Braintry & Jn^o.
 Keech of Boston his sue^tj^es in thirty pounds apeece mony acknowl-
 edged themselues respectiue bound to y^e Tresu^r of y^e Country & party
 Concerned y^t s^d Anthony cheeckly shall p^rsecute his Attaint of y^e Jury
 ag^t y^e Jury^s virdict at y^e nex^t court of Assistants whereof * m^r Edw^d
 Bromfeild was foreman

Attest. Edw^d Rawson secre^t

Richard chick plt Conta Edward doe: deffend^t in an ac^ti^on of
 Appeale from the Judgm^t of † y^e plaintiff^r Appeared no^t
 but sajd y^t y^e partjes were Agreed

* So in the original.

† This space left blank in the record.

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1685

M's Hannah Haugh plaint Conta Abraham Hill defend' in an action of Appeale from the Judgment of the [County] Court at [CharlesToune *] as to the non suite granted ag' hir. After the Attachment Courts Judgment Reasons of Appeale & evidences produced, = the Court determined for the plaintiff & Granted hir the Costs of this Court and remitted the Case to the former Court to be heard & determined on the originall writt & former entry =

Haugh Conta Hill
fil: 1. 6.

Costs 29^s

Samuel Bernard Complayning that he is in prison vpon execution granted by this Court Against || him || to John Trayne for fowe' pounds fowe'teene & fower pence It Appearing that the Judgment amoun's to no more than three pounds sixe & fowe' pence The Court declares the sajd execution voyd & Bernard to be released as being falsly Imprisoned / And an execution yet lyes for Trajne for the sajd sume of three pounds six & fow' pence. = And It is ordered that the Secretary Issue out a warrant to the keeper of the prison at Cambridge to discharge the sajd Samuell Bernard his prison as on y^e execution granted against him on suit of John Trayne which was donn Accordingly

Courts Judgm't to
Releas Bernard

18 Sep^r 1685

Vriah Cleomen's y^t Called himself by the name of John Ball being presented by the Grand Jury & left to further Trjall was brought out of y^e prison to y^e Barr: was † Indicted by the name of vryah cleoments || 〇 || y^t lately Came from England in the Pyncke Adventure John Balston master for that he not hauing the feare of God before his eyes but being Instigated by the devill did vpon the nineteenth day of July last in this present yeare 1685 being the Lords day Comit a Burglary on the dwelling house of Sarah Noyse widow in Boston entring the sajd house stole thence about ninety fue pounds in money Contrary to the peace of our Souaigine Lord the king the Lawes ‡ of God and of this Jurisdiction to w^{ch} Indictmen^t holding vp his hand at y^e Barr he pleaded not giulty put himself on God & the Country for his Tryall & uo^t excepting against any of the Jury Impanned After his Accusation by James olliuer whose mony It was y^t he stole wth the evidences in the

Cleoments Indictm^t
& sentenc as to m^r
James olliuers Accu-
sat

* Written over "Cambridge."

† Written over "being."

‡ Written over "his Crowne."

Case produced against him were read Comitted to the Jury & are on file the Jury brought in their virdict the prisone^r being at the barr they found him Guilty according to Indictment The Cour^t proceeded to & did sentenc him being so convicted & found Guilty as aboue to be branded wth the letter **B** on y^e forehead & haue his Right eare Cutt of discharging y^e charge of y^e witnesses tryall & fees & then make treble Restitution to the party Injured & in defect thereof to be

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1685

sold to any of the English plantations =

[*Blank space*]

Vryah Cleoments that had falsly Called himself by y^e name of John Ball being presented by the Grand Jury & left to further Tryall was brought out of the prison to the Barr & there Indicted by the name of vryah Cleoments &c that lately Came from England in the Pynke Adventure John Balston master for that he not hauing the feare of God before his eyes but being Instigated by the diuill did vpon the twelfth of July last in this p^resent yeare 1685 being the Lords day Comitt a Burglary on the dwelling house of James Pecker housewright in Boston entring the s^d house stole about tenn pounds in money & some Ribbon Contra^y to the peace of ou^r soueraigne Lord the king his Croune and dignity the lawes of God & of this Jurisdiction To wch Indictment holding vp his hand at the Barr he pleaded not Guilty put himself for tryall on God & y^e Country (not excepting against any of the Jury Impaneld) = After the Indictment his Accusation by James Pecke^r wth his y^e sd Cleoments examination^s & euidences in the Case produced against him were read Comitted to the Jury & are on file the Jury brought in their virdict they found him Guilty according to Indictment = The Court proceeded to & did sentenc him to be Againe Branded with the letter **B** on his forehead & haue his left eare Cutt of discharging the charge of the wittnesses & Tryall & fee^s of Cour^t & then making treble Restitution to the party Injured & on defect thereof to be sold to any of the English Plantations =

[*Blank space*]

W^m Clapp || marriner || being Comitted to prison on suspition of being Confœderate wth vriah Cleoments alias^t Jn^o Ball was brought to

y^e Barr & there m^r James olliver exhibbited his Complaint ag^t him for being confederate wth vriah cleoments in stealing concealing & helping to spend the mony stolne by him out of m^s Noyes her house as p^e evidence & his oune Confession will Appeare: Jn^o Channell is also complajned against on the same effect signed

By James Oliver

wch Complaint being read in Court ag^t sajd w^m Clapp : he ans'd he was no way Guilty & desired to be trjed by y^e Jury wch was granted him & After the Complaint & all the evidences & examinations & Confessions taken

Courts sentence ag^t
w^m Clap & Jn^o chan^{li}
on Compl^t of m^r
James oliuer e^r

before y^e Comissione's e^r were read Comitted to the Jury & are on file wth the Records of this Court the Jury brought in their virdict they found him the sajd w^m clapp Guilty according to y^e Complaint John * french foreman e^r The like Complain^t was Read ag^t Jn^o channell & on like tryall by

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1685

like Jury as in Clap^a in all respects

The Court proceeded to sentenc them the sajd John channon & w^m Clap for their offences being Convicted & stand Guilty of being Confederate wth vriah Cleomen's in stealing Concealing & helping to spend the money stolne from the sajd oliuer out of m^s Noyes hir house as p^e evidence & their oune Confession to pay tenn pounds a peece mony as a fine to the Countrey & be Returned to y^e prison there to remajne for one month & discharging the wittnesses & tryall & fees of Court then to be dischargd = In Ans^r from 17th Septemb^r. 85
to the peti^on of w^m Clapp Its ordered that on his paying his fine & charges of Tryalls e^r he shall be releast his Imprisonm^t The like favou^r was granted to Jn^o channell

Joseph Homes Sen^d & Juⁿ principalls being bound ouer wth sue^tj^es that they Appeare at y^e nex^t Court of Assistants to Answer what they shall be charged with for being present at the expending receiving & privy to the Concealing of any of the mony stolne out of the house of m^s Noyce in Boston & abide the orde^r of the Court Joseph Homes sen^d & Juⁿ were Called & appeared & it being put to them whither they would be trjed by the Bench or by ~~the~~ Jury, they each after other refferd themselues to the Bench =

Joseph Homes sen^r was heard & was Admonished for his vncomely speech abt m^r williams =

* The original verdict on file is signed by "Steph. french foreman."

Jose[p]h Homes Jun^o being Accused to be accessory to the Burglary & Theft Comitted at the house of m^s Noyce by vryah cleoments by his after being at the expence of some of the money & receiving vntold & Concealing a part thereof vntill pursued & challenged by the own^os and ~~taking a part thereof~~ || having referred || himself to the Court without a Jury the Cause being heard He is Adjudged to pay tenn markes as a fine to the Country, to suffer foweteen day^s Imprisonment & pay fees of Court prosecution & prison & then be dischargd

In Ans^r to y^e petition of Joseph Homes Jun^r It
18. Sep^r 1685 : is ordered that the said Joseph Homes Jun^r on payment of his fine 10^s be released & dischargd = y^e same fauo^r was Granted to w^m clap & Jn^o channon

The Court Respitted as before the execution in
Courts Adjourn^t 18
Sep^r 85 smith ag^t m^r wharton 10^s & in m^r whartons ag^t m^r Smith till this Courts Adjourn[ment] to 2^d wednesday in octobe^r nex^t at one of the clock to wch time this Court was Adjourned =

This Court was Adjourned to y^e 14th of octobe^r 85 at one of y^e clock to w^{ch} time y^e Genl Court had binn Adjourned

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The Court mett at y^e time of Its Adjourn^t 14 of octobe^r 1685 & so day by day to y^e ending of the session.

m^r Jn^o Bisco Appeared & Complayned agains^t his servant James farrell with John macolly servant to m^r Joseph sherman that Gott into the cellar of * Neue^rson as in their Confession

[Blank space]

Itt is Ordered that James Pecker shall haue forthwith deliuered to him out of the mony that vryjah cleoments stole from m^r James oliuer twenty fve shillings money (the sajd cleoments not only owning that he did steale Peckers mony but also had about fiuety shillings of sajd Pecke's mony in his hands and put it into m^r olive's mony) and also that || i. e. Rob^t Butcher † || the Constable that seized cleoments

* Left blank in the record.

† Written in the margin.

two suites of cloathes hatt stockings shooes silve' Buckles Button shirt & necke clothes & handthecherfs || wth y^e seven shillings y^t Clap borrowed, & two shillings Channon borrowed of s^d cleoments e^r before m's Noy^s hovse was broken up || deliuer them to said Pecker the said Pecker to pay what is Justly due to Sam Lincolne y^e Taylor

In answer to the motion of Joseph Helljer* The Court chan-
ceried his bond to one hundred & eight pounds mony & Costs of Courts

It is ordered that John Channons fine of tenn pounds be Abated
to sixe pounds

[The rest of the page is blank]

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1685

Att A Court of Assistants held at Boston 2^d
of march 1685

The Grand Jury brought in their present-
ments & Indictments & were discharged.

m^r Anthony Checkley plaintiff in an Action
of Appeale on Attaint Contra [the] y^e virdict of
y^e Jury whereof m^r Edward Bromefeild was fore-
man & ag^t Joseph Homes Defendant After the
Attachm^t the || Courts Judgm^t & || Jury^s virdict &
evidences in the case were read Comitted to the
Jury and are on file the Jury brought in their
virdict therevpon & is on file viz^t they found for
the defendant Confirmation of the former Judgment
& Costs of Courts fower pounds eleven shillings &
sixpence to said Homes

present
Symon Bradstreet Esqr
Go^t
Thomas Danforth Esqr
dep Go.
Daniel Gookin
w^m stoughton
Joseph dudley
Humphry davy
John Richards
Sam Nowell
James Russell
Sam: Apleton
Robert Pyke
Elisha Cooke
w^m Johnson
Jn^o Hathorn
Elisha Hutchinson
Samuel seawall

} Esq^m

— — —
persons Returnd to
serve on y^e Grand
Jury & sworne were

— — —
m^r symon Lynde
Rich^d way
Jabez Totman
Henry Leadbetter
Stephen Lincolne
w^m Torrey Juⁿ
Andrew Belchar
Joseph kette
Allexander marsh
Samuel Andrewes
Jn^o Bright

Anna Haugh plain^t Con^a Abraham Hill defendant^t
|| In an Action of Appeale from the Judgmt of y^e
County Court at ~~Boston~~ || Cambridge || After the At-
tachment Courts Judgment Reasons of Appeale &
evidences in the Case produced were read Comitted to
Jury & remajne on file wth the Records of this Court
the Jury brought in their virdict therevpon they found

* See page [196]

Nath Coolidge
James flood
Nath. Sternes
— — — —

for the plaintiffe reuersion of the former virdict &
twenty pounds mony damage & Costs of Courts three
pounds eight shillings & 4^d

George Kirbee plaintiff In An Action of Appeale from the Judg^t
of the County Court in Boston in octobe^r last after the Attachmen^t
Courts Judgmen^t Reasons of Appeale and evidences in the Case pro-
duced were read Comitted to the Jury & are on file the Jury brought in
their virdict therevpon they found for the defendant the Reversion *
of the form^r virdict & Judgment & Costs of Courts one pound ten
shillings & eight pence =

Sarah Barret Plaintiff on Appeale from the sentence of the County
Court in Boston After the Courts sentence & evidence in the Case pro-
duced were read Comitted to the Jury & are on file the Jury brought in
their virdict they found Confirmation of the forme^r sentence 5^{li} fine *es* †

Sarah ‡ Barret plaintiff on Appeale from the sentence of the
County Court in Boston After the Courts sentenc & evidences in the
Case produced were read Comitted to the Jury &
are on file wth the Records of this Court the Jury
brought in their virdict therevpon they found Confir-
mati[on] of y^e sentenc 5^{li} mony *es*

persons Returnd to
serve on the Jury of
Attaints & Appeales
& for life limbe &
banishmen[t]
& sworne were

— — — —
m^r Samuel phipps
w^m Gilbert
Isayah Toy
Bozoune Allen
Richard Banks
obadiah Gill
Cleomen Coldham
Henry Bowen
Sam Gore
Jn^o Tolman
Ebeneza^r Billing
w^m Greene
on the other side

m^r Jonathan Corwin Administrato^r to the estate
of y^e late Cap^t Georg Corwin plt || In an action of
Appeale from y^e Judgment of Salem Court || Conta
w^m Dounton & John La[under] defendants After the
Attachments Courts Judgment Reasons of Appeale &
evidences in the Case produced were read Comitted to
the Jury & are on file with the Records of this Court
the Jury brought in their virdict therevpon & found
for the deffendants Confirmation of the former Judg-
men^t & Costs of Courts three pounds 3^d damage was 12 ^s

[203]

1685

Symon Gross
Sam: Holbrooke

George Dauson plt Conta Cap^t Jn^o wing defendant
In an action of Appeale from the Judgment of the

* Written over "Confirmation."

† *es* written over " & Costs."

‡ Written over "Jn^othan." There were two Appeals from the County Court by Sarah Barret.

County Court at Charls Toune after the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict therevpon they found for the deffendant || confirmation of the former Judgment & || Costs of Courts =

Sam. kettle
Joseph Cro[s]by
Tho. Olliver
noah wisewall
Joseph Mason
w^m shaddock
Ebenezer flegg
natha: Bullard
James foule
ffrancis Burrell
— — —
persons Returnd to
serve on y^e 1st Jury
for Appales life e^r
sworne—
m^r Sam Phipps
I[s]ayah Toy
Rich^d Banks
francis Burrell
Henry Bowen
J^{ne} Tolman
w^m Greene
Sam Holbrooke
Joseph Crosby
noah wisewall
w^m Shaddock
natha Bullard
w^m Gibson instead
of Toy in 3 or 4
Act[ions]
— — —

George Dauson plt Cont^a George Pite e^r defend-
ant in an Action of Appeale from the Judgment of the
County Court at charls Toune After the Attachment
Courts Judgment reasons of Appeale & evidences in
the Case produced were read Comitted to the Jury &
are on file wth the Reccords of this Court the Jury
brought in their virdict they found for the deffendant
Costs of Courts

Abraham Holman e^r Plaintiff Cont^a nathaniel
Hancock & Jⁿ° Goue defend^u in an Action of Appeale
from the Judgment of the County Court at charls-
Toune After the Attachmen^t Courts Judgment reasons
of Appeale & evidences in the Case produced were
read Comitted to the Jury & are on file wth the Reccords of this Court the
Jury brought in their virdict they found for the plaintiff reuertion of
the forme^r Judgment & Costs of Courts.

Whereas In the Case betweene Cambridge Selectmen plt & y^e
drum^es of the Toune defendants a testimony hath binn read in this
Court signed & sworne by Jerremiah Holman & Abraham Holman wch
doth appeare to this Court to be very rash & presumptuous & to the
Drume's prejudice in their Case, if false, This Court doeth refer * the
examination thereof vnto the County Court of middlesex & to give
Judgment therein as they shall see Cause

w^m Marshall plt Cont^a W^m marbell deffendant In
an action of Appeale from the Judgment of the County
Court at charls Toune After the Attachment Courts
Judgment reasons of Appeale & evidences in the case
produced were read Comitted to the Jury & are on file
wth the reccords of this Court the Jury brought in their
virdict they found for the ~~plaintiff~~ || defendant || Confirmation of the

w^m marshall Conta
w^m marble g de-
fend: 16, 10 dam &
costs 2-9 mem^r
5 ent
2-4 ff

* Written over "doe therefore."

former Judgment i e sixteen pounds ten shillings damag mony & Costs of Courts forty nine shilling^s

marshall Con^{ra} Soley
g Soley 33^{li}. da.
mony & 57^s costs
fl. 2:4 post ent 10.

w^m marshall plt Contra Sarah Soley widdow
defend^t In an acti[on] of Appeale from the Judgment
of the County Court at charlsToune After the Attach-
ment Courts Judgment reasons of Appeale & evidences
in the Case produced were read Comitted to the Jury & are on file the
Jury brought in their virdict they found for the defendant Confirma-
tion of the forme^r Judgment i e thirty three pounds || mony || & fifty
seuen shillings Costs

marshall con^{ra} moor
g moore 55^{li} mony
& Costs of
Courts 2= 13. 6
Add entry
[&] filing 2
57. 15. 6

w^m marshall plaint Con^{ra} Enoch moore defend^t
in an Action of Appeale from the Judgment of the
County Court at charlsToune After the Attachmen^t
Courts Judgment reasons of Appeale & evidences in
the Case produced were read Comitted to the Jury
and are on file wth the Reccords of this Court the
Jury brought in their virdict they found for the deffendant Confirma-
tion of the former Judgment i e fiuetu fine pounds mony & Costs of
Courts fiuetu three shillings & sixpenc.

[204]

1685

Gates Conta Jn^o
ffoskett

Symon Gates Gates * Plaintiff In An Acton of
Appeale from the Judgment of the County Court at
Cambridge || contra Jn^o ffoskett || After the Attach-
ment Courts Judgment Reasons of Appeal & evidences in the Case
produced were read Cor.itted to the Jury & are on file with the records
of this Court the Jury brought in their virdict they found for the
plaintiff reuision of the forme^r Judgment's & Costs of Courts fiuetu one
shilling^s & sixe pence =

Homes Con^{ra}
Olliuier

Joseph Homes Jun^d plaintiff Conta Nathaniel
Olliuier defend^t In Action of Appeale from the Judg-
ment of the County Court in Boston octobe^r last After
the Attachment Courts Judgment Reasons of Appeale & evidences in
the Case produced were read Comitted the Jury & are on file with the
Records of this Court the Jury brought in their virdict they found for

* Repeated in the record.

the plaintiff* Confirmation of the former Judgment & Costs of Courts
w^{ch} was ten shillings & sixe pence *c* & acknowledgd p^d =

Daniel Turell Turell † Jun^r Attorney to Nicho:
Inglesby plt Con^{ta} Joseph ‡ Cowell Attorney to w^m Turell conta Jn^e
Shaddock § deffend^t In An Action of Appeale from Cowell
the Judgment of the Commissione's Court in Boston After the Attach-
ment Courts Judgment Reasons of Appeale & evidences in the Case
produced were read Comitted to the Jury & are on file wth the Reccords
of this Court the Jury brought in their virdict they found for the
deffendant Confirmation of the forme^r Judgm^t & Costs of Cour^{ts} nine-
teen shillings —

Nathaniel Bullard & John Herse plt. Con^{ta} County
Courts sentenc or determination as to y^e probat of y^e Bullard conta Rich-
will of ¶ Richards After the Courts Judg- ards
ment & settlement & othe^r evidences in the Case produced were Read
The Bench declared they Confirmed the forme^r Judgment of the County
Court in Boston & gaue the defendants Costs three pounds one shilling
& tenn pence :

michael Bacon plt Con^{ta} Daniel [Maguinis] de-
ffendant In an Action of Appeale from the Judgment
of the County Court at Cambridge in octobe^r last
After the Attachment Courts Judgment Reasons of
Appeale & evidences in the Case produced were read Comitted to the
Jury & are on file wth the Records of this Court the Jury brought in
their virdict they found for the plaintiff Reuersion of the former Judg-
ment & Costs of Courts thirty sixe shillings & 8^d

Rowland Coxe plaintiff Cont^a Daniel Hiskett
defend^t in an action of Appeale from the Judgment
of the County Court in octobe^r last after the Attachment Courts Judg-
ment reasons of Appeale & evidences in the Case produced were Read
Comitted to y^e Jury & are on file wth the Records of
this Court y^e Jury brought in their virdict they found
filing to pay

* Error of the record for "defendant"? † Repeated in the record. ‡ Written over "Jn^e."

§ In the papers in the case on file this name is "William Haddock." See Court Files
Suffolk, No. 2386.

¶ This space left blank in the record. By the papers on file it appears the name was Edward
Richards. See Court Files Suffolk No. 2370.

for the defend^t Confirmation of the former Judgm^t & Costs of Courts nineteen shilling & 6^d

**Norden Contra Scot-
tow** Samuel Norden plaintiff Contra Cap^t Joshua Scot-
tow defend^t in an Action of Appeale from the Judgm^{nt}
of the Comissione's Court in Boston After the At-
tachment Courts Judgment Reasons of Appeale & evidences in the
Case produced were Read Comitted to the Jury & are on file wth the
Records of this Court the Jury brought in their virdict they found for
the defend^t Confirmation of y^e form^r Judgm^t tenn pounds mony damage
& Costs of Court[s] twenty seuen shillings & 8^d

[205]

1685

**Patteshall ag^t Hes-
kett** Richard patteshall plaintiff Con^a Steven Heskett
defend^t in an action of Appeale from the Judgment of
the County Court in Boston *er* After the Attachment
Courts Judgment Reasons of Appeale & evidences in the Case produced
were read Comitted to the Jury & are on file wth the Records of this
Court the Jury brought in their virdict they found for y^e defendant
Costs of Courts ninten * || shill || & nine penc

Harrison = W^m Harrison plaintiff Contra the Courts sentenc
wch being read & the evidences in the Case produced
were read Comitted to the Jury & are on file wth the Records of this
Court the Jury brought in their virdict they found the sajd Harrison
Guilty of breach of y^e peace —

**Hundlocke Contra
Blayne & Hubbard** Edward Hunlorek || p his lawfull Attorney || p^t
Contra m^r Jn^o Hubbard merchant & John Blajne of y^e
Island of Je^sy marriner or eithe^r of them defend's
after the || Attachm^t Courts Judgment & evidences in the Case produced
wth y^e Reasons were read Comitted to the Jury & are on file with the
reccords of this Court the Bench declard they Confirmed the f^orme^r
Courts Judgm^t & Costs of Courts = †

**Greene Contra Courts
sent** Joseph Greene plaint Con^a ye County Court of
Boston^s sentence in octob^r last After the Courts sentenc
Reasons of Appeale & evidences in the Case produced

* Written over "eleven."

† See p. [206] where this record is more fully entered.

were Read the plaintiff haueing his case to be tried in open Court put it on this Issue y^t he denyes y^t he was not in the Toune at the time all wch put to the Jury they brought in their virdict they found Joseph Greene no^t Guilty =

m^r Richd wharton m^r Hezekiah Vsher Daniel
Turell Jun^r Blacksmith & John white Joyne^r plaintiffs m^r wharton c^r pl^rs
Conta Joseph Smith
ag^t Joseph Smith deffend^t in an Action of Appeale
from the Judgment of the County Court in Boston defend^t After the
Attachm^t Courts Judgment Reasons of Appeale & evidences in the Case
produced were read Comitted to the Jury & are on file wth the Reccords
of this Court the Jury brought in their virdict they found for the
deffendant Confirmation of the form^r Judgment & Costs of Courts

The plaintiff^s in open Court sajd they Atteinted the Jury whereof
Bozoone Allen was foreman & gaue in their reasons w^{ch} are on file And
sajd m^r Richard wharton m^r Hezekiah vshe^r Daniel
Turell Jun^r & John white Joyner came & Joyntly & bond for psecution
seuerally acknowledged themselues respectively bound in one hundred
& seventy pounds money to the Treasure^r of the Country for the time
being and party^s concerned that hauing Attainted the Jury whereof m^r
Bozoune Allen was foreman for error only in the Case betweene them
& Joseph Smith on the Condition that they will prosecute their Attaint
at the nex^t Court of Assistants to effect as Attests

Edw^d Rawson secre^t

[206]

1685

Samuel Nowell Esq^r plaint Conta Gyles Goddard
deffendant in an Action of Appeale from the Judgment m^r Nowell ag^t Gyles
Goddard
of the County Court in Boston octobe^r last. ¶ Giles
Godard being 3 times Called no^t Appearing his bond was dec^lrd forfeited * ¶ After the Attachment Courts Judgment Reasons of Appeale &
evidences in the Case produced were read Comitted to the Jury & are
on file wth the Records of this Court the Jury brought in their virdict
they found the defendant Guilty of defrauding sajd Nowell and
betraying his trust in not deliuering vp three trunks which were
Comitted to his trust and Care in wch were sundry Rich & choyce Goods
of diuers sorts and also Gold & Siluer for all wch doe finde for the
plaintiff one hundred & twenty pounds damag in mony & Costs of
Courts

* Written in the margin.

Francis Stepney
sent
Francis Stepney plaintiff In an action of Appeale from the sentenc & Judgment of the County Court* in Boston January last After the Courts sentenc Reasons of Appeale & evidences in the Case were read (the plaintiff being sick & not Appearing at y^e Court when Called & also y^e like Called at y^e Courts Adjournm^t 26 of march 86 Cirtifficat being Given of his Illnes & his su^{ty}s for p^osecution pr[ess]ing that they may be dischargd refusing to stand further bound nor willing to proceed, the Court declared the suertjes were dischargd & that the Judgment of the County Court ag^t s^d stepney to stand good against him

**An^r to m^r Antho
checkley^s mo[t]ion**
e^r
In Ans^r to y^e motion or peticoⁿ of m^r Anthony checkley It was voted that his fine of tenn pounds to the Country in the Case of Attaint shall be respitted till the end of the nex^t sessions of y^e Gene^l Court
past E R S

**m^s Margaret Hund-
lock Conta: m^r Jn^o
Hubbard & Jn^o
belajne. =**
m^s margaret Hundlock wife & Attorney to m^r Edward Hundlock plaint Conta m^r Jn^o Hubbard & John Belajne deffend^s in an Action of Appeale from the Judgmen^t of the County Court as to a nonsuit after the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read ~~Comitted to~~ || e^r || The magis^{ts} Confirmed the former Judgm^t of the County Court at Boston & Costs of Courts = †

Morgans Indictm^t:
James morgan being Indicted by the name of James Morgan of Boston for not hauing the feare of God before his eyes being Instigated by the diuill ffor that he not hauing the feare of God before his eyes ‡ on the tenth day of december last in the house of constante worcester widdow in Boston did about ten of the clocke that night wickedly maliciously & feloniously wound kill & murder

[207]

1685

Joseph Johnson Butcher of sajd Boston Butcher § by running a spitt into his belly a litle aboue the navell of which wound about three dayes after the sajd Johnson djed as in & by the evidences more fully

* Written over "Court of Assistants."

† See above p. [205]. There was only one case at the County Court.

‡ Repeated in the record.

§ Repeated in the record.

may Appaere Contrary to the peace of ou^r Soueraigne Lord the king his Croune and Dignity the lawe of God & of this Jurisdiction being at the Barr & holding vp his hand whiles Indicted pleaded not Guilty Referd himself for trjall to God & y^e Country hauig his optunity to object against any of the Jury wch he saw no Cause to doe only ag^t one Isayah Toy y^t had binn of y^e Jury of Inquest Ebenezar Billing was sett in his roome after the Jury had pervsed the evidences[^] brought in their virdict they found the prisoner at the barr guilty according to Indictment he was Remanded unto prison & being thenc brought to the barr y^e Go^uno^r Askt him what he had to say why sentenc of Death should not be pronounc ag^t yow = The Go^uno^r proceeded saying yow James morgan for the murther yow haue Comitted are to Goe henc to y^e place whence yow Came & from thence to the Gallowes & there be hand by y^e neck till yow be dead & y^e Lord haue mercy on you^r soule

The secretary was ordered to Issue out his warrant to the marshall Generall to take a sufficient guard wth him on the 11th Instant presently after y^e lecture & see execution of this sentence *et* wth was donn Accordingly

Mary fflood the wife of Henry fflood of Boston in the County of Suffolke in New England Cordwayner was Indicted by the name of mary fflood for that shee no^t hauing the feare of God before hir eyes & being Instigated by the diuill on the 28th day of february last early in the morning did wickedly maliciously & fæloniously kill and murder thy youngest daughter of about thirteene weekes old by giving it seuerall stroakes of thy ffist Contrary to the peace of our Soueraigne Lord the king his Croune & Dignitje the lawes of God and of this Jurisdiction holding vp hir hand at the Barr & pleaded not guilty saying she would be trjed by God & the Country hauing optunity to object ag^t any of the Jury wch she sajd shee had none. = the Case & evidences given in ag^t the prisoner at the barr was read Comitted to the Jury who after Consideration thereof they brought in their virdict they found the prisone^r at the barr no^t Guilty according to Indictment

[208]

1685

Joseph Indian of martjns vineyard[^] by the name of Joseph Indean for that he not hauing the feare of God before their* eyes and being instigated by the divill on the 12th or 13th of february last did wickedly maliciously & feloniously kill & murder his squaw or wife (she being

* So in the record.

at the watchhouse on the necke in Boston at nine of the clocke at night well and that he after that time drew her the said squaw on the ground to the lyme house a considerable distance and left hir there with seuerall mortall wounds on hir head whereof on the 15th of said february early in the morning [^] was found dead contrary to the peace of our Soueraigne Lord the king his Crowne and Dignity the laue^s of God & of this Jurisdiction the said Indian holding vp his hand at the barr pleaded to this Indictment not guilty saying he would be trjed by God and the Country : there being a Jury of one halfe English & the other halfe Indians had his libe^rty to object any [^] them being Called one by one but making no objection the euidences being Read y^t were produced ag^t him & Comitted to ^v they brought in their virdict thereupon they found him not Guilty according to Indictment but found him Guilty of vnnaturalenes and barbarous Cruelty towards his wife. = So was Remanded to prison Againe & thenc brought to the barr where & when the honno^{bl} Go^uno^r said howeuer Joseph Indean yow are cleered by the Jury, yet they found yow Guilty of cruelty to you^r wife The Court senten^u yow to be seuerely whip^t with thirty stripes and also pay forty shillings mony for y^e p^{ro}secution and that within a weeke or be sold by the Treasurer out of this Country to any of his maj^tjes plantations dischargding you^r prison ff^{ee}s =

Andrew Pittymee Indian Interpreter was sworne
4 mch 85. E R S In Court truely to Interpret what the Court declare^s
to him and also what the prisone^r at the Barr Answe^rs are to the Court =

This Court Adjourned by the Go^uno^r *er* to the 26th of Instant march the Court mett at the time 26 march 1686

[209]

1686

present
Symon Bradstreet
Esq^r Go^d
Tho Danforth Esq^r
dep^t Gou
Daniel Gookin
w^m Stoughton
Joseph dudley
Humphry Dauy
Jn^o Richards
James Russell
w^m Johnson
Jn^o Hathorne
Samuel Seawall
— — — —

Att An Adjournment of the Court of Assistants
|| & Co[uncil] || held at Boston the 26th of march 1686.

Jn^o Luggar clarke of his majtjes Custome^s by his bill of Information Given into this Court declares that the ship Elisabeth of Boston whereof Thomas Bos-singe^r was master lately Imported certeine forreigne Comoddtje viz^t wine Brandy *er* without due entry^s & cleering from England Contrary to the act of y^e fue-teenth of Charles the second *er* for which said ship ljes vnde^r seizure humbly desiring that the ||s^d || ship

& Appurtenances in all respects may receive tryall & Condemnation according to that law This Case by Consent of said partes Came to tryall And after the Court had duely perused & heard the witnesses did Judge the said ship Elisabeth with hir tackle & Appurtenances to hir belonging to be forfeited to his Maj^{ty} and according to the aboue recited law did passe sentence of Condemnation on hir accordingly

m^r Richard wharton & m^r Daniel Allen of Boston merchants by their libell exhibited to the Court & Attachment therevpon dated 12th march 8⁵ plaint^{ss} Conta w^m marshall Enock more Sarah Soley widdow
c^r = After the libell & Attachment & sumons were read_A

[Blank space.]

Att this Court Information was Given in as followeth the Hon^oble Gove^rno^r and magis^{ts} lately Assembled in the County Court at Boston doe Informe the Council now Assembled that m^r Samuell shrimpton being sumoned to Attend said Court in a Civill Case in a Proud & contemptuous manner declared himself that there was no Go^vno^r & Company of which the Go^v had a Certificat or Citation & therefore he would make no Answer to the sumons Giuen him for his Appearance & Added therevnto seuerall reviling words = The Court ordered the marshall to goe & tell m^r shrimpton that the Court would speake wth him, w^{ch} he did & returnd he was not at home Gonn to Nodles Island & said he had left Information & that they said they would send to him but he not Coming the Court Adjourned to the nex^t fifth day at three of the clocke & ordered the Secretary to lett m^r shrimpton know y^t at the time he should attend the Court p^rsently after the lecture = & warrant Issued out to y^e marshall Gen^ll for y^t end 27 of sd march & is on file

1st of april 1686 y^e Court mett at the time

y^e marshall Generall Returnd his warrant as to m^r shrimpton who Appeared & gaue in his || paper & || Answer and was = I did say there is no Gouverno^r and Company of this place in being that the Go^vno^r had a signification of the dissolution of the charter of this Colony And that I was not willing to submitt to lawes made since that day, And wha^t I said to the Go^vno^r as to wrong donn I then explained to be only in reference

present the Go^vno^r
dep^t Go^vno^r

w^m stoughton
Joseph dudley
Jn^o Richards
James Russell
Elisha Cooke
w^m Johnson
Elisha Hutchinson
Samuel Seawall =
- - - -

to an Arbitration wherein his H^{on}or was one & wthout any reflection wth respect to any Judic^{ial} Act and if any heat then expressed it was occasioned by my being called after two or three theives And as I app^hended at m^r sargeants chojce the Go^uno^r Asking him if he would then haue his Cause called saying there was but a thin Court no^t wth standing the fue senior magists of the Court were present*

[210]

1686

The Court of Assistants & Council Adjourned to the 15 of sajd Aprill at three of the clock in the Afternoone †

present
Symon Bradstreet Esq^r
Go^u
Tho Danforth Esq^r dep^t
Go^u

Daniel Gookin
Willjam stoughton
X Joseph dudley †
Humphry Davy
Jⁿo Richards
James Russell
X Sam Apleton †
Robert Pyke
Elisha Cooke
W^m Johnson
Elisha Hutchinson
Samuell Seawall
Esq^r

persons Returnd to
serve on y^e Grand
jury 17 April 86 &
sworn were =
Cap^t Pen Tounsend

2 James Hill

3 Tho Jenner

4 w^m ffoster

5 Jⁿo watson

[6] Sam Champney

7 Sam W^m seⁿ

8 Rich^d Hall

9 Clem^t maxfeild

[10] Jⁿo Richards

11 [James §] Tounsend

Joseph Child. =

persons Returnd to
serve on the Jury of
Trjalls: were =

m^r Edw^d willey

Jⁿo Atwood

Jⁿo moore

Att A Court of Assistants or Admiralty held
at Boston on the 15th of April 1686

The Court mett at the time and at the request
of m^r willjam woodrope of the Island of St Chris-
tophers now Resident in Boston A Court of Admi-
ralty is granted him against m^r John Keech of
Boston in the County of Suffolk merchant And
also Against m^r Timothy Thorneto[n] of the sajd
Boston in New England & County [^] merchant de-
fendants c^r to be held at sajd Boston on the 22th
of Instant Aprill at three of the clock in the
Afternoone = he the sajd woodrope giving in his
libell & Caution seasonably to the secretary which he
sajd woodrope did the next day being the 16th Instant
as certified at the bottome of sajd libell may Appeare

At this Adjournm^t m^r Samuel Shrimpton Ap-
peared in Court[^] an Information wch is on file & was
Read which when he had heard sajd he denjed all
that was therein and sajd he had the last time Given
in his Answer in writting the seuen se^ull evidences
sumoned appeard all but

¶ & Gaue in their
evidence^s wch were read & sworne to bef^ore him &
are on file: he sajd he would be trjed by a Jury =
which the Court Granted him & ordered the secretary
to Issue out his warrants to the seuerall Tounes for a
Grand Jury & Jury of tryalls wch was donn in vsuall

* This record appears to have been crowded into a blank space left at the bottom of the page.

† This paragraph is written at the upper left-hand corner of the page.

‡ See below, record of April 17, 1686. § Written over "Joseph." ¶ Blank space in the record.

form & are on file = And ordered m^r Shrimpton to Giue five hundred pounds bond then on the 17th Instant to Appeare & Answer what shall be then lajd to his charge & both Court & Council Adjourned to 17th Instant at 8 of the clocke in the morning.

Ephraim Sari
Nathani Cary
Edw^d wilson
francis moore
Dani Champney
Samuel Clap
w^m Ryall
Ebenezar white
Sam: Jennison

17th of April 1686 The Court mett at y^t time, the Go^vno^r & magistrates the same as Aboue except 2 wth y^s X : * warrant Issued out on y^s date to y^c m^rshall Gen[erall]

The Grand Jury brought in their Indictment. =

Wee the Grand Jury for our soueraigne Lord the king in the Massachusets Colony doe present & Indict m^r Samuell Shrimpton of Boston merchant for y^t he at the County Court sitting in Boston on the 22th of march last in a contemptuous violent & seditious manner & wth a loud voyce did in open Court say that he was brought there by m^r Sargants order & not by y^e Courts & that he denyed any such thing in being as Gouverno^r & Company of this Colony and that he stood there to Justify it & denyed their power, and they might send him to prison if they pleased wch words in the same manner he repeated ~~again~~ || ouer || & ouer againe wth diuers other seditious words & expressions as by the evidences will & may Appeare thereby defaming the Generall Court & sajd County Court & caused such a tumult in the Court as evidently tended to the high breach of his Maj^tjes Gouvernment heere & all this Contrary to the peace of our Soueraigne Lord the king his Croune & Dignitje & the laues of God & of this Jurisdiction & particularly the law title Courts Sect 6: wee find this bill & leaue it to further Tryall

Penn Tounsand foreman In the name of the rest of the Jury

It is ordered the secretary Issue out his warrant to the marshall Generall Jn^r Green to Attach the person of m^r Samuel Shrimpton & that he Giue his bond wth suertjes in a thousand pounds to Appeare

[211]

1686

before the Court on 5th day next at two of the clock to which time the Court is Adjourned & on his refusall to give bond accordingly to Co^mitt him to prison till the time of the Adjournment = m^r shrimpton Appeared not = †

* See above in the margin of record of April 15, 1686.

† See note on next page.

The Court of Assistants is Adjourn'd till y^e 22 Instant at two of y^e clock *

Att an Adjournment of the Court of Assistants || or Admiralty || held at Boston 22th of Aprill 1686

present y^e Go^{vr}
Tho Danforth Esq^r dep^t
Go^v

Dani: Gookin
w^m stoughton
|| Joseph dudley ||
Humphry Davy
James Richards
|| Samuel Nowell ||
James Russell
Robert Pike
Elisha Cooke
w^m Johnson
Elisha Hutchinson
Samuel Seawall

Esq^{rs}

Jurymen Returnd
to serve at this Court
of Assistan^{ts} or Ad-
miralty & sworne
were

— — — —
m^r Edward Willey
Jn^o Atwood
Jn^o moore
Ephraim Seril
Nathan Cary
Edward Wilson
francis moore
Daniel Champney
Samuel Clap
w^m Ryall
Ebenezer white
Samuel Jennison
— — — —

The libell presented to this Court by m^r willjam woodrope of the Island of St Xtophers now Resident in Boston & ouno^r of the sloop the Brothers Adventure together wth the Attachment bearing date the 16th Instant thereby Complayning against Jn^o keech of sajd Boston in the County of Suffolke in New England merchant for that he the sajd keech by his Attachment bearing date the first day of october last 1685 did Attach his sajd sloop Brothers Adventure to the County Court held at Cambridge the 6th day of sajd

octobe^r vnder pretence of a debt due to him from the estate of Sa[nct]jillo Heynes of sajd Island of St Xtophe^s & there recouered a Judgment & execution therevpon & thereby deteyning the same vessell as in his sajd libell more fully & largely is expressed to his the sajd woodropes great damage The Court on pervsall & on due Consideration of the evidences & pleas in the Case made & produced by both partjes wth the virdict of the Jury there vpon doe Adjudge declare & decree that the sajd sloop brothers Adventure with all hir tackling Apparrell & furniture to hir belonging as deliuered by sajd Execution to sajd keech be in all respects deliued vp to the sajd w^m woodrope, as also that the sajd Kech pay vnto him the sajd woodrope the sume of twelue pounds ten shillings mony damage & futeeten pounds money as Costs of Court in all twenty seuen pounds tenn shillings money. =

The lybell of m^r w^m woodrope of the Island of St Xtophe^s now Resident in Boston in the County of Suffolke in New England & ouno^r of the sloop brothers Adventure together with the Attachment bearing date the 16th day of this Instant Aprill thereby Complayning against m^r Tymothy Thornton of sajd Boston in the County aforesajd merchant

* The last two paragraphs appear to be crowded into the blank spaces at the bottom of p. [210] and at the top of p. [211].

¶for that he the said Thornton by his Attachment bearing date the first day of october last 1685 did Attach his said sloop Brothe's Adventure to the County Court held at Cambridge the 6th of said october vnder pretence of a debt due to him from the estate of sa[nct]jillo * Heynes of said Island of St Xtophe's & there recovered a Judgment & execution therevpon and thereby deteyning the said vessell as in his said Lybell more fully & largely is expressed to his the said woodropes great damage The Court on perversall & due Consideration of the evidences & pleas in the Case made & produced by both partjes with the virdict of the Jury therevpon doe Adjudge declare & decree that the said sloop brothe's Adventure with all hir tackling Apparrell & furniture to hir belonging as deliuered by execution to said Thornton be in all respects deliuered vp to the said w^m woodrope, as also that he the said Thornton pay vnto him the said woodrope the sume of twelue pounds tenn shillings money damage & fiuteene pounds money as Costs of Court in all twenty seven pounds tenn shillings mony : both the aboue & this decree past by the Court of Assistants or Admiralty As aforesaid

Attests

Edward Rawson Secret

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1686

The marshall Generall made returne of his warrant relating to m^r Samuel shrimpton w^{ch} is on file the Indictment was Read

m^r Samuel shrimpton Appeared at this Courts Adjournm^t as on the other side & exprest himself that he had many objections against the legality of the Indictment

[The rest of this page and pages [213], [214], and [215] are blank in the original.]

[From here to page [238] inclusive the record is in the handwriting of Isaac Addington.]

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Grand Jury Sworn.
Bernard Trott
foreman
Moses Paine

At a Court of Assistants for the Colony of the Massachusetts Bay, held at Boston the 24th. of Decemb^r. 1689. continued upon Adjournm^t. from the 3^d.

* Or Samvillo.

Thomas Harwood
Arthur Mason
John Marion Senr.
John Capen
Isaac Jones
Robert Pierpont
William Garey
Sam^l. Stone senr.
Rich^d Danie
Richard Lowden
Henry Spring
— — —

Jury of Tryals
sworn.

Elizur Holyoke
Foreman/.

Edward Thomas
Jacob Melyne
Isaia Tay
Joseph Griggs
Sam^l. Craft
James Bird
Joseph Weekes
Sam^l. Hasting
Edw^d. Winchip
W^m. Welsteed senr.
Benja. Garfield.
— — —

of September 1689./ Anno R.R.^a et Reginae Gulielmi
et Mariæ nunc Angliæ 27^a. 28^a.

Present.

Thomas Danforth Esq^r. Deputy Govern^r.

John Richards	} Esq ^{rs} .	Nathan ^l . Saltonstal	} Esq ^{rs} .
Samuel Appelton		James Russell	
William Johnson		Elisha Cooke	
Samuel Sewall		Elisha Hutchinson	
John Phillips		John Smith —	
Jeremiah Swayne			

Gibson Fawer P^l. } on Appeale from the Judgem^t. of
vers^s. } the County Court for Suffolke
George Cable Def^t. } holden at Boston 30th. July. 1689./
where he brought his suite against the said George
Cable for || deteining in his possession & refusing to
give the || Pl^t. Possession of a House Shop Ware-
house and Garden in Boston on the North side of
the drawbridge, And Judgement was given against
him for costs of Court. Both party^s
appeared by their Attourney^s. and

1 Jury

joyned issue The Jury brought in their Verdict and found for the
Appellant, y^e Reversion of the former Judgement & the Possession of
the House, Shop, warehouse and Garden sued for and costs of Courts ;
allowed Forty two shillings and two pence./ Execution issued 31^o.
Decemb^r. 1689./

Jury of Tryals
sworn./
L^t. Jonathⁿ. Rem-
ington Foreman./
Nath^l. Thayer
Samuel Lillie
Thomas Downe
W^m. Griggs
John Ruggels senr.

John Usher Esq^r. P^l. } on Appeale from the Judge-
Vers^s. } ment of the County Court for
John Frizell Def^t. } Suffolke holden at Boston 30th.
July 1689. Both party's by their Attourney^s. joyned
issue. The Jury brought in their Verdict.
1. Jury They found for the Defend^t. Confirma-
tion of the former Judgement being Twenty pounds
five shillings & eight pence money and cost of Courts

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John Watson
Joseph Leeds
Hosestall Humphry
John Simpson
Daniel Warren
John Bond

allowed ^

There being shown forth an Order from his Majesty
in Councill of the 26th. of September ult. Comāding
the Magistrates at Boston in New-England & others
whome it may concern to take notice of his Royal will

and pleasure that the Appell^t. John Usher Esq^r. be not molested in his person or Estate upon the acco^t. of his being Treasurer & Receiver General of his Ma^{ties}. Revenue in New-England until his Ma^{ties}. pleasure be be further known[^]

Jotham Grover of Boston Brasier Pl. }
vers^{us}. } on appeale
Thomas Bulkley of Boston Merch^t. Def^t. }

from the Judgement of the County Court for Suffolke holden at Boston the 30th. of July. 1689. The partys joyned issue The Jury brought in their Verdict, They found for the Def^t. Confirmation of the former Judgement being seven pounds thirteen Shillings nine pence in money and cost of Courts

2 Jury

Samuel Massey late Prison keeper of Boston Pl^t }
vers^{us}. } on appeale from the
William Robie of Boston Merch^t Def^t } Judgement of the

County Court for Suffolke holden at Boston the 30th. July. 1689. The party^s. appeared and joyned issue, The Jury brought in the Verdict. They found for the Defend^t. Confirmation of the former Judgement being Ten pounds in money || damage || and costs of Courts

2 Jury.

Hugh Stone of Andover Husbandman being Indicted by the Juro^r. for our Sovereign Lord and Lady the King and Queen, upon their oath's, for that the said Hugh Stone upon the twentyeth day of April. 1689. at Andover afores^d. did feloniously kill and murder Hannah his wife, contrary to the peace of o^r. Sovereign Lord and Lady the King and Queen their Crown and dignity, the Law's of God and this Colony. —

Upon which Indictment the aforesaid Hugh Stone being arraigned, Pleded Guilty, and was remanded back to Prison./

25th. Decemb^r.

26^o Decemb^r / the afores^d. Hugh Stone being brought to the Barr, The Court did Award that for the felony and murder aforesaid by him the said Hugh Stone committed as aforesaid, of which he hath confess himselfe guilty sentence of death be pronounced against him
= which

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was accordingly done by Thomas Danforth Esq^r. Deputy Governo^r. That is to say, That he the afores^d. Hugh Stone be carried back to the

place from whence he came and from thence to the place of Execution there to be hanged untill he be dead. — And Ordered that John Green Marshall Generall take care and see that this Sentence be duely executed upon the said Hugh Stone on Thursday y^e. second of January next ; And that the Secretary (being thereto appointed by Law) signe a warrant for the same./.

Hannah Hutchinson wife of Samuel Hutchinson
 25th. 10th/. of Andover being Indicted by the Juro^r. for our Sovereign Lord and Lady the King and Queen upon their Oath's, For that the said Hannah Hutchinson at Andover afores^d. before the felony and murder comitted by Hugh Stone of Andover afores^d. upon Hannah his late wife, That is to say, upon the nineteenth daye of April. 1689. the same Hutchinson at Andover afores^d. unto the ffelony and murder afores^d. comitted by the said Hugh Stone as afores^d. him the said Hugh Stone did feloniously and maliciously excite abett and procure e^r. prout in the Indictment [&] Upon which Indictment the said Hannah Hutchinson being arraigned, pleaded not guilty and put her selfe upon Tryal by God and the Country. The first Jury of Tryals were called whereof m^r Elizur Holioke is Foreman, and the Prisoner makeing no challenge against any of them, They were Sworn for her Tryal, and past upon her. The Jury brought in their Verdict, That is to say, That they do not find Hannah Hutchinson Guilty of the crime whereof she hath been Indicted. — The Court Ordered that the said Hannah Hutchinson be discharged upon her paying of ffees & charges.

Robin Negro Servant of Andrew Gardner of
 26th. 10th/. Muddy River being Indicted by the Juro^r. for our Sovereign Lord and Lady the King and Queen, upon their Oaths, For that the said Robin Negro at Muddy River afores^d. upon the second day of August. 1689. did slay and kill John Cheeny of Cambridge, giving him a mortall wound on the head with a stick, of which wound the said John Cheeny languished and on the sixth day of the said month of August dyed e^r prout in the Indictment. Upon which Indictment the said Robin negro being arraigned pleaded not guilty and put himselfe upon Tryal
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by God and the Country. The first Jury of Tryalls whereof m^r Elizur Holyoke is fforeman were called, and all appeared and answered save Edward Thomas, in whose roome Nathan^l. Thayer was put on, and the

prisoner making no challenge against any of them, they were sworn for his Tryal, and past upon him; The Jury brought in their Verdict That is to say, They find Robin Negro guilty of manslaughter.

m^r Edward Thomas One of the Juro^m summoned for the Tryals at this Court, makeing default in appearance when called (at the Impaneling of a Jury to pass upon Robin the Negro) was fined five shillings./

The Court Adjourned unto Tuesday the seventh day of January next at nine in the morning./

Anno R. R^a. et Reginæ Gulielmi et Mariæ ꝑ^m. Tuesday the seventh of January. 1689.

The Court met by Adjournm^t. and sat de die in diem (Except the Sabbath) untill the seventeenth of y^e same month.

Holden by Thomas Danforth Esq^r Deputy Governo^r.

James Russell	}	John Richards—	}
Samuel Appelton		William Johnson—	
John Hathorne		Esq ^m Elisha Hutchinson	
Samuel Sewall		John Phillips —	
John Smith		Jeremiah Swayne.	

Grand jury Sworn.
m^r. Bernard Trott
Foreman

Moses Paine
Tho: Harwood
Arthur Mason
John Marion Sen^r:
John Capen
Isaac Jones
Rob^t. Pierpont
William Garey
Rich^d Lowden
Henry Spring
John Alden Sen^r.
Rich^d. Buckley
Samuel Lynde
Ephraim [S]ale

8^o. Jan^{ry}.

Severall Bills of Indictment against divers prison^{rs}. for piracy and murder were comitted to the Grand jury./

9th. the Grand jury brought in their bills of Indictment & were dismist untill munday the 13th instant at one oclock./

9^o. Thomas Hawkins of Boston marrin^r being presented & Indicted by the Jurors for our Sovereign Lord and Lady the King and Queen upon their Oath's, viz^t that the s^d Thomas Hawkins upon ffriday the ninth day of August, 1689. upon the high seas that is to say, about three Leagues from halfe way Rock in y^e. massachusetts Bay upon the Katch Mary of Salem Hellen Chard master and upon the said Master and men being

= in

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Jury of Tryals
sworn.

Elizur Holyoke
Foreman

Jacob Melyne

Isaia Tay

Joseph Griggs

Samuel Craft

James Bird

Sam^l. Hasting

Joseph Weekes

Edw^d. Winchip

W^m. Welsteed Senr.

Benj^r. Garfield.

Tho: Downe

— — —

in number about five of their Maj^{ties}. Liege people, then and there in the King and Queens peace and about their lawfull Imployments being, with force and Armes an assault did make and as a Felon and Pirate with guns and Swords did Enter and the said Katch with all her appur^{ces}. and Lading of ffish being the value of sixty pounds of the goods and chattels of their Ma^{ties}. Liege people from the said Master feloniously and piratically tooke and carryed away contrary to the peace of our Sovereign Lord and Lady the King and Queen their Crown and dignity and the Laws and Statutes in that behalfe made and provided. The aforesaid Thomas Hawkins being arraigned at the Barr upon the said Indictment pleaded not guilty and put himselfe upon Tryal by God and the Country. A Jury was ca'ld and Sworn to pass upon him (Elizur Holyoke being foreman of said Jury, the Evidences, were sworn and the case comitted. The Jury gave in their Verdict, V^t. They find Thomas Hawkins Guilty of the Piracy whereof he hath been Indicted. The Court Adjudged the said Thomas Hawkins to have the Sentance of death passed upon him (which was accordingly pronounced against him by the Deputy Govern^r.) That is to say, That he said Thomas Hawkins be returned to the place from whence he came and from thence be carried to the place of Execution and there be hanged by the neck untill he be dead. The Court likewise Ordered that John Green Marshall Generall cause this Sentance to be Executed upon the said Thomas Hawkins on Munday the Twenty Seventh of this Instant January, And that the Secretary (being thereto by Law appointed) signe warrant for the same./

17^o Jan^r,

23^d.

John Newhall tertius of Lynn yeoman and Thomas Witt of the same place yeoman being presented and Indicted by the Jurors for our sovereign Lord and Lady the King and Queen upon their Oath's That is to say, That the said John Newhall tertius and Thomas Witt upon the fifteenth day of Novembe^r. 1688. in the s^d. Town of Lynn at the House of Theophilus Baily, not haveing the fear of God before their Eyes, but being led by the instigation of the devil of their malice forethought upon the body of Ralph King jun^r. of Lynn afores^d. with force and Arms a violent assault did make and with their hands Feet

and Knees did strike kick, stamp and crush the said Ralph King jun^r. thereby giving him many grievous and mortall wounds and bruises of which wounds and bruises he did grievously Languish untill the 22th day of the said November and then of the afores^d. mortall wounds and bruises dyed. And so the said John Newhall tertius and

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Thomas Witt of their malice forethought the said Ralph King junio^r. in manner and forme afores^d. did feloniously kill and murther contrary to the peace of our Sovereign Lord and Lady the King and Queen their Crown and dignity the Laws of God and this Colony. The afores^d John Newhall tertius and Thomas Witt being brought to the Barr and severally arraigned upon the afores^d. Indictment, thereto severally pleaded not guilty and put themselves upon Tryal by God and the Country The Jury was ca^ld, (m^r. Elizur Holyoke fforeman) and sworn to pass upon their Tryal, the Evidences were sworn and the case comitted. The Jury gave in their Verdict upon Each of them severally. V^t. The Jury find John Newhall tertius guilty of manslaughter. The Jury find Thomas Witt Guilty as an accessory of manslaughter. Ordered that the said John Newhall Tertius pay two third parts of the charges of prosecution amounting to the sume of Thirty six pounds nineteen shillings and ffour pence ; That the said Thomas Witt pay one third part of the charges of prosecution amounting to the sume of Eighteen pounds nine shillings and Eight pence, the whole being ffifty ffive pounds nine shillings. And that they pay their Prison charges and fees of Court and remain in custody untill this order be performed.

Thomas Pound of Boston marriner being Indicted by the Jurors for our Sovereign Lord and Lady the King and Queen upon their Oath's by three severall bills of Indictment, as followth. That is to say. 1st. That he s^d Thomas Pound upon || friday || the ninth day of August 1689 on the high sea's || vz' || about three Leagues from halfe way Rock in the Massachusetts Bay, upon the Katch Mary of Salem Hellen Chard master and upon the s^d. master and men with force and Armes an Assault did make And as a Felon and pirate wth. swords and Guns did enter, and the s^d. Katch wth her appur^{ces}. and Lading of Fish being the value of sixty pounds of the goods and Chattels of their Majesties Liege people from the said Master feloniously tooke and carried away C^{rs}. 2^d. Also that he said Thomas Pound upon the twenty seventh day of August. 1689. on the high sea's V^t. in martyns vineyard Sound, upon

the Briganteen merrimack of Newbury John Kent master an Assault did make and with force and Armes the said Briganteen did Enter and out of the said Briganteen of the goods and Chattels of their Majesties Liege People to the value of fforty pounds feloniously & piratically from

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from the s^d. John Kent did take and carry away. Ɔ^r. prout in y^e Indictm^t. 3^d. Indictm^t. That the said Thomas Pound on the fourth day of October 1689. upon the high sea's That is to say, in Martyns Vineyard Sound upon the sloop Mary of Boston then sayling under their Ma^{ties}. Colours and upon the Comāder namely Samuel Pease and Company, then and there upon their Ma^{ties}. Service, said Pound being under a Red fflagg which he in defiance of their ma^{ties}. Authority purposely put up at the head of the mast, with force and Armes an Assault did make and with Bullets which he out of small Gun's feloniously shott the body of the said Samuel Pease in severall places did strike and mortally wound, of which mortall wounds the said Samuel Pease did grievously languish untill the twelfth day of the said October and then of the said mortall wounds dyed. And so the said Thomas Pound of

Jury of Tryals
Sworn.
Elizur Holyoke
Foreman.

Isaia Tay
Joseph Griggs
Samuel Craft
James Bird
Joseph Weekes
Samuel Hasting
Edward Winchip
W^m. Welsteed Senr.
Benj^a. Garfield
Thomas Downe
Nath^l. Thayer.
— — — —

his malice forethought on the day aforesaid the said Samuel Pease in manner and forme afores^d. did feloniously kill and murther contrary to the peace of our sovereign Lord and Lady the King and Queen, their Crown and dignity, the laws of God and this Colony, —. The said Thomas Pound, being arraigned at the Barr upon Each of said Indictments severally, confes't himselfe guilty of the charge laid in his Second Indictment as afores^d. relating to the Briganteen Merimack John Kent Master, unto the other two Indictments pleaded not guilty and put himselfe on Tryal by God and the Country. The Jury were called and

Sworn, who upon a full hearing of the Evidences sworn on behalfe of their ma^{ties}. and what was said by the prison^r. in his defence, brought in their Verdicts and found the s^d. Thomas Pound guilty of the Felony

17th. Janry.

and piracy whereof he hath been Indicted; And also guilty of the felony and murder whereof he hath been Indicted. The Court adjudged the said Thomas Pound to have the sentence of death pronounced against him (which was accordingly declar^d. by the Deputy Govern^r.) That is to say, That he said Thomas Pound be returned to the place from whence he came and from thence

be carryed to the place of Execution and there be hanged by the neck untill he be dead. /

23^d. The Court likewise ordered that John Green
marshall Generall cause this sentence to be executed
upon the s^d. Thomas pound — on Munday the twenty seventh of this
instant January and that the secretary (being thereto by Law appointed ^A
signe warrant for the same.

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13^o Thomas Johnston of Boston Marrin' Indicted by
the Jurors for o^r. Sovereign Lord and Lady the King
and Queen upon their Oath's by three severall Indictments.

1st Indictm^t. That the said Thomas Johnston upon the ninth day
of August 1689 on the high Sea's that is to say, about three Leagues
from halfe way Rock in the Massachusetts Bay upon the Katch Mary
of Salem Hellen Chard master and upon the said master and men with
force and Armes an Assault did make and as a Felon and Pirate with
swords and Gun's did Enter and the said Katch with her appur^{ces}. and
Lading of Fish being the value of Sixty pounds of the goods & Chattels
of their ma^{ties}. Liege people from the said master feloniously did take
and carry away e^r^a. prout in the Indictm^t. 2^d Indictm^t. That the said
Thomas Johnston on the twenty seventh day of August 1689, upon the
high seas That is to say, in martyns Vineyard Sound upon the Brigan-
teen merrimack of Newbury John Kent master an Assault did make
and with ff^rorce and Armes did Enter and as a Felon and Pirate of the
goods and Chattels of their ma^{ties}. Leige People of the value of Forty
pounds from the said master did feloniously take and carry away e^r^a.
prout in the Indictm^t. 3^d. Indictm^t. That the said Thomas Johnston on
the fourth day of October. 1689. on the high sea's, That is to say in
martyns vineyard Sound upon the Sloop Mary of Boston then sayleing
under their ma^{ties}. Colours and upon the Commander namely Samuel Pease
and Company then and there upon their ma^{ties}. Service, said Johnston
being under a Red ff^rlagg which in defiance of their ma^{ties}. Authority was
purposly put up at the head of the mast with force and Armes an
assault did make and with bullets out of small Gun's which he felo-
niously shot, the body of the said Samuel Pease in severall places did
strike and mortally wound, of which mortall wounds the said Samuel
Pease did greivously Languish untill the twelfth day of the said October
and then of the said Mortal wounds dyed and so the said Thomas
Johns[t]on of his malice forethought on the day aforesaid in manner

and forme afores^d. did feloniously kill & murther, contrary to the peace of our Sovereign Lord and Lady the King and Queen their Crown and dignity, the Laws of God and of this Colony. The said Thomas Johnston was arraigned upon Each of said Indictments Severally and thereto pleaded not guilty and put himselfe upon Tryal by God and the Country. The Jury were called and Sworn

y^e former Jury.
Eliz^r. Holyoke
Foreman *et*^a. onely
Nath^s. Thayer
taken off and Ja-
cob Melyne put on
in his Roome.

who upon a full hearing of the evidences sworn on behalfe of their ma^{ties}. and the defence made by the Prisoner, brought in their Verdicts and found the said Thomas Johnston guilty of the severall piracys whereof he stood Indict^d. As also guilty of the Felony and Murder whereof he stood Indicted as afores^d. The Court adjudged the said Thomas Johnston

17th day

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to have the Sentance of death pronounced against || him || (which was accordingly pronounced by the Deputy Govern^r.) That is to say, That he said Thomas Johnston be returned to the place from whence he came & from thence be carryed to the place of Execution and there be hanged by the neck untill he be dead. The Court likewise ordered that John Green marshall Generall cause the afores^d. sentance to be executed upon the afores^d. Thomas Johnston on Munday the twenty seventh of January instant, And that the secretary (being thereto appointed by Law) signe warrant for the same. /

13^o

Eleazer Buck marrin^r. Indicted by the Jurors for our Sovereign Lord and Lady the King and Queen upon their Oath's by three severall Indictm^{ts} viz^t. That the said Eleazer Buck upon ffriday the ninth of August 1689 on the high sea's That is to say, about three Leagues from halfe way Rock in the Massachusetts Bay upon the Katch Mary of Salem Hellen Chard master and upon the s^d. master and men their Majesties Liege People with force and Armes an Assault did make and as a Felon and Pirate with Guns and Swords did enter and the s^d. Katch with all her appur^{tes}. and Ladeing of Fish being the value of sixty pounds of the goods and chattels of their Ma^{ties}. Liege people tooke & carryed away *et*^a. And that the said Eleazer Buck upon the twenty seventh day of August. 1689. on the high Sea's That is to say in Martin's Vineyard Sound upon the Briganteen merrimack of Newbury John Kent master an assault did make and with force and Armes did Enter and out of the said Briganteen of the goods and Chattels of their Majesties Liege People of the value of

fforty pounds from the said John Kent feloniously and piratically did take and carry away e^r.

And that the said Eleazer Buck upon the fourth day of Octob^r. 1689 on the high sea's that is to say, in Martins Vineyard Sound, being under a Red Flagg in defiance of their ma^{ties}. Authority purposely put up at the head of the mast, upon the sloop Mary of Boston then sayleing under their ma^{ties}. Colours and upon the Comānder namely Samuel Pease and Company then & there upon their ma^{ties}. service being, with force & armes an Assault did make e^r. and of his malice forethought the said Samuel Pease did feloniously kill and murder, contrary to the peace of our Sovereign Lord and Lady the King and Queen their Crowne & dignity the Laws of God and of this Colony. The said Eleazer Buck was arraigned upon Each of said Indictments severally and to the first relating to the Katch Mary of Salem, pleaded guilty, unto the other two Indictments pleaded not guilty and

Jury of Tryals
Sworn.
m^r Jon^s. Remington
Foreman
Nath^s. Thayer
Sam^l. Lillie.
w^m Griggs.
John Ruggles Sen^r.
John Watson
Joseph Leeds
Hopesill Humfrey
John Simpson
Daniel Warren
Richard Way.
John White./

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put himselfe on Tryal by God and the Country. A Jury was cal'd and Sworn, Who upon a full hearing of the Evidences sworn on behalfe of their ma^{ties}. and the defence made by the prisoner, brought in their verdicts and found the said Eleazer Buck Guilty of the Felony and piracy whereof he stands indicted. As also Guilty of the Felony and murder whereof he stands Indicted. The Court adjudged the said Eleazer Buck to have the sentence of death pronounced against him (which was accordingly pro-
17th day
nounced by the Deputy Governo^r.) That is to say, That the said Eleazer Buck be returned to the place from whence he came and from thence be carried to the place of Execution, and there be hanged by the neck untill he be dead. The Court likewise
23th. day
Ordered that John Green marshall Generall cause the afores^d. sentence to be Executed upon the said Eleazer Buck, on munday the twenty seventh of this instant January. And that the secretary (being thereto appointed by Law) Signe warrant for the same.

John Sickterdam, being Indicted by the Jurors for our Sovereign Lord and Lady the King and Queen upon their Oath's, for feloniously and piratically takeing and carrying away the Katch Mary of Salem Hellen Chard ma^r. with appur^{ces}. and Ladeing of Fish being the value

of sixty pounds of the goods and Chattels of their ma^{ties}. Leige People, upon the ninth day of August. 1689. on the high sea's viz^t. about three League's from halfeway Rock in the Massachusetts Bay. *℄*^a. And that the said John Sickterdam upon the twenty seventy day of August. 1689. on the high sea's viz^t. in Martyns Vineyard Sound, upon the Briganteen Merrimack of Newbury John Kent Master an assault did make and with force and Armes did Enter and out of the said Briganteen of the goods and Chattels of their Ma^{ties}. Liege people of the value of Forty pounds from the said John Kent feloniously and piratically did take and carry away *℄*^a.

Also that the said John Sickterdam upon the fourth day of Octob^r. 1689. on the high Sea's, that is to Say, in martyns vineyard Sound being under a Red flagg in defiance of their ma^{ties}. Authority purposely put up at the head of the mast, upon the sloop Mary of Boston then Sayling under their Ma^{ties}. Colours, and upon the Com^{and}. namely Samuel Pease then and there upon their ma^{ties}. Service being, with force and Armes an assault did make *℄*^a. and of his malice forethought the said Samuel Pease did feloniously kill and murther, contrary to the peace of our Sovereign Lord and Lady the King and Queen their Crown and dignity, the Law's of God and of this Colony. Upon which aforesaid three

Indictments the s^d. John Sickterdam being arraigned severally, thereto pleaded not guilty and put himselfe upon Tryal by God and the Country. The Jury

was

The Jury of w^{ch}.
Ellizur Holyoke is
Foreman

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was called and sworn, who upon a full hearing of the Evidences sworn on behalfe of their ma^{ties} and the defence made by the Prisoner, The Jury brought in their Verdicts. That is to say, To the first Indictm^t. about the Katch Mary, The Jury found the said John Sickterdam guilty of the Felony and piracy whereof he stood Indicted. To the second Indictm^t. relating to the Briganteen Merrimack The Jury found the said John Sickterdam guilty of the Felony and piracy whereof he stood Indicted. To the third Indictm^t. relating to the killing and murdering of Cap^{ne}. Sam^l. Pease, The Jury found said John Sickterdam guilty of the Felony and murder whereof he stands Indicted. The Court Adjudged the said John Sickterdam to have the sentence of death pronounced against him (which was accordingly pronounced by the Deputy Govern^r.) That is to say, that he said John Sickterdam be returned to the place from whence he

17th. day

came and from thence be carried to the place of Execution and there be hanged by the neck untill he be dead.

William Dun being Indicted by the Juro^r. for
our Sovereign Lord and Lady the King and Queen
upon their Oath's, That is to say, That the said William Dun upon the
27th. day of August. 1689. on the high sea's that is to say in martyn's
vineyard Sound, upon the Briganteen Merrimack of newbury John
Kent master and his Company an assault did make and with force and
Armes the said Briganteen did Enter and out of the said Briganteen
of the goods and Chattels of their ma^{ties}. Liege people to the value of
Forty pounds feloniously and piratically did take and carry away,
contrary to the peace of our Sovereign Lord and Lady the King &
Queen their Crown and dignity *et*. Upon which Indictment he was
arraigned put himselfe upon Tryal and was acquitt^d. by the Jury. 144.

William Dun being Indicted and arraigned upon two severall
Bills found against him by the Grand jury, That is to say, That the
said William Dun upon Friday the ninth of August. 1689. upon the
high Seas (that is to say) about three Leagues from halfeway Rock in
the Massachusetts Bay, then & there upon the Katch Mary of
Salem Hellen Chard master and upon the said master and men
et. with fforce and Armes an Assault did make and as a Felon
and Pirate ~~did~~ with Guns and Swords did enter *et*. and the s^d.
Katch with all her appur^{tes}. and Lading of Fish being of the value
of sixty pounds of the goods and Chattels of their Ma^{ties}. Liege
people

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did feloniously take and carry away contrary to the peace of our Sov-
ereign Lord and Lady the King and Queen their Crown and dignity
and the Law *et*./. The other Bill or Indictm^t. That the said William
Dun on the fourth day of October. 1689. upon the high sea's That is to
say in martins Vineyard Sound near Tarpolin Cove upon the Sloop
Mary of Boston then Sayling under their Ma^{ties}. Colours & upon the
Comānder namely Samuel Pease and Company being in number about
twenty of their Ma^{ties}. Liege People then & there upon their Ma^{ties}.
service being *et*. with force and Armes an Assault did make, and with
bullets which he out of small Guns feloniously shot, the body of the
said Samuel Pease in severall places did strike and mortally wound of
which mortall wounds he did grievously Languish untill the twelfth
day of the said Octob^r. and then of the s^d. mortal wounds dyed. And

so the Juro^r. upon their oath's do say that the said William Dun upon the high seas afores^d. the day & year afores^d. of his malice forethought the said Samuel Pease in manner and forme afores^d. did feloniously kill and murther contrary to the peace of our Sovereign Lord & Lady the King and Queen their Crown and dignity and the Laws of God and this Colony. Upon which afores^d. two severall Indictments the said Will-

iam Dun was severally arraigned and to Each of them
17th day pleaded Guilty. The Court Adjudged the said William Dun to have the sentance of death pronounced against him (w^{ch}. was accordingly pronounced by the Deputy Governo^r.) That is to say That he said William Dun be returned to the place from whence he came and from thence be carryed to the place of Execution and there be hanged by the neck untill he be dead./.

144. Richard Griffin of Boston Gun Smith being arraigned upon a Bill found against him by the Grand jury, That is to say, that the said Richard Griffin upon the fourth day of October 1689. upon the high seas, that is to say, in Martyns Vineyard Sound near Tarpolin Cove upon the Sloop Mary of Boston then Sayling under their Ma^{ties}. Colours and upon the Comander namely Samuel Pease & Company being in number about twenty of their Ma^{ties}. Liege people then and their upon their Ma^{ties}. Service being ൨^a. with force and armes an Assault did make and with Bullets which he out of small Guns feloniously Shot, the body of s^d. Samuel Pease did strike in severall places and mortally wound, of which mortal wounds the said Samuel Pease did grievously Languish untill the twelfth day of the said October and then of the said mortal wounds dyed, And so the Jurors upon their Oath's do say that the said [228]

Richard Griffin upon the high Seas aforesaid the day and year aforesaid of his malice forethought the said Samuel Pease did feloniously kill and murther contrary to the Peace of our Sovereign Lord and Lady the King and Queen their Crown and dignity and the Laws of God and this Colony. The said Richard Griffin pleaded not Guilty and put himselfe upon Tryal by God and the Country. The Jury found said Richard Griffin guilty of the Felony and Murder whereof he stands Indicted./.

The Jury whereof
Elizur Holyoke is
Foreman }

144. Richard Griffin being arraigned upon a Bill found against him by the Grand jury, That is to say, that

the said Richard Griffin upon Friday the ninth day of August. 1689. upon the high Sea's that is to say, about three Leagues from halfe way Rock in the Massachusetts Bay, then and there upon y^e Katch Mary of Salem Hellen Chard Master and upon the said Mast^r. and men 9^r. with force and Arme's an Assault did make and as a Felon and Pirate with Guns and Swords did Enter and the said Katch with all her appur^{ces}. and Lading of Fish being the value of sixty pounds of the goods and Chattels of their Ma^{ties}. Leige People from the said master feloniously and piratically did take and carry away 9^r.

The said Richard Griffin pleaded not Guilty and put himselfe upon Tryal by God and the Country, And upon what himselfe confest on his Tryal without farther Evidence The Jury found said Richard Griffin Guilty of the Felony and piracy whereof he stands Indicted. The Court Adjudg^d. said Richard Griffin

17th day

to have the sentance of death pronounc^d. against him (which was accordingly pronounced by the Deputy Governo^r.) That is to say, That he said Richard Griffin be returned to the place from whence he came and from thence be carried to the place of Execution and there be hanged by the neck untill he be dead./.

Edward Browne being Indicted arraigned and tried for feloniously killing and murthering of Cap^{ne}. Samuel Pease, as is laid in said Indictment, said Edward Browne pleading not guilty, And William Warren and Samuel Watts witnessing for him that he was detained on board the vessell as a Prisoner and a force put upon him; The Jury brought in their verdict That Edward Browne is not guilty: whereupon he was Acquitted _Δ of his Imprisonment./.

144

The Jury whereof
Jon^s. Remington
is Foreman — }

Benjamin Gallop, Abraham Adams jun^r. and Colburn Turell [229] making default in attending the Court to give Evidence for their Ma^{ties}. against Richard Griffin and others then to come to their Tryal were Fined Ten shillings apeice. Afterwards upon hearing their Excuse the Court remitted the Fine./.

Daniel Lander being arraigned upon a Bill found against him by the Grand-jury That is to say, That the said Daniel Lander upon Friday the ninth day of Aug^t. 1689. upon the high Sea's, That is to say about three Leagues from halfeway Rock

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in the Massachusetts Bay, then and there upon the Katch Mary of Salem Hellen Chard Master and upon the said Master and men *et al.* with force and Armes an Assault did make and as a Felon and Pirate with Swords & Guns did Enter *et al.* And the s^d. Katch with all her appur^{ces}. and Ladeing of Fish being of the value of sixty pounds of the goods and Chattels of their Ma^{ties}. Liege People from the said master feloniously and piratically tooke and carryed away, contrary to the peace of our Sovereign Lord and Lady the King and Queen their Crown and dignity and the Laws *et al.* The said Daniel Lander to this Indictment pleaded not guilty and put himselfe upon Tryal by God and the Country. The Jury found said Daniel Lander guilty of the Felony and piracy whereof he stands Indicted./.

Daniel Lander being arraigned upon a Bill found against him by the Grandjury, That is to say, That the said Daniel Daniel * Lander upon the fourth day of October. 1689. upon the high Sea's That is to say, in martins vineyard Sound near Tarpolin Cove, upon the Sloop Mary of Boston then Sayleing under their Ma^{ties}. Colours, and upon the Comander namely Samuel Pease and Company being in number about twenty of their Ma^{ties}. Liege People then and there upon their Ma^{ties}. Service *et al.* with force & Armes an Assault did make and with Bullets which he out of small Guns feloniously shot the body of the said Samuel Pease in several places did strike and mortally wound, of which mortal wounds the s^d. Samuel Pease did grievously Languish untill the twelfth day of the said October and then of the said mortal wounds dyed. And so the Juro^{rs}. upon their Oath's do say that the said Daniel Lander upon the high seas afores^d. on the day and year afores^d. of his malice forethought the said Samuel Pease in manner and forme afores^d. did feloniously kill and murther contrary to the Peace of our Sovereign Lord and Lady the King and Queen their Crown and dignity the Law's of God and this Colony. To this Indictment he pleaded not guilty and put himselfe upon Tryal by God and the Country : The Jury found s^d. Daniel Lander guilty of the Felony and murder whereof he stands Indicted. The Court Adjudged the said Daniel Lander to have the sentence of death pronounced against him, (which was pronounced accordingly by the Deputy Governo^r.) That is to say, That he said Daniel Lander be returned to the

The Jury whereof
m^r Elizur Hol-
yoke is Foreman }

17th. day

* Repeated in the record.

place from whence he came and from thence be carryed to the place of Execution and there be hanged by the neck untill he be dead.

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William Warren being arraigned upon a Bill found against him by the Grand Jury That is to say, That the said William Warren upon Friday the ninth day of August. 1689. upon the high seas about three Leagues from halfeway Rock in the Massachusetts Bay, then and there upon the Katch Mary of Salem Hellen Chard Master and upon the said Master and men *et al.* with force and Armes an Assault did make and as a Felon and Pirate with Guns and swords did Enter *et al.* and the said Katch, with all her appur^{tes}. and Ladeing of Fish being the value of sixty pounds of the goods and Chattels of their Ma^{ties}. Liege People from the said Master did feloniously and piratically take and carry away, contrary to the Peace of our Sovereign Lord and Lady the King and Queen their Crown and dignity and the Laws *et al.* To this Indictment he pleaded not guilty and put himselfe upon Tryal by God and the Country, The Jury found said William Warren Guilty of the Felony and Piracy whereof he stands Indicted.

154.

The Jury whereof
mr. Jon^s. Reming-
ton is Foreman — }

William Warren being arraigned upon a Bill found against him by the Grand jury, That is to say, That the said William Warren upon the fourth day of October. 1689. upon the high Seas, that is to say in Martyns Vineyard Sound near Tarpolin Cove upon the sloop Mary of Boston then Sayling under their Ma^{ties}. Colours and upon the Com^{mander} namely Samuel Pease and Company being in number about twenty of their Ma^{ties}. Liege People then and there upon their Ma^{ties}. service being, said William Warren under a Red Flag which in defiance of their Ma^{ties}. Authority was purposely put up at the head of the mast with force and Armes an Assault did make, and with Bulletts which he out of small Guns feloniously shot, the body of the said Samuel Pease in Severall places did strike and mortally wound, of which mortall wounds the said Samuel Pease did grievously Languish untill the twelfth day of the said October and then of the said Mortall wounds dyed; And so the Juro^r. upon their Oath's do say That the said William Warren upon the high seas afores^d. on the day and year afores^d. of his malice forethought the said Samuel Pease in manner and forme aforesaid did feloniously kill and murther contrary to the peace of our Sovereign Lord and Lady the King and Queen their Crown and dignity & the Laws of God and this Colony. To this

same Jury

Indictment he pleaded not guilty and put himselfe upon Tryal by God
 17th. day and the Country. The Jury found him guilty of the
 Felony and Murder whereof he stands Indicted. The
 Court Adjudged said William Warren to have the sentence of death
 pronounced against him (which was accordingly pronounced by the
 Deputy Governo^r.) that is to say, That he said William Warren be re-
 turned to the place from whence he came and from thence be carried
 to the place of Execution and there be hanged by the neck untill
 he be dead.

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Samuel Watts being arraigned upon a Bill found against him by
 the Grand jury for Felony and piracy in takeing and carrying away
 the Katch Mary of Salem Hellen Chard Master with her appur^{ces}. and
 Ladeing of Fish e^r.
 pleaded not guilty and put himselfe upon Tryal by God and the
 Country, And was acquitted by the Jury of the charge laid against
 him./.

Samuel Watts being arraigned upon a Bill found against him by
 the Grand jury That is to say, That the said Samuel Watts upon the
 fourth day of October 1689, upon the high Seas, that is to say in mar-
 tins vineyard Sound near Tarpolin Cove upon the sloop Mary of Boston
 then sayling under their Ma^{ties}. Colours & upon the Comāder namely
 Samuel Pease and Company being in number about twenty of their
 Ma^{ties}. Liege people then and there upon their Ma^{ties}. Service s^d. Watts
 being under a Red Flagg, which in defiance of their Ma^{ties}. Authority
 was purposely put up at the head of the mast, with force and Armes
 an Assault did make and with Bullets which he out of small Guns
 feloniously shot; the body of the said Samuel Pease in severall places
 did strike and mortally wound, of which mortall wounds the said
 Samuel Pease did grievously Languish untill the twelfth day of the
 said October and then of the said mortall wounds dyed. And so the
 Juro^{rs}. upon their Oath's do say that the said Samuel Watts upon
 the high Seas afores^d. on the day and year afores^d. of his malice fore-
 thought the said Samuel Pease in manner and forme aforesaid did
 feloniously kill and murther contrary to the peace of our Sovereign
 Lord and Lady the King and Queen their Crown and dignity and the
 Laws of God and this Colony.

To this Indictment he pleaded not guilty and put himselfe upon

Tryal by God and the Country. The Jury found said Samuel Watts guilty of the Felony and Murder whereof he stands Indicted. The Court Adjudgeth said Samuel Watts to have the sentence of death pronounced against him (which was accordingly pronounced by the Deputy Governo^r.) That is to say, That he said Samuel Watts be returned to the place from whence he came and from thence be carryed to the place of Execution and there be hanged by the neck untill he be dead./.

The Jury whereof
mr. Elizur Hol-
yoke is Foreman
— — — —

17th day

William Coward, Peleg Heath, Thomas Storey and Christopher Knight marrin^g. being Indicted and a Bill found against them by the Grand jury. That is to say That the said William Coward, Peleg Heath, Thomas Storey and Christopher Knight upon the one and twentyeth day of Novemb^r. 1689. in the first year of their Ma^{ties}. Reign in the Evening of that day in nantasket Road in the Massachusetts Bay then and there upon the Katch Elinor of Boston W^m Shortriggs master then at an Anchor in the said Road Lying & being, and upon part of the s^d. Katches seamen or Company and passengers to the number of seven of their Ma^{ties}. Liege people then on board the said Katch in the King and Queens peace being a violent Assault did make and with force and Armes that is to say, with Swords and Guns as Pirates and Felons did Enter. And the said Seamen or Company and passengers in great fear of Body put, and the said Katch [232]

15th & 16th days. of
Janry. present also
mr. Jon^s. Corwin

with all her appur^{ces}. together with severall Cloth's of the Masters and Seamen And severall goods and money belonging to his Ma^{ties}. Liege people to the value of Two hundred pounds did from the said Seamen and passengers feloniously and piratically take and carry away, contrary to the peace of our sovereign Lord and Lady the King and Queen their Crown and dignity, the Laws & Statutes in that behalfe made and provided. Upon which Indictment the within named Peleg Heath, Thomas Storey and Christopher Knight were Severally arraigned tryed and by the Jury found guilty of the Felony & Piracy whereof they stand Indicted — The within named William Coward refusing to hold up his hand or plead to the Indictment was remanded back to Prison. The next day said William Coward was

Jury of Tryals
sworn
Jonathⁿ. Remington
Foreman
Nath^l. Thayer
William Griggs
John Ruggles Senr.
John Watson
Joseph Leeds
Hopestill Humfrey
John Simpson
Daniel Warren
Richard Way
John White
John Waite
— — — —

16th./

again sent for and set to the Barr who still refusing to hold up his hand or plead to the Indictm^t. the Jury were called and he makeing no challenge, were sworn, The Indictment was read and the Evidences for their Ma^{ties}. called and Sworn, and the prisoner allowed to speake for himselfe. The Jury found the said William Coward guilty of the Felony and Piracy whereof he stands Indicted./. The Court Adjudged the said Peleg Heath, Thomas Storey, Christopher Knight and William Coward to have the sentence of death pronounced against them. That is to say, That the said William Coward be returned to the place from whence he came and from thence be carried to the place of Execution and there be hanged by the neck untill he be dead./. That the said Peleg Heath be returned to the place from whence he came and from thence be carried to the place of Execution and there be hanged by the neck untill he be dead. That the said Thomas Storey

The sentence declared unto Each of the s^d. persons severally by the Deputy Govern^r. }

be returned to the place from whence he came and from thence be carried to the place of Execution and there be hanged by the neck untill he be dead./. That the said Christopher Knight be returned to the place from whence he came and from thence be carried to the place of Execution and there be hanged by the neck untill he be dead./. The Court likewise ordered that John Green Marshall

23^d. day Jan^y.

Generall cause this sentence to be Executed upon the said William Coward on Munday the twenty seventh of January instant And that the Secretary (being thereto appointed by Law) signe warrant for the same.

The Court Adjudged and ordered that the severall persons hereafter named tryed at this Court for their lives, That is to say Thomas Hawkins found guilty of Piracy, Thomas Pound, Thomas Johnston, Eleazer Buck John Sickterdam William Dun Richard Griffin, Daniel Lander and William Warren severally found guilty of ffelony Piracy and Murder, Samuel Watts found guilty of murder. William Coward, Peleg Heath, Thomas Storey and Christopher Knight severally found guilty of Felony and Piracy ha[ve]

17th January 1689
Present
Tho. Danforth Esq^r.
Dept. Govr.
John Richards
James Russell
Sam^l. Appellton
W^m. Johnson
John Hathorne
Elisba Hutchinson

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John Smith
Jonath^a Corwin
John Phillips
Jeremiah Swayne
— — —

the Sentance of death pronounced against Each and every of them (That is to say) to be returned to the place from whence they came and from thence be carried to the place of Execution and there be hanged

by the neck untill they be dead. — which Sentence was pronounced against Each of the said persons severally by the Depty. Governo^r. They being brought and Set to the Barr.

John Newhall Tertius of Lyn found guilty of Man Slaughter, is Ordered to pay two third parts of charges Post Meridlem of prosecution, prison charges and Fees, amounting to Thirty six pounds nineteen Shillings and four pence (the whole being fifty five pounds Ten shillings) and to remain in custody untill he performe it.

Thomas Witt of Lynn found guilty as accessory of Man Slaughter is ordered to pay one third part of the charges of prosecution prison charges and Fees. amounting to Eighteen pounds nine Shillings & Eight pence (the whole being fifty five pounds Ten shillings) and to remain in custody untill he performe it./.

Robin Negro found guilty of Man Slaughter, is Ordered to pay the charges of prosecution prison charges and Fees and to remain in custody untill he performe it./.

Adjourned to Munday the 20th of January instant 1689 at one a clock and then met.

Present Thomas Danforth Esq^r. Dep^t. Gov^r.

Wait Winthrop	John Richards
James Russell	William Johnson
Elisha Cooke	Esq ^s Samuel Shrimpton
Elisha Hutchinson	Es ^q 's Samuel Sewall.
John Phillips.	

William Neffe being imprisoned upon an accusation for deserting their Ma^{ties}. Garrison at Falmouth where he was posted a private Centinel and confederating with Thomas Pound Thomas Hawkins ^{es^a}. in their piracy, said Neffe appearing in Court and it being certified that he was enticed and deluded away from the Garrison by his Corporal And that he tooke the first Opportunity to leave the pirates, Escaping from them and applyed himselfe to the next Magistrate. The Court discharged him He paying for a Gun which he had of the Country^a. store and saith he disposed of for his Support./.

Adjourned to Thursday 23th. of January instant at nine in the morning and then met./.

Present. Thomas Danforth Esq^r. Dep^{ty}. Govern^r.

Wait Winthrop	John Richards	
Sam ^l . Shrimpton	William Johnson	Esq ^s .
Sam ^l . Sewall	Esq ^s	Elisha Hutchinson
John Smith		John Phillips
Jon ^s . Corwin		

Ordered that Thomas Pound, Thomas Hawkins, Thomas Johnston William Coward and Eleazer Buck ffive of the condemned prison^{rs}. sentenced to be hanged, be Executed on Munday next the twenty

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seventh of January instant, notice thereof to be forthwith given them by the Marshall; And that John Green Marshall Generall cause the Sentence of this Court pronounced against them to be Executed upon them and every of them on Munday the said 27th. instant. And the Secretary (being thereto appointed by Law) to signe warrant for the same./.

The Court dismiss.

[*The rest of this page is blank.*]

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Anno R : R^s. et Reginæ Gulielmi et Mariæ Secundo./
Massachusetts s^s./.

At a Court of Assistants held at Boston, April. 8th. 1690. being adjourned from the fourth day of March last past. —

Present./ Thomas Danforth Esq^r. Dep^t. Gov^r.

John Richards	} Assist ^{ts} .	Wait Winthrop	} Assist./ ^s
James Russell		William Johnson	
Elisha Hutchinson		Samuel Sewall	
John Phillips			

Jury of Trials or	Sarah Fowler of Boston Wine	} On appeale from the Judgment of the County Court Sitting in Boston 19 ^s . No-
Pettit Jury = Sworn	Retailer. P th . . .	
Cap ^{ns} . W ^m . Green-	vers	
oug[h]		
Sam ^l . Marshall	Thomas Clarke of Boston	
John Dyer	Pewterer Def ^t .	
Abrah ^m . Blish		

vemb^r. 1689. The Reasons of Appeale Answers and Evidences in the case were read and comitted to the Jury; The Jury found for the Defend^t. Confirmation of former Judgement, That is to say, Twenty ffour pounds in money damage and costs of Courts. Allowed Two pounds thirteen Shillings and four pence./. Execution issued 5^o. May. 1690./.

2^d. Jury.

Isa^c. Newell Senr.
Moses Draper
Tho^s. Lord Senr.
Isaac Fowle
Sam^l. Buck
John Capen
Joseph Russe[ll]
Noah Bema[n]
— — — —

Edmund Perkins of Boston

Shipwright P^t.

Vers.

John Winslow of Boston

Merch^t. Def^t.

} On appeale from the
Judgement of the
County Court sitting
in Boston ffbruary

25^o. 1689. where the P^t. Sued the said Winslow for unloseing and takeing away a certain Boat of the pl^u. with the Oares, and not returning and delivering said Boat to the pl^t. to the damage of ffifteen pounds 9^s. according to attachm^t. And was cast to pay costs of Court. The Reasons of Appeale Answers and Evidences in the case produced were read and comitted to the Jury, The Jury found for the P^t. Reversion of the former Judgement, and that John Winslow deliver to Edmund Perkins the Boat in controversy in as good repair as she was when he tooke her away, with twenty Shillings damage and costs of Courts, allowed Thirty Eight shillings and two pence./.

1^d. Jury

Petit Jury = Sworn
Mr. David Jeffr[y]
Timothy Clar[k]
W^m. Phillips
Jacob Mel[yn]
Tho^s. Carter
Sam^l. Marshall
Zech^s. Johnson
John Skeat[s]
John Grosven[or]
John Holbroo[k]
Stephen Wat[]
Sam^l. Hix
— — — —
John Keech was put
on y^e Jury in roome
of Tim^s. Clarke
[who is]

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Willaim Arbuckle Merch^t. P^t. (on appeale from the Judgement of the County Court sitting in Boston.

25^o February ult.) vers. Robert Bronsdon Adm^r. to the Estate of Edward Bricknall late of Boston marin^r. dece^d. Defend^t. where the said Bronsdon recovered Judgem^t. against said Arbuckle for Five hundred pound's Sterling money of England Penalty of the Charter party and costs of Court.

The Jury finde for the P^t. Reversion of the former Judgement and costs of Courts./.

2^d Jury./.

Arbuckle
vers.
Bronsdon.

**Balek
vers.
Bronsdon e^{rs}.** William Black marrin^r. master of the Pinke Mary P^t. (on Appeale from the Judgement of the County Court sitting in Boston 25^o. February ult.) vers. Robert Bronsdon Merch^t. and Isaac Greenwood marrin^r. Def^{ts}. which Judgement was for the Def^{ts}. costs of Court.

2^d Jury. The Jury find for the Def^{ts}. costs of Courts.

**Black
vers.
Bronsdon e^{rs}.** William Black P^t. (on appeale from the Judgement of the County Court sitting in Boston 25^o. February ult.) vers. Pinke Mary, Robert Bronsdon and Isaac Greenwood Owners Def^{ts}. which Judgem^t. was for the P^t. viz^t. Twenty eight pounds one shilling in money and costs

of Court. The Jury finde for the Def^{ts}. *
2^d Jury. Reversion of the former Judgem^t and costs of Courts.

**Black
vers.
Bronsdon./.** William Black P^t. vers. Robert Bronsdon Def^t. on appeale from the Judgem^t. of the County Court sitting in Boston 25^o. February ult. which is for the Def^t. costs of Court.

The Jury find for the Def^t. costs of Courts.
2^d Jury.

**Foxcroft
vers.
Eyres./.** Charles Lidgett and Francis Foxcroft Execto^{rs}. to Anthony Heywood. P^{ts}. vers. Thomas Eyres Def^t. on Appeale from the Judgement of the County Court in Boston. 25^o Feb^{ry}. ult. where the said Eyres recovered costs of Court. The Jury finde for the Def^t. costs of Courts.
14. Jury

**Robineau
vers.
Assailley.** Stephen Robineau Marrin^r. Master of the Katch Amitie P^t. vers. Peter Assailly jun^r. Merch^t. Def^t. on appeale from the Judgement of the County Court sitting in Boston 25^o Feb^{ry}. ult. viz^t. Thirty pounds and costs of Courts recovered by the

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14 Jury said Assailly ag^t. him said Robineau. The Jury find for the P^t. Reversion of the former Judgement and costs of Courts.

* In this case and some others the original title of the case in the County Court is retained.

Elisha Hutchinson and Penn Townsend P^{ls}. vers. Gyles Fyfield and Timothy Clarke Def^{ts}. on appeale from the Judgem^t. of the County Court Sitting in Boston 19°. Novemb^r. 1689. for costs of Court recovered by the said Fyfield and Clarke.

Hutchinson c^{rs}
vers.
Fyfield c^{rs}
24 Jury.
Ex^{co} issued
March
25.91

The Jury find for the Def^{ts}. costs of Courts, allow^d. Thirty Six shillings.

Susanna Walker P^t. vers. Hezekiah Usher Def^t. on appeale from the Judgement of the County Court sitting in Boston. 25°. February ult. where said Hezekiah Usher recovered of the s^d. Susanna Walker Judgement for Forty five pounds six shillings and four pence in money and costs of Court. The Jury find for the Def^t. Confirmation of the former Judgement and costs of Courts.

Walker
vers.
Usher
14 Jury

David Waterhouse of Boston Merch^t. P^t. vers. Seth Perry Def^t on appeale from the Judgement of the County Court Sitting in Boston 19°. Novemb^r. 1689. where said Perry recovered Ten pounds in money damage and costs of Court against the said Waterhouse. The Jury finde for the P^t. Reversion of the former Judgement and costs of Courts

Waterhouse
vers.
Perry.
14 Jury.

George Mountjoy of Boston Marrin^t. P^t. vers. Samuel Hemlock of Boston Marrin^t. Def^t. on appeale from the Judgem^t. of the County Court sitting in Boston 25° February ult. which Judgement was for the said Hemlock ag^t. said Mountjoy for Forty pounds in money damage and costs of Court.

Mountjoy
vers.
Hemlock
14 Jury

The Jury [^] for the Def^t. confirmation of the former Judgem^t. That is to say Forty pounds in money damage and costs of Courts. allowed Three pounds six shillings and sixpence.

Execution issued
8°. May 1690

Samuel Banks of Yorke P^t. vers. John Child of Boston Taylor Def^t. on Appeale from the Judgement of the County Court Sitting in Boston. 19°. Novemb^r. 1689. where said Child recovered Judgem^t. for Ten pounds four Shillings in money & costs of Court. The Jury find for the Def^t. Confirmation of the former Judgement, That is

Banks
vers.
Child.
Execution issued
25°. April. 1690.

to Say, Ten pounds four shillings in money and costs of Courts, allow^d.
Twenty Eight Shillings. 6^d.

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Brentnal
vers.
Hamlin
2^d Jury.

Thomas Brentnal formerly of Rumney Marish
now of Wadeing River P^t. vers. Thomas Hamlin and
Esther his wife late widow and Adm^r. to the Estate of
Thomas Platts late of Boston dece^d. Def^t. on Appeale
from the Judgem^t. of the County Court sitting in Boston. 19^o. No-
vemb^r. 1689. where the said Hamlin recovered Judge-
ment for One hundred twenty ffive pounds in money
according to Agreement and Costs of Court. The
Jury find for the Def^t. Confirmation of former Judgem^t, That is to
say, one hundred Twenty ffive pounds in money according to Agree-
ment and costs of Courts allowed Thirty ffour Shillings Sixpence.

Execution issued
28^d April. 1690./

English
vers.
Stebbins
2^d Jury.

Phillip English of Salem P^t. vers. Rebecca Steb-
bins of Boston widow Def^t. on Appeale from the
Judgem^t. of the County Court sitting in Boston 19^o.
Novemb^r. 1689. where the said Rebecca Stebbins re-
covered Judgen^t. against the said Phillip English viz^t. for the delivery
of the Boat and appurtenances sued for, at Salem within Ten dayes
next, and three pounds in money damage and costs of Court; Or in
default thereof Twenty pounds in money and costs of Court. The
Jury find for the Def^t. Confirmation of former Judgement and costs of
Courts, allowed.

April 10th. 1690.

present, also
Rob^t. Pike
John Hathorne
Jonathⁿ. Corwin

Upon reading the Petition of Phillip Goss mar-
rin^r. Setting forth that Hannah his wife is married
to one at Jamaica with whome she now lives and by
him hath had a Child. And produceing a Certificate
from the Clerke of the Parish of the said Hannah^e. being married to
one John Morrey, besides severall Evidences thereof, Praying for a
divorce. Ordered that the said Phillip Goss be and hereby is divorced
from the said Hannah and discharged from all conjugal duty and Obl-
igation unto her for maintenance or Dowry.

The Court dismist./

[From here the record appears to be in the handwriting of Joseph Webb, who was Clerk of the Suffolk County Court, and seems to have acted as Secretary for the Court of Assistants, Addington having become an Assistant as appears by the record.]

[239]

Anno R R^a et Reginae Gulielmi et Mariae Angliæ &c. Tertio
Massachusetts ss /

At a Court of Assistants holden at Boston Septem^r. 2, 1690.

Present

The Hon^{ble}. Simon Bradstreet Esq^r Govern^r.

Thomas Danforth Esq^r. deputy Govern^r.

Maj ^r . Gen ^l . Wayt Winthrop	} Assist ^{ts}	James Russell	} Assist ^{ts} .
William Johnson		Samuel Sewall	
Elisha Hutchinson		Isaac Addington	
John Phillips			

PETER DE VAULX of Boston Merch^t. Pl^t.

vers.

ROBERT SHELSTON of Boston Labourer def^t.

} on Appeale from the
Judgem^t. of y^e County
Court held in Boston

Aug^o. 12th. on Adjournm^t. from 29 July 1690, for assaulting & beating
y^e s^d De Vaulx, where s^d De Vaulx was cast, costs of Court. The
Attachm^t. Courts Judgem^t. & Reasons & Evidences in the case being
read were comitted to the Jury, who returned with their Verdict viz^t.
They found for the Appel^t. Reversion of the former Judgem^t. and five
shillings in money damage and five shillings costs.

ROBERT SWAN sen^r. of Haverhil Pl^t.

vers.

SIMON WAINWRIGHT Attorney of Fr.

Wainwright def^t.

} On appeale from the County
Court of Salem the last tues-
day in June 1690 where the
s^d. Wainwright recovered

Judgem^t. for eighty five pounds nineteen shillings & eleven pence in
wheat, Rye, corne porke or merchantable fatt beeфе hides tallow at
2^d p li according to accomp^t. & costs of Court. The Parties joyned
issue.

The Attachm^t. Courts Judgem^t. Reasons of Appeale & Evidences
in y^e Case being read were committed to the Jury and are on file The

Jury returned their verdict they found for the defend^t. confirmation of former Judgem^t. and costs of Courts. /

[*Blank.*]

John Crode of Salem Ex^r. of the last will and testam^t of m^s Elizabeth Price, [Pl^t] vers. Capt Jn^o. Price Surviving Ex^r. of Cap^t. Walter Price defendt. On Appeale from Salem Court the last tuesday in June 1690 according to Attachm^t. dated 5th. June 1690 where s^d Croad recovered Judgem^t. viz^t. the Estate in controversy according to the will of m^s Eliz^a. Price &c and costs of Court The Attachm^t. Courts Judgem^t. Reasons of Appeale & evidences being read were comitted to y^e Jury, The Jury returned their verdict viz^t. They found for the defend^t. Reversion of the former Verdict & costs of Courts.

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JOHN PYNCHON of Boston merch^t Pl^t.

vers.

JOHN FORSTER & DAVID WATERHOUSE
merch^{ts}. def^{ts}.

} On Appeale from the Judgem^t
of the County Court holden
in Boston Aug^o. 12th. on Adjournm^t. from 29. July 1690, where the s^d John Foster & David Waterhouse recovered Judgem^t. Possession of the Messuage or Tenem^t || &c || sued for in the Attachm^t. & costs of Court. The Reasons of Appeale, answers and Evidences in the Case being read were comitted to y^e Jury. The Jury returned wth. their Verdict viz^t. They find for the Pl^t. Reversion of the former Judgem^t. and costs of Courts./

THOMAS FOSKET of Charlestowne Pl^t. }

vers.

HANNAH FOSKETT widow defend^t.

The Pl^t. was non-suited not giving in his Reasons in time according to Law

VINCENT STILSON of Marblehead Pl^t. . . }

vers.

CAP^t. NATH^l. NORDEN &c Selectmen of Marblehead def^{ts}.

} On Appeale
from the
Judgm^t. of
Salem Court 24th. of June 1690, where s^d Cap^t. Norden &c recovered

NATHANIEL GOOKIN &	* his wife Pl ^u	} The Pl ^u nonsuited not giving in the Reasons in time according to Law.
vers.		
EPHRAIM SAVAGE &c. . . . defend ^u .		

MARY SAVAGE Spinster Pl ^t .	}	The Pl ^t was nonsuited not giving in her Reasons in time according to Law./
vers. EPHRAIM SAVAGE &c ^t . defend ^t		

JOSEPH LAMPSON Constable of Maldon pl't.
vers.
CAP^t. WILLIAM GREEN defend't.

} On appeal from the
Judgem^t. of Charles-
towne Court July 1°.

1690 on adjournm^t. where s^d. Cap^t. Green recovered Judgem^t. for a staff or paire of Colo^r.s to be returned to him as when taken away or six pounds in money & Costs of Court. The Reasons of Appeale & Evidences in the case being read and comitted to the Jury, The Jury returned their verdict viz^t They find for the defend^t. the Colours in Controversy or three pounds ten shillings in money & costs of Courts.

Lampson
vers.
Green
1 Jury

**Lampson
vers.
Green
1 Jury**

DANIEL REA of Salem. Pl^t.
vers.
CAP^t. JOHN PUTNAM of Salem def^t. } On Appeale from Rea vers.
the Judgem^t. of Putnam
Salem Court June 24th. 1690 where said Putnam recovered Judgem^t.
the land in Controversy & costs of Court: The Reasons of Appeale
answers & Evidences in the Case being read &
comitted to the Jury, The Jury returned their Verdict, 2 Jury.
viz^t. They find for the defend^t. Confirmation of the former Judgem^t.
& Costs of Courts./

Rea vers.
Putnam

2 July.

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JOHN STANBRIDGE plⁱ. vers. Samuel Goffe defend^t. on an Appeale
 from the Judgem^t. of Cambridge Court April 15th.
Stanbridge 1690 on a Replevin for a Negroeman named Jn^r.
 vers. Cream, where s^d Goffe recovered six pence damage &
Goffe costs of Court. The Reasons of Appeale and answers & evidences in
 y^e Case being read were comitted to y^e Jury, the Jury returned their
 verdict viz^t. confirmation of the former Judgem^t. &
 2 Jury. costs of Courts./

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Adams
 vers
Mountfort

ESTHER ADAMS Adm^r.x. to the Estate
 of Cap^t. Sam^l. Adams Executor of
 the last will & Testam^t. of Thomas
 Adams Plⁱ.

vers.

HENRY MOUNTFORT of Boston Mer-
 chant . . defend^t.

} On Appeale
 from the
 Judgem^t of
 the County
 Court holden

at Cambridge, in April, 1690, where s^d Mountfort recovered Judgem^t. ag^t.
 the Appellant One hundred & fifty pounds currant
Execution money of New England and costs of Court. The
issued Sept. 19. Courts Judgem^t. Reasons of Appeale & evidences in
1690 the Case produced being read & pleas made the Case was comitted to
 the Jury. The Jury returned their verdict, viz^t. They found for the
 Appell^t. The Reversion of the former Judgem^t. & costs of Courts.

GILES FIFIELD of Boston Marrin^r Plⁱ.

vers.

GEORGE BRADLEY Merchant def^t.

} On Appeale from the Judgem^t.
 of the County Court holden in

Fifield Boston Aug^o. 12. on Adjournm^t. from the 29th. July
 vers. 1690. where the s^d. Bradley recovered Judgem^t. ag^t.
Bradley the s^d Fifield One hundred twenty one pounds seven
 shillings money by Bill of Exchange & Twenty One pounds more money
 damages & costs of Court. The Courts Judgem^t. Reasons of Appeale
 defend^t. Answer & evidences in the Case produced &
 1. Jury pleas by both parties made, the Case was comitted to
 the Jury, The Jury returned their Verdict thereon viz^t. They find for
 the defend^t. Confirmation of the former Judgem^t. & costs of Courts.

ALICE FRANCIS &c^t. of Cambridge Pl^{ia}.

vers.

THOMAS DANFORTH Esq^r. defend^t.

} the Appell^{ts}. was nonsuited
 not giving in their Reasons
 in time

THOMAS EDWARDS Marriner Pl^t.
vers.

ZECHARIAH JARVIS def^t

On Appeal from the Judgm^t. of
the County Court holden in

Boston on 12^o. Aug^o. by adjournm^t. from the 29 of July
1690. where s^d. Jarvis recovered Judgem^t. ag^t. the Ap-
pell^t. The goods sued for according to Invoice in Twenty
dayes or pay One hundred & ninety pounds Eighteen
shillings & one penny in money damāge & costs. The Courts Judgem^t.
Reasons of Appeale & evidences in the Case being read were comitted
to the Jury who returned their Verdict thereon, viz^t. They find for the
Plaint. The Reversion of the former Judgement & Costs of Courts.

Edwards
vers.
Jarvis.
1 Jury.

JOHN NEWMARSH of Ipswich Pl^t.
vers.

PETER BERRY of Ipswich defend^t.

On Appeale from the || Judgem^t
of y^e || County Court holden at
Salem June 24th. 1690 where s^d

Berry recovered Judgem^t. ag^t. the Appell^t. Forfeiture
of y^e bond two hundred pounds money & costs. The
Courts Judgem^t. Reasons of Appeale and Evidences in
the Case being read & comitted to the Jury. The Jury returned their
Verdict thereon viz^t. They find for the Appell^t. The Reversion of the
former Judgem^t. & costs of Courts.

Newmarsh
vers.
Berry.

PETER BERRY of Ipswich Pl^t.
vers.

JOHN NEWMARCH of Ipswich def^t

On Appeale from the Judgem^t. of
Ipswich Court March 25. 1690.

where s^d. Newmarch recovered Judgem^t. ag^t. the
Appell^t. for twenty foure pounds according to Bill &
three pounds six shillings more damāge & costs _Λ

Berry
vers.
Newmarch

[Blank.]

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PETER BERRY of Ipswich Pl^t.
vers.

JOHN NEWMARCH of Ipswich def^t.

On Appeale from Berry
the Judgem^t. vers.
the Court held at Newmarch

Ipswich March 25^o. 1690: where s^d. Newmarch obtained Judgem^t. ag^t.
the Appellant fifty nine pounds according to bill & ten pounds more
damāge and costs of Court. The Courts Judgem^t. Reasons of Appeale,

answers & Evidences in the Case being read were committed to the Jury. ^Λ

[*Blank.*]

Cap^t. Cyprian Southack Comānder of the ship Porcupine by his libel & Information Exhibited unto this Court, Giving the Court to understand & be informed that in pursuance of a Comission given him by the Lords Comissioners for Executing the office of Lord High Admiral of Engl^d. bearing date the 16th. day of July Anno. 1689. In the First yeare of y^e Reign of Our Sovereign Lord & Lady William & Mary now King & Queen over England &c^a. and Instructions thereto annexed for the takeing or seizing any merchant ship or ships belonging to France or ship or ships of any dominion under the French Power, or any ship or ships trading to or from ff^rrance or any ff^rrench Dominion, and to bring such ship or ships into any Port or Ports within their s^d. Ma^{ties} William & Mary's Sovereignty or of their ff^riends or Allies to be proceeded ag^t. as suspected Prize He the s^d Cap^t. Cyprian Southack cruising upon the Banks of Newfoundland in the s^d. ship Porcupine on the 20th day of July in the second year of their s^d Maj^{ties} ^Λ over England &c did take & seize the ship called the Gift of God belonging to France of y^e Burthen of Eighty Tonns or thereabouts whereof one Romain L'Cordier a ff^rrenchman Subject to y^e ff^rench King was master laded with ff^rench wine brandy, fish & salt navigated with Frenchmen Enemies to their s^d. Maj^{ties}. William & Mary, and is become a lawfull Prize to the s^d. Cyprian Southack who hath brought the same into this Port for the Condemnation thereof as the Law in that case directs. Praying the advice of this Court, for the Condemnation & Confiscation of y^e afores^d. Ship the Gift of God together with all her rigging, tackle ff^rurniture amunicōn and apparel to y^e s^d Cyprian Southack as a free & lawfull Prize according to the Comission & Instructions given to him as afores^d., and y^e several Proclamations Laws & Statutes in that case made & provided.

Upon reading & due Consideration of y^e afore recited Comission & Instructions, and hearing the Confession of the s^d. Romain L'Cordier late Master and Tout saints Le sont late mate of the within named ship Gift of God (both of them personally Appearing in Court. ^Λ The Court do adjudge declare & decree the s^d. Ship Gift of God, with all her rigging tackle ff^rurniture apparel and lading to be lawfull Prize & confiscate unto the s^d Cap^t. Cyprian Southack as belonging to y^e Sub-

jectes of the ffrench King King,* Enemies to their Ma^{ties}. William & Mary King & Queen of Engl^d &c at the time of the takeing & seizing thereof.

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Cap^m. Cyprian Southack Commander of the ship Porcupine by his libell and Information exhibited unto this Court, Giveing the Court to understand & be informed, That in pursuance of a Comission given him by the Lords Com^m. for executing the office of Lord High Admirall of England &c bearing date the 16th day of July Anno 1689 in the first yeare of the Reign of o^r. Sovereign Lord & Lady William & Mary now King & Queen over England &c^a. and Instructions thereunto annexed for the takeing or seizing any Merchant ship or ships belonging to ffrance, or ship or ships of any dominion under the ffrench Power, or any ship or ships tradeing to or from ffrance, or any ffrench dominion not haveing their Maj^{ties}. Pass or by their Ma^{ties}. Power, and to bring such ship or ships into any Port or Ports within their s^d. Ma^{ties}. William and Mary's Sovereignty or of their friends or Allies to be proceeded against as suspected Prize, And whereas farther the s^d. Cyprian Southack by his s^d. libell gives the Court to understand, That the ship William of Waymouth of the burthen of seventy Tons or thereabouts whereof one Jacob Chubb of s^d Waymouth in the Kingdome of England was Com^mander was in y^e month of October last past taken from s^d. Jacob chubb then master thereof with the seamen thereunto belonging by the Portugal Frigott of the Harbour of S^t. Mallo in ffrance, Privateers, Enemies of their Ma^{ties}. William & Mary, and was by them carryed in || to || the s^d. Harbour of S^t. Mallo in France, and there made Prize, and adjudged publickly to one W^m. Vincent s^r. of Bas sa blous Burgess and Merch^t. dwelling in s^d. Town of s^t. Malo, & subject of the French King And farther that the s^d Jacob Chubb haveing confederacy & combination with one Jacob Seale of the Island of Jersey merch^t. and correspondency &c with the afores^d William Vincent & others Subjects of the ffrench King did there contract & agree at s^t. Malo afores^d. wth. s^d w^m. Vincent for the s^d Ship William of Waymouth wth. her Rigging ffurniture & Apparel, and afterwards sailes wth. s^d ship loaded with ffrench wines, brandy, bread, salt & linnen for Newfoundland haveing lettpasses & certificates from the s^d ffrench King, and his subordinate Officers wth. special charge to observe the Orders of the s^d. ffrench King &c against the form & effect of their

* Repeated in the record.

Mat^{ies}. William & Mary's Proclamation of warr and divers other Proclamations lawes statutes & ordinances in such cases made & provided. . And whereas the s^d. Cap^t. Cyprian Southack further informes that by vertue of his aforementioned Co^mission & Instructions to him given, cruising upon the Coast of New-foundland in the ship Porcupine, on the twenty seventh day of June in the second yeare of their Maj^{ties}. Reign over England &c at Scilly Cove in Newfound-land he took & seized the s^d William of Weymouth loaded as afores^d whereof the s^d Jacob Chubb was master, with all her Cargo, sailes Cables &c trading to & from France under the Protection of the f^rench King, contrary to the Co^mission & Instructions thereunto annexed, Proclamations laws statutes & ordinances afores^d, and the s^d. Cap^t. Cyprian Southack hath brought s^d. Ship into this Port [244]

for Condemnation thereof as the Law directs and desires the advice of this Court in the premisses and due process in the Law, and the Judgem^t. sentence & decree of this Court for Condemna^{ti}on and Confis- cation of s^d. Cargoe & the ship William with all her guⁿs, rigging tackle &c to the s^d. Cyprian Southack & company as a free & lawful Prize according to the afores^d. Co^mission & Instructions, statutes & Ordinances in that case made & provided.

The Court upon several Considerations & difficulties in this Case refer the same to be tryed & determined by the High Court of Admiralty of England.

Cap^{ne}. Cyprian Southack Co^mander of the ship Porcupine by his libell and Information exhibited unto this Court, Giving the Court to understand & be informed, that in pursuance of a Co^mission given by the Lords Co^m^{rs}. for Executing the office of Lord High Admirall of England &c bearing date the 16th day of July Anno 1689 in the first year of the Reign of our Sovereigne Lord & Lady William & Mary now King & Queen over England &c And Instructions thereunto annexed for the takeing & seizing any Merchant ship or ships belonging to f^rance or ship or ships of any dominion under the f^rench Power or any ship or ships trading to or from France, or any f^rench Dominion, not haveing their Ma^{ties}. Pass, or by their Ma^{ties}. Power, and to bring such ship or ships into any Port or Ports within their Ma^{ties}. William & Mary's sover- aignty or of their f^riends or Allies to be proceeded ag^t. as suspected Prizes, And whereas further Cap^t. Cyprian Southack in s^d. Libell gives this Court to understand & be informed, That the ship Richard of Boston

afores^d. Burthen One Hundred & Forty Tunns whereof William Harris was late master belonging to the Subjects of King William & Queen Mary bound from New England to London was by the ffrrench King's Subjects taken from s^d. William Harris about the month of June or July in the yeare 1689, and carryed into S^t. Malo in ffrance, and there made a Prize, and ffarther, That Frederick Clutterbuck of the City of London Merchant in S^t. Mallo afores^d. bought s^d. ship Richard, and all her appurtenances of the s^d ffrrench Kings Subjects or Allies, and in & upon s^d. ship Richard in s^d Port of S^t. Mallo afores^d. a Considerable Cargoe of Goods of the Growth, Production & manufacture of the Kingdom of ffrance s^d. Clutterbuck did lade & ship, viz^t. ffrrench Brandy, French wine, ffrrench Canvas & lines and French Provisions which he there bought of the ffrrench Kings Subjects And with the s^d. ship Richard now called the ffrederick & his cargoe of French Goods & Provisions, under the ffrrench Kings Protection & Pass (one Caleb Barnes being master) did saile directly from the Port of S^t. Malo in France to Bonavis * Road in Newfoundland one of their Ma^{ties}. King William & Queen Mary's Plantations in Newfoundland did there sell & dispose of their cargoe of ffrrench Goods not having landed the same in England Wales or Berwick, nor haveing any cleering Pass or Protection from their Maj^{ties}. or any of their Officers in England Wales or Berwick, which is contrary to the Express Comānd of their Ma^{ties}. in the Proclamation of warr which expressly forbids all their Ma^{ties}. Subjects to hold any correspondence or Combination with the ffrrench King or his subjects and [245]

contrary to severall other laws & orders in that behalfe made & Provided And the s^d Cap^t Cyprian Southack by vertue of his Comission, and according to the Instructions thereunto annexed hath legally seized the s^d ship Richard otherwise called the ffrederick, with all her Guns, Amūnition, Tackle Fur[n]iture and apparel, and her loading, and brought them into this their Ma^{ties}. Port of Boston to be proceeded with according to law, Praying the Advice of this Court &c. as in the s^d libell is set forth. Issue is joyned, for Breach of their Ma^{ties}. Proclamacon of Warr

Upon hearing the several Pleas and Allegations of both Parties, Nothing appearing That the ship had any ffrrench Goods on board at the time of seizing her, but being laden with ffish./

The Court adjudge declare & decree for the defend^t. (That is to say) That the s^d ship Richard ats Frederick with all her

* Bonavista?

guñs Añunicōn Tackle, Apparel, Furniture, and lading of Fish be released from the s^d seizure and delivered unto the s^d Frederick Clutterbuck.

Henry Toltwood of Newberry Indicted by the Jurors for our Sovereign Lord and Lady the King & Queen, upon their Oaths, ffor that the s^d. Henry Toltwood on the thirteenth day of the month of August in the yeare 1690 in the second year of their Ma^{ties}. Reigne at a certain Place called Rowley woods in the Massachusets ^a wth. fforce & armes in & upon Elizabeth Horsely of Rowley afores^d in the Colony afores^d a Maid of the Age of Eighteen yeares then & there in the Peace of God & the King & Queen being did make an Assault, and ag^t. the will of the s^d. Elizabeth Horsly ffelloniously did Ravish & carnally know, Against the Peace of o^r. soveraigne Lord & Lady the King & Queen, and contrary to the laws of England & of this Colony in that Case made & provided. On s^d Indictment was arraigned, pleaded not guilty, put himselfe upon Tryall, by God & the Country. The Jurors upon their Oathes say, That s^d Henry Toltwood is not guilty according to Indictment.

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Grand Jury

mr. John Dossett
Arthur Mason
Thomas Bligh
Jeremiah Fitch
Isaac Jones
John Bird
Samuel Gookin
Samuel Gore
Benjn. Tucker
Solomon Phipps
John Call
John Warren senr.
Thomas Flegg junr.

At a Court of Assistants holden at Boston March
3^d. 1690/1

Present.

The Hon^{ble}. Simon Bradstreet Esq^r. Gov^r.
Thomas Danforth Esq^r. Deputy Gov^r.

Wait Winthrop	{ Esq ^{rs} Assist ^{ts}	James Russell	{ Esq ^{rs} . Assist ^{ts} .
William Johnson		Samuel Appleton	
Elisha Hutchinson		Samuel Sewall	
Isaac Addington		John Smith	
Jonath ⁿ . Corwin			

WILLIAM BOLDESON of Boston
Adm^r of the estate of THOMAS
THURTON late of Boston dec^d. Pl^t.

Jury of Tryalls

mr. John Gardner
John Cotta
John Blake
David Jones
Sam^l. Oldham
John Squire
James Draper
John Davis
John George

1. Jury vers.

WILLIAM COLMAN of s^d Boston def^t.

On Appeale from
the County Court
held in Boston
Octob^r. 28, 1690,

where the defend^t. sued the Appell^t. in an Action of
the case for non paym^t. of three pounds fifteen shil-
lings & five pence money due for severals delivrd. s^d

Thurtons wife in the month of November 1688 &c and recovered Judgem^t. Twenty two shillings 6^d money & costs. The Reasons of Appeal & Evidences in the Case being read & pleas made, The Case was comitted to the Jury, The Jury find for the defend^t. Confirmation of the former Judgem^t. twenty two shillings six pence & two pound twelve shillings & eleven pence more in money & costs of Courts.

Samuel Lord
Samuel Blunt
Isaac How

2 Jury

Elizur Holioko
William Downe
Nath^l. Glover
Desire Clapp
John Sharp
Isaac Morris
Isaac Newell
Samuel Douse
Samuel Kettle
Philip Shattock
Richard Child
Sam^l. Gaskill

ELIZABETH LOFT, Ex^{ra}. of Rich^d
Loft dec^d Pl^t.

1. Jury vers.

NATHANAEL OLIVER of Boston
Merch^t. def^t.

On Appeale from
the County Court
held at Boston
Jan'y 27. 169^o/₁

where the Appell^t. sued y^e def^t. in an action of debt of six pounds two shillings money due for Malt & was cast costs of Court. The parties Joyned issue The Courts Judgem^t. Reasons of Appeal & Evidences were read & comitted to the Jury The Jury find for the Appel^t. Reversion of the former Judgem^t. and six pounds two shillings in money damages and Costs of Courts

S^a. WILLIAM PHIPPS late Comander of the ffrigott
the Golden Rose Appel^t.

vers.

ROBERT BRONSDON of Boston merch^t. def^t.

On Appeal from
the County Court
held at Boston

Jan'y 27. 169^o/₁ where the s^d Rob^t. Bronsdon sued the Appel^t. for deteining severall sum^s mentioned in three severall Bills viz^t Tho: Cloft, Henry Gabrick, John Bloar, George Wright & Edw^d. Nayler & the Appel^t. cast twenty five pounds seventeen shillings six pence money & costs. The Reasons of Appeal & evidences of the Case being read and pleas made the Case was comitted to the Jury. The Jury returned their Verdict. They find for y^e Appel^t. Reversion of the former Judgem^t. and Costs of Courts.

S^a. WILLIAM PHIPPS KN^t. als W^m. Phipps late
comander of y^e ffrigot Golden Rose Appel^t.
vers.

ROBERT BRONSDEN of Boston Merch^t. def^t.

On Appeal from
the County Court
holden at Boston
Jan'y 27 169^o/₁

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Where the Appell^t was sued in an Action of Debt of One hundred ^l in mony due by one Obligation under the Appel^l. hand & seale dated 15th. decemb^r. 1683. and was cast to pay one hundred pounds penalty of the bond & costs from w^{ch} he appealed. The Courts Judgem^t. Reasons of Appeal & Evidences in y^e case being read were comitted to y^e Jury. The Jury find for the Appel^t. Reversion of the former Judgem^t. & costs of Courts.

S^r. WILLIAM PHIPPS, otherwise Cap^t. W^m.
Phipps late comānder of y^e ffrigot Golden
Rose Appel^t.

vers.

ROBERT BRONSDON of Boston merch^t. defend^t.

On Appeal from the
County Court holden
at Boston 27th of Jan.

uary 169^o/₁ where the Appel^t. was sued by the s^d Rob^t. Bronsdon in an action of Debt for non paym^t. of two hundred pounds due by vertue of an obligation bearing date 11th. Jan^y 1683, and was cast two hundred pounds penalty of the bond & Costs, from w^{ch}. Judgem^t. he appealed. The Courts Judgem^t. Reasons of Appeale & Evidences in the Case being read were committed to the Jury, The Jury returned their Verdict, They find for the Appel^t. Reversion of the former Judgem^t. & costs of Courts.

THOMAS BULKLEY of Boston Merch^t. Appel^t.

vers.

NATHANIEL THAYRE & JOSEPH PARSON^l both
of Boston Merch^{ts} defend^{ts}.

On Appeal from the
County Court held in
Boston October 1690,
where the s^d Thayre

& Parsons sued the Appel^t. for a true Acco^{ts}. of goods & Merchandize with y^e effects as sold at Providence s^d Goods being loaden on board Ship Concord Gregory Sugars Comāder &c and the Appel^t. was cast to give a just & true Acco^{ts}. of s^d Goods & merchandize within thirty dayes or pay One hundred & six pounds seven shillings & foure pence money &c The Reasons of Appeal & Evidences in the Case were read & comitted to y^e Jury. The Jury find for y^e defend^{ts} Confirmation of the former Judgem^t. & costs of Courts.

PETER TOPPAM of Newbery appel^t.

vers

JACOB TOPPAM of s^d Newbery defend^t.

The Appel^t. & defend^t.
made an Agreem^t. under

hand & seal as a finall issue between them and desired liberty of the Court to withdraw their Action w^{ch}. was granted

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STEPHEN SMALL of Salem Appel^t.

vers

JOHN BULLOCK . . . defend^t.

} On appeale from the County Court of Salem 25th. 9^{ber}.

1690 which Judgem^t. was for s^d Bullock the land in controversy & costs The reasons of Appeal & evidences in y^e case were read & comitted to the Jury, The Jury find for the def^t. Confirmation of y^e former Judgem^t. & costs of Courts.

THOMAS SMITH of Boston blacksmith Pl^t.

vers.

GEORGE HISKETT of Boston Marr^r. defend^t.

} On Appeal from the County Court held in

Boston October 28. 1690, at w^{ch}. Court Judgem^t. was for the s^d. Hisket Eight pounds twelve shillings six pence & to secure him from Tho: Roberts & to give him a deed of sale for one quarter part of the ship built by s^d. Roberts &c within ten dayes or to pay to y^e s^d Hisket one hundred & forty pounds money & costs

The Courts Judgem^t. Reasons of Appeal & evidences in the case being read were comitted to y^e Jury. The Jury find for y^e Pl^t. Reversion of the former Judgem^t. & costs of Courts. Execution issued May 27, 1691.

PALTY DORRELL widow & Martha

Bent, Pl^t.

vers

JOHN FOSTER & Abigail his wife &c
def^{ts}.

} On Appeal from the County Court held at Boston 27 Janry 1690/1 where Judgem^t. was for the s^d ffoster &c Possession of

the house & land sued for & costs. The Courts Judgem^t. Reasons of Appeal & evidences in the case being read, The Case was comitted to the Jury. The Jury find for the Appel^t. Reversion of the former Judgem^t. and Costs of Courts.

JOHN BIGG of Boston merch^t. Pl^t.

vers.

THOMAS HARWOOD & Rachell his
wife def^t.

} On Appeal from the County Cor^t. holden in Boston October 28th. 1690 where s^d. Harwood & Rachell his wife sued the Appel^t. for refuse-

PHILIP ENGLISH of Salem Merch'. Pl'.
 vers.
 PHILIP CROMWELL of s^d Salem defend'. } On Appeal from the County
 Court at Ipswich Sep^r.
 30th. 1690, where Judgem^t. was for the def^t. cromwell costs of Court.

The Reasons of Appeal Answers and Evidences in the case being read were committed to the Jury. The Jury returned their Verdict viz^t. They find for y^e def^t. Confirmation of the former Judgem^t. and costs of Courts.

SAMUEL HEMLOCK of Boston Mar^r. Pl'.
 vers.
 GEORGE MOUNTJOY of s^d Boston Mar^r. def'. } On Appeal from y^e County
 Court holden at Boston
 28th October 1690 where Judgem^t. was for the Pl^t. Mountjoy, Forty Pounds money & costs. The Courts Judgem^t. Reasons of Appeal & Evidences in the case were read & comitted to the Jury. The Jury find for the def^t. Confirmation of the former Judgem^t. & costs of Court.

JONAS CLAY of Boston mar^r. Pl'.
 vers.
 NATHAN^l. JEWELL of Boston mar^r def'. } On Appeal from the Judge-
 m^t. of the County Court
 held at Boston October 28th. 1690 where Judgem^t. was for s^d Jewell Three Pounds twelve shillings & nine pence money & costs. The Reasons of Appeal & Evidences in the case being read were comitted to y^e Jury. The Jury find for the appellant, Reversion of the former Judgem^t. & costs of Courts.

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THOMAS CLARKE of Boston Pl'.
 vers.
 SETH WYMAN of Woobourn def'. } On Appeal from y^e County Court
 held at Boston Octob^r. 28. 1690
 where Judgem^t. was for the Pl^t. Thomas Clark Ten hundred weight of good merchantable hopps according to Bill or twenty pounds in money in ten dayes & costs. The Reasons of Appeal and Evidences were read & comitted to y^e Jury. The Jury find for the def^t Reversion of the former Judgem^t. & costs of Court.

THOMAS EYRE of Boston Marrin' Pl'.
 vers
 JOHN EYRE of Boston Merch'. def.

The Appell'. withdrew.

The Court being informed that Samuel Newton of Marlborough did sometime since marry with Rebekah his late Unkle Isaac Newton's widow (by whom she hath issue one Daughter), and hath lived wth her as his wife by whom he hath had two children. The s^d Parties both appearing and confessing the truth of what is above written. Upon consideration thereof, The Court do Judge the s^d. Persons at the time of s^d Marriage to have stood within the line of Affinity forbidden Marriage by the word of God, as also by the Law of England and their living together incestuous, And therefore forbid the s^d Persons any Cohabitation or fellowship together as man & wife for the future, under the severest penalty.

Mary Stebbins, wife of Samuel Stebbins of North hampton complaining to this Court, That her s^d husband Samⁿ. Stebbins dureing the time of their marriage hath committed Fornication with divers other women by whom he hath had several Bastard children, and now for some yeares past hath withdrawn himselfe from the fellowship & cohabitation with her s^d. Mary; Praying that she may obtain a Bill of Divorce; It's Ordered that a Notification of the s^d. compl'. & Petition be sent unto the s^d. Samuel Stebbins, with the time appointed for hearing the same at the adjournm^t. of this Court April 16, 1691. That so he may have oppertunity then to appear, and shew cause (if any he have) why the s^d. Mary should not have her Peticōn in y^t. behalfe granted.

m^r. Samuel Gookin was by the Court of Assistants appointed Marshall General for the time & untill further order by the Genⁿ Court and tooke his Oath in open Court.

The Court adjourned to 17th. March 1690/1

[*Large Blank.*]

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Jahleel Brenton Gen^l collector surveyor & searcher of their Ma^{ties}. Customs in New England who as well for their Ma^{ties}. as for Simon

Bradstreet Esq^r. Govern^r. of their Majesties Colony in New England as for himself coming into the Court of our s^d. Sovereigne Lord & Lady the King & Queen afores^d.

Giveing s^d. Court to know & be informed. That whereas there is one Act of Parliament made in the ffifteenth yeare of the Reign of King Charls the second over England &c^a. Entituled An Act for the Encouragem^t. of Trade; in which Act among other things it is Enacted. That from & after the five & Twentieth day of March, one thousand six hundred sixty foure No Co^modities of the Growth, Production or Manufacture of Europe shall be imported into any Land, Island, Plantac^on, Colony Territory or Place to his Ma^{tie}. belonging, or which shall hereafter belong unto or be in the Posession of his Maj^{ty}. his heires or Successo^rs in Asia, Africa or America (Tangier only Excepted) but what shall be bonâ fide & without Fraud laden & shipped in England Wales or Towne of Berwick upon Tweed, and in English built Shipping, or which were bonâ fide bought before the first day of October, one thousand six hundred sixty two, and had such certificate thereof as is directed in one Act of this present Parliament entituled an Act for preventing ffraud & regulateing abuses in their Ma^{ties}. Customes, & whereof the master & three fourths of the Marrin's at least are English

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And which shall be carryed directly thence to the s^d. Lands Islands Plantations Colonies Territories or Places, and from no other Place whatsoever by land or water, And if by water of the ship or vessell in which they were imported with all her guns, tackle furniture a^munition & apparel, One third to his Ma^{ty}. his heires & successo^rs. One third part to the Govern^r. of such land Island Plantation Colony, Territory or Place into which such goods were imported, If y^e s^d. ship Vessell or goods be there seized or Informed ag^t. & sued for, otherwise that third also to his Ma^{ty}. his heires & successo^rs and the other third part to him or them who shall seize inform or sue for the same, in any of his Ma^{ties}. Courts, in such of the s^d lands, Islands Colonies, Plantations, Territories or Places where the offence was co^mitted, or in any Court of Record in England by Bill Information, plaint or other Action, wherein no Essoyn, Protection or wager in law shall be admitted.

And ffurther the s^d. Jahleel Brenton Giving s^d. Court to know & be informed that Nicolas Lawrence master of the Katch Salisbury, the Paines & penalties of the fore recited Act not regarding, did on or about the ninth day of February in the year of our Lord One Thousand

six hundred & ninety in the second year of their Ma^{ties}. Reign import in the Katch Salisbury into Boston aforesaid a Colony or Place belonging to their s^d. Maj^{ties}. in New England several Goods & Merchandizes of the Growth, Production or manufacture of Europe, which was not bonâ fide & without fraud laden & shipped in England Wales or Towne of Berwick upon^Λ, The goods imported are as followeth, One chest containing Twelve peices of Kersey, sixteen peices of worsted stuffs, foure peices of silk crape, twenty peices of Scottish cloth seventeen Papers of Buttons, two peices of Friez, one peice of white & one peice of Red Bayes, one peice of course striped stuff, Two Bailes containing sundry peices of Fustians or demitys. One Baile containing twelve peices peices* of white & foure peices of browne linnen, one small Baile containing twelve peices of Hamborough linnen q^t. 449½ Ells — In a Rugg is contained seven broad peices & foure peices & an halfe of Ticking, One bag of Haberdashery — Forty Barrels of powder, ffive hh^{ds}. of Nailes — one smal bundle containing four peices of silk crape, six peices of worsted stuffs, Three papers of Buttons, which goods & merchandize are justly become forfeited, as also the Katch Salisbury with all her Guns, Ammunition, furniture & apparel, one third part to their Ma^{ties}. one third part to Simon Bradstreet Gov^r. and the other third part to Jahleel Brenton as afores^d who sues for the same praying the advice of the Court & Judgement accordingly.

Nicolas Lawrence master of y^e s^d Katch Salisbury comes into Court the day & year above-written, and to the matter of y^e Information pleads, Not guilty; Issue is thereupon joyned, And after a full hearing of y^e Pleas & Evidences offered by Each party. The Jurors upon their oaths say. They find for the Pl^t. The Forfeiture of the Goods & Katch Salisbury according to Information, The Court receiv[e] and record their Verdict, and enter up Judgem^t. accordingly./

Nicolas Lawrence afores^d appealed from this Judgem^t. unto the Lords Co^mmissioⁿ. of the High Court of Admiralty of Engl^d. w^{ch}. was granted, and himsele as Principal and Col^l. Nicolas Paige as surety bind themselves their heires Ex^m & Adm^m jointly & severally in y^e sum of ffive hundred pounds curr^t. money of New-Engl^d to their Ma^{ties}. King William & Queen Mary & to the parties concerned, on Condition s^d Nicolas Lawrence shall prosecute his Appeal before y^e Lords Co^mmissⁿ with Effect and shall pay all such costs & damages as shall by s^d co^mmissⁿ^Λ awarded ag^t them

* Repeated in the record.

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At a Court of Assistants holden in Boston September 22th. 1691 by Adjournment from the first day of s^d. September./

Present.

Simon Bradstreet Esq^r. Govern^r.

James Russell	{ Esq ^{rs} . Assist ^{ts} .	William Stough-	{ Esq ^{rs} . Assist ^{ts} .
William Johnson		ton	
John Hathorn		Samuel Appleton	
Elisha Hutchinson		Samuel Sewall	
John Phillips		Isaac Addington	

EDWARD NEELAND sen ^r Husbandm Pl ^t .	{ On Appeal from the County
ISAAC FOSTER sen ^r defend ^t .	

Court held at Salem June 30th. 1691, where the s^d Foster recovered Judgem^t. the land in controversy & costs The Courts Judgem^t. Reasons of Appeal & evidences in the case being read & comitted to the Jury. The Jury find for the defend^t. Confirmation of the former Judgem^t. & costs of Courts.

JOHN PAUL of Lynn . . Pl ^t .	{ On Appeal from the County Court held at Salem
TIEG A BARROW of Boston def ^t .	

June 30th. 1691. where Judgement was for y^e Pl^t. Tieg A Barrow the land in controversy & costs. The Courts Judgm^t. Reasons of Appeal & Evidences in the [^] were read & comitted to y^e Jury The Jury find for the defend^t. Confirmation of y^e former Judgem^t. & costs of Courts.

JOHN CLARK . . Pl ^t .	{ The pl ^t . [^]
ABIEL LAMB def ^t .	

JOHN BURNAM jun ^r of Chebacco of Ipswich Appel ^t .	{ On Appeal from y ^e Judgm ^t . of the County Court holden at Salem
ROBERT CROSS sen ^r . of Chebacco of Ipswich defend ^t .	

Grand Jury sworn

Cap^t. Edw^d Wyllly
forem[̄]
James Green
Thomas Downe
Robert Bronsdon
Seth Perry
Edward Dorr
John Capen
Thomas Tilestone
Samuel Ballard
John Knight
Samuel Stone
John Tidd
John Whitney

Jury of Tryalls
sworn

Cap^t. Rich^d Crisp
forem[̄].
Edward Crick
Thomas Davis
Thomas Stanbury
John Scott
Joseph Leeds
John Capen jun^r.
John Watkins
Nathan^l. Adams
Abraham Hill
William Russell
Thomas Hamond

2 Jury of Tryals
sworn

m^r Caleb Church
forem[̄].
George Ellistone

Josiah Holland
 William Chaplin
 Ephraim Pason
 William Pratt
 Nicolas Lobdell
 Joseph Simons
 Samuel Gibson
 Bartholomew Green
 Sam^l. Herrington
 John Hastings.

30th June 1691 In an Action of the Case, for that s^d. John Burnam as a Trespasser for several late yeares improved a certain parcel of salt marsh of s^d. Crosses conteining by Estimation neer Thirty Acres lying at Chebacco afores^d & still keeps the pl^t. out of posesion to his damage one hundred pounds money according to attachm^t. dated 12^o. June 1691. at w^{ch}. Court the Jury found for y^e pl^t. the land in controversy &c from w^{ch}. the defend^t. appealed The Attachm^t. Courts Judgem^t. Reasons of Appeal & Evidences in y^e Case being read comitted to y^e Jury & are on file wth. the Records of this Court, The Jury returned their verdict thereon viz^t. [254]

They find for the Appellant, Reversion of the former Judgem^t & costs of Courts.

JOSEPH MASON of Watertown Appel^t.
 vers.

JOHN STONE &c^a. selectmen of Water-
 town defend^{ts}.

} On Appeal from the Judgem^t.
 of the County Court held at
 Cambridge April 7th. 1691,
 where s^d selectmen sued the

Appell^t. in an Action of the Case for neglecting Gathering the Rates made for the use of the Towne & comitted to s^d Mason to collect & levy as p^p Attachm^t on file bearing date March 21. 169^o where the Jury found for y^e Jury found for* y^e pl^{ts}. Fifty five pounds Eight shillings eleven pence mony & costs from w^{ch}. Judgem^t. the def^t. appealed. The Courts Judgem^t. Reasons of Appeal, Answer & evidences in the Case being read & pleas by both parties made, the case was comitted to y^e Jury. The Jury returned their Verdict thereon viz^t. They find for y^e Appel^t. Reversion of the former Judgem^t. & costs of Courts.

REBEKAH STEBBINS of Boston widow Pl^t.
 vers.

PHILIP ENGLISH of Salem defend^t.

} On a scire facias on a
 Judgm^t. of the County
 Court holden at Boston

November 19th. 1689 & confirmed by the Court of Assist^{ts}. April 8th. 1690 where s^d Stebbins recovered Judgem^t. for the delivery of a boat & appurtenances in ten dayes and three pound in money damage or in default thereof to pay Twenty pounds in money & costs. The defend^t.

* Repeated in the record.

pleaded he had a legall tender of s^d Boat according to Judgem^t. which issue was comitted wth. the evidences to the Jury. The Jury returned their verdict. They do not find a legall tender. The Court determine and give Judgem^t. for seventeene pounds being the remaining part of the Judgement & costs.

BENJAMIN WALKER of Boston Merch^t Pl^t.

vers

JAMES HAWKINS of s^d. Boston Bricklayer def^t.

} On Appeal from the County Court held in

Boston July 18th. 1691, where the Appell^t. sued s^d. Hawkins for not paying y^e pl^t. five pounds ten shillings money due by Agreem^t. & promise &c w^{ch}. Judgem^t. was for the defend^t. costs of Court. The Reasons of Appeal and evidences in the Case were read & comitted to y^e Jury. The Jury find for the Appell^t. Reversion of the former Judgem^t. and five pounds & ten shillings in money damages & costs of Courts Execution issued Oct 6. 1691

WILLIAM WARREN of Boston Appel^t.

vers

ELLIS CALLENDER of Boston def^t.

} On Appeal from the Comis- sion^{er} Court holden at Boston

July. 14th. 1691 where s^d Calender had Judgem^t. Ten bushells of salt & costs. The Courts Judgem^t. Reasons of Appeal and Evidences in the case were read & comitted to the Jury. The Jury find for the Appel- lant Reversion of the former Judgm^t. & costs of Courts.

AMOS MARRETT Pl^t.

vers.

JAMES HOLLAND defend^t.

} On Appeal from the County Court held at Charlstowne June. 19th. 1691 by adjournm^t.

where s^d Holland obtained Judgem^t. ffifty shillings money or the Mare in controversy. The Reasons of Appeal & evidences in the case were read & comitted to y^e Jury The Jury find for y^e defend^t. confirmation of y^e former Judgem^t. ffifty shillings mony damage & costs of Courts Execution issued october 5, 1691.

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THOMAS DENNIS of Ipswich Pl^t.

vers.

JOHN WAINWRIGHT of s^d. Ipswich def^t.

} On Appeal from the County Court holden at Ipswich March 31. 1691. where

Judgem^t. was for the s^d. Wainwright Fifty shillings money damage &

costs &c The Courts Judgm^t. Reasons of Appeal & Evidences in the case were read comitted to y^e Jury The Jury find for the Defend^t. Confirmation of the former Judgem^t. & costs of Courts.

Capt. STEPHEN CROSS of Ipswich Plantff. vers. JOHN LOW Terti. Atto^{ny}. to SAM^{ll}. YOUNG— LOVE, def^t	}	On Appeal from the County Court held at Ipswich March 31st. 1691. where the Judgem^t. of Maj^r Sam^{ll}. Appleton was confirmed. The Reasons of Appeal & Evidences in the case were read & comitted to the Jury, The Jury find for the Pl^t. Reversion of the former Judgem^t. & costs of Court.
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WILLIAM FAIRFIELD of Wenham Pl^t. vers JOHN FAIRFIELD of Ipswich def^t.	}	On Appeal from the County Court held at Ipswich March. 31. 1691. in an action of Tres- pass where Judgem^t. was for the defend^t. costs of Court. The Courts Judgem^t. Reasons of Appeal & Evidences in the Case being read & comitted to the Jury. The Jury find for the Appell^t. Reversion of the former Judgem^t. and Two shillings & nine pence money damage & costs of Courts.
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PHILIP WHITE of Beaverly Pl^t. vers. GEORGE STANLEY of s^d. Beaverley def^t.	}	On Appeal from the County Court holden in Ipswich 31st. March 1691. where the Jury found for y^e defend^t. costs. The Courts Judgem^t. Reasons of Appeal & evidences in the Case were read & comitted to y^e Jury. The Jury find for the Appell^t. Reversion of the former Judgem^t. and Twelve Pounds ten shillings damage the one Third money, the other two Thirds in Country pay & costs of Courts.
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COL^t. NICOLAS PAIGE Attorney of Cap^t. Andrew Dolbery appell^t. vers. JACOB MORRELL of Salisbury shipwright, def^t.	}	in an action of Appeal from the County Court holden in Ipswich, March 31, 1691. where the Appell^t. was cast, the Jury finding for the pl^t. the Hull or body of the ship in Controversy
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or seven hundred pounds money damage & Costs of Court. The Courts Judgem^t. Reasons of Appeal and Evidences in the case produced being read were committed to the Jury & are on file, The Jury returned their Verdict thereon, viz^t. They find for the defend^t. Confirmation of the former Judgem^t. six hundred & ninety pounds money & Costs of Court.

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Cap^t. EBENEZER PROUT Pl^t.

vers.

CALEB BROOKS, ISAAC FOX & JOHN
WHITMORE defend^{ts}.

On Appeal from the County Court held in Charlstowne June 19th. 1691. where the

Appel^t. sued y^e defend^{ts}. for withholding from y^e pl^t. y^e Possession of one Messuage or Tenem^t. within y^e bounds of Medford &c. And Judgem^t. was for the defend^{ts}. Costs of Court. The Courts Judgem^t. Reasons of Appeal & Evidences in the case being read were comitted to the Jury. The Jury find for ye defend^{ts}. Confirmation of the former Judgem^t. & costs of Courts.

GEORGE LASON Comānder of y^e Pink or Buss
Two Brothers - - Pl^t.

vers.

JAHLEEL BRENTON Gent Collect^r. survey^r. &c of
their Ma^{ties} Customs in New Engl^d def^t.

On Appeal from y^e County Courtholden in Boston on 25th. Aug^o. 1691 con-

tinued by Adjournm^t. from 28th July foregoing, where the Appel^t. was cast by the Jury upon the Act of y^e 12^o. Caroli secundi Regis entituled an Act for the encourageing & increasing of shipping * Confiscation of the Pink or Buss Two Brothers & the Goods on board her. The County Courts Judgem^t. Reasons of Appeal Information & Evidences in the Case produced ~~being produced~~ being read & Pleas made in the Case by both y^e Appel^t. & defend^t. The Case was comitted to y^e Jury, who returned their Verdict thereon. viz^t. They find for y^e Appel^t. The Reversion of y^e former Judgm^t. ag^t. the Pink or Buss, Two Brothers. Jahleel Brenton Gen^t collect^r &c appealed from this Judgem^t. to their Maj^{ties}. in Council w^{ch}. was granted.

* This space left blank in the record.

WILLIAM HALL who married Sarah ffowler of
 Boston wine retailer Pl^t.
 vers.
 BENJAMIN BACKWAY of Boston Marriner defend^t. } On Appeal from y^e
 Judgm^t. of the
 County Court held in
 Boston April 28th. 1691. where the Appell^t. was cast to pay Twenty six
 pounds in money & costs of Court upon sale of Nathanael Force a
 Negro man who was sold to s^d. Backway by s^d Sarah Fowler &c The
 Courts Judgem^t. Reasons of Appeale and Evidences in the Case pro-
 duced were read & comitted to y^e Jury. The Jury find for the Ap-
 pell^t. Reversion of the former Judgem^t. & costs of Court.

JOHN TYLER of Charlstown Pl^t.
 vers
 HENRY WRIGHT of Boston Carpenter Def^t } On Appeal from y^e Com-
 ission^r Court holden in
 Boston July 14. 1691.
 where the Appell^t. was cast to pay Twenty foure shillings seven pence
 money & costs. The Courts Judgem^t. Reasons of Appeal & Evidences
 in the case were read & comitted to y^e Jury. The Jury find for y^e
 def^t. Confirmation of the former, twenty foure shillings seven pence
 money damage & costs of Courts.

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DAVID WATERHOUSE of Boston merch^t. Pl^t.
 vers
 ROBERT LUIST Marriner m^r. of the ship Provi-
 dence defend^t. } On Appeal from
 y^e County Court
 holden in Boston
 ~ April 28th. 1691. where Judgem^t. was for the defend^t. costs of Court.
 The Courts Judgem^t. Reasons of Appeale & Evidences in the case were
 read & comitted to y^e Jury, The Jury find for the defend^t. Confirmation
 of the former Judgem^t. and costs of Courts.

NATHANAEL OLIVER of Boston Merch^t. Pl^t.
 vers
 ELIZABETH LOFT Ex^{ra}. of Rich^d. Loft dec^d def^t. } On Appeal from
 y^e County Court
 holden in Boston
 April 28th. 1691. where Judgem^t was for the defend^t. Costs of Court.
 The Courts Judgement Reasons of Appeal & Evidences in the case
 were read & comitted to y^e Jury The Jury find for the defend^t. Con-
 firmation of the former Judgement & Costs of Courts.

GEORGE BALL of Boston Marrin'. Pl'.	}	On Appeal from the County Court holden in Boston July 28 th .
vers		
WINSOR SANDEY of s ^d Boston Marrin'. Def'.		

1691. where Judgem^t. was for the Pl^t. Sandey Twenty one pounds seventeen shillings & three pence money & costs. The Courts Judgem^t. Reasons of Appeal & Evidences in the case were read & comitted to y^e Jury The Jury find for the defend^t. Confirmation of the former Judgem^t. Twenty one pound seventeen shillings three pence mony & costs of Courts.

[Blank.]

GEORGE READ of Wobourn pl'.	}	On Appeal from the County Court held at Cambridge April 7 th 1691.
vers		
WILLIAM PEARSE of s ^d Woobourn def'.		

In an Action of trespass where the Appel^t. was cast costs of Court The Courts Judgem^t. Reasons of Appeal & Evidences in the Case produced were read & committed to the Jury. The Jury find for the defend^t. confirmation of the former Judgement & Cost of Courts. Execution issued october 3, 1691.

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JOHN TYLER of Charlstowne Pl'.	}	The pl ^t . withdrew.
vers		
HENRY WRIGHT of Boston defend ^t .		

George Monck Taverner on Appeal from the Judgem^t. of the Comissⁿ Court held in Boston May 12. 1691 where he was fined ff^y forty shillings in money as a fine to the County &c The Courts Judgem^t. Reasons of Appeal & Evidences being read and comitted to y^e Jury. The Jury find for the Appel^t. Reversion of the former Judgment.

WILLIAM MUMFORD of Boston Slater Pl'.	}	On Appeal from the Judg- m ^t of the Comission ^r Court held in Boston April 7 th . 1691 in an Action of Review, where the Appel ^t . was cast to pay two pounds fourteen shillings & eleven pence money & costs. The Courts
vers.		
EDWARD WYLLYS of Boston Merch ^t . def'.		

Judgem^t. Reasons of Appeal & Evidences in y^e Case were read & comitted to the Jury. The Jury find for the Appell^t. Reversion of the former Judgem^t. & costs of Courts.

JOHN HAYWARD of Roxbury Merch ^t . Pl ^t .	}	On Appeal from the County Court holden in Boston July 28. 1691. where the Judgem ^t . was for y ^e Pl ^t . Bulkley. Thirty eight pounds in money & costs. The Courts Judgem ^t . Reasons of Appeale & evi- dences in the Case were read & comitted to the Jury. The Jury find for the defend ^t . Confirmation of the former Judgem ^t . & costs of Courts.
vers THOMAS BULKLEY of Boston Merch ^t . defend ^t .		

SETH PERRY of Boston Pl ^t .	}	On Appeal from the County Court holden in Boston 28 th . July. 1691. where the Ap- pell ^t . was cast to pay Fourteen. pounds three shillings money & costs, The Courts Judgem ^t . Reasons of Appeal & Evidences in y ^e Case were read & comitted to the Jury. The Jury find for the defend ^t Confirmation of the former Judgement & costs of Courts. Ex ^{con} . issued Dec ^r : 1. 1691
vers BENJ ⁿ . ALFORD of Boston Merch ^t . def ^t .		

Captⁿ. John Alden Comander of the sloop Mary of Boston by his Libell or Information Exhibited unto this Court givinge the Court to understand & be Informed, That by vertue of a Comission given him by the Honrd. Govern^r & Council of the Massachusetts Bay in New-England & Instructions thereunto or orders in which is one clause comanding him in case he met wth. any ship or vessell belonging to the French King or his subjects in his going or returning from Port Royall to seize them wth. their lading if within his power & bring them to Boston in order to their Tryal, He the s^d Alden on the first day of April in the year 1691, at Port Royal afores^d did take or seize a Vessel or Barque called the Speedwell burthen about Twenty three Tuns w^{ch}. did belong to one of the French Kings Subjects whose name is s^t. Tobin, w^{ch} Barque was sometime Giles S[eres] [259]

of Ipswich in New-Engl^d. and in an hostile maner taken from him by the French Kings Subjects & kept in their possession above Eighteen months until the time he s^d Alden tooke her & c praying the Advice of

this Court in the premisses & due process in the law & y^e Judgem^t. sentence & decre of the Court for the condemnation of s^d Barque Speedwell & her appurtenances accordingly

Upon Reading & Due consideration of Comission & Evidences presented, The Court decre the s^d Barque Speedwell a lawfull Prize to the Captor.

Capt^{me}. Cyprian Southack Comander of the Ship Porcupine by his libel and- Information exhibited unto this Court, givinge the Court to understand and be Informed that in pursuance of a Comission given him by y^e Lords Comission's for executing the office of Lord High Admiral of England &c bearing date the sixteenth day of July 1689, in the first yeare of the Reign of Our soveraigne Lord & Lady William & Mary King & Queen over England &c and Instructions thereto annexed for the taking or seizing any Merchant ship or ships belonging to France, or ship or ships of any Dominion under the French Power, or any ship or ships trading to or from France or any French Dominion & to bring such ship or ships into any Port or Ports within their s^d. Ma^{ties}. William & Mary's Soveraignty or of their friends or Allies to be proceeded ag^t. as suspected Prize. He the s^d. Cap^t. Cyprian Southack cruising in s^d. Ship Porcupine neer the Isle of Persy in Northern France on the eighth day of June in the Third yeare of their Ma^{ties}. Reigne over England &c. did take & seize a small Ship or Barque called the s^t. John Frigott of Quebeck whereof one master Millevashe (or Thousand Cow) was Comander being burthen about fforty Tuns or thereabouts belonging to the French Kings subjects haveing on board severall sorts of French Goods suitable for an Indian trade, and is become a lawfull Prize to the || s^d || Cyprian Southack who hath brought the same into this Port for the Condemnation thereof as the Law directs, praying the Advice of this Court in the premisses and due process in the law, & that Judgement might pass ag^t. s^d. Ship or Barque called s^t. John Frigott together wth. all her rigging, tackle, furniture apparell & cargoe to y^e s^d Cyprian Southack as a free & lawfull Prize according to the Comission & Instructions given to him as afores^d & || y^e || Proclamatioⁿ and Statutes in that case made & provided

Upon the Reading & Consideration of the Evidences produced both English & ffrench, that the ship or Barque s^t. John Frigott of Quebeck did at the time of her takeing belong to the Inhabitants of Quebeck subjects of the French King & Enemies to

their Ma^{ties}. William & Mary King & Queen of England &c. The Court do adjudge declare & decree the s^d ship s^t. John Frigot of Quebeck with all her rigging tackle apparell & loading to be a lawful prize to the s^d captor.

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Capt^{ne}. Samuel Adams Comānder of the Briganteen Boneta by his Libel and Information exhibited unto this Court, givinge the Court to understand & be informed, That in pursuance of a Comission given him by y^e Honor^{ble}. Simon Bradstreet Esq^r. Govern^r. of this their Ma^{ties}. Colony of the Massachusetts Bay, with y^e consent of y^e Council bearing date y^e 23^d. day of ffebruary Anno Dm. 169⁰/₁ in the third year of the Reign of o^r. soveraign Lord & Lady William & Mary by the Grace of God of England Scotland France & Ireland King & Queen defend^rs of the ffaith &c and Instructions thereto annexed did permit and allow him s^d. Samuel Adams to take the Comānd of Cap^t. of the s^d Briganteen Boneta of Boston belonging to their Majesties good & loyall Subjects in the Colony afores^d. by them at their owne proper costs & charges fitted & set forth for the securing these coasts & the seas adjacent from the attacks and spoiles of the ffrench King subjects upon & ag^t. their Ma^{ties}. good subjects, and for weakning the power of their Ma^{ties}. enemies the French by vertue of which Comissions & Instructions thereto annexed especially in obedience unto the pursuance of the ffifth Article of the s^d Instructions viz^t. you are to bring in all ships or Vessels or goods of the enemies which you shall seize or take from the ffrench the declared & professed Enemies to the Crown of England into this Port to be proceeded ag^t. as suspected, And the s^d. Cap^t. Adams in the in the * s^d. Briganteen Boneta, cruising upon the Banks of Newfoundland upon the second day of June 1691 in the Third year of their Ma^{ties}. Reign, the Ship called y^e Marquess Royan, v whereof was master or Comānder Peter Richard one of the French Kings Subjects) of burthen about one hundred & ffifty Tuns, manned with ffrench men, and belonging to the ffrench Kings Subjects, haveing on board her a quantity of ffrench salt & core ffish & some Earthen ware did attack & seize & into this their Ma^{ties}. Port have brought in order to an adjudication & condemnation as a lawfull Prize, Praying the Advice of this Honrd. Court and due Process in the law & that a Sentance of Condemnation may pass ag^t. s^d. Ship her Guns Amūnition Tackle Apparel furniture and loading as afores^d. as a lawfull Prize to be divided,

* Repeated in the record.

(the Guñs & Añnition in her taken to be to the sole use of their Ma^{ties}. King William & Queen Mary, and the ship her Tackle Apparel ffurniture & goods among the s^d Samuel Adams, the owners & setters forth of the s^d Briganteen & her Company according to Instructions afores^d. and Articles between the owners of s^d. Briganteen & himselfe & Company, And Proclamacōn & statutes in that case made & provided_A

Upon Reading & Consideration of the Evidences produced and y^e Confession of Jaques Jamet, Charls de Champs and ffrenchmen of the Company belonging to s^d. Ship Marquess of Royan at y^e time of her being taken, that y^e s^d ship did wholly belong unto Mons^r. Abraham Michard Merch^t. in Rochell a subject of the French King.

The Court do adjudge & decree the s^d. Ship Marquis of Royan with all her rigging Tacklin Apparell & lading to be a lawfull Prize || un || to the || s^d. || Captor./

[261]

John Cutler jun^r. on Appeal from the sentence of the County Court held at Charlstowne June 19th. 1691. where s^d. Cutler was sentenced to pay twenty pounds money as a fine &c. For Reproachfull words by him uttered ag^t. the present authority &c. The Courts Judgem^t. Reasons of Appeal & Evidences in the Case were read & cōmitted to y^e Jury. The Jury return their Verdict. They find the Appell^t. not guilty.

JAHLEEL BRENTON Gent Collect^r. sury^r &c of
their Maj^{ties}. Customs in New-Engl^d Pl^t.
vers.

Pink. THREE BROTHERS, Thomas Wilkinson Com-
mander def - - -

Upon his libell
or Informacōn for
Breach of the Act
of the 12^o of King

Charles y^e second Intituled an Act for the Encourageing & increasing of shipping &c and also for Breach of one other Act of the 15^o. of s^d. King Charles Intituled an Act for the incouragem^t of trade &c as is at large recited in the Information. The Pl^t. setting forth that the s^d. Pink imported Sundry Goods wares & merchandize of y^e Growth Production & Manufacture of Europe viz^t. Fifty tons salt, two hundred Cask of Raysins, five hh^{ds}. of Brimstone, one Butt & two smaller cask of Oile Sundry cask of wine &c The defend^t. Thomas Wilkinson pleaded not Guilty and both parties Joyn Issue. The Information, defend^t. Answer

and Evidences in the case being read and Pleas by both parties made The Case was committed to the Jury. The || Jury || return their Verdict on their Oaths viz^t. They find the Pink THREE BROTHERS, whereof Thomas Wilkinson is Comānder, not Guilty according to Information. The Court Record this Verdict. Jahleel Brenton Gent. Pl^t. Appealed from this Judgem^t. to their Ma^{ties}. in Council & gave bond to prosecute his s^d Appeal wth effect.

m^r. John Croad appeared in Court of Assistants Septemb^r. 22. 1691. & presented his Petition shewing forth, that he recovering a Judgem^t. at the last County Court held in Salem ag^t. Cap^t. John Price surviving Executo^r. of the last will & Testam^t. of Cap^t. Walter Price sometime of Salem dec^d. From w^{ch}. Judgement s^d. Cap^t. John Price appealed & since that time y^e s^d. Cap^t. John Price is dead, and neither Ex^{rs}. nor Adm^{rs}. appearing to prosecute s^d Appeal, and none Appeal being entred, The Petition^r. desired that his appearance to defend s^d. Case might be entred & recorded, w^{ch} was granted & is accordingly done./

m^r. Francis Burroughs, m^r. James LLoyd & m^r. Benj^a. Alford are comissioned & appointed a comitte^e to apprise the Katch Salisbury Nicolas Lawrence late Comānder with her Tackle & Apparel &c and the Goods imported in s^d Katch now under the seizure of Jahleel Brenton Gent collect^r. survey^r. &c of their Ma^{ties} Customes in New-England and to make report of their doings herein under their hands to this Court with what Convenient Speed they can. — — —

m^r. Hezekiah Usher Petitioning the Court, that he might have an hearing of two actions he commenced ag^t. the Adm^{rs}. of m^r. Richard Wharton late of Boston merch^t. dec^d. at July Court, 1691. The Court grant he shall have an hearing of y^e s^d cases at Octob^r. Court upon y^e same Process & Entry.

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Josiah Littlefield bound over to this Court by the County Court of Salem to answer for his uttering such words as that he would swear point blank that he knew some men that had sold the Indians Powder & shot & being Examined denied the same. The Court order him to pay ten shillings money fine to their Ma^{ties}. & fees of Court, standing committed &c^a.

Joseph Downer of Newberry bound over to this Court by the County Court of Salem to answer for reporting that the Indians killed a man at y^e eastward and so they might well enough for that y^e Indians had powder & shot sold them under a pretence of cut Tobacco &c s^d Downer acknowledged in Court that he spake unadvisedly, and humbly begg'd the Courts Pardon, upon w^{ch}. the Court dismissed him paying ffes of Court.

Elizabeth Emmerson single woman Daughter of
26th Sept. Michael Emmerson of Haverhill in the County of Essex being indicted by the Jurors for o^r Sovereigne Lord & Lady King William & Queen Mary upon their Oathes. For that the s^d. Elizabeth Emmerson being with child with two living Children or Infants on Thursday night the 7th. of May 1691 before day of Fryday morning at Haverhill afores^d in the house of Michael Emmerson afores^d by the Providence of God two Bastard Children alive did bring forth, and the s^d. Elizabeth Emmerson not haveing the feare of God before her Eyes but being instigated by y^e Devil of her malice forethought, the s^d two Infants did feloniously kill & murther, and them in a small Bagg or cloath sewed up, and concealed or hid them in s^d Emmersons house untill afterwards, that is to say, on sabbath day May the tenth 1691, the s^d two Infants in the yard of s^d Emmerson in Haverhill afores^d. did secretly bury contrary to the peace of Our Sovereign Lord & Lady the King & Queen, their Crown & dignity, the Laws of God, and the Lawes & Statutes in that case made & provided

Upon which Indictment the s^d. Elizabeth Emmerson was arraigned and to the Indictment pleaded not guilty & put herselfe upon Tryal by God & the Country, * a Jury was impannelled being the first Jury, whereof m^r. Richard Crisp was foreman, and were accordingly sworne (the prisoner making no challeng) The Indictment Examination & evidences were read, & the prisoner made her defence, The Jury return their Verdict, The Jury say, That she s^d. Elizabeth Emmerson is guilty according to Indictment. The Court order, That sentence of Death be pronounced ag^t. her.

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M^r. John Joyliffe, Cap^t. Penn Townsend, Cap^t.
Comissioners of Boston Theophilus ffrary, m^r. Edw^d. Bromfield m^r Jeremiah Dumer & m^r. John Eyre chosen Comissioners for the Towne of Boston

* Left blank in the record.

were sworne before the Court September 29. 1691. & m^r. Tim^o. Thornton was sworn about a week after.

Elizabeth ffanning, after Proclamation by an Fanning discharg'd Oyes. three times made in Court October pr^o. 1691. That if any Person or Persons could give in Evidence ag^t. s^d Elizabeth of Treason, ffelony or High Misdemeanor, they should come in & be heard, for y^t. shee stood on her deliverance, and none appearing s^d. Elizabeth was discharged.

Bridget Denmarke servant maid of Duncan Cam- Denmarke indicted bell of Boston Stationer Indicted by the Jurors for o^r. Sovereigne Lord & Lady the King & the Queen upon their Oathes, for that the s^d Bridget Denmarke on the tenth day of April 1691. about seven or eight of the clock in the evening of that day with force & armes upon Rice Griffin of Boston labourer upon the wharf neer the dock in Boston in the Peace of God & the King being an Assault did make & with force & violence with her hands into the dock the s^d Rice Griffin did wilfully & maliciously thrust & thereby oct^r pr^o. him by drowning in the water & mudd in the s^d dock being, feloniously kill & murther, contrary to the Peace of o^r s^d Lord & lady the King & Queen their Crown & dignity, the Laws of God, & the laws & statutes in y^t case made and provided. Upon which Indictment s^d Bridget denmark was arraigned, pleaded not guilty, & put her^a upon Tryall by God & y^e Country. The Jury is impanelled whereof m^r Rich^d Crisp is fore^m, & sworne (the s^d Bridget makeing no challenge) upon the Tryall & past upon her. And brought in their Verdict, that is to say. The Jury say they find s^d Bridget Denmark Guilty of Man-slaughter by accident ꝑ chance

Ordered, that s^d Bridget denmark pay twenty pounds fine to their ma^{ties}. and to pay charges of prosecution & fees of Court, and to remain in Prison till this order be pformed.

Richard Lillie son of Edward Lillie || late || of Boston Cooper In- dicted by the Jurors for our Sovereign Lord & Lady William & Mary King & Queen of England &c upon their Oaths, ff^ror 2d that the s^d Richard Lillie upon the 25 day of July last past about five a clock in the afternoon in the Harbor of Boston afores^d on board the Briganteen Samuel, John Robinson master, upon Charles Hopkins of Boston, an Assault did make giving him a mortall

wound in the groin by discharging a Buckaneer Gun at him of w^{ch}. wound he died. Upon which Indicted the s^d Richard Lillie being arraigned pleaded not Guilty, and put himselfe upon Tryall by God & the Country. The first Jury of Tryalls were called whereof m^r. Rich^d. Crisp was foreman, and the prisoner makeing no challenge were sworn for his Tryal & past upon him. And the Jury brought in their Verdict, that is to say, They find s^d. Rich^d. Lillie guilty of Manslaughter by Misadventure. The Court order s^d. Rich^d Lillie to pay ffive pounds money a fine to their Ma^{ties}. & twenty pounds money to Margaret the widow of s^d Charles Hopkins, & charges of Prosecution & fees of Court & to remain in Prison till he pform this sentence.

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In answer to the Petition of John Cutler jun^r. praying that he may have an hearing of his case, on an appeal from the County Court holden in Charlstowne in December 1689. The Court granted the Petitioner his request. viz^t. That his Case shall be heard at the next Court of Assistants to be holden in Boston in March next, and in the mean time that Execution be respited

Attest Joseph Webb cler

The Court was adjourned to the sixteenth of October at nine a clock in the Morning & then sate.

Present The Hon^{ble}. Simon Bradstreet Esq^r. Gov^r.

Samuel Appleton	$\left\{ \begin{array}{l} \text{Esqr.} \\ \text{Assistts} \end{array} \right.$	James Russell	$\left\{ \begin{array}{l} \text{Esqr.} \\ \text{Assistts.} \end{array} \right.$
John Hathorn		Samuel Sewall	
Elisha Hutchinson		Isaac Addington	
John Phillips		John Smith	

Martin Williams a stranger late Resident in Salem Bricklayer being presented & indicted by the Jurors for our Sovereigne Lord & Lady the King and Queen upon their Oaths, That is to say, That s^d. Martin Williams intending falsly craftily & deceitfully to defraud the Good People of this their Ma^{ties}. Colony of New-England, at Salem afores^d on the sixth day of April 1691. in the Third yeare of their Ma^{ties}. reigne, Five peices of false counterfeit money of false & mixt mettals to the likeness of Spanish money called peices of Eight, not being the proper Coine of the Kingdome of England, but the same being curr^t. in this

Williams
Indicted

their Ma^{ties}. Colony of the Massachusets in New-Engl^d. and others their Ma^{ties}. Colonies & Plantations in America, falsly did counterfeit, make

Jury Sworne

Cap^t. Richard Crisp
Edward Creeck
Thomas Stanbury
John Scott
Joseph Leeds
John Capen junr.
Nathanael Adams
Abraham Hill
William Russell
Thomas Hammond
Nath^l. Norden
James Barnes

& coine. And upon the s^d sixt day of April 1691 about nine a clock in the Evening, one of the s^d false counterfeit peices of Eight for y^e value of six shillings curr^t. money of this Colony did utter & put away contrary to the laws & statutes in that case made & provided. The s^d Martin Williams being brought to the Barr & arraigned upon s^d Indictment pleaded not guilty, and put himselfe upon Tryall by God & the Country. The Jury was called (Cap^t. Richard Crisp foreman) & sworn to pass upon his Tryall, the Evidences in y^e Case were read (the witnesses appeared)

and owned by s^d Williams. The Case was comitted to y^e Jury, The Jury gave in their Verdict, viz^t. They find the s^d Martin Williams guilty of falsly & ffraudulently uttering of false Counterfeit money according as is expressed in the Indictment. The Court order that the s^d. Martin Williams shall stand three || severall || Lecture dayes in Boston, in the Pillory, one houre each time after the lecture wth. a Paper signifying his Crime, and that he pay charges of Prosecution, and ffees of Court & Prison & remain in Custody till this Order be performed. /

Ordered that John Newhall Tertius of Lynn & John Blaney be sent for to appeare at the Court of Assist^{ts}. on their Adjournm^t.

The Court adjourned to the second Tuesday in Decemb^r. next at one of the clock in y^e Afternoon.

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The Court mett, and adjourned to Wednesday 9th of December at nine a clocke morning, thence to the Eleventh at One a clock in the afternoon

Whereas Nicolas Lawrence late master or Comander of the Katch Salisbury had given bond to prosecute his Appeale before the Comissioners of the High Court of Admiralty, from a Judgem^t. Jahleel Brenton Gent. Collect^r. &c of their Ma^{ties}. Customs in New-Engl^d. recovered on an Informacōn vers s^d Katch Salisbury &c, which, never intended when they granted his appeal but to their Ma^{ties}. in Council,

Order about
Nic: Lawrence's
Appeale

Ordered, that the entry be rectified & amended according to the true Intent & as the s^d Appeale was granted

Court adjourned to Thursday the 24th decemb^r. thence to 25th. at one a clock

Hannah Owen of Braintree comitted to the Prison in Boston for that by indirect meanes Josiah Owen & s^d Hannah Owen procured a marriage ~~notw~~ they being within the line of kindred or affinity forbidden Marriage by the Word of God & Statutes of England, Appeared, and owned she was s^d. Josiah owen's Brothers Relict. The Court do order, That the s^d Hannah do for the future no more cohabit wth. s^d Josiah Owen, or have fellowship with him as with an husband, and that she make a publick acknowledgement of her sin & evil before the Congregation at Braintree on their Lecture day, or on the Lords day.

[Blank.]

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At a Court of Assistants holden in Boston March pri^o. 1691½

Present

Simon Bradstreet Esq^r. Gov^r.

Thomas Danforth Esq^r. Dep^y. Gov^r.

James Russell	} Esq ^{rs} . Assist ^{ts} .	William Stoughton	} Esq ^{rs} . Assist ^{ts} .
Wait Winthrop		Samuel Sewall	
John Phillips		Isaac Addington	

Grand Jury sworne

Lt. Richard Way Jarvis Ballard Thomas Harwood Thomas Bannister John Cotta Henry Bowen John Watson Henry Garnsey Thomas Trotter sen ^r . Rich ^d . Lowden Thomas Bligh Thomas Cheeney James Hubbard Richard Norcross Theophilus Roads	CAP ^t EDWARD WYLLY of Boston shopkeeper Pl ^t . vers EDWARD THOMAS of s ^d Boston Merch ^t . def ^t .	} On Appeal from the Comission ^{rs} Court held in Boston december 24. 1691. where Judgem ^t . was for the Pl ^t . Thomas Three pounds sixteen shillings money & costs. The Courts Judgem ^t . Reasons of Appeal & Evidences in the Case being read & comitted to y ^e Jury. The Jury find for the defend ^t . Confirmation of the former Judgem ^t . & costs of Courts.
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Jury of Tryalls sworn	NATHANAEL THAIRE of Boston Pl ^r .	}	On Appeal from the Judgm ^t . of the County Court
	vers.		
m ^r . Jacob Melyne forem ⁿ Roger Kilcupp Jabez Salter John Henneway Isaac Newell Thomas Morey James Foster Increase Sumner James Blake Joseph Kettle John Simson Reuben Luxford	ELIZABETH TOWNSEND Relict of James Townesend - - - def ^t .		

held in Boston October 27. 1691. where Judgem^t. was [^] the Pl^r. That the defend^t. do forthwith deliver to y^e Pl^r. Possession of the p^t of the house sued for as it was layd out by Order of Court & costs. The Courts Judgem^t. Reasons of Appeal & Evidences in the Case were read, and comitted to the Jury. The Jury find for the defend^t. Confirmation of the former Judgem^t. & costs of Courts. Execution issued March 28. 1692

2 Jury of Tryalls sworn	ARTHUR MASON Guardian to Tho: Gatliff son of Jonath ⁿ . Gatliff of Boston Marrin ^r . dec ^d . Pl ^r .	}	On Appeal from y ^e Judgm ^t . of the County Court hat * at
	vers.		
m ^r . Jonath ⁿ . Remington Robert Cumbe William Hobbey Jacob Newell Robert Spurr Samuel Kettle Joseph Ryall Nicolas Fessendon Jason Russell Amos Merrit Thomas Straite Jonathan Smith	SAMUEL LEGG of Boston Marrin ^r . def ^t .		

Boston October 27. 1691. where the Pl^r. recovered Judgem^t. ag^t. y^e Appel^t. Ten Pounds in money & costs. The Courts Judgem^t. Reasons of Appeal & evidences were read & comitted to y^e Jury. The Jury find for the Appel^t. Reversion of the former Judgem^t. & costs of Courts.

ANDREW BELCHAR Merch ^t . Pl ^r . vers JAMES LLOYD Merch ^t . defend ^t .	}	On Appeal from the County Court holden in Boston January 26 th . 1691½ where Judgem ^t . was for the defend ^t . costs of Court, the Appel ^t . suing y ^e def ^t . in an action of Debt for non paym ^t . of two hundred & fifty pounds justly due by one Obliga- tion or charter party under y ^e hand & seale of s ^d James LLOYD in- dented & made 22 th July 1691 for going into y ^e parts of Nova Scotia not in Amity w th . the King of Engl ^d . &c as is more at large specified in y ^e Attachm ^t . & Courts Judgem ^t . The Appel ^t . desired a special Jury of Merch ^{ts} &c and he would be at y ^e charge w th . was accordingly granted

Error in the record for " held " ?

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Special Jury sworn

Capt. Edward
 Wylls
 Robert Howard
 David Jefferyes
 Nathanael Carey
 John Balston
 William Welsted
 Richard Way
 James Barnes
 John Hayward
 William Griggs
 Sam^l. Phipps
 Joshua Gee

and a Jury summoned whose names are in the Margent. The Courts Judgem^t. Reasons of Appeale & evidences in the case were read & Pleas made. The case was committed to the Jury. The Jury returned their Verdict thereon viz^t. They find for the Appell^t. Reversion of the former Judgem^t. & forfeiture of the charter Party, two hundred & fifty pounds money & costs of Courts

James Lowden Appellant from the County Court at Cambridge October 6th. 1691. where the Court sentenced s^d. Lowden to pay five pounds in money fine to y^e County & fees of Court &c being found Guilty of slaundering m^r. James Russell in the discharge of his Magistraticall office. The Courts Judgem^t. Reasons of Appeal & evidences being read were committed to y^e Jury. The Jury find Confirmation of the former Judgem^t. and costs of Courts.

	DANIEL HOVEY sen ^r . of Ipswich Pl ^t .	} On Appeal from the Judgm ^t of the County Court held at Ipswich
Hovey vers.	vers	
Perkins	ABRAHAM PERKINS defend ^t .	

Septemb^r. 29. 1691. where Judgem^t $\wedge$ for the Plaintiff the land in controversy & costs. The Courts Judgem^t. Reasons of Appeal & Evidences in the case were read & committed to the Jury. The Jury find for the Appell^t. Reversion of the former Judgem^t. & costs of Courts.

	SETH PERRY of Boston Pl ^t .	} On Appeal from the County Court
Perry vers.	vers.	
Alford.	BENJ ⁿ . ALFORD of s ^d Boston defend ^t .	

holden in Boston 26th January 1691½ in an action of Review, where the Appell^t. was cast Costs of Court. The Courts Judgm^t. Reasons of Appeal & Evidences in the case were read & given to y^e Jury. The Jury find for the defend^t. Confirmation of former Judgem^t & costs of Courts.

	JOHN WAITE Pl ^t .	} On Appeal from the Judgem ^t . of y ^e County Court held at Charls- towne decemb ^r . 29. 1691. where the Jury found for s ^d Newhall y ^e Pl ^t .
Waite vers	vers.	
Newhall	THOMAS NEWHALL defend ^t .	

four pounds money according to Bill & costs. The Courts Judgem^t. Reasons of Appeal & Evidences in the case being read & committed to y^e Jury, The Jury find for Thomas Newhall Confirmation of y^e former Judgem^t. & costs of Courts.

Somes vers Lake	JOHN SOMES of Boston Appel ^t .	} On Appeal from the County Court of Suffolke Jan ^{ry} .
	vers.	
	LANCELOTT LAKE of s ^d Boston defend ^t .	

26. 1691 $\frac{1}{2}$ where the defend^t. recovered Judgem^t. ag^t. the Appel^t. That he give the defend^t. an Acco^{ts}. of the Goods sued for & costs of Court. the s^d Lancelot Lake suing for an acco^{ts} with the Produce of Sundry Goods & merchandize as p^p Attachm^t. The Courts Judgement, Reasons of Appeal & evidences in the case being read & committed to the Jury. The Jury returned their Verdict, They find for the defend^t. Confirmation of the former Judgement and do adde that the Appel^t. shall within one month give acco^{ts}. to y^e defend^t. of his disposall of the Goods he rec^d. as Attourney of y^e def^t. & now sued for, or pay to y^e def^t. in curr^t. money, two Hundred twenty four pounds & costs of Courts.

[268]

Arnold vers. Belcher	JOHN ARNOLD Prison keeper in Boston - - - Pl ^t .	} On Appeal from the Judgem ^t . of the County Court
	vers.	
	JOSEPH BELCHAR of Braintree defend ^t .	

holden in Boston October 27th. 1691. where Judgem^t. was for the Pl^t. Belchar ffourteen pounds nineteen shillings & ten pence mony & costs. The Courts Judgem^t. Reasons of Appeal & evidences in y^e case being read and comitted to the Jury The Jury find for the Appel^t. Reversion of the former Judgem^t. & costs of Courts.

Davison ver Potter	DANIEL DAVISON jun ^r of Ips- wich Pl ^t .	} On Appeal from the County Court held at Ipswich
	vers.	
	EDMOND POTTER of Ipswich defend ^t .	

Sep^r. 29. 1691. Where the Judgem^t. was Confirmation of y^e former

Judgem^t. & costs of Courts. The Courts Judgem^t. Reasons of Appeal & Evidences in the case being read & comitted to y^e Jury. The Jury find for y^e defend^t. Confirmation of the former Judgement & costs of Courts.

Smith vers Nash	THOMAS SMITH of Boston _____ JOSEPH NASH of Boston	Smith Pl ^t . vers. Marrin ^t . def ^t .	} On Appeal from the Judgem ^t . of the Comission's
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Court held at Boston decemb^r. the 29th. 1691. Where Judgem^t. was for the pl^t. Nash ff^y forty shillings in money and costs. The Courts Judgem^t. Reasons of Appeal & Evidences in the case were read & comitted to y^e Jury. The Jury find for the defend^t. Confirmation of the former Judgem^t. & costs of Courts.

Duncelin vers Witherett	NATHAN DUNCLIN of Charlstown _____ WILLIAM WITHERETT of Boston	Mar ^r Pl ^t . vers. Merch ^t . defend ^t .	} On Appeal from the Judgem ^t . of the County Court
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holden at Boston October 27. 1691. where Judgem^t. was for the defend^t. Costs of Courts The Courts Judgem^t. Reasons of Appeal & Evidences in the case were read & comitted to the Jury. The Jury find for the defend^t Confirmation of the former Judgem^t. & costs of Courts.

Peggey vers Crisp	EDWARD PEGGY of Boston _____ RICHARD CRISP of Boston	Pl ^t . vers. defend ^t .	} On Appeal from the Judgem ^t . of the County Court
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held at Boston January 27. 169 $\frac{1}{2}$ where Judgem^t. was for the pl^t. Thirteen pounds in p^e. of Eight at five shillings a peice & costs. The Courts Judgem^t. Reasons of Appeale & Evidences in the case were read & comitted to y^e Jury. The Jury find for the Appell^t. Reversion of the former Judgem^t. & costs of Courts.

Shrimpton
vers
Brenton

SAMUEL SHRIMPTON Esq^r. Owner
of the Briganteen Mary . . . Appel^t
vers JAHLEEL BRENTON Gent Col-
lector survey^r & searcher of their
Ma^{ties}. Customs in New Engl^d def^t.

} On Appeal from
the Judgem^t. of
the County Court
holden in Boston

February 17th continued by Adjournm^t. from 26th January 1691½ upon an
[269]

Information or libell against the Briganteen Mary, for the breach of the Act of the 12^o of King Charles the second Entituled an Act for y^e In-
courageing & increasing of shipping & Navigation &c^a. as also upon y^e
Act of || y^e || 25th of the s^d King Charles as is more at large Expressed
in the County Courts Judgem^t. said Briganteen being forfeited for
haveing her full ladeing of hides & Tobacco not giving bond nor paid
duties for the same according as p^s s^d Act is required. Issue is there-
upon Joyned. The Courts Judgem^t. Reasons of Appeal, the defend^t.
answer & Evidences in the case being read, and Pleas by both parties
made, The case was comitted to y^e Jury. The Jury upon their Oathes
return their verdict for the Appellant. Reversion of the former Judge-
ment.

Lambe &c
vers
Clarke attorney.

ABIEL LAMBE & SOLOMON RAYNS-
FORD Pl^t.
vers
M^r ADAM WINTHROP Treasurer of
the County of Suffolk by John
Clark his Atto^{ny}. defend^t.

} On Appeal from
the County Court
holden in Boston
on the 27th day of

October 1691. where the Appell^t. was cast forfeiture of the Bond one
hundred & fifty pounds money & costs of Court. The Courts Judgem^t.
Reasons of Appeal & Evidences in y^e Case being read committed to the
Jury & are on file, The Jury returned their verdict thereon viz^t. They
find for y^e defend^t. Confirmation of the former Judgement & costs of
Courts.

GEORGE DANSON Pl^t.
vers
CAP^t. JOHN WING def^t.

} This action fell, no reasons of Appeal being
returned.

Milner vers. Wing	NATHANIEL MILNER Mairin ^t .	}	On Appeal from the Judgem ^t . of the County Courtholden in Boston Octob ^r .
	Pl ^t .		
	vers CAP ^t . JOHN WING of Boston defend ^t .		

27th. 1691. where Judgem^t. was for the pl^t. Jn^o Wing seven pounds twelve shillings & eight pence & costs. The Courts Judgem^t. Reasons of Appeale and Evidences in the case were read & comitted to y^e Jury. The Jury find for the defend^t. Confirmation of the former Judgem^t. & Costs of Courts.

CAP ^t . JOHN MARCH of Newbery Pl ^t . vers. RICHARD CARR of Salisbury def ^t .	}	The Appell ^t . was nonsuited on non appearance, & y ^e def ^t . Rich ^d . Carr moved y ^e Court

for his Costs, w^{ch}. was granted for his Attendance &c at this Court w^{ch}. amounts to twenty eight shillings wth. certificate. The costs at Ipswich Court & before Maj^r. Saltonstall not being brought into this Bill of costs but left to Ipswich Court bill that is allow^d there.

attest J. Webb cler

Stanbury vers Harris	THOMAS STANBURY of Boston Pl ^t .	}	On Appeal from the Judgem ^t . of the County Court
	vers.		
	RICHARD HARRIS of s ^d Boston Defend ^t .		

January 26th. 1691½ where the Judgem^t. was for the defend^t. costs of Court The Courts Judgem^t. Reasons of Appeal [270]

and Evidences in the Case were read & comitted to the Jury. The [^] find a special Verdict to this effect. That George [^] * shipmaster lands from on board his ship, a parcell of salt in the warehouse of y^e defend^t. which s^d. salt was shipped on board by William Ball as appeares by receipt under George Ball's hand, we find proved that this salt was sold by s^d. W^m. Ball unto the pl^t. as appeares by the Testimonyes of Richard Arnold that saw it measured unto y^e pl^t. as also owned by the defend^t. as appeares by the testimony of Thomas Edwards, also that he agreed with the pl^t. about the warehouse room for s^d salt as appeares by the testimony of s^d Edwards & m^r. Epaphras Shrimpton If therefore the

* Ball?

defend^t. is by law obliged to deliver s^d salt to y^e pl^t. on his demand without the special order of George Ball who first delivered the same to him, we find for the pl^t. the salt in Controversy wth. Reversion of the former Judgem^t. & costs of Courts. If otherwise for the defend^t. Confirmation of y^e former Judgem^t. & costs of Courts.

The Magistrates on consideration of the * declare
for y^e Appell^t. the salt in controversy, Two hundred sixty seven bushells & costs of Courts.

Foy vers Robie	CAP ^t . JOHN FOY of Boston Marrin ^r . Pl ^t . vers WILLIAM ROBIE of Boston Merch ^t . ffeeffee in trust for Mary Loder late wife of John Loder def ^t	}	On Appeal from the Judgem ^t . of y ^e . County Court
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holden in Boston Octob^r. 27 1691. where Judgem^t. was for y^e Pl^t. Robie, Two hundred pounds mony and costs. The Courts Judgem^t. Reasons of Appeale & evidences in y^e Case produced were read & comitted to y^e Jury The Jury return a speciall verdict That if the Execution levyed on the ship Dolphin, and possession given to m^r. Robie of the same do invest the right & power in m^r. Robie as ffeeffee in trust then we find for the defend^t. confirmation of the former Judgem^t. & costs of Courts, if otherwise we find for the Appell^t. Reversion of the former Judgem^t. & costs of Courts

The Magistrates declare for the Appellant Reversion of the former Judgement & costs of Courts.

Green ver Fox.	SAMUEL GREEN in behalfe of himselpe and as Attorney to his Brethren Pl ^t . vers THOMAS FOX defend ^t .	}	On Appeal from the County Court held at Charles.
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towne decemb^r. 29. 1691. where Judgem^t. was for the defend^t. Title to y^e land in controversy & costs of Court. The Courts Judgement Reasons of Appeale and evidences in the case produced being read & comitted to y^e Jury The Jury find for the defend^t. Confirmation of the former Judgement & costs of Courts.

* Left blank in the record.

[271]

Stratton vers. Gidley.	RICHARD STRATTON Appell. vers. HEZEKIAH GIDLEY defendt.	}	On Appeal from the Judgem ^t . of the County Court at
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Charlstowne in december 1691. where s^d Hezekiah Gidley sued s^d. Stratton for illegally possessing himselfe of an house & land in Chelmsford &c which of right belonged to s^d Gidley's father & w^{ch}. he dyed seized of as his owne proper real Estate &c and recovered Judgem^t. ag^t. the Appell^t. Title to y^e land in controversy & costs of Court. The Courts Judgem^t. Reasons of Appeale & Evidences in the Case were read & comitted to y^e Jury The Jury find for the defendt. Confirmation of y^e former Judgem^t. & costs of Courts allowed two pounds eight shillings ten pence. Execution issued for Costs March. 25. 1692

Tay vers Harwood	JEREMIAH TAY of Boston Marrin ^t . Pl ^t . vers. THOMAS HARWOOD & Rachel his wife def ^t .	}	On Appeal from the Judgem ^t . of the County Court holden in Boston Jan'y 26.
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169 $\frac{1}{2}$ where Judgem^t. was for y^e Pl^t. Possession of the house & land sued for & costs of Court. The Courts Judgem^t. Reasons of Appeal & Evidences in the Case were read & comitted to the Jury. The Jury find for the Appellant Reversion of the former Judgem^t. & costs of Courts.

Thatcher vers Thatcher	MARY THATCHER of Boston widow. Pl ^t . vers. M ^r . PETER THATCHER of Milton def ^t .	}	On Appeal from the Judgem ^t . of the County Court holden in Bos- ton January 26. 169 $\frac{1}{2}$
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where Judgement was for the Pl^t. The Possession of the house & land sued for & costs of Court. The Courts Judgem^t. Reasons of Appeal & evidences in the Case were read & comitted to y^e Jury The Jury find for the Defend^t. Confirmation of the former Judgem^t. and costs of Courts.

Checkley vers. Grigs	CAP ^t . ANTHONY CHECKLEY Pl ^t . vers. WILLIAM GRIGGS defendt.	}	On Appeal from the Commission ^r . Court held in Boston
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February 9th. 169½ where the Judgm^t. was for the Pl^t. six pounds money & costs of Court. The Courts Judgem^t. Reasons of Appeal & Evidences in the case were read & comitted to the Jury. The Jury return their Verdict viz^t. They find for the defend^t. Confirmation of the former Judgem^t. & costs of Courts. Execution issued March 23. 169½

[Here ends the record of the Sessions of the Court of Assistants.]



[RECORD OF EXECUTIONS.]

[The following record of executions is at the end of the volume, the paging beginning with the third leaf from the end, the preceding two leaves being blank. The beginning of each page of this part of the original record is indicated here by [1^a] [2^a] &c. The whole of this record is in the handwriting of Edward Rawson, the Secretary.]

[1^a]

Att this end of the Court of Assistants booke of Records stands Recorded such executions as haue binn Returnd & by y^e partjes Concerned so desired to be so entred at words in length e^r

Att A Court of Assistants held at Boston y^e 2^d Septembe^r 1673.

ffatherGon Dinely Administrato^r to the estate of John Dinely decesad plantiff ag^t the estate of Cornelius stenwicke in the hands of Cap^t w^m Daus In an action of Appeale from the Judgment of the County Court at Boston in July last = After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Comitted to the Jury and are on file wth the Reccords of this Court the Jury brought in their virdict they found for the Appellant Reuerision of the forme^r Judgment wth the land in Controuersy & Costs of Courts fowe^r pounds ten shillings & two pence = This Judgment stands entred as the law directs from march nex^t 167 $\frac{3}{4}$ That this is A true Copy taken out of the Courts book of Reccords

Attests Edwrd Rawson Secr^y

To Edward Mitchelson marshall Generall or his deputy These require yow in his Majtys name by way of execution to levy & execute the Judgmen^t aboue written in all respects and deliuer the same wth two shillings for this execution to Fathe^rGon Dinely administrato^r administrato^r * aforesajd and is in sattisfaction of the aboue saj^d Judgment granted him by the Court of Assistants sitting in Boston as aboue saj^d making yo^r returne as the law directs & not faile dated in Boston 9th of march 167 $\frac{3}{4}$ By y^e Cour^t Edward Rawson secrety vnd^rwritt

* Repeated in the record.

This Execution was se'ved according to the aboue written order and the land deliuered to the Appellan^t only wee did not gett any Costs Capt Daus being but an Attorney denyⁿ to pay any Costs this 22 of (1) mo 167⁴ Edward michelson marshall Gen^l

This execution & Return is entred & Recorded word for word & Compared wth the originall on file this 8th Aprill 1675 at Reques^t of fathe'gon Dineley
 p Edw: Rawson secre^t

[Blank]

[5^a]*

Att A Court of Admiralty or Court of Assistants held at Boston in New England the 16th of Decembe^r 1675

In the Case brought to this Court by the libell & complaint of Nicholas skinner master of the ship Doue in behalfe of himself & Company plaintiff^f (against the sajd ship Doue nicholas moulder p^rouno^r of the sajd ship and James Loyd his Assignee defendan^t) for wages for himself sajd skinner & Company and expenses lajd out on the sajd ship. This Court finds for the plaintiffe^{||} & orders and decrees that the defendant[^] unto the plaintiffe^{||} the sume of two hundred and sixteen pounds nine shillings & fower pence damage in money & costs of this Court three pounds sixteen shillings That this is a true Copie taken out of the Courts Reccords Attests Edward Rawson Sece^{re}^{ly}

To Edward mitchelson marshall Generall or his deputy.

These Require yow in his Maj^{ty}^s name to levy by way of execution on sajd ship Doue Nicholas moulder & James Loyd his Assignee in mony the sume of two hundred and twenty pounds fue shillings and fowe^r pence and deliuer the same to Nicholas skinner master of the sajd ship Doue in behalfe of himself & Company for wages & expenses e^r as aboue in all respects hereof not to faile. Dated in Boston this 21th decembe^r 1675

By y^e Court Edward Rawson Sece^{re}^{ly}

underwritt

That this is A true Copie of y^e execution Attests Edw Rawson secret

Boston 28 decembe^r 1675

Wee whose names are vnde^r written being chosen by m^r Nicholas

* (Pages [2^a], [3^a], and [4^a] are blank except that in the upper left-hand corner of page [3^a] is entered "This Executioⁿ entred 21 of xbr 78." This page [5^a] is numbered in Rawson's hand 5, and is the only page at this end of the book which has an original numbering.)

moulde^r m^r Nicholas skinner & the marshall Geⁿerall for the Country to Aprise the Pincke * Doue whereof is m^r† m^r Nicholas skinner wth hir Appurtenances belonging unto sajd Pincke Doue an Inventory of sajd Pincke & Appurtenances being produced to us and the particculars shewed unto us and vpon our vejwing and ouerhaling of them pticcularly wee doe Apprize the sajd Pincke and Its Appurtenances at the sume of fowe^r hundred forty & fowe^r pounds mony as witt[n]es ou^r hands the day & yeare abouesajd christophe^r Clarke Joseph Cocke nathaniel Greenwood.

vnd^r writt & Anex^t this execution was se^rved on the pinck Doue that was Apprised money as will Appeare by the Aprisement also so much of the vessell was prized and deliuered vnto m^r skinner the wch^r execution amounted to two hundred twenty pounds fue shillings and fuety shilling^s for the se^rving of this execution wch^r I Received of m^r skinner as wittnes my hand the sume is two hundred twenty two pounds fueteen shillings wch^r is the whole of the execution as ||is|| abouesajd and deliuered the same vnto m^r skinner for the sattisfying of the aboue written judgment = 27 ¹⁰/_{mo} 1675 Edward mitchelson marshall Generall

The Judgment execution Aprisement & deliuery by the marshall Generall as aboue written stands here Recorded word for word wth the originall on file as Attests Edward Rawson Sece^{ry}

[Page 6^a is blank.]

[7^a]

Att A Court of Assistants or Admiralty held at Boston 24th of may & Adjourned to 28th sajd may 1678

Tho Bromehall mate Richard Peete's Lawrence Bowles & Jn^o Ragland marriners of Catch Jn^o & Benjamin plaintiffs by their libell & complt exhibbitted to this Court 24th may Instant & Adjourned to twenty eighth Instant at one of the clocke against w^m Long master of the sajd Catch deffend^t according to Attachment who wth the sajd vessell was bound ouer in one hundred twenty sixe pounds mony to respond the decree & Judgment of this Court for that the sajd deffendant refused to pay vnto the sajd mate & company their seuerall wages i e to the sajd Thomas Bromhall mate twenty fue pounds ten shillings or thereabouts & to the sajd

present
Jn^o Leueret Esq^r
God
Symon Bradstreet
Daniel Gookin
Tho Danforth
W^m Hathorne
Edw^d Tyng
Joseph Dudley Esq^r

* Written over "ship."

† Master.

Richard Peete's a thirteen pounds to said Bowles ten pounds tenn shillings and to y^e said Ragland fuety shillings for their se'vices donn in the said Catch as in said Attachm^t & evidences & said maste's Acknowledgm^t that the said marrine's had binn wth him a tenn or eleven month After the libell Attachmen^t & evidences in the Case produced were Read and are on file The Court found for the plaintiff^s and orde's & decrees that the deffend^t master & Catch pay vnto Tho Bromhall twenty five pounds five shillings to Richard Peete's twelue pounds fueteen shillings To Lawrenc Bowles ten pounds [^] to John Ragland fuety shillings wth Costs & chardges of Court three pounds seven shillings & two pence in all fuety three pounds seventeen shillings & two pence = execution Issued out for y^e same 29th may 78 = & was

To Edward Mitchelson marshall Gennerall or his deputy

In his Majtjes name yo^r are Required by way of Execution to levy on the person of w^m Long master of the Catch John & Benjamin wth hir Apparrell & furniture in mony the sume of fuety pounds tenn shillings and deliuer the same wth two shillings for this execution together with three pounds seuen shillings & two pence for Court charges & Costs in mony to Thomas Bromhall twenty-five pounds five shillings to Richard Peete's twelue pounds fiveteen shillings to Lawrenc Bowles tenn pounds [^] to Jn^o Ragland fuety shillings in all wth costs & charges three pounds seuen shillings & two pence and is in satisfaction of a Judgment & decree of the Court of Admiralty granted to them for so much making you^r Returne as the law directs Dated in Boston the 29th of may 1678 =

By the Court Edward Rawson Secre^{ty}

vnde^rwritt

I haue seised the master & Catch John & Benjamin and haue Apprised the same as will Appear vnde^r their hands hereto Annex^t the 31th ^{3d}_{mo} 1678. Edward Mitchelson Generall marshall

Annex^t = An Apprisement of the Catch John & Benjamin w^m Long Comand^r may 31th 1678

majnsajle one hundred & sixteene yards fifty	}	11	s	d
eight shillings Jebasjle 13. 4 ^d sprit sajle thirteene				
shillings & fowe ^r pence — — — — —				
majne top sajle ten shillings missen six shillings	}	04.	04.	04
three pence one hundred weight Junke sixe shillings				
nine barrells sixe shillings Cable forty shillings		01.	02.	03
Runing Riggig in hold & blocks 20 ^s —		01.	06.	00

Iron potts & a frying pan ten shillings pewter	11	1	4
dish & wooden platte's 2 ^s Can hooks 1 ^s	00.	10	00
spikes & chajne plates for store ten shillings on			
Anchor 35 ^s grindston 1 ^s — — — — —	02	06	00
standing & Runing Rigging fuety shillings boate			
mas ^t & saje & oares fuety shillings — — — —	05	00	00
The Hull masts & yards seventy & fue pounds —	75	00	00
willjam Condry			
John ffoy	92:	19.	11*
Nathaniel Greenwood			

vnde^rwritt

know all men by these presents that on the one & thirtieth day of may 1678 w^m Condry John ffoy & nathaniel Greenwood Came before me vnde^r writt and deposed that they being chosen by willjam Long master

[8^a]

and the seamen of the sajd Catch & the marshall Gennerall Edward mitchelson on behalfe of the Country to make an Aprajsement of the sajd Catch & Appurtenances aboue written Came before me and tooke their oathes that they would make a due Aprisement of the same which || also || they haue signed vnde^r their hands as Attests Tho Brattle Comissione^r. /

This is to Certify that this execution is sattisfied
 stands endorst on and the men is pajd their wages and the vessell was
 the originall execu- sold according to the Apprisemen^t as will Appeare
 tion Returned vnde^r their hands and what remajnes I shall rese^rve
 till further orde^r

Edw^d mitchelson m^ssh^{ll} Genll

And at the ffoote of all is writt:

This is to Certify whom it may Concerne that I vnde^rwritt hauing seized the aboue mentioned Catch & had hir & hir Appurtenances duely Apprized on oath as is aboue written and sold the same one halfe to John keech for forty fowe^r pounds & to John Turell & John ffoster the othe^r halfe for the like sune wch was in full of the execution

Edward mitchelson marshall Gen^{ll}

That the Courts Judgment execution therevpon Granted & Returnd wth the endorsm^t of the Catch^a Apprisement on oath the mar- shalls returne of Sattisfaction made to y^e seamen of their wages as also

* The figures in this account are given as in the record, although they do not agree with each other. It is not possible to explain the discrepancies.

of his sale of the said Catch to the said John keech John Turell &
 John ffoster ffor eighty eight pounds & his deteyning
 13th June 1678 = the Remainde^r in his hands till further orde^r one after
 the othe^r stands entred & Recorded word for word in the said Cour^t
 of Admiralty booke of Records for such transactions is Attested by
 Edward Rawson Secre^y

[9^a]

1681

Att A County Court held at Salem the 29th ^{1^{mo}} 1680 :

John Broune seⁿ Ruling Elde^r of the church of Salem & Henry
 Bartholmew merchant ouersee's & feoffees in trust for the children of
 Robe^t Grey late deceased plaintiff^s against Nicholas manning defend-
 ant in an action of the Case e^r according to Attachment dated the
 14th of June 1680 the Attachment wth what other evidences in the Case
 produced were read Comitted to the Jury and are on file The Jury
 brought in their virdict they found for the plaintiff^s the forfeiture of
 the mortgage viz^t the house & land mortgaged & Costs of Court —
 Nicholas Maning the defendant Appeales from this virdict to the nex^t
 Court of Assistants & Gaue bond to prosecute e^r = This is a true
 Coppie — Hilljard veren Cleric = Copia vera. Attes^t Edward Rawson
 Secre^t

Att A Court of Assistants held at Boston 7th September 1680

Nicholas Maⁿing plaintiffe on Appeale against John Broune seⁿ
 and Henry Bartholmew defendants as ouersee's &
 Jⁿe Broune & Hen feoffees in trust as is aboue from the Judgment of the
 Bartholm^e execu- County Court at Salem last After the Attachmen^t
 tion recorded Courts Judgment^t reasons of Appeale & evidences in the Case produced
 were read Comitted to the Jury and are on file with the Reccords of
 this Court the Jury brought in their virdict they found for the deffend-
 ant Confirmation of the former Judgment & Costs of Courts two
 pounds sixteene shillings & fower pence = That this is A true Copie of
 the Courts Judgment taken out of their Reccords Attests Edward
 Rawson Secret

To Edward Mitchelson marshall Gennerall or his deputy In his
 Mājjes name yo^r are Required to extend this execution on the house
 & land now in possession of Nicholas maning as aboue mentioned in
 the County Cou^rts Judgment as forfeited by his mortgage bearing date
 14th of march 1664 which Judgment is Confirmed by the Court of
 Assistants as in their Judgment aboue also written being true Copies
 of said Judgments as Appeares and deliuer vnto the said John Broune

& Henry Bartholmew ouersee's & trustees as is aboue declared quiet peaceable & full possession thereof together therewith yo^r are alike required to levy by way of Execution on the Good^e estate or person of nicholas maning in money fiety sixe shillings & fowe^r pence & deliuer the same wth two shillings for this execution to the sajd Jn^o Broune & Henry Bartholmew as abouesajd and is in sattisfaction of sajd Judgment so Confirmed making you^r returne as the law directs hereof yo^r are no^t to fajle dated in Boston 22th day of Septembe^r 1680 By y^e Court Edward Rawson Secre^t

By virtue hereof I depute Henry skerry my lawfull deputy for the execution of this warrant Edw^d mitchelson marshall Gen^l endo's^t stands

I went to the house that Nicholas maning had in possession and made demand of the houses and land morgaged by Nicholas Maning and levyed this execution vpon the houses and land and deliuered them to John Broune seⁿ and as Henry Bartholmew and gaue him quite* peaceable and full possession of all the houses and land according to the Tenno^r of this execution dated this 2^d day ^{8.}mo 1680 in full sattisfaction of this execution p^r me Henry skerry marshall Genne^{ll}s deputy. unde^r writt

I also levyed After demand of the money for Costs and none Could be had on the shoop of nicholas maning^s for the mony and then wee chose fuet^r men

[10^a]

men Carpende^r & were then sworne by m^r Broune assistant of Salem viz^t Nathaniel Pickman seⁿ and John Norton who Aprized it then at sixe pounds fueteene shillings mony and I deliuered it to John Broune seⁿ and as Henry Bartholmew & gaue to him quite & peaceable possession and the marshalls due is in this shoop according to the tenno^r of this execution in full sattisfaction of this execution this 2^d ^{8.}mo 1680

wee whose names [^] vnde^r written being chosen & sworne to Aprise a shop of Nicholas maning Gunsmith wee doe Aprize the shop to be valyed at sixe pounds fueteen shillings [in] money in the Ground as the shop stands on now

2 octo^be^r 80

Nath Pickman

John Norton

Taken vpon oath that this Aprizement is true according to our best Judgment before willjam Broune Assistant :

* quiet ?

† So in the record.

y^e executiō & Re-
turne was Returnd
to me 5th Aug^{us} 1681
E R S —

annext.

the execution Returne of the marshall Geñlls deputy vpon it wth the Aprizement on oath || & annex^t || as they stand vnde^r writ the Courts Judgm^t one after the other stands here thus entred & Recorded word for word Agreeing wth their Originall from y^e day of its Returne to me vnde^r writt i e 5th August 1681 in perpetuam rei memoriam at Request of m^r Henry Bartholmew p Edward Rawson secre^t

To Jn^o Greene marshall Gennerall or his deputy Joseph Webb marshall of Suffolke =

In his Maj^{ties} name you are heereby required to levy on the Goods or estate of Barnard Schinking merchant where ev[e]r they may be found or in defect thereof on his sajd three eight parts of the pinck expectation wth the Appurtenances thereto belonging to the value of one hundred & eleven pounds thirteen shillings & one penny money and deliuer the same wth two shillings for this execution vnto Thomas Gretian marriner & master of sajd Pinke Expectation and is in sattisfaction of a Judgment Granted him for so much by the Court of Assistants sitting in Boston 17th Instant as the Ballance of his Account Given into the sajd Court & sworne vnto wth his Costs e^r granted him making your returne hereof to the Court as the law directs dated in Boston 25 of June 1681

By the Court Edward Rawson Secre^t

on y^e originall Annex^t June 27. 1681.

I extended this execution on the three eights of the ship or Pincke Expectation shewed me to be the estate of m^r Bernard schinking merchant the whole ship being Apprized by m^r Jonathan Balston m^r Timothy Prout señ^r [&] m^r Thomas Moore as p an Inventory of particulars to wch they subscribed their names will Appeare at two hundred & seven pounds two shillings & fower pence three eighths of which amounts to seventy seven pounds thirteen shillings & fowe^r pence halfe penny and likewise fower pounds fueteene shillings more being the proper estate of sajd schinking distinct from the ship in all amounting to eighty two pounds eight shillings & fower pence halfe penny, and || out of which || deducting forty fower shillings for ffees & charges at the Apprizement there remajns eighty pounds fower shillings & fower pence halfe penny, which estate so Apprized I deliuered vnto thomas Gretian in part sattisfaction of this execution there remayning to compleate the same the sume of thirty one pounds one shilling & eight pence halfe penny.

Joseph webb marshall of Suffolke m^rshall Genrll deputy

New England 27th of August 1681 :

This execution marshalls Returne of its extension & y^e Aprizement vnde^r y^e three Apprize's hands from y^e day above written when it was Returnd stands thus recorded in the Court of Assistants booke of Reccords as Attests

Edward Rawson Secre^{ry}

[11^a]

1681

Annex^t

wee whose names are herevnto subscribed being chosen & desired by m^r Thomas Gretian & Joseph webb marshall of suffolke marshall Genneralls deputy in Behalfe of m^r Barnard schenking merchant & in behalfe of the Country to Apprize some of the estate of said m^r schinking here in New England in orde^r to the sattisfaction of an execution bearing date 25th. June 1681 to value of one hundred & eleven pounds & fueteen shillings & one penny mony as p^r said execution may appeare refference thereto being had, hauing vejwed the Pincke or ship expectation three eights of which Pincke or ship is Affirmed to be said m^r schinkings wee doe value the whole ship as followes wth all her Appurtenances — Imp^rimis The Hull Boat masts u . a
yards & standing Rigging as now she ljes 100 — 00 — 00
3 Anchors about thirteen hundred weight — — 020 00 00
1 sheet Cable 14^c 2 smalle^r Cables & an Hauser
about 22^c — — — — — — — — — 035 00 00
4 smale Guns wth Carriages 12 hundred weight — 014 — 00 00
2 majn sailes 2 foresajles 2 foretop sajles one }
majntop sajle 1 mizen about 7 hundred & seventeen } 027 — 02 — 04
yards 717 about halfe worne — — — — — }
8 C. weight of smale Rigging & blockes
more properly his oune particcular estate distinct from 006 00 00
the ship 202 = 02 — 4
2 p^r of Hand screwes being Rusty & old — — 001 — 10 — 00
1 Copper Keetle weighing twenty seven pounds 27 001 — 10 — 00
1 p^r stilyards rusty & wanting some fitting — 000 — 10 — 00
12 pounds of pewte^r at 12^d p^r li — — — 000 — 19 — 00
27th June 81 206 — 11 = 4

Jonathan Balston

Timothy Prout sen^d

Tho moore

Jonathan Balston Timothy Prout and Thomas Moore gaue in this

Apprizement of the Pincke expectation vpon oath before me Symon Bradstreet Go^dno^r. =

More since taken notice of belonging to the ship	
6 muskets & 1 smale fowling peece 3 sword blades	} 05 = 00 — 00
2 Crowes of Iron 1 deep sea lead 1 sounding lead 5	
compasses halfe doz ⁿ Glasses a Cross cutt saw	
valued by the above named Gentlemen at — —	
belonging to m ^r schinking 1 Iron pot & on	} 6 ^s
old stewpan at	
recorded as on y ^e oth ^r side	

[12^a]

Att A County Court held at Boston 27th July 1680.

W^m Hollowell Ju^d Benjamin Hollowell & Edward Ashley who marrjed mary Hollowell or their lawfull Attorney plaintiff^s Cont^a Stephen Butler se^d deffend^a in an Aecon of Revejw of an action Comenced & prosecuted by the now plaintiff^s ag^t the sajd Stephen Butler at a County Court in Boston in July last for wthholding (und^rpretence of right by execucutorship to Mary ward late wife to Benjamin ward & othe^r false p^tences, an estate to the value of fower hundred pounds or thereabouts which did belong vnto Benjamin ward aforesajd and now is the propper right of the plan^a who are the right & vndoubted heires of sajd Benjamin ward e^ra according to Attachm^t the Attachment & evidences in the Case produced being read & Co^mmitted to the Jury wch are on file the Jury brought in their virdict they found for the plaintiff^s the houses & lands & appurtenances therevnto belonging sued for & Costs of Court The Deffend^t Appealed from this Judgmen^t vnto the nex^t Court of Assistants & Gaue bond for prosecution to effect This is A true Copie as Attests Is^a Addington Cler. Copia vera Attests Edw^d Rawson Secre^t

Att A Court of Assistants sitting in Boston 7th 7ber 1680

Stephen Butler plaintiff^s ag^t w^m Hollowell Ju^d Benj. Hollowell & Edward Ashley deffend^a in an Action of Appeale from the Judgment of the County Court in Boston After the Attachment Courts Judgment Reasons of Appeale & evidences in the Case produced were read Com^mitted to the Jury & are on file wth the Reccords of this Court the Jury brought in their virdict they found for the deffendants Confirmation of the forme^r Judgment & Costs of Courts sixe pounds sixe shillings =

Copia vera Attests Edw^d Rawson Secret

To Edward Mitchelson marshall Gennerall

In his Majtjes name yo^r are required to levy by way of Execution on the houses lands and Appurtenances thereto belonging || as || in the Judgment of the County Court aboue written and is there exprest and also in Costs in mony from stephen Butler the sume of sixe pounds sixe shillings and deliuer the same wth two shillings for this Execution to w^m Hollowell Benjamin Hollowell & Edward Ashley or their Atturney and is in sattisfaction of the Judgment of the Court of Assistants sitting in Boston the 7th of September last Confirming the same making you^r returne as the law directs dated in Boston this 9th of Novembe^r 1680.

By the Court Edward Rawson Secre^t
To Jn^o Greene marshall Genll, or his deputy

In his Majtjes name yo^r are Required to levy by way of Execution on the houses & lands yet remayning & not Completed wth the Costs according to the Judgment of the County Court & Court of Assistants as aboue exprest lately belonging to Benjamin ward deceased e^r and deliuer the same wth two shillings for this execution to the Aboue mentioned Hollowells e^r or their Atturney m^r Anthony cheekley as sattisfaction to the || sd || Judgments making your returne as the law directs & not fajle Dated in Boston 1st of August 1681

By the Court Edward Rawson Secret
I hereby depute marshall Returne wayte
to extend this execution August 2, 1681

Jn^o Greene marshall Genn^{ll}

[13^a]

Nouembe^r 12th 1680.

I extended this execution on the house & Ground where Roger Browne now liueth wth all the appurtenances thereto belonging or Apperteyning as also vpon the house & Ground where willjam Robbins now liueth with all Appurtenances || & priueledges || thereto belonging as also vpon the halfe of an orchard Adjoyning to m^r Nathaniel Olliuers ground also vpon a slip of Ground Runing doune from the orchard to the Corner of stephen Butlers dwelling house which ljeth wthin the fence also vpon the halfe of a smith^s shop in the occupation of w^m Robbins also vpon a part of a wharfe lying on the north west side of willjam Hollowells ware house also vpon the Ground that Thomas Smith^s shop stands vpon & deliuered possession of all the before mentioned premisses vnto m^r Anthony cheekley Atturney to w^m Hollowell Juⁿ Benjaⁿ: Hollowell & Edward Ashley that Is to say I

extended this execution vpon all the houses & lands Intended in the same except a house wch was Benjaⁿ wards dwelling house, which stephen Butler Juⁿ his wife Inhabitts and kept possession of being big wth Child I was desired not to eject hir in that Condition also I haue not extended for the Costs

Return Way^t marshall Gen^l deputy

This Returne was made by Return wayt 25 July 1681

August 14th 1681.

I extended this execution on the house and land formerly belonging to Benjaⁿ ward dece^d which Jacob wilkinson lately liued in according to the Judgment of the County Court & Court of Assistants as aboue exprest & deli^u^d the same to m^r Anthony checkley Atturⁿje to w^m Hollowell Benjaⁿ Hollowell & Edward Ashley & for Costs of Courts I extended this execution on the person of Stephen Butler seⁿ and for want of money to sattisfy haue Comitted him to prison marshalls fees two pounds ten shillings in all nine pounds. Returne wayt marshall Genneralls deputy

This Execution & marshalls Returnes stands thus entred & Recorded in the Courts Booke of Reccords for executions word for word Agreeing wth the originall on file this 17th of octobe^r 1681 as Attests Edw^d Rawson Secrety

Att A Court of Assistants or Admiralty held at Boston 2^d January 1678 Henry wheeler late master of the ship recouery in behalfe of himself & owno^rs by his libell & complaint exhibbited to this Court bearing date 28th of Decembe^r 1678 & then given in plaintiff against m^r Anthony checkly and Lyddea his wife formerly the wife of the late Benjamin Gibbs & Administratrix to his estate defendant In an action of the Case largely e[x]prest in the aboue mentioned libell and is for not sattisfying him for the tjme of the sajd shipp Recouery for eight monet^h and one third of a moneth at thirty fue pounds p^r moneth which amounts to two hundred ninety one pounds thirteene [14^a]

shillings and fowe^r pence, as also for charges and disbursments and what one recouered for his wages as in the sajd ljbell is exprest as by sajd wheele's oath on file After the Attachment and evidences in the Case produced were read and duely Considered of The Court declared they Adjudged and did order and decree for the plaintiffe after the deduction of the late Benjamin Gibbs his creditt the sume of three hundred fuety sixe pounds fueteene shilling^s & || eleven penc || in

money and Costs of Court five pounds ninteen shillings & sixe pence ||
 In the whole three hundred sixty two pounds 15 05^d ||
 estate mōy * out of the estate of the late Benjamin Gibbs =
 That this is a true Copie taken out of the Courts Records Attests
 Edward Rawson secret

To Edward mitchelson marshall Gennerall or in
 vnd-writt his absence to the marshall of the County of Suffolke

In his majtjes name yo^r are Required to levy by way of Execution
 on the Goods or estate of the late Benjamin Gibbs in the hands of Lyddia
 his relict or Administratrix to the said Benjamin Gibbs his estate as in
 the Coppie of the Court of Assistants or Admiralty^s Judgment or decree
 aboue exprest in all exprests † the sume of three [^] sixty two pounds
 fueteene shillings and five pence in mony and deliuer the same with two
 shillings for this execution to Henry wheeler late master of the ship
 Recouery in behalfe of himself and ouno^rs as aboue is exprest and is in
 sattisfaction of the aboue mentioned Courts Judgment & decree hereof
 yow are not to fajle making you^r Returne as the law directs dated in
 Boston this 4th day of January 1678

By the Court Edward Rawson Secre^t

endorst

January 4 & 24: 1678^g

This execution was extended on the estate of m^r Benjamin Gibbs
 in the hands of m^r Anthony checkley who married Lydea relict & Admins-
 tratrix to the estate of the late Benjamin Gibbs to value of two hundred
 & nine || pounds || as may Appeare by the seuerall Invoyses of said Goods
 weh Goods were shewed me and ouned by m^r checkley & his wife

[15^a]

to belong to said Gibbs estate and the same was deliuered to m^r James
 Barton p order & and as Attorney of Henry wheeler [^] onely since the
 Invoyses & deliuey a pewter still valued at 1^{li} 5^s was returned and
 thirty shillings for a Porringer and twelue shillings for a great chaire
 not yet payd) by virtue of this execution p Joseph Webb marshall of
 suffolke

I Received of m^r Barton 35^s in p^{te} of fees

I leveyed vpon m^r Gibbs out wharfes valued at one hundred & nine
 pounds twelue shillings as p Invoyce and deliuered them to m^r James
 Barton as aboue

Joseph webb marshall

* Money?

† respects ?

Wee whose names are vnderwritten being chosen by m^r James Barton as Attorney to Henry wheeler & m^r Anthony checkley as he married Lyddia administratrix to the estate of m^r Benjamin Gibbs deceased & Joseph webb marshall of Suffolke as Apprise's of Certaine Goods in order to the sattisfaction of an Execution obteyned on said Judgment bearing date January 4th 1678 the Goods presented to us Janua'y 14th 1678 wee Apprized as follows

It 1 scripture somewhat broken 7 ^{li} 13 Turkey }	
wrought chaires at 7 ^s 6 ^d p ^p peece 4. 17. 6 }	11 — 17 — 06
It 6 Red chaires at 6 ^s 6 apeece 1 ^{li} 19 : [10]* And-	
Irons at 5 ^{li} 10 — — — — — — —	07 — 09 — 00
It 4 Tables at 4 ^{li} = 1 round Table at 1 ^{li} = 1 look-	
ing Glass w th the brasses 2 ^{li} — — — — —	07 — 00 — 00
It 1 map or Globe of y ^e world 1 ^{li} = 10 pewte ^r	
platters & 11 plates & smale dishes [at 63 ^d p ^{li} 17 ^{li}]	
4 ^{li} = 3 ^s	05 — 03 — 05
It 3 Candlesticks & sockets: 15 ^s = 1 Cubbord	
15 ^s 1 Iron ba[lke?] at 15 ^s . — — — — —	02 — 05 — 00
1 Turkey wrought Carpet at 2 ^{li} = 10 ^s 6 searge	
chaires at 6 ^s 6 ^d apeece 2 stooles at 4 ^s 6 ^d	04 — 18 — 00
It 1 bed boulster bedstead greene silke quilt	
Curtains & valliants bed tester & [gu]ilt head [peece]	15 — 00 — 00
It 4 searg chaires at 7 ^s . 6 ^d & 2 stooles 5 ^s apeece	
2 ^{li} { 1 [Gu]ilt couch 3 ^{li} — — — — —	05 — 00 — 00
It 1 dutch table 18 ^s 1 looking Glasse 15 1	
scripto ^r & a little table vnd ^r it at 6 ^{li} — — — — —	07 — 13 — 00
It 6 turky wrought chajres [C]R at 14 ^s a peece	
04 ^{li} . 4 ^s = 2 p ^r AndIrons at 1 ^{li} . 15 ^s	05 — 19 — 00
It 6 [penđ†] Turkey wrought chajres at 10 ^s	
apeece — — — — — — — — —	03 — 00 — 00
1 square bed 1 suite of white Curteynes 1 suite }	
of searg Curtains w th Goulden & sad Coulored }	16 — 00 — 00
freings whiting & blankets & bed steed — — — }	
It 1 Ciprus chest at — — — — — — —	02 — 00 — 00
It 1 negro man named Hecto ^r — — — — —	35

131 — 04 — 00†

John woodmansey

Ephraim Sauage

Robe^t Sedgwick

* Or "to."

† Or "prud."

‡ The total does not agree with the items.

m^r Jn^o Woodmansey m^r Ephraim Sauage & m^r Robe^t Sedgwicke being chosen Apprize's of the estate aboue mentioned did make oath that setting aside all sinister respects they haue Apprised as aboue to the value & is mony to the best of their vnde'standings sworne vnto Janu. 14 1678 before me Edward Tyng Ass^t.

Janu'y 14 1678

Annex^t Boston 22^d January 1678

wee whose names are vnde^r written being chosen and sworne before Capt Thomas Brattle on the day and yeare aboue written to Apprize the draw bridge in Boston and [16^a]

shop Joyning to it which shop is in the occupation of Henry messenger wth any other shop or priuiledge belonging to said Bridge which priueledg may Appeare further refference being had to a deed vnde^r the hand & seale of Joshua Scotto to Benja: Gibbs which deed beares date the twenty sixth day of february one thousand sixe hundred seventy & fower doe Apprise the said Bridge shop^s and priuiledges c^r at thirty pounds mony as wittnes our hands =

Edward Lilly

Nathaniel Greenwood —

Drawbridge at 30^{li}

Invoyce of Goods at Benjamin Gibbs house taken on Execution and Apprized January 23, 1678 p m^r woodmansey and m^r Ephrajm Sauage and m^r Robert Sedgwicke sworne before the wo^rpp^{le} Edward Tyng Esq^r Asistant

				li	s	d
Imprimis	1 great kete	at 18 ^d	p ^{li} 46 ^{li}	—	—	03 — 09 — 00
	seuerall peices of pewter	at 13 ^d	p ^{li} . 64 ^{li}	—	—	03 — 09 — 04
	10 Caster Hatts for weomen & men	at 6 ^s	p peece	03	—	00 — 00
	29 felts hatts old fashion	at 2 ^s — 6 ^d	p peice	—	03	— 12 — 06
	1 pewter still bottom & Iron	—	—	—	01	— 05 — 00
	1 pewter server at	—	—	—	00	— 15 — 00
	6 netts	—	—	—	06	— 00 — 00
	1 handchech'erfe box w th frame	—	—	—	00	— 08 — 00
	1 bedsteed old fashion	—	—	—	01	— 10 — 00
	1 wainscot chest	—	—	—	01	— 05 — 00
	48 y rd s of thread sattjn	at 3 ^s	p y rd	—	07	— 04 — 00
	A parcell of lace Galloone & hatt ljnings &c	—	—	—	06	— 00 — 00
	1 siluer porringer	at 30 ^s	—	—	01	— 10 — 00
	14 y ^{ds} of dyaper	at 3 ^s	p y rd	—	02	03 06

[17^a]

1 great Red chajre at 00 12 00
 some sajles that m^r Barton shewed me to belonged
 to sajd estate valued in the Inventory at 6^{li} or there- ^{Li}42. 03. 04
 abouts which sajles were after Replevied by m^r
 Anthony checkley

Attested p Joseph webb marshall Boston 10th of
 January 1678 131. 04. 11
 42. 03. 9
 wee whose names are vnde'written being chosen 30. 00. 0

by m^r James Barton & marshall Joseph webb to
 Apprize an estate shewed vs to be belonging formerly 203. 08 [8]
 to m^r Bejami Gibbs now deceased there being a parcell
 of wharfing p'sented to us viz' fiuty fowe' foote of an outward wharfe
 w^{ch} wharfe wee doe apprize at thirty two shilling^s p foote & eighteen
 foot of wharfe joyning to a parcell of wharfe of m^r Edward shippens
 w^{ch} s^d eighteen foote of wharfe being in that Capacitje that now Its
 wanting neere three foote of its hight the which eighteen foot wee doe
 Apprize at twenty six shillings p ffote as wittnes our hand —

Edward Lillje

Nathaniel Greenwood

That the Copie of the Court of Assistants & Admiralty^s Judgment
 in the Case then trjed in Boston 2^d January 1678 betweene Henry
 wheeler plaintiffe against m^r Anthony Checkley & Lydja his wife (late
 wife to Cap^t Benjamin Gibbs deceased and Administratrix to his estate)
 wth the Copie of the execution on that Judgment marshalls Returne
 therevpon wth the Apprise's Apprisement of the seuerall parcells of
 Goods on their oathes wth y^e seuerall Invoyses thereof annexed therevnto
 at the request of m^r James Barton Attorney to sajd Henry wheeler so
 signed stands thus entred & recorded in the Court of Assistants booke
 of Records for executions word for word Agreeing with the originalls
 on file this 27th of Decemb^r * [1684] as Attests Edward Rawson Secre^{ty}

Att A County Court held at Boston 29^o July 1684

Ann sheffield alj^s Perry || plt || Conta Joseph Homes of Boston
 defendant in an Action of the Case for that the sajd Homes hath pos-
 sessed himselfe in, & doth refuse to give hir possession of a parcell of
 land and building thereon lying at the South end of Boston neere the
 windmill point which of right doth belong to the plaintiff it being lately

* Written over January.

hir husband sheffields deceased letters of Adminstration being Granted to the plaintiffe with all due damages. The Attachment and euidences in the case produced being read and Committed to the Jury

[18^a]

1684

which are on file the Jury brought in their virdict they found for the plaintiff possession of the house and land sued for & costs of Court = Copia vera Attes^{us} Is^a Addington cler. —

Copia vera Attes^{us} Edward Rawson Secre^t

The deffendant Appealed from this Judgment to the nex^t Court of Assistants in Septembe^r ffollowing where that Case was trjed and Judgment passed i: e Confirmation of the County Courts Judg^mnt from which said Judgment Joseph Homes the deffendant by Attaint carried the Case to the Court of Assistants to be held in Boston the third of march Instan^t, where the case was trjed and alike — Confirmation of the said County Courts Judgment as aboue as is Attested p Edward Rawson Secrety

Copia vera Attes^{us} Edw^d Rawson Secre^t

To John Greene marshall Generall or his lawfull deputy

Yow are heereby Required in his Maj^{ty}s name to Giue possession of the house and land mentioned in the County Courts Judgment a true Copie whereof is aboue written, which hath been Confirmed by both Courts of Assistants aboue also Certified and declared) to the aboue mentioned Ann sheffield Aljas Perry as she is Administratrix of hir late husband sheffields estate as also to levy on his estate or person in mony the sume of two pounds thirteen shillings for Costs of Courts and deliuer the same with two shillings more for this execution or in want of mony for said Costs to sattisfy the said Ann Perry alja^s sheffield yow are alike required to seize the person of the said Homes [sen^r.] and him Comitt vnto the safe keeping of the prison keeper in Boston vntill he make payment according to this execution or othe^r wise be released by the said Perry aljas sheffield or by order of lawe hereof fajle not as yow will answer the Contrary at you^r Perrill

[19^a]

1684

and make returne of your doings herein vnde^r your hand as the law directs for which this shall be you^r sufficyent warrant dated in Boston 7th march 1684 p Curiam Edward Rawson secre^t

Copia vera Attes^{us} Edward Rawson secre^t

[i]ndorst

7th march 1684

I haue Giuen possession of the house and lands vnto Ann Perry in all respects according to the execution and Judgment of the Courts wth in here expressed: I also levyed this execution vpon the mony of Joseph Homes the sume of two pounds fieteene shilling^s mony wth two shillings for my ffes and deliuer the sajd mony vnto Ann Perry =

John Greene marshall Genll

That what is here entred & stands Recorded from the true Copies & originall Attachment Courts Judgments execution therevpon & marshall Generalls Returne therevpon in this & the other two foregoing paiges is thus Recorded in the Court of Assistants booke of Records word for word Agreeing therewth on Request of sajd Ann Perry e^r | 16 may 1685 | is Attested by Edward Rawson Secre^v

To the marshall Gennerall John Greene or his deputy

In his Majtjes name yo^r are required to levy by way of execution the Goods estate or person of Richard Downing (in Case) in mony three pounds nineteene shillings & sixe pence and deliuer the same [with two shillings] for this execution to Joseph Boober as Costs as also the house & land in controuersy according to Attachment e^r and is in satisfaction of the Judgment of the Court of Assistants sitting in Boston 2^d Septembe^r 1684 making yo^r Returne hereof to the Court as the law directs dated in Boston the ninth day of september 1684 By the Court Edward Rawson secre^t

vnd^r writt I doe Assigne & Impower marshall skerry of Salem to be my lawfull deputy to levy this execution as wittnes my hand this tenth day of September 1684: John Greene marshall Generall

I Reed: as part of y^e ffes of Jone Boober three shillings then doe yo^r demand the whole endorst this 27th of September 1684 =

I levyed this execution before vpon the house & land all of it that was John Bennets which I deliuered the house & land to Joseph Booby by turfe & twigg & gaue to them quiet possession wthall the priuiledges & Appurtenances belonging to it the house & land that Richard Downing liued then ~~levyed~~ in according to the Attachment also I levjed in mony of Richard Dounings fowe^r pounds one shilling & deliuered it to Joseph Booby & his wife to the full sattisfaction of this execution as for them p me Henry skerry marshall

this execution & returne stands thus here entred & Recorded 4th Septembe^r 1685 at Request of Joan Booby wife to Joseph Booby As Attests

Edw: Rawson secret

[20^a]

1685

To John Greene marshall Gennerall or his Deputy

You are Required in his Maj'ties name by virtue hereof to levy in Execution of the money of Thomas || Baker || & John Baker or either of them the some of ninety Nine pounds fower shillings and eight pence with two shillings more for this execution, and deliuer the same to Edward Hundlocke or his order which is to sattisfy a Judgment, ~~granted & confirmed to him y^e sd Edward Hundlocke or his order which is to sattisfy a Judgment~~ granted & Confirmed to him the said Edward Hundlocke, ~~or his order which is to sattisfy a Judgment~~. || recovered at the Court of Assistants Sitting || in Boston the first of this Instant September in money and for want of money or other estate of the said Thomas and John Baker or either of them you are alike required to seize the person or persons of the said Thomas and John Baker or either of them, and him or them to Comitt to the safe keeping of the prison keeper in Boston vntil the said Thomas and John Baker or either of them, make payment according to this execution, or otherwise be released by the said Hundlocke, or by order of law,* hereof fayle not as yow will Answer the Contrary at your perrill and make returne of your doings herein vnde' your hand as the law directs for which this shall be you' sufficient warrant dated in Boston this sixteenth day of September 1685

Hundlocks execu-
tion ag^t Tho. & Jn^s
Baker *ec*

By the Court Edward Rawson Secret

This is A true copie of the originall execution Attests Edwd Rawson secre^{ty}

September the 21th 1685

endorst

I have levyed this execution on the house and land of Thomas Baker sittuate lying and being in Boston in the lane Commonly Called Hudson^a lane or wing lane and

[21^a]

1685

is bounded easterly by the land of || m^r || Symon Lynde by the lane on the front southerly by the house and land now in the tenure and occupation of w^m Parsons westerly; by the new End of said Bake's house northerly to say the old end of said house to the midle of the chimney^s with the land whereon it stands measuring from the midle of the chimney^s to the southerly Corner of the house about twenty three foote more or less, thence to the street twenty three foote foure Inches and fifteen foote front to the lane besides the Gate way,

* This caret mark is in the original record.

And I also leyed on a kitchin on the easterly side of sajd house being about sixteene foote fowe^r Inches long and twelue foote and three Inches broad with the land on which it standeth and also the land rainging from the N. west Corner of sajd kitchin to the reare of sajd Bakers land measuring about two foote there from the corner next m^r Lynes land and so from the south west Corner of the || s^d || kitchin all the land on a streight l^jne to the Gate way reserving a passage way for the vse and bennetfit of both houses vizt the house now levyed vpon and the new end of sajd Bake's house which house and land so butted and bounded and measuring as aboue was apprizd by m^r Joseph Townsend and m^r Joseph Homes : =

[then] chosen * by m^r Edward Hundlocke Thomas Baker & myself at one hundred and two pounds || money || being the house & land John Cotta Constable of Boston attached by sajd Bake's order to respond the Judgment and I deliuered possession of the premisses to m^r Edward Hundlock he paying me my fees forty shillings with other charges John Greene marshall Generall

This is a true Copie of y^e marshall Genlls Returne Attests Edw^d Rawson secret

vnde^r writ as endorst

[22^a]

1685

Wee the subscribe's willjam Parson^s Joseph Tounesend and Joseph Homes being chosen by m^r Edward Hunlock m^r Thomas Bake^r and the marshall Generall to Apprise an house and land of Thomas Bakers to satisfy an Execution of m^r Hunlocks against Thomas Baker and John Baker or either of them for ninety nine pounds sixe shillings and eight pence whith † marshalls fees and other charges to value of one hundred and two pounds wee hauing vejwed the sajd house and land sittuate lying and being in the lane Comonly Called Hudsons lane, or wings lane, shewed us to be the estate of Thomas Baker and was

Attached by the Constable of Boston ; in our presents Apprisement [e^r]

Affirming that to be the estate he Attached to Answer the Complaint of sajd Hunlock wee doe Apprize the front par^t of the house viz^t the Old part to the middle of the Chimney^s with the land whereon it stands measuring about two and twenty ffoote to the Corne^r of the house and also the land betweene sajd house and the lane also a smale kitchin about sixteen foote long and about twelue ffoote and fower Inches wide being and lying on the easterly side of y^e sajd house with the land whereon it stands and a slip of land from the northwest

* Written over "that were."

† with?

Corner of said kitchin on a streight līne to the reare of said Bakers land it measuring there about two foote, it being about thirty nine foote from the reare to the kitchin also a slip of land runing from the sout west corner of said kitchin on a streight līne to the Gate reserv- ing the passage way for the vse of both parts of said houses the part so prized and that remajnes said Bake's wee Aprize the premisses at one hundred and two pounds money wittness our hands this one and twentjeth day of Septembe^r 1685

Joseph Tounsend
Josep Homes

Boston 24^o october 1685

vnde^r writ &

annex^t as endorst

[23^a]

1685

Aprizers oath

Joseph Tounsend and Joseph Homes two of the Apprize's appearing made oath that the aboue written is a Just and true and æquall Apprizement of the estate therein specified according to their best Judgment and Conscience without any partiality or sinister respects Jurat Corā Isa. Addington Comission^r.

This is A true Coppy of the Aprisement so signed & y^re oath^s therevpon

Attests Edward Rawson Secre^t

29 octobe^r 1685

That the Execution marshall Generalls extention and deliuvry thereof are truely word for word Compared wth the originalls & Aprise- ment as aboue one after the other || & || stands thus recorded in the Court of Assistants booke of Records for executions so signed at the request of m^r Edward Hunlocke; being therewth Compared & is on file Attests this 29th day of octobe^r 1685 Edw^d Rawson se^cret

To John Greene marshall Generall

yow are Required in his Maj^ties name by virtue hereof to levy on the ketch freindship of Boston hir tackle Apparrell & furniture with all hir appurtenances to value in mony the sume of eighty sixe pounds seven shillings in these seuerall sumes with two shillings more for this execution and deliuer the same in these seuerall sumes i: e to Andrew Elljot late master of the said Catch in behalfe of himselfe & charles Driuer mate, Abraham Avis & Joseph mosse marrine's and John Avant Boy for their seuerall wages granted to them for their seuerall seruices in said ketch for eight moneths & twenty fower dayes each of them and is to said Andrew Elljot thirty fve pounds fower shillings for his

tjme after fower pounds p moneth To charles driuer eighteen pounds
 eightene shillings for his seruice To Abraham Avis for his wages for
 like time twelve pounds sixteene shillings and to Joseph mosse for his
 wages for like time twelue pounds seventene shillings and to John Avant
 Cabbin boy for his wages for like time sixe pounds twelue shillings

as

[24^a]

1686

as per portlidge bill given in and sworne to In Court (three pounds
 one shilling excepted) to be deducted out of the wages of charles Driver
 & Abraham Avis wages in the whole eighty sixe pounds sixteene
 shillings the costs of Court Included making your returne of you' doing^a
 heerein vnder your hand as the law directs for which this shall be your
 sufficient warrant Dated in Boston the 14th of may 1686

By the Court Edward Rawson secret

Stands Indorst

wee whose names are vnderwritten being chosen to prize the Ketch
 ffreindship Burdened about thirty tunns desired by the marshall
 Gennerall & m^r Jarvis Ballard m^r Bolens Attorney & the master of the
 sajd Catch Andrew Elliott shewed by the marshall Gennerall which he
 levelled * vpon by virtue of an execution dated the 14th of may 1686,
 which sajd ketch with her boate tackling furniture & Apparrell & all
 other Appurtinances at seuenty eight pounds Current money of new
 England as wittness our hands this 19th day of may 1686

willjam ffoster

micaell Shuite

Samuell Greenow

vnde'writ 19th may 1686

I Levjed this within execution vpon the ketch ffreindship & Andrew
 Elliot was Comānder as with hir tacklings Apparrell furniture and
 Boat Ancho's Cables with sajd ketch and all hir Appurtenances was
 Aprised by persons legally chosen and sajd ketch with all hir Appur-
 tenances I deliuered vnto Andrew Elljot at seventy eight pounds mony
 to pay the men according to theire proportion and sajd master and
 mate

John Green marshall Generall

That this execution on the othe^r side and the Appraisement with
 the marshall Generalls extention & deliuey of the ketch freindship wth
 hir boate Ancho's tacklings apparrell And Appurtenances vnto the sajd
 Andrew elljot late maste^r of the said vessell for the ends & vses therein

* Error in the record for "levied" ?

expressed & so signed stands here thus recorded word for word Compared
wth the originall left on file from y^e said 14th of may & 19th of said may
at request of said Elliot Attests

Edward Rawson secret

*[Between this page [24^a] of the record of executions and the last
page [271] of the other part, the record of the Court there are nine
blank pages, except that on one of them is written in an ancient hand
"Boston Jan^y 2 1650."]*

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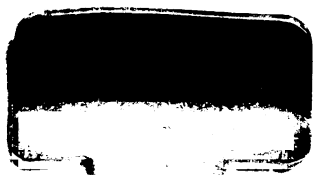
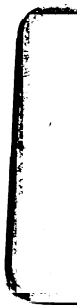
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